

Some Landmark Decisions of The Supreme Court Nepal

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Message

Historically, Nepal has always remained a free and independent country. Many may be surprised to know that, as early as 1380 A.D, a written legal code “Nyayabikasini” was promulgated here; the manuscript of this codified law is still preserved in our National Archives. Similarly, in 1940 A.D, there was already an independent Supreme Court called “Pradhan Nyayalaya,” distinctly separate from the Executive under which nine Appellate Courts and thirty nine District Courts functioned. The ancient legal system of Nepal was directly influenced by oriental philosophy, from 1950 A.D, which owes much to the common law system and partly to the civil law system.

The Supreme Court of Nepal has established itself as a free and competent judiciary issuing important verdicts that have left far-reaching impact in promoting and consolidating democracy, constitutionalism, human rights, press freedom, personal liberty, and the civil rights of citizens. Apart from this, critical decisions have been made involving key issues of public interest guiding the state to follow the norms of constitutionalism and rule of law. These decisions are useful not only to the litigating parties; they are equally important to those engaged in study and research in the field of law and justice.

The landmark decisions of the Supreme Court have the effect of a law and are being published in “Nepal Kanoon Patrika,” (the law journal) regularly from the year 1959 (2015 B.S), but only in Nepali language so far. Hence, efforts are now underway to publish selected decisions also in English so that foreigners also may benefit in carrying out their studies and research work.

At this juncture, the Supreme Court of Nepal, with the financial help of the OHCHR has brought out certain important cases related to human rights which we hope will continue in the days to come.

Mangsir, 2067
(December, 2010)

Ram Prasad Shrestha
Chief Justice

Foreword

Although small, Nepal is a country with quite a many distinct features of its own. This does not mean that it is the expression of my being a citizen. On the contrary, it is the expression of truth, as such. Our courts have made so many achievements by issuing out a number of landmark decisions of which we can feel proud. We use Nepali language in our court deliberations and thus we can not be accessed to the international community of jurists. The aim of publishing this book is to make our court verdict a part of discourse in global forum.

We are much grateful to OHCHR human right commission for the generous support extended by it in publishing this translated version of some of the key decisions made on human rights by our Supreme Court. We are also hopeful that we could bring such work at least once a year which will help also introduce about our justice system besides human rights.

Our efforts to publish such materials in English will continue. It is our duty to offer heartfelt gratitude to individuals who have made their tireless efforts in the publication of this book. Difficulties may arise in understanding the theme properly because they may not have exactly delivered the real content since English is not our native language. For this, we beg pardon from our learned readers.

The experience gained while publishing this book will certainly guide us to improve in future. Therefore, we look forward to receive comments and suggestions from the readers.

Poush, 2067
(January, 2011)

Justice
Prakash Osti
Chairman
Editing and Publication Committee
Supreme Court, Nepal.

Acknowledgement

Since globalization marks its impact in the sphere of law and justice the development in this field becomes the concern of the whole international community. Hence, it has been imperative for us to effect timely reforms in our legal system so that it can meet international standard and introduce our country as one of the responsible members in the global community. Likewise, we need to conduct programmes fitting the international standards and also disseminate them in the international arena. At a time when the international community is defining human right viewing through new global perspectives and has specified also some criterions, the publication of the translated version our Supreme Court decisions on the same can be called a coincidence.

It helps also to facilitate information about the landmark decisions made by our Supreme Court on human rights, good governance and such other issues in course of complying with the constitutional liabilities of making the rule of law more lively and in a vibrant way it is also expected to benefit students studying law in advance level whose medium of teaching is English as well as teachers, researchers and non-Nepali readers.

This book is expected to contribute in carrying out comparative study of justice system without whose study the study of law would remain incomplete. Similarly, the present volume will receive constructive feedback from the internationally renowned scholars which, in turn, provide guidance to bring about reforms in coming editions.

This is our second issue after publishing a book entitled "Some Landmark Decisions of the Supreme Court of Nepal, 2003." Our plan is to bring forth the major decisions on the basis of the chronological order of the date.

Thanks are due to Hon'ble Dr.Haribansh Tripathi, Hon'ble Dr.Kulratna Bhurtel, Mr.Rewati Raj Tripathi, Mr.Sanjib Regmi, Mr.Kamal Prasad Pokharel, Mr.Dharma Raj Poudel, Mr.Shyam Bahadur Pradhan,

Mr.Rudra Sharma, Mr.Bishnu Prasad Upadhyaya, Mr.Bimal Poudel, Mr.Kiran Poudel, Mr.Krishna Bahadur Gurung, Mr.Churaman Khadka, Mr. Sri Krishna Mulmi, Mr.Ramesh Rijal, Mr.Surya Parajuli, Mr.Shree Prakash Upreti and Ms.Alpana Bhandari for their painstaking job of translating the Nepali version of the text into English and those involved in collecting and screening the decisions worthy of publication, to advocate Mr.Bhim Nath Ghimire for editing these materials, the former Chief Justice Mr.Anup Raj Shrama for giving inspiration for its publication, incumbent Chief Justice Rt. Hon'ble Mr.Ram Prasad Shrestha for providing his most valuable guidance, the Hon'ble Justice of Supreme Court Mr. Prakash Osti, whose ceaseless follow-up during collecting, screening, translating and editing these materials has proved instrumental.

Similarly, I would like to offer my thank to the Joint Registrar Mr.Bipul Neupane, officials and staffs working in research and monitoring division, editor of the Supreme Court Law Journal, Mr.Tejendra Prasad Shrama, Computer Officer Mr.Sambhu Prasad Acharya, the editing & publication committee of the Supreme Court and all others involved in this effort.

Likewise, my special thanks are due also to Anthony Cardon, office in-charge OHCHR and Officer Ratna Kaji Shrestha and the OHCHR family without whose kind cooperation this publication would not have come in this form.

Thank You.

Poush, 2067
(January, 2011)

Ram Krishna Timalsena (PhD)
Registrar
Supreme Court, Nepal

Editorial

Nepalese legal system owes much to its own religious and cultural ancestry. With its rich economic and legal base it was functioning well in all spheres of national life without any help from the outsiders. Its own free and independent regime was able to extend the territories in course of which once she faced confrontation also with the British colonial rule, which was reigning in India for centuries. Nepal, in her glorious history of national independence, never experienced any foreign rule.

Before 1662, no foreigner was allowed to enter to this country. Until about 1843 there was not a single codified law nor an independent body to administer justice even if there were several treaties having effect of laws to hear and try cases of different nature. State related cases such as sedition, treason and dispute arising from the role of succession to the throne were rare because more severer form of law to banish persons involved in those types of offences were already in effect. Cases arising from disputes of caste hierarchies, women contamination, food code, revenue collection flaws, public land encroachment were common. Crimes were defined and punishment given in view of their gravity accordingly. Very nice principle of law and justice developed through centuries were in practice. The source of legal judgment was Smriti upon which was rested all the wisdoms of Brahmanic scholars who were also the counsels of the king's court. The divine theory of rule was the principal arbiter of peoples fate. The autocratic monarchical rule was thought to be the most viable system of government. Thus the king was above the law. The word "democracy" was not included in Nepalese political vocabulary.

The judiciary was formally separated from the executive at first in 1940. The new dawn of democracy was seen in 1950 for the first time but it did not last long because it was the outcome of political power-clash between the powerless king and his formidable foes -- i.e the Rana rulers rather than people's spontaneous uprising. Anyway, the Rana family rule was over thrown and the king became absolute once again. Nevertheless, democratic way of life took shape. Political parties began to organise people in their own way. The first-ever free general election took place in 1959 and a democratically elected government was formed. Before it could consolidate itself the new king snatched the state power in 1960. Thus the kingship drove on till

its culmination in the royal massacre of June 1st 2001, and also couple of years thereafter. The People's Movement II took place and with its success all possible rights, freedom and liberties were granted to the people.

Currently the country is passing through the transitional phase. It has to carry out some of the most important activities including the state restructuring, constitution drafting, satisfying the economic demands of the people together with maintaining human development index at least in satisfactory level. The other paramount issues like promotion of peace, democracy, rule of law and good governance are installed. Most favorable situation for overall paradigm shift is yet to be seen by the country. Thus the donor countries and the international community is viewing the political development of the Nepal with great concerns.

Our judiciary has resolved many difficult domestic political questions by pronouncing necessary decrees. After restoration of democracy in 1990 its role is further widened. It has rendered many liberal interpretations in relation to the compliance of statutory provisions enshrined in international treaties, agreements, conventions and protocols ratified by the country. When a municipal law differs with international instruments, the most crucial situation arises of interpretation shaping the domestic law as intended by that instrument. More critical becomes the case as the state resources become short to meet the proposed objectives. For example employment rights, rights involving rehabilitation, reservation quotas and right to safe habitat are associated with states resource potentialities. The question of internalizing new thought and practice like right to the same sex marriage and third gender right in our country's fundamental law is far from realization though the court recommends that the question raised is genuine.

Sometimes, the legality of the question raised by the petitioner and statutory vacuum felt during the hearing, remedy sought thereof and chances of availability of justice becomes very slim, though the issue raised is hard to be ignored. In such a case our court directs the government to bring policy in order to avoid injustices in future. Many cases are related with execution flaws and are settled by promulgating or causing others to promulgate fresh guidelines and even by framing rules. Issues concerning recovery of punishments and fines are purely procedural and are likely to be governed by executive decision. Degree of complacency can be seen in such cases for which the court

has to labour much. A new principle in regard to penalizing the defaulter has been enunciated. The court has spent great energy to develop right based approach on cases related to women, children, elderly people, war victims, disabled, economically and academically backward class or communities of people, ethnic minorities right, domestic violence, forced labour, mental as well as physical torture, and enforced disappearance. But in some areas the court appears shy or inconsistent in delivering proper justice. However, some efforts have been made to minimize such inconsistencies.

These types of cases began to come in limelight and became vibrant only after the restoration of democracy and more dramatically after the accomplishment of the Peoples Movement II. The erstwhile rule was of autocratic nature backed by century-old military psychology which, aftermath of democracy came in forefront more aggressively and began to indulge in rather barbaric activities in the name of suppressing the terror and violence caused by the rebellions. In one occasion, they kidnapped a 15year old young girl in the broad day light, taken her inside the barrack and killed in the name of interrogation merely because her mother was remained absent during their surprise raid in the civilian's home. This came to the notice of the Supreme Court in due course of time and it delivered verdict in favour of girl's mother demolishing all the iron- bars long since built. A clear demarcation line between civil and military court has now been drawn. The very great job of democratizing the military mind is still at stake. The state agents are first required to teach the lesson of democracy. They took lives of many innocent people also in the name of encounter. These types of cases are spelled out under the case of the Enforced Disappearance somewhere into this volume. So much so, the Supreme Court, after the restoration of democracy has come forward in demolishing those barriers and it has much to go further to check the military tendency of the past rulers.

This volume contains 32 different cases in total and are encompassed from birth to death. There are normally woman's rights over her body, right to pregnancy, right to abortion, protection of foetus within her womb, safe motherhood, right to birth, the child rights, enforced domestic child labour, domestic violence and torture against women and children, the domestic and foreign employment rights and opportunities, discrimination between male and female in acquiring passports and going abroad. Most of the cases illustrated above are related mainly with the rights and freedom originated from

international level and entered into the country by virtue of treaties, agreements, conventions and similar other documents of international importance are all rights-based cases filed in order to seek interpretation and implementation, locally. Further there are also cases involving constitutionalism of discretionary powers contrary to the people as the only source of governance. Reason behind emergence of these types of semi-political issues is because the country was passing through the political transitory phase. Who, either the former or the later should take precedence was the question involved. Long and brainstorming deliberations took place over the subject and the court compelled to seek a constructive way-out.

A good deal of stormy discourses moved for days and the questions raised in one of the most serious cases involving involuntary disappearances of more than 2500 hundred citizens by the state organs during conflict. The court ordered for a nominal pecuniary ransom package to the victims kin in the form of immediate relief and defined right to life as the most vital question associated with entire humanity. Other right-abused cases of violent nature committed by the military and various surprise raid in civilian settlements by state-owned security organ are dealt and many international human right instruments and the noble provisions enshrined therein have been consulted in line with Nepal Treaty Act. However, such extreme cases of human rights violations on the part of the armed rebels has, surprisingly, never been brought before the Supreme Court. The cases involving protection of environment, preservation of cultural as well as historical heritages of archeological importance, water reserve conservations etc and more penetrating issues of right violations are given special priority. The criminal element involved in two cases of homicide are very laboriously discovered and the women's right over her body is vigorously advocated, however, the live burnt of wives in dowry downsizing, physical and mental torture to young girls in the name of causing pollution through menstruation etc are not yet fully resolved. The benches sometime ponder over in hair- splitting deliberation and did finally realize the need of timely correction in their own behaviors and functioning. In one famous contempt of court case, the Supreme Court gave very liberal interpretation and argued that the majority public opinion must be respected to protect the people from bureaucracy. Taking a reference from English jurist Lord Denning, the Court reached to unveil its hidden authority. Influenced by the common law system, our court sometimes appears very soft mainly in issues which cause to strengthen democratic values and in

other times takes stand with the right activists to show their *locus standi* as well as jurisdiction in public interest litigations because such cases are being accepted very lately and rather hesitatingly.

The role played by the learned advocates in pointing out of various legislative flaws in both substantive and procedural parts of the case proceedings is highly appreciable. Their most valuable wisdom and intellects in assisting the bench by providing the service of *Amicus-curie* and maintaining good relations of bar and bench is also praiseworthy. In a country like Nepal where the democracy is in its infancy, the lawyers are proved really the harbingers of rule of law, good governance, defining freedom, rights and liberty and helping the court to keep with its dignity supremacy as well as a responsible guardian of democracy and rule of law.

Unless there is a stable government, the passing of any new laws is very difficult. Stability of government is a fundamental question based on peoples popular vote which is impossible until and unless the major roles players come together in one place with common consensus in overall package. Their so-called revolutionary zeal has not calmed down at least for now and to make the situation tension-free as long as for unknown future, the world body of nations and many other international agencies are soliciting and witnessing the ground reality of Nepal and playing the role of mediator to make the political parties understand their respective duties because our political wisdom has no clear understanding of rights, freedom and liberty which are the basic pillars of democracy and without which proper knowledge the drafting of a democratic constitution would be a day dream. Against such a complex background, the Supreme Court cannot and will not be able to make the democracy affordable to all concerned by merely issuing verdicts.

It may be noted in passing that we have three-tier court system. The Supreme Court as the court of records is the highest of all. It supervises the Courts of Appeals and the District Courts (court of first instance) under it. Resources inadequacies and lack of modern scientific mechanism plus a feeling of complacency among the employees have been major hurdles in the delivery of quick and fair justice. It can be compensated through the recovery of old dues payable to it against fine and punishment. For this, the Supreme Court is required to initiate a bold step as part of judiciary reformation

campaign. The other state organs must co-operate in these undertakings.

We found many difficulties to manage translated versions of various judgments by various persons. There may be still some inconsistencies in various judgments. The language used by the translators are suitably made consistent to the possible extent. However, there may be some errors left. We are responsible for such errors. We have tried our best to make this publication readable and reader friendly.

At the end, we would like to extend our heartfelt felicitation to those employees of the Supreme Court who laboured in choosing the most important decisions which not only lack the collateral facts and have proved instrumental to hammer out the very difficult legal and constitutional issues long since looming over our judiciary. The Supreme Court Publication Committee is most thankful in bringing this valuable publication in public. Moreover, this will help, though in a small scale, to introduce our court practice and way of interpreting the internationally recognized norms and values enshrined in treaties, conventions, protocols, agreements and covenants. We hope this effort will help to introduce our legal system worldwide.

Registrar

Dr. Ram Krishna Timalsena
Supreme Court, Nepal

Advocate Bhim Nath Ghimire
Supreme Court, Nepal

Poush, 2067
December 2010

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Ascertainment of punishment by taking into account the nature and modus of offense cannot be held unreasonable.

Supreme Court, Division Bench
Hon'ble Justice Meen Bahadur Rayamajhi
Hon'ble Justice Khil Raj Regmi

Judgment

Criminal Appeal No. 3091 of the Year 2059

Case: Homicide.

Appellant/Defendant: Santi B.K, resident of Chhahara V.D.C 1 of Palpa District, presently imprisoned in Prison Section of Palpa

Vs.

Respondent/Plaintiff: Government of Nepal by the FIR of Chabilal B.K.

Referral No. 324 of the Year 2059

Respondent /Plaintiff: Government of Nepal by the FIR of Chabilal B.K.
Vs.

Defendant: Santi B. K, Resident of Chahara V. D.C 1 of Palpa District, Presently imprisoned in Prison Section of Palpa

- In determining the punishment it is necessary to determine the nature as well as the limit of the punishment. Any country while preparing the model of criminal justice system, it is indispensable to be clear about the policy of determining sentence. It is not only appropriable but constitutional necessity to have clear standard of fixing sentence. It is not constitutional to fix different punishment to the offender of the similar status for similar offenses.
- In absence of national sentencing policy, the judiciary has to make consistent judicial understanding for fixing similar sentence and similar limit of sentence to the offender similarly situated, while selecting among the prevailing alternatives and limit of punishment. It is necessary to systematize the exercise of discretionary power through guidelines.

- The No. 188 has empowered the judges to mitigate punishment in the event where there is sufficient ground to suspect that the event is an accident and taking into consideration of the circumstances of at the time of commission of crime. The suspicion of accident is subjective rather than an objective matter; generally it is not possible to explain grounds and reasons while exercising it, therefore it is less considerable aspect. The circumstance of the occurrence of crime seems to be the only such a subject wherein its form can be ascertained taking it as a basis for the determination of the gravity of crime and ascertain quantity and standard of punishment.
- The court has to consider whether or not the opinion submitted by the court of first instance and the court of appeal pursuant to No. 188 of the Chapter on Court Management, is reasonable. On the one hand, the defendant has helped (facilitated) the judicial process by confessing the offense, on the other hand it is obvious that this offense has not been committed deliberately with prior plan or enmity. It is apparent that the a young woman of a rural community has killed the child on direction and inducement of other person to save herself from social hatred after having conceived as a result of illicit sexual relationship with a man other than her husband, being in nervous condition due to his denial to marry her, being in helpless state because of the disgrace from her home as well as the parents. Therefore, taking into consideration of the nature and modus of the offense, the opinion to fix lesser punishment cannot be held unreasonable.

Khil Raj Regmi, J: A brief description and decision of the case, brought before this court by an appeal filed on behalf of the defendant pursuant to Section 9(1) of the Administration of Justice Act 1991 and in order of referral registered pursuant to section 10(2) of the same Act, is as follows:

It was around evening time of the 30th October 1999, Shanti B.K, my daughter in- law, the wife of my elder son after giving live birth to a male child had murdered and buried into a trench of Rahegaire, of Chahara V.D.C. ward No. 5 of Palpa district. After knowing about the occurrence of the event. I have come to inform about it making

necessary arrangement for the protection of the spot. This is stated in the First Information Report lodged by the informant Chhabilal B.K.

The spot located in Chhahara V.D.C. ward No. 4 of Palpa district where the dead body of the infant found to be buried boarded by Rahegiro stream in the east, bush in the west, rough road heading toward Dadakateri in the south. Looking throughout the dead body taking out of the trench; hair grown over the head, blood dripping out of the mouth to the finger of left hand and bruise just below the Adams apple could be noticed. This is the short description of the deed of the description of the spot and the dead body (inquest).

The cause of death is shock in the crania due to asphyxia as mentioned in the autopsy report.

The physical examination report of the defendant Shanti B.K. shows that she has given birth to a baby through normal delivery around four or five days ago.

When my husband came home from India during Dashain of the year 1998 and departed for India I fell in love with Narayan B.K. of the same village. We had sexual relationship on 19 January 1999; thereafter my menstruation stopped. When I told with Narayan Bahadur about it he denied marrying (to bring) me, instead told me to kill and throw the baby after delivery. On 30th October, 1999, I felt severe pain (delivery pain) and went to the dry land just of 50 meters far from our home where I gave live birth to a male child. After birth I punched the baby with my fist for four to five times. Thinking that the child had died I wrapped it with a cloth and brought to *Rahegaira* holding it in my armpit. There, I buried the baby in a trench which had been already dug. This is the statement of defendant Shanti B.K. before the authorized official, the police

The crime scene (spot of crime), where Shanti B.K. murdered and thrown the baby after giving birth, located in Chahara V.D.C. ward No. 1 of Palpa district boarded by bamboo cluster of Jhak Bahadur Sunar in the east, bamboo cluster also in the west, road in the north and dry farm land of Jhak Bahadur Sunar in the south. This is the short description of the deed of crime scene.

On 30th October 1999, when we heard the rumour that Shanti B.K. had given live birth to a child then murdered and buried in Rahegaire, we went to the crime scene /spot where we saw a dead body of a fully grown male child. We have full belief that the defendant Shanti B.K.

has murdered and thrown the baby after giving live birth. This is the short description of the deed of the actual position (Bastusthiti Muchulka) made by the the local people including Arjun B.K.

The prosecution, as stated in the charge sheet, accused the defendants Shanti B.K. and Narayan Bahadur B.K. for committing offense under No. 1 of the Chapter on Homicide of *National Code* and charged Shanti B.K. with an offense punishable under No. 13(3) of the same chapter for murdering and burying an infant after giving live birth. The prosecution charged defendant Narayan Bahadur B.K., who after having illicit relation with another's wife and making her pregnant, instead of accepting her counseled her to murder the baby after birth, with an offense punishable under No. 13(4) of the same chapter of the same code.

After my husband's departure to India for employment I fell in love with Narayan B.K. of the same village and had sexual relationship in January 1999 that resulted pregnancy. On 28th October, 1999, I gave live birth to a male child then I punched the child with my fist for four to five times. Thinking that the baby had died I buried it in the trench in *Rahegaira*. I murdered and buried the baby because Narayan Bahadur had advised me to murder and throw the baby after birth when I told him about the embryo. I murdered the baby because it did not belong to my husband. This is the statement of defendant Santi B. K recorded in the court.

The testimony of the informant Chhabilal B.K., witnesses Tul Bahadur Baral and Rana Bahadur B.K. examined as per the court's order has been enclosed in the case file.

The defendant Narayan Bahadur B. K has been absconding and the case in his concern has been postponed pursuant to No. 190 of the Chapter on Court Management of *National Code*. The defendant Shanti B.K. has confessed the charge before the police as well as the court and her confession has been corroborated by the first information report and the testimony of the informant before the court; therefore it is hereby decided to sentence her punishment pursuant to 13(3) of the Chapter on Homicide of the *National Code*. Further, it has been obvious that the defendant is an young woman of 25 years of age who after being engaged in illicit physical relationship with a man other than her husband at a time when her husband had gone to foreign country; therefore, forced to murder the child to save herself from the social disgrace to live in society. Having considered of these fact, in my conscience, it will be disproportionate to impose her a

punishment pursuant to No. 13(3) of the Chapter of Homicide of *National Code* therefore, it seems justifiable to impose her punishment of five years imprisonment and it is hereby decided to refer the case with opinion to impose punishment of an imprisonment of five years only. This is the decision of the court of the first instance, the Palpa District Court.

After the departure of my husband for India leaving me alone, I became pregnant because of illicit sexual intercourse with defendant Narayan Bahadur. I asked him to take responsibility of the fetus but he denied doing so. It caused me anxious and fell ill resultantly I gave birth to a dead child on October 18, 1999. I buried the still borne baby in a trench which had already been dug. My physical condition was very weak due to severe pain and being disgraced from my in laws as well as my parents because I had an illicit relationship with a man other than my husband. Consequently, I thought that it would be comfortable for me if I was imprisoned in jail and therefore, I confessed the crime before police officials and also in the court as counseled. I did not murder the baby as mentioned in the charge sheet. There is no eye witness who has seen the actual commission of crime. The decision to convict me only on the ground of suspicion is unjustified. Therefore, I pray to reverse the decision of the district court and let me relieved from the false charge. This is the contention made by the appellant Santi BK in her appeal filed in the Appellate Court Butwal.

Since the case has been postponed in connection with the defendant Narayan Bahadur B.K. therefore nothing needs to be mentioned in his part. It has been proved from the evidence enclosed in the case file including the testimony of the informant that the murder of newly born baby has been committed by the defendant Santi BK and her conviction for the offense punishable under No. 13(3) is justified and hereby conformed. However, it is apparent that Santi BK has murdered the newly born baby in the incitement of Narayan Bahadur and to save herself from social disgrace. The opinion of the original court to impose her five years imprisonment pursuant to No. 188 of the Chapter on Court Management deeming it disproportionate to impose punishment pursuant to No. 13(3) of the Chapter of Homicide of *National Code* seems to be reasonable and therefore, separate opinion has been mentioned here to impose five years imprisonment to defendant Santi BK. This is the decision of Court of Appeal Butwal.

At the time when my husband was in foreign country I had illicit sexual relationship with Narayan Bahadur. I asked him to bring me to his

home however he denied doing so and I became weaker day by day due to anxiety of the embryo. Further, I had to do hard work at home and lift heavy loads. Sometimes I fell to the ground while trying to lift a heavy load, therefore the baby in my embryo borne dead. So far as the confession in the police and the court is concerned, the police caused to sign in the already prepared statement using threat and coercion. I also made the statement in the court as taught by the police because they were watching from nearby at the time of recording the statement. There is no eye witness who has seen the actual commission of the crime. The court has punished me only on suspicion. The decision of the appellate court made without taking into consideration of these facts is erroneous and therefore, prayed to reverse the decision and relieve me from the false charge. This is the contention made by the appellant Shanti B.K. in her appeal filed in this court.

The case file has been received with the covering letter of Ref. No. 8225 dated April 26, 2002 for the examination (sanctioning) of the reference.

In the present case scheduled for today in the cause list pursuant to the rule the learned advocate Lila Mani Paudel on behalf of the appellant contended that the situation in this case is that the defendant Shanti B.K. had not murdered the baby after giving live birth but gave birth to a dead baby since she had to do hard work and lift heavy load. She sometimes fell down, he contended, while lifting heavy load. Therefore, she had not murdered the baby after giving live birth but had given birth to a dead baby. There is no eye witness to see the actual commission of the crime. In such situation the defendant should have not been punished in the grievous crime like murder. The appellate court has convicted the defendant only on doubt. Therefore, the defendant should get acquittal from the charge.

Perusal to the submission made by the learned advocate and scanning through the entire evidence and facts enclosed in the case file the court need to decide whether the decision of the Appellate Court should be sustained or not.

Considering about the decision, the first information report has been lodged by the informant alleging that Santi B.K had murdered the child and buried in a trench after giving birth to a live baby. The prosecution charged the appellant Shanti B.K. for an offense punishable under No. 13 (3) of the Chapter on Homicide of the

National Code and against the defendant Narayan Bahadur B.K for an offense punishable under the 13(4) of the same chapter. This case has been brought before this court as an appeal file by the appellant Shanti B.K. being dissatisfied with the decision of the Appellate Court, along with postponement of the case on the part of absconded defendant Narayan Bahadur B.K. , sustaining the decision of the district court convicting her of murdering an infant after delivery punishable under no.13(3) of the Chapter on Homicide of the National Code along with the opinion to impose lesser punishment i. e. imprisonment for five years pursuant to No. 188 of the Chapter of Court Management of the National Code and also as a referral submitted by the Appellate Court Butwal for sanction.

The appeal has been filed by the defendant Shanti B.K. and the referral has also been submitted for confirmation from the appellate court; in such situation the record of reference has to be deducted and the case has to be heard in the order of appeal as per the provision of no. 125 of the Chapter on Court Management.

Considering the case perusal of the appeal in this case defendant Shanti B.K. has confessed before authorized official and the court, that she had conceived the fetus of Narayan Bahadur at the time when his husband had gone to India, delivered the baby thereafter killed it by punching with her fist and buried in a trench because Narayan Bahadur had denied to marry her. The post mortem finding shows that the cause of death is shock in the cranium due to asphyxia. The physical examination of Santi B.K shows that she has delivered a child. Considering in such situation it has been proved beyond doubt that Shanti B.K. has delivered a baby, killed it and buried into a trench. Therefore, the decision of the appellate court sustaining the decision of the district court to convict the defendant for an offense punishable under No. 13 (3) of the Chapter on Homicide is hereby concurred. However, the opinion of the original court to impose lesser punishment i.e. five years imprisonment pursuant to No. 188 of the Chapter on Court Management judging it disproportionate to impose punishment pursuant to No. 13(3) of the Chapter on Homicide has also been concurred by the appellate court. The court has to decide whether the opinion submitted by the lower courts should be sustained or not pursuant to No. 188 of the Chapter on Court Management. No. 188 of the Chapter on Court Management has provided the following grounds and procedure for fixing lesser punishment in cases punishable by death, life imprisonment with forfeiture of the whole asset or life imprisonment;

- a) Sufficient ground to suspect, in the conscience of deciding judge whether the event is an accident,
- b) Circumstance at the commission of crime
- c) Taking into account of the above mentioned conditions it seems from the conscience that it will be too heavy to inflict the punishment pursuant to the provision of the Act.
- d) Submit reference with the reason as seen by the conscience.

In this way no. 188 of the Chapter on Court Management has left the ground and reason on the conscience of the deciding judge. It is not clear on which criteria the punishment can be lessened or the punishment pursuant to Act seems to be too heavy. Only it is mentioned that the suspicion as to accident or circumstances of the commission of crime should be considered. It can also be used as ground when it is seen by the conscience of the deciding judge.

In reality, punishment means cause to bear physical, mental or pecuniary torture or pain to the offender. There are various reasons for punishing an offender. It depends on the penal policy pursued by the state as to whether to provide retributive punishment for revenge or retaliation, deterrent punishment for deterrence or creating fear to the offender to commit crime, preventive punishment for disabling (incapacitate) the offender to repeat the offense or reformatory punishment to provide an opportunity to the offender to be corrected. In determining the punishment it is necessary to determine the nature as well as the limit of the punishment. Any country while preparing the model of criminal justice system, it is indispensable to be clear about the policy of determining sentence. It is not only appropriate but constitutional necessity to have clear standard of fixing sentence. It is not constitutional to fix different punishment to the offender of the similar status for similar offenses. Constitutional safeguard against discrimination and constitutional protection for non discrimination in the application of law are the basic elements to be considered while determining sentence.

Primarily, it is the function of the legislative to establish guidelines for fixing sentences. Formulation and implementation of such guidelines by the legislature through enactment of law is reasonable and appropriate. It is because such guideline keeps the possibilities of variation in selection of sentence within minimum limits and certain standard is established for bringing consistency in the choice of sentence. However, in our country, the policy of determining sentence is in confusing situation rather than being clear. Therefore, in absence

of national sentencing policy, the judiciary has to make consistent judicial understanding for fixing similar sentence and similar limit of sentence to the offender similarly situated, while selecting among the prevailing alternatives and limit of punishment. It is necessary to systematize the exercise of discretionary power through guidelines.

Now, let us consider the opinion submitted in this case in reference to the application of No. 188 of the Chapter on Court Management. Some latitude has been provided for the judicial discretion while fixing sentence in grievous crimes by allowing the applicability of No. 188 of Court Management in the crime punishable by life imprisonment with the confiscation of the entire property or life imprisonment. Adequate development of certain principle or standard has yet to be made in the exercise of this power. The No. 188 has empowered the judges to mitigate punishment in the event where there is sufficient ground to suspect that the event is an accident and taking into consideration of the circumstances of at the time of commission of crime. The suspicion of accident is subjective rather than an objective matter; generally it is not possible to explain grounds and reasons while exercising it, therefore it is less considerable aspect. The circumstance of the occurrence of crime seems to be the only such a subject wherein its form can be ascertained taking it as a basis for the determination of the gravity of crime and ascertain quantity and standard of punishment.

While imposing lesser punishment taking into consideration of the circumstance of occurrence of the crime, and fixing of punishment, the following circumstances and conditions have to be considered;

- a) Whether or not the crime has been committed intentionally and with prior plan to take revenge of the prior enmity,
- b) Cruelty and torturous murder,
- c) Nature of crime and quantity,
- d) The objective of the offender and his/her social background,
- e) Circumstances leading to crime,
- f) Age of the offender,
- g) Physical, mental, economic condition and family status of the offender
- h) Opinion and thought of the victim,
- i) The injury incurred to the victim and the society
- j) Past criminal record of the offender
- k) Whether the offender has helped the judicial process by telling the truth to the court or not,

- l) Whether the offender has repented (regretted) for committing the crime or not,
- m) Whether or not the offender has promised to be reformed in future and not to commit crime again,
- n) Whether or not the offender has committed the crime on the incitement or coercion of other persons,
- o) Other appropriate reasons of similar types to be seen from the factual situation of the case.

In this case, perusal to the above mentioned context, the court has to consider whether or not the opinion submitted by the court of first instance and the court of appeal pursuant to No. 188 of the Chapter on Court Management, is reasonable. On the one hand, the defendant has helped (facilitated) the judicial process by confessing the offense, on the other hand it is obvious that this offense has not been committed deliberately with prior plan or enmity.

It is apparent that the a young woman of a rural community has killed the child on direction and inducement of other person to save herself from social hatred after having conceived as a result of illicit sexual relationship with a man other than her husband, being in nervous condition due to his denial to marry her, being in helpless state because of the disgrace from her home as well as the parents. Therefore, taking into consideration of the nature and modus of the offense, the opinion to fix lesser punishment cannot be held unreasonable. Hence, the opinion of the district court and appellate court to impose five years of imprisonment viewing it too heavy to impose her life imprisonment along with the confiscation of the entire property is hereby upheld. The contention of the defendant that she should get acquittal cannot be sustained. Other things shall be done as mentioned below in particular.

Particulars

Hence as mentioned in the decision part above it has been decided to sentence defendant Shanti B.K. to 5 years of imprisonment pursuant to No. 188 of the Chapter on Court management convicting her in offense punishable under 13(3) of the Chapter on Homicide, let the information be provided to Palpa District Court to maintain account of five years of imprisonment and execution. Let the case file be handed over as per rule.

I concur above decision.

Justice Meen Bahadur Rayamajhi
Done on 23th Magha 2059 B.S. (6th February, 2003)

The witch, witchcraft and witch doctors are all the traditional superstitious beliefs for which no separate law is required to regulate the activities arising there from.

**Supreme Court, Division Bench
Hon'ble Justice Ram Nagina Singh
Hon'ble Justice Anup Raj Sharma**

Order

Writ No. 2891 of the Year 2058

Sub: Certiorari.

Petitioners: Advocate Reshma Thapa, on behalf of Women Department, Lawyers Association for Women, Youth, Environment Rights and Society located at Kathmandu District, Kathmandu Metropolis Ward No. 31, et.al.

Vs.

Respondents: HMG, Prime Minister and Cabinet Secretariat, Singha Durbar Kathmandu, et.al.

- **It is found that a man dies due to lack of right treatment from some disease or from physical injury. The causation of the death through witchcraft does not appear to have any scientific facts or grounds. That killing of a man through witchcraft is only a superstitious, traditional, uneducated and indecent notion of the society.**
- **Just putting baseless and superstitious allegation of witch to a women and taken around the village making her naked, feeding excreta is a very inhuman treatment and a damage to women's prestige, dignity, reputation etc all these activity falls in the level of offensive activity.**

Ram Nagina Singh, J: The facts of the writ petition filed in this court under Article 23 and 88(2) of the Constitution of the Kingdom of Nepal, 1990 and the verdict delivered there upon is briefly as follows:

We the petitioners, the Lawyers Association for Women, Youth, Environment, Rights and Society have duly been registered in District Administration Office, Kathmandu on 2054/12/9. It is an organization established with the objective of providing legal education, legal awareness including legal service and have been working to aid to socially, economically, religiously and culturally oppressed and backwarded individuals who are also neglected. Women Department is formed to advocate the rights and interests of women who have been victims in the society, exploited and stigmatized and have been deprived of rights related to women reservation guaranteed by the Constitution and the law.

The law of our country has not recognized the practice of witchcraft. In our law neither the term 'witch' has been used upon women nor has penal provisions against women practicing witchcraft. The preamble of the Constitution of the Kingdom of Nepal, 1990 has guaranteed human rights and the Constitution also has made special provision related to women reservation. The Article 1 of the Constitution of the Kingdom of Nepal, 1990 has provided that the Constitution is the fundamental law of the land. Despite this, the allegations of witch, an offense which is not described or provisioned in any Constitution and in any other law are made and women are beaten up, submerged in hot water, hit with the hot steel utensil, fed excreta, defamed, ostracized from the village and hair is shaved on four sides. This is a disgraceful act for the entire human race which mentally and physically tortured women.

Alleging someone as a witch as mentioned above is a heinous, inhuman, violent and barbarous (cruel) act and this kind of act has violated the provision under Article 11(3) of the Constitution of the Kingdom of Nepal, 1990 that had guarantees that special provisions by law shall be made for the protection or advancement of women including "protected freedom" in Article 12(1) of the Constitution of the Kingdom of Nepal, 1990, and "freedom of a well managed housing" in Article 12(2) (d) and that the impediment created in the exercise of those rights, the petitioners have submitted petition pursuant to Article 23 of the Constitution as there was no provision for alternative remedy in order to exercise those rights. Therefore, as per Article 88(2) of the Constitution of the Kingdom of Nepal, 1990, it is prayed for the issuance of the order of Mandamus directing the respondent No. 1 and respondent No. 2 to formulate necessary laws for the protection of the rights and interests of women in regard to such distinct and

sensitive offence of the allegation of witch. And require respondent No. 3 to submit the name, number, address, and date of the organization of shaman and sorcerer who performs exorcism and that the decision made for the registration of such agency is cancelled through the issuance of the order of Certiorari

This Court issues an order to present the case before the Bench upon submission of the written reply from the respondents.

The written reply submitted on behalf of District Administration Office, Jhapa reads, as claimed by the petitioner in regard to women problems this District Administration office has not allowed such unpleasant action to take place and such tendencies have been discouraged. So far as the question regarding rights and interests of women, there are no organizations registered in District Administration Office with objective of performing exorcism. Therefore, it is not necessary to issue the order of Mandamus including the order of Certiorari in the name of this District Administration Office, Jhapa and that the plea taken by the petitioners is not based on facts and is subject to be reversed. Therefore, the writ petition should be quashed.

The written reply submitted separately by Ministry of Law, Justice and Parliamentary Affairs and Council of Ministers Secretariat states the petitioners have not been able to state as to why this Ministry is made respondent as there is no reason to blame this Ministry as a respondent. The writ petition submitted framing this Ministry as a respondent without any reason should be quashed. The plea taken by the petitioners that allegation of witch and to enable atrocities, inhuman, violent and ferocious treatment committed towards any person is social ill practices, superstition and distortions. Nepal has already ratified convention against torture and other cruel, inhuman or degrading treatment or punishment as per the commitment of His Majesty's Government to eliminate distortion and disorder and as there is sufficient legal provisions such as Chapter on Assault and Battery of National Code, Chapter on Defamation and Public Offence (Control and Prevention) Act 2027, there is no need to formulate new laws regarding this. As there are other ways of remedies as provided in law the writ petition should be quashed.

The present writ petition scheduled for today's hearing as per the rules, after studying the case file, has to reach a decision on whether or not an order as sought by the petitioners should be issued ?

It is revealed that the petitioner contended that the District Administration Office, Jhapa had registered organization of shaman and sorcerer who performs exorcism. So, it is prayed for the issuance of the order of Certiorari to cancel the said registration for the protection of rights and interests of women. So an order of Mandamus to formulate laws to prevent and control defamatory treatment and the torture meted out on allegation of witch be issued in the respondents' name.

In regard to the first contention of the petitioners that an organization of Shaman and Sorcerer who performs exorcism has been registered in the District Administration Office, Jhapa. The petitioners further contended that the registration of the said organization be cancelled through the issuance of the order of Certiorari. It seems that the written reply of the said office has stated that no such organization had been registered. It appears that the petitioners have not been able to submit any reliable, convincing ground or evidence of the registration of such organization. It further contended that the order as sought cannot be issued without any ground only based on the petition. The order of Certiorari as sought could not be issued hence the petition should be quashed.

Now let us address the second issue. The Constitution of the Kingdom of Nepal, 1990 Part II Article 11 has guaranteed every Nepali citizen the right to equality and also the right to protection. The preamble of the Constitution has committed to the protection of human rights. The right to equality is a sacred verse of all democratic nations and it is the foundation of rule of law. The Universal Declaration of Human rights, 1948 stated that "All human beings are equal before law and the rights to equal protection shall be inherent to all human. Both men and women are human beings and are therefore entitled to all rights. The Article 1 of Universal Declaration of Human Rights has proclaimed that the human has right to live a life of dignity. Likewise, all the members of the human family shall be equal before the law and are entitled to protection of all laws without any discrimination. The UN convention on the Elimination of All Forms of Discrimination Against Women, 1979 clearly stated the objective that it shall eliminate all

kinds of discrimination between men and women and shall maintain equality between men and women in all sectors. The Article 7 of the said convention has the provision to end discrimination against women in social life.

In our society, the allegation of witch and torture injustice and atrocities against women are still prevailed. By committing disgraceful act (against women) for human race such as feeding excreta, defaming women by making them nude and taken around the village, ostracizing from the village, making women bald tortured mentally and physically. So it is to be perceived as what the witchcraft is really understood. What kind of activity a witch performs? While observing Nepali Dictionary the "Nepali Brihat Sabdakosh" published by Royal Nepal Academy the page No. 986 definition of the word 'witch' which reads that a witch shall mean to denote a woman who performs witchcraft.

In real life it is seen that especially when someone gets sick or dies, woman is blamed by the shamans for performing witchcraft to make people sick or death and she is treated inhumanly. It is found that a man dies due to lack of right treatment from some disease or from physical injury. The causation of the death through witchcraft does not appear to have any scientific facts or grounds. That killing of a man through witchcraft is only a superstitious, traditional, uneducated and indecent notion of the society. In today's scientific era there is no any place for such notion. What are the grounds for justification of a death caused by a man applying witchcraftmanship? Upon whom the allegation is made? What are the evidential grounds of justification that the death is caused by his performance of witchcraft? Just putting baseless and superstitious allegation of witch to a women and taken around the village making her naked, feeding excreta is a very inhuman treatment and a damage to women's prestige, dignity, reputation etc all these activity falls in the level of offensive activity.

The newspapers covered the news that the offensive act against women as noted above is rampant. All are informed about the inhuman treatment committed against Phampha Devi Budhani Khatun in Mahottari district in the year 2052, Saraswati Adhikari of Maitidevi Kathmandu in the year 2054, Brichiya Devi, Sunaina Devi, Dhanwanti Devi in Mahattori district in the years 2055, 2056 and 2057, Ratnamaya Kami in Ramachep district and Anur devi in Dhanusha in the year 2058. All these incidents were published in media. The inhuman act committed against women alleging to be witch is not seen to have been prevented till now. This tendency seems to have

been growing rather than decreasing which cannot be certainly considered good for a democratic country.

Considering to whether or not appropriate laws are present to prevent and control inhuman treatment committed towards women as stated above. The written reply submitted by His Majesty's Government Ministry of Law and Justice, has stated that there were sufficient legal provisions such as Chapter on Assault and Battery of National Code, Defamation Act and Public Offence (Control and Prevention) Act, 2072. Therefore, it is not needed to formulate new laws. Considering that in the noted Act no sufficient legal provisions are seen that could prevent, control and punish inhuman activities committed putting allegation of witch. The action in regard to this is seen to have been taken exercising the power conferred by Public Offence (Control and Prevention) Act, 2072. But that cannot be considered as an appropriate legal course. In a case involving *Shambhu Prasad Gupta vs. His majesty's Government*, this Court, in Criminal Appellate No. 1966, 2171 in the year 2055 BS has delivered a decision and is printed in Supreme Court bulletin published in 2061 BS (Year 13 Volume 2, page 284).

It is equally essential to enhance public awareness by conducting village level program which tends to eliminate existing superstition, illiteracy and ignorance prevailed in the society. At the same time, the formulations of laws are necessary that punishes and takes strict action against the perpetrator performing such inhuman acts.

Hence, as noted in the above paragraph (it is essential to conduct or cause to conduct awareness program to formulate such effective Act with the objective to eliminating traditional and superstitious beliefs, ignorance through public awareness in order to preventing and controlling injustice, atrocity, oppression and torture inflicted on women in the name of witch as there is lack of such effective act to punish the perpetrator) it is thought appropriate to issue a directive order to that effect in the name of His Majesty's Government. Let the copy of the order be sent to the office of the Attorney General for the knowledge of the respondents and the case file be delivered as per the rule.

I concur above decision.

Justice Anup Raj Sharma

Done on 26th Shrawan, 2061 B.S. (10th August, 2004)

Reservation quota system for enrollment in academic institutions is declared unlawful and directed to the GON to enact special laws for the protection and identification of disabled, backwarded, women and vulnerable class or community of people for their balanced development.

Supreme Court, Division Bench
Hon'ble Justice Meen Bahadur Rayamajhi
Hon'ble Justice Anup Raj Sharma

Order

Writ No. 3059 of the year 2061

Subject: Certiorai with Mandamus.

Petitioners: Mr. Pradosh Chhetri of Tribhuvan Municipality Ward No. 6, of Dang District having as permanent address and currently residing in Kathmandu Metropolitan Ward No. 31, et.al

Vs.

Respondents: His majesty's Government, Office of the Prime Minister and Council of Minister, Singhdurbar, et.al

- Article 11(3) mention that 'special provisions may be made by law for the protection and advancement of the interest of women, children, the aged or those who are physically or mentally incapacitated or those who belong to a class which is economically, socially or educationally backward.
- In order to make the provision of Art. 11(3) effective, we need a special law. However, Nepal hasn't promulgated any special law which paves way for reservation and special treatment for certain group of people yet.
- Proviso of Art 24(2) and 11(3) states that special provision may be made by law for the protection and

advancement of the interest of women, children, the aged or those who are physically or mentally incapacitated or those who belong to a class which is economically, socially or educationally backward. This provision of proviso allows reservation can be made by making law, so without making proper law no reservation can be implemented.

- Our constitutional provision regarding special mechanism (reservation) for special group of people seems more sustainable and permanent than Indian provision. It is because we can only introduce reservation by making law. Government's willingness, administrative directives are not sufficient to introduce quota system, we need special laws in order to introduce reservation policy. So, decisions of Indian court on Art. 15(3)(4) and 16(4) of Indian constitution are not related to this case.
- Introduction of reservation or quota system after inviting application by issuing notice on 2060/4/19 for free competition seems inconsistent with the provision of Art. 11 of the constitution.
- Even if the objective of the action is good, but if it doesn't follow the procedures as mentioned in the constitution then it can not be considered as legal and can not get constitutional validity.
- Proviso of the Art 11(3) has allowed state to make any special laws for the protection of vulnerable group i.e. women, children, disable etc. 13 years has been spent without making such law, however such economically, socially, educationally backward women, disable people still need special treatment for their upliftment. In order to bring such group into the mainstream of development, the state should make special provision through law. Therefore, it is appropriate to issue this directive order in the name of His Majesty government, Council of Ministers to bring an appropriate legislation within this fiscal year which provides grounds to identify the disable, economically, socially and educationally backward group and needy people, and to conduct balanced developmental program for backward, vulnerable group (who needs protection) and for women.

Meen Bahadur Rayamajhi, CJ: The brief facts of this writ petition filed under Articles 23 and 88(1) and (2) of the Constitution of the Kingdom of Nepal, 1990, and the verdict thereupon are as follows:

As per the notice of Tribhuvan University, Institute of Medicine published in Gorkhapatra on 2061/4/19 BS for the admission of Bachelor Level courses to its affiliated colleges; we submitted the application form for admission and were in a position of preparing entrance examination to be held soon. After the publication of the notice, Executive Council of Tribhuvan University, on its meeting No. 662, held on 2061/5/8 BS decided reservation (quota) of 10%, 15% and 20% for Dalits (Scheduled castes) Indigenous people and women respectively and remaining percentage of seats will be filled up through open competition. We asked the bases of decision of introducing the quota provision in Tribhuvan University but they did not give us any grounds or bases of it. So, the decision of Tribhuvan University Executive Council has violated our Fundamental Rights guaranteed under Art 11, 12 and 16 of the Constitution of the Kingdom of Nepal, 2047.

It is guaranteed under the Article 11(1), (2) and (3) of the Constitution of Kingdom of Nepal, 2047 BS that all citizens shall be equal before the law. No person shall be denied the equal protection of the laws and the state shall not discriminate citizens among citizens on grounds of race, sex, caste or any of these. The decision of Executive Council of Tribhuvan University allocated 45% of vacant seats for reservation to female and people of scheduled caste and indigenous group is directly inconsistent with the provision of Right to equality guaranteed by Art 11 of the Constitution. Proviso of Article 11(3) has allowed reservation for those backward women and indigenous people to bring them into the mainstream of development by making special law. However, such law has not been made yet. In the absence of special reservation law, how a reservation can be implemented? What would be the grounds for selection? Who will be given the preference and on what grounds are difficult to determine without such law. So in the absence of such law, the letter of 2060/5/15 of Ministry of Education and Sports, letter of T.U Grant Commission of 2060/4/23 and related decisions and the decision No. 662 of Executive Council of Tribhuvan University of 061/5/8 and other related activities carried on the basis of such decisions should be declared void by issuing order of certiorari and issue order of mandamus to respondent compelling them to conduct entrance examination on the basis of open competition for all candidates.

Moreover, interim order should be issued to respondents not to implement the decision of Executive Council of Tribhuvan University of 2061/5/8 and not to conduct the entrance examination scheduled to be held on 2061/6/9 until the final verdict of this case has been issued, Furthermore, it is requested to provide preference in hearing to this case.

A single bench issued an order asking the respondents to explain the facts of the case and reply within 15 days why an order as requested by the petitioner ought not to be issued. As the petition was scheduled for hearing on 2061/6/1 about whether or not to issue an interim order, the Bench also issued an order to send notices to the respondent to appear for same day.

On the basis of the study of the documents enclosed with the case file the petitioners claimed and the court observed that it has not been seen that the reservation made for women, scheduled caste (dalits) and indigenous people was not based on constitutional or legal provision. So, it is not necessary to postpone the date of scheduled entrance exam, however an interim order has been issued in order to stop the disclosure of result of entrance exam and not to implement the decision no. 662 of Executive council of Tribhuvan University. This interim order will be reexamined after the written submission from respondent received. Notice of this order should be given to the respondent. Due to the seriousness of this writ, priority order for hearing has been issued.

The written statement submitted by Mr.Ramesh Kanta Adhikari, Dean of Tribhuvan University. Institute of Medicine contended that the institute has published the date of submission of admission form and entrance exam for academic year 2061/62. However, due to tragic event occurred in the country, the entrance examination was not held on time. In the mean time, the Executive Council of Tribhuvan University decided to introduce the 10%,15% and 20% reservation for Dalit (scheduled caste), indigenous people and women respectively. This institute does not have authority to distribute the seats for reservation, so it has only implemented the decision of Executive Council. No question can be raised against this institute for the said action, so it is requested to quash the writ petition.

The written statement submitted by Gita Bhakta Joshi, Registrar of Tribhuvan University, on behalf of Tribhuvan University Executive Council and his own behalf, contended that the Tribhuvan University

doesn't have authority to allocate quota to any group. However, it has only implemented the policy of government to introduce such reservation to women, scheduled caste and indigenous people. In order to implement the principle of balance justice in distribution justice, the Ministry of Education and Sports has decided to enforce the reservation policy which was incorporated in the Budget Speech of fiscal year 2060/61. So, it has sent the letter dated on 206/5/15 to Tribhuvan University. Tribhuvan University has only implemented the letter of Ministry. It doesn't have authority to check whether the decision of government was unconstitutional or illegal? Therefore, it is requested to quash the writ petition.

The written statement submitted by office of the Prime Minister and Council of Minister requested that petitioners are not able to show which decision or action of this office has violated their rights. Therefore, on the basis of it the writ petition should be quashed.

The written statement submitted by the Ministry of Education and Sports stated that in order to implement the reservation policy of government which was introduced in the Budget Speech of fiscal year 2060/61, it has decided and circulated the decision to education institutions along with Tribhuvan University. The policy introduced in point no. 103 of the Budget Speech doesn't violate the constitutional rights of the petitioners, so, it is requested to quash the writ petition.

Tribhuvan University Grant Commission requested to this court to remove its name from the Respondent.

General Secretary of Federation of Indigenous Student Mr.Tul Bahadur Gurung and Central Committee member of Nepal Dalit Independent Student Mr.Padam Bahadur B.K. submitted two different applications requesting that they have concern on this issue so they should be treated as concerned group. So, this court issued an order to submit these applications before the Bench.

Advocate Mr.Tanka Prasad Dulal, on behalf of petitioners pleaded that notice published on 2061/4/19 of Tribhuvan University Institute of Medicine did not mention reservation (quota) for certain group of people. However, later, before conducting the entrance exam, the institute of medicine by referring the decision of Tribhuvan University Executive Council implemented the 10%,15% and 20% out of total number of seats are reserved for Dalit (Scheduled caste), Indigenous group and women respectively in the admission of MBBS. Proviso of Article 11(3) of the Constitution of the Kingdom of Nepal,1990 states

that ' special provisions may be made by law for the protection and advancement of the interest of women, children, the aged or those who are physically or mentally incapacitate or those who belong to a class which is economically, socially or educationally backward.' According to this provision, reservation policy can only be implemented once it has been endorsed by law. In the present situation there is not a separate law allowing it. Moreover, no reservation can be implemented on the basis of caste only. Likewise, Tribhuvan University Executive Council doesn't have authority to introduce reservation system. The letter of Ministry of Education and Sports, the decision of Tribhuvan University Executive Council and notice for entrance exams are unconstitutional and illegal. Therefore, these above stated decisions, letters and notice should be quashed by certiorari and mandamus be issued directing respondents to take entrance exam on the basis of open and free competition.

On behalf of Tribhuvan University Institute of Medicine, Advocate Narayan Prasad Khanal pleaded that the reservation decision has been made by Tribhuvan University Executive Council on the basis of letter sent by the Ministry of Education and Sports. The Institute of Medicine has only implemented the decision of Tribhuvan University Executive Council. Therefore, it is not necessary to issue writ against this Institute. So; the writ petition should be quashed.

Joint Government Attorney Prem Raj Karki on behalf of Nepal Government pleaded that the reservation decision has been taken on the basis of policy provision inserted into the Budget Speech of fiscal year 2060/61. It is the policy decision of government whether to allocate seat for certain group of people. Therefore, the writ jurisdiction can not be invoked against the policy decision of government, so writ petition should be quashed.

With the acceptance of Supreme Court on the basis of rule 42(2) of Supreme Court Regulation, 2048, considered Mr.Resham Gurung, Mahesh Nepali and Padam Bahadur Bishwokarma as a concerned party to this case. On behalf of concerned party Mr.Resham Gurung, advocates Subash Nembang, Mukti Pradhan, Sapana Pradhan Malla, Dr. Shanta Thapalaiya, on behalf of Mr.Mahesh Nepali, advocates Luma Singh Bishwokarma, Bimal Bishwokarma, Tek Tamrakar and on behalf of Padma Bahadur Bishworkarma advocates Dorna Bahadur Karki, Pushpa Bhushal pleaded that it was the policy decision of government incorporated in the Budget Speech of fiscal year 2060/61 to introduce quota of 10%, 15% and 20% seats in government owned schools or university for Dalit (scheduled caste), indigenous people

and women, respectively. Executive council of Tribhuvan University has only implemented such policy decision of government and circulated letters to affiliated campuses. This decision will have positive result in the system of governance. Article 26(10) of the Constitution of the Kingdom of Nepal 1990 states that 'the state shall pursue a policy which will help to promote the interests of the economically and socially backward groups and communities by making special provisions with regard to their education, health and employment.' This reservation has been implemented on the basis of that provision of the Constitution. This decision has discriminated people on the basis of certain grounds, however, it is not a negative one as it is a decision which promotes positive discrimination. Nepal has ratified few international instruments which have guaranteed the rights of Dalit (scheduled caste), indigenous people and women. According to the provision of Treaty Act, 1990 these International Human Rights Instruments which have been ratified by Nepal are a binding document for us. In this way, the provision of Budget speech, the decision of Executive council of Tribhuvan University and the notice published by Tribhuvan University Institute of Medicine do not violate the constitutional rights of petitioners; therefore, the writ petition should be quashed.

After hearing the arguments of the learned counsels from both sides, it is required to answer these questions:

1. Whether or not the decision of the Executive council of Tribhuvan University to allocate quota of 10%, 15% and 20% of seats in its affiliated campuses for Dalits, indigenous group of people and women respectively, is contradiction with the Article 11 of the constitution of the kingdom of Nepal, 1990 ?
2. Whether or not the order as demanded by petitioners to be issued?

Regarding the first question writ petitioner demanded that it is mentioned in Art. 11(3) of the Constitution of the Kingdom of Nepal, 1990 that reservation can be implemented only by making law. However the decision of Executive council of T.U. dated on 2061/5/18 BS paved way for reservation for Dalit, Indigenous group and women which was inconsistent and violated the right to equality as guaranteed by Article 11 of the constitution. So, the decision of executive council of T.U. should be declared void.

However, we found that the Tribhuvan University Institute of Medicine replied that the decision was not taken by them. They have only

implemented the decision of Executive Council of Tribhuvan University. Similarly Executive Council of Tribhuvan University contended that they did not introduce the provision of reservation in their law however they have only implemented the letter of Ministry of Education and Sports. Ministry of Education and Sports claimed that it has given direction to implement the provision of reservation which was introduced in Budget Speech of Fiscal year 2060/61. Finally office of the Prime Minister and Council of Minister claimed that petitioners neither able to show nor mentioned any decisions of this office which has violated the constitutional rights of petitioners. None of the respondents said whether the introduction of reservation policy in admission of MBBS was reasonable or unreasonable or constitutional or unconstitutional. They only argued that the decision was not made by themselves, it was a policy decision which was a part of budget speech. So, the Ministry of Education and Sports has circulated direction to implement such policy.

During the hearing, the Advocates representing petitioners and respondents called for attention of the bench for the structure of Nepalese society and economic, social and educationally backward people. There is a wide gap on economic, social and educational development of different groups and indigenous people. Characteristics of Nepalese society are a heterogeneous one. There are many kinds of inequalities among different castes, tribes and sectors of people. We can see the incomparable inequality within the same tribe of people, some of them have developed sufficiently but many of them remain backward. Nepal is a multiethnic, multilingual, multicultural country where few groups remain isolated from the system of governance utilization of resources and development. There is no reason to disagree with the effort of government for providing some sort of special packages and provisions that are needed to enhance the capacity of disadvantaged, vulnerable group of people in Nepal. Unless and until we bring these vulnerable, disadvantaged groups, women into mainstream of development by enhancing their economic and social capacity, we can't say that people are sovereign in real sense.

Draftsmen of the constitution are very much aware of the situation of the Nepalese people, so they inserted "All citizens shall be equal before the law. No person shall be denied the equal protection of the law." in Art. 11(1) of the constitution. Art.11 (1) emphasizes two typical situations. One, all citizens shall be equal before the law and other is no person shall be denied the equal protection of the laws. While doing cursory reading, these two provisions seem similar; however

these two have different meaning. First concept is everyone shall be equal in the eyes of law, no one is superior or above the law, no one can get special privileges, everyone should be treated equally. However, in the second concept equal protection of law refers equality within equals and unequal protection or discrimination can be done for unequal.

Article 11(2) (3) (4) (5) of the constitution are related to the two concepts: Prohibition on discrimination and guarantee of equality. Art. 11(3) read as 'the state shall not discriminate citizens among citizens on grounds of religion, race, sex, caste, tribe or ideological conviction or any of these.' This provision treats everyone in equal footing and no discrimination can be introduced, however in the proviso of Article 11(3) mention that 'special provisions may be made by law for the protection and advancement of the interest of women, children, the aged or those who are physically or mentally incapacitated or those who belong to a class which is economically, socially or educationally backward. This provision allows government to introduce special program for such group of people. It seems unequal treatment for equal people, but it is justified that in order to bring them into mainstream such provisions are needed to be introduced. Unless and until we reduce the level of economic and social inequality, they would not be able to feel the concept of economic and social justice. In order to make the provision of Art. 11(3) effective, we need a special law. However, Nepal hasn't promulgated any special law which paves way for reservation and special treatment for certain group of people yet. It seems state is indifference in making such law to bring the disadvantaged, vulnerable group of people into the mainstream of development, otherwise if this situation prolong, it will generate negative attitude towards the state.

It has been stated in Art. 25(7) under the Chapter of Directive Principles and Policies of the State, which the state shall pursue a policy of making the female population, participate, to a greater extent, in the task of national development by making special provisions for their education, health and employment. Similarly, advocates representing the respondents called for attention of this bench by mentioning the Art. 25(10) of the constitution which reads as 'the state shall pursue a policy which will help promote the interest of the economically and socially backward groups and communities by making special provision with regard to their education, health and employment. These are the directive principles of the state that to bring the women, economically and socially backward group into the mainstream of development. It is the constitutional provision of 24(1) which has mentioned that the principles and policies contained in this

part shall not be enforceable in any court. It means that Directive Principles and Policies can not be directly enforceable by court of law; however, these principles and policies remain the guiding principles of the state. Activities of the government should not contradict with these principles and Policies. These are the provision of the Art. 24(2) of the constitution that the principles and policies contained in this part shall be fundamental to the activities and governance of the state and shall be implemented in stages through laws within the limits of the resources and the means available in the country. Similarly, proviso of Art 24(2) and 11(3) states that special provision may be made by law for the protection and advancement of the interest of women, children, the aged or those who are physically or mentally incapacitated or those who belong to a class which is economically, socially or educationally backward. This provision of proviso allows reservation can be made by making law, so without making proper law no reservation can be implemented.

Advocates representing petitioner and respondent called for attention of the Bench towards the Art. 15(3) (4), 16(4) of the Indian Constitution and related decision on these Articles by Indian Courts. So, it is necessary us to understand the content of these Articles. There is no similarity between the Art 15(3) (4), 16(4) of Indian Constitution and the proviso of Art 11(3) of Nepalese constitution. Art.11 (3) permits special provision only after making law, however, Art 15(3) (4) and 16(4) of Indian Constitution left the power to make any special provision on the government's discretion. Our constitutional provision regarding special mechanism (reservation) for special group of people seems more sustainable and permanent than Indian provision. It is because we can only introduce reservation by making law. Government's willingness, administrative directives are not sufficient to introduce quota system, we need special laws in order to introduce reservation policy. So, decisions of Indian court on Art. 15(3)(4) and 16(4) of Indian constitution are not related to this case.

It is clear that the proviso of the Article 11(3) of the constitution is needed for the development of economically, socially and educationally backward people. It remains always possible that the elite people with such backward group can be benefited from the reservation program which, in fact, is not the aim of the proviso of Art 11(3) of the Constitution. Objective of the proviso of Art. 11(3) is to enact a special law in order to make needy people to be benefited from the reservation. So, it is utmost necessary to make proper law in order to implement the reservation policy. Therefore, in the absence of such special law, the reservation given for Dalits (scheduled caste),

indigenous people and women is not consistence with the Right to Equality as guaranteed by Art. 11(1) of the constitution.

Regarding the second question, Tribhuvan University has published notice on 2061/4/19 for the admission and entrance exam for Tribhuvan University Institute of Medicine and its affiliated medical and dental colleges. There was not reservation for any group of people. However, before the closing date of submission of form, Executive Council of Tribhuvan University decided to introduce the quota for 10%, 15%, 20% for Dalits, indigenous people and women respectively. This reservation (quota) was introduced on the basis of classification of group i.e. Dalit, indigenous people and women. It was not written on the decision of introducing reservation for certain group that this was necessary to protect economically, socially and educationally backward people as mentioned in constitution. So, introduction of reservation or quota system after inviting application by issuing notice on 2060/4/19 for free competition seems inconsistent with the provision of Art. 11 of the constitution.

It is mandatory to follow the guidelines for any action provided by the constitution. Even if the objective of the action is good, but if it doesn't follow the procedures as mentioned in the constitution then it can not be considered as legal and can not get constitutional validity. Proviso of Art. 11(3) of the Constitution of the Kingdom of Nepal, 1990 mentioned that special provisions may be made by law for the protection and advancement of the interests of women, children, the aged or those who are physically or mentally impaired or those who belong to a class which is economically, socially or educationally backward. Similarly, Art. 24(2) of the constitution have focused on making laws to implement directive principles and policies of state. Therefore, in the absence of special provision on special laws, the decision no. 662 dated on 2061/5/8 of Executive Council of Tribhuvan University to introduce reservation or quota system in admission and subsequent notice of dated 2061/5/10 are inconsistent with the proviso of Art 11(3) of the constitution so they are declared void by writ of certiorari.

Proviso of the Art 11(3) has allowed state to make any special laws for the protection of vulnerable group i.e. women, children, disable etc. 13 years has been spent without making such law, however such economically, socially, educationally backward women, disable people still need special treatment for their upliftment. In order to bring such group into the mainstream of development, the state should make special provision through law.

Therefore, it is appropriate to issue this directive order in the name of His Majesty government, Council of Ministers to bring an appropriate legislation within this fiscal year which provides grounds to identify the disable, economically, socially and educationally backward group and needy people, and to conduct balanced developmental program for backward, vulnerable group (who needs protection) and for women. Notice of this order should be sent to the respondents through office of the Attorney General, and the file of the case be handed over in accordance with rule.

I concur above decision.

Justice Anup Raj Sharma

Done on 13th Kartik, 2061 B.S. (29th October, 2004)

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Section Seven of the Children's Act 2001(2058 B.S) is declared Contrary to Article, 14(4) and 25(8) of the Constitution of Kingdom Nepal, 1990 in tune with UN Juvenile Rules and Guidelines.

**Supreme Court, Special Bench
Hon'ble Justice Chandra Prasad Parajuli
Hon'ble Justice Meen Bahadur Rayamajhi
Hon'ble Justice Rajendra Kumar Bhandari**

Order

Writ No. 57 of the year 2061

Subject: Request for the issuance of necessary order including certiorari with mandamus pursuant to Articles 23 and 88(1) and (2) of the Constitution of the Kingdom of Nepal, 2047 (1990).

Petitioners: Devendra Aale aged 52, resident of Katmandu District, Chapali Bhadrakali VDC Ward No. 2 and working in Centre for Victims of Torture (CEVICT), Nepal, et.al.

Vs.

Respondents: HMG, Office of the Prime Minister and Cabinet of Singhadurbar, Kathmandu, et.al.

- **Whereas any person detained during investigation shall not subjected to physical or mental torture, how far it will be legitimate and justifiable to imagine a person to inflict torture or inhuman behavior who is not charged of any criminal offence or not detained in custody for investigation process.**
- **It will be erroneous to say that the person who is not detained in custody during investigation or for trial or for any other reason shall be denied to enjoy his rights.**
- **Since the aforementioned provisions of the international treaties prohibit torture and inhuman degrading treatment, it will not be appropriate legitimate to make any law contrary to the aforementioned provisions.**
- **Lot of incidents of torture related activities are found in practical life of the child. The activities permitting torture and inhuman behavior are not valid and justifiable.**

Meen Bahadur Rayamajhi, J: The brief description of the writ petition filed under Articles 23, 88(1) and (2) of the Constitution of the Kingdom of Nepal, 2047 and the order there upon, is as follows:-

Among the petitioners Devendra Ale has been actively working in CEVICT for the enforcement of rights against torture for fifteen years, we advocates Shyam Babu Kafle and Satya Narayan Adhikari have been working specially for the enforcement of right against torture for eight years as a practicing lawyer and petitioner Dr Bindur Wasti have been associated with treatment of children affected by torture. Therefore writ petitioners have meaningful relation to file the writ petition in the apex court requesting to resolve some constitutional and legal issues relating to torture and misbehavior inflicted to the children.

The preamble of the Constitution of the Kingdom of Nepal, 2047(1990) has guaranteed the Human Rights of every citizen of Nepal in which school level students are *ipso facto* included. Article 26(8) of the constitution imposes a duty to the state to take necessary steps for the protection of rights and interests of the children. Article 14(4) ensures that no person shall be subjected to physical or mental

torture nor shall be given any cruel, inhuman or degrading treatment. Section 7 of the Children's Act, 2048(1991) provides for immunities to the children along with the provision against torture and misbehavior. Neither the Education Act, 2028 nor the Education Rules, 2059 prohibit for torture related inhuman or degrading treatment to the students. Although both the Act and Rules are related to terms and conditions of the teachers who are devoted to provide education to the students. Apart from this, Article 19 of the Convention on the Rights of the Child, 1989 which is in consonance with the prevailing municipal law imposes a duty to the member state to take all appropriate measures to protect the child from all forms of physical or mental violence, injury or abuse, neglected treatment, maltreatment or exploitation while in the care of parents, guardian or any other person who has the care of the child. Article 28 (2) of the Convention obliges the state parties to take appropriate measures to ensure that school discipline is in a manner consistent with the child's human dignity. Article 37 ensures that children should not be subjected to torture or other cruel, inhuman or degrading treatment or punishment. Likewise, Article 7 of the International Covenant on Civil and Political Rights 1966, Article 5 of the Universal Declaration of Human Rights, 1948 and the Convention against Torture and other cruel, Inhuman or Degrading Treatment or Punishment, 1984 also prohibit torture and other Cruel, inhuman or degrading treatment or punishment. However, school children are deprived to enjoy the afore mentioned rights and interests conferred to them.

Respondents are obliged to abolish torture and misbehavior being inflicted to school children in the name of discipline because the school is regarded as a holy temple in acquiring education for the ever growing child but respondents do not play active role to fulfill their obligation. Since the school period is the period of rapid development of physical and mental condition of the child, negative and long-term effect is inevitable if torture and other inhuman or degrading treatment against them is inflicted. Consequently, the child, his/her family and ultimately the nation has to face irreparable loss or damage. In practice, students are punished in school in the form of degrading treatment such as to imitate a cock and force for doing up and down, feeding grasses, laying naked to girls child in the name of discipline. Various study and field visit have found that students are hanged in ceiling fan, beating them resulting as fracture of limb, penetrated sticks in anus, detained in toilets, store and class room. Due to such inhuman activities students are departing from their school. A report published by Oxford University press Karachi entitled Human

Development in South Asia, 1998 claims that 14 percent students in Nepal flee from school due to teachers frightening.

Nepal has accepted the fact that students are victimized through corporal punishment by their teachers in school. Second and third periodic report of Nepal submitted to United Nations Child Rights Committee in 2002 is an instance for the fact. Main reason behind this phenomenon is the Section 7 of the Children's Act, 2048. The Proviso to Section 7 of the Act permits for normal beating and threatening the child by his/her father, mother, guardian or teacher for the interest of the child. Torture and other misbehavior to the children in school have been prohibited in Pakistan, Sweden, Philippines, Uganda, Fiji, Kenya and some of the States in India. However, in our country Nepal, there is no such reformatory measure taken by the respondents as to prohibit torture, inhuman or degrading treatment to the children in school. Therefore, as per the afore mentioned International instrument to which Nepal is a party, several rights of the child such as right to education and right against torture and misbehavior have been violated. Section 7 of the Children's Act being inconsistent to the provision of the Constitution of the Kingdom of Nepal, 1990 and there is no such other constitutional and legal remedy as to declare null and void the impugned Proviso to the Section 7 of the Act. It is prayed to declare void and *ultra vires* through the order of certiorari pursuant to the provision of Article 88(1) of the constitution. In addition to this, it is also prayed that necessary order of mandamus be issued pursuant to the Article 23 and 88(2) of the constitution for the prevention of torture, cruel, inhuman and degrading treatment being inflicted to the children inside and outside of school. This is claimed in the writ petition.

A show cause order issued by the court granted 15 days of time limit for the submission of written response by the respondents and present for hearing after the expiry of given time limit.

There is no reason and bases mentioned in the writ petition against the secretariat. Misguiding and confusing writ petition should be dismissed at prime facie. The role of Parliament secretariat is to assist for parliamentary business. The statutory Act was made by the legislature by virtue of its legislative wisdom and process. The writ petition filed against the secretariat is requested to be dismissed. This is the written response submitted by the Parliament Secretariat.

The petition does not clearly claim what action of the Cabinet is liable to violate the rights of the petitioner. Without any reasonable cause and bases the writ is filed against the office. Since the office is not responsible in making laws and what type of law is to be

made and amended as per the need of the society, is an exclusive business of the Parliament. There is no role of the office in making statutory laws and seems no rationale in making respondent to this office. Therefore, the writ petition is requested to be dismissed as mentioned in the written response of Office of the Prime minister and the Cabinet.

Section 7 of the Children's Act, 2048 prohibits for torture, cruel and inhuman behavior to the children. However, for the betterment of the child the Proviso permits for normal beating and frightening by his/her father, mother, guardian and teacher which do not contravene the provision of the same Section. Without taking into account the provision of the Section 7, normal beating and threatening for the interest of the child, does not amount to immunity for torture, cruel, inhuman and degrading treatment to the child. Part II of the Children's Act guarantees rights of the child, part III includes protection of child, part IV incorporates welfare scheme, part V is devoted to time to work and rest. Therefore, several legal provisions have been made for protection of child against cruel, inhuman and degrading treatment. For example, Section 53 to 57 is concerned with enforcement of rights and interests of the child together with the provision of punishment process and procedures if their rights and interests are violated. Hence, the claim of the petition is not based on facts because several legal provisions have been made for punishing the perpetrator. Therefore, the Proviso to Section 7 of the Children's Act, 2048 does not contravene with the International Instruments to which Nepal is a party along with the Constitution of the Kingdom of Nepal 2047. The writ petition should be dismissed as mentioned in the written response of the Ministry of Law, Justice and Parliamentary Affairs.

Rule 133 of Education Rules, 2059 provides code for conduct of teachers. Main goals of teachers as mentioned in the rule are obedience, discipline, fraternity, cooperation, good conduct, sympathy, patience and good character. Cooperation among the students, teacher, parents, and civil society is essential for prevention of torture, misbehavior and inhuman activities to the students, however the subject matter pointed out by the petitioner are pertinent. For the sake of enhancing quality education, management of community schools have been handed over to the local bodies, management committee and other institutions in the manner specified therein so that degrading treatment to the school children can be controlled. It is admitted that some incidents pointed out in the writ petition are occasionally occurring. However, in order to control such type of incidents, Ministry is always aware about close supervision

and monitoring of schools, timely amendments of Acts and Rules. It is stated in the written statement of Ministry of Education and Sports.

In the present case scheduled for today after listing in the cause list as per the rule, learned advocate Agni Kharel argued before the Bench that Article 14(4) of the Constitution of the Kingdom of Nepal has guaranteed the right against torture, Article 5 of the Universal Declaration of Human Rights 1948, Article 7 of the International Covenant on Civil and Political Rights 1966, Convention against Torture, 1984 and Convention on the Right of Child, 1989 to which Nepal is a party, also prohibit the child not only subjected to any kind of physical punishment but also prohibit to cruel, inhuman and degrading treatment. Likewise, rule 67 of the United Nations Rule for the protection of Juveniles Deprived of their Liberty 1990, rule 17 of the United Nations Standard Minimum Rules for the Administration of Juvenile Justice 1985 and Article 54 of the United Nations Guidelines for the Prevention of Juvenile Delinquency 1990 also prohibit torture related misbehavior against children. It is an obligation of Nepal to respect for and fulfill these provisions pursuant to Nepal Treaty Act 2047 B.S. Therefore, the Proviso to Section 7 of the Children's Act should be declared null and void. The Ministry of Education and Sports in its written response also accepts that the issues raised by the petitioner are genuine and practically serious.

According to psychiatrists, corporal and mental punishment being inflicted to the children badly effects to their ever growing personality development, study interest and even scream in a sleep, frighten all of sudden; increase heart beat and become more disappointed. Various researches have proved that corporal and mental punishment on the name of discipline results negatively rather than positive one in the children. It is also proved that children became angry, revenging and more provocative, lose their dignity, they chose even violence as an alternative way of solving their problem, decrease their trust, passion and confidence among students and parents, their instinct will be developed towards telling a lie if they are physically and mentally punished. National goal for making a child civilized, well educated and bona fide citizen of tomorrow will be ruined. Corporal punishment for child is completely prohibited through legislative enactments in the countries such as Australia, Croatia, Cyprus, Denmark, Finland, Germany, Latvia, Norway, Sweden and Zimbabwe while in Israel, Italy, Canada and Zambia it is prohibited through court decisions.

Aforesaid legal and factual scenario is in one hand but on the other hand, state is not able to control over physical and mental torture

including other misbehavior being inflicted against the children. Education Act, Education Rules and Code of Conduct for the teachers do not restrict torture, inhuman and degrading treatment against children. Torture is not a compulsory method for teaching. Nonetheless, Section 7 of the Children's Act prohibits torture but the Proviso permits for normal beating and threatening to the child. Reinforcing his arguments learned advocate pleaded that the Proviso to Section 7 of the Act should be declared null and void through an order of certiorari and directive order including an order of mandamus should be issued to stop torture and other cruel, inhuman and degrading treatments being inflicted inside and outside of school. In consonance of his arguments advocate himself and petitioner Shyam Babu Kafle and learned advocate Rajendra Ghimire jointly submitted a written Bench memo.

Appearing on behalf of the respondent learned Deputy Attorney Brajesh Pyakurel argued that modern jurisprudential value is to test any law by the court whether it is practically implemented or not. Torture is a crime and punishable by separate statutory law. Section 53 to 57 of the Children's Act stipulate punishment and procedures. The Proviso to Section 7 of the Act aims at pragmatic approach relating to safety and education of the child. For the sake of safety and education a murderer may claim for immunity, therefore it will be a fallacy to say that normal beating and threatening should completely be prohibited. Nothing is the logic and rationale behind this argument. Writ petition can be filed challenging any Act which is inconsistent with the constitution pursuant to Article 88(1) but no writ can be filed to declare any Act in tune of Nepal Treaty Act 2047. There are so many judicial principles established by the supreme court of Nepal. Therefore, the claim of the petitioner is not theoretically and practically valid and justifiable; the writ petition should be dismissed. He also submitted a written pleading note in favour of his arguments.

Taking into consideration the arguments submitted by learned advocates, the contention of the petitioner, written response and other relevant materials in the present case scheduled for today in delivering judgment, basically the decision should be made on the following questions:

1. Whether or not the impugned Proviso to Section 7 of the Children's Act 2048 (1991) is inconsistent with the Constitution of the Kingdom of Nepal, 2047 and the International Human Rights Conventions to which Nepal is a party?
2. Whether the writ should be issued or not?

First of all, considering the first question, Section 7 of the Children's Act 2048 provides that no children shall be subjected to torture or other cruel and degrading treatment provided that (nothing herein provided) for the purpose of this Section father, mother, member of the family, guardian or teacher's normal beating or threatening for the sake of interest of the child shall not be deemed as violated of this Section. Petitioner's main contention is that the remaining provision contained in the impugned Section as, normal beating or threatening by father, mother, member of the family, guardian or teacher shall not deemed as cruel or inhuman behavior or torture is contrary with the constitution and International Conventions to which Nepal is a party, therefore the part should be declared ultra vires.

New concept of positive discrimination is incorporated in Article 11(3) of the Constitution of the Kingdom of Nepal, 2047 which provides, special provision may be made by law for the protection and advancement of the interest of Women, Children, the aged or those who are physically or mentally incapacitated or those who belong to a class which is economically, socially or educationally backward. Likewise, Article 26(8) obliges the state to make appropriate arrangements to safeguard the rights and interests of the children and shall ensure that children are not exploited. Considering the afore mentioned provisions of the constitution, Children's Act, 2048 is enacted and came in to force, for the advancement of ever growing physical, mental and intellectual capacities of the child by protecting their right and interests as stipulated in the Preamble of the Act. Likewise, Article 14(4) of the constitution provides that any person detained during investigation or for any other reason shall not be subjected to physical or mental torture nor shall be given any cruel, inhuman or degrading treatment. If so, he is entitled to get compensation in a manner determined by law. Whereas any person detained during investigation shall not subjected to physical or mental torture, how far it will be legitimate and justifiable to imagine a person to inflict torture or inhuman behavior who is not charged of any criminal offence or not detained in custody for investigation process. It will be erroneous to say that the person who is not detained in custody during investigation or for trial or for any other reason shall be denied to enjoy his rights. Constitutionally we are committed to ensure the right against torture to a person who is detained during investigation or for trial or for any other reasons. It is clear from this provision that state has an obligation to create torture free and dignified life to person. Since the constitution is the fundamental

law of the country any act or law contravening to the letter and spirit of the constitution is unconstitutional. Any act, which is inconsistent with the constitutional provision, should be declared null and void pursuant to Article 1 of the constitution.

Section 9 of the Nepal Treaty Act, 2047 (1990) stipulates additional obligation to the state. International treaty to which Nepal is a party and ratified, accessed, accepted or approved by parliament is equally enforceable as Nepal law. By virtue of Section 9(1) of the Act, any provision of Nepal law contravening to the provision of the treaty deemed to be void and the provision of the treaty shall prevail. Considering the international conventions, Article 5 of Universal Declaration of Human Rights 1948 prohibits all type of torture, inhuman or degrading treatment or punishment. Article 7 or the International Covenant on Civil and Political Rights 1966, Article 19, 28(2) and 37 on Convention of Right of Child 1989, Article 1 and 4 of the Convention Against Torture and other Cruel, Inhuman or Degrading Treatment or Punishment 1984 also prohibit torture and inhuman treatment. Since the aforementioned provisions of the international treaties prohibit torture and inhuman degrading treatment, it will not be appropriate legitimate to make any law contrary to the aforementioned provisions.

Children are the hopeful future for tomorrow. State has to create conducive environment for all round development of their ever-growing capabilities. Appropriate environment for child development and torture free dignified life are essential factors for personality development as well as all round development of the child. Respondents also admit the aforementioned fact through their written responses. References submitted by the petitioners are pertinent and genuine in proving the adverse effects upon child due to torture and punishment being inflicted by their teacher and guardian in the name of discipline. Lot of incidents of torture related activities are found in practical life of the child. The activities permitting torture and inhuman behavior are not valid and justifiable.

References submitted by the petitioner have shown that corporal punishment in the name of discipline and interests of child have been completely prohibited through legislative enactments and implementation globally. There are instances of restriction upon corporal/physical punishment in school level. For example, in United States of America, 27 states prohibited physical punishment for school children up to April 15, 2003. Other countries such as Australia (1989), Croatia (1999), Cyprus (1994), Denmark (1997), Finland (1983),

Germany (2000), Latvia (1998), Norway (1987), Sweden (1979), Zimbabwe (1999) also restricted in their respective jurisdiction. Physical/corporal punishment is restricted through judgment of the Supreme Court in countries like Israel (2000), Italy (1996) and Canada (2004). Currently, the West Bengal High Court of India decided to prohibit corporal punishment to child within its territory. Efforts have been made to prohibit physical punishment in other countries through legislative enactments and executive decision of the government. Nepal cannot remain in isolation for combating against torture and other corporal/physical punishment in changing global context.

Taking into consideration the second and last question, observing the spirit of Article 14(4) and 25(8) of the Constitution of the Kingdom of Nepal 2047, legal obligation created by international treaties which has to be fulfilled, emerging international campaign against physical/corporal punishment and torture being inflicted to the child, obligation of state towards creating conducive environment for all round personality development of child the court has to reach into conclusion. Considering the aforementioned grounds the contended part "normal beating" among the impugned Proviso to Section 7 of the Children's Act, 2048 containing "nothing provided for the purpose of this Section the father, mother, member of the family, guardian and teacher's normal beating for the sake of interest of the child shall not be deemed as violent," seems unreasonable and contrary to the spirit of Article 14(4) and 25(8) of the Constitution of the Kingdom of Nepal, 2047 and hence declared null and void pursuant to Article 88(1) of the constitution effecting from today's date of decision. In the name of office of the Prime Minister and the Cabinet it is hereby issued directive order to adopt appropriate measures for restriction of physical/corporal punishment and other cruel, inhuman or degrading treatment or punishment being or may be inflicted against the child. A copy of this order is sent for respondent's notice through Office of the Attorney General and deposit the case file as per the rule.

We concur above decision.

Justice Chandra Prasad Parajuli

Justice Rajendra Kumar Bhandari

Done on 5th Poush, 2061 B.S. (20th December, 2004)

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Amendments in Penal Provision relating to abortion are suggested in order to protect women from degrading treatment.

**Supreme Court, Special Bench
Hon'ble Justice Bhairab Prasad Lamsal
Hon'ble Justice Dileep Kumar Paudel
Hon'ble Justice Balaram K. C.**

Order

Writ No. 52 of the year 2061

Subject: Legal provisions inconsistency with the Constitution be declared void pursuant to the articles 88(1) and 88(2) of the Constitution of the Kingdom of Nepal, 2047.

Petitioners: Advocate Sapana Pradhan Malla and others
Vs.

Respondents: Office of the Prime Minister and Council of Ministers et.al.

- For same offence of abortion provision of different punishment for a pregnant woman and for the other person who compel for abortion do not seem rational and based on wisdom.
- No. 28 is the proviso for penalize a pregnant woman and No. 28a and 32 are applicable for all whether man or woman, so the provision cannot be regarded as discriminatory on gender perspective, yet the maximal penal provision for a pregnant woman and minimal for those encouraging man or woman for the offence of abortion is discriminatory.
- Based on the gravity of the offence the penal provision stipulated for offenders other than a pregnant woman is minimal. For the offence it should be rational and based on wisdom to make the same penal provision as is for a pregnant woman.
- The penal provision of No. 28 is relatively appropriate. Therefore, the directive order is issued in the name of respondent the Council of Ministers and Office of the Prime Minister to carry out necessary amendment in the

legal provision of No. 28a and 32 or for enactment of appropriate legal provision in relation to the penal provision on offence relating to abortion in harmonization with that provision.

Bhairav Prasad Lamsal, J: A brief description of fact and order of the writ petition filed in this court pursuant to the articles 23 and 88 (1) and (2) of the Constitution of the Kingdom of Nepal is as follows:

Article 11 of the Constitution of the Kingdom of Nepal and its entire sub Articles ensure right to equality. This right is backbone of a state governed by law. This right denies discrimination based on gender, creed and race. Any legal provision, because of gender discrimination, seems to result harm to anyone and deprives from any right *that is unequal*. *Depriving a woman from her right over her body, without taking care of the fact that gender discrimination caused by nature, like physical differences, cannot be a basis for the discrimination of legal right, is no more than discrimination*. Eleventh amendment of the National Code (Muluki Ain) enforced from 2059/06/10 B.S. has enacted conditional legal provision in relation with right to womb. No. 28 to 33 of Chapter on Homicide of the National Code recognizes woman's right to womb. However, some legal provisions relating to womb has enacted directly creating discrimination. No. 28 of this chapter has the provision of imprisonment of one year for foetus up to twelve week, imprisonment up to three year for foetus up to twenty five week and imprisonment up to five year for foetus more than twenty five week for the person who aborts. No. 32 of the same chapter has the provision to be imprisoned for three month for foetus up to twenty five week and for six month for foetus more than twenty five week for the person who attempts to abort knowing that the woman is pregnant. These legal provision has stipulated that if a pregnant woman aborts herself she is punished from one to five year imprisonment, however if any person performs any action with enmity knowing that the woman is pregnant and angrily, and because of that action the woman got aborted the person is imprisoned for maximum six month.

These legal provisions have created discriminatory situation denying right to reproductive health to a woman and enacting the provision of higher punishment to a pregnant women for the same act (abortion). These provisions has restricted a woman, who becomes pregnant endangering her life, from abortion that is related with her living and health, and created environment of encouragement for the other person doing the same stipulating minimal punishment. These

provisions are inconsistent with the Article 11 of the Constitution of the Kingdom of Nepal. Likewise, they are contradictory with the provision of right against discrimination based on sex and right against torture or other cruel, inhuman and degrading treatment pronounced by Articles 2 and 5 of the Universal Declaration of Human Rights; with the provision of right against sex discrimination, right to life, freedom and security, right against torture or other cruel, inhuman and degrading treatment and right to privacy asserted by Articles 2(1), 3, 7, 9(1) and 17(1) of the Inter Civil Covenant on Civil and Political Rights of 1966 and with the provision of right to life and freedom, right against sex discrimination and right to reproductive health and family planning pronounced by Articles 2(2), 6(1), 12(1) and (2) of the Inter Civil Covenant on Economic, Social and Cultural Rights. Furthermore, they contradict with right against gender discrimination, right to change the tradition that discriminate against woman, right to reproductive health and family planning, right to determine *birth spacing*, right to freedom of life and security, right against torture or other cruel, inhuman and degrading treatment and right to privacy asserted by Articles 1, 2, 3, 5, 10, 11(2)(3), 12(1), 14(2) and 16(1) recognized by the Convention on Elimination of All Forms of Discrimination against Women, 1997. In cases like Rina Bajracharya v. HMG, Secretariat of Council of Ministers and others (Publication of Decisions relating to Human Right, 2059, page 160) and Advocate Sapana Pradhan Malla v. HMG, Ministry of Law, Justice and Parliamentary Affairs and others (Publication of Decisions relating to Human Right, 2059, page 144) Nepalese laws have declared nul and void by this court on the ground that there should be no discrimination between man and woman, no discrimination and unequal treatment among woman as they were contradictory with the spirit of inter Civil treaty/conventions and recognized principle of justice.

Thus, the stipulation of punishment of imprisonment from 1 to 5 year for abortion have had by a pregnant woman herself in No. 28 of the Chapter on Homicide of the Civil Code, 2020 (B.S.) is discriminatory and against the right of woman in comparison with the provision of performing abortion by coercion, threat, procure or greed in No. 28a of the same chapter as well as the provision of punishment of imprisonment from 3 to 6 month for person whose action against pregnant woman results miscarriage in No. 32 of the same chapter. So the former should be declared void and be issued suitable order to formulate appropriate law based on principles of equality.

The Court issued show cause order directing to submit the writ petition to special bench after receiving of written response within 15 days from respondents or after the expiry of time.

The written response submitted by Ministry of Health states that the Ministry has started safe abortion service as per amended provision of the National Code. If there comes inequality across at the time of implementation of laws relating to abortion that is a matter to be enforced after necessary amendment made by Ministry of Law, Justice and Parliamentary Affairs through Ministry of Woman, Children and Social Welfare. It is not clear in petition the reason why this ministry has been stated as respondent. There is no ground for issuing orders prayed by the petitioner, the writ should be dismissed.

The written response presented by the Office of Prime minister and Council of Ministers reads that writ petitioner has neither pointed out the acts of this office that encroached its right nor the rights encroached. The petition has submitted without a clear plea and stated this office as respondent without reason and ground, therefore liable to be dismissed. It is legislative power to decide what sort of laws should be enacted and which laws should be amended. As the issue is related with the legislation, it is groundless to state this office as respondent. The writ petition should be dismissed.

The written response submitted by Nepal Law Reform Commission states that no single paragraph of writ petition points out why and on what ground the Commission has been referred as respondent. As the writ is related with the acts enacted by legislature there is no reason to state this commission respondent. Hence, writ petition is liable to be dismissed.

The written response presented by Ministry of Woman, Children and Social Welfare states that what sort of Acts should be legislated, which Acts should be amended and at that process what kind of words and phrases should be inserted is the business under the power of legislature. There is no rationale making this ministry the respondent for the matter related with the provision of an Act amended by legislature. Petitioner has not evidently pointed out the action of this ministry that infringes its constitutional and legal right. On the subject of inter Civil conventions to which Nepal is a party, the State has been complying its responsibility in accordance with the spirit of treaty and convention, as after ratification of convention, for amendment of discriminatory laws, on the recommendation of a high level committee established by the State, amendment bills are being prepared after

revision of such laws. As allegation of petitioner's is hypothetical and based on *self confined* argument, petition be dismissed.

The written response submitted by Ministry of Law, Justice and Parliamentary Affairs states that Article 11 of the Constitution of the Kingdom of Nepal, 1990 guarantees right to equality. Any law inconsistent with this spirit of the Constitution is undoubtedly void. No. 28, 28a, and 32 of the chapter on Homicide of National Code are not the laws enacted to discriminate and create inequality between man and woman but provision enacted with intention to stipulate different punishment for different situation and purpose. Provision No. 28 is related with the situation when someone aborts or abortion occurs from any act performed deliberately, with intention to abort or performed believing that the act can cause abortion. This proviso is applied for all those who abort intentionally, so the stipulation cannot be *forcefully* interpreted that it is only applied for a woman. The provision of No. 28a concerns against anyone that identifies sex of foetus with intention of abortion using coercion, threat, and procure or greed to a pregnant woman or performs abortion after identification of sex of foetus. Committing this offence through coercion, threat, and procure or greed is used but cannot be performed without consent of the woman. This provision is equally applied to all who commit *the offence*. For construction of No. 32 one has to glance at No. 29. This provision is only applied when abortion took place while performing any act without intention. To commit a criminal offence *actus reus* and *mens rea* are necessary and these laws have provision of minimal punishment for offence committed without intention in comparison with crime of abortion with intention, so plea of inequality is not rational here. As No. 28b stipulates the grounds for woman's right to abortion cannot be claimed that No. 28, 28a and 32 have laid a pregnant woman's life in danger restricting her from abortion. Hence, the pleas of petitioner are irrational and unlawful and should be dismissed.

In this writ petition, petitioner learned Advocate Mr. Prakashmani Sharma pleaded that our National Code in some circumstances accepts abortion as crime and in other does not. Generally woman does not abort but in an extraordinary situation if it becomes necessary to abort, the woman is liable for maximal punishment and the person who insists to abort is liable for minimal punishment, that provision is apparently discriminatory. It is irrational to stipulate provision of different punishment for the same offence to a state having objective that there should be no discrimination on any form. In the case of Sapana Pradhan Malla v. Council of Ministers (Publication of Decisions relating to Human Right, 2059, page 144) decision has

pronounced by this court declaring void the legal provision of punishment of No. 7 of the Chapter on Rape as it was inconsistent with the right to equality of a female prostitute. From that decision it's proved that the question of rationality of a penal provision could be a subject of judicial review. Hence, the stipulation of maximal punishment for woman who aborts and minimal punishment for the person who enforces woman for abortion on No. 28a and 32 of the chapter on Homicide of the National Code is discriminatory and unreasonable, and should be declared nul. In addition, he also submitted Bench Memo.

Petitioner learned Advocate Sapana Pradhan Malla pleaded that different human right instruments to which Nepal is a party ensure ten rights relating to reproductive health of woman. Among those rights abortion is a major one. Abortion is related with the right to life of a woman. Unsafe abortion places a woman's life in peril. It has an effect on self decision and dignity of a woman. The stipulation on the Civil Code has not accepted such women's right independently. *On the one hand there is provision of punishment while exercising owns right, on the other hand who insists on to perform that act (abortion) is liable for minimal punishment than the woman who aborts. Since such discriminatory provisions are there on chapter of Homicide of the National Code* those legal provisions should be declared nul and void. Furthermore, she submitted Bench Memo.

On behalf of petitioners learned Advocate Mr.Raju Prasad Chapagani pleaded that No. 28a and 32 on chapter of Homicide of National Code has created gender discrimination. *The eleventh amendment on the National Code has made with the objective of preserving and promoting Article 11 of the Constitution and the Convention on Elimination of All Forms of Discrimination against Women but it has adversely affected those objectives.* Any law that promotes violence against woman is not just. If the result of implementation of a law generates unfairness, the law is discriminatory. Legal structure of No. 28, 28a and 32 is clear that punishment for voluntary or chosen abortion is maximal and for coercive and illicit abortion minimal. This legal provision is not rational and is despotic. Punishing on the basis of degree or gravity of offence is appropriate. Heavy punishment for unsafe abortion is justifiable. The matter is not only the subject of right of infant and woman but of health of whole nation and society. The court's role may be there to maintain a common standard on this issue. The court has intervened on this matter. For appropriate arrangement based on appropriate and logical interpretation the court

has to issue order prayed by the petitioner. He also submitted a Bench Memo.

Another learned Advocate Mr.Sabin Shrestha, on behalf of petitioner, pleaded that for the same result of abortion provision of punishment in No. 28 and in No. 28a and 32 is different. Since offence stipulated in No. 28a and 32 is serious, punishment should also be heavy but in reality it is insignificant. Since there is precedent that this court has decided to declare nul and void, considering that provision of maximal and minimal punishment is also discriminatory, order prayed by petitioner should be issued.

On behalf of respondents learned Deputy Attorney General Mr.Narendra Prasad Pathak pleaded that the writ petition is not clear. On the one hand it's not clearly pointed out that how the legal provisions are inconsistent with the Constitution and on the other hand it is prayed that the penal provision is discriminatory. The matter like what action should be declared a crime; how to punish and how much should be punished are the subject under the jurisdiction of legislature. A court cannot decide whether stipulated sentence for any crime is minimal or maximal. While comparing past and present laws relating to abortion, it seems that state is *in progress* because punishment is reduced. If the punishment stipulated in No. 28 for a woman is reduced, abortion will be encouraged. As there is maximal limit of punishment, justice provider can consider based on the gravity of the offence. The provision does not pronounce to punish a woman only. There may be affiliation of a man. In prevailing situation punishment is based on degree or gravity of offence hence the provision cannot be regarded as discriminatory and void. Declaring an act a crime and the matter what punishment is appropriate for that crime is the subject of penal policy. It is not a matter to be declared nul and void. If the court intervenes on this matter this will be the intervention on the wisdom of legislature and on policy matter. As there is different punishment for different action and different offence, the stipulation on No. 28a and 32 on chapter Homicide of the National Code is rational, justifiable and consistent with the Constitution. Hence, writ petition should be dismissed.

In this writ petition which is fixed for delivering the judgement today; after studying submitted Bench Memo, plea of petition, written responses, relevant legal provisions and precedent laid down by this court; in connection with the above mentioned arguments following questions are considered to be decided:

1. Whether or not the provision of punishment stipulated in No. 28, 28a and 32 on chapter Homicide of the National Code has created discriminatory circumstances. Whether or not those stipulations can be declared nul and void pursuant to Article 88(1) of the Constitution?
2. Whether or not the order prayed by the petitioner can be issued?

Considering the first question, the main pray of the petitioners is provision of unequal punishment for the same nature of offence, abortion, stipulated in No. 28, 28a and 32 on chapter Homicide of the National Code is discriminatory, so it is contradictory with the provision of Article 11 of the Constitution of the Kingdom of Nepal and with Conventions relating to human rights enforced as Nepal law in accordance with section 9 of Nepal Treaty Act, 2047. Therefore, the provision should be declared void pursuant to Article 88(1) of the Constitution. In No. 28, 28a and 32 on chapter Homicide of the National Code, declaring action of performing unlawful abortion an offence, provision of different categories of punishment has incorporated to offenders involved in the offence. First of all, it is pertinent to quote the provisions to which the petitioners contended to test its constitutionality.

No. 28: If someone aborts or performs some action with intention to abort or performs some action deliberately or with reason to believe that abortion can occur, punishment for him/her shall be up to one year imprisonment for foetus up to twelve week, up to three year imprisonment for foetus up to twenty five week and up to five year imprisonment for foetus above twenty five week.

No. 28a: No one shall carry out abortion using coercion, threat, procure or greed to a pregnant woman or perform any action to which outcome is identification of sex of a foetus with intention of abortion. Punishment for the person who aborts or identifies the sex of a foetus shall be imprisoned from three month to six month and the additional punishment for the person who aborts on the basis of sex of foetus shall be imprisoned for one year.

No. 32: (*Miscarriage occurred by any action carried with enemy, even if no intention of abortion, creates liability.*) If action is carried out knowingly that the woman is pregnant, shall be imprisoned for three month for miscarriage of foetus up to twenty five week and for six month for miscarriage of foetus more than twenty five week. If action is carried out unknowingly that the woman is pregnant shall be fined of five hundred rupees for miscarriage of foetus up to twenty five week

and of one thousand rupees for miscarriage of foetus more than twenty five week.

A general study of the above legal composition shows that provision of No. 28 is targeted to punish the woman who aborts, however No. 28a and 32 are targeted to punish the persons, other than the woman, involved in abortion. Criminal law accepts an illicit action preformed with criminal intention as an offence. For protection of the rights of a foetus and of health of a pregnant woman generally state has stipulated provision of punishment declaring abortion an offence. As there is no separate legal provision for abortion in our country, it is included with the legal provision relating to homicide. From No. 28 to 33 on chapter Homicide, there is stipulation of offence and punishment relating abortion. The petitioners do not object the other legal provisions but only want to test, as above mentioned, No. 28, 28a and 32 on the testimony of constitutionality.

Eleventh amendment of the National Code clearly declared abortion, other than the category stipulated on No. 28a, an offence and stated provision of punishment. According to the exceptional stipulation, with consent of the woman, aborting up to a twelve week foetus or aborting up to a eighteen week foetus conceived as a result of rape or incest or aborting in case where a legally authorized medical practitioner recommends that if not aborted, life of the pregnant woman is in danger or that her health ruins physically or mentally or that a disable baby shall born, is legal. According to the legal provision the sentence stipulated for the offender who aborts is minimal in comparison with the sentence stipulated for the offender who encourages for abortion. In the offence relating to abortion, it is not appropriate to be based on other than the duration of pregnancy for stipulation of heavy or light sentence. For an offence, generally, who played an important role or who encouraged for offence is important and the amount of punishment should be determined on the basis of those matters. *Abortion carried by procure, threat or greed is more grievous then carried on own decision.* Neither the written replies nor learned Deputy Attorney General could give the rationale for minimal punishment for the previous category. For same offence of abortion provision of different punishment for a pregnant woman and for the other person who compel for abortion do not seem rational and based on wisdom.

Article 11 of the Constitution of the Kingdom of Nepal has guaranteed that all citizens shall be equal before the law; no person shall be denied the equal protection of laws and no discrimination shall be there against any citizen in the application of general laws on grounds

of religion, race, gender, caste, tribe or ideological conviction or any of these. Article 14(1) of Inter-Civil Covenant on Civil and Political Rights, 1966 which is enforceable as Nepal law pursuant to Section 9 of Nepal Treaty Act, 2047, has stipulated that all persons shall be equal before the courts and Tribunals. In the determination of any criminal charge against him or of his rights and obligations in a suit at law, everyone shall be entitled to a fair and public hearing by a competent, independent and impartial tribunal established by law. ... Likewise, article 2 of Convention on Elimination of All Forms of Discrimination against Women, 1997 stipulating that state parties condemn discrimination against women in all its forms, agree to pursue by all appropriate means and without delay a policy of eliminating discrimination against women and, to this end, undertake, has stipulated in its Section (F) that to take all appropriate measures, including legislation, to modify or abolish existing laws, regulations, customs and practices which constitute discrimination against women and in its Section (G) that to repeal all Civil penal provisions which constitute discrimination against women. Above mentioned provision has given the liability to its state parties for equal application of laws among all persons and to legislate laws especially not discriminating women; to amend existing laws, regulations, customs and practices, and to repeal penal provisions, that constitute discrimination against women. It is liability of a state to make such arrangements, accordingly.

Learned Deputy Attorney General pleaded that what action should be declared an offence, what should be the penal provision is a policy matter of a state, for this reason the rationale of these matter cannot be revised by the court. *In this case, on the one hand the existing legal provision has challenged on the ground that penal provision for the same offence is discriminatory; and on the other hand recalled that it is not appropriate formulating legal provision of different punishment for the same offence by a State of which objective is not to discriminate among all persons while applying laws. As there is a decision, declaring invalid the legal provision of punishment of No. 7 of the chapter on Rape of the National Code, by this court, as was inconsistent with the right to equality of a female prostitute, in the case Sapana Pradhan Malla v. Council of Ministers (Publication of Decisions relating to Human Right, 2059, the Supreme Court, page 144); the Court, on the ground that penal provision is the matter of state policy, cannot betray from its constitutional liability.*

Whereas the context of whether or not this issue is unequal or discriminatory on gender perspective, No. 28 is the proviso for penalize a

pregnant woman and No. 28a and 32 are applicable for all whether man or woman, so the provision cannot be regarded as discriminatory on gender perspective, yet the maximal penal provision for a pregnant woman and minimal for those encouraging man or woman for the offence of abortion is discriminatory. Based on the gravity of the offence the penal provision stipulated for offenders other than a pregnant woman is minimal. For the offence it should be rational and based on wisdom to make the same penal provision as is for a pregnant woman.

Considering the second question, the petitioners' pray is penal provision of No. 28, 28a and 32 on chapter Homicide of the National Code is inconsistency with Article 11 of the Constitution, hence to the extent of inconsistency should be declared nul and void. From the above analysis, made in question No. 1, though there is differences between penal provision for a pregnant woman and for those encouraging man or woman for offence of abortion, however, the provision has been added by the eleventh amendment of the National Code; on issue of its irrationality and on the claim that it is unequal, the conclusion should be drawn after a broad study, research, discussion and dialogue; it is necessary to pay proper attention on legislative competency and wisdom by the court; if declared nul and void there should be a creation of lawlessness and impunity for offence of abortion hence the stipulation of No. 28, 28a and 32 cannot be declared unconstitutional at least for now. The penal provision of No. 28 is relatively appropriate. Therefore, the directive order is issued in the name of respondent the Council of Ministers and Office of the Prime Minister to carry out necessary amendment in the legal provision of No. 28a and 32 or for enactment of appropriate legal provision in relation to the penal provision on offence relating to abortion in harmonization with that provision. For knowledge of the respondents be sent copy of this order through the Office of Attorney General. This file is handed over according to the rule.

We concur above decision.

Justice Dileep Kumar Paudel

Justice Balram K. C.

Done on 13th Falgun, 2061 B.S. (24th February, 2005)

□

Suspension of one Article does not construe the suspension also of other Articles of the constitution during proclamation of emergency period.

Supreme Court, Special Bench
Rt. Hon'ble Chief Justice Hari Prasad Sharma
Hon'ble Justice Bhairav Prasad Lamsal
Hon'ble Justice Meen Bahadur Rayamajhi
Hon'ble Justice Anup Raj Sharma
Hon'ble Justice Balaram K.C.

Order

Writ No.179 of the year 2061

Sub- Certiorari et.al.

Ref: Request made for the cancellation of an unlawful refusal order.

Petitioner: Damber Singh Gadai, Proprieter of Durga Laxmi Construction Service, Illam District, Fikkal VDC Ward No. 6

Vs.

Respondents: Illam Municipality et.al.

- **The listing of suspendable rights in Article 115(8) of the Constitution during the state of emergency means only those Articles mentioned in Article 115(8) may be suspended and it is explicit that except those Articles referred in clause (8) no other Article under part 3 of the Constitution may be suspended.**
- **If the intention of the makers of the Constitution was to suspend all fundamental rights during the state of emergency it would be adequate to mention the provision of suspension of the right to constitutional remedy provided in Article 23 to enter into the court for as long as the state of emergency is in operation instead of mentioning other Articles in Clause (8). Since the Article 115 (8) has categorically mentioned the rights suspendable during the state of emergency, it is clear that except those rights, other fundamental rights are not subject to suspension.**

- **It would not be constitutional and logical to interpret the right to constitutional remedy as suspended right for the enforcement of non suspended fundamental rights during the state of emergency.**
- **In the situation of suspension of right to constitutional remedy guaranteed by Article 23 pursuant to the Article 115 (8) through a proclamation or order of the declaration of a state of emergency under the Article 115, it is not appropriate to refuse a writ petition in this court under Article 88 (2) for the enforcement of non suspended fundamental rights and any other legal right for which a effective remedy is not available.**

Hari Prasad Sharma, C.J., The details of the writ petition filed under Article 88(2) of the Constitution of the Kingdom of Nepal, 1990, presented before this bench as per the order issued by the Chief Justice against the refusal order of Registrar of this court and the order there upon are as follows.

An agreement was entered in between the writ petitioner, Damber Singh Gadai, the proprietor of Durga Laxmi Construction service and respondent Illam Municipality for the reconstruction of the "Tudikhel" of Illam Municipality. As per the agreement the respondent did not provide any notice about the request made to avail the estimate and map design of the task to be accomplished along with the collection of construction materials at the construction site. Instead, the respondent decided to seize the security deposited and blacklisted the contractor Durga Laxmi Construction service till Magh 1, 2062 (2002), pursuant to the *proviso* of Rule 81 of Local Bodies (Internal Administration) Regulation, 2056 (1999) and sent letter dated 11 Poush, 2061(2004), stating the breach of agreement on the ground of not initiating any activities related to the construction even within the deadline of completion of the construction works pursuant to agreement. The decision and action of respondent as stated above has violated the constitutional rights guaranteed by Article 11(1) and Article 12 (2) (e) of the Constitution of the Kingdom of Nepal, 1990 and the legal rights ensured by Local Self- Governance Act, 2055(1999) and Regulation, 2056 (1999) and Clauses (6) and (7) of the section 6 of Civil Rights Act, 2012 (1955). In absence of any other effective legal remedy to revoke such decision and action of respondent, this petition has been lodged. Thus, it is hereby requested to quash the decision and action of respondent through

certiorari order and issue orders including *Mandamus* to enable for the construction works as per the law, under Article 88(2) of the Constitution.

The order of the Registrar of the Supreme Court dated 2061/11/14 to refuse to register the application states that: since the right to constitutional remedy provided by Article 23 of the Constitution has been suspended in the present extraordinary situation by suspending Article 12(2) (a), (b) and (d), Article 13 (1) and Article 15, 16, 17, 22 and 23 (except right to remedy of *Habeas corpus*) through a declaration of a state of emergency proclaimed under the Article 115 (8) of the Constitution of the Kingdom of Nepal, 1990 which has been published on 19 Magh, 2061 by a notification. In this context, Article 23 which provides right to constitutional remedy has been suspended. Article 88 (2) has not provided right to constitutional remedy. This petition could not be registered pursuant to rule 15 (2) of the Supreme Court Regulation, 2049 (1992) and this refusal order has been issued pursuant to Rule 27 (2) of such Regulation and Number 27 of the chapter on Court Management of National Code.

Since the Article 88(2) has granted an extraordinary jurisdiction to issue necessary orders including *certiorari* for the enforcement of the fundamental rights guaranteed by the Constitution and other legal rights guaranteed by the prevalent laws, the Article 88(2) in itself cannot be ineffective or defunct due to the suspension of Article 23. Thus, the petition was filed for the enforcement of the non suspended rights and other legal rights; the refusal order of the Registrar not to register the petition is contrary the Constitution and laws. It is thus, this petition has been lodged to quash the refusal order of Registrar and pray to register the writ petition.

A single bench order of this court dated 2061/11/19 states: since the question that whether or not a writ petition filed pursuant to the provision of non suspended rights under the Constitution of the Kingdom of Nepal, 1990; while the notification issued on *Nepal Gazette* on 19 Magh, 2061 is in existence are subject to registration under Article 88(1), (2) and 23 of the Constitution and whether or not the issue involving the hearing of the petitions filed before the declaration of emergency and the cases remaining sub- Judge in the Court are subject to hearing. It is the matter of national importance and complicated constitutional issue that is resolved through larger bench of five honourable justices when such Articles have been suspended. Thus, it is appropriate and reasonable to resolve this issue through involvement of Attorney General and certain number of

learned legal counsels from Nepal Bar association and Supreme Court Bar Association for comprehensive discussion; it is hereby ordered to submit before the chief justice for necessary orders.

The order of chief justice dated 2061/11/21 states: since it is reasonable to resolve the serious and complex constitutional issue about the registration of the petition prayed pursuant to the non suspended rights during the period of a state of emergency proclaimed and existing at present, it is hereby ordered to submit this petition before a special Bench consisting five justices, on 24 Falgun 2061 (2004). And the same order asks for each one senior Advocate or Advocate from Supreme Court Bar Association and Nepal Bar Association among the experts of constitutional law and Attorney General Office along with the presence of Attorney General of the Kingdom of Nepal himself *Amicus curiae* to render assistance to this court for the settlement of this issue.

In the petition presented before this bench pursuant to the Rules, learned Advocate Harihar Dahal, along with the submission of written Bench Memo, argued that only certain fundamental rights under part 3 could be suspended during a state of emergency proclaimed pursuant to the Article 115 of the Constitution of the Kingdom of Nepal, 1990. It is not prudent to argue that no writ petition could be filed for the enforcement of nonderogable fundamental rights on the ground of the suspension of right to constitutional remedy. Article 23 has guaranteed right to constitutional remedy. The suspension of this Article does not make Article 88(2), which has separate, independent existence, inoperative. Article 88 has provided for declaring the laws which is inconsistent with constitution *ultra vires* and to issue orders including *certiorari* for the enforcement of fundamental rights, legal rights where there is no remedy and the dispute of public interest. Article 88 has very vague ambit and it can be operative in the absence of Article 23. It is the responsibility of the court to apply the Article 88. The jurisdiction of the court cannot be limited only due to the declaration of a state of emergency. There is no plea in writ petition related to suspended rights. The remedy under Article 88 can be available for the enforcement of non suspended rights and legal rights for which there is no alternative remedy. The Registrar can only examine whether or not the petitions submitted for the registration have fulfilled the specified formalities. He has no authority to enter into the merit of the petition and issue refusal order. Therefore, the refusal order issued by the Registrar is against the law and the Constitution and be quashed and hence, to be ordered for the registration of the writ petition.

Amicus curiae Learned Attorney General Pawan Kumar Ojha and Learned Deputy Attorney Generals Drona Raj Regmi and Narendra Prasad Pathak along with the submission of written Bench Memo, argued that since Articles suspended pursuant to the clause (8) of Article 115 are not operative during the existence of a state of emergency. There is no question in regard to the enforcement of such fundamental rights. Article 23 guarantees the right to constitutional remedy for the enforcement of fundamental rights. Right to constitutional remedy under Article 23 includes for the invocation of the extra-ordinary jurisdiction under Article 88 for the enforcement of fundamental rights. Since the right to constitutional remedy under Article 23 itself is suspended, the non suspended fundamental rights could not be enforced during a state of emergency. The suspended fundamental rights cannot be enjoyed during the state of emergency. But the non suspended fundamental rights can be enjoyed, provided that; their remedy is not available in case of their infringement. On the basis of fact that the writ petition had been registered and were heard for the enforcement of those legal rights; also during the state of emergency proclaimed prior to this, where there were no remedies except fundamental rights; it can be argued that the writ petition can be lodged in this court under Article 88 (2) for such issues.

Amicus curiae designated by Nepal Bar Association, the learned advocate Sher Bahadur K.C. argued that the issuance of the order of a state of emergency has suspended some fundamental rights of the citizen. Such order has not curtailed the jurisdiction of the court. The responsibility of ensuring the concept of Rule of law established as non amendable provision of the Constitution remains intact in this court. This court can fulfill its responsibility applying recognized principles of justice under Article 84. The court cannot escape from its responsibility because of the suspension of the right to constitutional remedy under Article 23. The provision of zextraordinary jurisdiction of this court under Article 88 is not suspended. Only the suspended fundamental rights under Article 115(8) cannot be enforced by this court. Therefore, the petition can be entertained under Article 88 for the enforcement of non- suspended fundamental rights, legal rights where there is no remedy and the dispute of public interest.

Amicus curiae designated by the Supreme Court Bar Association, the learned advocate Indra Lohani along with the submission of written Bench Memo, argued that fundamental rights are of the nature where some rights are derogative on conditions and some are non derogative at any conditions. So only the rights suspended during a period of a state of emergency may not have remedy. The writ petition

can be entertained for the enforcement of non suspended fundamental rights, legal rights and dispute of public interest. It is not constitutional to argue that the provision of Article 115(8) for non suspension of the right to remedy of *habeas corpus* under Article 23 means the remedy of enforcement of other fundamental rights also is suspended. Since the Article 115 (9) provides that no question shall be raised in the court for the enforcement of suspended fundamental rights, it is clear by this writ petition can be lodged for the enforcement of non suspended fundamental rights. Article 23 is not only a means of remedy; moreover, it is an independent Article to guarantee the constitutional remedy like other Articles. This Article cannot curtail the rights guaranteed by other Articles. The suspension of the Article 23 does not adversely affect the responsibility of the court for the enforcement of non suspended fundamental rights under Article 88. Therefore, the petition can be registered and heard under Article 88 for the enforcement of non suspended fundamental rights, legal rights where there is no alternative remedy and the question which involves the public interest.

In the present writ petition, scheduled for today for delivering the judgment, the following issues need to be decided on the basis of a perusal of the facts and the content of the petition, and the submissions of the bench memo made by the learned counsels:

- (a) In circumstances of the proclamation of a state of emergency under Article 115 (8) of the Constitution of the Kingdom of Nepal, 1990 and the suspension of the right to constitutional remedy guaranteed by Article 23 under sub-Article 8 of the same as well as the Articles relating to fundamental rights, whether the writ petition under Article 88 (2) of the Constitution, may be registered or not for the enforcement of other fundamental rights under non suspended Articles or any other legal rights for which the remedy appears to be ineffective?
- (b) Whether or not the refusal order issued by the Registrar of this court is lawful.

For the settlement of the first question, the constitutional provisions of the emergency power provided in Article 115 of the Constitution of the Kingdom of Nepal, the notification of His Majesty's Principal Secretariat, Royal Palace, published on Nepal *Gazette* on 19 Magh 2061 (2004), provision of fundamental rights guaranteed under part 3 of the Constitution and the constitutional provision of Article 88, relating to the extraordinary jurisdiction of this court are required to be

discussed at this point. For this purpose, the provision of emergency power provided in Article 115(1), (8) and (9) which are as follows:

115. Emergency Power: (1) If a grave danger arises in regard to the sovereignty and the integrity of the Kingdom of Nepal, or the security of any part thereof whether by war, external aggression, or armed rebellion or extreme economic disarray, His Majesty may, by proclamation, declare or order a state of emergency in respect of the whole of the Kingdom of Nepal or of any part thereof.

(8) His Majesty may, while making a proclamation or an order of a state of emergency pursuant to Clause (1), suspend sub-Clauses (a), (b), (d) and (e) of sub Article (2) of Article 12, sub Article (1) of Article 13 and Article 15, 16, 17, 22 and 23 of this Constitution for as long as the proclamation is in operation:

Provided that the right to the remedy of *Habeas corpus* under Article 23 shall not be suspended.

(9) In circumstances where His Majesty has suspended any Article of this Constitution pursuant to sub Article (8), no petition may lie, nor question be raised in any court for the enforcement of the fundamental rights conferred by such Article."

The Royal Notification issued by the Principal secretariat of His Majesty and published in the *Nepal Gazette* on Magh 19, 2061 (February 1, 2004) is as follows:

"On account of occurrence of serious threat to the sovereignty, integrity and security of the Kingdom of Nepal, His Majesty the King has proclaimed or declared or ordered, in accordance with Article 115 (1) of the Constitution of the Kingdom of Nepal, 1990, a state of emergency to be effective with immediate effect throughout the Kingdom of Nepal and, in accordance with clause (8) of the same Article, has suspended parts (a), (b), (c), and (d) of the clause (2) of Article 12, clause (1) of Article 13 and Articles 15, 16, 17, 22 and 23 (except the remedial right to *Habeas corpus*)"

The aforesaid constitutional provision has provided for declaration of a state of emergency in the situation of emergence of any grave danger that arises in regard to the sovereignty, integrity and security of any part by war, external aggression, armed rebellion or extreme economic disarray. State of emergency is abnormal situation in any country. It is essential to take immediate constitutional measures to

save the existence of the nation from the emergency situation and to protect the life and property of the citizens. The provision of the state of emergency is mentioned in the Constitution itself in the country having a written Constitution. Emergency is a specific and complex situation arising due to the extraordinary and abnormal reasons. In normal situation, state machinery works regularly and the citizens normally exercise and enjoy all rights guaranteed by the constitution without any difficulties or disturbances. But in emergency situation, it is a bit different. Due to the external aggression, internal disturbance, armed rebellion and financial disorder and insurgency, huge problem arises in the existence of a country and it is difficult to protect the territorial integrity and sovereignty of the country. For the prevention of such extraordinary and exceptional circumstances, government, by necessity requires more powers than in normal situation. The government, while requiring more powers to prevent the state of emergency, the situation arises where some important fundamental rights of citizens conferred by the Constitution has to be suspended for a short period of time. Since it is the aim of the state to end emergency situations, by bringing the normal situations and maintaining peace and security through the use of entire forces of the country, the individual interests of the citizens are curtailed for the sake of broader national interest. In this way, if the government abuses the additional emergency powers where such powers have been provided, the Constitution itself provides for the compensation in case the rights of people are violated. The emergency power of the government is regulated stipulating clear conditions and period to prevent the possibility of adversely affecting the civil rights due to additional emergency powers to the government. Although state seriously suffers any emergency situations, certain fundamental rights of the citizens are inviolable and some are regulated. During emergency situations, it is necessary to create significant balance between the powers of the state to maintain security and integrity and the substantial fundamental rights of the citizens and the rule of law. In case of conflict between the prerogative provided to the state for integrity, security and existence of the nation, and non derogative rights of the citizens, the Court has to cautiously and harmoniously interpret them.

The notification issued on 19 Magh 2061 (2004) has suspended the right to freedom of thought and expression guaranteed by Article 12 (2) (a), freedom to assemble peacefully and without arms guaranteed by Article 12 (2)(b), freedom to move throughout the Kingdom and reside in any part thereof guaranteed by Article 12 (2) (d), right to no censored of news item, articles or other reading materials guaranteed

by Article 13 (1), right against preventive detention guaranteed by Article 15, right to information guaranteed by Article 16, right to property guaranteed by Article 17, right to privacy guaranteed by Article 22 and right to constitutional remedy guaranteed by Article 23 (except the right to the remedy of *Habeas corpus*) as suspendable Articles under Article 115 (8) of the Constitution. The Attorney General has been contended, in the pleas and written Bench Memo, since the right to constitutional remedy is suspended except the right to the remedy of *Habeas Corpus*, under Article 23, any other fundamental rights cannot be enforced and no writ petition may be entertained for the enforcement of those fundamental rights provided by Article 3. Thus the right to constitutional remedy guaranteed by the Article 23 of the Constitution and the provision of extraordinary jurisdiction of this court under Article 88 (2) is need to be analyzed and discussed for resolving this issue.

Article 23 of the Constitution states that "the right to proceed in the manner set forth in Article 88 for the enforcement of the rights conferred by this part is guaranteed". There is no scope of the interpretation of Article 23 by excluding Article 88. Since the Article 88 is mentioned in Article 23, both Articles of the Constitution should be interpreted harmoniously in this dispute. Article 88(2) of the Constitution provides that the Supreme Court shall have the extraordinary jurisdiction for the enforcement of fundamental rights conferred by the Constitution, for the enforcement of any other legal rights for which no other remedy has been though provided or for which the remedy even though provided appears to be ineffective, or for the settlement of any constitutional question or legal question involved in any dispute of public interest or concern, to issue necessary or appropriate orders to enforce such rights or settle the dispute. Study of the provision of Article 23 and 88 (2), it is clear that Article 23 is the right guaranteed for the enforcement of fundamental rights conferred under part 3 of the Constitution and Article 88 (2) is the provision of extraordinary jurisdiction of this court to issue appropriate orders for the enforcement of fundamental rights conferred by the constitution, for the enforcement of any other legal rights for which no other remedy has been provided or for which the remedy even though provided appears to be ineffective, or for the settlement of any constitutional question or legal question involved in any dispute of public interest or concern. Since the Article 23 has expressed the provision- for the enforcement of the rights guaranteed under part 3 of the Constitution, it confers the right for the enforcement of those which have been infringed or violated. Article 23 has guaranteed "right to proceed for the enforcement of fundamental

rights guaranteed by part 3", it also confers right to move the Supreme Court for the enforcement of the rights guaranteed by Article 11 to 22, in the manner set forth under extraordinary jurisdiction of this court on the basis of manner and format prescribed in chapter 6 of Supreme Court Regulation, 2049 (1992). Right guaranteed by Article 23 is useless if there is no guarantee of rights by Article 11 to 22. A declaration of fundamental rights is meaningless unless there are effective judicial remedies for their enforcement. Therefore, it can be said that Article 23 is required because of the provision of fundamental rights in Article 11 to 22 and this Court is authorized under extraordinary jurisdiction provided by Article 88(2) of the Constitution, to issue any appropriate orders along with *habeas corpus*, *mandamus*, *certiorari*, prohibition, *quo-warranto*, for imparting full justice and providing appropriate remedy, which confers the extraordinary jurisdiction to this court for the enforcement of fundamental rights and any other legal rights without such remedy. This court is aware and alert towards the responsibility of protecting and promoting the fundamental rights and human rights through the acceptance of the provisions relating to universal human rights as per the fundamental rights guaranteed by the Constitution and the interpretation of the commitments expressed by the government in the conventions and agreements relating to human rights. This fact in itself is explicit from the judicial decisions and interpretations made by this court by exercising the extra ordinary jurisdiction from time to time.

As article 23 has also been expressed in the notification published in the Nepal Gazette on Magh 19, 2061(2004), while considering the issue, whether all Articles relating to fundamental rights contained in part 3 of the Constitution are considered to be suspended or only the fundamental rights contained in the Articles mentioned in such notification are considered to be suspended; Article 115 (1) of the Constitution has provision that His Majesty may proclaim or issue order of a state of emergency, to be effective throughout the Kingdom of Nepal or in any specific part thereof, in case the situation arises for declaring the state of emergency. Article 115(8) has mentioned suspendable Articles in the event of the proclamation of the state of emergency when conditions arise for declaring such emergency. According to this, there is a constitutional provision that Clause (a), (b), (d) and (e) of Article 12(2), Article 13 (1), Article 15, 16, 17, 22 and 23 may be suspended along with the provision of the right to remedy of *habeas corpus* as non suspendable right in *proviso*. Since the Article 11, provision of rights provided in Clause (c) and (e) of Article 12 except the provision of Clause (a), (b) and (d) of same

Article mentioned in notification, Article 13 (2) and (3), Article 14,18,19,20 and 21 has guaranteed fundamental rights to citizens, there is no provision in Article 115(8) that such fundamental rights can be suspended under Article 115(8) even in case the state of emergency is proclaimed. The listing of suspendable rights in Article 115 (8) of the Constitution during the state of emergency means only those Articles referred in Article 115 (8) may be suspended and it is explicit that except those Articles referred in Clause (8), no Articles under part 3 of the Constitution may be suspended. If the intention of the makers Constitution was to suspend all fundamental rights during the state of emergency it would be adequate to mention the provision of suspension of the Article 23 for the right to constitutional remedy in Clause (8) for as long as the state of emergency is in operation instead of mentioning other Articles. Since the Article 115 (8) has categorically mentioned the suspendable rights during the state of emergency, it is clear that except those rights, other fundamental rights are not subject to suspension. In addition to this, Article 115 (9) states that in circumstances, where, His Majesty has suspended any Article of this Constitution pursuant to Clause (8), no petition may lie nor question be raised in any court for the enforcement of the fundamental rights conferred by such Article. According to this constitutional provision it becomes clear that petitions can be lodged in the court for the enforcement of other fundamental rights except the suspendable fundamental rights under Article 115 (8). On the basis of this, the right to constitutional remedy under Article 23 should be understood as suspendable rights during the state of Emergency only for the purpose of the suspendable rights. On contrary, it would not be constitutional and logical to interpret the right to constitutional remedy as suspended right for the enforcement of non suspended fundamental rights during the state of emergency.

Therefore, in the situation of the proclamation or order of the declaration of a state of emergency under the Article 115 and the issuance of the order of suspension of right to constitutional remedy guaranteed by Article 23 pursuant to the Article 115 (8), it is not appropriate to refuse the writ petition to be registered for the enforcement of non suspended fundamental rights and any other legal rights for which the remedy even though provided appears to be ineffective under Article 88 (2).

As regards to the second question, on the basis of above analysis, there seems no constitutional provision to refuse the registration of such writ petition, where the petitioner has brought the petition to register for the enforcement of fundamental rights guaranteed by

Article 11 and 12 (2) (e) and legal rights guaranteed by Local Self Governance Act, 2055 (1998) and Regulation, 2056 (1999), thus, the order of the Registrar of this court to refuse the registration of the writ petition, on 14 Falgun 2061 (2004) does not seem appropriate and lawful. Therefore, the refusal order is hereby declared void, and it is hereby ordered for the submission of the writ petition brought by the petitioner for registration by registering pursuant to the Rule.

We concur above decision.

Chief Justice Hari Prasad Sharma

Justice Bhairav Prasad Lamsal

Justice Meen Bahadur Rayamajhi

Justice Anup Raj Sharma

Justice Balaram K.C.

Done on 18th Chaitra, 2061 B.S. (31st March, 2005)

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The most torturing practice of sending women in isolation for more than 7 days without food and clothes during menstruation period is declared crime against humanity which is ended by issuing a writ of mandamus by Supreme Court.

**Supreme Court, Division Bench
Hon'ble Justice Anup Raj Sharma
Hon'ble Justice Arjun Prasad Singh**

Order

Writ No: 3303 of the year 2061

Case: Mandamus and others.

Petitioners: Dil Bahadur Bishwokarma, on behalf of Dalit NGO Federation (DNF) et. al.
Respondents: Office of the Prime Minister and Council of Ministers et.al.

- His Majesty Government, Office of the Prime Minister and Council of Ministers, within a month from the date of receipt of this order are obliged to declare that the tradition of sending menstruated women in *Chaupadi* home is a wrong trend.
- Ministry of Health shall form a study committee consisting of doctors, *inter alia* and submit report as early as possible, to the Ministry of Health and Supreme Court, which identifies actions to be taken about health by assessing the possible impacts likely to be occurred the same in future among women and children in places and districts where *Chaupadi* system is prevalent.
- Ministry of Local Development is obliged to issue direction to mobilize local bodies in order to raise public awareness against *Chaupadi* system.

Anup Raj Sharma, J.: The brief facts of the writ petition submitted under Articles 23 and 88(2) of the Constitution of the Kingdom of Nepal, 2047 (1990), and the order issued there upon is as follows:

The writ petitioners have made a claim that a social tradition based on superstition and wrong social usages is still prevalent throughout the Kingdom of Nepal, particularly all districts of far-western region, most of the districts of mid-western region, *Mahottari* districts, where women are severely tortured inflicted pains and compelled to stay in a shed, where buffalos, cows, goats etc are kept, or in a shed located near cow-shed known as *Chaupadi Goth'*, (*Chaupadi* home), without food, in a monotonous, and stigmatized unhealthy environment far from home, society and family during their routine menstruation period. A natural as well as biological process in women which is thought impure used to be kept in *Chaupadi* home every month. The women who live in *Chaupadi* homes are also deprived from all kinds of domestic utilities. They are kept in isolation beyond the contact from family and society. They are allowed only used bread with salt and chilly for food, and are deprived from consuming other hygienic food stuffs. They are forced to live in dirty, hazardous and unpleasant *Chaupadi* home with cattle and beasts without bed and other clean cloths, compelled to stay and sleep on hay, local mat (*Gundri*-made by straw), sacks etc. Physical weaknesses, social stigmatization,

malnutrition and other noticeable infectious vulnerable diseases are common phenomenon to such women.

The preamble of the constitution of the Kingdom of Nepal, 2047 has provided political, economic and social justice with protection of the basic human rights of citizens and establishment of the Rule of Law. The Constitution has guaranteed the right to equality by Article 11 and non- deprivation of individual freedoms by Article 12(1). Due to such ill –treatment of sending women in the *Chaupadi* home, women are being deprived from enjoying their fundamental rights guaranteed by the Constitution, including right to life, individual liberty etc, for which respondents are responsible. However, respondents are not showing any attention in this respect. For the safeguard of above mentioned rights of women and safety of their life from that *Chaupadi* system, it is required to initiate following actions immediately, for which, we, under Article 23, 88(2) of the Constitution of the Kingdom of Nepal, pray for the issuance of a writ of mandamus and other appropriate orders, decree etc in the name of respondents.

- Enact and enforce law for prevention of *Chaupadi* system, and other discriminatory practices against women in the period of menstruation.
- Declare abolition of *Chaupadi* system and all other disparities against women during menstruation and give wide publicity.
- Form a study committee consisting of doctors *inter alia*, in order to identify the places where *Chaupadi* system has been practised, and, initiate various health Programmes, to carry study and determine the on health condition of women and children resulting from this system.
- Operate and execute the awareness related programmes, to raise public awareness in order to bring to end the acts of sending women to the *Chaupadi* home in the time of menstruation.
- Direct His Majesty the Government, Ministry of Local Development and all local bodies under it, to work out awareness programmes by the responsible local bodies, because it is necessary to carry out such programmes from local level to pursue the application of local Self-Governance Act.

- Issue guidelines by the Court itself in order to fulfill the lacking until the new enactment in order to stop discrimination against women and operate awareness programmes during the menstruation period, locally.
- Give special priority in hearing this case under Rule, 38 of the Supreme Court Regulation, 2049, since it is a serious public interest case, because the exigency to work immediately toward the life, health and self-importance of women and awareness related Programmes as demanded in the writ petition.

This Court orders to serve a notice enclosing a copy of the petition to the respondents to furnish their written response through the Office of the Attorney General, Nepal, for the knowledge of the same within 15 days as to why an order should not be passed as prayed by the petitioners. And, Court further orders that the special priority be given to this case after written reply of the respondents, since the issue raised by the petitioners is concerned with the right to life of women.

The separate written reply submitted by the Office of the Prime Minister and Council of Ministers, Ministry of Health, Ministry of Information and Communication in the same vein stated that it has not been made clear in the writ petition about what actions taken by this Office has violated the Petitioners' right. The Petition filed by making respondents to this Office without reason and basis should be dismissed.

The written reply submitted by Ministry of Women Children and Social Welfare, Ministry of local Development and Ministry of Education and Sport, stated that the Department of Women Development under this Ministry of Women Children and Social Welfare has been conducting various awareness and social consciousness raising Programmes among rural women in order to mitigate the wrong tradition, injustices and discriminatory practices in society. The plea made in the petition can not be realized because empowering of women economically enabling them through these Programmes will help abolish the wrong social usages as *Chaupadi*. A documentary film is being made aiming to enhance people's consciousness about the impact of *Chaupadi* system in women's social, physical, economical status and health. Various programmes ranging from local to policy level have been carrying out in order to eliminate of all kinds of discriminations against women, and, by conducting such programmes by giving emphasis on gender issue and raising peoples' consciousness level, these

discriminatory behaviors could be eliminated. Hence, the writ petition founded on the baseless argument should be dismissed.

The written reply submitted by the Ministry of Home stated that there is no dispute that the social ills, like *Chaupadi* system, should be eliminated from its root. These kinds of wrong cultural phenomenon depend upon the level of thinking, perception and feelings of the person, and, that could gradually be eliminated by widening and raising social awareness. No writ could be passing in such matter; hence, it should be dismissed.

This case which is submitted before this Bench for decision after it is duly published in daily cause list, the learned advocates Raju Prasad Chapagain, Meera Dhungana, Tika Ram Bhattarai and Tek Tamrakar, appearing on behalf of the petitioners, argued that in the districts of far-western region, women still are being kept in *Chaupadi* home and stigmatized by family and society during her menstruation. Due to this women are being suffered from malnutrition and physical weaknesses. In order to discontinue such trends, appropriate orders including *mandamus* be issued in the name of respondents until fresh enactment and implement awareness programmes in order to raise public awareness against these discriminations. Likewise, on behalf of respondents Deputy Attorney Brajesh Pyakurel pleaded that respondents including Ministry of Women Children and Social Welfare, clarified that various awareness programmes have been carrying out in order to eliminate discriminations against women during menstruation period. They can not be eliminated only by making law or by issuing directive orders. Therefore, the writ petition should be dismissed.

After having heard the pleadings of the learned legal practitioners and going through the files of the present case now it has to derive a conclusion on whether or not the orders as demanded by the petitioners should be issued.

While considering upon the judgment to be reached it has revealed from the respondents that the discriminatory practice against women during menstruation period, compulsion of their stay in *Chaupadi* home, deprivation from consuming hygienic food etc in Nepal including the districts of far-western region *inter alia*, the writ petitioners had demanded to immediately issue orders including *mandamus*, to enact and enforce law in order to prevent the discriminatory behaviors, and by declaring the end of discriminations, make publicity thereof in order to prevent the said discriminatory

practices. Respondents have contended that various awareness programmes are in on for prevention of such discriminatory practices, as demanded by the petitioners. And these types of discriminatory practices could not be stopped by merely enacting law; hence, the writ petition is requested to be dismissed.

While considering on whether or not the discriminatory practices against women during menstruation exist, compelled to stay at *Chaupadi* home, deprived in eating nutritious food etc in districts of far-western region, as claimed by the petitioners, Court observed that, in the Daily Newspaper 'Rajdhani' dated 2061/01/11, has published a news that during menstruation, women are kept in *Chaupadi* home for seven days like a custody for prisoner in the hilly districts of far-western region. Even they are beaten by their husband in order to forcefully sending her in *Chaupadi* home. They are not allowed to consume milk, curd, butter etc. They can't touch those things. They are compelled to pass these seven days living on used bread, salt and chilly. They are prevented to use water taps or ponds etc. The Kantipur Daily, in its editorial headline writes "women against *Chaupadi*". It has been mentioned that, in hilly districts of far-western region, in the period of delivery and menstruation women have faced hazardous of diseases, torture and even death, due to their forced stay in dirty and unsecured places. Likewise, similar news has been published in Annapurna Post bearing the date of 2060/11/6 which writes, Menstruated women (*Chui Vayaki Mahilala*) have to pass the nights at *Chaupadi* home." Taking into account these news published in the aforementioned newspapers, there is no doubt that there is the existence of *Chaupadi* system in the districts of far- western region, and women are forced to stay in the *Chaupadi* home in the period of menstruation. Considering on the steps brought about by the government toward preventing this system, Ministry of Women, Children and Social Welfare has mentioned in its written reply that simply awareness based programmes have been carrying out by the Department of Women Development in order to change the discriminatory behaviors and traditional-social ills, however, there are no clear mention in the reply about how the said programmes are being carrying out? And, no substantial evidences have been put forward which shows any concrete steps taken so far with structural arrangement in order to prevent such ills. It appears that women in the districts of far-western region are being kept in *Chaupadi* home in the time of menstruation, and effective measures have not been found adopted by the respondents in order to prevent such discriminatory practices. Therefore, the following directive orders deems appropriate to be issued in the name of respondents:

- a) His Majesty Government, Office of the Prime Minister and Council of Ministers, within a month from the date of receipt of this order are obliged to declare that the tradition of sending menstruated women in *Chaupadi* home is a wrong trend.
- b) Ministry of Health shall form a study committee consisting of doctors, *inter alia* and submit report as early as possible, to the Ministry of Health and Supreme Court, which identifies actions to be taken about health by assessing the possible impacts likely to be occurred the same in future among women and children in places and districts where *Chaupadi* system is prevalent.
- c) Ministry of Local Development is obliged to issue direction to mobilize local bodies in order to raise public awareness against *Chaupadi* system.
- d) His Majesty Government, Ministry of Women Children and Social Welfare shall issue directive and implement or make arrangement for implementing the said directive making a Guideline within three months from the date of receipt of this order in order to prevent all kinds of discriminations against women under the *Chaupadi* system, and inform the matter thereof to Supreme Court, accordingly.
- e) Since the House of Representatives is not working at the moment to execute aforementioned actions and make law by conducting extensive study, if necessary. Since the petitioners are from among the non-government organizations, they also are expected to initiate appropriate steps toward the operation of wide-ranging programmes in this respect.

The copy of the order shall be provided to the respondents for their knowledge through the Office of the Attorney General and this file be handed over as per the rule.

I concur above decision.

Justice Arjun Prasad Singh

Done on 19th Baisakh, 2062 B.S. (2nd May 2005)

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Arrangements for the establishment of juvenile bench, stating its scope and jurisdiction, modus operandi for hearing along with a provision of necessary manpower is made by respecting Article 12(2) of the convention on the Right of the Child 1989.

Supreme Court, Special Bench
Hon'ble Justice Ram Nagina Singh
Hon'ble Justice Anup Raj Sharma
Hon'ble Justice Gauri Dhakal

Order

Special Writ No.60 of the year 2004

Subject: Requesting for appropriate order including mandamus pursuant to Article 23, 88 (1) and 88(2) of the Constitution of the Kingdom of Nepal, 1990.

Petitioner: Advocate Shantosh Kumar Mahato aged 27, resident of Mahottari district, Suga Bhawanipatti VDC Ward No. 6 and presently living in Kathmandu district, Kathmandu Metropolitan City Ward No. 10 New Baneshwor

Vs.

Respondent: Office of the Prime Minister and the Cabinet, Singhadurbar et.al.

- Juvenile Bench is not a permanent solution or structure rather it is an *ad hoc* mechanism until the permanent Juvenile Court is constituted. The duty of the government could not be fulfilled merely constituting the Juvenile Bench; it remains until and unless the main structure or Juvenile Court is established.
- Attention of the government should go towards the fact that obligation of the Government cannot be fulfilled by a temporary mechanism in context of written commitments expressed five years back towards establishment of Juvenile Court as well as priority given by the Act.

Ram Nagina Singh, J, A brief description of the fact and order of the writ petition filed under and Article 23, 88(1) and (2) of the Constitution of the Kingdom of Nepal, 1990 is as follows:

Children's Act, 1991 came into force from the date of April 13, 1993 and the Children's Rules, 1995 from the date of January 16, 1995 for the protection of rights and interests of the children and their physical, mental and intellectual advancement. Section 55 of the Children's Act lays down procedures relating to hearing of cases and the authorities to which children are plaintiff and defendants. Clause (1) of the Section 55 stipulates the formation of Juvenile Court through a notification in Nepal gazette by His Majesty's Government, Clause (2) provides for original jurisdiction of Juvenile Court in cases where children are plaintiff and defendants, Clause (3) empowers the District Courts for trial of those cases until the Juvenile Court is constituted. Likewise, Clause (4) contains for Juvenile Bench in each District Court for trial and disposal of cases to be heard by the Juvenile Court, Clause (5) provides for composition of Juvenile Bench comprising social worker/activists, child specialist or child psychologists in addition to District Judge and such a composition has to be done by His Majesty's Government in consultation with Supreme Court. Clause (6) determines the procedures for trial and disposal of cases to be heard by Juvenile Court or District Court as prescribed in the Summary Proceedings Act, 1971 (2028) until such procedures are prescribed.

In context of non-composition of Juvenile Court, under Section 55(1), Ministry of Women, Children and Social Welfare constituted a Juvenile Bench in each District Court consisting of the District Judge through a notification published in Nepal gazette dated April 10, 2000 that came into effect from April 13, 2000 pursuant to Clause (4) and (5) of the Children's Act. The petitioner being a citizen of Nepal, having a meaningful relation with right and interest of child, claimed for composition of Juvenile Court pursuant to Section 55 (1) of the Children's Act, 1991 and also contended to declare the notice null and void being inconsistent with Article 11 of the Constitution of the Kingdom of Nepal 1990, Section 55(5) of the Children's Act, 1991 and Article 12 and 40 of the Convention on the Right of the Child, 1989.

The Proviso to Article 11(3) of the constitution stipulates that special provision may be made by law for the protection and promotion of right and interest of the child. While constituting the Juvenile Bench pursuant to Section 55(5) of the Children's Act, 1991, the Bench shall comprise the child specialist or child psychologist and social

worker/activist in addition to the District Judge. But, the notification of April 10, 2000 comprised only the District Judge in the Juvenile Bench which is contrary to the Proviso to Article 11 (3) of the constitution and Section 55(5) of the Children's Act, 1991. It is also contravening to Article 12 of the Convention on the Rights of the Child. Article 12 of the convention guarantees that opportunity shall be provided to the child in any judicial and administrative proceeding affecting them either directly or through representative or an appropriate body in the manner consistent with the procedural rules of national laws. Article 40 (3) of the convention obliges state party to promote the establishment of laws, procedures, authorities and institutions specifically applicable to children alleged as, accused of or recognized as breaking the penal law. Thus the notification contravenes the provision of the convention to which Nepal has ratified on September 14, 1990 and is equally enforceable as Nepal law by virtue of Section 9 (1) of the Nepal Treaty Act, 1990. Therefore, the notice should be declared as null and void pursuant to Article 88 (1) of the constitution.

The written response submitted on April 19, 1998 by the respondent Ministry of Women, Children and Social Welfare on the writ petition No. 2982 of the year 1997 filed by the petitioner advocate *Balakrishna Mainali vs. Ministry of Women, Children and Social Welfare and others*, assured that establishment of Juvenile Court will be made sooner. On the basis of that commitment, the writ petition was dismissed on May 16, 2000 by this court stating that necessary arrangement would have been taken after fulfillment of physical infrastructure and human resources in the constitution of Juvenile Court and after fulfilling the requirement the court will be constituted gradually and on priority basis. But the commitments made by the respondents on April 19, 1998 through written response before this court have not been fulfilled, more than six years have passed and establishment of Juvenile Court pursuant to Section 55 (1) of the Children's Act could not be materialized, therefore the respondents are unable to fulfill their obligation as per the decision of the court and their written commitments expressed before this Court. Similarly, Judgment Monitoring Section has been constituted in context of non-implementation of orders of the Supreme Court smoothly and in true sense. The function of the Monitoring Section is not only implementing the judgment/orders of the court but also to study the causes and consequences of the dismissal of writ petition. It was not necessary to file this writ petition if the Monitoring Section would have been able to execute the order of this court dated May 16, 2000.

As mentioned above, the notification relating to composition of Juvenile Bench published in Nepal gazette on April 10, 2000 should be declared as null and void pursuant to Article 88 (1) of the Constitution of the Kingdom of Nepal, 1990. An order of mandamus should be issued in the name of respondents to constitute the juvenile Court pursuant to Section 55 (1) of the Children's Act as per the written response and commitments of the respondents and until such court is constituted, the Juvenile Bench comprising anyone specialist among social worker/ activists, child specialist or child psychologist in addition to District Judge, should be constituted pursuant to Section 55(5) of the Children's Act, 1991. An order of mandamus should be issued in the name of Judgment Monitoring Section for proper implementation of orders issued by the Supreme Court pursuant to Article 88(2) of the constitution and taking into consideration the subject matter and impacts of the issue raised by the petitioner, the writ should be placed in priority pursuant to the Rule 5A. of the Supreme Court Rules, 1992. This is the main contention of the writ petition.

For the submission of written response by the respondents, the show cause order issued by the court granting 15 days time limit or to be submitted in special bench after the elapse of given time limit.

No right and interest of the petitioner have been violated through the function and business of this Section. Decision and order of the court have been properly implemented and monitored as per the legal provision by this Section. Therefore, there is no rationale of issuing orders as claimed by the petitioner and the petition should be dismissed. This is the written response of the Judgment Monitoring Section of the Supreme Court.

The Petitioner does not mention the actions of the Office of the Prime Minister and the Cabinet liable to violate the rights of the petitioner, without any reasonable cause and bases the writ is filed against this office. Therefore, the writ should be dismissed. This is mentioned in the written response of the Office of the Prime Minister and the Cabinet.

The formation of Juvenile Bench does not prejudice the letter and spirit of the Section 55 of the Children's Act, 1991. For the purpose of constituting the Juvenile Bench, the Ministry of Law and Justice requested for the approval of the Supreme Court. Decision of the Full Court dated January 6, 1999 approved for its establishment as stated in the letter reference No. 631 and dated January 17, 1999 of the

Ministry of Law and Justice. In compliance of the approval of the Supreme Court and the spirit of the Convention on the Right of the Child, Juvenile Bench has been constituted in the 75 districts of Nepal and the cases to which children are plaintiff and defendants are being tried and decided. The petitioner does not mention about the constitutional and legal rights infringed through the provision pertaining to composition of Juvenile Bench. Therefore, the writ petition, without having any subjective ground should be dismissed. This is the written response submitted by Ministry of Women, Children and Social Welfare.

Each Clauses of Section 55 of the Children's Act, 1991 should be taken collectively but not separately. Main intention of the Section is to constitute Juvenile Court and until such court is constituted, the cases will be heard by the District Court comprising separate Juvenile Bench for the purpose of trial and disposal of cases in which children are plaintiff and defendants. Similarly, Clause (5) of the Section 55 provides that His Majesty's Government, in consultation with Supreme Court, shall determine the procedure of composition of Juvenile Bench. While constituting such Bench, social worker/activists, child specialist or child psychologists may be included in addition to the District Judges. The provision is mandatory in the sense that each District Court comprises the Juvenile Bench until the Juvenile Court is established. Comprising social worker/activist, child specialist or child psychologists is one of the subject matter depending on practicality rather than mandatory. The nature of notification relating to constitution of Juvenile Bench is temporary not a permanent one. Practically speaking, the availability of social worker/activist, child specialist and child psychologist in each district is quite difficult. Therefore, it is appropriate to constitute a Juvenile Bench comprising the District Judge. His Majesty's Government, Ministry of Women, children and social welfare constituted the Juvenile Bench for the purpose of proper and effective hearing of cases to which children are involved. In the course of hearing the cases, the Juvenile Bench should comply with the procedures determined by law that is why the rights of the child are protected. It is not logical and valid to say that the composition of Juvenile Bench was contrary to the constitution, law and the Convention of the Right of the Child. Therefore, the writ petition should be dismissed as stated in the written response of the Ministry of Law, Justice and Parliamentary Affairs.

In the present writ petition scheduled for today in the cause list as per the rule, petitioner himself and on behalf of him learned advocate Madhav Kumar Basnet argued that the Convention of the Right of the

Child, 1989 came into force in Nepal after its ratification on September 14, 1990. Article 12 and 40 of the convention, *inter alia* stipulates some provisions relating to Juvenile Court. Particularly, Article 12 (2) oblige state party to provide opportunity to the child to be heard in any judicial and administrative proceedings affecting the child, either directly, or through a representative or an appropriate body, in a manner consistent with the procedures of national law. Article 40 (3) on the other hand, makes responsible for state parties to promote the establishment of laws, procedures, authorities and institutions specifically applicable to children alleged as, accused off, or recognized as having infringed the penal law. Since the Section 55 of the Children's Act, 1991, guarantees for establishment of Juvenile Court, in the process of hearing and disposal of cases in which children are plaintiff and defendants, but it is the matter of concern that the court has not been established yet.

The notification published in Nepal gazette dated April 10, 2000 regarding the constitution of Juvenile Bench, did not include social worker/activist, child specialist or child psychologist. Therefore, composition of the bench is erroneous. Since the convention obliges the state parties to promote separate authorities and institution specifically applicable to children in which they are plaintiff and defendants. Hearing of Juvenile cases through the traditional judicial system and its procedures is contrary to the convention. Despite our efforts from 1993, the Juvenile Court has not established yet. The written response submitted by the respondent on the writ petition No. 2982 of the year 1997, assured to constitute the Juvenile Bench sooner, on the bases of that response the writ was dismissed, but the court could not be constituted till the date. The respondents are unable to fulfill their commitments. Monitoring Section of the Supreme Court could not effectively monitor the lapses. Therefore, learned advocate concluded, the notification of April 10, 2000 relating to composition of Juvenile Bench is contrary to the Proviso to Article 11(3) of the Constitution of the Kingdom of Nepal 1990, Article 12(2) and 40(3) of the Convention of the Right of the Child and Section 55 of the Children's Act, 1991, it should be declared as null and void and an order of mandamus should be issued to constitute the Juvenile Court in the name of His Majesty's Government as well as effective implementation of order of the Supreme Court in the name of Judgment Monitoring Section.

Presenting his arguments on behalf of the respondent, learned Deputy Attorney General Narendra Prasad Pathak contended that Children's Act, 1991 came into existence for the purpose of fulfilling the objective

of the Proviso to Article 11(3) of the Constitution. The petitioner does not mention that how the notification relating to the composition of Juvenile Bench published by Ministry of Women, Children and Social Welfare was contrary to the Proviso to Article 11(3) of the constitution. Juvenile Bench was established as a separate institution pursuant to the Convention of the Right of the Child, 1989. Composition of the Bench is compatible with the provision of the convention and the Act. The issue of Juvenile Court was already settled by this court on May 16, 2000. Composition of Juvenile Bench was performed until the establishment of Juvenile Court in consultation with Supreme Court pursuant to Section 55 of the Children's Act. There is no legal compulsion of comprising with social worker/ activist or child specialist in Juvenile Bench. Considering the present situation of the country, availability of such human resource is difficult. Efforts have been made by His Majesty's Government for the establishment of Juvenile Court. At present, the composition under the chairmanship of District Judge is reasonable and legitimate. Therefore, the writ petition should be dismissed, he argued.

Taking into consideration the arguments, going through the writ petition, written response, relevant laws, and notification concerning the composition of Juvenile Bench and its procedures and the judgment delivered by this court, in present case, the decision should be made on the following questions:

1. Whether or not the notification of April 10, 2000 issued by His Majesty's Government was inconsistent with the Constitution of the Kingdom of Nepal, 1990, Convention on the Rights of the Child, 1989 and Children's Act, 1991?
2. Whether the writ of mandamus should be issued or not as per the demand of the petitioner?

Considering the first question, the petitioner has contended the notification of April 10, 2000 issued by His Majesty's Government, Ministry of Women, Children and Social Welfare in Nepal gazette containing; *"it is hereby notified that His Majesty's Government has decided to constitute a Juvenile Bench comprising the District Judge in each district of the Kingdom of Nepal effective from April 14, 1990 pursuant to Section 55 of the Children's Act, 1991"*, is inconsistent with the Proviso to Article 11(3) of the Constitution of the Kingdom of Nepal 1990, Clause (5) of the Section 55 of the Children's Act, 1991 and Article 12 (2) and 40 (3) (b) of the Convention on the Right of the

Child, 1989. Therefore, it should be declared as null and void pursuant to Article 88(1) of the constitution. This is the main contention of the petitioner.

The Proviso to Article 11(3) of the Constitution of the Kingdom of Nepal, 1990 stipulates that special provision may be made by law for the protection and advancement of the interest of women, children, the aged or those who are physically or mentally incapacitated or those who belong to a class which is economically, socially or educationally backward. Children's Act, 1991 was enacted and came into force for the advancement of ever growing physical, mental and intellectual capacities of the child and protection of their rights and interest as stipulated in the Preamble of the Act. Likewise, the Convention on the Right of the child, 1989 to which Nepal has ratified on September 14, 1990 also contains the provision for special protection of right and interest of the child. There is no debate and dilemma in the fact that ratification and accession of the Convention on the Right of the Child, 1989 was for the special protection of the child. Similarly, Children's Act came into existence for special protection and advancement of the child mandated by the constitution.

Section 55 of the Children's Act provides procedures and case hearing authorities falling under the Act. Clause (1) of the Section 55 empowers His Majesty's Government shall constitute the Juvenile Court through a notification in Nepal gazette as per the necessity. Such a notification also specifies the territorial area and location of the court. Clause (3) determines the jurisdiction of the District Court until the Juvenile Court is constituted in cases where children are plaintiff and defendants. Clause (4) specifies for transfer of cases from the District Court to the Juvenile Court and Clause (5) gives discretion to His Majesty's Government in Composition of Juvenile Bench comprising social worker/ activists, child specialist or child psychologists in addition to District Judge for the purpose of trial and disposal of child related cases. While constituting the Juvenile Bench, consultation with the Supreme Court is mandatory. Clause (6) of the same Section provides procedures for hearing and disposal of cases. Procedures shall be determined as specified and till such procedures are specified, the procedures of the Summary Proceeding Act, 1971 shall be applicable.

Article 12(2) of the Convention on the Right of the Child, 1989 provides opportunity for the child to be heard in any judicial and administrative proceedings affecting them in a manner consistent with the procedures of national law. Likewise, Article 40(3) of the convention obliges state parties to promote the establishment of laws, procedures, authorities and institutions specifically applicable to children alleged as, accused off, or recognized as having infringed the penal law.

The aforementioned constitutional and legal provisions claimed by the petitioner do not appear as to be inconsistent each other. There is no debate in the fact that all the provisions are targeted for the special protection and advancement of the children. The notice issued by His Majesty's Government in Nepal gazette on April 10, 2000 is to implement the Section 55 of the Children's Act 1991. Main objective of the Section is to establish Juvenile Court for trial and disposal of cases to which children are involved. The notice cannot be said as contrary to the constitutional and legal provision because the Juvenile Bench is constituted in each District Court of Nepal for the purpose of trial and disposal of cases temporarily pursuant to the mandate and procedures contained in the Section 55 of the Act, until the Juvenile Court is established throughout Nepal. Considering the aforementioned ground, the notification issued by His Majesty's Government, in consultation with the Supreme Court relating to the composition of Juvenile Bench is, in compliance with the authority mandated by the Act and cannot be taken as inconsistent and/or contravening the Proviso to the Article 11(3) of the Constitution, Article 12(2) and 40(3) of the Convention and Section 55 of the Children's Act, 1991.

Considering upon the second question, the petitioner has demanded mandamus in the name of Judgment Monitoring Section of the Supreme Court alleging that His Majesty's Government did not fulfill the obligation of constituting Juvenile Court pursuant to Section 55(1) of the Act as per the commitment expressed in the written response filed in the writ petition of the year 1997. He also claimed for including social worker/activist, child specialist or child psychologist in the Juvenile Bench until the Juvenile Court is constituted. This is the second contention of the petitioner.

Section 55(1) of the Children's Act, 1991 stipulates that His Majesty's Government shall, as per the necessity, constitute a Juvenile Court through a notification in Nepal gazette. Main objective of the Act is to establish a Juvenile Court. Implementing the legal provision relating to composition of Juvenile Court, petition No. 2982 of the year 1997 petitioner advocate Bal Krishna Mainali filed a writ petition against the Ministry of Women, Children and Social Welfare and others. The writ petition was dismissed by the Division Bench of this court on May 16, 2000 on the ground that the Juvenile Bench was constituted recently and the written response submitted by the respondent Cabinet Secretariat and Ministry of Women, Children and Social Welfare expressed their commitment towards establishment of Juvenile Court as per the availability of human and physical infrastructure gradually. But the commitment expressed by the government in the writ petition did not materialized.

It is not expedient to say that the privilege of the Act given to the Government for the time being is forever and should be kept on *status quo*. The legal provision concerning to the composition of Juvenile Court is mandatory for trial and disposal of cases relating to the child. There seems no immunity to the Government in compliance of this duty. The privilege of the government is to constitute the Juvenile Court as may be required, but not to negate it. Juvenile Bench is not a permanent solution or structure rather it is an *ad hoc* mechanism until the permanent Juvenile Court is constituted. The duty of the government could not be fulfilled merely constituting the Juvenile Bench; it remains until and unless the main structure or Juvenile Court is established. Attention of the government should go towards the fact that obligation of the Government cannot be fulfilled by a temporary mechanism in context of written commitments expressed five years back towards establishment of Juvenile Court as well as priority given by the Act.

Function of the Judgment Monitoring Section is to keep records of the final decision and orders of the court to be executed by the subordinate courts and to make necessary management for smooth implementation of the final decision and orders of the Supreme Court and to monitor the decision whether they are properly implemented or not. Part (c) of the sub-Rule (e) of Rule 115(1) of the Supreme Court Rules, 1992 has determined the function of the Judgment Execution Branch subordinate to the Judgment Monitoring Section. The

petitioner proceeds before this court with a writ petition alleging as non-monitoring the earlier judgment of this court. Attention should be given towards this matter by the Judgment Monitoring Section subordinate to the Inspection and Monitoring Section.

The petitioner also contended for alternative demand of mandamus alleging that it was erroneous in the composition of Juvenile Bench which excluded social worker/activist, child specialist or child psychologist. In the composition of Juvenile Bench social worker/activist, child specialist or child psychologist should be included in addition to District Judge. While considering the legal provision of Section 55(5) of the Children's Act, it is stated that in composition of Juvenile Bench, social workers/activist, and child specialist or child psychologist may be included in addition to District Judge. It is clear that inclusion of such specialist is discretionary rather than mandatory and it depends upon the availability of human resources of this type. Thus it is needless to speak anything more over this matter.

Therefore, as mentioned earlier, it seems that to constitute the Juvenile Court pursuant to Section 55(1) of the Children's Act, 1991 is an obligation of the Government. Hence, a directory order in the name of respondent Office of the Prime Minister and the Cabinet is, hereby issued to gear up the function of establishment of Juvenile Court pursuant to the legal provision and let the notice of the progress be given to the Judgment Execution Section subordinate to the Monitoring and Inspection Division of this Court. Likewise, a directory order in the name of Monitoring and Inspection Division of this court is, hereby issued for effective monitoring of establishment of Juvenile Court. A copy of this order is to be sent for the notice of the respondent except the Judgment Monitoring Section through the Office of the Attorney General and a copy of the order is to directly be sent to the Judgment Monitoring Section (Monitoring and Inspection Division of Supreme Court) and the case file be deposited as per the rule.

We concur above decision.

Justice Anup Raj Sharma

Justice Gauri Dhakal

Done on 5th Mangsir, 2062 B.S. (24th November, 2005)

A mandatory provision requiring guardian's nod for issuing passport to women attaining mature age is hence forth declared inoperative and void.

**Supreme Court, Division Bench
Hon'ble Justice Badri Kumar Basnet
Hon'ble Justice Balaram K. C.**

Order

Writ No. 3355 of the year 2060

Case: Certiorari with Mandamus.

Petitioners: Punyawatee Pathak and Mana Basnet Karki.

Vs.

Respondents: His Majesty Government, Ministry of Foreign Affairs
et. al.

- **Immigration Act, Rules and Article 11 and 12 of the Constitution have not delegated the authority to His Majesty Government so as to specify the conditions only upon women that they could not get passport without the consent of the guardian. Therefore, it appears that the conditions laid by the decision of the Council of Ministers made in 2052/06/10 is found made without giving due consideration of the constitutional and legal provision.**
- **Any executive decision for providing any services and facilities, in putting women into hardship to the men, such decision will be considered against the established principles of rule of law and discriminatory, as well as excess of power and arbitrary even if it was enacted with using maximum bonafide intention.**
- **If women are denied to issue passport, unreasonable restriction would be laid women in the exercise of these freedoms. Without the authority of law no executive shall have power to reach a decision which results in deprivation of freedoms, women are being exercised.**

Balaram K.C, J: The brief fact of the writ petition submitted under Articles 23 and 88(2) of the Constitution of the Kingdom of Nepal, 2047 (1990), and orders issued thereupon is as follows:

We the petitioners have duly acquired the citizenship certificate of the Kingdom of Nepal and thus have been the Nepali citizens. After untimely demise of husband, right now we are passing life as a single woman. Despite we are compelled to bear pain of the untimely tragedy, we would like to live a meaningful life with dignity and courage. We are keen to utilize the opportunities of personality development through education, training and employment even by going abroad.

Since the passport was essential means of going aboard in order for utilizing the opportunities of personality development, we approached to the Office of Kathmandu District Administration to submit application form accompanying with the required photo and duplicate copy of citizenship certificate for the purpose of getting passport, however, we were replied that in the case of woman below 35 years of age, the application form of passport is accepted only after submission of consent letter signed by the guardian; otherwise the application form can't be accepted. In our query about why only women are needed guardian's pre-consent? In reply we had been shown a form stating, "I take full responsibility of her foreign visit and I request with my consent to provide passport to her", and, we were also declined to have registered the application form by saying that there was a circular by the Ministry that the said application form should be registered only after compulsory submission of an affidavit in which guardian consent has been conferred.

Because of such a flat denial upon our request, we are deprived of the constitutional and legal right to hold passport as a citizen, in spite of our petitions, including addressing to Chief District Officer as well as Secretary of Ministry of Affairs for providing passport without pursuing the provision that required guardian's consent, which is arbitrarily enforced without the authority of Immigration Act, 2024BS and Immigration Rules, 2059BS. The rights and interests of Nepali women including petitioners are apparently affected due to these arbitrary and illegal acts and actions of Respondents. Hence, we the petitioners ourselves and representing the rights and interests of the whole women have come to this Court with this petition in which public interest as well as our own individual rights and interests are attached with, under the Extra-Ordinary jurisdiction of this Court pursuing the Article 88(2) of the Constitution.

Passport is a genuine document to go abroad and exploiting the opportunities and facilities available therein. If unreasonable restriction is imposed by the state, citizens will be unable to exploit such opportunities available out of the country and impediments are created in multi-dimensional personality development. The provision that requires the guardian's consent to obtain passport is arbitrary and illegal which imposed unreasonable restriction against the right to go abroad. Immigration Act, 2024BS and Immigration Rules, 2059BS have not made different standard and process for obtaining passport between men and women. There are no conditions and restrictions imposed upon any competent woman to obtain passport in her own choice in the said Immigration Rules, except the provision of submission of passport on behalf of the minor and the person of unsound mind by the guardian according to the Rule 4 and 14. No legal provisions will receive legitimacy which unreasonably restricts the right to equality and individual freedoms. Reasonable restrictions could be made by the law against the right to go abroad for safety reasons and other appropriate circumstances; however, separate and discriminatory terms and conditions couldn't be imposed especially upon women on the basis of sex. The imposed restriction upon women in getting passport is fully against the Rule of Law.

Though the Article 11(3) has contained the provision allowing positive discrimination for empowerment of women, however, has strictly prohibited the negative discrimination. The classification made upon women in respect of getting passport is not fair, just and reasonable, but inequitable. This classification couldn't get legitimacy. Though, the Respondents have said that this restrictive measure is taken for the protection of women, however, such special protection should be in the interest of women, not in creating discrimination against women. The special protection provision envisioned in the constitution should widen the boundary of opportunities and freedoms of women not to narrow it. In respect of making women able and competent, the provision that required the consent of guardian to obtain passport shall not benefit, but hinders them from enjoying other freedoms, and rights. This hinders the personality development, deprives the right to co-existence, self determination and right to equal opportunity of the women, and also creates impediment to live with dignity. This provision which is based on the protectionist concept creates impediment and restriction in personality development of woman could not get legitimacy.

Article 13 (2) of universal Declaration of Human Right, 1948 Article 13(2) has protected the right of person for going abroad and return home therefrom. International Covenant on Civil and Political Rights, 1966 and Article 1 of International Covenant on Economic, Social and Cultural Rights, 1966 have made the provision of right of self-determination in respect of pursuing economic, social and cultural development. Likewise, in order to elimination of all forms of discrimination against women from its root, Convention on the Elimination of All forms of Discrimination against Women 1979 has determined the state obligation by broadly defining the term 'discrimination'. Article 15 of the said Convention has guaranteed the restriction on gender- based discrimination in freedom of movement.

Hence, the provision which requires the consent of guardian for women under the age of 35 in getting passport, has unreasonably restricted the right to go abroad on the basis of equality and freedom of movement, and, that provision is contradictory to the Constitution, judicial precedents, binding obligations created by the International Treaties and Conventions as well as justice, reason and good conscience; therefore it is requested that the prevailing arrangement and the decision taken in this regard be quashed by issuing an order of certiorari, and, issued appropriate order to create an environment for obtaining passport by woman at par with the man.

A single bench of this Court, on 5th Falgun, 2060 issues an order that a notice be served in the name of respondents to submit their written response within 15 days as to why an order should not be issued as prayed by the petitioners. Since the issue of this case is of public interest concerning to the gender justice the Court further orders that the special priority be given to this case after the written reply of the respondents is submitted.

The written reply submitted by the District Administration Office Kathmandu has stated that this Office has been distributing general passport by exercising the authority as provided by the Rule 7 (3) of Immigration Rules, 2059B.S, subject to the directions and orders issued time to time by the Ministry of Home and Ministry of Foreign Affairs. There is a practice of obtaining consent of the guardian (as is required) in the case of women under the age of 35 as mentioned in a circular letter issued by the Home Ministry, dated 2053/3/7. The petitioners' visit has not been recorded in this Office in course of applying for passport. Hence, the writ petition filed on the basis of imagination should be dismissed.

The written reply submitted by Office of the Prime Minister and Council of Ministers stated that it has not been made clear in the writ petition of what actions taken by this office has violated Petitioners' right. The Petition filed by making to this Office respondent without due reason and basis should be vacated.

The written reply submitted by the Ministry of Home, stated that the consent of the guardian is being received while providing the passport in the case of women below 35 of age according to the decision of the Council of Ministers dated 2052/9/10, and, it has also been decided that such consent is accepted which is certified by her husband, mother in law, father in law, father, mother, brother, sister in law or by the person who has been the custodian of such women.

The written reply submitted by Ministry of Women Children and Social Welfare stated that there is no sufficient reason to make to this Ministry a respondents by the Petitioners. The writ petition is not clear of what actions taken by this Ministry has violated Petitioners' constitutional and legal right. The review of discriminatory state Statutes and Rules is being done by constituting high level committee after ratification of International Conventions to which Nepal is a party including Convention on the Elimination of All forms of Discrimination against Women. The obligations determined upon state by the said Conventions are being fulfilled, so that, the petitioners' claim that this is contradictory to the provisions of International Conventions, is merely logic of subjective imagination. Hence, the writ petition should be dismissed.

The written reply submitted by the Ministry of Foreign Affairs, stated that Immigration Rules has made no provision that discriminate between men and women in distribution of passport, and, seems no reason for discrimination. Since there is no binding legal provision that requires guardian's consent, therefore, in order to cancel this system, a circular, dated 2061/01/02, has been issued by this Ministry to the Ministry of Home and all Consular offices to issue passport to the single women through a simple process without consent of guardian as request had made by the Ministry of Home, in this regard. Hence, it is requested to dismiss the writ petition.

While hearing this petition which is now presented before this Bench after being duly enlisted in daily cause list the learned advocates Prakash Mani Sharma, Raju Prasad Chapagain, Rama Panta Kharel and Kabita Pandey appearing on behalf of the petitioners, argued that the co-existence, self-determination and self respect of men and

women has equally recognized by the Resolution concerning to the Right to Development, approved by the United Nation Organization in 1985. The decision of the Council of Ministers, dated 2052/9/10, and prevailing system in relation to this decision requiring guardian's consent for obtaining passport for the women below the age of 35, has hindered, the co-existence, self-determination and self-respect of women by discriminating them. It has tumbled them in their multidimensional personality development. In a circumstance while world is transformed into a global village by the development of means of transportation and communication, if unreasonable restriction is imposed upon movement, nobody can meaningfully enjoy the fundamental rights and liberties, as well as it culminates misfortune of being deprived of enjoying the opportunities of multidimensional personality development.

It has been accepted in the written reply of Ministry of Foreign Affairs that the binding provision which requires guardian's consent in getting passport is discriminatory against women and it needs to be altered. It has also been acknowledged by this written reply that the Immigration Act and Immigration Rules have not made discrimination between men and women in issuing passport and there is no reason for discrimination. This restrictive provision which has been made in getting passport for the women discriminates between men and women on the basis of sex; so that, this is not fair, just and reasonable, but hostile to the women. Such provision couldn't get legitimacy. Special provision may however, be made for empowerment of women by virtue of Article 11(3) of the Constitution; however such provision should be intended in making woman able and competent, and should broaden the boundary of opportunities and freedoms. However, this provision does not make women able and competent, rather hinders them from enjoying other freedoms, rights and claims. Such sorts of provision will enable to incur discrimination against women. According to the Universal Declaration of Human Right, 1948 the right to go abroad should be protected. International Covenant on Civil and Political Rights, 1966 and International Covenant on Economic, Social and Cultural Rights, 1966 have made the provision of right to self-determination for all citizens. Convention on the Elimination of All forms of Discrimination against Women, 1979, by prohibiting all forms of discrimination, has determined the state obligation in order to eliminate such discrimination from its root. The Convention has also guaranteed the prohibition of gender based discrimination against freedom of movement.

Hence, the provision which requires the consent of guardian for women below the age of 35 in getting passport has unreasonably restricted the right to go abroad on the basis of equality and freedom of movement. And, the provision and decisions which have been made in this regard, because of its inconsistency to the Constitution, prevailing law, principles established by this Court and International Conventions, is requested to be quashed by the order of *certiorari*. Since this honorable Court has power to impart full justice, appropriate order is requested to be issued in the name of respondents in order to make such a provision in which women could get passport at par with the men.

The learned Joint-Attorney Saroj Prasad Gautam, appearing on behalf of the respondents including Ministry of Home, contended that this measure requiring the guardian's consent for women in getting passport, has been taken simply for the protection of women below the age of 35 according to the spirit of the welfare state. The writ could not be issued, because the decision in this respect has been taken by the state observing the necessity to protect them.

The writ petition which is presented before this bench today for hearing have made a claim that the decision of the Council of Ministers, dated 052/9/10, regarding the provision relating to women under the age of 35, who may get passport only after guardian's declaration and recommendation together with taking full responsibility of her foreign tour, has violated the petitioners right to go abroad and freedom of movement provided by the Constitution, is requested to be quashed by issuing the order of *certiorari*. The following facts are found involved in this to be decided in this case:

1. Whether or not the decision taken on 10th Poush, 2052, by the Council of Ministers, requiring guardian's consent for obtaining passport by women under the age of 35, is consistent with the Constitution and the Law.
2. Whether or not an order as demanded by the petitioners could be issued?

While dealing with first question it is pertinent to consider about meaning, importance and purpose of passport. The term passport has been defined in Section 2 of the Immigration Act, 2024BS which states, "*Passport means a document issued by His Majesty government permitting Nepali citizen going to visit foreign countries, by specifying the name of such countries and duration of the visit.*" In Black's Law Dictionary (eighth edition), by defining the term passport

has stated, "A formal document certifying a person's identity and citizenship so that the person may travel to and from a foreign country."

Likewise, Encyclopedia Britannica (Britannica Ready Reference Encyclopedia 2005) states the term 'passport' has been defined in the terms: "*document issued by the national government identifying a traveler as a citizen with a right to protection while abroad and right to return to the country of citizenship. It is normally a small booklet containing a description and photograph of the bearer. Most nations require entering travelers to obtain a visa, an endorsement on the passport showing that the proper authorities have examined it and permitting the bearer to enter the country and remain for a specified period.*"

From the above definition it is obvious that passport is a document in which name and nationality is written of concern person that identify the bearer. Every sovereign state issue such document identifying as a citizen with personal details including photo, name and address, in which request is made for the protection of bearer if and when necessary. Generally, without passport no citizen can enter into foreign country, however, just obtaining passport not necessarily has the right to enter into other countries. Passport only identifies the concerned bearer. Passport is merely an important travel document without which it would not possible to visit out of the home country.

Although, the Constitution of Kingdom of Nepal, 2047 has not provided the right to go abroad, however, Article 12(1) has guaranteed that no person shall be deprived of his or her personal liberty save in accordance with law. And, Article 12(2) has provided the following five freedoms to all citizens:

- (a) Freedom of thought and expression;
- (b) Freedom of peaceful association without holding arms;
- (c) Freedom to operate unions and associations;
- (d) Freedom to move and reside in any part of Nepal; and
- (f) Freedom to practise any profession, carry on any occupation, industry and trade.

Petitioners are seem to have claim that the compulsory provision made by the decision of the Council of Ministers, dated 052/9/10, requiring guardian's consent to obtain passport for women under the age of 35, is contradictory to the right to equality of the Petitioners right enshrined by the Article 11 of the Constitution, as well as, this

provision has violated the rights of petitioners enshrined in Article 11 and 12 of the Constitution, by depriving them from going abroad for study, acquire education and carry on profession and occupation. Therefore, the decision of the Council of Ministers, made in 052/9/10, should be quashed according to the Article 88(2) of the Constitution by the order of *certiorari* by this Court. In this regard, it needs to be observed whether or not the decision of the Council of Ministers, dated 052/9/10, discriminates between men and women against the Article 11 of the Constitution? And, whether or not this decision deprives the freedoms of Petitioner enshrined by the Article 12(2) sub -Clause (a) to (e) of the Constitution rights? The meaning and definition of the passport has been mentioned above. It is obvious that, passport is an important travel document. It is a document to be issued by every sovereign state to its citizen for identifying as its own citizen. As per our legal provision, passport is obtained after submission of prescribed form along with citizenship certificate, and recommendation of the gazetted officer, on payment of the prescribed amount. After promulgation of Immigration Act, 2024, and the Rules thereto, the formalities in regard to obtaining passport, has prescribed other procedural matter. It appears that, the laws made for regulation of passport have not adopted separate procedure for a man and for a woman. There is a single or equal procedures have been prescribed for both men and women for obtaining passport.

By the observation of the decision of the Council of Ministers, made in 2052/9/10 and its revised version, it came to appear that women who are not attaining the age of 35 may get passport only after making written statement by her keens as a guardian with statement of taking full responsibility as prescribed by that decision. What it reveals that if any passport seeking women applicant has no guardian or who has guardian but decline to be a guardian by making such statement, such women could not get passport. Movement within Kingdom of Nepal doesn't require passport. Obtaining passport is thus for obvious reason as going abroad for the purpose of having education, carry on profession and occupation, taking part in conference, observation tour, participating in sports, meeting with family member etc. Failing to obtain passport deprives in the exercise of the freedoms to go abroad enshrined in Article 12(2) sub- Clause (a) to (e) of the Constitution. Immigration Act, Rules and Article 11 and 12 of the Constitution have not delegated the authority to His Majesty Government so as to specify the conditions only upon women that they could not get passport without the consent of the guardian. Therefore, it appears that the conditions laid by the decision of the Council of Ministers

made in 2052/06/10 is found made without giving due consideration of the constitutional and legal provision.

Article 11 of the Constitution provides for right to equality. Clause 1 of Article 11 provides that all citizens shall be equal before the law and no one shall be denied the equal protection of the laws. In Clause 2 no discrimination shall be made against citizen in application of general laws on the grounds of sex. In Clause 3 no discrimination shall be made among citizens on the grounds of sex, but, special provision may be made by the law for the protection and advancement of women. This provision of Clause (3) is special provision that be made by making laws for the protection and advancement of the women. Here, it needs to be observed that whether or not the decision of Council of Ministers, reached in 2052/9/10, ensure betterment and protect the class of women, and, the said decision comes under the Proviso of Clause (3) of Article 11? The provision of this Clause seems imperative. The provision and the intent of this Clause means that a special provision could be made by making laws for the protection and advancement of the women, and such provision made by laws shall not be deemed discriminatory. The decision made by the Council of Ministers on 2052/9/10 is not a law. The said decision is the executive decision made under the executive authority. It appears that the executive decision made on 2052/9/10 is discriminatory between men and women, against the right to equality, because executive could not make any executive decision so as to discriminate among citizens or deprive from exercise of the fundamental rights and freedoms guaranteed by the Constitution. The provision of the proviso Clause 3 is an important and special provision for making laws which may be made for the special protection and advancement of the women *inter alia*.

The special provision of the Clause 3 is for permitting to make special provision in order to uphold and make advance the weaker class of women by providing special facilities in the sphere of education, employment and other fields; because, they are left behind as a backward due to the lack of opportunities to get education, make intellectual development and to get employed develop carrier and profession, This, wrong tradition, usage and superstition is based on the belief that women must stay within the confinement of home. It should be acknowledged that the goal and purpose of the proviso Clause of the Clause (3) of the Article 11 is to make women able to exercise the rights and freedoms by making special provision in laws in order to uphold them, with a view that women are scared from the opportunities and facilities in the field of education, profession and

occupation due to the traditional, historical, economic and social miscreants of Nepal, and, if the constitutional rights and freedoms are provided to the women on competition basis women, could not exercise these rights and freedoms to the full extent. The terms 'for the protection and advancement of class of women' has been stated in the proviso Clause 3 of the Article 11. The education, employment, profession, occupation, industry, trade, economic source and means are essential for the development of any class. By recognizing this very reality, our founding fathers of the Constitution saw the necessity for inserting the Proviso Clause in the Clause (3) of Article 11, permitting to make special provision by making laws in order to ensure advancement and protection of the women, because, if opportunities are provided between two, economically, socially and educationally backward classes and comparatively advanced classes in the exercise of fundamental rights and freedoms or in providing and getting privileges on the basis of competition, that competition will be between equal and unequal classes and the weaker class will automatically be unable to fully exercise the rights and freedoms provided to them.

The executive decision made on 2052/9/10/ requiring women the guardian's permission for obtaining passport due to their being women, appears groundless and said that it is made for the special protection and advancement of the women; instead, it contradicts the letter and spirit of the proviso Clause of Article 11(3). It also contradicts to the Convention on the Elimination of Discrimination of All Forms of Discrimination against Women. Convention on the Elimination of Discrimination of All Forms of Discrimination against Women is a Convention which is for the elimination of all forms of discrimination against women. After ratifying to this Convention, on 22nd April 1991, taken it seems to have force of a Nepal Law according of the Nepal Treaty Act. At the very opening of Article 2, "State parties condemn discrimination against women in all its forms agree to pursue by all appropriate means and without delay a policy of eliminating discrimination against women and to this end undertake.." going further in section f states, "to take all appropriate measures including legislation to modify or abolish existing laws, regulation, customs and practices which constitute discrimination against women." And, in Article 3, it has mentioned that, "State parties shall take in all fields in particular in the political, social, economic and cultural fields all appropriate measures including legislation to ensure the full development and advancement of women for the purpose of guaranteeing them the exercise and enjoyment of human rights and fundamental freedoms on a basis of equality with men."

Nepal, after becoming the party to this Convention, has to effect necessary annulment or amendment in the existing discriminatory laws, traditions, usages, customs etc., and, has to take appropriate and necessary measures in the fields of political, social, economic and legal for the full development and advancement of women on the basis of equality. However, the said decision of Council of Ministers, dated 2052/9/10 is found disagreeing with the provision of the said Convention and is against the Article 12 and Proviso of Clause 3 of Article 11 of the Constitution. Instead of encouraging and facilitating by enacting appropriate laws or effecting amendment thereof or by framing necessary policies by the state in order to enable women to exercise the freedoms enshrined by Article 12, it seems rather, paradoxical and pushes women to dependency of the male as a guardian in order to exercise the freedoms provided by the Constitution. His Majesty Government neither shall have power to make any law, nor formulate any policy or take any executive decision in contravention to the provision of these said Conventions and Constitution. If done, declared shall be void. Unless parliament makes special provision according to the Constitution and aforesaid Conventions by making law, any executive decision for providing any services and facilities, in putting women into hardship to the men, such decision will be considered against the established principles of rule of law and discriminatory, as well as excess of power and arbitrary even if it was enacted with using maximum bonafide intention. The mandatory provision, requiring guardian's permission for woman in obtaining passport which is not essential for man is contradiction to the Article 11 of the Constitution and is discriminatory. Only the provision which is based on reasonable classification shall not be considered to be discriminatory, and such provision shall not be considered as being inconsistent to the Constitution. Therefore, the executive decision of the Council of Ministers, dated 2052/09/10, though, made with bonafide intention for the interest of women, however, in the light of the test of reasonability appears against Article 11 of the Constitution, and lacks the grounds of intelligible differentia, therefore, the aforesaid decision of the Council of Ministers has made 'gender based discrimination,' and, this Court considers such decision as against the right to equality enshrined by the Article 11 of the Constitution.

The second claim made in the petition for requesting expunge of the new condition created by the aforesaid decision of the Council of Ministers for obtaining passport by woman, violates the freedoms of education by visiting foreign country, to leave for abroad and return to the country there from,, freedom of profession and education etc, as

provided by the Article 12. Passport is a document to identify the citizen of one country to another. Being suffered by the scores of problems today the migrant worker, illegal immigrant, organized crime, transborder/transnational crime, internally displaced persons, job opportunities, civil war etc. It have been the trend of movements going from one state to another where more opportunities and safety is available. Mere obtaining of passport issued by the home country will not be sufficient to enter into another country. While the citizen of one country even after obtaining valid passport will be possible to enter into other country until getting visa from another country; it is obvious that there is no possibility without obtaining passport of home country to enjoy freedoms of opinion and expression by going other country, to leave and return to the home country, to choose an occupation, employment, or operate industry and profession abroad.

It is noteworthy to mention here the Article 13(2) of the Universal Declaration of Human Right approved by the General Assembly of United Nations Organization, on 10 December 1948. In this Article there is a provision, "every one shall have the right to leave any country, including his (/her) own and to return to his country". Likewise, in Article 12(2) of the International Covenant of the Civil and Political Right, 1966 has similar provision; "every one shall have the right to leave any country, including his (/her) own." The provision of this Covenant has the same force as Nepal law by virtue of the Section, 9 of the Treaty Act, 2047B.S after Nepal's accession to this Covenant. If the decision of the Council of Ministers dated of 2052/9/10, regarding passport for the women, has to be active even after accession and enforcement of this Covenant, it will contravene the provision of the said covenant. By making law, state has the authority to prescribe the terms or conditions about whether or not issue passport. In a circumstance when the competent law making authority, the Parliament prescribes terms and conditions, by enactment of law and if anyone is denied from getting passport according to such law, that can't be said that the freedoms provided by the Constitution is violated. Provided that, while the Immigration Act and other laws are silent about conditions for not granting passport, the adult women who have crossed the age of 16 years, cannot be denied or discriminated to the men for the exercise of freedoms provided by the Article 12 of the Constitution regarding the right to obtain a document or passport which identifies in foreign country.

In a situation, when law does not prevent to any one by its enactment, and by birth he /she is a citizen of the country, it is the duty of state to provide travel document as an identity of her citizen in a simple

manner, without discrimination between men and women, and, it is the legal duty of state to provide passport to the women in a simple manner as it provides to the men.

Regarding the freedom of movement, Supreme Court of India in the case of *Satwant Singh Sawney vs. Ramarathnam* has interpreted 'Personal Liberty' enshrined by the Article 21 of their Constitution as, "Personal liberty which occurs in Art 21 of the Constitution includes the right to travel abroad and no person can be deprived of that right except according to procedure established by law". Likewise, in United States, in the case of *Best vs. United States*, it has been construed that the freedoms enshrined in Bill of Rights are the freedoms that can be exercised not merely within the United States, but they can be exercised even going out of the United State of America. In another case, *Kent vs. Dulles*, it has been interpreted that, "freedom of movement across frontiers in either direction and inside frontiers as well was a part of our heritage. Travel abroad like travel within the country may be necessary for livelihood. It may be as close to the heart of the individual as the choice of what he eats or wears or reads. Freedom of movement is basic in our scheme of values. In the case of *Maneka Gandhi vs. Union of India*, regarding the uses of extra territorial jurisdiction in Article 19 of the Constitution of India it has been construed that the state can't arbitrarily seize and deny to issue passport, "it was the vast conception of man in society and universe that animated the formulation of fundamental rights and it is difficult to believe that when the constitution makers declared these rights they intended to confine them only within the territory of India. Take for example freedom of speech and expression could it have been intended by the constitution makers that a citizen should have this freedom in India but not outside? Freedom of speech and expression carries with it the right to gather information as also to speak and express oneself at home and abroad and to exchange thoughts and ideas with others not only in India but also outside. The constitution makers have not chosen to limit the extent of this freedom by adding the words in the territory of India at the end of the Article 19.1 a....We have therefore no doubt that the right to freedom guaranteed by Article 19 is exercisable not only in India but also outside." the right to freedoms contained in the Article 12 are considered equivalent and analogous to the provision of freedoms and rights in Article 19, 21 of Constitution of India, Article 12 of the ICCPR and Article 13 of the Universal Declaration of Human Rights 1948.

While going through the other questions stipulated in the writ petition that in being unable to get passport will impair in the exercise of the

freedom of study going out of the home country, freedom of thought and expression, freedom to practise any profession and occupation. Considering on that, it seems our Constitution has guaranteed the freedoms to the citizen, - in Article 12 Clause (2) Section (a) Freedom of opinion and expression; (b) Freedom of holding peaceful assembly without arms; (c) Freedom to form unions and associations; (d) Freedom to move and reside in any part of Nepal; and (e) Freedom to practise any profession, carry on any occupation, industry and trade. As Indian Constitution, our Constitution also allows Nepali Citizen from exercising of these freedoms even after going out of the country, in foreign land, and hasn't confined its exercise only within the country. Except by the law, no executive or administrative decision that imposed restriction upon women to obtain passport could be made. If any restriction requires in the exercise of these freedoms, the Prohibitory Clause of Section (a) to (e) of Article, 12 of the Constitution, shall applies only to the extent of reasonable restriction by making law by the Parliament. In absence of law, the exercise of these cardinal and basic freedoms provided by the Constitution by the executive decision can not be prevented by any other means. The freedom enshrined in Clause (2) (a) of Article, 12 is the freedom of thought and expression. Since this freedom is not confined only within the country by the Constitution, this freedom is exercisable by exchanging opinion to others or by doing discussion or by expressing own opinion what he/she choices by orally in any forum or by publishing article from any publication or by expressing in any topics within Nepal or going out of the country. Not only by the Universal Declaration of Human Rights 1948, but also by the Article 19 of the International Covenant on the Civil and Political Rights, 1966 has provided this freedom. Article 19(2) has provided: "Every one shall have the right to freedom of expression: this right shall have included freedom to seek, receive and impart information and ideas of all kinds, regardless of frontiers either, orally or writing or in print in the form of art or through any other media of his /her choice." The term 'regardless of frontiers' used in this Clause is imperative. The provision of this freedom is similar to the Article 12(2) (a) of our Constitution. There is no limitation of political or geographical border or boundary in the exercise of this freedom enshrined in the Article 12 of our Constitution. Similarly, this Article of ICCPR states 'regardless of frontier' without prescribing any political border.

Since, the provision of the said Convention will be enforced without incorporating in Nepal law by virtue of the Section 9 of the Nepal Treaty Act 2047BS and Article 126 of our Constitution, no law can be made in contradiction to that provision. Our Constitution, in Article 12

(2) (f), has provided freedom to practise any profession, operate on any occupation, industry and trade. Since, this freedom is not restricted as other freedoms only within the country that can't be exercisable even going out of the country for Nepali Citizen; hence, petitioners should not be confined within any limitation from being exercised of this freedom provided by the Article 12. Indeed, it is not possible in today's world. We can take many example of it. If any crew member of any international airline services is denied to issue passport, if any renowned and learned person of any subject or scholarly professor is denied passport to go or being sent to foreign country or if any business person is denied passport to go to trade his/her production, if any industrialist is denied passport to go promote his/her industry, if any student is denied to issue passport to go to have education in foreign country, if any athlete is denied to issue passport for taking part in International competition, such persons are deprived from being exercise of these freedoms provided by our Constitution or by the Human Right Covenants.

Among the five freedoms stated in sub-Article (2) of Section (a) to (e) of the Article 12, the freedom enshrined in (b), by its nature, could be exercised only within the territory of Nepal, however, all other freedoms, in a situation while Constitution has not prescribed any political or geographical border or boundary for making it exercisable only within the country, His Majesty Government, by exercising executive power, can not make or forbidden to make any executive decision that hinders in the exercise of these freedoms. The freedoms provided by the Article 12 of the Constitution are essential for person to live a life of human being. Human beings will be transformed into animal if these freedoms are taken away. Taking this fact into account if the Constitution provides for the in exercise of these freedoms without discriminating between men and women, by making non discriminatory laws. In such a circumstance, there is no political and geographical border and boundary prescribed in exercise of these freedoms in international level. The provision of our law relating to foreigners as well as immigration, and pertaining to establishment of various Specialized Agencies and offices scattered across the world under UNO, after Second World War, International and Regional Organizations like SAARC, have substantiated the fact that the executive can not make any decision imposing restriction only women in exercise of the freedoms enshrined in Article 12.

The immigration Act and rules therein has provided for the issuance of passport. In this law, there is a provision to issue passport for going to participate in various international meetings of United Nations

Organization, in Asian Development Bank, in Nepali Embassy as an envoy, a Consulate, study etc. This has proven that the passport is a document issued for the purpose of exercise of the freedoms enshrined by the Article 12 also by the Nepali women citizens at par with the men. No distinction is made between men and women in this Act. The representation of the Nepalese membership in the aforesaid International Organizations is performed by the Nepali citizen. Citizens mean both men and women. If passport is denied to the Nepali women citizen in absence of guardian because of the condition set by a decision of the Council of Ministers, made in 2052/9/10, in such a situation, in one hand the state representation will not be possible and prevented in exercising of the freedoms provided by the Article 12 of the Constitution on the other. Nepali women citizens also may be assigned to represent in aforesaid Specialized Agencies including UNO, International or regional organizations and Embassies. While being sent, they are at liberty to choose of their occupation and profession. Whether it is the representation of the state or the private purpose, the provision of the law regarding passport, they are exercising the freedoms provided by the Constitution and ICCPR using passport. If women are denied to issue passport, unreasonable restriction would be laid women in the exercise of these freedoms. Without the authority of law no executive shall have power to reach a decision which results in deprivation of freedoms, women are being exercised.

Therefore, on the basis of the ground analyzed above and reasons underlying thereto, the decision reached by the Council of Ministers in 2052/9/10 requiring guardian's consent for the issuance of passport to the women under the age of 35, is found contrary to the right to equality enshrined in Article 11 of the Constitution, right to freedom enshrined in Article 12 and the provision of the International Covenant of the Civil and Political Rights (ICCPR), hence, the said decision is hereby quashed by the writ of *certiorari*. The order of Mandamus is also issued in the name of respondents so as to grant passport to every Nepali woman attained the age of maturity by following the process of law at par with the men even without the consent of guardian. A copy of this order be provided through the Office of the Attorney General for the notification to the respondents and this file be handed over as per the rule, removing from the list of regular proceedings.

I concur above decision.

Justice Badri Kumar Basnet

Done on 13th Mangsir, 2062 B.S. (28th November 2005)

The myth of Constitutionalism, the rule of law and the notion of independent judiciary is further bolstered and a clear distinction between the status of an opinion and a court verdict is also made.

Supreme Court Special Bench
Hon'ble Justice Kedar Prasad Giri
Hon'ble Justice Meen Bahadur Rayamajhi
Hon'ble Justice Ram Nagina Singh
Hon'ble Justice Anup Raj Sharma
Hon'ble Justice Ram Prasad Shrestha

Order

Writ No. 118 of the year 2062

Sub: Writ of Habeas Corpus.

Petitioner: On behalf of Rajeev Parajuli, aged 47, a former Minister and central member of Rastriya Prajatantra Party and resident of Birgunj sub-Metropolitan city, Ward No. 4, currently held in detention in District Police Office Lalitpur by the order of the Royal Commission on Corruption Control, Sanjeev Parajuli, aged 42

Vs.

Defendents: Royal Commission on Corruption Control, Harihar Bhavan, Lalitpur, et.al.

- As the State authority and the sovereignty shall be exercised in accordance with the Constitution of the Kingdom of Nepal, 1990, it is not proper to believe that the sovereignty of Nepal is vested in His Majesty and that all the executive, legislative and judicial powers emanate from His Majesty as had been provided in the Constitution of Nepal, 1962 which was in force prior to the introduction of the Constitution of the Kingdom of Nepal, 1990.
- In the present context of these clear-cut constitutional provisions, which stated that after the constitutional

change the State authority and sovereignty of the Kingdom of Nepal shall be exercised only as provided by the Constitution of the Kingdom of Nepal, 1990, it shall be contrary to the constitutional basis and provisions to raise dispute about the State authority and to put forward arguments as if the Constitution of Nepal, 1962 had not been repealed.

- In the countries having written Constitutions matters such as the principle and system of governance, its functions, distributions of the State authority among various Organs of the State etc. are decided by the Constitution itself. It is contrary to the Constitution to violate the provisions made by the Constitution and the subject matters determined by it. As the violation of the system and the subject matter determined by the Constitution shall result in the creation of constitutional problems, it is in the best interest of the State to take precaution against the prospective emergence of such a situation or to avoid it.
- As the concept of constitutional supremacy has been recognized, if the Supreme Court refuses to resolve a constitutional question placed before it regarding an allegation involving a constitutional dispute that the State authority has been exercised in contravention of the constitutional provisions, disturbance may be caused to the constitutional foundation of peace and development of the Nepali people.
- As the Supreme Court has been entrusted with the responsibility, under Article 88 of the Constitution, for the enforcement of the rights of the people guaranteed by the Constitution and the laws or for the judicial resolution of any constitutional dispute, it shall be contrary to the Constitution if the Supreme Court is not allowed to enter into a question of constitutionality.
- As it shall also be proper from the viewpoint of judicial administration to conduct simultaneous hearing of both the writ petitions involving issues relating to similar disputes, the order instructing for scheduling both the writ petitions for simultaneous hearing cannot be treated as contrary to the Constitution and the law.
- In view of the fact that the Constitution of the Kingdom of Nepal, 1990 has been proclaimed by His Majesty providing that the State authority and sovereignty of

Nepal shall be exercised in accordance with this Constitution and since the constitutional dispute of the formation of the RCCC needs to be decided also on the basis of the provisions relating to the exercise of the State authority as determined by the Constitution, it is not proper to call such an indisputably constitutional matter a political dispute.

- The Doctrine of Necessity does not intend to destroy the prevailing constitutional structure. It simply endeavors to resolve a situation which requires immediate resolution and which has no alternative to its resolution without contravening the constitutional provisions.
- Since the CIAA is constitutionally a significant mechanism in regard to the prevention of improper acts or corruption, it shall be constitutionally proper to follow the constitutional provision so long as that constitutional provision regarding the responsibility entrusted to the CIAA remains active.
- The act of directly or indirectly affecting adversely or encroaching upon the functions, duties or powers conferred on any constitutional organ or the act of rendering a constitutional organ ineffective on any pretext whatsoever not only weakens the constitutional foundation rather also disrupts it, and creates obstacles to Constitutionalism and constitutional development as well.
- As it is clear from the provisions of Sections 2 and 6 that both the powers of conducting investigation as well as awarding punishment are vested in the RCCC, from the legal viewpoint there is no significance of the contention that it is a separate unit of the Commission which files the prosecution charge-sheet after conducting investigation.
- In view of the fact that the Constitution of the Kingdom of Nepal, 1990 has provided for the separate entity of an organ investigating corruption cases and an organ conducting trial of such cases, it cannot be proper to say that the act of empowering one and the same organ to conduct both investigation and trial is in consonance with the objective and spirit of the Constitution.
- It is one thing to issue an order pursuant to that Article in order to fill a constitutional void or end a constitutional stalemate; it does not infringe the personal right of any person. But it is entirely another thing to grant powers to perform such acts which infringe the fundamental rights

guaranteed by the Constitution, such as, taking someone's statement against his will, administering oath to him, compelling him to be present somewhere, conducting search of some house or place etc. Article 127 cannot be exercised for that purpose.

- Therefore, the contention of the respondents is not acceptable that the impugned Order which is vested with a legal authority does not fall under the purview of Article 88(1) and (2) only because it has not been brought to the knowledge of Parliament.
- The notification of the Chief Secretariat of His Majesty dated Falgun 5, 2061 (February 16, 2005) regarding the establishment of the RCCC and the Notification of the Chief Secretariat of His Majesty dated Baisakh 16, 2062 (April 29, 2005) in regard to giving continuity to that order do not seem to be in consonance with the objectives and spirit of Articles 84, 85, 88(3), 98, 115(7) and 127 of the Constitution of the Kingdom of Nepal, 1990.

Meen Bahadur Rayamajhi, J. The details of the present writ petition filed under Articles 23 and 88 (1) and (2) of the Constitution of the Kingdom of Nepal, 1990 and the verdict there upon is as follows:

After my elder brother Rajeev Parajuli, who had become a Minister for five times and assumed the responsibility of various Ministries, was relieved of his office, the Commission for the Investigation of Abuse of Authority (CIAA, henceforth) constituted in accordance with the Constitution, raising doubts about the legality of the assets owned by my elder brother and his joint family members, conducted investigation into those assets and their sources and, having concluded that it warranted no further action, the CIAA decided to close the case-file on Baisakh 23, 2061 B.S. (May 05, 2004) as per Section 35 of the CIAA Act, 2048 B.S. (1991) and informed him about that decision through a letter dated Jyestha 1, 2061 (May 14, 2004). The respondent Royal Commission restarted investigation into a subject on which the case-file had been already closed and delivered a letter dated Baisakh 28, 2061 (May 10, 2004) to my elder brother asking him to appear before the Commission within 24 hours of the receipt of the letter for giving his statement. When, in response to that letter, my elder brother appeared before the Commission on Bhadra 13, 2061 (August 29, 2004) for giving his statement the process of taking his statement was initiated the same day and, as his statement

could not be completed he was placed in detention whereupon he has been kept in illegal detention ever since in Lalitpur District Police Office. Since the notification regarding the establishment of the Commission is likely to be quashed as per Article 88 (1) of the Constitution, the Commission is not entitled to initiate any proceedings and, therefore, as the detention of the detinue was in contravention of Articles 11(1), 12(2)(d), (e) and 14(1) (2) of the Constitution of the Kingdom of Nepal, 1990, I have lodged this petition under Articles 23 and 88 (1) and (2) for his release from the illegal detention. Investigation into the legality of the property and its sources about which the respondent Commission has issued the letter and recorded the statement of my elder brother has been already conducted as per the prevalent Nepal Law by the CIAA which is empowered by Article 97 of the Constitution of the Kingdom of Nepal, 1990 and Section 2(b) of the CIAA Act, 2048 (1991). After such an investigation it was held that no property had been acquired illegally and since all the property was found to be legal it was decided not to take any action in respect of that property and the sources thereof. Article 14(1) and (2) of the Constitution of the Kingdom of Nepal, 1990 has imposed complete prohibition on subjecting any person to punishment greater than that prescribed by the law in force at the time of the commission of the offence, and also on prosecuting and punishing any person for the same offence more than once. This right of a citizen has been enshrined in the Constitution as a fundamental right. This fundamental constitutional right of a citizen cannot be altered or controlled. The act of investigation into an issue relating to the property kept in the name of my detained elder brother and members of our joint family which has been already investigated into and held lawful by the CIAA which is legally and constitutionally competent, and the detention ordered on the basis of such an investigation are violation of Section 14 (1) and (2) of the Constitution of the Kingdom of Nepal, 1990. Section 19 of the Judicial Administration Act, 2048 (1995) has provided that a decision made by a competent body shall remain valid and binding on all organs and bodies until held void in accordance with the law. No prevalent Nepal law has granted jurisdiction to the respondent Commission to hear appeal on any decision made by the CIAA or to invalidate or void such a decision.

Article 84 of the Constitution of the Kingdom of Nepal, 1990 has provided that the powers relating to justice in the Kingdom of Nepal shall, in accordance with this constitution, the laws and the recognized principles of justice be exercised by the courts and other judicial institutions. A study of the composition of the aforesaid constitutional provision clearly establishes the fact that, as intended and provided by

the Constitution, it was the intention of the framers of the Constitution to allow the exercise of the judicial power only by the courts and other judicial institutions constituted and established in accordance with the Constitution and the laws. Since the Royal Commission on Corruption Control (RCCC, henceforth) has not been constituted in accordance with the Constitution and the prevalent laws as provided and envisioned by Article 84 of the Constitution, such a Commission cannot exercise the judicial powers in any circumstances. It is indisputable that the court must immediately declare the establishment of such a Commission void by issuing an appropriate order. The Constitution has also provided for the appointment of qualified persons having specific qualifications, experience and competence as judges in accordance with the provisions of the Constitution and the prevalent Nepal Law for carrying out the function of judicial adjudication. As the qualifications for the Chairperson and other members of the Commission have not been prescribed, it appears that any body can be appointed to those posts. Since discharging the function of judicial adjudication by such persons who do not possess the basic qualifications, experience and competence prescribed by the Constitution and the laws issued under the Constitution is also contrary to judicial norm as well as the Preamble of the Constitution, the Commission is obviously without jurisdiction. The Commission seems to have been set up under an order issued pursuant to Article 115 (7) of the Constitution. The exercise of Art. 115 (7) may remain effective only so long as an order issued pursuant to Article 115 (1) remained effective. Article 115 is such an Article which cannot be exercised on a long term basis for attaining a long term objective. It may be rather exercised for a shorter period in order to take into control an immediately arisen grave emergency. It is absolutely contrary to the constitutional values and norms to establish and keep active, by exercising an Article meant for application for a completely shorter period, a Commission which can exist for an indefinite period and exercise unlimited powers. When the order relating to the declaration of the state of Emergency has already lapsed the continuity of such a Commission cannot remain effective by virtue of an order issued pursuant to Article 127. The RCCC also seems to have the powers to carry out investigation and enquiry into the matters which have been specified to be investigated by the CIAA as provided by Article 98 of the Constitution as well as the powers to carry out investigation, registration and adjudication of also such cases which should be tried and decided by the law courts as per Article 85 of the Constitution. Thus, by granting parallel jurisdiction to the Royal Commission in regard to the matters which should be investigated and inquired by the CIAA established as per the provisions of the

Constitution and also the powers of the courts to entertain complaints and petitions and conduct trial and disposal of cases, an encroachment has been committed upon the jurisdiction of the CIAA and the concerned law courts. Theoretically it is not proper to set up any organ having parallel jurisdiction for similar objectives. Since the jurisdiction created by the Constitution itself cannot be circumscribed or controlled by any other means, the establishment of the Commission is in contravention of Articles 98 and 95 of the Constitution. Articles 115 and 127 cannot be mingled and activated equally for a similar objective. The objectives and the conditions of activation of these Articles are absolutely different. The application of one Article cannot be made as complementary to the application of another Article. After the withdrawal and inactivation of the order relating to the application of Art.115 it cannot be revived by the application of Art. 127. Moreover, as Art. 127 is concerned only with resolving any difficulty arising in connection with the implementation of the Constitution, this Article cannot be resorted to in regard to any matter falling outside the Constitution. Article 1 of the Constitution has provided for declaring any law inconsistent with the Constitution as void. All types of orders, directives etc. having the force of law automatically become included within it. Since the order relating to the formation of the Commission is tantamount to the Nepal law, it is indisputable that this order can be subjected to judicial review under Article 88 (1) and (2). The Rule of law does not envisage a state of absence of remedy. The right to remedy is always guaranteed. The Constitution of the Kingdom of Nepal, 1990 also does not envisage a state of absence of remedy. Under this provision, any person adversely affected by any order issued by His Majesty the King may also challenge such an order. Moreover, the legality of any act not authorized by Article 35 (2) and performed in the capacity of the executive must be established. The orders issued by His Majesty the King, exercising the powers of the Executive, shall become extra-judicial, unlawful and void if they fail to prove such legality. Under Art. 88 this court has got the jurisdiction to decide, as per the Constitution, an issue relating to whether or not a right has been adversely affected. Hence, it is indisputable that the present issue shall be judicially resolved by this court. The present Constitution does not accept the system of someone starting the case as a plaintiff, conducting the investigation and filing the charge-sheet and also deciding himself whether or not punishment should be awarded according to the charge-sheet. No country imbibing the concept of the Rule of Law envisioned by the Constitution shall allow such a legal system. Such a provision is also contrary to the incontrovertible principle of Natural Justice. Because the Commission has been

entrusted with all the powers of initiating a case, carrying out the investigation, proposing the punishment and filing the charge-sheet and also deciding about whether or not to award punishment as demanded by the charge-sheet, the Commission is obviously contrary to the incontrovertible principle of Natural Justice and, hence, it is void '*ab initio*'. Article 127 should not be exercised in such a way that it affects the provisions made by other Articles. This Article may be exercised only with a view to providing an outlet by maintaining constitutional control in regard to the matters not addressed by other Articles. In view of the fact that Article 84 has provided for judicial institutions including Special Courts and empowered them to exercise judicial powers, Article 127 cannot be resorted to for making other provisions in regard to the matters which have been already provided for. Therefore, the Commission is '*ultra vires*'. Section 6(2) of the Commission Formation Order has provided for filing appeal in this court on a decision made by the Commission. No prevalent Nepal law including the Constitution, the Supreme Court Act and the Judicial Administration Act has specified this court to entertain appeals on the decisions made by such a Commission and dispose those appeals. This court, entrusted with the jurisdiction of being the final arbiter of the Constitution, is not bound to implement an extra-constitutional notification. Thus, when the Constitution and the laws made under the Constitution have not conferred upon this apex court the jurisdiction of hearing appeal the order and the notification regarding the powers of hearing appeal, which are devoid of constitutional and legal capacity, are obviously in contravention of Articles 84, 85 and 86 of the Constitution and Section 9 of the Judicial Administration Act, 2048 (1991). Art. 110 of the Constitution has provided that the State cases shall be filed through the office of Attorney General and its subordinate Offices and also empowered them to decide whether or not to proceed further with those cases in the law courts. Section 23 of the State Cases Act, 2049 (1992) has provided that the State shall be a plaintiff in cases falling under Schedules 1 and 2, and Section 17 has provided that such cases shall be filed in the law courts only through the Office of the Attorney General and its subordinate Offices. The so called Commission has not been conferred this power. The order regarding the setting up of the Commission also does not make any mention about this. While filing the charge-sheet and deciding the case His Majesty's Government has been mentioned as the plaintiff. Thus when there is no mention about this in the said Schedules and neither the Constitution nor any prevalent Nepal law has conferred any power to initiate legal proceedings on behalf of His Majesty's Government the act of creating powers in a self declared manner and the Commission are contrary to the above-mentioned constitutional

and legal provisions. Therefore, since the notice concerning the setting up of the respondent Commission is likely to be voided as per Article 88 (1) and the act of keeping the detenu in detention is contrary to Articles 11(1), 12 (2) (d) & (e), 14(1) & (2) of the Constitution of the Kingdom of Nepal, 1990, I have petitioned this court under Articles 23 and 88 (1) & (2) of the Constitution to seek his release from the illegal detention. I, therefore, request this court to declare the formation of the respondent Commission as void as per Article 88 (1) and immediately free the detenu from detention by allowing the writ of habeas corpus as none of the respondents are qualified to act in the capacity of judges, and also to issue necessary and appropriate orders, with a view to providing full justice as per Article 88 (2) of the Constitution, including the writ of *quo-warranto* restraining anyone from acting as a judge in contravention of the Constitution of the Kingdom of Nepal 1990, besides passing strictures in the name of the respondents Prime Minister and the Office of the Council of Ministers for the knowledge of the general public. As the detention made by a body devoid of legal capacity cannot get continuity, this apex court is also hereby requested to issue a writ of habeas corpus to immediately set free the detenu from detention and also to issue an interim order as per Rule 41 of the Supreme Court Rules, 2049 (1992) restraining the unauthorized body from taking any statement from the detenu, filing and entertaining any charge-sheet and performing other functions including passing any orders pending the disposal of this writ petition.

A Single Bench Judge issued an order on Bhadra 16, 2062 (2005) asking the respondents to explain the facts of the case and reply why an order as requested by the petitioner ought not to be issued. As the petition was scheduled for hearing on Bhadra 23, 2062 (2005), the Bench also issued an order to send notices to the respondent including the RCCC along with a copy of the petition requiring them to file their written reply before that date through the Office of the Attorney General accompanying with the concerned case-file and to also enclose a copy of the same for reference of the Office of the Attorney General. As regards the request for the issuance of interim order, the Bench opined that there did not exist any ground for issuance of interim order presently in view of the fact that the legal practitioners appearing on behalf of the petitioner have themselves admitted that the act of recording the statement of the petitioner was already in progress. Considering, the gravity of the constitutional and legal questions the Bench further ordered to grant priority to the present petition as per the rule and thus to schedule it for hearing on Bhadra 23, 2062 (September 8, 2005).

The respondents the Royal Commission and its Chairperson and members, in their joint written reply, contended that as regards the first plea that Article 127 cannot be exercised to give continuity to the Commission constituted under Act 115 (7), during the activation of Art. 115 His Majesty the King, taking into consideration the then prevailing circumstances of the country, declared a state of Emergency in respect of the whole of the Kingdom of Nepal as per Article 115(1) and also constituted this Commission as per Art. 115 (7) on Falgun 5, 2061 (February 16, 2005) which started functioning thereafter from Falgun 10, 2061 (February 21, 2005). In the meantime, while the Commission was continuing with its regular functions such as entertaining complaints, carrying out investigation and enquiries and conducting trial under its specified jurisdiction, His Majesty the King withdrew the order relating to the declaration of Emergency through another order issued on Baisakh 16, 2062 (April 29, 2005) as per Art. 115(11). Realizing that there had arisen some difficulty in the implementation of the Constitution in regard to the continuity of the acts born out the activation of Art. 115 due to the withdrawal of the order relating to the declaration of the state of Emergency, His Majesty the King issued an order under Art. 127 in order to remove that difficulty prevailing at that time as a result of which this Commission has acquired continuity. As the petitioner was a person who had held public office and as a complaint had been filed that he had committed an offence of Corruption under the Corruption Control Act, he had been served with summons on Chaitra 18, 2062 (May 31, 2006) under the jurisdiction specified by Section 2 of the Order relating to the Constitution of the Commission in pursuance of which the acts like taking his statement, causing him to submit the particulars etc. were initiated by the investigation officer. In the initial stage of the investigation, accepting the legality of the Commission he had also cooperated with the Commission in regard to the investigation. After he was produced before the court along with the charge-sheet by the Investigation officer on Bhadra 13, 2062 (August 29, 2005) the act of taking his statement started and he was sent for detention as per the law since the act of recording his statement could not be finished. Following the completion of recording of his statement, while passing the bail order, he was asked to deposit Rs. 51,00,000.- as security pursuant to Section 7 (d) of the Special Court Act, 2059 (2002) which he failed to produce leading to his remand to judicial custody as per the authority granted by the law.

Therefore, judicial detention made under an order passed by an authorized Commission under the authority of the law cannot be

dubbed as illegal detention. As the petitioner Rajeew Parajuli did not make any counteraction in time in regard to the proceedings undertaken during the period ranging from Chaitra 18, 2061 (March 31, 2005) to Bhadra 13, 2062 (August 19, 2005) and thereby accepted those proceedings and approached the apex court on Bhadra 14, 2062 (August 30, 2005) only after he had been placed under detention, the Doctrine of Election now restrains him from at once accepting and rejecting the same proceedings. Article 14(1) of the Constitution provides that no person shall be punished for an act which was not punishable by law when the act was committed, and Art. 14(2) provides that no person shall be prosecuted and punished for the same offence in a court of law more than once. Section 2 of the Order relating to the Formation of this Commission has prescribed the functions, duties and powers of the Commission and the jurisdiction of the Commission has been also determined by the same Order. The Commission has been empowered to investigate and prosecute offences under the Corruption Prevention Act and also decide such cases. The investigation and prosecution made on the basis of six complaints received by this Commission against Rajeew Parajuli on various dates cannot be described as violated of Article 14(2) of the Constitution. Article 14(2) has basically prevented the act of prosecuting and punishing any person twice for the same offence. The petitioner has not shown that any charge-sheet has been filed against Rajeew Parajuli anywhere and the case has been duly disposed. The provisions of Section 35 of the Corruption Prevention Act, 2059 (2002) do not seem to eradicate the offence of corruption.

His Majesty the King constituted this Commission on Falgun 5, 2061 (February 16, 2005) and prescribed its functions, duties and powers in accordance with the declaration made by him to undertake immediately effective measures, not contravening the principles of justice, for prevention of corruption in order to fulfill the wishes of the people and the needs of good governance because, as declared in the Royal Proclamation made His Majesty to the nation on Magh 19, 2061 (February 1, 2005), the ever flourishing corruption has polluted the administration and obstructed the steps of the nation which should have moved towards development and thus given a jolt to the belief of the common mass in the law.

As regards the plea raised by the petitioner regarding the qualifications and competence of the officials of the Commission, His Majesty the King, while issuing the order on Falgun 5, 2061 (February 16, 2005), appointed those officials as per Section 1 of the Order relating to Formation of the Commission believing that they were

qualified and competent to conduct the trial and disposal of the offences falling under the Corruption Prevention Act. So the petitioner does not seem to have any '*locus standi*' to raise any question about the qualifications and competence of the officials of the Commission appointed in the discretion of His Majesty the King. As a provision in the Order relating to the Formation of the Commission provides that any person not satisfied with any order or decision made by the officials of the Commission he may move an application or appeal before this honorable court and as this court is competent to review such an order or decision, the plea of the petitioner is not lawful. Since the Commission is competent to exercise the powers of the Special Court conferred on it by the Special Court Act, 2059 (2002) as per Section 2(4) of the Order relating to the Formation of the Commission, it is obvious that the Commission is functioning under the concept of a Tribunal which has been imbibed by Article 85 of the Constitution. Therefore, there is no question at all of the Commission violating the recognized principles of the Constitution, the laws and justice. In case there occurs any error in course of the exercise of judicial power by the Commission, there is a provision regarding this apex court dispensing justice exercising the appellate jurisdiction granted by Section 6(2) of the Order relating to the Formation of the Commission, it cannot be contended that the formation of the Commission is contrary to the spirit of the Constitution and its Article 84.

Likewise, the contention of the petitioner describing the Commission's act of both filing the charge-sheet and also conducting the trial and disposing the case as being contrary to the Constitution is also not based on the facts. As shown by the provisions made in the Customs Act, 2019, the National Park and Wildlife Conservation Act, 2029 and the Forest Act, 2049, since the legal system of Nepal seems to have already accepted such a procedure, the contention of the petitioner is not lawful. As there is a provision empowering the Commission to lay down its own procedure as per Section 12 of the Order relating to Formation of the Commission, according to the provisions of the Procedure, 2061 (2004) issued by the Commission on Chaitra 1, 2061 (March 14, 2005) the Commission is empowered to appoint an Investigation Officer, and the Investigation Officer can file the charge-sheet as per Section 10 of the Procedure before the Bench of the Commission if the investigation shows that any offence has been committed. So as only after deciding whether an offence of corruption has been committed further proceedings are undertaken by the Umbrella body, it cannot be called as violation of the principles of Natural Justice. The above-mentioned contention of the petitioner is also negated by the judicial principle enunciated by the apex court in

the writ of certiorari, *Advocate Jyoti Bunya v. the House of Representatives* (Nepal Kanoon Patrika 2056 (1999), No. 1, p. 23). As regards the contention of the petitioner that if the authorization under Article 35 (2) is not stabilized in regard to an order issued by His Majesty the King exercising the executive powers, such an order is subject to judicial review under Article 88(1) and (2) and the aggrieved person may obtain relief. First of all, while issuing an order under Article 127 of the Constitution on Baisakh 16, 2062 (April 29, 2005) granting continuity to this Commission, His Majesty the King issued such an order not by exercising the executive powers but by exercising the discretionary power vested in him in accordance with the constitutional practices and customs of Nepal. Since such an order should be treated as an integral part of the Constitution pursuant to Article 127 of the Constitution it cannot become a subject of judicial review like the review of a legislative Act. Thus it is automatically proved that the act of specifying the functions, duties and powers of the Commission under an order issued in the discretion of His Majesty the King cannot fall under the confines of judicial review. Hence, since the act of giving continuity to this Commission along with its officials under Article 127 of the Constitution of the Kingdom of Nepal, 1990 in the discretion of His Majesty the King is in accordance with the Constitution, and as Article 31 of the Constitution has clearly provided that no question shall be raised in any court about any act performed by His Majesty, and because the business conducted by the Commission by exercising the functions, and powers and by observing the duties specified by the Order regarding the Formation of the Commission, is constitutional and lawful, the act of keeping Rajeev Parajuli, the brother of the petitioner, in judicial custody as per the order of this Commission under the authority granted by the law cannot be described as illegal detention and, therefore, the writ petition must be rejected.

The Office of the Prime Minister and the Council of Ministers, in its written reply, contended that as the petitioner had framed it as a respondent without explaining how and by which act of this Commission the rights of the petitioner have been infringed and because the person mentioned in the petition has been placed in detention by the concerned body as per the law, the writ petition must be rejected.

The Ministry of Home Affairs, in its written reply, contended that since Rajeev Parajuli has been placed in detention as per the law in connection with an offence of corruption by the RCCC, the writ petition must be quashed.

The Office of the Attorney General of Nepal, in its written reply contended that a cursory perusal of the writ petition shows that, except framing the Attorney General of Nepal as a respondent in the petition, the petitioner could not mention in the petition what type of acts of the Attorney General was directed against the petitioner and which acts of the Attorney General of Nepal infringed the rights of the petitioner and how those acts were violation of the Constitution. A writ cannot be issued only because of mentioning someone's name as a respondent. As the issue raised by the petitioner did not belong to the scope of the functions, duties and powers of the Attorney General as specified by the Constitution nor was it related with the functions discharged by the Office of the Attorney General, the writ petition deserved to be rejected.

The District Police Office Lalitpur, in its written reply, praying for the rejection of the writ petition, contended that the petitioner Rajeev Parajuli was produced before that Office along with a letter of the RCCC having dispatch No.352 and dated Bhadra 13, 2062 (August 29, 2005) for keeping him in detention as the act of taking his statement in connection with the charge of corruption relating to acquisition of illegal property could not be completed for want of time and so the act of taking the petitioner to the Commission and bringing him back to that Office was performed as per the order of the Commission. And as Rajeev Parajuli was produced before that Office along with a letter of the RCCC having dispatch No. 385 and dated Bhadra 15, 2062 (August 31, 2005) asking it to keep him for safe custody as he had failed to produce the bail amount slapped on him in *His Majesty Government v. Rajeev Parajuli and Others* in connection with the case of corruption relating to acquisition of illegal property, the petitioner had been kept in detention not illegally but as per the law according to the order of the Commission. A five member Special Bench of the apex court ordered for scheduling the case for hearing on Bhadra 28, 2062 (September 6, 2005) and producing the detenu Rajeev Parajuli before the Bench on that date along with the related writ petition numbered 57 and the petition numbered 745 for a simultaneous hearing.

Observing that since the CIAA had decided on Baisakh 23, 2061 (May 5, 2004) to close the proceedings regarding the investigation about the assets of Rajeev Parajuli whose sources were not accounted for as per Section 35 of the Corruption Prevention Act, 2059 and as the submissions to be made by the counsels were yet not complete, a five member Special Bench issued an order to release the prisoner Rajeev

Parajuli pending disposal of the petition as per Rule 33(a) of the Supreme Court Rules, 2049 on the personal security of attendance given by his counsel Advocate Shambhu Thapa on the condition of producing him before the court on the date scheduled for the hearing of that petition, and also to notify the RCCC in this regard. The petitioner and thirty nine learned legal practitioners appearing on behalf of the petitioner and the respondents including the legal practitioners getting involved in the case as per rule 42 of the Supreme Court Rules, 2049 made their submissions as follows in the present writ petition and the writ petition No. 57 filed by petitioner Santosh Mahato in which a similar issue was involved and which had been simultaneously produced for hearing on various dates starting from Bhadra 23, 2062 (September 5, 2005) and continued on Bhadra 28 and 30, 2062 (September 13 and 15, 2005), Ashwin 6 and 12, 2062 (September 22 and 28, 2005), Kartik 27 and 29, 2062 (November 13 and 25, 2005) and Manshir 6, 7, 12, 13, 21, 23 and 29, 2062 (November 21, 22, 27, 28 and December 6, 8 and 14, 2005).

The Learned Counsels appearing on behalf of the Petitioner:

1. Advocate Shambhu Thapa (in both cases):

The learned Advocate Shambhu Thapa pleaded that Article 12 of the Constitution of the Kingdom of Nepal, 1990 stipulated that no person shall be deprived of his personal liberty save in accordance with law. Section 2(m) of Nepal Law Interpretation Act, 2010 (1953) has defined law and, as that definition is also applicable in the case of the Constitution, the order issued on the basis of Article 127 must be reviewed whether or not it is a law according to that interpretation. There is no scope for the continuity of the order issued under Article 115 of the Constitution. As Art. 115 is in itself an independent Article, an order issued under this Article may suspend some Articles of the Constitution but it cannot usurp the powers granted by the Constitution to other organs and delegate them to others. The Constitution is an instrument which keeps all persons including the Head of the State as well as the citizens in the same system. An order can be issued for dealing with the state of Emergency declared under Art. 115 and after withdrawal of the state of Emergency or after expiration of the declaration of the state of Emergency, the order issued under Art. 115 also becomes automatically inactive. An order issued under Art. 115 cannot be given continuity by exercising Art. 127. Following the issuance of an order under Art.127 for removing any difficulty in connection with the implementation of the Constitution,

all the constitutional processes should be operated after the removal of such a difficulty. The constitutional deadlock which has arisen must be pointed out. How did a difficulty arise in regard to the establishment of the RCCC? There is also a provision regarding removal of similar difficulties in the implementation of the Constitution in India in Article 392 of the Indian Constitution. When questions were raised against an order issued by the President of India in the law court, the Indian Supreme Court had held that such an order intended for the removal of difficulties could be subjected to judicial review. The law court of England has also held that the powers regarding arresting any person, taking his statement, putting him into detention etc. did not come under the powers of the Crown. When the opinion of this apex court was sought by His Majesty the King in the dispute relating to Dasdhunga accident about the conditions regarding removal of difficulties as per Article 127, Article 127 has been interpreted in that opinion. Even though that was given in the form of an opinion, actions were taken by His Majesty the King and the Government according to that opinion and, therefore, there shall be no difficulty in applying that opinion even in this case. As regards the written reply with the plea that since the order had been issued by His Majesty the King, no question could be raised in a law court as per the provision of Article 31. Because ours is a written Constitution it cannot be accepted that there is a provision of prerogative power as in the English Constitution. A decision has been already made regarding Article 31 in the case of the Dissolution of the House of Representatives by P.M. Manmohan Adhikari. Article 31 must be viewed in relation to Article 56. The powers of His Majesty, Parliament and the court --- all the three Organs have been provided by the Constitution and none of them can encroach upon the powers of the others. But if any dispute arises among these three Organs or bodies it can be decided only by the court. The petitioner has come to the court pleading that his liberty is being usurped. As every citizen has been granted by the Constitution the right to protect his personal liberty, if someone enters the court on that issue, it cannot be argued that a question cannot be raised in this regard. The provision of Article 88 does not preclude from judicial review the matters other than those relating to His Majesty the King and the status of Parliament. The context of the decision made in the writ petition of Jyoti Baniya mentioned in the written reply cannot be applicable to the present case. The Forest Act, the Local Administration Act, the Custom Act etc. are the matters falling under the law made by Parliament. The respondent Commission has not been constituted under the law. The qualifications of the officials of the commission are not clear. Actions have been undertaken against the spirit of Articles 84 and 85. When a

petition has been filed raising questions about the qualifications of the officials of the Commission there does arise an obligation to prove the qualifications. Any questions raised about the qualifications cannot be brushed aside. The Constitution is the fundamental law of the land. When the fundamental law itself has set up the CIAA under Art. 98 for the prevention of corruption and also when the Constitution has provided for the investigation of the cases falling under the Corruption Prevention Act and made specific provision for a court for hearing such cases it is not proper to set up a parallel body. The cases prosecuted by the Commission also fall under the purview of the Corruption Prevention Act and His Majesty's Government is the plaintiff of the cases to be filed under that Act. Article 110 has provided that the Attorney General of the Kingdom of Nepal and his subordinate government counsels have got the powers to make the final decision as to whether or not to initiate the proceeding in any case on behalf of His Majesty's Government. That provision has also been infringed by the formation and the activities of the Royal Commission. A decision of the Commission cannot be subjected to appeal in this court. The appellate jurisdiction of this court can be determined by the provisions made in Art. 88 (3) of the Constitution. Since an order issued by His Majesty is not a law it cannot be said that appeal can be filed as per that order even though it has provided for filing appeal. What is law has been interpreted by a Division Bench in the Reservation case. An order can be subject to judicial review provided that it was treated as the law. If an order is not the law it must be automatically inoperative. No law can be made without resorting to the procedure mentioned in Article 71 and 72 of the Constitution. Such a Commission has no power to slap punishment on the citizens. The judicial principle enunciated in the case of Iman Singh Gurung also substantiates this point. The Indian Supreme Court has discussed the jurisdiction of the Supreme Court in AIR 2001 SC 180.

2. Advocate Subash Nembang (in both cases):

Advocate Subhash Nembang submitted that as regards the contention made in the written reply that the Commission has been set up by His Majesty in his discretion by exercising the State authority vested in him and as per the customs and usages of Nepal. The Constitution of the Kingdom of Nepal, 1990 does not provide for, as in the Constitution of Nepal, 1962, vesting of the State authority in His Majesty the King. That is proved by the Preamble of the Constitution itself. His Majesty has promulgated the Constitution accepting Constitutional Monarchy in Nepal in the Preamble itself. That the

interpretation of the Constitution must be based on the Preamble, too, has been already expressed by this court in Manmohan Adhikari's case relating to the Dissolution of the House of Representatives. No order can be issued affecting the basic principles of the Constitution. Nowhere does the Constitution talk about doing anything in accordance with the practices and customs. That the State authority and the sovereign powers shall be exercised in accordance with the provisions of the Constitution is a declaration made by His Majesty the King. Article 3 of the Constitution has mentioned that sovereignty is vested in the Nepalese people.

The provision of Article 31 of the Constitution of the Kingdom of Nepal is based on the assumption that the King does no wrong. On the basis of the assumption of the King doing no wrong the powers conferred on the British Crown have been granted to HM the King by our Constitution. Our Constitution has not made any provision about any inherent or residuary power. The Constitution has not given even any hint about the likelihood of the formation of such a Commission. The Constitution has not provided for treating an order under Article 127 as a part of the Constitution. Even though the Constitution of India made a provision for removing any difficulty in Article 392, that provision was made for removing any difficulty while moving forward from the Government of India Act, 1935 to the Constitution of India, and it was also provided that such an order shall cease to be effective after the beginning of the first parliament. In Nepal, too, after the composition of Parliament Article 127 may be exercised in an extremely exceptional manner. As Parliament possesses the power to amend the Constitution, the issue of removing any difficulty is also concerned with Parliament. The Supreme Court has the power to make judicial review of even an Amendment of the Constitution. As Article 127 of the present Constitution has not made any provision, similar to Article 90A of the Constitution of Nepal, 1962, to treat the disputed order as a part of the Constitution, the contention made in the written reply that the order is a part of the Constitution is not constitutionally valid.

The power under Art. 127 is not discretionary. With regard to the functions discharged by His Majesty or His Majesty alone or in the discretion of His Majesty, an interpretation has been made by this court in Advocate Radheshyam Adhikari's case. Also in the opinion given by the court in connection with the Dasdhunga accident it has been explained that in the changed circumstances no Commission can be set up by issuing an order relating to the formation of a Royal commission as was done in 2036 BS (1979). Of course, the

Constitution does not preclude from imposing restrictions on the fundamental rights by making law but it is not proper to negate fundamental right by issuing such an order. In the same opinion, it has been also explained that Art. 127 could be applied only in the circumstances when there is no alternative arrangement.

Even if some one wants to restrict something, he cannot be allowed to restrict it by taking recourse to a wrong way. Such works should be done by abiding by the Constitution and not fatally hurting the accepted principles of law and justice. In the Dasdhunga case also, it has been held that if need be to interfere with the rights of the citizens, it can be done only through the law made by Parliament. When an organ visualized and provided by Articles 97 and 98 in connection with the prevention of corruption has been set up and is already functioning, the disputed Commission established under the assumption as if there was no alternative arrangement, was not constitutionally valid. The written reply does not clarify what kind of reason cropped up which called for the removal of difficulty. If Article 127 is allowed to be exercised in this way, it will give the impression that other parallel constitutional organs can be also created by resorting to the same Article. That is, however, not the intention of Article 127. An order issued in this manner has virtually acquired the form of amendment of the Constitution. But the Constitution cannot be amended in this manner. Even an amendment of the Constitution cannot be allowed to adversely affect the independent judiciary. An order under Art.127 cannot displace an already existing constitutional organ. To effect such a displacement an amendment must be introduced. As the formation of the RCCC has led to undertaking of two types of investigation in a case of similar nature, it has resulted in unequal treatment among citizens of equal status. This has acted against the principle of equality regarding equal protection of the law for all citizens in an equal situation. Since the provision of appointing anybody whatsoever in the Commission is based on arbitrariness, this is also an unequal treatment. There is no question of the incompetence of the court to review a subject which belongs to the Constitution. Since our Constitution has accepted the principle of Constitutional Supremacy, it is not proper to say that it cannot be examined whether or not the impugned order is violated of the Constitution. It cannot be said that the Supreme Court cannot examine an issue raised in a complaint alleging the violation of the Preamble of the Constitution. In the case of Sampat Kumar, the Indian Supreme Court has agreed that the power of judicial review is one of the basic features of the Constitution. The written reply intends to restrict the powers of the Supreme Court. What advocate Shambhu

Thapa has said while throwing light on Article 31 also shows that the impugned order is subject to judicial review. As the Commission has been constituted also against the principle of "No one should be a judge in his own case", the writ should be issued as prayed for.

3. Advocate Yagya Murti Banjade (on behalf of petitioner Rajeev Parajuli):

It has been contended in the written reply that, as the order has been issued by His Majesty the King, it cannot be reviewed. But since it has been already decided by this court in the writ petitions filed by Rabi Raj Bhandari and Hari Prasad Nepal, in connection with the dissolution of the House of Representatives that an order issued by His Majesty the King can be subjected to judicial review, there is no need of getting confused about this issue. As required by the provision made in Article 27(3) of the Constitution, His Majesty, too, must uphold the Constitution. His Majesty does not have any power to transgress the constitutional limits. Lord Denning has observed in the context of the British Crown that the King, too, must remain under the law. If an order issued by His Majesty is not treated as the law, it cannot be resorted to punish any person. If it is the law, it can be subject to judicial review under Article 88 (1) of the Constitution. The respondents must first clarify this matter. If judicial review is not allowed, the Constitution can be viewed as almost non-existent. The Commission has been formed by an order issued as per Art. 115(7). There is no provision in Article 115 to declare the state of Emergency on the ground of increase in corruption. The formation of the Royal Commission is not in consonance with Art. 115(7). Since an order issued under Art. 115(7) is as good as the law, it can be also subject to judicial review. If the order issued under Art. 115(7) for the prevention of the state of Emergency is given continuity even after the withdrawal of the order of the declaration of the state of Emergency that is tantamount to committing a fraud upon the Constitution. After His Majesty himself has agreed to act according to the Constitution, it is not justifiable to do any work in the name of custom and practices. In England, too, it has been admitted that the Royal Prerogative cannot grant any new thing. It is a recognized principle of justice that the act of justice dispensation must be done by those who possess the knowledge of law. It is believed that the recognized principle of law and justice are applied only in the justice delivered by independent and impartial judges. It has been admitted in the Basic Principles on the Independence of the Judiciary adopted by the UNO in 1985 that the act of justice dispensation must be done by a person who has got knowledge of law and justice. Even though a question has been

raised about the qualifications of the members of the respondent Commission entrusted with the responsibility of justice dispensation, none of them have clarified about their qualifications. The Commission has been formed in contravention of the above mentioned principles adopted by the UNO.

An order issued under Article 127 is not of permanent nature. In case there is no provision in the Constitution but it is promptly required for the time being only then an order can be issued under Article 127 to serve the purpose. Its relevance is over after the purpose has been served. The formation of the Commission and the functions assigned to it have adversely affected the recognized principles of law and justice such as the principles of Natural Justice relating to fair trial. All the issues raised can be resolved even by a writ petition of *habeas corpus*. That an appropriate order can be issued even through a writ petition of *habeas corpus* has been admitted in a 2027 (1970) case in which I was myself the writ petitioner and also in the case of petitioner *Omkar Shrestha v. Office of Bagmati Zonal Commissioner*.

4. Senior Advocate Shree Hari Aryal (in both cases):

The present Constitution has outlined the form and structure of democracy and has bound everyone together. Article 1 of the Constitution has specified the compliance with the Constitution as everybody's duty. Article 14 has guaranteed that no person shall be punished except according to the law. The Constitution has constituted a Commission in regard to the prevention of corruption. It has also prescribed what should be the qualifications of every constitutional organ. As it has been also mentioned in the declaration of Magh 19, 2061 (February 1, 2005) to constitute the Commission not contravening the recognized principles of justice, it does not seem to stake a claim to make a declaration going beyond the constitutional limits. The formation of the Royal Commission, being violation of this declaration, is contradictory to the declaration. As a constitutional dispute has been raised, it should be resolved taking into consideration all the matters related with the Constitution. It has been held in the decision published in the Supreme Court Bulletin (Year 11 No. 8 Full No. 242 P.7) that the Explanatory(Supplementary) Comments prepared in course of making of the Constitution may be also relied on. Only the courts and other judicial institutions falling under Article 84 may follow the recognized principles of law and justice. Although a provision has been made for filing appeal on the decisions made by the Royal Commission, there is, however, no provision for its supervision and control by the Supreme Court as in

the case of the District Courts, the Appellate Courts, the Special Court and other quasi-judicial institutions. Therefore, the formation of the Royal Commission is not constitutional. The provision of Art 35(2) does not permit the issuance of such an order by His Majesty in his discretion. The interpretation of the Constitution must be made in such a way as to preserve the Constitution. The Royal Commission, which is violation of the Constitution, cannot be allowed to continue.

5. Advocate Harihar Dahal (in both cases):

The order constituting the Royal Commission was not issued along with the declaration of the state of Emergency. The order issued in regard to the formation of the Commission under Article 127 is concerned with an unrelated issue and hence it is not constitutionally valid. The order issued under Art. 127, meant for removing difficulty, has been issued to give continuity to such an unconstitutional Commission. Article 127 cannot be exercised to create any institution. Article 127 does not provide any authority to give birth to such a Commission. It has been held in the opinion given by this court in regard to the Dasdhunga accident that Article 127 can be exercised only in a case where there is an absence of any alternative. No order can circumscribe or extend the jurisdiction of the Supreme Court. The Order relating to the Formation of the Royal Commission has violated the provisions of the Constitution. The jurisdiction of the Supreme Court can be extended only through the law made by Parliament. An order issued under Art. 127 cannot get the protection under Article 31. Art. 127 has been applied in a way that affects the basic structure of the Constitution. The protection under Art. 31 is based on the principle that "the King can do no wrong". This constitutional protection has been granted because the King himself does not do anything. Even His Majesty cannot transgress the confines of the Constitution. It cannot be held that the functions discharged by His Majesty in the capacity of the Chief of the Executive can be granted protection by Art. 31. If the Supreme Court is not allowed to make judicial review of such an order, the very soul of the Constitution will be taken away. Art. 31 cannot shrink the power of the Supreme Court to make judicial review. Art. 27(3) has provided protection only for the acts done in accordance with the spirit and intention of the Constitution. This is a positive matter. But in the present dispute, there is a state of violation of the Constitution. Protection is meant for positive things. The courts other than those mentioned in Art. 85, are not entitled to conduct hearing of cases. Since the Commission has been formed going beyond the orbit of Art. 85, such an act is not entitled to get any protection.

6. Advocate Kumar Regmi (on behalf of only Rajeev Parajuli):

In the present dispute there is the need for discussion about four matters including *quo-warranto*, *certiorari*, seeking invalidity of a law and *habeas corpus*. As the petitioner has, exercising his right under *quo-warranto*, raised a question regarding the qualifications of the officials of the Commission, such a question must be answered by the persons to whom it has been addressed. *Quo-warranto* is not a matter to be asked to the appointing authority. It is concerned with the person who has been appointed. He is asked to show by which authority he is occupying the chair. Since such a question is asked in the case of a person holding a post of public accountability, he cannot be allowed to refuse to give reply. It does not suffice to say that he is occupying the office because he has been appointed by His Majesty. He must answer what are his qualifications for occupying that post. Since an order issued under Art. 127 is required to be presented before Parliament Art. 127 cannot be exercised in a situation when there are no Parliament and no Council of Ministers. There is a need for interpretation to find out the place where His Majesty has been placed by the Constitution. In *B.K. Kapoor v. State of Tamil Nadu* (AIR 2001 SC 3435) the Indian Supreme Court has decided about *quo-warranto* and the protection or immunity granted to the Head of the State. That may be relevant also in the present context. There has been a principle that five methods should be adopted in regard to the interpretation of the Constitution. The first among this says that the interpretation of a Constitution should be made on the basis of the books on Constitution. Thereafter, a Constitution should be interoperated on the basis of its original intention, structural reasoning, moral reasoning i.e., liberal interpretation and earlier court practices or precedents. Articles 31 and 127 must be interoperated in the context of the orbit of this principle of interpretation. Article 31 is related to Art. 35. Art. 31 is an Article independent in itself. Art. 31 acquires perfection only from Art. 35(2). Viewing Art. 31 in isolation creates confusion. Art. 35(2) makes it clear what type of work can be done by His Majesty and what are his acts which cannot be questioned. Since ours is a written Constitution, even His Majesty cannot go beyond the Constitution. In the *State of Rajasthan v. Union of India* it has been held that although the Indian Supreme Court cannot look into what type of recommendation has been made to the President, the order of the President can be subject to judicial review. Also, the interpretation made in the case of *S. R. Bomai* is relevant for the interpretation of Art. 35(6) of our Constitution. It has been decided in this case that it may fall under the orbit of judicial review as to what kind of

recommendation was made by the Council of Ministers for the sake of public interest. If the order issued presently had been issued by His Majesty as per Article 35(2), on the recommendation of the Council of Ministers, no question could have been raised as per Art. 31 about the function discharged by His Majesty. If we omit Article 35(2) and then look at the Constitution there would be nothing left in it. Therefore, any claim for the immunity must be constitutionally valid.

7. Advocate Madhav Kumar Basnet (in both cases):

The courts are granted final authority to decide disputes in accordance with the inherent character of the written Constitution. Whether or not the declaration of the state of Emergency is justified is not examined. If it is argued that this court has no power to review the matters involved in the present dispute, then who shall resolve the inner conflicts occurred among various organs of the Constitution or who should clarify the ambiguity present in the Constitution. It is the court which resolves all these issues. In the United States whatever the nine justices opine in regard to even the law made by the American people is made to prevail. These things are accepted on the basis of the fact that in the law court there are persons who are well versed in the concerned subjects. It is the court which has the power to decide whether or not there has arisen a situation to resolve any difficulty. The grounds put forward against raising any question are not clear. If it is so due to political reasons the case of Rabi Raj has already resolved many issues. Since an order issued under Art.115 (7) is to remain effective till the continuation of the state of Emergency, it automatically ceases to operate once the state of Emergency is withdrawn by His Majesty. It cannot be given continuity. If it is argued that the same can be given continuity that could be tantamount to committing a fraud against the Constitution. Article 127 can be exercised only if any difficulty arises in connection with the implementation of the Constitution and not in the event of any difficulty arising in connection with the implementation of any order. If it is believed that the order issued under Art.115 (7) is active then it will show that the state of Emergency is still operative. Even if it is treated as an order issued under Art.115 (7) that order is equivalent to the law and it cannot be viewed as a part of the Constitution. Since the Constitution has provided for vesting sovereignty in the people, it cannot be accepted that the state authority is still vested in His Majesty. The provision for His Majesty exercising his discretion has been made in Articles 28 and 121. Except that His Majesty can do any

other thing only on the recommendation of the council of Ministers pursuant to Article 35 (2).

8. Advocate Badri Bahadur Karki (in both cases):

We are ruled by a written Constitution. The Constitution has not only prescribed the jurisdiction of all the organs of the State rather it has also specified how to use those organs. This is the Constitution also applicable to the respondents. Presently, the executive powers provided by the Constitution also need to be interpreted and analyzed. It has been held by the Pakistani Supreme Court in the case of Dissolution of the Pakistan Parliament that, while interpreting the Constitution, basically a particular Article must be interpreted also in the context of all the provisions of the Constitution and the relevant precedents. The provisions of the Constitution of the Philippines as well as those of ours are similar to a great extent. While making interpretation of the Constitution in the case relating to the oath taking of the President of Philippines Astarda, it was decided to use the rule of construction and it was also held that the interpretation should be made in the context of all the provisions of the Constitution. The court is described as the faithful guardian of the Constitution. If a dispute arises that some organ enjoined to work under the Constitution has not done accordingly, the power and responsibility to resolve such a dispute lies in none other than the Supreme Court. Article 127 has not obstructed the power of this court to make decisions by making interpretation under Article 88. Judicial review of matters under Article 116 is not precluded. Likewise, it can be said that an order issued under Article 127 cannot be reviewed. The powers relating to justice cannot be given to others in contravention of the spirit and intention of the Constitution. That although Art. 28(3) has granted powers only to His Majesty to make law relating to succession to the throne, the issues relating to that law can also be subject to judicial review has been substantiated also by the case of petitioner *Krishna Prasad Shiwakoti v. the Secretariat of the Council of Ministers* published in Nepal Kanoon Patrika, 2054(1997) P. 295. In such a situation it cannot be said that the impugned formation of the Commission cannot be subjected to review. Since all the Statutes, Rules and orders issued by His Majesty are published in the Nepal Gazette, it cannot be said that their judicial review is not possible. Article 27 of the Constitution has provided immunity on the basis of the principle that in Constitutional Monarchy, all the actions are performed on the recommendation of others and no action is performed in one's discretion. Written Constitution means not giving recognition to customs and usages. As a Constitution is enforced to preclude the

possibility of occurrence of matters relating to customs and usages, the respondents should have presented their written reply agreeing to abide by the decision to be made by the Supreme Court. But since they have pleaded instead that no question can be raised in this regard, an organ of the State cannot get immunity by making such pleas. Since all the Articles of our Constitution came into force on the same date of Kartik 23, 2047 (1990), in fact the provision of removing difficulty enshrined in Article 127 should not have existed. Such a provision is not needed at all after the Constitution has become active. Even if such a provision exists it cannot be used to usurp the functions of one organ and to give it to another. An order issued under Art. 127 is of a legislative nature. It is for this reason that such an order is required to be placed before Parliament.

Only because it is a matter to be presented before Parliament, it cannot be argued that its judicial review is not possible under the powers granted by Article 88(1). Since the provision enshrined in Article 115 is to be enforced on the recommendation of the Council of Ministers, His Majesty cannot claim immunity in regard to such an order. The impugned Order relating to the Formation of the Commission has granted powers to the Commission at par with those granted to the law courts including the powers of arresting a person, taking his statement etc. But this is contrary to the opinion given by this court in regard to the Dasdhunga accident that such an order cannot be issued under Art. 127. If any act done by His Majesty results in causing infringement to or interference in the rights of any citizen, he cannot be debarred from coming to this court for safeguarding his right as per the provisions made in the Constitution itself. Thus, it cannot be argued that the court cannot look into the matter after a case is filed claiming infringement of one's right.

9. Petitioner Santosh Mahato:

As the Royal Commission has been entrusted with the authority to exercise legal powers and to award punishment, the order constituting the Commission is a law. The issue relating to Article 31 has been already resolved while issuing the order relating to the registration of the petition. It cannot be allowed to raise this issue again. Article 31 must be interpreted in consonance with Art. 35(2). No question can be raised in regard to the functions discharged by His Majesty in his discretion. Besides that, in case of actions related to the rights of the people it is not proper to say that no questions can be raised. Because the impugned order is not issued in the discretion of His Majesty it cannot be deemed as having the immunity provisioned in

Art. 31. Article 137 was exercised for the first time on the recommendation of the Prime Minister. Where the difficulty has arisen and how it is intended to resolve must be mentioned in the same order. The Order relating to the Formation of the Royal Commission does not point out the Article which has been faced with difficulty in its implementation. The order issued on Ashwin 18, 2059 (October 4, 2002) makes it clear that the order was issued following difficulty in the implementation of the Constitution. As the order issued on Magh 25, 2061 (February 7, 2005) is equivalent to the law, it can be said that some difficulty has arisen in the implementation of such a law. If there is any difficulty in the implementation of the law it should be implemented either by amending the concerned Statute or by repealing it. As Parliament is presently not in business the writ petition cannot be rejected holding that it lies under the jurisdiction of Parliament.

10. Advocate Arun Gyawali (on behalf of Rajeev Parajuli):

A previous decision of this court published in Nepal Kanoon Patrika, (Decision No. 6205, P. 450) has held that the Commission for the Investigation of the Abuse of Authority has been established as a powerful and effective body. As the nature of the work of the Commission for the Prevention of Abuse of Authority established under the Constitution of Nepal, 1962 to undertake both investigation as well as disposal of cases was considered as contrary to the principle of Natural Justice, the present Constitution has set up separate bodies to conduct investigation and trial of the cases. Therefore, the formation of the Royal Commission is not in consonance with the Constitution.

11. Advocate Hari Prasad Upreti (on behalf of Rajeev Parajuli):

The responsibility specified by Art.27 (3) can materialize only after the fulfillment of the condition laid down in Art.35 (2). As it has been mentioned in the Preamble of the Constitution that the State power shall be exercised in accordance with the provisions of this Constitution, it cannot be exercised without acting according to Art.35 (2). As there is no provision in Art.127 permitting the issuance of an order by His Majesty alone or in his discretion, Art.127 cannot be exercised without acting in accordance with Art.35 (2). There is no legal basis in the order issued under Art.127. Because the formation and jurisdiction of the Commission are not specified by law the Commission is not empowered to take any action. The order under Art.127 is an executive order. If Articles 27, 35 and 127 are read together then there shall be more clarity. Placing (an order) before

Parliament is possible only in the event of the presence of Parliament. Also, because the order has not acquired a legal status the order must be voided even according to Art 88 (2).

12. Advocate Hari Krishna Karki (on behalf of petitioner Rajeev Parajuli):

The issue to be resolved in the present dispute is not a political one. The Constitution is in itself a political document. There is a need for resolution of a constitutional issue. Article 31(3) has been interpreted in Rabi Raj Bhandari's House of Representatives Dissolution case. Since the reference to corruption has not been made in the order relating to the declaration of the state of Emergency, after the execution of the work according to Art. 127 there is no meaning of placing or not placing the order issued under Art. 115(7) before Parliament. In the event of emergence of a question regarding unconstitutionality, it cannot be said that the issue cannot be examined by the court.

13. Advocate Prakash Raut (on behalf of petitioner Santosh Mahato):

In order to exercise Art.127 there must arise any difficulty in the implementation of the Constitution. It has not been mentioned in the Notification which provision of the Constitution is faced with difficulty in its implementation. An order cannot be issued advancing a false plea regarding emergence of some difficulty. At the time of constitutional review the constitutionality must be proved. Art.127 is not an Article which can be invoked by His Majesty in his discretion. Even if there is discretion, it cannot be unlimited or unrestrained. The Constitution has not visualized such a Royal Commission. Only because Art.127 has been exercised several times cannot be a ground to grant recognition to such a Commission. Also, according to the provision of the Law Interpretation Act, 2010 (1953) an order may be equivalent to the law but it cannot become a part of the Constitution. A provision allowing both investigation and trial of the case by one and the same body cannot help to conduct impartial hearing and impartial disposal of the case. There is no constitutional provision to grant continuity to an order issued under Art.115 (7). It has, therefore, harmed the Constitutional Supremacy and the Rule of Law.

14. Senior Advocate Basudev Prasad Dhungana (in both cases):

In order to issue an order under Article 127 one must show the difficulty caused in the implementation of the Constitution. The

existence of that condition must be shown objectively. Deprivation of the rights of the citizens cannot be allowed by exercising that Article in the absence of such a condition. When Article 127 was exercised for the first time in the year 2051 BS (1994) for the purpose of extending the date of elections, that act did not infringe the rights of the citizens. The impugned order could not show the existence of the precondition of emergence of any difficulty. In order to conduct business by forming a body outside the confines of the Constitution Article 127 cannot be exercised by taking the plea that there has arisen a difficulty in the implementation of the Constitution. The provision made in Art. 88(5) allowing His Majesty to seek opinion of the Supreme Court makes it clear that the powers of His Majesty are limited. Final interpretation of the law cannot be made by others except the Supreme Court. In the case of Bed Krishna Shrestha (1952), too, a judicial principle was laid down that even though His Majesty is not made a respondent in regard to any act done by His Majesty such an act could be declared void if that accomplished work appeared to be unlawful and unconstitutional. His Majesty cannot be made a respondent also on the basis of the principle "the King can do no wrong". Whatever executive functions are discharged by His Majesty are all done on the recommendation of the Council of Ministers. Therefore, there is no obstacle to proceed with the hearing of the writ petition.

Submissions made by the Legal Practitioners appearing on behalf of the Respondents:

1. Attorney General Pawan Kumar Ojha (on behalf of the respondent Royal Commission):

The investigation about petitioner Rajeev Parajuli had been started by the Commission formed by the first Royal order issued on Falgun 6, 2061 (February 17, 2005). After the petitioner, appearing before the Commission, gave his statement and participated in the bail proceedings and after having been placed in detention for failing to produce the bail amount he filed this petition long after the completion of the investigation. He should have petitioned the court immediately after the action had been initiated. Both the petitioners have accepted the order issued during the period of the state of Emergency in their writ petitions. The Government of elected representatives of the people could not be formed because the elections to Parliament did not take place. Had the elections been conducted the Constitution could have come to its original place. The present problem has been created due to the dissolution of Parliament. As presently, there is no Government made under Articles 36 and 42 of the Constitution of the

Kingdom of Nepal, 1990, following the elections to Parliament, all the executive and legislative powers except the judicial powers have become vested in His Majesty. Even when those powers were vested in others the responsibility to uphold and protect the Constitution is vested in His Majesty as per Article 27(3) and Article 43 of the Constitution. Article 27(3) has granted the authority to His Majesty to take appropriate steps in the best interest of and for the progress of the people of the Kingdom of Nepal. The act done in the best interest of the people is the law. His Majesty has got this power even when a Council of Ministers having the executive power has been formed. These are Articles 72 and 127 which are said to remain operative in the event of the failure to conduct the elections to Parliament. The State affairs are being conducted by exercising these two Articles. In the Royal Proclamation of Magh 19, 2061 (February 1, 2005) it has been mentioned that there is need to prevent corruption due to factors like wide spreading corruption and obstacles caused to the development of the nation. The Council of Ministers mentioned in Article 35(2) is a Council of Ministers which is comprised of the elected representatives. But at present there is no such situation. Because the present Council of Ministers has been constituted under Art. 127, the decisions to be made by His Majesty are not to be made on any one's recommendation. It has to be made by His Majesty himself. As the executive powers are vested in His Majesty himself, there is no meaning of the plea that, while exercising Art. 127, there must be a recommendation made by the Council of Ministers as per Art. 35(2). The present state of Nepal is of a special nature. His Majesty has not formed a caretaker government. The situation of His Majesty himself conducting the State affairs is something of a special nature. Action has been taken to rectify the spoiled works.

The provision for His Majesty has been made by Art. 27 of the Constitution. Because Article 27(1) has enjoined that His Majesty must be a follower of the Hindu religion a consideration of the oriental tradition and customary practices also suggest that His Majesty is required to undertake the responsibility. It has been the tradition and position of the King to be patron of the Hindu religion and culture and to be guided by that. According to the Vedic tradition, he is supposed to take into consideration every pain and pleasure of the people. The present state of affairs has cropped up only due to increase in corruption and lack of good governance. The situation of conflict caused also due to the factor of corruption has led to the declaration of the state of Emergency. The report prepared by the Committee constituted under the governorship of the then member of the National Assembly Mahadev Prasad Yadav has also proved that corruption is

deeply rooted and has spread perversion in the country. One of the reasons why the country has reached the present state is also the factor of corruption. Monarchy is today the only institution which can take the responsibility for effectively curbing and controlling corruption. Every work is to be done in accordance with the satisfaction of His Majesty. No question can be raised in the law court in regard to the acts done in accordance with the satisfaction of His Majesty under Article 115(7). It has been also mentioned in the Proclamation of Magh 19, 2061 (February 1, 2005) to form such a Commission. Only because no condition other than the one relating to preventing the state of Emergency has been specified in Article 115 (7), it is erroneous to say that such a Commission cannot be formed. There is a provision that an order issued under that Article can be effective as the law. But this is not equivalent to the law. This is equivalent to the Constitution. As the Constitution is also the law that order is also a part of the Constitution. As it has been held by the court in the petition filed by Jhank Kandel and Others that the Constitution should also be treated as the law this order is also a part of the Constitution. As the Commission was formed under Art. 115(7) and the functions including investigation of complaints, registration and disposal of cases etc. were started and as His Majesty had withdrawn the state of Emergency since Baisakh 5, 2062 (April 18, 2005) while those works were still under consideration and as there was no provision to transfer the cases under consideration of the Commission to other bodies, a difficulty has arisen to conduct those affairs and activities. Therefore, His Majesty has issued an order under Article 127 to give continuity to the acts of the Commission. The Government of Nepal Act, 1948 and the Constitutions of 1959 and 1962 had granted powers to His Majesty in regard to removing difficulty in the implementation of the Constitution. The 1962 Constitution had declared that such an order shall be a part of the Constitution. But as such provision is missing from Art. 127 of the present Constitution, there is a need for interpretation in this regard. Because such an order removing the difficulty in the implementation of the Constitution gives momentum to the implementation of the Constitution, such an order must be treated as included under the Constitution. Also because an order issued to remove some difficulty of a statute is regarded as a part of that statute, an order issued with a view to removing difficulty in the implementation of the Constitution must be treated as a part of the Constitution. That the provision regarding removal of difficulty is a wider provision has been also accepted by the Indian Courts. So it cannot be said that only this can be done or only in this way it can be done. As the order issued under Art.115 (7), being equivalent to the law, is a part of the Constitution, an order has been issued under Art.

127 to give continuity to the acts initiated by the former. It has been an accepted principle that a Constitution should be interpreted in a harmonious way as much as possible. Art. 98 has given power to the CIAA to conduct investigation and make prosecution only in case of the persons holding any public office. But as the Royal Commission has been granted authority to investigate, prosecute and try other persons as well such as private individuals working in the public organization, banks and financial institutions and also offences concerning contract and lease, revenue cheating, smuggling etc there is no duplication of composition of two institutions for the same work. The powers granted to the Commission as per Section 2 of the Order relating to the Formation of the Commission, and the basis of composition of the CIAA under Art. 98 are separate. The Royal Commission has been formed also to lessen the burden of work of the CIAA. Although the activities and powers of both these bodies appear similar to some extent, since their activities have been conducted in separate ways and also because the CIAA has not complained about any adverse effect on its jurisdiction, the formation of the Royal Commission must be declared constitutional through harmonious interpretation of the Constitution. It has not been mentioned that the present Constitution has accepted only the Adversarial system out of the two systems of criminal justice. The provisions made in the Forest Act, the Customs Act and the Local Administration Act have also accepted the Inquisitorial system. And as this court has accepted this system as constitutional, the remark that the powers granted to the Commission in regard to investigation, prosecution as well as disposal of cases is contrary to the recognized principles of justice and the principle of Natural Justice, is not constitutionally and legally valid. Moreover, as the cases are tried by the Commission only after the officers deputed by the Office of Attorney General have conducted the investigation in the capacity of Investigation Officers and file the charge sheet, it is not correct to say that all the works have been done by one and the same body. Those willing to defend have been also granted appropriate time. There is provision for dispensation of clean and impartial justice. As there is also provision for filing appeal on the decisions made by the Commission in the Supreme Court, the Supreme Court can exercise control in case any decision has been made by the Commission contrary to the recognized principles of law and justice. There are persons having long administrative experience in the Commission. They are also equipped with qualifications and competence. Even though it is not in the form of a law court. the Commission has been formed on the pattern adopted by quasi-judicial bodies. Its activities are almost similar to those of judicial bodies. As there is a provision requiring the placement of the order issued under Article 127 before Parliament, this question first of all needs to be

viewed from the political angle. It is the responsibility of Parliament to examine this order. Article 31 does not allow the filing of a case in respect of any act performed by His Majesty. As an Ordinance promulgated under Art. 72 falls under the legislative powers, it may be subjected to judicial review. However, judicial review of an order issued under Art. 127 cannot be made. The petitioners have not presented any decisions resembling our present situation and related official documents. Since such an order has been issued as an attempt to prevent corruption prevailing in the country, there is no place for issuance of the order prayed for by the petitioners.

2. Deputy Attorney General Drona Raj Regmi (on behalf of also the Royal Commission):

The present situation has evolved in course of constitutional practice. As mentioned in Section 12 of the Royal Proclamation of Magh 19, 2061 (February 1, 2005) emphasizing the need for control of corruption, His Majesty has promulgated the formation of the RCCC. As it has been also mentioned in the Royal Proclamation to further equip the CIAA with means and resources, it is clear that the Royal Commission has not been formed to interfere in the functions of that Commission. In the petition of Santosh Mahato the first order issued on Falgun 5, 2061 (February 16, 2005) has been accorded recognition. The Royal Commission has been formed in order to prevent corruption which is prevalent as a national crime. After the withdrawal of the state of Emergency by His Majesty, it is obvious that difficulty has arisen in respect of the functioning and proceedings of the Commission formed by the order issued under Art.115 (7). As there has arisen a condition asking for giving continuity to the Royal Commission in view of the requirement of the State, the order has been issued in accordance with Art. 127. If it is held that the order issued under Art. 115(7) cannot be given continuity it will be virtually tantamount to exercising control over Art. 127. No preconditions have laid down which need to be fulfilled before issuing an order under Art 127. An order issued under this Article is a kind of order which ought to be placed before Parliament and which can be resolved by political discussion. If this court enters into consideration in this regard that will be tantamount to interference in the powers of Parliament. In the writ petition of Purna Man Shakya, the jurisdiction of Parliament has been analytically discussed. The nature of the Commission which has acquired continuity in accordance with Art.127 is constitutional. In the order issued by the court in the petition filed by Jhanka Kandel and Upendra Nandan Timalsena, this court has admitted that an order issued under Art.127 shall also have the immunity contained in Art.31.

As the Commission has been constituted taking recourse to a constitutional provision, it cannot be questioned as being unconstitutional. Because a provision has been made for filing appeal in the Supreme Court, even if the Commission delivers any decision in contravention of the recognized principles of justice that can be controlled by this court through judicial review of that decision. The proceedings of the Commission have been conducted in accordance with the judicial system.

Because the decisions of the Commission have been subjected to appeal in this court, and the appeals have been already disposed by this court, the Commission cannot be dubbed as unconstitutional. Article 127 has been exercised in the form of a constitutional practice. This process has come as a source of the Constitution. As the impugned order is a part of the Constitution, it cannot be subjected to judicial review.

3. Deputy Attorney General Narendra Pathak (also on behalf of the Respondent Royal Commission):

To resolve the present dispute Articles 115 (7) and 127, Articles 84 and 85 and Articles 35 (2) and 27 need to be interoperated. The justification for constituting the Royal Commission has been already mentioned in the Royal Proclamation of Magh 19, 2061 (February 1, 2005). It has been conferred powers to determine the nature of the offence and conduct investigation, file charge sheet and decide the case. An order issued under Article 115(7) has been described as equivalent to the law and as the Constitution is also the law, this order is a part of the Constitution. Only because of a difficulty arising in the functioning of the Commission which is already working after its constitution, continuity has been granted to the activities of the Commission by removing the difficulty. Irrespective of whether or not Parliament is in Session, the power to exercise Art. 127 has been entrusted only to His Majesty by the Constitution. This much is the difference between the provision concerning removal of difficulty contained in Article 392 of the Indian Constitution and that of our system. Other provisions are similar. How to interpret the Constitution in an abnormal situation has been already discussed by this court in the writ petition filed by Santosh Mahato against Speaker Tara Nath Ranabhat. Our Constitution has provided for the Executive and the Legislature along with His Majesty. As other Articles of the Constitution are implemented through an order issued under Article 127, such an order issued under this Article is a part of the Constitution. That an order issued under Article 127 is a part of the

Constitution is also proved by the fact that the Constitution was activated by removing the difficulty in the formation of the Constitutional Council for the appointment of the Chief Justice. Article 127 is an Article which can be exercised similarly as other Articles. This Article has been exercised in accordance with the Doctrine of Necessity on the basis of the needs of the State. It has been held by a Special Bench of this court in the writ petition of Binod Karki (Nepal Kanoon Patrika, 2051, p. 553) that an Ordinance shall be promulgated on the basis of the needs of the State and that old laws shall get recognition. There has been a practice of justice dispensation by three types of courts. General Courts, Special Court established for hearing special type of cases and judicial institutions fall under this. Under this there are also institutions functioning as Tribunals which dispense justice but which do not appear to be of the nature of general or Special Court but which discharge functions similar to those of the law courts. Such Tribunals are also accommodated under the recognized principles of law. However, the functions discharged by them must be open and reasonable. The decision made in the case of Iman Singh Gurung does not resemble in this context. It cannot be rightly said that justice cannot be done only because one and the same institution carries out the investigation and conducts hearing of that case. There is greater credibility in the evidences collected at one's own initiative in comparison to those collected by other institutions. Disputes regarding judicial functions or system have entered this court even before. In the decision made on Jyestha 5, 2058 (May 18, 2001) in writ No. 3264 (published in Nepal Kanoon Patrika, p. 23), Special Court and quasi-judicial institutions have been declared constitutionally valid also in the context of Articles 84 and 85 of the Constitution. As there has been made a provision for presenting one's version right from the time the Commission starts investigation, for making arguments and submissions before the Commission and also for filing appeal on the decisions made by the Commission it cannot be said that the formation and the functions of the Commission are violation of the recognized principles of justice. It is a policy matter of the Executive to decide what types of courts or institutions should be established and what types of cases should be entrusted to them for hearing. Section 65 of the Corruption Prevention Act, 2059 (2002) has accepted that the cases falling under this Act may be heard by other institutions. Decision has been also made that investigation may be conducted by general courts, too. It does not suffice only to allege that some work has been done in a *mala fide* way or with evil intention, it must also be proved. It has been already decided that an order issued by His Majesty under Art. 127 cannot be reviewed. Also, in the opinion given by this court in respect of the Citizenship Bill, Article 27 (3) has been

discussed and analyzed. It has been held by a Special Bench of this court in the writ petition of Chandra Kant Gyawali that in order to exercise the powers of this court under Art. 88 (1) the provisions of any law must be inconsistent with the Constitution and that the issue of the provisions of the Constitution being inconsistent with one another may not be reviewed under Art. 88 (1). Also, on account of the previous decisions made by this court, propounding the principle that the courts do not decide about hypothetical issues, the present writ petition cannot be entertained.

4. Acting Deputy Attorney General Puspa Raj Koirala (also on behalf of the respondent Royal Commission):

His Majesty has constituted the Royal commission. The court has already accepted the exercise of Article 127 in the writ petition filed in connection with the appointment of the Prime Minister by His Majesty by exercising Art 127. The provision of upholding and preserving the Constitution has been already accepted in a conventional manner. The order issued by His Majesty by exercising Article 127 is the Supreme law. This has not come under any law, rule or byelaw. Therefore, it cannot come under the orbit of Art. 88 Article 98 has not provided that no institution other than the CIAA shall be established in respect of prevention of corruption. As the proceedings are being conducted adopting the procedure prescribed by the Special Court Act, 2059 (2002) it can not be said that the Commission has been constituted in contravention of Articles 84 and 85.

The order issued under Art.127 is only an order aimed at removing the difficulty. The Constitution has not been amended by it. In the present Nepal law still the Inquisitorial system has been adopted. This fact is substantiated also by the provision made in the Trafficking in Human Beings (Prevention) Act, 2043 which provides that no case shall be initiated without the permission of the court. There is also a provision which empowers the CIAA to not only investigate but also to make decisions. There is no provision which restrains from establishing another institution of a parallel form by exercising in Art.127. The words used in Art. 127 must be interpreted accordingly.

5. Joint Government Attorney Tika Bahadur Hamal (on behalf of the respondent Royal Commission):

In the writ petition of the petitioner Rajeev Parajuli it has not mentioned which the order (specifying its date) has been sought to be

declared void. How the order is contradictory has also not been clearly explained. In the writ petition of Santosh Mahato only the order dated Baisakh 16, 2062 (April 29, 2005) has been sought to be voided, thereby giving recognition to the order dated Falgun 5, 2061 (February 16, 2005). On Baisakh 16, 2062 (April 29, 2005) the order was issued to give continuity to the order dated Falgun 5, 2061 (February 16, 2005). The person having power to issue an order also possesses the power to issue an order for the sake of giving continuity. The provision contained in Section 21 of the Law Interpretation Act, 2010 (1952) establishes this matter. As no clear plea has been taken in the writ petition of Rajeev Parajuli, the petition cannot be entertained according to the judicial principle propounded in decision No. 2346 published in Nepal Kanoon Patrika, 2046 (1989). Art. 31 (3) denotes the acts discharged by His Majesty. No question can be raised in that regard. Article 27 (3) is an Article to be exercised in the discretion of His Majesty. Except the provisions of Articles 28, 43 and 121 there has been a provision in practice for long time for His Majesty discharging the functions by exercising the State authority inherent in him and in accordance with the customs. This is established also by the fact that His Majesty had sought the opinion of this court in respect of the recommendation for the dissolution of the House of Representatives and the Citizenship Bill. In the opinion submitted by this court in connection with the Dasdhunga accident it has been mentioned that Article 127 can be exercised to resolve the immediate problems if there emerges a situation in which any institution fails to discharge its functions. In the writ petition of Hari Prasad Nepal also, the court has held that His Majesty has got constitutional immunity. In the case of Ved Krishna Shrestha published in Nepal Kanoon Patrika 2016 (1959) it was held that the King can do no wrong. The issues raised by the petitioner are of political nature. Taking into consideration the best interests of the people the order has been issued also on the basis of Article 27 (3) and, therefore, the order is constitutionally valid. Article 14 (2) does not say that investigation cannot be made twice. That it is permissible to take action under separate laws in connection with the same dispute has been held in the writ petition filed by Kishor Shrestha (writ No. 2845 of the year 2059). The Indian Supreme Court has also decided that the Head of the State is vested with the inherent powers to take any step whatsoever in the best interest of the people. When there is no existence of a government elected by the people, it is not proper to say that a recommendation under Art 35 (2) is essential.

6. Senior Advocate Kunja Bihari Prasad Singh (on behalf of the respondent Royal Commission):

The provisions made by the Constitution of the Kingdom of Nepal, 1990 are extremely good. Had there been no provision of Article 127 in the Constitution for removing any difficulty in the implementation of the Constitution no organ would have functioned in the nation at present. As a result of some difficulty arising in the implementation of Article 53 (4) of the Constitution, His Majesty has made the Royal Proclamation by invoking Article 127. In the writ petition of Jhank Kandel and others, this court has already interpreted Article 31(3) and held that no writ petition can be entertained against the Council of Ministers constituted by His Majesty by exercising Article 127. Against the backdrop of the failure to hold the elections following the dissolution of Parliament His Majesty the King, upholding and protecting the constitution as per Article 27 (3), made the Royal Proclamation of Magh 19, 2061 (February 1, 2005) to declare the state of Emergency, and established the RCCC on Falgun 11, 2061 (February 22, 2005) by issuing an order as per the constitutional provision of Art. 115 (7) in order to prevent corruption which is ever increasing, as mentioned in that Proclamation, in the country. As the order issued under Art. 115 (7) was to remain effective till the continuation of the state of Emergency, after the withdrawal of the state of Emergency by His Majesty on Baisakh 16, 2062 (April 29, 2005) there arose some difficulty in conducting the proceedings of the Royal Commission constituted in accordance with the order issued on Falgun 5, 2061 (February 16, 2005). And, therefore, the Royal Commission was granted continuity in order to investigate the complaints and dispose off the cases pending in the Commission. Petitioner Santosh Mahato has failed to point out in his petition the reasons which could explain why the order is violated of the Constitution. The court has to remain confined to the request of the petitioner. If the Council of Ministers can be constituted by exercising Art. 127, how the Royal Commission which is just a small part of the Executive cannot be formed. There is no request for interpretation of Art.27 in the petition. There is no dispute that the impugned order has been issued by His Majesty. As this act has not been done by any employee of His Majesty's Government nor is His Majesty's Government, a respondent in the case, there is no question why the immunity under Art.31 cannot be available in this dispute. So far as the question of the opinion given in the Dasdhunga accident is concerned, that cannot be treated as a precedent because it is merely an opinion which has not come from

any decision made in the course of disposal a case. The constitutionality of an order issued under Art.127 can be examined by the court only after it has been presented first in Parliament. As this writ petition has been filed without presentation of the impugned order in Parliament the writ petition cannot be considered as mature. The order directing the registration of the petition is not lawful. No full hearing of the writ petition can be made by this Bench because all the respondents have not been asked to submit their written reply. Therefore, first the petition must be forwarded to a Single Bench to complete that formality.

7. Advocate Prem Bahadur Bista (on behalf of the Chairperson of the Royal Commission Bhakta Bahadur Koirala):

There is a situation of recognizing the Council of Ministers constituted under Art.127 because of the absence of an elected Prime Minister. The Royal Commission has been established as mentioned in the Proclamation of Magh 19, 2061 (February 1, 2005). Since the qualifications, functions and powers of the Commission have been specified in the Order relating to the Formation of the Commission, the Commission cannot be viewed as an institution parallel to the CIAA. The petition has been filed challenging only the continuity granted to the Commission without challenging the establishment of the Commission under Art.115(7). The Royal Proclamation has been made by His Majesty within the orbit of Art.27 (3) and the Commission has also been established accordingly. It has also been substantiated by the written reply that as it has been accepted by the Preamble of the Constitution that the State power is vested in His Majesty, the Commission has been established on that very basis. As no previous charge sheet has been filed in the case of Rajeew Parajuli in a law court, it cannot be said that he has been placed into double jeopardy. Only because the trial of a graft case in a general court shall consume more time, this type of Commission has been formed. This Commission is of temporary nature. Thus, the problem shall be automatically solved after the formation of Parliament.

8. Advocate Krishna Ram Shrestha (on behalf of the Chairperson of the respondent Royal Commission Bhakta Bahadur Koirala):

As the Commission has been formed by exercising Art.127 of the Constitution of the Kingdom of Nepal, 1990 it is not proper to say that it has been formed by His Majesty by exercising the state authority or in his discretion. Notwithstanding the fact that Article 127 has been kept towards later part end of the Constitution, this Article is significant

and powerful. This Article may also contract or control other Articles of the Constitution. As the recommendation for extending the date for holding elections to Parliament, which must be held not exceeding six months as provisioned in Article 53, has been made in accordance with Article 127, it should be considered to have contracted the provision contained in Article 53. As the Council of Ministers is also constituted by exercising this Article, when there is absence of an elected government, this Article seems capable of making additions to or detractions from other provisions of the Constitution in regard to the formation of the government. An order issued under Article 127 is a part of the Constitution. The Royal Commission seems to have been established probably because the CIAA failed to fulfill the objective of the formation of the latter. As mention has been also made about the prevention of corruption in the Royal message and the twenty one program of the Government, the Commission has been established for the prevention of corruption caused by economic disarray. The order under Article 127 has been issued in order to give continuity to the Commission which is already functioning after its formation. Nothing can prevent the act of giving continuity to the Commission. The opinion given in the Dasdhunga accident by the apex court cannot be treated as a precedent within the meaning of Article 96 as it has come out of the internal discussion of the court. The order issued under Article 127 cannot be constitutionally tested under Article 88 (1) because it is a part of the Constitution as it can contract or extend the other provisions of the Constitution. The qualifications of an official can be looked into only if the provision under which he has been appointed has prescribed any qualifications. If nothing has been mentioned in that order, or if that order has not imposed any restrictions, there is no obstacle in appointing any person to the post. As the order has also provided that the Supreme Court may scrutinize whether or not the proceedings of the Commission are lawful, the apex court may cause the observance of the recognized principles of justice if the proceedings of the Commission are inconsistent with them. The Commission is an organ subordinate to the Supreme Court. It cannot be described that all the functions have been discharged by only one institution because the Rules have provided for separate investigation and disposal while addressing the issue how the Commission shall perform its work. As the formation of the Commission has been guided by the objective of benefiting the nation and the citizens by preventing corruption, it cannot be described that it has amended the Constitution.

9. Advocate Ganesh Bahadur Dhungana (on behalf of Prem Bahadur Khati, a member of the respondent Royal Commission):

There are persons in the Commission who fulfill the qualifications and are competent. The Commission has been set up under pressure from the people as the nation has reached a state of failure due to widespread corruption in the country. The Commission has been formed by exercising the special powers inherent in His Majesty following the transfer of the powers of Art.35 (2) and Parliament to His Majesty. Therefore, the formation of the Commission is constitutional.

10. Advocate Kaushal Kishor Dwivedi (on behalf of Hari Babu Chaudhary, a member of the respondent Royal Commission):

Our constitutional provisions are quite adequate for the resolution of the issues raised by the petitioner. There is no need for the reference to alien provisions. The Constitution cannot be activated at a time when the nation is engulfed in an abnormal situation. It had become urgent to undertake some appropriate measures from the viewpoint of the law and order situation prevailing in the country. The system of Monarchy in the foreign countries is different from that of ours. The American as well as the Indian constitutional systems also do not resemble our constitutional system. Our Constitution has not placed His Majesty in a situation where he has to sit silently, no matter a situation whatsoever may arise. His Majesty had to undertake the step of Magh 19, 2061 (February 1, 2005) due to impediments caused to the functioning of the system of governance of the country. The reasons and the objectives have been already mentioned in the proclamation. The order has been issued under Art.127 in order to give continuity to the order issued during the state of Emergency which was declared following the Royal Proclamation. As Rajeev Parajuli has not been prosecuted and punished for the same offence prior to the investigation made by the Royal Commission in that connection and only because the CIAA had closed the case-file after making investigation and enquiry, it is not proper to say that he has been prosecuted twice for the same offence in contravention of Article 14 of the Constitution. The Constitution has not imposed any restriction establishing another institution in connection with prevention of corruption. The commission has been established to expedite the proceedings regarding the offences related to corruption. Article 127 is itself clear. There is no need for interpretation. An order issued under this Article does not fall under the purview of judicial review. The facts of the opinion given by this court in the Dasdhunga accident and those of the present dispute are entirely different; there is no resemblance between the two. The acts performed under Art.27

(3) have been performed in accordance with the responsibilities entrusted by that Article. The members of the Royal Commission have not been appointed in the capacity of judges. They have been appointed as the members of the Commission taking into consideration their skills and competence. This matter cannot be an issue of judicial review.

11. Advocate Mithilesh Kumar Singh (on behalf of Hari Babu Chaudhary, a member of the respondent Royal Commission):

It is a constitutional provision that the orders issued under Art.127 must be first approved by Parliament like an Ordinance promulgated under Art.72. A judicial principle has been enunciated in the decision No. 4852 published in Nepal Kanoon Patrika of the year 2051 (1991) stating that the interpretation of the Constitution should be made in a harmonious manner and not according to its letters. Because currently the country is faced with a state of conflict there has arisen a need requiring His Majesty to make some sort of arrangement. In a similar situation important arrangements have been made by the Head of the state in all the South Asian countries. The Constitutions of 1959, 1962 and 1990 have accepted that the State authority vests in His Majesty. When the 1990 Constitution was promulgated it was so done by exercising the State authority. Corruption is a disease which has spread in the society like plague. The Royal Commission has been established to prevent such a disease. Neither the CIAA nor the National Vigilance Centre has entered the court with a petition claiming interference in their jurisdiction by the formation of the Royal Commission. Even though the Commission has been established through an order dated Falgun 5, 2061 (February 16, 2005) that has not been challenged by the petitioner. All the three Constitutions of 1959, 1962, and 1990 have made a provision in respect of removing any difficulty in the implementation of the Constitution, and in all of them, a provision has been made for the issuance of order by His Majesty. The petition filed by Santosh Mahato does not explain which law contravenes which provisions of the Constitution and how. The order cannot be invalid as it is of a temporary nature. The order issued on Baisakh 16, 2061 (April 28, 2004) is a new one and it has not given continuity to the former order. The later order is different from the earlier order. According to the new composition, there could have been changes also in regard to the Chairperson and the members. It has not been mentioned in the petition as to which right has been deprived of by the impugned order. For this reason the petition can be neither registered under Art.88 (1) nor can it be scrutinized by this court. His Majesty used to form Commission of different types also

under the earlier Constitutions. Since various Commissions have been formed by His Majesty from time to time since the year 2007 (BS) (1951), it is not proper to say that only this very Commission cannot be formed by him. Such types of orders are passed from time to time in a Monarchical country. The order issued by His Majesty cannot be scrutinized by this court under Article 31 (3) also according to the recognized principle that "the King can do no wrong".

12. Advocate Jukti Jung Lamichhane (on behalf of Raghuchandra Bahadur Singh, a member of the respondent Royal Commission):

The present writ petition is about a serious and complex matter. It needs to be decided on the basis of the customs, the laws and the Rules. The petitioner has entered the court with the petition after the proceedings have already reached the mid stage, and he has not taken the plea that the formation of the Commission is unconstitutional. The petitioner does not have the right to raise questions about the members of the Commission. Had he been adversely affected, he should have approached the court in time. The petitioner has not entered the court with a clean hand. The writ petition filed after the lapse of time related to the order issued under Art.115 (7) has been clearly responded through the written reply. There does not exist a situation as pointed out by the petitioner.

The Royal Commission not a court; it is a Tribunal. That a Tribunal can be constituted is a provision of the Constitution. As our system is one which also comprises Monarchy, the Oriental Philosophy related to the Kingship should be also taken into consideration. It cannot be viewed from the angle of the Western principles and decisions. While dealing with the present dispute it is not suffice to consider only the foreign constitutional and legal systems. The Vedas, the Upanishads and the Smritis should be also looked into. The provision of Art 27 (3) means that all the powers are vested in His Majesty. The term "in the best interests and welfare of the people" does not mean that the Constitution must be literally complied with. If the best interests of the people are not served, His Majesty may undertake any step whatsoever. Article 127 has not been exercised directly by His Majesty. It was exercised on the recommendation of the then Prime Minister. Article 127 is not conditional. Article 115 (7) is a minor Article. If His Majesty can exercise a minor Article, it cannot be held that he is not capable of exercising a major Art.127 in his own discretion.

13. Advocate Krishna Kumar Thapa (on behalf of Raghuchandra Bahadur Singh, a member of the respondent Royal Commission):

The Royal Commission was formed on account of an abnormal situation engulfing the country caused by corruption. By exercising Art.127 His Majesty has preserved the honor and dignity of the Nepali people. The orbit of Article 127 is pervasive. The process of the composition of the Commission and its jurisdiction are entirely different from that of the CIAA. The CIAA is of a permanent nature whereas this Commission is of a temporary nature. The Royal commission has been formed to deal with the works which the CIAA could not find out, which it could not see and what it could not do. It is Parliament which can look into an order issued for removing any difficulty. The court is not empowered to examine its need and justification.

14. Advocate Trilochan Gautam (on behalf of Shambhu Prasad Khanal, a member of the respondent Royal Commission):

The formation of the Commission has not affected the basic structure of the Constitution. The commission has been formed with a view to securing the objective of social justice provisioned in Article 25. The fundamental rights may be restrained if any action is initiated in accordance with the Directive Principles of the State. The Constitution is not an absolute document. The major responsibility of the State lies in fulfilling the positive obligation. The duty of fulfilling the positive obligation in an abnormal situation lies in the Crown in a Monarchical country. There is a relation between Article 27 (3) and Article 127 of the Constitution. An order issued under Art.127 cannot attain maturity unless it is placed before Parliament. So long as Parliament does not come into existence, it shall remain valid like Article 90A of the Constitution of Nepal, 1962 and, thus, as a part of the Constitution. Our Constitution has not accepted that an interpretation ought to be made in the way it has been written in the Constitution. If the opinion given by the court in the Dasdhunga accident was not acceptable to the party which sought that opinion, how could it be acceptable to the court? Articles 84 and 85 have not accepted that the powers relating to justice dispensation can be exercised only by the law courts. Our Constitution has not made any provision similar to the provision of the American Constitution- "Total judicial power vested to the Supreme Court". It is also proved by the fact that our Constitution has granted the authority to the Legislature to decide how the powers relating to justice shall be exercised. If the powers given by Articles 27 (3) and 127 are controlled powers, it is the Constitution which should exercise that control. The court cannot exercise that control. The order relating

to the formation of the Royal Commission is not violation of Article 98. The very name of the Commission has reflected the difference. The Royal Commission has been conferred powers to take action against not only public domain but also private domain.

15. Advocate Bal Krishna Neupane (on behalf of the Chairperson of the respondent Royal Commission Bhakta Bahadur Koirala):

As the provision of presenting an order issued under Art.127 before a joint session of both Houses of Parliament is a provision relating to the procedure of conducting the joint session of Parliament, the order issued under Art.127 remains on a higher level than Art.115 (7). If His Majesty so desires, an order relating to the amendment of the Constitution may be also issued under Article 127. Such an order cannot be a subject of judicial review under Article 88 (1). As the Constitution has also given continuity to the Citizenship Act, 2020 (1963) and as an order issued under Art.115 (7) is also equivalent to the law and as the Constitution is also the law, continuity can be given to an order issued under Art.115 (7) by exercising Article 127. The country is being governed through the exercise of Art.127. Article 127 has been exercised several times. So far as the merits and demerits are concerned, the responsibility for them should be borne by one who has constituted it. If any changes are to be introduced in the Constitution, or if any institution is to be established, it can be done only through the exercise of Article 127. But that should be done only for some time not permanently. The matters not covered by an Ordinance can also come through the exercise of Art. 127. The order issued under Art.127 can be looked into by the elected representatives. The present order has not been placed before Parliament. It has remained in the form of a kind of Bill. Although the court may make judicial review of a constitutional Amendment the decision has been made under Art 88 (1). It is not proper to say that an institution can be established under Art.115 (7) but not under Art.127. The scope of Article 127 must be expanded; it is not proper to contract it. The necessity does not look for the law. A decision should not be made by looking at the face of the Commission. If the CIAA did not work effectively why should another Commission not be constituted? Article 98 does not restrain from constituting another Commission. The Corruption Prevention Act, 2059 (2002) has also accepted that another institution for taking action under that law may be created. It cannot be described as a violation of the principle of Natural Justice only because of a provision made by the law empowering any institution to conduct both the investigation as well as the trial of cases.

16. Advocate Hari Gautam (on behalf of Hari Babu Chaudhary, a member of the respondent Commission):

The present dispute is not a legal dispute, it is simply political. It is not a matter to be resolved by the court. Our country cannot avoid looking at the eastern culture. To say that there is no need of the Royal Commission is tantamount to saying that corrupts should not be punished. Upholding the Constitution is the duty of His Majesty. The Commission has been formed in the interest of the country and the countrymen. The formation of the Commission is constitutional.

17. Advocate Laxman Prasad Pokharel (on behalf of Hari-Babu Chaudhary, a member of the respondent Royal Commission):

As the CIAA had closed the case-file of Rajeev Parajuli after having only conducted the investigation, it cannot be described as prosecuting him twice. Proceedings can be reopened in respect of a file which had been closed earlier. The request for also quashing the order issued under Art.115 (7) which has been already withdrawn is not justifiable. All the Constitutions of Nepal have been granted by His Majesty. His Majesty, who is equipped with the State authority of promulgating the Constitution, cannot be considered as incapable of issuing other orders.

18. Advocate Kamakhya Lal Karna (on behalf of Raghu Chandra Bahadur Singh, a member of the respondent Royal Commission):

All the Constitutions of Nepal have been granted by His Majesty. That all the authority is vested in His Majesty also on the basis of customs established by Art.20 of the Constitution of Nepal, 1962. The present constitution has provided that sovereignty granted to the people shall be exercised as mentioned in the Constitution. Articles 28, 72, 115 and 121 have conferred on His Majesty all powerful authority. The acts performed by His Majesty are treated as acceptable to all. Even if there is any difficulty in the implementation of the order issued under Art.115 (7) Article 127 may be exercised. Article 88 (1) is applicable only in connection with the laws made by Parliament. It is only Article 127 which is competent to remove all types of difficulties. As economic disarray is still prevailing in the country, the act of giving continuity to the commission is constitutionally correct.

19. Advocate Raj Kumar Thapa (on behalf of Prem Bahadur Khatri, a member of the respondent Royal Commission):

If the court starts examining the matters related to Art.127 it shall result in the amendment to several Articles. The Constitution has itself

provided that the State authority shall be vested in His Majesty. All the executive, legislative and judicial powers are vested in His Majesty. The State authority is the official power of the Head of the State. The state authority and the sovereign powers are the two sides of the same coin. The judicial power is also vested in His Majesty by virtue of the provision contained in Art.122. The exercise of Article 127 has been made since 2051 (1994).

20. Advocate Mohan Prasad Acharya (on behalf of Prem Bahadur Khati, a member of the respondent Royal Commission):

Law should be always directed towards the good of the society. Even at present such an interpretation should be made. At present there is prevailing a state of impunity in the country. The Royal Commission has been set up due to extreme explosion of corruption resulting in gradual emptying of the State coffer. As the Commission has been given continuity on the basis of Article 127 remaining within the constitution it cannot be termed as unconstitutional. As it has been a tradition that orders are issued or promulgated by His Majesty, such an order cannot be described as extra-constitutional also for this reason. The provision for removing difficulties is made aiming at the action which may happen in the future. As there is such a provision in the constitution it may be used for any action or purpose whatsoever. The importance of the king has been recognized by the history and every work done by us. The constitution of 1962 has not yet been replaced. Full powers are vested in His Majesty. Prof. Dicey has opined that in the time of abnormal situation confronted by the nation the British Crown may also undertake any action whatsoever. The order issued under Article 115 (7) may be granted continuity by exercising Art 127. His Majesty has got powers to perform special acts. Article 27 (3) of the present Constitution has accepted that constitutionally those powers are vested in His Majesty. It has been explained in the contempt of the court case of Kusum Shrestha that the principle of Natural Justice is not attracted in a matter for which provision has been made by the law. The order is constitutional from every angle. The fundamental rights of the petitioner have not been infringed.

21. Advocate Awadhesh Kumar Singh (on behalf of the Chairperson of the respondent Royal Commission Bhakta Bahadur Koirala):

Article 127 has been exercised time and again. It has been decided in Rabi Raj Bhandari's case of dissolution of Parliament that an act performed by His Majesty in his discretion cannot be subjected to judicial review. As the Commission has been given continuity by

exercising Article 127 with the satisfaction and in the discretion of His Majesty, it cannot be subjected to judicial review.

22. Senior Advocate Laxmi Bahadur Nirala (on behalf of the Chairperson of the respondent Royal Commission Bhakta Bahadur Koirala):

A dispute is resolved through the interpretation of the Constitution. An interpretation is not mathematical; it depends on the needs. Interpretation must be moved forward in accordance with time and circumstances. Anything should be interpreted according to the circumstances prevailing in the country. Because a constitutional void had been created following the recommendation made for postponing the elections, Article 127 has been exercised in order to activate Article 35 (2). His Majesty has taken this step in compulsion due to the provision made in Art.27 (3). It has been already ruled in the petition of Upendra Nandan that as per Article 31 no question can be raised in regard to the measures taken by His Majesty. Article 35 (2) is currently inactive. As it is an order issued directly by His Majesty, it has got the immunity under Art.31 (3). Because there is a provision for the review of the laws so an ordinance also can be reviewed. But as an order issued under Art.127 is not equivalent to an Ordinance, it cannot be forcefully interpreted as being similar to an Ordinance. Whether or not His Majesty can govern the country is a political question. The court cannot look into this matter either directly or indirectly. Article 127 is clear. It is not proper to interpret it through other means. It is not that a parallel institution has been created. The Royal Commission and the CIAA are obviously different by their names, functions and jurisdiction. The Preamble of the Constitution has not provided that from now onwards the State authority shall cease to vest in His Majesty. Where corruption is rampant the rule of law cannot survive. Section 85 of the chapter on the Court Procedures in the National Code cannot be applicable to an action taken in course of investigation. In India, CBI conducts reinvestigation even after ten agencies had conducted investigation earlier. Since the impugned order cannot be reviewed there is no place for considering the request for quo-warranto in that regard.

On behalf of the legal practitioners appearing in the proceedings under Rule 42 of the Supreme Court Rules, 2049 (1992):

1. Advocate Basudev Sharma

No clear legal interpretation of Article 127 have been put forward by the either sides. An order to be issued under Art.127 is an executive

order. As it has to be presented before Parliament it cannot attain maturity without examination by Parliament. Article 127 is meant for application for removing any difficulty or obstacle. The difficulty or obstacle must have been caused in a legal way. It cannot be contended that some difficulty or obstacle has arisen under Art.127 in order to fulfill any political objective. Whereas the Constitution of 1959 had provided that the provision for removing any difficulty ought to be considered as included in the Constitution itself, there is no such provision in the present Constitution. In order to exercise Article 127, first of all it must be ascertained that any difficulty has cropped up. Art.127 cannot be exercised simply because it has been alleged that there is widespread corruption in the country. There is no ground for Parliament to accept the formation of the Royal Commission. The Royal Commission is not constitutional. The nature of the order issued for giving continuity to the Royal Commission and of an order issued for some other purpose are different. Article 127 cannot be exercised in anyway. The order issued on Ashwin 18, 2059 (October 4, 2002) has come to fulfill a constitutional lacuna. While interpreting any Article of the Constitution all the Articles and sub- Articles must be taken into consideration. As the order issued under Article 127 has been issued for Parliament it must be presented before Parliament and Parliament must look into it. The constitutional provision regarding removal of any difficulty cannot be treated as the one relating to the law. As it is concerned with the infringement of the fundamental rights of an individual, it cannot be argued that because the order issued under Article 127 is a matter to be presented before Parliament, it cannot be scrutinized by the court. There is no obstacle in granting relief under Article 88 (1). There must be judicial settlement of the issue raised by the petitioner along with the proper remedies in view of the fact that the order issued under Article 127 has to be presented before Parliament.

2. Advocate Dharma Raj Regmi:

How the act of giving continuity to the formation of the Royal Commission is incongruous with the Preamble and Article 127 of the Constitution has not been explained in the writ petition. There is a clear provision about presenting the order issued under Article 127 before Parliament. That order is a law. It shall amount to encroachment upon the powers of Parliament, if the court gives its opinion in this regard prior to its presentation before Parliament.

In the present writ petition scheduled for today for the sake of delivering judgment a perusal of the pleas and contention of the writ

petitioner, written replies submitted by the respondents and the submissions made by the learned Counsels representing both the parties and the Bench Memo submitted by them shows that the following issues need to be decided:

1. What are the provisions made by the Constitution of the Kingdom of Nepal, 1990 in regard to the exercise of the State authority?
2. Can questions be raised in a law court in respect of the acts performed by His Majesty and whether or not such acts can be subjected to constitutional review?
3. What is the nature of the present dispute- political or constitutional?
4. Whether or not the acts of constituting the RCCC and giving it continuity constitutionally valid?
5. Should or shouldn't an order requested by the petitioner be issued?

So far the first question is concerned, it has been contended in the written reply presented by the Royal Commission that His Majesty has promulgated the order pursuant to Article 127 in accordance with the constitutional practices, customs and usages of Nepal, and by exercising the discretionary powers used to be exercised by His Majesty since the long past. Besides, the learned Counsels appearing on behalf of the Royal Commission and its members have raised in their submissions various issues, such as, His Majesty is a Hindu King; the King is required to discharge his duties in accordance with the Hindu religion; the Constitution cannot exercise control over the King; as the State authority is vested in His Majesty, the King can perform the acts which serve the interests of the people; as the Constitution of Nepal, 1962 has not yet been replaced, the sovereign power still resides in His Majesty. In this context it becomes essential for this Bench to look into what type of provision was present in respect of the exercise of the State authority before the enforcement of the Constitution of the Kingdom of Nepal, 1990 and what has been the provision in this regard after the promulgation of the present Constitution. Article 68 of the Constitution of the Kingdom of Nepal, 1959 had made a clear-cut provision in respect of the State authority by declaring that all other State powers except those provided in the Constitution and the prevalent laws vested in His Majesty. As per Article 20 (2) of the Constitution of Nepal, 1962 the sovereignty of Nepal resides in His Majesty. Besides providing that all the executive, legislative and judicial powers emanated from His Majesty, Article 90 also provided that all the inherent powers of His Majesty except those described in the Constitution or the prevalent laws are vested in him.

This clearly shows that all the residuary powers relating to the State authority including the executive, legislative and judicial powers, which emanate from His Majesty as per Article 20(2), appear to be apparently inherent in His Majesty.

While going through the Preamble of the present Constitution to find out what kind of provisions have been made regarding the State authority and the sovereign powers in the Constitution of the Kingdom of Nepal, 1990, which was promulgated after the revocation of the Constitution of Nepal, 1962, it is found that, having been convinced that the source of State authority of independent and sovereign Nepal is inherent in the Nepali people and as from time to time a determination has been expressed to conduct the State administration in consonance with the popular will and as the Nepali people had expressed some time back their desire to bring about constitutional changes, the Constitution of the Kingdom of Nepal, 1990 has been prepared with the objective of securing to the Nepali people social, political and economic justice long into the future. It is clear from the aforesaid matters mentioned in the Preamble that the Nepalese people have been recognized as the source of the State authority and that the need for the Constitution of the Kingdom of Nepal, 1990 arose from the main reason of the Nepali people's desire for introducing changes, expressed through the people's movement, in the constitutional system introduced by the Constitution of Nepal, 1962. In the second paragraph of the Preamble describing what should be the form of the system of governance in the Kingdom of Nepal, the Constitution has laid down the objectives of achieving the goal of safeguarding the basic human rights of every Nepali citizen, maintaining fraternity and unity among the Nepali people on the basis of liberty and equality, consolidating adult franchise, Parliamentary System of Government, Constitutional Monarchy and multi-party democracy and transforming the concept of the rule of law into a living reality by making arrangements for an independent and effective justice system. In the third paragraph of the Preamble, providing that after the issuance of the present Constitution according to the wishes of the Nepali people, the State authority and sovereignty of the Kingdom of Nepal shall be exercised in accordance with the provisions of this Constitution, it has been mentioned that the Constitution has been promulgated and enforced with the advice and consent of the Council of Ministers by His Majesty by exercising the State authority hitherto exercised by him. It has been provided in Article 3 of the Constitution that the sovereignty of the Kingdom of Nepal shall reside in the Nepali people which shall be exercised in accordance with the provisions made in this Constitution. Likewise, the present Constitution

has also adopted the Doctrine of Separation of Powers by distributing the executive, legislative and judicial powers relating to the system of governance among the three major organs of the State.

It has been clearly expressed in the Preamble of the present Constitution that after the commencement of this Constitution according to the desire of the Nepali people the State authority and the sovereign powers shall be exercised in accordance with the provisions of this Constitution. As the State authority and the sovereignty shall be exercised in accordance with the Constitution of the Kingdom of Nepal, 1990, it is not proper to believe that the sovereignty of Nepal is vested in His Majesty and that all the executive, legislative and judicial powers emanate from His Majesty as had been provided in the Constitution of Nepal, 1962 which was in force prior to the introduction of the Constitution of the Kingdom of Nepal, 1990. In the present context of these clear-cut constitutional provisions, which stated that after the constitutional change the State authority and sovereignty of the Kingdom of Nepal shall be exercised only as provided by the Constitution of the Kingdom of Nepal, 1990, it shall be contrary to the constitutional basis and provisions to raise dispute about the State authority and to put forward arguments as if the Constitution of Nepal, 1962 had not been repealed. The Constitution occupies the position of a fundamental and powerful law. In the countries having written Constitutions matters such as the principle and system of governance, its functions, distributions of the State authority among various Organs of the State etc. are decided by the Constitution itself. It is contrary to the Constitution to violate the provisions made by the Constitution and the subject matters determined by it. As the violation of the system and the subject matter determined by the Constitution shall result in the creation of constitutional problems, it is in the best interest of the State to take precaution against the prospective emergence of such a situation or to avoid it.

As regards the second question, the learned Counsels appearing on behalf of the respondents have argued that as the Constitution does not provide for raising any question in the law court in regard to any act performed by His Majesty, the issue of formation of the RCCC cannot be brought before the court. In the writ petition of Certiorari, *Hari Prasad Nepal and Others v. Prime Minister Girija Prasad Koirala and Others* (Nepal Kanoon Patrika, Golden Jubilee Birthday Celebration Issue 2052 p. 88), an eleven member Special Bench of this court has, in regard to Art. 31 of the Constitution of the Kingdom of Nepal, 1990, observed that the responsibility for the act performed

by His Majesty on the advice and recommendation of the Council of Ministers or any other official or body shall have to be borne by the concerned official or body who had given that advice. Likewise, in the writ petition of Certiorari, *Rabi Raj Bhandari v. Prime Minister Man Mohan Adhikari and Others* (Nepal Kanoon Patrika, Golden Jubilee Birthday Celebration Issue 2052, p. 1), an eleven member Special Bench of this court has opined that the nature and extent of the acts to be performed by His Majesty in his discretion, in accordance with the spirit and ideal of the system of Constitutional Monarchy, have been delineated by the Constitution itself. As those types of acts are generally of political nature, the provision of Article 31 in respect of the acts performed by His Majesty in his discretion according to the Constitution is undoubtedly worthy of consideration. It has been further held that if the acts to be performed or already performed by His Majesty on the advice or recommendation of other constitutional organs, bodies or officials in accordance with the Constitution are also kept out of the purview of judicial review on the basis of Article 31, in that case there shall be no meaning of the concepts adopted by the Constitution such as written constitution, limited government, accountable system of governance, the rule of law etc. The concept that "the King can do no wrong" was developed in course of the constitutional development in the United Kingdom due to the customary practices like the King conducting the system of governance and exercising the State authority only on the recommendation or advice of the Council of Ministers or responsible officials. In fact, when any act is performed by the King only on the recommendation or advice of somebody, there is no question of the King doing any wrong. In case there occurred any mistake, the responsibility for such an act goes to the official who had given the advice or made the recommendation. This very principle has been also adopted by Article 31 of the Constitution of the Kingdom of Nepal, 1990. In order to recognize the scope of Article 31 of the present Constitution, the nature of the acts to be performed by His Majesty needs to be analyzed. For this purpose the provisions made in the Constitution in respect of the acts to be performed by His Majesty, particularly the provision of Article 35(2), need to be specially discussed. There is no scope of the interpretation of Article 31 by excluding Article 35 (2) of the Constitution.

Article 35(2) of the present Constitution seems to have classified the acts to be performed by His Majesty in three categories. Firstly, the acts to be performed by His Majesty or in his discretion; secondly, the acts to be performed specifically on the recommendation of any institution or official; and thirdly, the acts to be performed with the

advice and consent of the Council of Ministers. It is but natural that sometimes serious questions may arise about the constitutionality of the acts performed by His Majesty alone or in his discretion in accordance with the Constitution. It does not seem appropriate to raise any question in the law courts about matters other than the serious issue of the constitutionality of the acts performed by His Majesty alone or in his discretion in accordance with the Constitution. The Constitution of the Kingdom of Nepal, 1990 has accepted the provisions of the present Constitution as a cornerstone of the social, political and economic affluence of Nepal and has, thus, assimilated the concept of constitutional supremacy. As it has been provided in Art.27 (3) of the Constitution that His Majesty shall uphold and preserve the Constitution keeping in view the best interests and welfare of the Nepali people, such best interests of the Nepali people will be served only through the Constitutional provisions. Therefore, the Constitution has entrusted His Majesty with the duty of upholding and preserving the Constitution keeping in view the best interests and welfare of the Nepali people. As it has been a resolution of the Constitution that the constitutional provisions are the cornerstone of the overall development of the Nepali people and as the concept of constitutional supremacy has been recognized, if the Supreme Court refuses to resolve a constitutional question placed before it regarding an allegation involving a constitutional dispute that the State authority has been exercised in contravention of the constitutional provisions, disturbance may be caused to the constitutional foundation of peace and development of the Nepali people. Constitutional disputes should not remain unresolved. If such disputes are not resolved through suitable means, it may result in the emergence of a difficult and abnormal situation, and the State system may be engulfed by such an abnormal situation. As the Supreme Court has been entrusted with the responsibility, under Article 88 of the Constitution, for the enforcement of the rights of the people guaranteed by the Constitution and the laws or for the judicial resolution of any constitutional dispute, it shall be contrary to the Constitution if the Supreme Court is not allowed to enter into a question of constitutionality.

The provision contained in Article 87 of the Constitution of Nepal, 1962 looks very similar to Article 31 of the Constitution of the Kingdom of Nepal, 1990. According to Article 21(2) of that Constitution of 1962 the powers of making, amending or repealing the law relating to succession to the throne vested only in His Majesty. His Majesty has enacted the Succession to the Throne Act, 2044 (1987) by exercising those powers. In the writ petition of *Krishna Prasad Shiwakoti v. Secretariat of the Council of Ministers & Others*, the provision of

Section 13 of the Succession to the Throne Act, 2044 (1987) relating to capital punishment was challenged and a request was made by the petitioner to declare the impugned law void as it was violation of the Constitution (Nepal Kanoon Patrika 2054, Decision No. 6387 p. 295). That legal provision was subjected to constitutional scrutiny and it was held that, as the proviso to Article 131 of the present Constitution provided that the laws inconsistent with this Constitution shall 'ipso facto' cease to operate one year after the commencement of this Constitution, although not void and invalid, such laws cannot remain active. As this constitutional question was subjected to constitutional scrutiny and the constitutional dispute was also resolved, this showed that this court has already examined a constitutional question relating to the provision of a law made by His Majesty exercising the powers vested in His majesty alone. Thus it cannot be argued that no question can be raised in the Supreme Court in regard to a constitutional dispute which has arisen in connection with the Emergency powers enshrined in Art. 115 and the power to remove any difficulty provided in Art. 127 of the Constitution of the Kingdom of Nepal, 1990.

It is essential for judges to remain committed to the principle they have propounded or their earlier concepts. Nevertheless, in the changed circumstances there may arise such situations when it may not be appropriate for a judge to remain committed to his earlier concept. If a judge is confronted with such a situation requiring him to dispense justice in contradiction to the principle he had himself propounded earlier or his earlier concepts or stand, the judge must clearly explain the grounds and reasons why his earlier conception was erroneous or not appropriate in the changed circumstances. The learned counsels appearing on behalf of the respondents have argued that, as in *Advocate Upendra Nandan Timalsena v. HMG & Others* (writ No. 3130 of the year 2059 BS) a Single Bench Judge has ruled on Manshir 17, 2059 (December 3, 2002) that Article 31 of the Constitution shall be attracted in regard to the exercise of Article 127 by His Majesty in order to remove any difficulty in the implementation of the Constitution, in view of that ruling it is not proper for this court to raise any question, as per Article 31, also in connection with the present dispute. As the responsibility for directing, controlling and conducting the system of governance of the country in a general way is vested in the Council of Ministers pursuant to Article 35(3) of the Constitution, the above mentioned petition seems to be concerned with the formation of the Council of Ministers by His Majesty by exercising Article 127 in order to activate that provision contained in Article 35(3). Unlike in the present petition, that petition does not seem

to involve a dispute regarding formation of a separate institution by exercising Article 127 of the Constitution. It is, therefore, not possible to agree to the plea made by the learned counsels of the respondents that this court is not competent to look into the matter raised in the present writ petition as per Article 31 of the Constitution on the basis of an order passed by a Single Bench Judge on Manshir 17, 2059 (December 3, 2002) in a dispute which is entirely different from the present dispute.

Learned senior Advocate Kunj Bihari Prasad Singh and others appearing on behalf of the respondent RCCC have submitted that the order issued by a Single Bench Judge of this Court on Bhadra 19, 2059 (September 4, 2002) asking for the submission of written reply in the writ petition filed by Advocate Santosh Kumar Mahato (Writ No. 57) is unconstitutional and unlawful. The extraordinary jurisdiction of this court provided by Article 88 of the Constitution of the Kingdom of Nepal, 1990 is of equitable and discretionary nature. Under this jurisdiction, on the basis of the nature of the dispute, this court is competent to issue appropriate orders including the order for the submission of written reply. In this context it has been provided in Rule 40(4) of the Supreme Court Rules, 2049 that in course of initial hearing of a petition filed under Article 88(1) and (2) of the Constitution, if the contention of the petitioner appears just and lawful, the court must issue an order in the name of the respondent to be present before the court on a specified date with a written reply provided that there was any reason justifying denial of the issuance of an order as prayed for by the petitioner. In writ petition No. 57 questions have been raised against the constitutionality of the respondent Royal Commission citing various Articles of the Constitution on the ground that the Order relating to the Formation of the RCCC was issued on Falgun 5, 2061 (February 16, 2005) as per Article 115(7) of the Constitution and the act of giving continuity to the Royal Commission by exercising Article 127 after the withdrawal of the proclamation of the state of Emergency as per Article 115(11) on Baisakh 16, 2062 (April 29, 2005) was contrary to Article 127 of the Constitution. And as basically a similar type of dispute seems to be involved in writ petition No. 118 relating to Habeas Corpus filed by Sanjeev Parajuli on behalf of Rajeev Parajuli, and also taking into consideration the order already issued for presenting that writ petition on Bhadra 23, 2062 (September 8, 2005) for hearing, and as it shall also be proper from the viewpoint of judicial administration to conduct simultaneous hearing of both the writ petitions involving issues relating to similar disputes, the order instructing for scheduling both the writ petitions for simultaneous hearing cannot be treated as contrary to the

Constitution and the law. Besides, in response to the order issued by a Single Bench Judge on Bhadra 19, 2062 (September 4, 2005) instructing the respondent Royal Commission to file a written reply the latter has already submitted the written reply in this court as per that order. In that order no plea has been taken in respect of the order issued by this court. As the written reply has been already submitted in compliance with the order issued by this court and as the concerned party has not raised any plea in that regard, the contention made by the learned counsels appearing on behalf of that party raising objections to an issue which has not been originally raised in the written reply and calling it illegal and unconstitutional cannot be treated as lawful.

As regards the third question, there is a need to decide whether or not the dispute presented before the court falls under 'the judicially manageable standard'. There is no denying the fact that the court must not enter into a political question which does not involve a constitutional or legal question and which is not fit for judicial resolution. No dispute shall become political simply because it has been described as a political one. It is necessary to understand the nature or character of such a dispute in order to find out whether or not the subject matter of the dispute is political. The policy matters relating to the State and the system of governance not falling under the constitutional, legal or judicial resolution standard as well as the political disputes which can be effectively resolved by the Executive, the Legislature or other organs instead of the Judiciary ought to be treated as political disputes. It is the contention of the respondents that as the order issued by His Majesty on Baisakh 16, 2062 (April 29, 2005) under Article 127 of the Constitution giving continuity to the formation of the RCCC constituted by His Majesty as per Article 115(7) was an act carried out by His Majesty in accordance with the Royal Proclamation made on Magh 19, 2061 (February 1, 2005) in the interest of the general public by exercising the State authority vested in His Majesty, it is a subject matter involving a political question. In view of the fact that the Constitution of the Kingdom of Nepal, 1990 has been proclaimed by His Majesty providing that the State authority and sovereignty of Nepal shall be exercised in accordance with this Constitution and since the constitutional dispute of the formation of the RCCC needs to be decided also on the basis of the provisions relating to the exercise of the State authority as determined by the Constitution, it is not proper to call such an indisputably constitutional matter a political dispute.

As regards the fourth question whether or not the act of the establishment of the RCCC and that of giving continuity to its formation are constitutional, the writ petition, the submission made by the learned counsels of the petitioner and the Bench Memo submitted by them maintain that the formation of the Royal Commission was not related with the purpose of the prevention of the state of Emergency as mentioned in the Proclamation of the State of Emergency; no such Commission can be established under Article 115(7) of the Constitution of the Kingdom of Nepal, 1990; such a Commission can neither be constituted under Article 127 nor such a Commission constituted under Art. 127 can be given continuity under Art. 115 (7); the activities and proceedings of the Commission are not in accordance with the principle of Natural Justice and are also contrary to the provision contained in Art. 98 of the Constitution of the Kingdom of Nepal, 1990. On the other hand, the written reply of the respondents and the submissions made by the learned counsels including the learned Attorney General and the Bench Memo submitted by them contend that due to the emergence of a situation of conflict caused by widespread corruption in the country, the State felt the need for its prevention for which it constituted the RCCC. As the jurisdictions of the Royal Commission and that of the CIAA are different, the Royal Commission has not been constituted in contravention of Article 98. Although Article 127 has provided for presenting an order issued under that Article before Parliament, that procedure has not been complied with as yet. Also, the court is not competent to look into a matter which has been given continuity under Article 127 in the satisfaction of His Majesty.

As regards the plea made by the respondents that no question can be raised in a law court regarding the Order relating to the Formation of the RCCC since it had been issued by His Majesty, in view of the conclusion arrived at on the basis of the analysis of Articles 27(3) and 31(3) in question No. 2 and the mention made in paragraph 6 page 4 of the written reply received from the Office of Attorney General to the effect that "the matter to be examined by the honorable court through judicial review is only whether or not the order relating to the Royal Commission is constitutional", it is not proper to say that the impugned order cannot be looked into.

It has been contended in the written submission produced by the office of the Attorney General that the Royal Commission has been formed under the Doctrine of State Necessity in the context of taking effective action against the culprits for preventing wide spread corruption in the country and the need for making the procedure for

taking such action expeditious and simple. The establishment of the Commission is constitutionally valid also on the basis of the decision made by this court on Jyestha 27, 2062 (June 9, 2005) in Writ No. 29 of the year 2061 (2004) in which it was held that the State was competent to undertake appropriate measures on the basis of State Necessity or the Doctrine of Necessity. Moreover, as it has also been mentioned in the written reply and the written submission produced by the respondents that the Commission has been formed as per the provision empowering His Majesty to constitute such a Commission by issuing an order in accordance with Article 115(7) during the proclamation of the state of Emergency under Article 115(1), at this point here, it has also become essential to undertake a minute study of the various provisions of Article 115 of the Constitution of the Kingdom of Nepal, 1990 and the order relating to the proclamation of the state of Emergency by His Majesty. The Notification issued by the Chief Secretariat of His Majesty and published in the Nepal Gazette of Magh 19, 2061 (February 1, 2005) (Additional Issue 47 (B) Part 4, Section 54, Kathmandu) is as follows:

"On account of occurrence of serious threat to the sovereignty, integrity and security of the Kingdom of Nepal, His Majesty the King has proclaimed, in accordance with Article 115(1) of the Constitution of the Kingdom of Nepal, 1990, the order of the State of Emergency to be effective with immediate effect throughout the Kingdom of Nepal and, in accordance with Clause (8) of the same Article, has suspended Parts (a), (b), (c) and (d) of Clause (2) of Article 12, Section (1) of Article 13 and Articles 15, 16, 17, 22 and 23 (except the remedial right to habeas corpus)". There are several Clauses of Article 115 of the Constitution of the Kingdom of Nepal, 1990. Of them the following provisions are there in Clause (1), Clause (7) and Clause (11) of that Article.

"Article 115 (1): In the event of occurrence of a serious threat to the sovereignty and integrity of the Kingdom of Nepal or security of any part thereof on account of war, external aggression, armed rebellion or extreme economic disarray, His Majesty may proclaim or issue an order of the state of Emergency to be effective throughout the Kingdom of Nepal or in any specific part thereof."

"Article 115 (7): In the event of the proclamation or issuance of the order of the State of Emergency pursuant to Clause (1) His Majesty may issue appropriate orders for the prevention of such a state. An order thus issued shall remain in force as law during the continuation of the state of Emergency."

"Article 115 (11): The Proclamation or order of state of Emergency made or issued pursuant to Clause (1) may be revoked by His Majesty at any time during its continuation."

It is necessary to mention in the Proclamation or the order of the declaration of the state of Emergency why the threat had emerged, in contravention of the constitutional provisions, to the sovereignty or integrity of the Kingdom of Nepal or the security of any part thereof whether by war, external aggression, armed rebellion or extreme economic disarray. If the Proclamation or the order relating to the State of Emergency has been issued it is to be presumed that the state of Emergency has occurred due to the very reason which has been pointed out in the Proclamation or the order. As there is a provision that after the Proclamation or issuance of the Order of the state of Emergency, His Majesty may issue, pursuant to Section 115(7), such orders as are necessary to meet the exigencies, and such orders shall be operative with the same force and effect as law so long as the state of Emergency is in operation, it seems that His Majesty may issue an order pursuant to Article 115(7) only for addressing the reason which has led to the proclamation of the state of Emergency whether due to threat to sovereignty or integrity of the Kingdom of Nepal or the security of any part thereof or war, external aggression, armed rebellion or extreme economic disarray. There seems to be the absence of a clear constitutional provision permitting the application of the provision contained in Article 115(7) in respect of any state other than that mentioned in the Proclamation or order relating to the state of Emergency. It has been submitted that corruption has become widespread as it has engulfed the nation leading to extreme economic disarray and, therefore, the RCCC has been constituted for preventing corruption. A study of the Notification issued by the Chief Secretariat of His Majesty, Royal Palace, and published in the Nepal Gazette Additional Issue 47(B) Part 4 on Magh 19, 2061 (February 1, 2005) shows that as a grave emergency has arisen in regard to the sovereignty or integrity or security of the Kingdom of Nepal, His Majesty has, by Proclamation, declared or ordered a state of Emergency pursuant to Article 115(1) in respect of the whole of the Kingdom of Nepal. It is not constitutionally proper to presume that the state of Emergency has been declared on account of the grounds and reasons separate and different from those which have been mentioned in the order proclaiming the state of Emergency to justify such a declaration. In the order proclaiming the state of Emergency issued on Magh 19, 2061 (February 1, 2005), there is no

mention of economic disarray as one of the reasons for proclaiming the state of Emergency.

Also, His Majesty did not mention the factor of economic disarray in Section 12 of the Royal Proclamation issued on the same date. It has been simply mentioned in the said proclamation that measures for the prevention of corruption shall be undertaken not contravening the principles of justice. Due to these reasons no constitutional ground has been put forward which may justify that the RCCC has been constituted on account of economic disarray as pleaded by the learned counsels of the respondents. As an order pursuant to Article 115(7) may be issued to meet the particular exigency due to which the proclamation or the order of the state of Emergency has been issued, it seems to be a clear constitutional intent that the provision of Article 115(7) cannot be resorted to in respect of a constitutional condition or reason which does not appear in the Proclamation or order of the state of Emergency. Moreover, as the Royal Notification published in the Nepal Gazette of Baisakh 16, 2062 (April 29, 2005) (Additional Issue No. 7, Vol. 55, the Chief Secretariat of His Majesty, the Royal Palace Kathmandu) states that " His Majesty has withdrawn the order of the state of Emergency, proclaimed by him on Magh 19, 2061 (February 1, 2005) to become operative throughout the Kingdom of Nepal pursuant to Article 115(1) of the Constitution of the Kingdom of Nepal, 1990, effective from today as per Section 11 of that Article," the constitutional provision very clearly shows that the state of Emergency proclaimed under Article 115(1) and the order issued under Article 115(7) for the purpose of its prevention have automatically become purposeless and void. Thus, when a particular act performed by activating some constitutional provision becomes void by virtue of another act performed in accordance with the provisions of the same Constitution, it shall be viewed as an act performed by the use of force if it is interpreted that in the absence of a clear constitutional provision something which has already become void can be given continuity or is worthy of acquiring continuity. Also, such an act causes an impediment to the course of constitutional evolution.

The Office of the Attorney General, learned senior advocate Kunj Bihari Prasad Singh and learned advocates including Mithilesh Kumar Singh, Awadhesh Kumar Singh and others have also laid special emphasis even in the written submissions made by them that the Royal Commission had to be constituted due to State Necessity. The written submission presented by the Office of the Attorney General has also advanced the following ground: "That is necessary which

cannot be otherwise. Necessity defends or justifies what it compels. Necessity is the law of time and place. Necessity makes the lawful which otherwise is not lawful". Besides, it has also referred to the decisions made by this court in the writ petitions filed by Binod Karki, Krishna Prasad Lamsal and Binod Prasad Adhikari as mentioned above and put forward the grounds in support of its contention.

Since almost all the learned counsels appearing on behalf of the respondents have cited, in their submissions, the interpretation made by this court in respect of the Doctrine of Necessity in the writ petition of Binod Karki, it is appropriate to discuss what type of decision has been made in that writ petition.

That writ petition was filed seeking voidance of the economic Ordinances of the fiscal years 2059÷060 B.S. (2002÷2003), 2060÷061 and 2061÷062 promulgated during the state of dissolution of the House of Representatives contending that the ratio of taxation could be subjected to alteration only through the annual Estimate of Revenue and Expenses to be presented only before Parliament and the economic legislation (Finance Bill) to be presented only before the House of Representatives, thereby requiring that no taxation could be imposed without people's representation. Disposing that writ petition, this court discussed the Doctrine of Necessity and observed that "it is highly essential to conduct the State affairs even in an extraordinary and abnormal situation whatsoever in order to protect the nation. Even though the activities undertaken by the government in such a situation are not in accordance with the provisions stipulated for normal condition by the Constitution, such activities tend to acquire justification as per the Doctrine of Necessity provided that they don't contravene the constitutional provisions. In the normal circumstances every activity of the State must be performed in accordance with the letter and spirit of the Constitution, and if it is found to have been performed not in consonance with that manner such an activity cannot be granted constitutional and legal recognition. But in an abnormal situation where there is no alternative the minimal functions discharged by the State while conducting the State affairs in contravention of the basic structure of the fundamental concepts adopted and assimilated by the Constitution shall be deemed as proper on the basis of inevitable necessity even from the viewpoint of judicial propriety except in the condition that such functions do not infringe any clear provision of the Constitution." On the basis of this interpretation the court held that the economic Ordinance promulgated pursuant to Article 72 of the Constitution of the Kingdom of Nepal, 1990 during the period of dissolution of the House of Representatives

is not incongruous with the provisions of the Constitution. While disposing that writ petition, as it had not been clearly observed that an activity incongruous with any constitutional provisions shall acquire constitutional recognition on the basis of the Doctrine of Necessity even though, constitutional or legal alternatives are available, the present dispute does not seem to get any support or justification on the basis of the Doctrine of Necessity analyzed in that decision. And the other writ petitions are related with the issues concerning the civil servants and, therefore, the decisions made in those writ petitions do not seem to bear any direct or indirect resemblance to the present dispute. The Doctrine of Necessity does not intend to destroy the prevailing constitutional structure. It simply endeavors to resolve a situation which requires immediate resolution and which has no alternative to its resolution without contravening the constitutional provisions.

Corruption is a stigma for the country. It destroys the concepts of good governance. It is, therefore, essential to keep corruption under control without allowing it to flourish as it acts as an enemy to the moral values and norms. The Rule of Law has been specified by our Constitution as the basic foundation of governance. Therefore, nothing but a constitutionally reliable and effective legal provision can be a strong basis for the prevention of corruption. If there was a need for an effective legal mechanism for the prevention of corruption, and there was no alternative to such an arrangement, there was no obstacle before the State to make suitable arrangements through the law without contravening the constitutional provisions. But before making such an additional arrangement, it is necessary to look into what type of arrangement the Constitution, which is the fundamental law of the land, has made in this regard, and thus, only the provision which is required constitutionally should be made. As regards the endeavors and the provisions made before the promulgation of the Constitution of the Kingdom of Nepal, 1990 in respect of the prevention of corruption, there is a provision of the CIAA in Part 12 of the 1990 Constitution. Article 98(1) of the Constitution has empowered the CIAA to conduct or cause to conduct investigation or enquiry in accordance with the law in connection with the abuse of authority by a person holding a public office by committing an improper act or corruption. And if a person holding a public office seems to have committed an act which may be treated as corruption according to the law, there is a provision for prosecuting as per the law such a person holding public office and other accomplices to the crime in a competent court. This shows that the CIAA is vested with the authority to conduct investigation in respect of improper act or corruption and to

file charge-sheet in a competent court. Since the CIAA is constitutionally a significant mechanism in regard to the prevention of improper acts or corruption, it shall be constitutionally proper to follow the constitutional provision so long as that constitutional provision regarding the responsibility entrusted to the CIAA remains active. The act of directly or indirectly affecting adversely or encroaching upon the functions, duties or powers conferred on any constitutional organ or the act of rendering a constitutional organ ineffective on any pretext whatsoever not only weakens the constitutional foundation rather also disrupts it, and creates obstacles to Constitutionalism and constitutional development as well.

A perusal of the order issued by His Majesty and published in the Additional Issue No. 55 of the Nepal Gazette on Falgun 5, 2061 (February 16, 2005) regarding formation of the RCCC pursuant to Article 115(7) of the Constitution of the Kingdom of Nepal, 1990 shows that, as per Section 2 of the order, the Royal Commission has been entrusted with the functions, duties and powers to conduct investigation and take action if there is 'prima facie' case of smuggling, revenue evasion, involvement in illegal contracts or lease or commission or committing any other act which may be treated as corruption. In addition to that, the Commission has been also conferred upon, as per Section 2(4) of the Order, all the powers to be exercised by the Investigation Officer in accordance with the prevalent law relating to corruption and the powers of the Special Court. As Section 6 has provided that the Commission can punish any person according to the relevant law if he is proved to have committed any act of corruption defined by the prevalent law on corruption, all the activities related to investigation undertaken by the Commission in the name of the Commission and the punishment slapped and the powers exercised by the Commission seem to be related to corruption. As it is clear from the provisions of Sections 2 and 6 that both the powers of conducting investigation as well as awarding punishment are vested in the RCCC, from the legal viewpoint there is no significance of the contention that it is a separate unit of the Commission which files the prosecution charge-sheet after conducting investigation. It is abundantly clear that both the powers of investigation as well as prosecution are vested in the RCCC. Because Article 98 of the Constitution of the Kingdom of Nepal, 1990 has conferred on the CIAA the functions, duties and powers to file a charge-sheet in a competent court as per the law against a person holding a public office who is found, through investigation, to have committed, by misusing his powers, an improper act or corruption in the eyes of the law. This

shows that there is a clear constitutional provision requiring that there must be separate organs for conducting investigation and for hearing the case, and there must not be only one organ for discharging both these functions. In view of the fact that the Constitution of the Kingdom of Nepal, 1990 has provided for the separate entity of an organ investigating corruption cases and an organ conducting trial of such cases, it cannot be proper to say that the act of empowering one and the same organ to conduct both investigation and trial is in consonance with the objective and spirit of the Constitution.

The persons entrusted with judicial responsibility following their appointment to the judicial posts, are required to take oath of office prior to assuming their office. The act of taking oath in regard to judicial responsibility remains as an integral part of the legal system. The very use of the word 'oath' is meant to imply a commitment or declaration on the part of the person who is required to make that commitment or declaration in accordance with the law. And it is the moral obligation of the person who takes such an oath to remain committed to the oath taken by him. It is for this reason that there is a special significance of oath. The Supreme Court justices take an oath to remain loyal and sincere to the Constitution of the Kingdom of Nepal, 1990. The Appellate Court, Special Court and Administrative Court judges and the District Court judges are required to take an oath of loyalty and sincerity to the law and the Constitution. Such provisions indicate that any person entrusted with a judicial duty or a duty equivalent to that of a judge is required to take an oath of loyalty and sincerity to the law and the Constitution. But as provided in the Order relating to the Formation of the RCCC the Chairperson and the members of the Commission are required to take the oath of office and secrecy but they are not required to take an oath of loyalty to the law and the Constitution. It is not unnatural to believe that a person who is not required to take an oath of loyalty to the law and the Constitution, and who is required in stead to take an oath relating to other matters, shall be committed to those matters regarding which he has taken the oath.

The Constitution has made it clear that the duration of the proclamation or the issuance of order of the state of Emergency pursuant to Article 115 (1) of the Constitution of the Kingdom of Nepal, 1990 is intended to remain in force for a limited period. In the event of the Proclamation or order of the state of Emergency, the Constitution has provided that such a Proclamation or Order shall have to be placed before a meeting of the House of Representatives for approval within three months from the date of its issuance, and if it is approved

by a two-thirds majority of the House of Representatives present at the meeting such Proclamation or Order shall continue in force for a period of six months from the date of issuance, and before the expiration of the period of six months a meeting of the House of Representatives, by a majority of two-thirds of the members present, may extend the period of the Proclamation or Order of the state of Emergency for one other period, not exceeding six months. The Constitution has determined the status of the order, issued pursuant to Article 115(7), to meet the exigencies by providing that His Majesty may issue such orders as are necessary to meet the exigencies which have caused the occurrence of the state of Emergency as mentioned in the Proclamation or Order relating to the declaration of the state of Emergency, and such an order shall be operative with the same force and effect as law so long as the state of Emergency is in operation. In view of the fact that the Constitution has made clear and specific provision that an order issued pursuant to Article 115(7) shall continue to remain in force so long as the state of Emergency is in operation, the act of giving continuity to the order issued for meeting the exigencies during the state of Emergency by resorting to any other Article shall virtually result indirectly into maintaining the state of Emergency. Therefore, it is not constitutionally valid to indulge in an act contrary to what has been clearly provisioned by the Constitution.

Article 98 of the Constitution of the Kingdom of Nepal, 1990 has made a clear provision that if any person holding a public office seems to have committed any act which may be treated as corruption in the eyes of the law the CIAA may file or cause to file charge-sheet against such a person or an accomplice to the crime in a competent court as per the law. Article 84 of the Constitution has provided that the powers relating to justice shall be exercised by the law courts and other judicial institutions in accordance with the Constitution, the laws and the recognized principles of Justice. Likewise, Article 85 has provided that there shall be three tiers of courts including the Supreme Court, the Appellate Courts and the District Courts, and special type of court or judicial institutions may be established to look into special types of cases. Thus, there is a clear cut constitutional provision prohibiting establishment of an institution exercising judicial power except according to the law. As for the provision made in Section 6(2) of the Order relating to the Formation of the Commission permitting a person not satisfied with the decision made by the Commission to file an appeal in the Supreme Court, according to Article 88(3) the Supreme Court is empowered to hear appeal only as provided by the law. In addition to the general courts including the Supreme Courts, the Appellate Courts and the District Courts created by the Constitution,

there are also functioning some other courts constituted by the law such as the Administrative Court, the Special Court, the Revenue Court, the Labor Court etc. All these are the courts and judicial institutions constituted by the law, and their functions, duties and powers have been prescribed by the law. The RCCC has not come into existence by virtue of the provision of any Statutory Act or Ordinance. As it has been created by an order issued pursuant to Article 115 (7), such an order cannot remain active and operative as a law after the termination of the state of Emergency according to the same Article 115 (7). After the withdrawal of the state of Emergency, promulgated by His Majesty on Magh 19, 2061 (February 1, 2005), effective from Baisakh 16, 2062 (April 29, 2005) the RCCC seems to have acquired continuity through an Order issued under Article 127 by His Majesty. Therefore, what is the scope of Article 127 needs to be examined in view of the constitutional provision contained in this Article which empowers His Majesty to promulgate an order for removing any difficulty which may occur in the implementation of this Constitution and also requires such an order to be placed before Parliament. As regards the nature of a relevant provision contained in the previous Constitutions in respect of removing difficulties in the implementation of the constitution, Article 77 of the Constitution of the Kingdom of Nepal, 1959 provided that the power to remove any difficulty was inherent in His Majesty, and every order issued for removing any difficulty was required to be laid before both Houses of Parliament, and it could be repealed or amended by law, and it had to be treated as included in the Constitution so long as it was not amended or repealed. Likewise, Article 90A of the Constitution of Nepal, 1962 provided that His Majesty may promulgate any order deemed necessary by him in order to remove any difficulty which may occur in the implementation of the Constitution, and such an order shall be deemed as included in the Constitution. Thus, whereas the Constitution of Kingdom of Nepal, 1959 and the Constitution of Nepal, 1962 had made clear provisions regarding the status of the order promulgated by His Majesty to remove any difficulty, Article 127 of the Constitution of the Kingdom of Nepal, 1990 does not seem to make any mention about the status of the order which is issued to remove any difficulty in the implementation of the Constitution and also does not clarify whether it is constitutional or legal. The power relating to the removal of any difficulty needs to be understood in the perspective of the status which the Constitution has bestowed on it. The Constitutions, which were in force prior to the Constitution of the Kingdom of Nepal, 1990, had declared the power concerning the removal of any difficulty as being at par with the Constitution. But since Article 127 of the Constitution of the Kingdom of Nepal, 1990

does not clearly mention that the order relating to the removal of any difficulty shall be equivalent to the Constitution; there is no scope for understanding that such an order shall enjoy the same status as enjoyed by the similar orders in the previous Constitutions.

The purpose and objective of Article 127 of the present Constitution seems to activate the constitutional provision or mechanism by removing any difficulty which may arise in the implementation of any provision of the Constitution. To put it more clearly, it is the spirit and objective of Article 127 to conduct systematically the constitutional provisions by providing nectar (life saving drug) to the existing constitutional provisions if there arises any obstacles to the implementation of the constitutional provisions. As after the dissolution of the House of Representatives on Jyestha 8, 2059 (May 22, 2002) the elections could not be held on account of various reasons and the Council of Ministers could not be constituted as per Article 36 or 42 of the Constitution, it might have been a necessity of the State to resort to the exercise of Article 127 in order to activate Article 35(1) for the sake of constituting the Council of Ministers under the Premiership of Lokendra Bahadur Chand or the Council of Ministers constituted thereafter in order to remove the difficulty regarding the failure of the constitution of the Council of Ministers as per Article 36 or 42. The constitution of the Constitutional Council under the Chairmanship of the then incumbent Chief Justice for the sake of the appointment of the next Chief Justice could be treated as falling within the objective of Article 127, as it was intended to remove the difficulty caused by the failure of appointment of the Chief Justice due to the constitutional obstacle confronted in the formation of the Constitutional Council in accordance with Article 117. The provision made in the Constitution regarding removal of any difficulty can be exercised to activate the Constitution if any constitutional provision could not be implemented due to any impediment confronted in the process of its implementation. Article 127, therefore, cannot be attracted in case of matters other than those provided by the Constitution.

Besides, it cannot be so exercised as to create a situation where the constitutional system becomes inactive or the constitutional mechanism under goes a change. In the Special Constitutional Directive No. 1 of the year 2050 (1993) submitted to His Majesty pursuant to Article 88(5) of the Constitution of the Kingdom of Nepal, 1990 on Baisakh 18, 2050 (April 30, 1993) a Special Bench of this Court has expressed the following opinion in regard to the exercise of Article 127 of the Constitution: "If there arises a situation obstructing the implementation of any constitutional provision due to the failure to

constitute any constitutional organ or institution or if a void or a constitutional stalemate is created due to the failure of any constitutional mechanism to function as provided in the Constitution, the power of removing any obstacle or difficulty may be exercised to prevent such a situation by making suitable and necessary arrangements for its immediate resolution in order to activate the constitutional mechanism. The extra-ordinary power of removing any obstacle or difficulty may be exercised only if there was no other constitutional or legal alternative to end the constitutional stalemate or lacuna which has emerged unexpectedly. But if any obstacle or difficulty can be removed by a law enacted by Parliament or by the promulgation of an Ordinance by His Majesty when there is no Parliament it will not at all be appropriate to resort to the exercise of Article 127 for this purpose by forming a false conception of the failure of the implementation of the Constitution. It is one thing to issue an order pursuant to that Article in order to fill a constitutional void or end a constitutional stalemate; it does not infringe the personal right of any person. But it is entirely another thing to grant powers to perform such acts which infringe the fundamental rights guaranteed by the Constitution, such as, taking someone's statement against his will, administering oath to him, compelling him to be present somewhere, conducting search of some house or place etc. Article 127 cannot be exercised for that purpose. In order to exercise any powers which tend to encroach upon the personal freedom or the right to property guaranteed by the Constitution, such powers must be granted by the law made by Parliament in accordance with the legislative procedure prescribed by the Constitution. The power to remove any obstacle or difficulty provided for activating the constitutional mechanism by ending the constitutional stalemate or lacuna cannot be exercised to encroach upon the personal freedom or any other fundamental right of any person. If any order is issued pursuant to Article 127 resulting in that manner it shall be unconstitutional."

A question has arisen as to how much relevant and important is the opinion submitted to His Majesty by a Special Bench of the Supreme Court in regard to a reference made by His Majesty seeking its opinion pursuant to Article 88(5) of the Constitution in connection with the formation of a Commission for conducting enquiry into the Dasdhunga accident. The respondents have contended that as the opinion given under Article 88(5) cannot assume the position of Article 96 of the Constitution, the court cannot take into consideration such an opinion. No doubt an opinion sought by His Majesty pursuant to Article 88(5) and submitted by the Supreme Court cannot enjoy the status of a

verdict delivered by the Supreme Court for the purpose of Article 96 of the Constitution.

Since an opinion and a decision have entirely different status an opinion given pursuant to Article 88(5) and a decision made by the court cannot be compared as being equivalent. The compliance with a decision is mandatory whereas it cannot be said that the compliance with an opinion even by the person who has sought such an opinion is mandatory. Before giving its opinion under Article 88(5) the court forms its opinion in the light of the opinion given by the experts on the subject considered fit for consultation by the court and the submissions made and views expressed by the learned counsels appearing as 'amicus curiae', and only then that opinion is submitted to His Majesty. Although His Majesty is not bound by the opinion given by the court, as the Constitution does not obligate His Majesty to comply with such an opinion, it is an important responsibility of the Supreme Court to report its opinion to His Majesty in case His Majesty wishes to have an opinion of the Supreme Court on any complicated legal question of interpretation of the Constitution or any other law. And, this responsibility must be discharged with utmost care and caution not contravening the Constitution and the laws. And such an opinion leads to the resolution of a constitutional dispute. Ever since the promulgation of the Constitution of the Kingdom of Nepal, 1990, so far there has been no instance when His Majesty rejected the opinion which was sought by him and submitted by the court under Article 88(5), it cannot be said that such an opinion reported by the Supreme Court and not rejected by His Majesty does not have any constitutional significance. In case any act is proceeded with or it is given an outlet on the basis of the opinion reported by the Supreme Court, later on it would not be proper to say from any angle that such an opinion has no constitutional base. It is also not proper to say that the process of constitutional development in regard to Article 127 of the present Constitution did not take place when His Majesty undertook suitable steps on the basis of the following opinion reported to His Majesty by a Special Bench comprising seven Justices, "If there arises a situation obstructing the implementation of any constitutional provision due to the failure to constitute any constitutional organ or institution or if a void or constitutional stalemate is created due to the failure of any constitutional mechanism to function as provided in the Constitution, the power of removing any obstacle or difficulty may be exercised to prevent such a situation by making suitable and necessary arrangements for its immediate resolution in order to

activate the constitutional mechanism. The extra-ordinary power of removing any obstacle or difficulty may be exercised only if there was no constitutional or legal alternative to end the constitutional stalemate or void which has emerged unexpectedly. But if any obstacle or difficulty can be removed by a law enacted by Parliament or by promulgating an Ordinance by His Majesty when there is no Parliament, it will not at all be appropriate to resort to the exercise of Article 127 for this purpose by forming a false conception of the failure of the implementation of the Constitution." According to the provisions of the Constitution there can be no authoritative institution other than the Supreme Court in respect to the interpretation of the Constitution. In the event of His Majesty seeking an opinion of the Supreme Court pursuant to Article 88(5) on any complicated legal question of interpretation of this Constitution, the opinion reported to His Majesty helps to resolve the question of constitutionality of the issue and, as such, such an opinion plays a significant role in the proper compliance with the Constitution and the process of constitutional development.

Therefore, such an opinion carries a special significance in regard to the constitutional development. Therefore, it is not proper to say on the basis of superficial arguments that it does not have any significance. As regards the plea of the respondents that an order issued under Article 127 needs to be first examined by Parliament, the Constitution does not seem to clarify the nature of the order issued pursuant to Article 127 whether it has got a constitutional or legal or statutory status or that of a by- law. It has been only provided that an order issued pursuant to Article 127 must be placed before Parliament. However, the Constitution has not specified the procedure of its presentation in Parliament. Rule 22 of the Joint Parliamentary Meeting and Joint Committee (Conduct of Proceedings) Rules, 2048 has provided: "The Prime Minister shall present, before the joint meeting, an order promulgated by His Majesty pursuant to Article 127 in order to remove any obstacle or difficulty in the implementation of the Constitution." No other provision seems to have been made in this regard. There is no indication about complying with any procedure such as holding discussion on the Bill in the Joint Committee or adopting the Bill as per Rule 12 or moving amendment to the Bill under Rule 13 or holding discussion or moving amendment in regard to an order issued under Article 127. This shows that the constitutional provision requires an order issued under Article 127 to be ordinarily presented before Parliament only for the purpose of its knowledge. Even though the impugned Order relating to the Formation of the

Royal Commission is not of the nature of a Constitution or law or Ordinance, nevertheless the Royal Commission seems to be an institution which has acquired the powers of a court including the Special Court through the impugned Order. Therefore, the contention of the respondents is not acceptable that the impugned Order which is vested with a legal authority does not fall under the purview of Article 88(1) and (2) only because it has not been brought to the knowledge of Parliament.

On account of the grounds and reasons mentioned above the notification of the Chief Secretariat of His Majesty dated Falgun 5, 2061 (February 16, 2005) regarding the establishment of the RCCC and the Notification of the Chief Secretariat of His Majesty dated Baisakh 16, 2062 (April 29, 2005) in regard to giving continuity to that order do not seem to be in consonance with the objectives and spirit of Articles 84, 85, 88 (3), 98, 115 (7) and 127 of the Constitution of the Kingdom of Nepal, 1990. Now to consider the question whether or not an order should be issued as requested by the petitioner, it appears from the above-mentioned grounds and reasons that the Order issued on Baisakh 16, 2062 (April 29, 2005) for the sake of giving continuity to the RCCC, established by the Order dated Falgun 5, 2061, is inconsistent with the Constitution of the Kingdom of Nepal, 1990 as it is contrary to the objectives and spirit of Articles 84, 85, 88 (3), 98, 115 (7) and 127 of the Constitution. Even though the Order relating to the Formation of the Commission and the Order giving continuity to the same are neither a Statutory Act in accordance with the provision of Article 71 nor a law in accordance with an Ordinance issued as per Article 72 of the Constitution, the Royal Commission seems to have acquired all the powers exercised by an Investigation Officer in relation to corruption as per the prevalent law, the powers exercised by the Special Court as per the Special Court Act, 2059 and the powers equivalent to those exercised by the law courts in certain matters, and thus the impugned Orders appear to have granted such powers which could be given only by the law.

As the Order dated Falgun 5, 2061 (February 16, 2005) establishing the RCCC has become in fructuous due to the withdrawal, pursuant to clause (11) of Article 115, of the Order declaring the state of Emergency on Baisakh 16, 2062 (April 29, 2005) issued earlier pursuant to Article 115 (1) of the Constitution of the Kingdom of Nepal, 1990, there is no need of declaring such an Order which has already become in fructuous as 'ultra vires' or void'. Therefore, the currently active Order issued on Baisakh 16,

2062 (April 29, 2005) intending to give continuity to the Royal Commission, is hereby declared 'ultra vires' effective from today as per Article 88(1) of the Constitution of the Kingdom of Nepal, 1990. Since the order issued on Baisakh 16, 2062 (April 29, 2005) to give continuity to the RCCC has been declared 'ultra vires' there is now no place for the continuing existence of the RCCC and, therefore, it is hereby declared annulled effective from today.

As on the basis of the grounds and reasons discussed above, the acts of establishing and subsequently giving continuity to the RCCC are unconstitutional due to their inconsistency with the provisions and objectives of the present Constitution, and as for this reason the Order promulgated on Baisakh 16, 2062 (April 29, 2005) giving continuity to the Order promulgated earlier on Falgun 5, 2061 (February 16, 2005) has been declared 'ultra vires', the act performed by such an unconstitutional commission cannot receive legal recognition. Therefore, the act of asking the petitioner to produce a security deposit to the tune of Rs. 51,00,000. - as per Section 7(d) of the Special Court Act, 2002 on the basis of the unlawful proceedings conducted by the respondent Commission, and the order and the act of remanding him to judicial custody for his failure to deposit the bail amount, obviously appear to be unlawful and, hence, the writ of 'habeas corpus' is hereby issued. Because the petitioner has been already set free on the guarantee of the President of Nepal Bar Association Advocate Sambhu Thapa as per the order of this court dated Bhadra 28, 2062 (September 13, 2005), there is no need of further doing anything else. Let the copies of this order be sent to the respondents through the Office of the Attorney General for their knowledge, and let the case file be handed over as per the Rule.

We concur above decision.

Justice Ram Prasad Shrestha

Justice Anup Raj Sharma

Justice Ram Nagina Singh

Justice Kedar Prasad Giri

Done on 1st Falgun, 2062 B.S. (13th February 2006).

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The essence of justice can be accomplished only in the proper implementation of law.

**Supreme Court, Division Bench
Hon'ble Justice Badri Kumar Basnet
Hon'ble Justice Pawan Kumar Ojha**

Order

Writ No. 3342 of the year 2060

Sub: Mandamus and others.

Petitioners: Advocate Chandra Kanta Gyawali, resident of Lalitpur Sub metropolitan City, Ward No. 2, Lalitpur district, et.al.

Vs.

Respondents: Office of the Prime Minister and Council of Ministers (OPMCM), Kathmandu, et.al.

- **All senior citizens aspire for safer life from the State and expecting such security and claiming or demanding the same from the nation is a matter of their judicious and perennial right.**
- **As the senior citizens are eligible right-holders of benefits from the State side, it cannot neglect them nor can overlook their legitimate rights and interests.**
- **The prohibitory clause in Article 11(3) itself has accorded recognition for the aged people as having a separate existence. Apart from these, by looking at the special facilities, concessions and treatment made available to them by the State, it is confirmed that the old belong to a separate class. In this regard, the lack of legislation corresponding to the rights, interest and welfare of this exclusive class cannot be said as appropriate.**
- **The old-aged people are not only burden but national assets as well. There could be a reciprocal relation between the State and the elderly. The know-how, skill and abilities of the aged earned after a long experience can be utilized in the interest of the society and nation. In the same manner, by fulfilling the obligations towards these people, their remainder of life can be made respectable, blissful and secured thereby even the old**

age can be made productive and has to be employed in nation's gain. This is the task that every rational and forward-looking country has to do.

- The law which creates power generates duties also. Duty is not a matter of charity. It is not a matter of discretion because duties should be such that they can be enforced through courts. Hence, even going through the statements of the respondents, it is the duty of the State and to enforce such duty and to create rights for senior citizens, law is inevitably required.
- To ensure that the order issued in the present decision to formulate appropriate law for senior citizens does not meet with the same fate, to prevent this order from becoming a shred of paper dumped in the case-file, and to facilitate effective execution of these directory orders, the Court issues order in the name of the Registrar of Supreme Court to adopt the following measures by duly including them in the Supreme Court Rules, 2049 as well:
 - a) To develop a system of clearly mentioning - at the time of issuing directive orders – what to do, when to do and how to perform a particular task; and to unfailingly forward a copy of the order to the Monitoring Division.
 - b) The Monitoring Division shall maintain the record of the decisions in which the court has issued the directive order. The Monitoring Division shall as far as possible classify such orders and then ascertain the authority to whom it is to be served specifying also the time period until when the business stated therein has to be over come. Such authority shall be sent also the concerned case file along with a covering letter.
 - c) Conduct periodic monitoring on whether or not such directions orders are complied with.
 - d) To ask for clarity on matter as to why it could not completed within the specified period. If it is necessary to extend the time limit, do so obtaining necessary approval from the concerned authority.
 - e) He who deliberately defaults the order shall be initiated action ranging from the contempt of court and departmental action (even if the defaulter is retired)
 - f) Make publicity of such directive orders and their implementation through the appropriate media.

- g) Submit the account of the directive orders, and their implementation in the annual report of the Supreme Court.
- h) Fix the terms of reference for Monitoring Division in regard to this action and equip with necessary, manpower and resources. The registrar shall be fully responsible for this matter.
- i) The Registrar, in consultation with the Chief Justice, or by adopting any other appropriate measures in order to remove the obstruction comes across in the course of implementing these directive orders.

Badri Kumar Basnet, J: The brief particulars and the conclusion reached in this writ petition filed under Articles 23 and 88(2) of the Constitution of the Kingdom of Nepal, 2047 is as follows:

Of the petitioners, No.1, I, Mr.Chandra Kanta Gyawali, am informed citizen of Nepal besides being a LLM graduate in Constitutional Law and has been in the legal profession for the last 16 years. Petitioner No.2 has been involved in the legal profession for the last 6 years as an advocate. Petitioner No.3 is an 80 year old Nepalese citizen who is receiving monthly Rs. 150as the old-age allowance from the government since its inception, which lies far short to meet her necessities of livelihood, survival and religious practices. Likewise, Petitioner No.4 and 5 are in the legal occupation as advocates for the last 5 and 2 years respectively. Similarly, since we, the applicants, share professional concern towards parliamentary governance, strengthening of multi-party democracy, guarantee of basic human rights, adult franchise, institutional development of an independent and competent judiciary, rule of law and social, economic as well as cultural advancement, we have come with the writ petition to issue mandamus and other relevant orders as required in the name of respondents calling for special arrangement through law for protection, healthcare, social and economic security and development of the elderly people, as prescribed in Article 11and clarification of 11(3) of the Constitution of Kingdom of Nepal, 2047. The Constitution of Kingdom of Nepal, 2047 has accepted Nepalese citizens as the source of power behind independent and sovereign State of Nepal. Similarly, a fundamental right has been safeguarded in Article 11(1) elaborating that no Nepalese citizen shall be stripped off from the equal protection of law. This is in line with the constitutional sentiment of maintaining brotherhood and unity among Nepalese citizens on the basis of freedom and equality by protecting fundamental human rights

of every Nepalese citizen so as to achieve for Nepalese citizens-social, political and economic justice till eternity. Apart from this, Article 11(3) guarantees that the State shall not discriminate among its citizens on any of the ground as religion, race, gender, caste, creed faith or any one, of them. However, a special provision is included in this fundamental right which lays down that special arrangements may be made through law for the protection or advancement of women, children, the elderly, physically or mentally impaired persons or of socially or educationally back warded classes. Likewise, going through the Directive Principles and Policies of the State as envisaged in Article 26(9) as constitutional rights, the State has shown positive initiative by adopting the policy of making arrangements for education, healthcare and social security of parentless children, helpless women, the elderly, disabled invalid and the handicapped for their protection and progress. Though regarding the rights of women, state has no exclusive Act to guarantee, general law, them; however, the eleventh amendment to the National Code 2021 as general law has guaranteed academic, health and cultural safety to some extent. Similarly, Children Act 2048 and Rule thereof, the Disabled Act 2039, have made special arrangements for the given communities. Dalit Commission, Women's Commission, Child Welfare Homes and Child Reform Homes are some of the measures that signify the State's initiative to mainstream the respective communities. But for the senior citizens, the State seems to have shown no leading action for the social, economic and cultural protection and security of the elderly, except providing an allowance of Rs 100 per month for the 60 year plus widowed women and Rs 150 per month for the 75 -year plus old-aged people from the State fund and establishing an old-age home for nearly 100 senior citizens at Pashupatinath. Article 11(E) of the Convention on the Elimination of All Forms of Discrimination Against Women (CEDAW), 1979 and Articles 3, 11 of the International Covenant on the Economic, Social and Cultural Rights (ICESCR), 1966 also have attributed the liability to provide social security for the elderly on the State side. Invariably, the last stage of life is the elderly stage. According to a study of the United Nations Organization (UNO) named 'The World Ageing Situation' the total population of the 60 plus year old people in 1950 was 200 million which constituted 8% of the then total demography. At the end of 2003, the same population rises at 720 million which constitutes 12% of the current total demography. On classifying old age, in Sri Lanka it is put at 55 years while in Nepal different criteria exist. The Constitution of Kingdom of Nepal, 2047 has set the age limit of retirement for the honourable judges of Supreme Court at 65 years, of District Court and Appellate Court judges at 63 years and the Civil Services Rules 2050 has laid down the age of

retirement for civil servants at 58 years. Likewise, in India the ceiling is set on 60 years, in Bhutan, 58 years and in Maldives on 65 years. In Nepal, the State provides monthly allowance of Rs 150 only when senior citizens cross the bar of 75 years. The 1st World Convention on the Elderly held at Vienna in 1982 and the 2nd Convention held between April 8-12, 2002 in Madrid have revealed that the number of elderly people is rising perpendicularly with the world-wide rise in life after 20 years expectancy. This trend is also corroborated by the fact that, at the end of 2003, the total 60 plus population lies at 720 million. The 2001 Census of Nepal has disclosed that out of the total population of 2, 32, and 51,432, the proportion of the old-aged amounts to 14, 77, and 379. So it is needful that special arrangements be made for the social, economic and cultural safeguards as well as protection of such a large section of the population through special laws and a Commission for the Elderly. As laid down in Articles 23 and 88(2) of the Constitution, the locus standi to raise such a concern of public cause and interest rests on us as informed citizens of the State apart from our being legal professionals. So, in the light of above fact, we through this petition request this Court, to issue writ of mandamus including other necessary orders as it may require in the name of the respondents to promulgate special law which would enable for exclusive provisions for the social, economic and cultural enhancement and safety of the elderly people.

In the past, there had been a provision of special trust called 'Handi' established by the State for the purpose of poor, disabled and old helpless people. It was of two types: cash and kind. In cash, a sum was to be given to the old people who were incapable of walking for buying essential commodities. In kind, necessary foodstuff and firewood was provided to the destitute elderly persons on a monthly basis who were physically weak and unable to work. This tradition of 'Handi' flourished during Rana regime. At that time, this facility of 'Handi' was rendered at the discretion of the Rana rulers and on the basis of application to the people who grew old and helpless serving at various positions in the Rana's palaces. This system of distributing 'Handi' was marked from the regime of His Majesty King Surendra when 'Handi in kind' or 'Sidha Handi' (a kind of ration) was allocated to the aged widows and widowers at Pancha Dewal near the Pashupatinath temple, who retired from the palace service. Later, in 1976 BS, this custom of allocating 'Handi in kind' was replaced by feeding the needful elderly people in the name of Pancha Dewal eatery. The present Pashupati Old-age Home came into being in 2034 BS after the merger of Purneshwar and Pancha Dewal eateries. To run it in an organized and systematic manner, His Majesty's

Government (HMG), in 2034 BS, constituted a Social Welfare Centre Management Committee under the chairpersonship of the then Bagmati Anchaladhis (Zonal Commissioner). It included other eateries as well and was named 'Social Welfare Centre Old-age home' apart from shifting the needful elderly people from other care centers. Currently, this Centre is run under the Ministry of Women, Children and Social Welfare (MWCSW), Singhadurbar.

It is noteworthy that the World has celebrated 1999 AD as the Year of the Elderly. In Nepal, the 2001 National Census has put the figure of the old-aged persons at 14, 77, 379. Despite these, the aforementioned trivial measures of the government have failed in term of the social, economic and cultural safety of the old-aged population leading to a plight of counting days before death, grossly neglected by the family, society and the State. It is also the liability of the State to capitalize on their experience and knowledge in every spheres of the nation. The factual, legal and constitutional bases as espoused in the aforementioned paragraphs are also corroborated by the 2nd World Convention held at Madrid, capital city of Spain which commenced with the motto- 'Building a society for all ages' and which endorsed a declaration namely 'The aged are not problems. They are opportunities and their experiences should be harvested.' Assimilating these facts, the plea made in the writ petition filed as per the Articles 23 and 88(2) of the Constitution, requests for the issuance of the writ of mandamus and other necessary orders in the name of the respondents to promulgate exclusive laws on the basis of the Preamble and Article 11 and the clarification laid down in 11(3) meant for the socio-economic security and cultural preservation of the senior citizens for their respectable livelihood; making the elderliness safe and easy-going; increasing the capacity of the aged; utilizing their knowledge, skill and experience in various spheres of nation building; arranging for their socio-economic assurance, healthcare, respect, participation and involvement; and their association in educational and recreational activities.

Acting on the aforesaid writ petition, a Single Bench of the Court issued an order on Magh 28th, 2060 to extract and duly submit the written replies from the respondents once they are obtained.

On this, the written reply furnished by the Office of the Prime Minister and Council of Ministers (OPMCM) demands the revocation of the writ on grounds of it is being unclear on which action of the respondents accounted for the violation of the rights of the petitioners and on being baseless and without reason.

The written response submitted by the Ministry of Law, Justice and Parliamentary Affairs (MLJPA) states that the petitioners seem to have lodged this writ petition demanding enactment of laws for the protection and advancement of the elderly people as specified by the restrictive clause contained in Article 11(3) of the Constitution of Kingdom of Nepal, 2047. According to that constitutional provision, an exclusive legislation can be made for the elderly; however this arrangement is subject to the availability of the means and resources of the nation. Therefore, there is no need to issue writ in this regard. Further, it is a subject matter of State policy about what and which laws are to be made for which the Constitution has not compelled for the enactment of laws on any matter. On these grounds, the MLJPA requests for the dismissal of the writ petition.

The written reply filed by the Ministry of Women, Children and Social Welfare (MWCSW) also demands the quashing of the writ petition on the basis that though, according to the constitutional provision, an exclusive legislation can be made for the elderly, but it is a subject of State policy on which subject laws are to be made. It is a duty of the State to assist in the welfare activities of the aged people, as per the sufficiency of State resources. In this vein, an Old-age Home is being managed under this Ministry and the State is providing an allowance of Rs 100 per month for the 60 year plus widowed women and Rs 150 per month for the 75 plus old-aged people. In this scenario, the need to formulate an exclusive legislation for the elderly does not arise.

Representing from the petitioners' side on the writ petition duly presented before the Bench as per the daily Cause-list, learned advocates Mr.Chandra Kanta Gyawali, Mr.Bhimarjun Acharya and Mr.Raju Prasad Chapagain offered their arguments that the restrictive clause contained in Article 11(3) of the Constitution of Kingdom of Nepal, 2047 provides for an exclusive arrangement through law for the old-aged people. Besides, some welfare activities, the Government has not been able to undertake any actions which are legally mandatory. Despite the aforesaid constitutional provision, the Government, by far, has not even attempted for a legal arrangement meant for the welfare of the aged. In the current scenario, where the social fabric in Nepal is changing from joint families to nuclear families, if immediate legal provisions are not made for the well-being of the elders, many of them will land in a hapless situation. There is no need for the State to back off from promulgating legal arrangements for the aged population who, in their initial stages, had richly contributed towards development and social life of the nation. We,

inevitably, have to go through the old age and hence have to protect this phase in life through all aspects including economic, social and political considerations. Therefore, they pleaded for mandamus and other needful orders to be issued in the name of the Government to enact an exclusive law for the betterment of senior citizens.

Likewise, the Bench observed also the arguments presented by learned Joint Attorney Mr. Saroj Kumar Gautam representing from the respondent Government's side that - though an exclusive legislation can be made for the elderly according to the restrictive clause contained in Article 11(3) of the Constitution of Kingdom of Nepal, 2047, this provision is not compulsive and the State shall keep on undertaking necessary measures for the welfare of the aged, in consonance with its resources and capacity. Even now, the Government has provided for an Old-age Home and a welfare fund for the well-being of the elderly apart from distributing an allowance of Rs 100 per month for the 60 year plus widowed women and Rs 150 per month for the 75 plus old-aged people. The Government will sustain these programmes even in the future. Hence, the writ needs to be struck down. Now it has to come for decision on whether an order as requested in the petition has to be issued or not.

Before arriving at a conclusion on whether or not an order as sought by the petitioners has to be issued, the following questions need to be analyzed and their appropriate answers be attained:

- 1) Whether or not the petitioners enjoy locus standi to file this writ petition? And whether or not the Court should contemplate on this petition?
- 2) Whether or not the senior citizens are competent recipients of State protection? Whether or not to provide for their welfare, interest and security is a matter of State responsibility?
- 3) In what way, the State has been dealing with the senior citizens?
- 4) What are the obligations and responsibilities of the State towards its citizens and whether or not the laws are needed to provide and manage for facilities and assurances to be facilitated by the State?
- 5) Whether it is compulsory or optional upon the State to enact and enforce laws to regulate State activities?
- 6) Whether the Court can order the Government to enact and enforce laws? And
- 7) Whether or not an order requiring the Government to enact and enforce legislation as demanded in the petition should be issued?

While considering upon the subject matter of locus standi, espoused in the first question, out of the five litigants in this case, four seem to be young legal professionals while one is an 80-year old woman. The issue taken up in the petition seems to be an issue of common concern of the whole nation rather than a subject of a person or a group. Therefore, it should be admitted that the applicants have raised a significant issue prevalent the country. It is a matter of professional ethics and conduct as well for a legal professional to aspire for the promotion of rule of law in the State and to strive for the same. The philosophy embedded in the tenet of rule of law makes it clear that the arbitrary actions and conducts on the part of the persons who are entrusted to run the State act for according to the rule of law, does not amount to the welfare of the nation and its nationals. The concept of the rule of law is incorporated itself in the Preamble of the Constitution of Kingdom of Nepal, 2047. In this respect, the need to devise legislation for the elderly has itself been raised by an instrumental body of the nation, the National Planning Commission right since the drafting of the 9th Plan and has still been recommending for the same. Paradoxically, even at the end of the 10th Plan, the respondents claim that it is a matter of State discretion and not compulsion to prepare the required laws. At this premise, the effort of the applicant legal career-persons to come to this Court for realizing the constitutional thirst of the rule of law is praiseworthy.

The pragmatic principle of locus standi has been propounded with a view that not anybody can come to the court carrying disputes and only the genuine and needful person whose rights have been infringed upon can come to the court to seek justice. The traditional concept of locus standi stems from the supposition that if anybody has to come to the court pretending interest or concern, then the courts will be ever pressed by the load of lawsuits resulting in the delivery of justice made exhausting. This tenet of locus standi reflects the somewhat strict and rigid perspective of the courts and it has also been made somewhat tougher by rigid explanation of courts. The Court itself is an organ of the State and the State has assumed a welfarist form. In this sense, when the State, through its governments, fails to fulfill its obligations or does not run according to the norms and rules, then any aware citizen can come to the Court, entrusted with fulfilling these responsibilities of the State, on an issue of public concern. And, if the court deems it as appropriate, it can issue necessary and suitable orders in this connection. This system of Public Interest Litigation (PIL) is being widely practised everywhere and it has built a definite and established jurisprudence as well. The same principle is accepted and practised

by this court as well. Hence, in the wake of the court procedure in which the traditional, rigid and restrictive notion of locus standi is being softened and liberalized in cases relating to public interest, it cannot be said that the applicants lack the necessary locus standi in this case of national concern. Citizens can approach this Court only in matters of public interest and the Court, too, has exercised its jurisdiction in such questions as well as propounded doctrines through interpretation in numerous cases. Therefore, nothing needs to be said more about the subject of locus standi conferred to the applicants. Since one of the petitioners is an 80-year old woman, in such a circumstance even the condition of the general principle of the locus standi seems to be fulfilled. Therefore, the counter-argument from the respondents' side that the locus standi is absent cannot be termed as appropriate and reasonable. As the Court can thus enter into the subject matter introduced by the petitioners, now it has to be contemplated, whether or not the order as requested for in the petition deserves to be issued or not.

Let us now think over the second question. The petitioners in their plea have requested for the issuance of the writ of mandamus including other necessary orders as it may require in the name of the respondents to promulgate exclusive laws on the basis of the Preamble and Article 11 and the clarification laid down in Article 11(3) meant for the socio-economic security and cultural preservation of the senior citizens for their respectable livelihood; making the elderliness safe and easy-going; increasing the capacity of the aged; utilizing their knowledge, skill and experience in various spheres of nation building; arranging for their socio-economic assurance, healthcare, respect, participation and involvement; and their association in educational and recreational activities. In the light of the writ petition, it has become necessary to analyze various aspects of and to reach for a conclusion as regards the nature, plight and status of the aged, the State treatment meted out towards them, and the international efforts in this concern.

Old age is the natural but ultimate stage of human life. A person once born has to reach the old age inevitably. Nobody can escape this eternal rule of Nature. Different stages lie between a person's life and death. At childhood, he is near to birth while at old age, he is near to death. In the eternal duty of life, life and death are unavoidable phenomena. Therefore, old age is a harbinger of completion of life in the same way as childhood is the precursor to beginning of life. The phases of youth and adulthood also come between the stages of childhood and elder-hood. A person, as he traverses from birth to

various phases in life, bears varied nature, status and ability. Naturally, each stage is distinct from the other due to its own singularity. In these different phases, a person's thought, perspective, disposition, nature and capability also get different and the society, too, acceding this fact, deals with the person differently. This fact is acceptable as well as inevitable. The fact is also evident that, by assimilating the philosophical and pragmatic truth behind this phenomenon, the society devises social, economic, cultural and religious regulations, in line with them.

Man is the superior being among all creatures having knowledge wisdom and reason. He is the best creature of the entire cosmos. He has done or committed in this world, positive and negative deeds of unexplainable magnitude. On one side, man is the creator of the Almighty and its identifier. He is the authority of this universe and a pundit of science as well. On the other, he is the inventor of a bomb capable of devastating the world. Probably, no one is as powerful as a man in this universe. But, the human, who is equipped with so much power, is, in it, so much helpless that he always looks for support and safety. The desire and necessity of security is an inborn quality of the human. In order to be safe from fear unknown, he lives in someone's patronage. The security or assurance sought after by man is often of two types: spiritual and physical. He draws spiritual backing from the Almighty. He is always on the lookout for assurance from an invisible force such as the God. His soul feels a sense of security by keeping faith over the God in one way or the other. The second source of human security or trust is the State. State or the government is the last refuge of its citizens, their guardian. In a Welfare State, lies the obligation of protecting the lives and property of its citizens, of taking steps to their well-being and betterment. Because of this liability of the State, it is entitled with the exclusive power to control, influence and intervene in every objective activity of its citizens from womb to tomb. Due to this very nature of the State, every citizen is expectant of it in the securing his life as well as livelihood, in protecting his rights and interests and in obtaining well-being. In this sense, a citizen is dependent on the State and is the beneficiary of State protection. At this premise, all senior citizens aspire for safer life from the State and expecting such security and claiming or demanding the same from the nation is a matter of their judicious and perennial right.

As every member of a family bears a natural right of acquiring judicious benefits from the resources equally according to the capability of the family, following the same logic, every citizen should reap benefits from the State resources without discrimination in an

equal or proportional manner. It is the hallmark of liberal democracy that the State delivers equal or proportional care towards the stratum and sub-stratum of all kinds and towards the happiness and miseries of individuals and undertakes actions for their rights, interests and welfare in the same proportion. In this sense, the State cannot evade the responsibility of providing political, economic and social justice and of rendering social security and support to all. However, this justice or security is subject and proportionate to the State's political, economic and social prowess. As the senior citizens are eligible right-holders of benefits from the State side, it cannot neglect them nor can overlook their legitimate rights and interests. Legal provisions have been made for needful groups similar to the aged, like the women, children and the disabled as specified in Article 11(3) however, despite dire necessity; no legislation seems to be framed for the elderly. This conduct of the State slightly reflects the apathy meted out towards the senior citizens.

Despite the underlying principle of all people being equal in the eyes of the law, it is not possible to treat all people similarly-in theory as well as in practice. Therefore, the sub-principle of equal protection of law, emanated from the positive thought of equality speaks of classification of persons in different bases and equal treatment within every such category. It also underlines different legal treatment towards different sections classified as such. This is an unchanging principle of justice and this Court has endorsed as well as applied this doctrine. Hence, it is acceptable both in terms of theory and practice that persons can be categorized into various classes, viz. males, females, children, Dalits, the oppressed, the elderly, the differently abled, etc, and separate laws can be enacted for the respective different groups. The old age seems to be a distinct and singular phase. The review carried out above makes it clear that the senior citizens are an exclusive group of people. The prohibitory clause in Article 11(3) itself has accorded recognition for the aged people as having a separate existence. Apart from these, by looking at the special facilities, concessions and treatment made available to them by the State, it is confirmed that the old belong to a separate class. In this regard, the lack of legislation corresponding to the rights, interest and welfare of this exclusive class cannot be said as appropriate.

The group of senior citizens is itself marred by every complexity of the society. As the way, a society is an amalgamation of different heterogeneous classes and groups, viz. rich and the poor, helpless, Dalit, the indigenous, the organized and non- organized, literate and the illiterate, in the same manner, the group of senior citizens bear an exact

replica of this phenomenon. Hence, old age is a reflection of the complex society in that as an old person can be rich as well as impoverished, too. Likewise, all sections and levels of society, viz. the women, Dalits, the indigenous, socio-economically weak, the physically and mentally impaired constitute the elderly population. This way, they create an intricate and diversified stratum of the old-age. This creates a compulsion to treat the group of senior citizens by dividing them into additional sub-strata.

The progress made in science and technology has influenced the conduct, thought, food habits, and lifestyle of human beings and old age is no exception. The marvels in medicine and treatment have reduced the birth rate and the mortality rate. As a result, life expectancy is elongating. Resultantly, the density of infants in society is decreasing day by day whereas due to extended lifespan, the density of the elderly is rising. This trend can be clearly witnessed in the developed countries where the country's dependency on the young is diminishing and dependency on the aged is growing. This pattern is now being observed in the developing nations as well wherein the number of elderly people is becoming larger in the composition of population. This trend will further be intensified in the days to come. Effect of this scenario can be felt in our country as well. This has been testified by the fact that the total population of people aged 60 and above rose to 14, 77,379 in the 2001 census from 10, 73,487 in 1991 census and from 8, 57,061 in the 1981 census. In the same pattern and proportion as the total population is rising, so is growing the aged people's share in it and this trend is going to increase in the future. Therefore, the State's attention should be solemnly drawn to the aftermath and problems raised by this situation, since, the condition is so becoming that the State should brace for fulfilling the liabilities of the elderly in even large scale.

The old-aged people are not only burden but national assets as well. There could be a reciprocal relation between the State and the elderly. The know-how, skill and abilities of the aged earned after a long experience can be utilized in the interest of the society and nation. In the same manner, by fulfilling the obligations towards these people, their remainder of life can be made respectable, blissful and secured thereby even the old age can be made productive and has to be employed in nation's gain. This is the task that every rational and forward-looking country has to do.

The senior citizens are also the symbol of change in era. There is a popular saying in Nepali: 'Budha Mare, Bhasa Sare' which means the

aged transmits language (and culture) to the upcoming generation which they had been nurturing. This way, they create an amicable environment to hand over the sensibility, experience and knowledge to the newer generation which they had acquired after the successful and unsuccessful trials of the life-long tasks which they have done. Similarly, it is the duty of the State itself to use the knowledge of the elderly, produced in the laboratory of wisdom, culture and experience in the process of nation building. Therefore, numerous plans and program have been presented with a view to harvest their potential by ensuring their rights and privileges and through conferring appropriate respect, decorum and goodwill. But these indicators were not met until the end of the 9th Plan and behind this no-show lies the lack of required legal provisions apart from other reasons. This has also been analyzed and accepted by the National Planning Commission (NPC).

In the same vein, the 10th Plan, while addressing the case of senior citizens has brought up various plans and program once again. It has presented a long-term perspective of harnessing the knowledge, aptitude and experience of the aged towards social and economic advancement and of making their life-standard simple, safe and respectable. It has also employed a strategy of formulating necessary legislation, after feeling the need for it, so as to enforce various programmes such as the social insurance. These measures will go a long way in ensuring the rights and privileges of the elderly, to guarantee the right of social security, to mobilize their knowledge, aptitude and experience in development works and to advance this national program while including a concrete national policy based on social justice.

It is not that the Government has turned a deaf ear towards the recommendations of the National Planning Commission (NPC). Some of the works as mentioned above in favour of the old-aged people seems to have been done through policy-level and administrative decisions\ measures. Out of the works still being done, one is the allocation of monthly allowance for the elderly. In addition to this, the Ministry of Women, Children and Social Welfare (MWCSW) has published the Policy and Action-policy on the Senior Citizens 2058. While going through it, the Government seems to be agreeing with and aware of the issues such as - the hardships of the aged, their possible contribution to the nation, the identification of State duties and obligations towards them, their rights and privileges and their guarantee, facilities to be rendered to the senior citizens and the need to formulate legislation to regulate these matters.

By the analysis made above, it seems that the Government is informed about the plight of the senior citizens. However, the goals of two successive plans of the National Planning Commission (NPC), regarding the aged citizens, have not been realized. On the other hand, it has been established that there is a pressing need of promulgating legislation for upholding the rights, interests and well-being of the senior citizens.

Let us now mull over the fourth question. A State can be defined as a collection of all flora and fauna, natural resources and people within a fixed territory. However, jurists concede a group of people residing inside a definite territory as the State. Woodrow Wilson is of the view that 'A state is people organized for law within a definite territory'. Other various jurists and thinkers have also given expressions in a similar spirit. It is not possible to assess all of these but it would be apt here to present the view offered by Salmond. On defining the State through the perspective of its duties, he says: 'State is a society of men established for the maintenance of law and order within a determined territory, by way of force', as quoted by VD Mahajan in his work 'Jurisprudence and Legal Theory', 5th Edition, p. 110. These quotes make it clear that State means or its prime subject is the group of people. Social Contract theory and every other theory of the State establish people as the centre and objective of it. Hence, it comes as the chief duty of the State to provide justice to its citizens by imparting security to them and by promoting their rights, privileges and amenities.

The subject matter of State transmuted from the concept of police State to the welfare State is none other than the protection of the rights and interests of the people inhabiting in its territory. Further, to increase in their happiness, joy and welfare and to be engaged in fructifying human interests are the other subject matters of a nation. A country resembles its society. Similarly, a society is a mirror image of the country. A liberal society gives rise to a liberal country and the opposite is also true. Since a State is many times more powerful than a society, group or person, it is the ultimate defender of its citizens. It embodies the responsibilities of protecting from foreign invasion, maintaining peace and order inside its territory, saving the weak from the mightier, helping the helpless and incapacitated according to the resources available and creating a just society by judiciously distributing the national means and sources. This way, it is explicit that the State is the principally accountable towards the rights, interests and well beings of the senior citizens because it is the ultimate defender and last refuge of the society, class, group and person.

The State activities, i.e. functions, duties and powers are controlled only through the law. There lies an inextricable relationship between the State and the law. There is a dispute among the jurists in this respect. Several say that the law is above the State while others view that the State supersedes law and yet some others opine that the law and State are identical. Since the State is a major legal person, the law itself defines the State as well as law clarifies the duties, powers and responsibilities of the State and its machinery. In this sense, the State is tantamount to rule of law. Since, a State is run by rule of law; it is referred to as a lawful State. Therefore, the State needs to accept legal assistance to work towards the rights, interests and welfare of the senior citizens. In other words, in the absence of legal arrangements, the State cannot undertake any assignments related to the security, interest and welfare of these people.

The State delivers its responsibility through various organs, chiefly through the self-balanced three organs namely the executive, the legislative and the judiciary. The formation as well as the duties, powers and responsibilities of these organs are stipulated by the law itself. So these bodies cannot function in the absence of laws. If a body intends to run even in the absence of laws, then it will create imbalance in the State as well as disrupting its functioning. If the State is thinking that its duties can be fulfilled even without the laws, then this is a wholly inappropriate and wrongful consideration. Out of the different modes of ruling, that will amount to the ruling by person and not even to ruling by law, let alone the rule of law. Our legal system has advanced the notion of rule of law and not either rule by a person or rule by law. If the State is at the service of its citizens, then the State is guided and controlled by them and the apt as well as reasonable medium for this is the law. Therefore, making of law is necessary to mobilize the State resources and capability to enhance the rights, interests and welfare of the senior citizens.

State, being a legal entity as stated above has to fulfill certain liabilities and exercise some powers, too. A sovereign nation not only possesses the authority and powers but has boundless responsibilities to perform. Since the duties and powers of welfare state have manifold, it is impossible to keep with the correct data's of the peoples rights encroachment. And if the state fails to perform its duty properly, people shall have right to put forward their demands before the state for their fulfillment. The objective of instituting this case is also to make the state aware of fulfilling its liability towards the elderly people. The government, depending upon the resource availability of the state

must ensure the well-beings of the elderly citizens and in default of which the citizens are secured their rights to sue the state in order to materialize their demand. So the state is liable to fulfill its duty towards the elderly people at par with other class and community of the society.

The Constitution of Kingdom of Nepal, 2047 has declared the Nepalese people as the source of State power as well as committed for the attainment of social, political and economic justice to them till eternity. For this to happen, it has taken the primary objective of realizing the concept of rule of law through securing fundamental human rights of every Nepalese citizen, strengthening multiparty democracy on the bases of freedom and equality and through establishing independent and competent judiciary. Similarly, the Article 25(1) makes the objective clear to promote conditions of welfare on the basis of the principles of an open society, by establishing a just system in all aspects of national life, including social, economic and political life, while at the same time, protecting the lives, property and liberty of the people. Likewise, under Article 26(8), the State has pursued policy for special arrangement in matters of education, health and social security of orphans, helpless women, and the aged, the disabled and incapacitated persons. Following this constitutional provision, the Kingdom of Nepal is a welfare state based on open society; and it has the obligation of fulfilling its duties towards providing equitable share to the senior citizens from the State as well as guaranteeing their freedom, human rights and health assurance.

In a democratic form of governance, the government rules by representing its own citizens. Therefore, the government bears the inalienable responsibility of imparting to all of its citizens—judicious, legitimate and appropriate share, under the constitutional and legal arrangements. In this sense, the government is a justice giver of a grand scale and it does so through the law. The principal task of the government is to identify the legitimate and exclusive rights of the various groups and sections of its citizens and to enact and enforce the necessary laws in order to protect and promote them. Hence, it is the inescapable duty of the government to promulgate legislation for senior citizens.

Let us now think over the fifth question. In the written reply furnished by one of the respondents, the HMG, the Ministry of Women, Children and Social Welfare (MWCSW) it has been acceded that it is the duty of the State to undertake welfare activities of its citizens as permitted by the sources and means. Though the Article 11(3) has arranged for

the enactment of a separate law, it is solely a matter of State policy on which laws are to be made. The written reply submitted by the Ministry of Law, Justice and Parliamentary Affairs (MLJPA) also reasserts the same stand besides raising the point that the Constitution has not provided for a mandatory provision to make laws in any subject. In the same reply, it has been mentioned that though special arrangements can be made through law, they can be made steadily according to the availability of State resources.

From the replies of the respondents, it becomes overt that there is a sense of accountability that the senior citizens should be helped according to the available means and, for that purpose, it is necessary to make special arrangements through law according to Article 11(3).

If, going through the statements of respondents, it is the duty of the State to assist in the welfare activities, then powers are also required to have the State's obligation towards the senior citizens fulfilled. It is because according to the jurisprudential perspective, powers and duties are inextricably related. This means there is no duty without right and vice versa. And in the absence of appropriate laws, rights and duties cannot be created. A duty devoid of power is meaningless in that in the absence of fulfillment of duties by the responsible person, he cannot be bound to have performed the same. Therefore, a duty bereft of power is arbitrary, indiscriminate and it is prone to misuse. Hence, to implement the duty so that the beneficiaries get the benefit and to wisely perform and practice the duty bestowed upon the State, powers are required for the beneficences. And these powers can be created only by the laws. The law which creates power generates duties also. Duty is not a matter of charity. It is not a matter of discretion because duties should be such that they can be enforced through courts. Hence, even going through the statements of the respondents, it is the duty of the State and to enforce such duty and to create rights for senior citizens, law is inevitably required.

The provision stated in the Article 11 of the Constitution is of mandatory nature since therein words of determinate nature have been used, viz. 'shall not be done', 'shall not do', 'shall be so', etc. Moreover, it has been specified that the use and practice of the provisions mentioned in that Article shall be as per the law. It means the provisions envisioned in that Article may be realized only through the application of law. Therefore, it cannot be negated that in order for the usage of the right to equality, mentioned in Article 11 the relevant laws are indispensable. However, the prohibitory clause in the Article

11(3) is of a slightly different nature. Therein the clause 'may be done' is used which is a bit liberal to explanation as it leaves room for discretion. This refers to an intent that special arrangements through law may be made or may not be. Thus, the prohibitory clause in the Article 11(3) leaves a message that special arrangements through law may be made or may not be made for the sake of senior citizens. So, as raised by the respondents in their written replies, is the matter of framing a law a subject of choice or discretion under a policy? But this is not and will not be the case. Two sides emerge from this provision: deciding whether special arrangements are to be made or not and if special arrangements have to be made, the issue of promulgating legislation for it. In the first question, discretion can be applied as to make special arrangements or not. Once it is settled that special arrangements have to be made, the issue of promulgating legislation comes in inevitably. In other words, legal framework becomes unavoidable to implement such special arrangements. The statements of respondents also corroborate the fact that the State has a duty towards helping in the welfare activities of the senior citizens according to the available means and sources. Similarly, the National Planning Commission (NPC), one of the organs of the State, has been underlining the need for promulgating separate legislation for the aged, right since the 9th Plan. Therefore, the first condition is met and in this regard the stance of the respondents that the Constitution has not compelled the State to formulate laws cannot be said as constitutional. It only signals the measures employed to escape from own responsibility.

It has been discussed above about the inseparable relation that the State and law share with each other. The State as well as the government representing it are constituted according to law. In the States with democratic and multiparty culture, thought and system, governments change regularly after a stipulated period following legal method and procedures. It is also a reality that the machinery of the government which enforces the governmental decisions and its authorities, too, change according to the law. Therefore, there is a compulsion to run the functions of government in the State according to legal system which is made as per definite, regular policies and principles. Most likely, realizing this very same inevitability, the concept of rule of law developed and got accepted across the world. At this scenario, the assertion of respondents that there is no compulsion on the State to formulate legislation cannot be said as responsible expression in the wake of Constitution and the concept of rule of law. This type of thought and predisposition propagates

arbitrariness. Because, by this type of orientation, the government may do a certain task at its will and may avoid another at the absence of it. Even the modes of operation may get changed abruptly. Then the power settles uncontrollably in the hands of specific authorities and will be used haphazardly. This will lead to realization of the saying, 'Power tends to corrupt and absolute power corrupts absolutely.' In place of law creating powers, when the concerned authorities assume power even in the absence of law, it may be an even more frightening phenomenon. In this country plagued by impunity, the opinion of the respondents that the State functions may be carried out even in the lack of relevant laws, cannot be said as harmonious to the notion of rule of law.

From the expositions above, it has been felt that there is a compulsion to frame laws to protect the rights and interests of the senior citizens.

The sixth question to be analyzed now is whether or not this Court can instruct the government to frame laws? And, whether or not an order as requested for needs to be issued? To attain answer to this question, it is worthwhile to look at - what is the nature of work of this Court and what it has been doing in questions as such.

The courts deliver justice. They are established for the very same purpose. Justice is a word giving unclear, vague and fluid explanation and is of the same nature. There is no need nor the context here to delve deep and ruminate on what is justice? How is it like? etc. But a discussion made on its universality, expandability and on justice embedded in these notions is warranted for. It is because, in this case, the subject of injustice done and suffering vented upon the senior citizens due to the lack of an appropriate legislation is inherent. Justice at macro level and empirical level such as economic, social and political justice is a matter of discussion especially for the government and parliament. The judiciary has to deal with specified legal questions and with delivering social justice in matters of public rights and interests. It also has to impart and practise justice in legally provided rights and privileges of persons or groups. In comparison to others, these matters of public rights and interests rarely come up before the courts. Social justice at an empirical scale (between societies, groups, castes, geographical zone and other big classes and sections) has to be done by defining and distributing rights and privileges, formulating policies, allocating State facilities and by advancing any backward class, group or region. These acts are capable of delivering justice to a huge section of society. To clarify this

position, extra analysis needs to be done which is neither possible nor warranted herein. Presenting a single example will be apt in this regard. It is evident for all that thousands of Kamaiyas (forced laborers) in western Terai were emancipated after centuries of slavery by enacting an Act. If actions are undertaken for the rights, interests, amenities and welfare of the senior citizens by promulgating a law, then it would prove to be justice done by the State towards them. Therefore, compared to this justice, justice delivered by the court will seem to be more exclusive and intensive. This judicial function of the State should gain prominence and in this regard, the main organ of the State, i.e. the government should be aware.

The judiciary is an organ of the State chiefly doing corrective justice. It reviews the actions done by the government and the legislature and corrects wherever it finds any discrepancy or anomaly in the use of their duties, powers and responsibilities. In addition, the judiciary also plays the role of a balancer by delivering justice through distinguishing between the right one and the wrong one between two rights. In a general traditional sense, this second role of imparting justice is called as 'administration of justice' and this has become the hallmark of judiciary. After the inception of the system of separation of powers between three organs in a modern State, the judiciary has been actively playing the first role as well, by way of public interest litigations (PIL). Limiting inside the premises set by the Constitution; this Court has established its meaningful role through public interest litigations and in several instances has directed the government to formulate laws in the needful issues.

This petition seems to be filed for directing the government to frame legislation as there is no relevant law pertaining to the senior citizens. The facts reviewed above confirm that senior citizens are a distinct sui-generis class having their own peculiarity not matchable to others. The government also has since long accepted their separate identity from factual inputs. It has been devising and implementing various plans and programs for their upliftment, but has not yet established a reasonable legal framework for them. In the light of the above, since the judiciary is also a vital and responsible organ of the State and when the State obligations are not fulfilled, then, it also has to bear the blame for it. Therefore, while pinpointing at the no-show of governmental responsibilities, it has to instruct for their fulfillment. This does not infer as ordering the government or superseding the government or showing superiority over it. Rather, it should be deemed as correcting a particular action or instructing for a particular

performance in the capacity of a co-traveler among the three equal organs of a State. It is like offering an advice by a well-wisher to the other. The well-wisher can do nothing in case of non-compliance. However, here, the Court can question why the order is not obeyed and can take appropriate action for non-compliance.

At this context, it is found that the government has taken only some ad-hoc measures relating to the senior citizens and has not undertaken their rights, privileges and welfare by making statute. Through the various bases and reasons analyzed as above, the claims of the petitioners have to be said as just and lawful. A dire need of legislation for the senior citizens is palpably felt. Hence, the Court issues the order of mandamus in the name of the government to submit a draft of the required law in the ongoing session of parliament and to enact as well as enforce that law, for the protection and promotion of the rights and interests of senior citizens.

This Court, acting on the limited jurisdiction conferred by Rule 67(3) of the Supreme Court Rules, 2049, and on the jurisdiction offered by the Constitution and other prevalent laws as well as employing the Court's own inherent powers related to justice, has been issuing directive orders to His Majesty's Government and other public officials requiring them to perform a particular function. These directive orders are being issued in matters related to administration, abuse of power by authorities and in law-making conditions as in this case. A definite system and power of this Court to issue directive orders has long since been established.

The definite procedures to implement these orders cannot be found clearly in the prevalent laws, chiefly, in Judicial Administration Act, Supreme Court Act and the Supreme Court Rules, 2049. Since the modes of implementing these directive orders and other orders made in general cases are different, to enforce these orders, legal provisions in the Chapter of Punishment on Civil Code and the District Court Rules 2049 also cannot be invoked. Due to the lack of enforcement mechanism, the directive orders issued by this Court are limited only to decisions and are far from being implemented. Hence, to obey or enforce these orders is limited as a moral issue for the concerned bodies or officials. If the concerned authorities observe them, then they are enforced, otherwise not. Nobody asks why they have not been implemented. Even in case of non-compliance, there is no fear in the minds of officials and they are not even obliged to give answers for non-obedience. In this situation, it is nothing but natural that these

orders merely get limited to the papers. The outcome of this is seen as the Court transforming into a paper tiger or paper-horse rider from an institution that had incited hope and that had raised virtuous issues many a times. It can be easily felt that the Court is now being reduced to an institution that has lost its effectiveness and upon which public trust and faith is waning. This is not a pleasant thing for this Court standing on conviction of the public. It becomes urgent for the Court to try on its own to protect its existence and efficacy and to establish it more brightly and effectively.

The Court, paying serious attention to this matter, has thought it necessary to regulate certain procedures. The enforcement of these orders is an internal procedure of this Court. Hence it should be regulated by the Court itself. Since the authorship of its decisions lies within the Court, it is a matter of this Court's own responsibility to execute its decisions. For this, the Court needs to revisit its internal working procedures and effect reforms in them.

It would be appropriate here to refer a single example of this Court's order not being implemented. According to Some Media Agencies Act, 2028, Gorakhapatra Corporation Act, 2019 and National News Agency Act, 2019, it is mandatory that the organizations established under these Acts have to issue 49% of shares to the general public. Moreover, in a liberal democratic system, it would not be appropriate for the government to run its own media houses. Therefore, requesting for an order for the enforcement of the provisions stated in the respective Acts, Advocate Pawan Kumar Ojha filed a writ petition before this Court against His Majesty's Government. In this case of Advocate Pawan Kumar Ojha versus His Majesty's Government and others, writ no. 3286 of the year 2053 BS, seeking certiorari, mandamus and other required orders or warrants, this Court had issued a directive order on Paush 15th, 2055. Even after 8 years of the decision, it is yet to be implemented, because the government has not issued shares to the public according to these Acts till now. This Court has also not taken concern in executing the verdict. So what is the difference between a decision not implemented and just to keep (not read) a book adorned with an attractive cover?

To ensure that the order issued in the present decision to formulate appropriate law for senior citizens does not meet with the same fate, to prevent this order from becoming a shred of paper dumped in the case-file, and to facilitate effective execution of these directory orders, the Court issues order in the name of the Registrar of Supreme Court

to adopt the following measures by duly including them in the Supreme Court Rules, 2049 as well:

- a) To develop a system of clearly mentioning - at the time of issuing directive orders – what to do, when to do and how to perform a particular task; and to unfailingly forward a copy of the order to the Monitoring Division.
- b) The Monitoring Division shall maintain the record of the decisions in which the court has issued the directive order. The Monitoring Division shall as far as possible classify such orders and then ascertain the authority to whom it is to be served specifying also the time period until when the business stated therein has to be over come. Such authority shall be sent also the concerned case file along with a covering letter.
- c) Conduct periodic monitoring on whether or not such directions orders are complied with.
- d) To ask for clarity on matter as to why it could not completed within the specified period. If it is necessary to extend the time limit, do so obtaining necessary approval from the concerned authority.
- e) He who deliberately defaults the order shall be initiated action ranging from the contempt of court and departmental action (even if the defaulter is retired)
- f) Make publicity of such directive orders and their implementation through the appropriate media.
- g) Submit the account of the directive orders, and their implementation in the annual report of the Supreme Court.
- h) Fix the terms of reference for Monitoring Division in regard to this action and equip with necessary, manpower and resources. The registrar shall be fully responsible for this matter.
- i) The Registrar, in consultation with the Chief Justice, or by adopting any other appropriate measures in order to remove the obstruction comes across in the course of implementing these directive orders.

I concur above decision.

Justice Badri Kumar Basnet

Done on 24th Baisakh, 2063 (7th May, 2006)

□

Government of Nepal is directed by this Court to activate sub-Art.(8) and Article 26 of the Constitution inline with the CRC, ICCPR and ICESCR norms taking into account the widespread practice of Forced Domestic Child labor despite various Child Enactments.

**Supreme Court, Division Bench
Hon'ble Justice Sharda Prasad Pandit
Hon'ble Justice Balram K. C.**

Order

Writ No. 3215 of the year 2061

Subject: Mandamus and other.

Petitioner: Mr. Som Prasad Paneru on behalf of FNC and others
Vs.
Respondent : Office of the Prime Minister and Council of Ministers and others

- Hence, mandamus is issued in the name of respondent the Government of Nepal for effectual implementation of Bonded Labor (Prohibition) Act, 2058 as Kamlari practice has violated, enter alia, Articles 9, 14, 15, 16, 18, 19, 28, 29, 31 and 32 of CRC, signed by Nepal.
- In addition, because of non availability of facility of education as the situation of Nepal is traditional, conservative, poor, illiterate and innocent, only enacting Acts and only stipulating in Acts and CRC, child labour cannot be abolished.
- Hence, directive order is also issued in the name of respondents the Council of Ministers and Ministry of Education that it would be appropriate to include international Conventions relating to human rights; inevitable since covering every aspect of human life; especially CRC, ICCPR and ICISCR, ratified by Nepal; in the curriculum of children.

Sharada Prasad Pandit, J: A brief description of fact and order of the writ petition filed in this court pursuant to the Articles 23 and 88(2) of the Constitution of the Kingdom of Nepal is as follows:

Among the petitioners, the organization, Friends of Needy Children (FNC) is affiliated with Social Welfare Council after being registered in D.A.O. Lalitpur, with No. 702/053/054 in 2053 (B.S.). The organization is involved in cooperation and emergency rescue of poor, helpless and abject needy children of Nepal collecting contribution from different native and foreign donors. Additionally, [the petitioner organization] has been carrying out the program of rescue and restoration of the girl child, forced to labor into other's home from the age of 7/8 as domestic child laborer, under "Kamlari" practice, widely exist within Tharu society of Dang district for five years. Thus the petitioners have got here to submit this writ petition, identifying suffering and problem of domestic child laborer, in course of looking for feasible means of solution. We petitioners, [other than FNC], are students of law faculty studying especially in relation to practice of the child rights of the children of Nepal and domestic child labor. We have concern and serious interest on the subject matter of this writ petition. Hence, we have submitted this writ petition for enforcement of the child rights pursuant to proviso Clause of Article 11(3) and Article 11(1) of the Constitution of the Kingdom of Nepal, 2047 and Section 9 of Nepal Treaty Act, 2047 under Articles 23/88(2) [of the Constitution] under extra ordinary jurisdiction of honourable Supreme Court, praying for issuance of appropriate order on the public interest issue of the child rights.

Convention on the Rights of the Child (CRC) was adopted unanimously by the UN General Assembly on 20th November, 1989 for protection of basic rights of children. The State has promulgated Children Act, 2048; Children Regulation, 2051; Children (Development and Restoration) Fund Regulation, 2053 and Children Labor (Restricting and Regulating) Act, 2056 (enforcement date 2057.3.7 B.S.) for enforcement of the provision of the Convention and these laws are here as active legal provisions on the field of child right. Among those legal provisions, Children Labor (Restricting and Regulating) Act, 2056 only concerns with formal sector of child labor, that is widespread in Nepal, especially children under 14 working at enterprises established and run under law. However, that legal provision is silent for those innocent children compelled to work as domestic helper or slave from the age of 7/8 and come under informal sector of child labor. Children are forced to work an odious child labor, in informal sector, deprived guardianship of their parents at the age of

7/8, as domestic helper or slave in so called well-off's home or hotel or others' home. From these activities child rights, basically the following rights, ensured by CRC are being violated.

- a) Article 2 of the Convention has provision for equal assurance of the rights of child without discrimination of any kind, irrespective of the child's or his/her parent's or guardian's race, color, sex, language, religion, ethnic or social origin or other status. In Tharu community; residing in Dang, Banke, Bardia, Kailali and Kanchanpur districts; under Kamlari system; on every "Maghi" (1st day of month Magh of B.S.) girls of age 7/8 are sent as domestic helper into home of so called well-off by their own parents. These girls are indirectly traded as cattle. It is projected that there are around 10 thousand Kamlaris within those five districts according to preliminary study. The VCD (televised on Nepal Television on 2061/6/19 B.S.) is submitted with this petition as direct evidence. *It will be proved, after watching the material, that respondents have not shown their concern to prohibit such odious domestic child labor system and to restore the child victimized by the system.*
- b) Enforcement of the rights to be cared for by his or her parents, not to be separated from his or her parents against their will, to maintain on a regular basis personal relations and direct contacts with both parents and to combat the illicit transfer assured by Articles 7, 9 and 11 of the Convention is not possible without eradicating traditional malpractices of domestic child labor widespread in Nepal.
- c) Likewise, based on the present situation of domestic child labor, it does not become visible that respondents are conscious to comply the obligations from protecting the right of the child to rest, to leisure, to engage in play and recreational activities; right of the child to health, education or development; specifying the minimum condition for admission to employment and preventing the abduction of, the sale of or traffic in children mentioned in Articles 31, 32, and 35 of the Convention and also to be fulfilled by the State. Whereas, Article 3 and 4 of the Convention have provision that courts of law, administrative authorities or legislative bodies of the State shall consider the best benefit of the child; ensure the child such protection and care, and undertake all appropriate legislative, administrative, and other measures for the implementation of the rights recognized in the Convention. Sections 4 and 5 of Children Act, 2048 stipulate that children shall deserve right to be cared and

nurtured by parents or guardian however from the situation of domestic child labor *reality is* just reverse, parents are being nurtured by the labor of their child.

Principle laid down by the Supreme Court; NLR 2058, Decision No. 7020, W.F.B. No. 174; for preservation of child right the court has portrayed its role positively for protection of child rights ensured by the CRC. Not only so called well-offs but also supposed elite group of civil servant, renowned persons of different profession and occupation and social workers have allowed child labor in their home as cheap and convenience service and as a matter of respect and pride. In these circumstances, declaration of liberty and restoration of child labor, including Kamlari, shall carry important revolution for enforcement of child right.

Children Labor (Restricting and Regulating) Act, 2056 has been enforced by respondents for the children above 14 year, working in formal sector of labor market, nevertheless, any specific legal provision or government program have not been pronounced on the issue of restriction and restoration of labor of the children below 14 year, compelled to labor in informal sector. Sections 3 and 4 of Children Labor (Restricting and Regulating) Act, 2056 has stipulation that no one shall employ a child not completed the age of 14 as labor and shall employ against will of a child, however, this legal provision is not being sufficient basis for abolition of domestic child labor. While comparing the social status of Kamlari practice and domestic child labor, *remaining as residue* of slavery system, cannot be less depressing issue than Kamaiya labor, restricted and abolished by respondents. Children are deprived of the equal protection of law.

Thus for enforcement of the child rights ensured by above mentioned stipulation of the Convention on the Rights of the Child, of Children Act and of the Constitution of the Kingdom of Nepal directive order, including mandamus and other appropriate instruction, should be issued in the name of respondents to declare immediately free domestic child laborer under 14 years, including Kamlari, restricting legally odious traditional malpractice of domestic child labor existing in Nepal and, establishing a fund at national level, for purpose of rehabilitation of these children and provision shall be made and it should be done appropriate and sufficient legal and administrative arrangements for protection of right of domestic child laborer with view of social justice.

This court issued show cause order on 2061/8/7/2 B.S., stating that a notice be delivered to the respondents for appearance, with written response; within 15 days after receiving this order, excluding the time taken of journey; about what has happened in this case? Why should the order prayed by the petitioner not be issued? And in receipt of written response or after expiry of the time, be submitted [to the bench] as per rule.

The written response presented by the Office of Prime minister and Council of Ministers reads that the petition submitted by petitioners without a clear plea of what action of this office has encroached on their which right and stated this office as respondent without cause and ground is liable to be dismissed. Be dismissed.

The written response submitted by Legislature Secretariat has stated that the petitioners have filed the petition on an imaginary issue that is not based on actuality but only on the news published on paper and a specific program broadcasted on the mass media. The petition, based on hypothetical issue without strong fact and evidence, be dismissed.

The written response presented by Home Ministry reads that His Majesty's Government has been trying its best for benefit and welfare for children from its resource and material. Relevant bureaus of His Majesty's Government are active for effectual implementation of Children Act, 2048, Children Regulation, 2051 and other laws relating to children. In the context of national laws been being amended and revised in accordance with the agreements between His Majesty's Government and children related international organizations, the writ petition is irrelevant, so be dismissed.

The written response submitted by Ministry of Woman, Children and Social Welfare states that with the plea in relation to the statement of the petition that 'Sections 4 and 5 of Children Act, 2048 stipulate that children shall deserve right to be cared and nurtured by parents or guardian however from the situation of domestic child labor *reality is* just reverse, parents are being nurtured by the labor of their child', it is only *self centered* argument that parents do not care and nurture their child based on their economic status. Petitioners have not mentioned that which father and mother violated the provision of those sections. Likewise they have not mentioned that which father and mother discriminated in care and nurture of their son and daughter. The petition has been submitted only on the basis of daydream. With the commitment to implement gradually the provision of the Convention on the Rights of the Child, ratified by Nepal, as His Majesty's

Government has enforced Children Labor (Restricting and Regulating) Act, 2056, publishing on Nepal Gazette, the claim that appropriate and sufficient legal and administrative arrangement has not made is only self absorbed argument. Thus, the petition stating this office as respondent without ground and cause be dismissed.

The written response put forward by Ministry of Law, Justice and Parliamentary Affairs states that Bonded (Kamaiya) Labour (Restriction) Act, 2058 has liberated bonded labor. After enforcement, the act has provided that laborer cannot be employed as bonded labor, bonded labor do not need to refund the debt, deed [of debt] be nullified, deposit or security be given back. The act also has provided necessary arrangement in relation to abolishment of bonded labor like: Kamlari, with organizational set up for restoration of bonded laborer, as well as punishment for the person who employs bonded labor. Hence, the writ petition submitted with no base, claiming that there is absence of law to prohibit Kamlari, not being appeared lawful and reasonable is worth dismissing. Be dismissed.

The written response presented by Ministry of Labor and Transport Management states that in relation to implementation of Child Labor (Restricting and Regulating) Act, 2056 a national master plan for eradication of child labor is being implemented after preparing with active participation of different collaborators and stake holders by this ministry. According to the plan, the program is being conducted with target to eliminate seven kinds of odious child labor within first five year that is up to 2009 and to eliminate all kinds of child labor within next five year that is up to 2014. In accordance with the plan, a time bound program is in operation targeting seven kinds of odious child labor as: domestic child laborer, bonded child laborer, child laborer hired in carpet industry, child porter, street children, children engaged as stone crusher and the children victim of trafficking and their family. These child laborer centric programmes, including registration of child laborer, formal and informal education, skill development, drop in centre, income generating program and awareness program is being conducted within different 22 districts. In the context that the Labor Act and Labor Regulation are incapable to cover the laborer working in informal sector, discussion is being held in different forum and a three day national labor conference is going to be commenced. Based on the discussion and received suggestions, the ministry has a thought of covering policy matter and legal infrastructure extensively. Hence, the writ petition is liable to be dismissed.

In this writ petition, enlisting in daily cause list as per rule, submitted on this bench to deliver decision, whole documents have been studied. In this writ petition, on behalf of petitioner learned Advocates Ms. Gita Pathak Sangraula, Mr. Krishna Devkota, and Mr. Prakash K.C. pleaded that domestic child labor is an informal labor that is not publicly noticed, hidden, invisible and not easily accessible for legal remedy. According to Child Workers in Nepal (CWIN) around 14% of girl children have informed that they are being sexually abused by the male members of the home where they labor, by those males' relatives and their friends. This figure is only a glimpse of sexual abuse on the girl children. Most of such incidents, happening behind curtain, are not exposed because of various reasons. The poor family of Tharu community residing in different districts of western part of Nepal, like: Dang, Banke, Bardia, Kailali, and Kanchanpur sent their so young girl child of 7/8 year, on Maghe Sakranti (Maghi festival celebrated by Tharu tribe), into home of so called well offs and townspeople. They are called "Kamlari". On the day of Maghe Sakranti an implicit or unwritten or informal agreement is concluded between those girl child's guardians and so called well offs' and in this process broker are also found being active. And, girl children are impliedly bought and sold as cattle.

Additionally, Section 3(1) of Children Labor (Restricting and Regulating) Act, 2056 prohibits anyone from employing children below 14 year. In practice the legal provision is stipulated only regulating child labour in formal sector. It is weakness of the respondents, not being able to protect the children effectually and in its entirety; developing appropriate law and competent institution; against illegal, inhuman and odious types child labour exploitation of the children compelled or being compelled to work in informal sector. From which not only the children being victim but there is certainty of irreparable loss to whole nation. There is no implementation of law in real sense in accordance with Article 2, 3, 4, 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 27, 28, 31, 32, 34, 35 and 37 of Convention on the Rights of the Child, 1989. In addition, concerned provision of International Covenant on Civil and Political Rights, 1966 and International Covenant on Economic, Social and Cultural Rights, 1966 interrelated with the Convention have also not being implemented. Hence, order, including mandamus, should be issued to make or to be made appropriate and sufficient legal and administrative arrangements for enforcement of child rights of domestic child labourer. In addition, they also submitted Bench Memo in support of their plea.

On behalf of the respondents learned Joint Government Attorney Mr. Saroj Prasad Gautam pleaded that at present Children Act, 2048; Children Regulation, 2051; Children (Development and Restoration) Fund Regulation, 2053; Children Labour (Restricting and Regulating) Act, 2056 have been enacted and implemented in real sense for physical, mental and intellectual development of children, protecting their right and interest. Ensuring right of children in its paragraph 2 Children Labor (Restricting and Regulating) Act, 2056 has prohibited any kind of child labor, including Kamlari system, forbidding from any types of employment (domestic work) to child below the age of 14 year with stipulation of young age child should not be employed in sub Section (1) of Section 3 of the Act and with stipulation of restriction from employing in dangerous work in sub Section (2) of Section 3 of the Act. In addition, as assurance of the Government of Nepal to implement gradually the provision of Convention on the Rights of the Child to which being a party, Nepal has ratified; different legislation, regulations relating to children being implemented time and again; the plea of petitioner that there are no stipulation of appropriate and adequate legal and administrative is not based on fact. Hence, the writ petition should be dismissed.

On above background, it has emerged that following questions should be resolved, for resolution of the dispute arisen in this writ petition, considering plea and pleading note of learned lawyers from both sides.

- 1) Whether implementation of Nepalese legal provision in relation to prohibition of child labor is being as specified by Convention on Rights of the Child and international instruments relating to human rights or not.
- 2) Whether the order prayed by the petitioner can be issued or not.

While considering the first question for decision, *as the pray of the writ petition, there is a description of the fact that Nepal has not been prohibited and eliminated traditional malpractice of domestic child labor that exists here for implementation of the provision of Articles 2, 3, 4, 5, 6, 7, 8, 9, 11, 31, 32, and 35 of Convention on the Rights of the Child, 1989 and child rights ensured by Children Act, 2048; Bonded Labour (Prohibition) Act, 2058 and Article 11(1) and proviso to Article 11(3) of the Constitution of the Kingdom of Nepal, 2047. Based on the above fact, the claim of the writ petition is to be issued instructive order with appropriate wording, including Mandamus, in the name of respondents, prescribing them, to declare liberated instantly to domestic child labor below 14 year, including "Kamlari", and with*

the purpose to restore them establishing a fund at national level, do appropriate and adequate legal and administrative arrangement for abolition of Kamlari practice that extensively exists in Tharu community, especially residing in Dang, Banke, Bardia, Kailali and Kanchanpur districts, as 10,000 Kamlaris are there, and for protection of the child rights of domestic child labour.

In the counter claim the respondents have stated that the responsibility of implementation of existing law is of the executive. Bonded Labour (Prohibition) Act, 2058 has considered/accepted Kamlari and other similar labors as Kamaiya labour (bonded labor) and Section 3(1) of Children Labor (Restricting and Regulating) Act, 2056 has prohibited employing a child below 14 year as a labor anywhere. A master plan is in implementation for elimination of child labor, after preparing with the help of all stakeholders. Discussion is being held in different forums as Labor Act and Regulation cannot include the labor working in informal sector. The issue claimed by the petitioners is not based on concrete fact in this circumstance but petition has been submitted only on the basis of the news published on paper and a program broadcasted on the media and taking an imaginary issue. Hence, writ petition be dismissed. This written reply of respondents has engendered dispute.

Describing and analyzing *on this issue it can be considered that for preservation of basic rights of children Convention on the Rights of the Child, 1989 (CRC) has unanimously adopted by the United Nations General Assembly on 20th November 1989 based on the reality that preservation and development of children is basic foundation of overall development. Nepal has already ratified the Convention as a State Party on 14th September 1990. For immediate implementation of the provision of Convention on the Rights of the Child ratified by Nepal, during the process of enactment of laws by the state, after restoration of democracy, the Constitution of the Kingdom of Nepal, 2047 promulgated. The Constitution, in course of providing equal opportunity to all citizens by the state, in its preamble, directed that this would be accomplished on the basis of independent and competent justice system, considering the concept of rule of law through the means of justice. To achieve that purpose, especially for protection of right and benefit of children, the Constitution has stipulated provision of right to equality in Article 11, right to freedom in Article 12 and right against exploitation in Article 20. In addition, commitment has been articulated by the state for successful implementation of right and benefit of children stating "[t]he state shall*

make necessary arrangement to protect right and benefit of children without allowing them to be exploited and gradually make provision for providing free education" in sub Article (8) of Article 26 of the Constitution.

Likewise, since Children Act, 2048; Children Regulation, 2051; Children (Development and Restoration) Fund Regulation, 2053; Children Labor (Restricting and Regulating) Act, 2056 and Bonded Labor (Prohibition) Act, 2058 have been enforced, these acts and regulations are as prevailing laws active in the field of the child rights.

Provision of part (b) of sub Section (2) of Section 23 of Children Act, 2048 reads "to arrange education that can help intellectual development of a child". This act has enforced for physical, mental and intellectual development of children protecting their interest. sub Section (1) of Section 4 of the Act stipulates "according to the economic condition of the family, parents should arrange facilities of education, health care, games and recreation in addition to caring and nurturing their children". In Section 5 of the Act, there is also provision of no discrimination between and among sons and daughters. Chapter 2 of the Act has stipulated rights of children. Laws are enacted but not appeared having implemented. Petitioners entered into the court because stipulation of the Acts and Regulations have confined within the clauses of the laws only. *The fact of existence of negative situation like Kamlari practice and child labor cannot be disregarded only referring to unimplemented legal provision in written response, like the proverb 'law in books not in action' and the Benjamin Disraeli's saying 'justice is truth in action'.*

In addition to Children Act, Bonded Labor (Prohibition) Act, 2058 has enforced with objective of prohibiting bonded labour and rehabilitating freed bonded labourer. *In contrast, as the Act has not been implemented the situation of bonded labor became more miserable and instead of being provided protection and nurture [by their parents] as stipulation in Sections 4 and 5 [of Children Act] children have compelled to accept any form of labor.* Likewise, the stipulation "no one shall employ the child below the age of 14 as laborer and no child shall be employed against her/his will" of Sections 3 and 4 of Children Labor (Restricting and Regulating) Act, 2056 has not been implemented for domestic child [laborer].

In above mentioned condition for effectual implementation [of the law] the State must be quite active for implementation of CRC and its provisions.

Article 2 of CRC stipulates that without discrimination of any kind irrespective of the child's or his or her parent's ethnic or social origin and other status including race, color, sex and religion equal assurance shall provide [for the rights set forth in the Convention to each child].

Articles 7, 9 and 11 of the Convention have provisions regarding the child rights as the right to be cared for by his or her parents, the right to live with his or her parents to the possible extent, the right [of the child who is separated from one or both parents] to maintain direct contact with both parents at desired time and the right not to be transferred illicitly.

Likewise, Articles 31, 32 and 35 of the Convention stipulate the right of the child to rest and leisure, to engage in play and recreational activities; to be protected from performing any work that is likely to interfere with the child's education or to be harmful to the child's health or development and from exploitation; to be provided for appropriate regulation of conditions of employment; and not to be sold or trafficked in children.

A State should carry out an effective implementation of relating provisions of International Covenant on Civil and Political Rights (ICCPR), 1966 and International Covenant on Economic, Social and Cultural Rights (ICESCR), 1966 mentioned on the preamble of CRC for effectiveness of implementation of entire provision, including the preamble, of the Convention. *From the provisions of these Conventions assurance has been provided for development of entire family in the company of children of the society.* The State Parties are liable to ensure the right of every individual to adequate food, clothing and housing and to an adequate standard of living for family also, and to the continuous improvement of living conditions, basically, according to Article 11 of ICESCR. In addition to that, as being very essential to cite of following provision of sub Article (1) of Article 13 of ICESCR has been extracted here:

"The State Parties to the present Covenant recognize the right of everyone to education. They agree that education shall be directed to the full development of the human personality and the sense of its dignity, and shall strengthen the respect for human rights and fundamental freedoms. They further agree that education shall enable all persons to participate effectively in a free society, promote understanding, tolerance and friendship among all nations and all racial, ethnic or religious groups and further the activities of the United Nations for the maintenance of peace."

It is stated in sub Article (2) of Article 7 of CRC that national law and international instruments related with the children's rights should be implemented. In sub Article (2) of Article 6 of CRC, it is stated that the maximum extent possible the survival and development of the child shall be ensured. *Supply of physical belongings essential to life, right to information as other psychological necessities and education for intellectual development also there within the maximum extent possible the survival and development.* Uplift of standard of living of entire family, individual freedom and dignity of human life, maximum extent possible the survival and right to education are incorporated within Articles 11 and 13 of above mentioned ICECSR.

Similarly, Article 4 of CRC has provision that with regard to economic, social and cultural rights, States Parties, to the maximum extent of their available resources and, where needed, within the framework of international co-operation, should undertake all appropriate measures for fulfillment of every necessity. Likewise, sub Article (1) of Article 2 of ICESCR stipulates that if State Parties' available resources are insufficient they should request, mainly, for economical and technical assistance and co operation to developed nations and the requested help should be granted. It must be done in accordance with the provision of Article 42 and sub Article (6) of Article 44 of CRC which read as follows:

Article 42 "States Parties undertake to make the principles and provisions of the Convention widely known, by appropriate and active means, to adults and children alike".

Article 44 (6) "States Parties shall make their reports widely available to the public in their own countries."

The United Nations Organisation's Committee on the Rights of the Child, established under Article 43(1) [of CRC]; after receiving reports from the specialized agencies, the United Nations Children's Fund, and other United Nations organs on the matter that fall within the scope of their mandate on its request, on the reports submitted by State Parties pursuant to Article 44; suggestions and general recommendations based on the information received from those reports; transmit to any State Party concerned as provision pursuant to Article 45.

There is also provision to report the suggestions and general recommendations to the General Assembly of the United Nations Organisation, together with comments, if any, from States Parties.

The education and knowledge of above mentioned all reports, Nepal laws, the rights of the child stipulated in CRC and related provision of other related international human rights instruments also necessitate. In this perspective, it was essential to arrange education complying with the words of the provision of above mentioned Article 42 of CRC, but it also has not been implemented. In addition, bonded labour system has been abolished by Bonded Labour (Prohibition) Act, 2058; however it is not effective in implementation. Kamlari practice still does exist. It is clear and well proven by above mentioned explanations that the existing Kamlari practice has not been abolished and eradicated and [the laws has] not [been] implemented effectually and abolishing method and procedure has not been followed effectually.

Considering the second question, whether the order prayed by the petitioners can be issued or not? It is stated in the petition that in Tharu community of Dang, Banke, Bardia, Kailali and Kanchanpur districts of Nepal; Kamlari practice of sending girl children at the age of 7/8, as domestic labour, into home of well off by their parents, on the day of Maghe Sakranti; widely exists and under that practice there are at least 10,000 Kamlaris within above mentioned 5 districts only.

The petitioners' pray is the order should be issued to the respondent, the Government of Nepal, to establish a fund for rehabilitation domestic child labour under the 14 vicimised by Kamlari practice declaring them free as the Kamlari practice is contradictory with Articles 31, 32, 35, 7, 9 and 11 of CRC and Article 11 of the Constitution of the Kingdom of Nepal.

In this connection, in the written response submitted by the respondent Ministry of Labour and Transport Management it is stated that a time bound programme is in operation for child labourers including domestic child labourer, bonded child labourer, child labourer hired in carpet industry.

Likewise, in written response of respondent Ministry of Law, it only argued that legal provision has been made on this issue.

In the written response, submitted in the month Poush of the year 2061 (B.S.), Ministry of Woman and Children claimed that the petitioners have not pointed out which parents violated laws relating to children and every parents care and nurture according to their economic capacity.

In the context of the above mentioned disputed fact and legal issues, it is found that Bonded Labor (Prohibition) Act, 2058 has been enforced on 11th Falgun, 2058 (B.S.). Section 2 of the act regards Kamlari practice as bonded laborer and in Section 3 there is stipulation that after enforcement of the act bonded laborer shall automatically abolish. In Section 4 [of the act] prohibition of bonded laborer is clearly stated. *However, in the written response of respondent the Government of Nepal there is no words about the fund. In the time bound program, stated in the written response of Ministry of Labor and Transport Management, no provision is found for the victims of Kamlari practice. From these facts it is evident that though the act has been enforced and including the act CRC has also been enforced as Nepal law, however Kamlari practice does exist.*

It is legal and constitutional liability and duty of respondent institutions to protect the rights of the children according to the provision of Bonded Labour (Prohibition) Act, 2058 and CRC. [As] Nepal Treaty Act, 2047 and Article 126 of the Constitution of the Kingdom of Nepal is an international commitment also.

Hence, mandamus is issued in the name of respondent the Government of Nepal for effectual implementation of Bonded Labor (Prohibition) Act, 2058 as Kamlari practice has violated, enter alia, Articles 9, 14, 15, 16, 18, 19, 28, 29, 31 and 32 of CRC, signed by Nepal.

In addition, because of non availability of facility of education as the situation of Nepal is traditional, conservative, poor, illiterate and innocent, only enacting Acts and only stipulating in Acts and CRC, child labour cannot be abolished. Since the stake holder or target group of Children Act, Bonded Labour (Prohibition) Act and CRC are children, the government should facilitate from upper side and the stakeholders necessitate being cautious and conscious from lower side. Only after that, Conventions relating to the child rights, including CRC, and Children Labor (Restricting and Regulating) Act, 2056 can be implemented efficiently.

Hence, directive order is also issued in the name of respondents the Council of Ministers and Ministry of Education that it would be appropriate to include international Conventions relating to human rights; inevitable since covering every aspect of human life; especially CRC, ICCPR and ICISCR, ratified by Nepal; in the curriculum of children. The file be handed over according to the rule.

Justice Sharda Prasad Pandit

Hon'ble Justice Balram K. C.

I have articulated following separate and additional opinion in relation to issuing directive order concurring with the aforesaid opinion of colleague Hon'ble Justice:

The core pray of the petitioners is necessary order, including mandamus, be issued in the name of the Government of Nepal to make legal and administrative arrangement for protection of the child rights prohibiting Kamlari practice, existed in Tharu society, residing in Dang, Banke, Bardia, Kailali and Kanchanpur districts of Nepal; declaring domestic child laborer under Kamlari practice liberated and arranging a fund necessary to rehabilitate them.

Going through the written responses of different offices of the Government of Nepal stated as respondents, excluding Ministry of Labor and Transport Management, it is found that without giving proper attention to the issue raised by the petitioners, as in the adversary litigation, it has been demanded that the petition be dismissed. However, this petition is not a private interest litigation having incorporated self interest of the petitioners. *It is a petition being prayed to be issued necessary and appropriate order, under extraordinary jurisdiction of this court, pursuant to Article 88 (2) of the Constitution of the Kingdom of Nepal, for the advantage of the children victimized by those malpractices, abolishing Kamlari practice, exist among other malpractices wide-ranging in Nepali society, which is traditional, conservative, discriminatory based on occupation and caste/tribe, because of poverty, innocence and lack of education.* The petition is pro-bono publico, social interest litigation, submitted for the benefit of every illiterate, poor and innocent children victimized by Kamlari practice.

The Government; that is determined to implement directive principles and policies of the State provided, especially, in Articles 25 (3); 26 (8), (9) and (10) of part 4 of the Constitution gradually and to protect from violation of, particularly, right against exploitation amongst fundamental rights stipulated in part 3 relating to the petition; must help this court for protection of fundamental rights and human rights of citizens submitting written response based on fact, considering the provision of fundamental rights provided to citizens by the Constitution and different human rights instruments ratified by Nepal. *That is the main objective of widening the narrow concept of locus standi and allowing every Nepali citizen to file petition in Article 88 (2) of the Constitution.*

The Government should not submit written response with conservative and narrow outlook in the petition of social action litigation filed for pro-bono publico. No attention of the government or because of other various reasons, like lack of resources, citizens may be deprived of enjoying human rights ensured by the Constitution and human rights instruments. In this sort of petition, the executive must not hesitate to help the court, submitting true and factual written response. *In such public interest litigation petitions, it is also constitutional duty and liability of the executive to help the court, submitting written response, of accurate detail.*

The main objective of the State should be enhancing welfare provision on the foundation of just society, in entire sector of life, including social and economic. To establish and develop a healthy social life, among diverse religious communities, on the foundation of justice and morality, by eliminating economic and social inequalities; to make essential arrangement to protect right and benefit of children without allowing them to be exploited and to uplift economically and socially backward ethnic group and communities, by making other vital provisions, including especial provision on education, health and employment are the principles and policies of existing constitution to set up a welfare state. In addition, the Constitution has ensured right against exploitation as a fundamental right to every Nepali citizen not allowing any person to be subject to human trafficking, slavery, bonded labor and not to be subject to forced labor. Amongst directive principles and policies of the State [provision of] sub Articles (8) and (9) of Article 26 are more significant to the petition. *The objective of sub Article (8) of Article 26 is to prevent children from exploitation and to protect right and benefit of children, and the objective of sub Article (9) is to make especial arrangement for social security for protection and advancement of orphan children by the State. That is constitutional duty of the government.*

Nepal ratified Convention on the Rights of the Child, 1989 on 14th September 1990. Thereafter, the Convention has become as Nepal law according to the provision of Section 9 of Nepal Treaty Act, 2047.

Sub Articles (1) (2) of Article 27, sub Article (1) (8) of Article 28, sub Article (1) (1) of Article 29, Articles 32 and 36 of Convention on the Rights of the Child are significant. These Articles of CRC provide right of children to physical and mental development, to obtain education, to study free primary education compulsorily, for prohibition child exploitation. *In addition, those Articles have stipulated that the child*

have opportunity to develop personality and ensured right against economic exploitation and right not to be deprived of opportunity from study. Likewise, there are also provisions of not to employ the child below the specified age and if engaged in job the child can only be employed within specified time and duration. It is the foremost duty of the government to implement those provisions made by the Convention enacting law and policy.

The constitutional duty of the government is not only to perform action against the provision of fundamental rights of citizen, of directive principles and policies of the State and Convention of the Rights of the Child, 1989; but also to implement enacting laws including entire provision made by the Convention in relation to the child rights and directive principles of the State policy. From the written response of respondents Ministry of Labor and Transport Management and Ministry of Law, Justice and Parliamentary Affairs acknowledged that the government has run some programmes in 22 districts to abolish child labor. Likewise, it has been acknowledged that Children Act, 2048; Children Labor (Restricting and Regulating) Act, 2056 and Bonded Labor (Prohibition) Act, 2058 *have also enforced.* It is observed that few child welfare legislations have been enacted in favour of welfare of the child. Giving a glance over the provision of acts and programmes, those acts and programmes can only be considered as light at the end of a long tunnel. *Enacting law is not sufficient, especially in relation to victimized and exploited children, prohibiting some action by act and stipulating penal provision for performing the prohibited action, problem relating to children's exploitation cannot come to an end. Law is basic infrastructure, there is no argument on this and cannot be debated.* However, the law must be comprehensive and able to incorporate the entire problems and arrangements. Effectual implementation of law as well as implementation of child centric efficient economic planning is indispensable. Only from then on goal and objective of the Convention and the Constitution is fulfilled.

While talking about laws, some acts can be chosen as example, like: Social Behavior Reform Act, 2033; begging (Prohibiting) Act, 2018 and Donation Act 2030. Over more than 30 years passed from the enforcement of Social Behavior Reform Act. *The Act has been enacted for welfare of citizens with decent objective of economic condition of citizens not be spoiled and they not be over burdened by excessive debt because of excessive expenditure in marriage and Bratabandha [a religious ceremony in Hindu culture, in which males, generally at their early age and of those castes religiously accepted*

for that, are offered to hold holy thread (Janai)]. The Act has regulated the number of guests to be invited in marriage and Bratabandha as well as dowry. *Prime objective of the Act is, no doubt, to regulate excessive expenditure. However, years spent from the enforcement of the Act it is a matter of taking into judicial notice that including general citizens; policy makers, bureaucrats, holding higher public post and not only high officials of the security bodies but also judges of the country; instead of implementing Social Behavior Reform Act; join in an illegal party organized avoiding law at the Police Club; [club of] the police whose legal duty is to obey the law according of Police Act; situated in the heart of Kathmandu.* Even it is not taken into notice that Social Behavior Reform Act is there in this country. It is a matter of taking into judicial notice by this court that marriage and Bratabandha parties are being organized as if there is no Social Behavior Reform Act. Whereas, the Act be implemented effectively is the most important duty of the government. For this reason, Kamlari practice is not abolished only by enacting few laws. Likewise, begging is prohibited by the law, but it is being practiced openly and commonly; not only from door to door, but everywhere, on pavements even in front of the police. Enactment of such decorative law has not been adequate, but important thing is the implementation.

The main plea of petition is as per Kamlari practice *girl child* at the age of 7/8 are sold to well off by their parents and being employed in domestic labor. As Kamlari practice is also included within definition of 'bonded labor' in Section 2(b) of Bonded Labor (Prohibition) Act, 2058 and as in Section 3 there is stipulation that after enforcement of the Act, the person working as bonded labor shall automatically be liberated by *bonded labor*, there is no dispute that Kamlari practice been carrying out and Kamlaris are liberated only *in legal point of view*. Abolishing Kamlari practice *in legal point of view* is different than abolishing in real practice with awareness to each one.

Any practice carrying out commonly from very long time in conventional way has not abolished only by enacting law. Example of Social Behaviour Reform Act has been given above for *this line of reasoning*. Articulating that only law cannot abolish widespread practice in society, Children Labor (Restricting and Regulating) Act, 2056 can also be regarded as an example. Clear provision of not hiring for work as laborer *the child not crossed the age of 14 or not touched the age of 15* is stated in Section 3 of Children Labor (Restricting and Regulating) Act, 2056. Conversely, it is a matter of judicial notice that children below the age of 14 taken into service

extensively in different small hotels to wash dishes and to clean the hotel up; in means of transportation, like: bus, mini bus etc., as cleaner and to sell ticket; and at brick chambers / klins and generally in every home as dish washer domestic helper.

Nepali society is extra traditional society. *Lack of education, innocent, poverty, uneducation and tradition are the causes of mal practices like Kamlari practice.* Suppressing and keeping in job, to purported poor and lower castes, by purported privileged, wealthy and traditionally accepted as higher castes, is considered common. Presently partially implemented provision of fundamental rights of the Constitution and provision of the 'bill of rights' of American Constitution, provision of 'rights of the men' of French [Constitution] or provision of 'all men and women are born equal' of the Universal Declaration of Human Rights are identical. All these provisions are [the examples of] 'natural rights' of human species. Nevertheless, in the society and homes, where Kamlari practice widely spread, because of unemployment, lack of education, conservative tradition, poverty, and innocence, it is impossible to abolish such mal practices absolutely, merely enacting few laws and stipulating fundamental rights by the Constitution. It is only possible by wide ranging program, planning, conscience and wisdom like: education, employment, economic plan; including effective implementation of comprehensive laws.

According to literacy rate of 2001, published by Bureau of Statistics, in 2005, the number who cannot read and write, in Nepal, is 7654244 out of total population 19255808 of male and female above the age of 6. *Out of that figure, number of the female those cannot read and write is quite greater than the male and that is 4934007.* Among the districts, where the petitioners pointed out that Kamlari practice is widely spread, in Nepalgunj [Banke district] [the number of population] 116691 cannot read and write out of 323513 above the age of 6 and out of the figure the number of female is 69421. *Based on those figures, the question raises that when the girl children, persecuted by Kamlari practice, would be educated and when would be able to struggle for their rights.* Only the figure of Nepalgunj [Banke district] has mentioned here, but by the figure published by Bureau of Statistics, the number of educated women of other districts, affected by Kamlari practice, is approximately the same. *For prevention and abolition [the mal practice], enactment of law covering entire problem and effective implementation of the law, including economic program, is necessary, from the government side. In addition, for abolition of mal practices, like Kamlari practice, the government must think for the*

empowerment of those girls and women, persecuted by the mal practice. Only then, it befits easy for abolition of Kamlari practice.

Nepal cannot act against Convention on the Rights of the Child because after signing on the Convention by her, as the stipulation of Section 9 of Nepal Treaty Act, 2047 the Convention has enforced as Nepal law. Additionally, it is the duty of the Government of Nepal to enact law, including performing other necessary actions, in line with the Convention. Kamlari practice, though abolished legally, but not be observed abolished in reality. It is the plea of petition that under Kamlari practice, minor girl children at the age of 6/7 are hired for the job of domestic helper. No effective implementation of laws enacted to control Kamlari practice, system of domestic helper practice without law and right against exploitation of Article 20 of the Constitution are mutually exclusive with each other. It is viewed that the consumer of the minor girl children at the age of 6-8 are wealthy people of society. As it is observed that the minor girl children compelled to live under Kamlari practice have to work as domestic helper, for complete abolishment of Kamlari practice, directive order be issued that the Government of Nepal should perform following actions:

(1) Existing Children Labor (Restricting and Regulating) Act, 2056 has restricted Kamlari practice but there is no law prohibiting employing domestic helper minor below the age of 14. It is the tradition of domestic helper in which minor children are exploited through Kamlari practice. On the one hand, Children Labor (Restricting and Regulating) Act has restricted Kamlari practice, on the other; minors are employed as domestic helper extensively, though not under Kamlari practice, but because of the lack of law relating to domestic helper. Hence, restriction of child labor seems like filling water in a leaking bucket. Article 20 of the Constitution has guaranteed right against exploitation to every citizen, including children. Kamlari practice and domestic helper practice has violated citizens' right against exploitation provided by Article 20 of the Constitution. If it is not regulated enacting law to employ minors as domestic helper, as a leaking bucket cannot be filled with water however quantity of water may be poured, even after abolishing Kamlari practice legally, minors be exploited and victimized as domestic helper. Only by enacting laws for abolishing Kamlari practice, there is no end of Kamlari practice and abolition of exploitation of children.

The plea of the petitioner is also issuance of order to make appropriate legal arrangement to abolish Kamlari practice; it is necessary to enact law regulating employment of minors as domestic

helper because there is no law in relation to domestic helper so far. Hence, do enact law relating to domestic helper not only for abolition of Kamlari practice, but as the treaty commitment of the Government of Nepal is to enact necessary law for prohibition of any kind of exploitation of the child and to secure the child rights provided by the Convention.

(2) Fundamental right envisaged in the Constitution, Nepal law and various conventions relating to human rights including CRC, ICCPR and ICESCR provide a variety of rights to the child in Nepal. The children are not liberated from exploitation, only by articles, relating to rights, printed in compilation of book of the Constitution and legislation and human rights instruments. Additionally, the child exploitation does not come to end only by the workshops, relating to the children, being conducted in hotels and resort or the term papers being presented there and after concluding the workshop. The owner of the right, for whom the right is provided, the children, must have knowledge and be aware of own rights. If rights' possessors are ignorant about their right whatever plan and law may be prepared from the part of State; [the parents] be persecuted by poverty and malpractice because of economic weakness, sending the children to work, without their will, as domestic helper, including Kamlari practice. Article 20 of the Constitution recognizes forced labor as exploitation and has prohibited. The rights' possessors even do not know such significant right [right against exploitation]. Until the rights' possessors do not become conscious, mal practice, like Kamlari practice, domestic helper, extensively existing in our conservative and traditional society, cannot be abolished. The plea of petitioners is also that an order be issued for administrative arrangements. Create an environment to make aware of their fundamental rights and human rights, to empower minor children also, from the beginning, incorporating gradually in the curriculum of children and teaching them important covenant and convention relating to minors and human rights, like: Convention on the Rights of the Child, International Covenant on Civil and Political Rights and International Covenant of Economic, Social and Cultural Rights.

(3) Domestic helper, including Kamlari practice, is the outcome of lack of education, poverty, conservative tradition and unemployment. Liberating children from those mal practices, empowering them with rights, [the children] being exploited for fulfilling the intent of and on the will and interest of own parents; to empower with the rights conferred by Nepali law relating to the child rights and Convention on the Rights of the Child, it is constitutional and treaty obligation of the

government to make appropriate arrangement enacting law and implementing the law effectively. Sub Article (3) of Article 11 of our partially enforced Constitution has provision that necessary and especial arrangement can be made for protection and development of children. *It is the duty of the government not allowing exploitation of children and protecting the benefit of children, making essential policies for development of children according to sub Articles (8) and (9) of Article 26, respectively.* One of the pleas of the petitioner is also that order be issued for arrangement of essential fund for rehabilitation of the children liberated from Kamlari practice. After enforcement of Bonded Labor (Prohibition) Act, 2058 as there is legal provision of automatic abolition of Kamlari practice stipulated by Section 3, in accordance with the sub Article (8) of Article 26 of the Constitution the government should have made arrangement to rehabilitate the liberated minors, however from the written responses no more has perceived than program being conducted in 22 districts. Hence, the government should accomplish its constitutional duty and liability compliant with sub Articles (8) and (9) of Article 26 [of the Constitution] for the protection and benefit of the children freed from exploitation by Kamlari practice and other such practices as indicated by sub article (8) of the Article 26.

Accordingly, directive order have been issued in the name of the respondent, Government of Nepal, to enact law in relation to the child helper to restrict the child exploitation; to implement the law effectively; to incorporate significant conventions relating to the child rights including CRC, ICCPR and ICESCR in curriculum of the child; and to make necessary arrangement for accomplish its constitutional duty in line with sub Article (8) and (9) of the Article 26 of the Constitution preparing plan and policy for protection of benefit and social security of the child freed from exploitation, including Kamlari; because at present, law against the child exploitation is inadequate as there is no law in relation to domestic helper, though Kamlari practice is abolished from legal point of view. This file is handed over according to the rule.

I concur above decision.

Justice Balram K. C.

Done on 25th Bhadra, 2063 B.S. (10th September, 2006)

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Any action to supersede the limitation of right to information violates person's right to secrecy and causes negative impact on the law and order situation of the society.

**Supreme Court, Division Bench
Rt. Hon'ble Chief Justice Dileep Kumar Poudel
Hon'ble Justice Khil Raj Regmi**

Order

Writ No. 3275 of the year 2060

Subject: Mandamus.

Petitioner: Advocate Luma Singh Bishwokarma, permanent resident of Fulbari V.D.C Ward No.4 Dang district currently residing in ward No. 15 of Kathmandu Metropolitan

Vs.

Respondent: Rt.Hon'ble Mr.Lokendra Bahadur Chand, Prime Minister of Nepal

- **The Report of the Judicious Property Investigation Commission was not made public on the basis of section 8(a) of the Investigation Commission Act, 2026 and it could not be seen that petitioners challenged the provision of Section 8(a) was inconsistent with Article 16 of the Constitution, therefore, petitioners demand of making public of all kinds of documents and report of public importance could not be found consistence with above stated provision of law.**
- **It is seen on the written statement submitted by Government that they have taken few decisions to implement the report and it has already been sent to the Commission for Investigation of Abuse of Authority for the investigation of corruption cases. Therefore, it is not justifiable to compel the Government to make the report public that may create an obstruction in ongoing investigation.**

- **Public officials, due to their trust on Government, had provided the details of property of their family member to the government but it was not given for making public. If it is made public, it will seriously violate the economic secrecy on property of the individual as guaranteed on Art 22 of the constitution.**

Dileep Kumar Poudel, CJ: The summary of this writ petition filed under Articles 23 and 88(2) of the Constitution of the Kingdom of Nepal, 1990 and verdict thereupon is as follows.

We the petitioners have been working for the corruption control in Nepal. It is realized that due to lack of transparency and obedience in governmental activities, it led to the increase in corruption. On the recommendation of the Council of Minister, His Majesty has formed a three- member investigation commission under the chairmanship of honourable justice of supreme court Mr.Bhairab Prasad Lamsal, which was authorize to investigate, prepare inventory and verify the property of the politicians and the government officials who are serving or retired after 2047 B.S.and keep record of the property whose sources are undisclosed then submit recommendation thereof. By news published in Gorakhapatra, dated 2059/12/5, informed us that the commission has submitted its report to His Majesty on 2059/12/4 BS and His Majesty then handed over the report to prime minister Lokendra Bahadur Chand to take necessary action.

Report of the Judicious Property Investigation Commission is a document of public importance. In order to implement the report effectively, punish the offender and control the corruption, it is demanded to make the report public. So, we had filed an application to the office of the prime minister on 2059/12/13 demanding a copy of the report on the basis of our right to information as guaranteed under Art. 16 of the Constitution. But, the office without mentioning any reason declined to give in the copy of the report and the reason why it is so refused.

Article 16 of the Constitution of the Kingdom of Nepal, 1990 has guaranteed that every citizen has right to demand and receive information on any matter of public importance. Art. 19(2) (3) of the International Covenant on Civil and Political Rights (ICCPR), 1966 to which Nepal is party, has guaranteed the Right to Information.

Similarly, Nepal has committed to implement the Art. 19 of the Universal Declaration of Human Rights which also guaranteed the right to demand and receive the information. On the basis of Section 9 of Nepal Treaty Act, 1990, provision of those treaties which is ratified by the Nepal is equally applicable as law. In Purendra Aryal Vs. Election Commission's case (N.K.P. 2050, Vol. 1.P.59), Advocate Bal Krishna Neupane Vs. Prime Minister Girija Prasad Koirala's case (Writ No. 1851 date of decision 2059/8/30) the Supreme Court observed that every citizen has right to demand and receive information on any matter of public importance. On the basis of above mentioned provision and provision of Section 8(a) of Investigation Commission Act 2026, it is imperative to make public the report of Judicious Property Investigation Commission but the state did not make it public. Without a concrete reason of not making the report public, and to refuse to give us a copy of it, the state has violated the provisions of above mentioned international Covenant, precedents established by Supreme Court of Nepal related to right to information and Section 8 (a) of Investigation Commission Act, which ultimately resulted to infringe the right to demand and receive the information of public importance as guaranteed by Art. 16 of the Constitution. So, we have filed this petition in order to invoke the extra ordinary jurisdiction of Supreme Court under Article 23 and 88(2) of the Constitution.

By refusing to make public and to give us a copy of it they have violated our fundamental right to get information, therefore, it is requested to issue an order of Mandamus against the respondents compelling them to make the report of the Judicious Property Investigation Commission public and provide a copy to the petitioners.

A Single Bench issued show cause order on 2060/1/8 B.S asking the respondents to explain the facts of the case and reply within 15 days why an order as requested by petitioners ought not to be issued.

The written statement submitted by Prime Minister Mr.Lokendra Bahadur Chand on behalf of Council of Minister and on his own contended that His Majesty had constituted Judicious Property Investigation Commission on 2058/11/24 and prescribed the function, power and duties of the commission. The Commission had completed its task of preparing the inventory of property and submitted its report to His Majesty on 2059/12/4 and His Majesty then handed over the report to His Majesty's Government of Nepal for taking necessary action. The report was discussed in the cabinet meeting on 2060/1/18

and in order to implement the report a couple of decisions had been taken so as to form a task force on the chairmanship of secretary of Ministry of General Administration to recommend within 15 day the necessary action to be taken on the basis of existing legal provisions on civil service against those government employees of who had not submitted the property details and legal action to be taken against retired civil servant. Similarly it was also decided that Ministry of General Administration and Personnel Registration Office shall keep and update the record of property of civil servants according to the law. Moreover, it was also decided that Home Ministry should make public within 7 days the name of those persons who hold the political position but did not submit the property details to the Commission. A task force was constituted under the chairmanship of Chief Secretary to recommend within 15 days in a transparent way in distributing treatment allowance (medical expenses). Another task force was formed under the chairmanship of Chief Secretary to recommend the way of enforcing the provision relating to the rules of conduct as mentioned in related laws. Similarly, another task force was constituted under the chairmanship of Chief Secretary to recommend within 15 days the way of receiving the money earned outside the country through the channel of Nepal Rastra Bank in convertible currency. The report of the Commission be sent to the Commission for Investigation on Abuse of Authority (CIAA) for taking necessary action and it was also decided that CIAA should send the details of property of personnel of Judicial Service as included into the report to Judicial Council. On the basis of above decision, the Report of the Commission was already sent to the Commission for Investigation on Abuse of Authority for taking necessary action.

The Report of the Commission has incorporated the property details of the officials and their family members and others, so if it is made public or issue a copy of it, it will violate the right to property and right to privacy as guaranteed by the Constitution. It is also mentioned in the proviso of Section 8(a) of the Investigation Commission Act, 2026 that if publication of the report results negative impact on law and order situation then such report need not be made public. On the basis of proviso of section 8(a) of the Act, the report could not make public, and it did not violate any fundamental rights of the petitioners, therefore, it is requested to quash the writ petition.

After duly listing in the daily cause list, in this writ petition 9 advocates Purna Man Shakya, Rabi Narayan Khanal, Chandra Kant Gywali,

Tikaram Bhattarai, Bhimarjun Acharya, Raju Prasad Chapagain, Tika Dhoj Khadka and Luma Singh Bishwokarma, on behalf of petitioners, pleaded that the Commission constituted under Investigation Commission Act come to be formed for the issues having public importance. Judicious Property Investigation Commission is a public institution and its activities and report are also a matter of public importance. Article 16 of the Constitution has guaranteed that every citizen shall have the right to demand and receive information on any matter of public importance, therefore it is requested to issue an order of mandamus against the respondents for compelling them to make public and give a copy of the report to the petitioners. Right to information as guaranteed on Art. 16 is a superior than right to property as guaranteed on Art. 17. right to demand and receive information on any matter of public importance will get preference than the right to privacy. No question of right to privacy can be raised against the property details of officials and their family members, so, it is requested to issue an order as demanded on writ petition.

Deputy Attorney Mr. Brajesh Pyakurel, on behalf of Nepal Government pleaded that on the basis of Section 8(a) of Investigation Commission Act, 2026, all activities of the commission remain secret. Proviso of the aforesaid Section can not overrule the main provision of the Section. Right to information as guaranteed in Art. 16 is not an absolute right. It is not justifiable to interpret that right guaranteed by one Article so as to undermine the right guaranteed by another. The property detail of the family members of the public officials has also included into the report and if it is made public, it not only violates the fundamental rights guaranteed on Art. 17 and 22 of the constitution but also undermines the private life and social prestige of the officials and will have negative impact on social orders. Therefore he requested to quash the writ petition. Advocates representing petitioners and respondents submitted also the Bench Memo the court as well.

After paying due consideration to the claims of the petitioners, written statement of respondent Bench Memo submitted by both sides and pleadings made by the lawyers, this Bench has to decide on these questions:

- a. Whether or not the report of Judicious Property Investigation Commission is a document of public importance.
- b. Whether or not the report of the Judicious Property Investigation Commission can be made public.

- c. Whether or not it is appropriate to issue the mandamus as demanded by petitioners?

While considering the first question, it is mentioned in the Art. 16 of the Constitution of the Kingdom of, 1990, that every citizen shall have the right to demand and receive information on any matter of public importance. Provided that the proviso of the aforesaid Article has mentioned that 'nothing in this Article shall compel any person to provide information on any matter about which secrecy is to be maintained by law. With the observation of the above mentioned constitutional provisions, one can say that Nepali citizen shall have right to get information of public importance except those information which the law has specified to be kept secret. It has not been defined by any Act that what types of information has become a matter of public importance. However, the matter which is concerned to public and which affects directly to the public are the matter of public importance.

It is seen in the notice of Royal Palace published on Nepal gazette (part 4), dated on 24 Falgun, 2058 that the Judicious Property Investigation Commission was formed in order to investigate the property details of person holding in public officials and retired ones and their family members those who since 2047 B.S are holding public office submit report to His Majesty. The Commission, collected necessary details of officials and submitted its report for action. Since the documents which are kept in the government office are public documents and implementation of the said report is the, matter of public concern, hence it is no dispute on the matter that the report is a public document.

While, considering upon the second question, it seems that the respondents neither gave the petitioners a copy of the said report nor made it public as requested. Therefore, writ petition has been filed against them and it is requested to issue order of mandamus for making the report public and giving a copy of it to the petitioners. At first, it is relevant to mention here the Terms of Reference in accordance with which the Commission is empowered to discharge the function. It was stated in the Nepal Gazette of Falgun 24, 2058 that His Majesty, on the basis of Section 3(1) of Investigation Commission Act, 2026, has constituted a Judicious Property Investigation Commission under the chairmanship of a judge of Supreme Court. The Terms of Reference for the Commission was to collect and inquire into the property, prepare the inventory of undisclosed sources of property of office bearer and retired Prime Minister, Deputy Prime Minister, minister, state Minister, assistant

Minister along with Chief, Deputy Chief and Member of executive, legislative and judiciary and their family member. Similarly, gazetted third class officers and above than of His Majesty's Government, any officials which the commission deemed necessary to investigate, likewise the chief, Deputy chief, chairman and members of Board of Directors and officers and their family of those company, corporation, fully or partially owned by H.M.G, authority, commission, council established by His Majesty's Government under Nepal law. Moreover, the chairperson, vice chairperson and their family of District Development Committee, Mayor, Deputy Mayor and their family of Metropolitan, Sub-Metropolitan city and Municipality and those who have been appointed as political appointees and their family member.

After completing the collection and investigation into the property the commission is required to submit a Report with its opinion under Section 4(2) of Investigation Commission Act, 2026. The commission conducted its task on the basis of Terms of Reference and by using the authority of the Investigation Commission Act, 2026 and submitted its report to His Majesty on 2059/12/4 which was then handed over to H.M.G to implement it. Then a meeting of His Majesty's Government Council of Minister held on 2060/11/8 has made various decisions to that effect.

Regarding the plea of petitioners that their rights as guaranteed under Art. 16 of the Constitution were violated by not making public and not giving them a copy of the said report. It has been mentioned in Article 16 of the constitution that every citizen shall have the right to demand and receive information on any matter of public importance and proviso of the same Article mentioned that nothing in this Article shall compel any person to provide information on any matter about which secrecy is to be maintained by law. On the basis of that provision, Nepali citizen have right to demand and receive the information on any matter of public importance. However, this Article is not an absolute. Proviso of this Article has authorized any authority to keep information secret and make restriction on use of right to information on the basis of Act made by parliament. State can refuse to make public or to give a copy of any information of public importance if any Nepal law mentions such information to be kept secret. We can not say that all information as being a matter of public importance must be disseminated to general public. Judicious Property Investigation Commission was established in accordance with the section 3(1) of the Investigation Commission Act,

2026 and it has authority to use the provisions of that Act. Therefore, it is necessary to observe the provisions of the Act.

Section 8(a) of the Act mentions that all the activities of the commission remain secret. But, except those matters which may undermine the sovereignty and integrity or law and order situation of the kingdom of Nepal, or which may jeopardize the harmonious relations subsisting among the peoples of various castes, tribes or communities or which may result negative impact on the relationship with friendly countries will be published for general public. On the basis of above provision, we can say that the motive of that section is to keep activities of the Commission secret. Proviso of that section has clarified that the Report which may not undermine the sovereignty and integrity or law and order situation of the nation can be considered as public report. Even if a public report which may undermine the sovereignty or integrity or law and order situation of the nation or which may jeopardize the harmonious relations subsisting among the peoples of various castes, tribes or communities can not be made public. It is the main provision of the section is that activities of the commission remain secret, however the proviso of that section has made certain limitations on it but proviso can not restrict the whole provision of the section. It can only put some limitation but can not restrict at all. If the Act has excluded any matter of the Report to be published or made public, such Report or provisions of such report remain secret. Therefore, all documents or report of public importance are not qualified for publication for public notice. Under section 8(a) of the Investigation Commission Act, 2026 the Government has authority whether to make public or not the report of any investigation commission and it can be observed in the verdict of petitioner Girija Prasad Koirala Vs Commission for Investigation of Abuse of Authority (N.K.P 2061,P.847). This court observed that the decision of His Majesty's Government of not making public the Report of the property judicial investigation commission does not appear illegal. So, there is no reason to disagree with above stated interpretation of this court. The Report of the Judicious Property Investigation Commission was not made public on the basis of section 8(a) of the Investigation Commission Act, 2026 and it could not be seen that petitioners challenged the provision of Section 8(a) was inconsistent with Article 16 of the Constitution, therefore, petitioners demand of making public of all kinds of documents and report of public importance could not be found consistence with above stated provision of law.

Concept of open government does not mean that every decision of government should be made public. Court can not compel government to make public such documents and report which may violates the right to property and right to privacy of citizens or may undermine the law and order situation of the country or may put fetters on the investigation of corruption cases. It is seen on the written statement submitted by Government that they have taken few decisions to implement the report and it has already been sent to the Commission for Investigation of Abuse of Authority for the investigation of corruption cases. Therefore, it is not justifiable to compel the Government to make the report public that may create an obstruction in ongoing investigation.

So far as the contention made by Advocates representing the petitioners that right to information can supersede the right to privacy on matter of public importance is concerned, it is seen in the Art. 16 of the Constitution of the Kingdom of Nepal that every citizen shall have the right to demand and receive information on any matter of public importance except those which are prohibited by law. Similarly, Article, 22 of the Constitution has guaranteed the right to privacy for every person. It has written on Art. 22 that except as provided by law, the privacy of the person, house, property, document, correspondence or information of anyone is inviolable. These above stated two rights as guaranteed by the Constitution are not absolute rights. Law can put reasonable restriction on the exercise of both rights. But, it cannot be interpreted that the provision of one Article can restrict the provision of other Article. Both Articles do have their own background and importance; therefore, the harmonious interpretation is is desirous. On the basis of the above stated rule of interpretation, demarcation line between right to demand and receive information and right to privacy as guaranteed by the constitution should be drawn. Petitioner's have requested to make public the Report of Judicious Property Investigation Commission but the Terms of Reference was to collect the property details of the family members of the public officials and the Commission collected the property detail of family member as well. In this context, the property details of family members and their earnings could not be the subject matter of public interest or public importance. Public officials, due to their trust on Government, had provided the details of property of their family member to the government but it was not given for making public. If it is made public, it will seriously violate the economic secrecy on property of the individual as guaranteed on Art 22 of the constitution.

In addition to it, if it is given without any reason to investigate the property of public official and their family members then it may result negative impact on law and order situation in the country. Similarly, it may also put obstruction on investigation of the corruption cases; therefore argument of making public of such report is against the provision of Section 8(a) of the Investigation Commission Act, 2026 and supersedes the limitation of right to information. It was seen in the written statement submitted by respondent that the property details of the public officials and their family members was included into the report, and if it is made public it may violate the right to secrecy and may have negative impact on law and order situation of the country, therefore, the Report was sent to the Commission for Investigation of Abuse of Authority to take necessary action and these activities of the respondents are not contrary to the Section 8(a) of the Investigation Commission Act, 2026.

Now considering the third question, on the basis of above stated reasons and grounds, that the Report of the Judicious Property Investigation Commission is not the document which must be made public, therefore, no order as demanded by petitioners can be issued against respondents. This writ petition is hereby declared void. Copy of this order is sent through office of the Attorney General for the knowledge of the respondents and case file is handed over as per the rules.

I concur above decision.

Justice Khil Raj Regmi

Done on 27th Bhadra, 2063 B.S. (12th September, 2006).

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As the guardian of freedom of expression, our Supreme Court always respects the vox-populi-voice of the public. It hardly exercises its power just to protect its image from the sound public comment.

Supreme Court, Division Bench
Hon'ble Justice Balaram K.C.
Hon'ble Justice Ramkumar Prasad Shah

Judgment

Criminal Miscellaneous No. 91 of the Year 2060

Case: Contempt of Court.

Petitioner: Santosh Bhattarai, a resident of ward No. 6 of Kathmandu, Metropolitan city

Vs.

Respondent: Kanakmani Dixit, Publisher, The Himal Media Pvt. Ltd, located at the Provident Fund Building, Pulchowk, Lalitpur

- **It doesn't appear that the parliament has made any law concerning contempt of Court so far. What type of act constitute a contempt of court is the matter to be decided on the basis of circumstances analyzed by the court itself. The following acts should be taken as the contempt of court as per the recognized principles:**

- (1) The act of willful disobeying of the judgment or the order of the court.
- (2) The act of willful defaulting or disobedience of the promise made before a court.
- (3) The act of scandalizing a court by creating an illusive rumor and disrespect towards it by Speech, writing or any other publications.
- (4) The act of interfering in the court proceedings by speech, writing or any other means of publications.

- (5) The act of interfering in the court proceedings or to obstruct the judicial administration by speech or writing or by any other means of publications.
 - (6) The act of interfering in the free and fair administration of justice by commenting on the case sub-Judice in the court.
 - (7) The act of obstructing the parties, or the witness of the case and to the courts personnel.
 - (8) The contempt of court may constitute not only on the occurrence of the above mentioned situations but also in all other circumstances which may drag the court into dispute.
- **Constitutional Council formed under Article 117 only makes selection and recommendation of competent and proper persons for appointment to the specified constitutional bodies, therefore, in such a case the Article 88(1) can not be invoked and as not being the contempt of court by any act of print publication made by commenting and criticizing the function and proceeding of a body engaging in non-judicial and non-adjudicatory only recommendatory function.**
 - **The Constitutional Council is a multi member body having five members which performs the act of making recommendation for appointment of commissioner and members to the Commission for the Investigation of Abuse of Authority, Public Service Commission, Election Commission, and the Auditor General. Such a recommendatory function for appointment is purely an administrative function not even quasi-judicial one. There may be different roles and status of the Chief Justice specified by the Constitution. In the capacity of ex-officio member, the involvement of Chief Justice in any body, excluding court and judicial function, and such a body with the Chief Justice whatever be act the cannot be a judicial one. When the Chief Justice or a Justice sits for the discharge of judicial function and dispenses justice, and if such an act or function done at that time is scandalizing against the court with bad faith, malafide intention, ulterior motive by spreading the illusion against judiciary and the court and bringing the court and judiciary into disrespect and only such an action becomes a subject of contempt.**

Balaram K.C., J: The brief facts of this case falling within the purview of this court pursuant to Article 86(2) of the Constitution of the Kingdom of Nepal, 2047(1990) and sub-Section (1) of Section 7 of Supreme Court Act, 2048(1991) and judgment delivered thereupon is as follows:

A cartoon, having a figure of monkey portrayed with a blindfolded and covered face, of the chief of the Judiciary, the Rt. Hon'ble Chief Justice, and targeting the Constitutional Council, has been published by the cartoonist Robin Sayami, on the page of Himal News Magazine, Year 13, Issue 16 (Mangsir) edited by Rajendra Dahal, under the publisher opponent Kanakmani Dixit. The Constitution of the Kingdom of Nepal, 1990 has expressed the commitment to materialize the concept of free and fair judiciary. It is necessary to initiate the action against opponent for publishing the cartoon to create disrespect by undermining the image of court, by the media, the fourth organ of the state, by characterizing the Chief of the Judiciary as an animal to betray the people's faith towards the court, which is counterproductive in itself. The malafide intention of opponent in hurting the dignity of judiciary by publishing the cartoon can be clearly understood. They should bear the obligation for publishing the cartoon portraying Chief of the Judiciary as an animal with the malafide intention of lowering people's faith, making the issue of a disputed subject matter of recommendation made by the Constitutional Council. It is clearly the contempt of court. To compare judiciary with an animal, terming it as such and render its business useless, diminish its image in a planned conspiratorial manner by a responsible institution is clear the contempt of court. The actions proceedings of the judiciary are based always in the people's faith. It, however, undermines the commitment made towards the judiciary to publish the news by defaming the judiciary or dragging it into disputes. Portraying as an animal to the Chief of Judiciary by inviting in political debate with legislative and executive is not judicious one, the petitioner has demanded that the opponent be punished to the maximum extent as per the Article 86(2) of the Constitution of the Kingdom of Nepal, 2047(1990) and Section 7(1) of the Supreme Court Act, 2048(1991).

Register the petition in criminal miscellaneous and ask opponent why they should not to be punished and taken action on the charge of contempt of court. This order was passed by this Court on 2060\8\19 B.S. to summon the opponent directing them to appear themselves in

person before the court with the written reply within 7 days excluding the time required for journey and to put it in the cause list as per the rule.

In any newspaper and journal of the world including Nepal, cartoon picture is taken as an unrealistic and imaginative art on any contemporary subject and context, not taking it as lowering the dignity and respect of anyone else. It can not cast any adverse effect including any of contemptuous acts on public faith towards Judiciary or any influence may not lie on anyone thereof. The figure has been dignified everywhere traditionally as a cartoon photo is used as a healthy comedy and entertainment with the use of imaginative figure by the cartoonists. Since the case is not initiated by the court itself, the burden of proof to prove the blame objectively and evidently lies on petitioner, but such a claim is not contained in the petition. The claim of petitioner seems to be baseless, as the alleged cartoon is not related to the judiciary and judicial proceedings. Since the Himal Media and we, related to it, are committed to liberal democracy and rule of law, no action to give adverse effect against the image and dignity of judiciary has been made by us. The petitioner himself has acknowledged that the cartoon picture aforementioned having been fallen under the purview of Constitutional Council. As per the provision made under Article 117, the business to be performed by the Constitutional Council is purely of administrative nature. The business of Chief Justice as a member of Constitutional Council is to recommend for the appointment in the post of constitutional bodies which is related to a job purely of administrative nature only. The expression through cartoon doesn't amount to the contempt of the Judiciary because it included the views expressed through the news paper on the proceedings and matters related to the Constitutional Council. The function of Constitutional Council is taken as the constitutional body to work on behalf of the Executive. The member of the Constitutional Council is not entitled to enjoy the protection provided under Article 86(2) of the Constitution and Section 7(1) of the Supreme Court Act, 2048. Freedom of opinion and expression and press and publication rights has been taken as fundamental rights. The cartoon and the person publishing it have been guaranteed the protection by the Clause 2(a) of Article 12 and 13 of the Constitution. The law and constitutional provisions related to the contempt of court is taken only as the exception to the fundamental right. An expression through the satirical cartoon was given concerning the views expressed in the news media that the three high ranking personalities,

having a constitutional duty, did not discharge their constitutional duty properly while recommending for the appointment to the post of some constitutional officials. All the acts done by any person appointed as the judge of any court or the chief of judiciary are not entitled to get the constitutional and legal protection on the contempt of court. The jointly submitted written reply by the respondents prayed that the petition be quashed, as there was no intention of committing the alleged contempt of court.

This petition which is duly submitted after listing in the daily cause list pursuant and observing the petition, the decision is to be given on whether or not the punishment of the contempt of court is to be inflicted? The learned advocate Niranjan Acharya appearing on behalf of the defendant contended that the Prime Minister, the Speaker and the Chief Justice do not assume as their own bench. Therefore, it doesn't represent judiciary any more. The impugned cartoon is related to the Constitutional Council. The cartoon mentioned the inaction of, then, Constitutional Council and he pleaded that the contemptuous affairs has not been made due to its irrelevance to the Judiciary. Learned advocate Ratna Kumar Kharel, on behalf of opponent, too, contended that the purpose of the cartoon is to satirize the non-performance of the Constitutional Council due to the vacant seats of the leader of the Opposition Party and Chairman of the National Assembly. He further stressed that the cartoon was published to lay influence on the state affairs by dint of the non- action of the Constitutional Council. Learned advocate, Bhuwan Prasad Wagle, on behalf of the opponent, too, argued that the cartoon was published to signify the situation where two member seats of Constitutional Council were laying vacant out of the five. He further contended that no contempt of court has constituted due to the status of Chief Justice and Constitutional Council being different one. The learned advocate Ganeshraj Sharma appearing on behalf of Rajendra Dahal, the Opponent, argued a cartoon is published to make a satire. The Chief Justice cannot receive immunity while his status is, as a member of the Constitutional Council. The court should maintain self-restraint while initiating the proceedings of the contempt of court. There is an instance of maintaining restraint by not punishing the offence, while publishing the matter that the British chief justice "Lord Denning is an ass" and in response to it, Lord Denning mentioned that though it is contemptuous, we do not want to punish him. It is not a right thing that the respect of court is protected only when the punishment is inflicted upon since there is an American practice that the order in the court and freedom in the press. He further argued that punishment should

not be meted out for publishing the cartoon being not concentrated on the court.

While reaching to a conclusion, after hearing the aforementioned arguments, the petitioner's claims and have demanded the maximum punishment for committing the crime by an act characterizing, the Chief Justice, on the Judiciary as a figure of monkey with a blindfolded covered mouth on the page 5, 16th (Mangsir), Year13, Vol.16 of the Himal news media published by the opponent and analyzing the written reply of opponent, it comes to reveal that no action has been done by them so as to give adverse effect towards the dignity and respect of Judiciary. The Chief Justice, being a member of the Constitutional Council and the satirical expression was news coverings prevalent in the market concerning for the appointment of the officials in the constitutional bodies, thus lacks intention of committing the contempt.

This petition prayed for the action of contempt of court is concerning the cartoon published and while looking at the cartoon, it appears that the Prime Minister, the Chief Justice and the Speaker were characterized as a monkey.

The published cartoon was drawn in relation to action proceedings of the Constitutional Council consisting of Chief Justice. The written reply of the opponent, mentions that the satires was made against the officials accountable to select impartial and qualified person which they did not fulfill while recommending the appointment in the post of constitutional bodies.

Article 117 of then constitution had a provision of Constitutional Council. It consists of five members out of which the chief justice stands second after the Prime Minister by reason of ex-officio member. Function, duty and powers of the Constitutional Council are provided in Clause 1 of Article 117 and it recommends the official to be appointed in the post of constitutional bodies. Going through the Article 117, though the Chief Justice is the member of Constitutional Council, the function of the Constitutional Council seems to be the recommendatory job of executive nature to recommend for the appointment of the constitutional officials, rather than the judicial ones. Despite the fact that the Chief Justice is the Chief of the Judiciary and thus is a judicial personality to exercise judicial power, he doesn't exercise the judicial power under Article 117. While working under this Article in capacity of ex-officio member, the business of Chief Justice to that extent is an administrative function not a judicial one.

The Supreme Court being the Court of Record under Article 86(2) of then Constitution of the Kingdom of Nepal, 1990 and Article 102(3) of the present Interim Constitution of Nepal, 2007, and empowering it to initiate the action of contempt of court, there is a provision by which it may initiate proceedings and impose punishment in accordance with law for contempt of its own and the courts subordinate to it, or other judicial institutions. The Supreme Court, under Section 7 of the Supreme Court Act, 2048 has provided it to initiate action for its contempt but there is no separate legal arrangement to impose punishment in this relation.

A Court of Record, in Chamber's Twentieth Century Dictionary, means a court whose acts and proceedings are permanently recorded and which has the authority to fine or imprison persons for contempt. Similarly, a court of record, according to Dictionary of English Law of Earl Joilt means, a court whereof the acts and judicial proceedings are enrolled for a perpetual memory and testimony and which has power to fine and imprison for contempt of its authority.

A court of record, according to Stephen's Commentaries of the Constitution of England means, a court of record is a court whose acts and proceedings are enrolled for a perpetual memory and testimony. These records are of such high authority that their truth can not be questioned in any court though the court of record itself may amend clerical errors. A court of record has the power to fine and imprison for contempt of its authority so that any court possessing this power may be called a court of record.

In our case, according to aforementioned constitutional framework, the Supreme Court being the Court of Record, the proceedings and procedure of this court is recorded and as it is the Court of Record it is conferred power, by the Constitution and laws to impose imprisonment or fine or both the punishment to the perpetrator if any one commits a contempt of court by disobeying the proceedings of itself and of subordinate courts.

It doesn't appear that the parliament has made any law concerning contempt of Court so far. What type of act constitute a contempt of court is the matter to be decided on the basis of circumstances analyzed by the court itself. The following acts should be taken as the contempt of court as per the recognized principles:

- (1) The act of willful disobeying of the judgment or the order of the court.
- (2) The act of willful defaulting or disobedience of the promise made before a court.
- (3) The act of scandalizing a court by creating an illusive rumor and disrespect towards it by Speech, writing or any other publications.
- (4) The act of interfering in the court proceedings by speech, writing or any other means of publications.
- (5) The act of interfering in the court proceedings or to obstruct the judicial administration by speech or writing or by any other means of publications.
- (6) The act of interfering in the free and fair administration of justice by commenting on the case sub-Judice in the court.
- (7) The act of obstructing the parties, or the witness of the case and to the courts personnel.
- (8) The contempt of court may constitute not only on the occurrence of the above mentioned situations but also in all other circumstances which may drag the court into dispute.

The recognized principle as to the contempt of court is that any act done in obstructing the Judges in the dispensation of justice or to issue any kind of statement by interfering the due process of the court or by publishing any kind of write ups or pamphlet, a speech or any act of scandalizing which shows disrespect towards the judiciary, other any court or in judicial process. Such acts are related to the court and delivery of justice by the judge. The power which may be exercised to impose punishment for contempt, conferred to this court by the Article 86(2), being the court of record, shall be exercised on act of committing the contempt's which spoils the image of judiciary and court by dragging it into dispute. Provided that this excludes all other administrative or executive performances.

Being a court of record, this court, under Article 86(2) shall have power to initiate action and inflict punishment for its contempt in one hand and, maintain public trust and people's faith towards the court against willful scandalizers and let not any one to undermine the dignity of court and strike a balance for not making the right to speech and expression, printing, press and information guaranteed to every citizen by the Constitution controlled, restricted, suspended and

limited. Only then, of the constitutional right of this court to initiate the actions for contempt by being the court of record shall be materialized.

In an open and democratic society, the fundamental rights including the right to speech, freedom of publication and right to get information etc are recognized as the primordial democratic rights. If the citizens are denied such important and inalienable rights of human life it is understood to be the deprivation of human rights. Such rights are exercised through writing, speaking, transmitting by electric media, and press. Such rights can not be suspended except while the national existence is at jeopardy due to the external and internal reasons. As being the court of record the fundamental rights of the citizens should not be controlled, restricted, suspended limited and shall be exercised its power with balance without making any inconsistency with those rights while taking action for contempt.

The fundamental characteristic of democracy is an open society. There have been widespread enjoyment of rights relating to freedom of speech, publication, and press in democracy. The restrictions may not be imposed on the enjoyment of those rights to the extent that such enjoyment should not infringe on the rights of others and oppose the legal provisions. Fair and healthy criticism on the functioning of state organs is permitted in the democratic system based on open society. A court should never take any comment, discussion, publication etc. as its contempt, if it is done in a healthy, fair and truthful way on the basis of reality and without bad faith, malafide intention and ulterior motive towards the court even in the proceeding of a court except in the fact in issue of the cases which are to be concluded relying on the evidences. If a court punishes assuming contempt of court, even in the aforementioned comments based on reality the court will not only be a despotic and tyrannical institution lacking power to endure its criticism but also controls the freedom of speech and publication including, right to press and publication of a citizen and right of a citizen to be informed as well. Not only this, the judiciary and a court cannot mend also its own human errors as well.

Freedom of speech and publication and right to publication and transmission are necessary for the successful implementation and functioning of a democracy. In an open society, the expressions of opinions through different means on different aspects including politics, economics, social, constitutional; law and justice system of a country are the common phenomenon. Such expressions are also

indispensable even for the maintenance of the independence of a court. The court should not create an obstacle to enjoy such rights to the extent that it does not amount to contempt of court. Mentioning that while inflicting a punishment in the contempt of court one should be aware of not creating obstacle to the freedom of speech and publication of a citizen, an interpretation has been made in the case of *Regina v. Metropolitan Police Commissioner of England* where Lord Denning is quoted as saying that “ Let me say at once we will never use that jurisdiction as a means to uphold our own dignity that must rest on surer foundation, neither will we use it to suppress those who speak against us. we do not fear criticism nor do we resent it. For there is something far more important at stake. It is no less than the freedom of speech itself.”

Likewise, the following observation has been made by the Indian Supreme Court on the control of patience in its own contempt. In the case of *Rustom Cowage Cooper vs. Union of India*, “there is no doubt that the court like any other institution does not enjoy immunity from fair criticism. This court does not claim to be always right. Although it does not spare any effort to be right according to the best of the ability, knowledge and judgment of the judges. They do not think themselves in possession of all truth or hold that whenever other differs from them, it is so far error. No one is more conscious of his limitation and fallibility than a judge but because of his training and the assistance he gets from learned counsel, he is apt to avoid mistakes more than others”. It appears to have been interpreted further that “we are constrained to say also that while fair and temperate criticism of this court or any other court even if strong, may not be actionable, attributing improper motives, or tending to bring judges or courts into hatred and contempt or obstructing directly or indirectly with the functioning of courts is serious contempt of which notice must and will be taken. Respect is expected not only from those to whom the judgment of the court is acceptable but also from those to whom it is repugnant. Those who err in their criticism by indulging in vilification of the institution of courts, administration of justice and the instrument through which the administration acts, should take heed for they will act at their own peril. We think this will be enough caution to persons embarking on the path of criticism. With these words, we order the papers to be filed”.

A court should be rigid as well as serious also if there is a condition of constituting of contempt of court by deliberately disrespecting and alleging the court falsely and without any ground, people may cast the

doubt against the impartial proceeding to be performed by the court if false allegation against the court is not penalized and if false allegation and its publicity against the court continues. The very act of lowering the faith or not retaining the peoples faith on the court by alleging falsely, illusively and wrongly to the fair and impartial judicial functions to be discharged or a function having discharged from the court is scandalization of judiciary or courts. Such an act is considered as a serious type of contempt of court. But what is worth considering here is that nobody may attain any immunity and freedom to scandalize the court by doing such an act which does not retain the people's faith in the whole judiciary by wrong, illusive and false allegation on the mere ground of freedom of speech and publication or right to press and publication. The inherent right of the court, by dint of Court of Record, to penalize the person for the contempt of court should be exercised as a last armory against scandalizing the court, the institution working in the confidence of people which is only one fool for the dispensation of justice. Balance should be maintained so as to enjoy rights to speech, publish, transmit and press freedom by citizens and the punishment to the guilty.

An interpretation is found made as follows, in the case of *R.v. Metropolitan Police Commissioner*, 1968 A.L.L.E.R.319 of England, Lord Denning Opines that if anybody scandalizes the court with the bad faith there is no alternative other than practicing patience by the very nature of court of not getting involved itself in any controversy and not pushing anyone in the controversy:

“All we would ask is that those who criticize us will remember that from the nature of our office we cannot reply to their criticism. We cannot enter into public controversy still less into political controversy. We must rely on our conduct itself to be its own vindication. Exposed as we are to the winds of criticism nothing which is said by this person or that nothing is written by this person or that will deter us from doing what we believe is right nor I would add from saying what the occasion requires provided that it is pertinent to the matter in hand. Silence is not an option when things are ill done.

A free, fair and competent judiciary and judicial administration is the very pillar of the rule of law. Similarly, a healthy comment to the extent that it does not scandalize the judiciary and create disrespect towards it is acceptable in the democratic system based on open society. It is provided in the Article 84 and Article 100 of the Constitution of the Kingdom of Nepal, 2047 (1990) and Interim Constitution of Nepal, 2063(2007) that the judicial power shall be exercised by court and

judicial institutions in accordance with the constitution and law as well as the recognized principles of justice, or the court are entrusted with the judicial power of this country as the Interim Constitution provides for. In other words, Nepalese people through court exercise their right relating to justice.

Judges and courts are recognized as a trustee of rights relating to the justice of the people and of other persons. It is natural to people and society to expect the speedy, cheap and fair justice from the courts and judges being the trustee of right to justice of people and it is the constitutional duty of judges and courts to deliver justice on the basis of procedure established by law, equality, justice, good conscience and recognized principles of justice. A strict measure should be taken by this court, as the Court of Record, by exercising inherent power vested, to stop the contemptuous acts and to uphold the dignity, independence, competency and fair court if anybody tends to scandalize the court by crossing the border and extent of healthy comment, with bad faith, malafide intention and ulterior motive bringing the courts and a judge into disbelief on the judicial function to be carried by the court and judges as being trustee of judicial right of people. An interpretation is seen to have made in the case of the editor and publisher of the Times of India and in the case of Hiralal Dixit and two others 1954 SCJ 846(1955), SCR 677 by the Supreme Court of India as "if an impression is created in the minds of the public that the judges in the highest court in the land act on extraneous considerations in deciding cases, the confidence of the whole country in the administration of justice is found to be undermined and no greater mischief than that can possibly be imagined". It is true that what would be the grave contempt more than this against Judiciary? If anyone scandalizes the court by bringing the judicial administration and function of the justice delivery into disrespect by transmitting the illusive, false and wrong fact in the name of exercising the right to publication, transmission and press by anyone or in the name of exercising the freedom of speech and publication. An appropriate step should be taken by exercising inherent power as the Court of Record for the sake of greater good of society by this court in such a condition. But such a condition is not traced in the petition in question.

While looking at the aforementioned cartoon on page five of Himal magazine pointing out the Constitutional Council, it is targeted the Prime Minister, the Chief Justice and the Speaker portraying their ears, mouth and tail and indicating the condition with the torn pages of

the constitution, scattering on the floor. The respondents have confessed the fact that the aforementioned figure of cartoon was published by them. From the written reply, it appears that cartoon was focused on the function that was not discharged well by three persons responsible to select the impartial and competent candidates while recommending for the appointment to the post of constitutional officials. It asserts that the cartoon published at that time was a matter relating to the Constitutional Council. There is a provision of Constitutional Council under Article 117 of the Constitution of Kingdom of Nepal, 1990, to make recommendation for the appointment of the Chief and Members of the constitutional bodies and in this council, the Prime Minister is the president, the Chief Justice the member and the Speaker of the House of Representatives the member including other two members who are the President of National Assembly and Leader of Opposition Party in the House of Representative and it asserts that the cartoon photo published at that time was concerned with the content relating to the Constitutional Council while seats of two members were lying vacant.

The Constitutional Council is a constitutional body established by the constitution to make recommendation for appointment of the chief and other member to the constitutional bodies. It is purely a recommendatory body of executive nature for the appointment provisioned under the constitution. Only on the basis of the involvement of the Chief of Judiciary or other judges in such a body does not change its nature and the function to be done by such a body can not be of judicial nature. Regarding the fact that such act to be done by such body is not a judicial one, the interpretation of Indian Supreme Court in the case of National Institution of Mental Health and Neuro Science vs. K.K. Roman is worth quoting here. In this it was held that the Selection Committee takes interview of the candidates, makes assessment of their relative merits and recommend a panel of names for appointment. The function of the committee is neither judicial nor adjudicatory. It is purely administrative.

There is no rule or regulation, which requires the selection committee to record reasons. If the absence of any such legal requirement the selection made without recording reasons can not be found fault with. As in stated case, in our case, the function of Constitutional Council is neither judicial nor adjudicatory one as the Constitutional Council formed under Article 117 only makes selection and recommendation of competent and proper persons for appointment to the specified

constitutional bodies, therefore, in such a case the Article 88(1) can not be invoked and as not being the contempt of court by any act of print publication made by commenting and criticizing the function and proceeding of a body engaging in non-judicial and non-adjudicatory only recommendatory function. Perhaps there will be no such serious miscarriage of justice other than to hold the contempt of court for the act published criticizing and commenting the proceeding of Constitutional Council to which the Chief Justice is a member.

It has been mentioned above that the matter constituting a contempt of court should be related only with the judicial function and administration of justice. The power under Article 86(2) should be exercised only on the objectionable action against maintaining the dignity and image of the Judiciary or court in the act of justice dispensation and for not creating adverse effect on public trust before courts and Judiciary. Even in the event of exercising the power under Article 86(2), the discretionary power should be exercised taking cognizance of the subject matter of contempt, event, circumstances etc for the justice to be seen. Punishment is inflicted on the contempt of court not for personal behavior of a judge or a matter related to private life, generally, cannot be the subject for contempt under Article 86(2) of constitution. To exercise contempt jurisdiction conferred to this court by the Article 86(2), as being the Court of Record is not for the protection of a judge of misconduct or failing to discharge the duty of his office in good faith but for the protection of whole Judiciary as an institution or Judiciary as a trustee of justice. We all should understand these things. Every publication against a judge can not be a contempt of court. It is necessary to distinguish whether such a publication is concerned with the private conduct and function of a judge or the judiciary as an institution.

Spreading an unreal propaganda or any act of lowering public trust in the court is unendurable for a court. The punishment is done in contempt to protect the respect and dignity of the court. In the present dispute, a cartoon shows that the Chief Justice is sitting mouth covered, as a member of Constitutional Council. While going through the Article 117 of the Constitution, the Constitutional Council is a multi member body having five members which performs the act of making recommendation for appointment of commissioner and members to the Commission for the Investigation of Abuse of Authority, Public Service Commission, Election Commission, and the Auditor General. Such a recommendatory function for appointment is purely an administrative function not even

quasi-judicial one. There may be different roles and status of the Chief Justice specified by the Constitution. In the capacity of ex-officio member, the involvement of Chief Justice in any body, excluding court and judicial function, and such a body with the Chief Justice whatever be act the cannot be a judicial one. When the Chief Justice or a Justice sits for the discharge of judicial function and dispenses justice, and if such an act or function done at that time is scandalizing against the court with bad faith, malafide intention, ulterior motive by spreading the illusion against judiciary and the court and bringing the court and judiciary into disrespect and only such an action becomes a subject of contempt. Article 86(2) cannot be activated on other conditions except as cited above.

Under the Article 86(2), the court itself may initiate the action proceedings of contempt of court, therefore there may be a perception that alleged respondent can not get fair justice due to proceeding initiated by the court itself. Therefore, any court should not assume or confirm that contempt of court is committed by any disputed act of speech, write-ups, publication or any act. After thorough study of whole statements and understanding the issues, Article 86(2) may be activated only when the purpose of scandalization of any court to wipe out the public trust is established clearly. The public trust in the court shall be diminished and wiped out if the cartoon published against a judge is considered to be the contempt of court. Therefore, the court should always be vigilant and patient, on the one hand, because there is a pervasive conception that a court punishes any one by exercising the power to penalize the contempt of court in spite of speaking a truth against a court. moreover, there can be the misuse of Article 86(2) if punishment is inflicted holding contempt of court for the publication of real, true, legitimate, fair comments and criticisms.

Now, therefore, as it does not appear appropriate to call contempt of Chief Justice and Supreme Court by publication of cartoon regarding business of Constitutional Council, the present petition in question with the plea of contempt of court is hereby quashed. Let the file be handed over to the record section removing it from the regular proceedings.

I concur above decision.

Justice Ram Kumar Prasad Shah

Done on 28th Mangsir, 2063 B.S. (14th December, 2006)

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Preservation of large water reserve inside city area and the historical as well as cultural importance attached to it are important both for environmental and archeological point of view. So they need protection from the government.

Supreme Court, Division Bench
Hon'ble Justice Meen Bahadur Rayamajhi
Hon'ble Justice Ram Nagina Singh

Order

Writ No. 3179 of the year 2057

Subject: Mandamus along with Certiorari.

Petitioners: Advocate Prakash Mani Sharma, resident of Kathmandu District, KMC, Ward No. 14 for Janhit Samrakshan Manch (Pro-Public) and on his own et.al.

Vs.

Respondents: Nepal Government, Ministry of Local Development, Harihar Bhawan, Lalitpur et.al.

- The parties enter the court for the justice or for dispensation of justice as per law. The court after hearing the applicant and defendant and conducting evaluation of the presented evidences decides and issues order as per the law. It is necessary to show eagerness and preparedness to comply the verdict or order of the court in the case where government or any agency of the government is involved. The compliance of court decision by governmental and non governmental agencies helps in reinforcing the rule of law along with making the concept of rule of law in reality.
- Encroachment upon Rani Pokhari and various statutes of gods and temples of cultural, religious and historical significance, by allowing to build various, shops restaurants and activities in a way making adverse impacts on the environment is still occurring as

presented by the applicant and the written reply of defendant Department of Archeology has agreed about such negative impacts. It is our common responsibility to protect such heritages of historical, religious and cultural significance like Rani Pokhari and present it to the future generations. It is indeed a matter of great worry to have adverse impacts on Rani Pokhari and on ancient monuments and cultural heritage of that area due to increasing urbanization, encroachment of public property and environmental pollution.

- Hence, a order of Mandamus is issued in the name of defendants Nepal Government, Ministry of Local Development, Ministry of Culture, Tourism and Civil Aviation, Department of Archeology and Kathmandu Metropolitan Office to stop and remove the various encroachment and pollution in course of preserving the objects of historical, religious, and cultural importance in the area of Rani Pokhari within 3 months from the date of issuance of this order.

Meen Bahadur Rayamajhi, J: The brief note of writ petition filed under Articles 23, 88(2) of the Constitution of Kingdom of Nepal 2047, is as follows:

The applicant organization is a law abiding non government organization working for rule of law public well-being and environmental improvement. The main responsibility of this Janahit Samrakshan Manch is to aware public about the various encroachments from government and non government sector, and to assist the general public to bring such issues in attention of the court and to discuss about such matter of social and public welfare. In the case run between Prakash Mani Sharma versus Cabinet Secretariat filed by applicant on behalf of Manch (Nepal Kanoon Patrika 2054, volume 6, page 312) had spoke that it is the liability of the concerned agency of Government of Nepal to protect the various temples, statutes, artifacts and other items of religious, cultural and historical significance in the area of Rani Pokhari and its surrounding lies on His Majesty's Government. And an order to that effect was also issued for adopting policies by government to preserve such issues of religious, cultural and historical importance. But the respondent have neither complied with the said order rather have worked to degrade the beauty of the area.

Rani Pokhari is situated at the heart of Kathmandu and bears a historical, religious and tourism-based importance and the responsibility of protecting and enriching this beauty comes under the scope of Public park and City Hall Development Board, under Ministry of Local Development. But the act of allowing to build and operate various business shops, restaurants and buildings for profit motive has caused the clearly blockade of the statue of King Pratap Malla, is gross-dis-obedience of law. And it is apparent that the concerned offices of the government have been oblivious towards such illegal acts. And the Public Park and City Hall Development Board formed to preserve these areas for present and future generation is rather using it for business purpose by alluring business shops, petrol pumps to run in the area. This has prevented Nepalese and foreign tourists and guests who come to view our Nepali cultural and religions heritage.

Hence, due to above mentioned acts by the respondents we and all the fellow citizens have been prevented from enjoying our fundamental rights as guaranteed by Article 12(1), cultural rights guaranteed by Article 18(1) and religious right as guaranteed by Article 19. We therefore request you to issue the writ of prohibition immediately to stop such illegal and discretionary acts of the defendant due to the business shops and restaurants in the southern part of the Rani Pokhari area as they have clearly degraded the environment and has also over shadowed the beautiful statute of King Pratap Malla, the builder of Rani Pokhari, and his sons, both riding on the elephant back.

The Court, on 2057/08/09, means an order in the name of respondents requiring them to submit a reply in written within 15 days of receiving the notice of this order except the time taken for journey about whole it all had happened. Why he orders as demanded by the petitioners should not be issued? Then submit the case in bend for hearing.

The written reply presented by Department of Archeology, Ministry of Culture, Tourism and Civil Aviation mentions that the Department fully agrees with view of the applicant, about the adverse impacts caused due to various activities occurring in Rani Pokhari and also upon its archaeological, historical, religious and cultural significance. The concerned offices of Government of Nepal have been doing various works for the protection and maintenance of the area and its various

statutes and temples from time to time and the Department shall not hesitate in punishing those responsible for adversely affecting the appearance and importance of Rani Pokhari, Hence we request you to quash the application.

The written reply of Ministry of Local Development, Nepal Government mentions that the Ministry is well informed and alert that the protection and maintenance of ancient statutes of archeological and historical significance in Rani Pokhari area lies on Government of Nepal. Any adverse decision has not been made by this Ministry as mentioned by the applicant. As Public Park and City Hall Development Board comes under this Ministry and the Ministry is prepared to take action on any work done against rules and regulations. Hence, the applicant's demand is invalid and the application should be quashed.

The written reply of Ministry of Culture, Tourism and Civil Aviation, Government of Nepal mentions that there have not been any obstacles created by this Ministry in course of enjoyment of the fundamental rights of the applicant due to the action of this Ministry. Hence we request you to quash the application.

The written reply of Kathmandu Metropolitan Office mentions that as per the Section of 96(1) and (2), of Local Self Governance Act, 2056 the right of preservation and maintenance of various language, religion and archaeological heritage is of the Kathmandu Metropolitan Office, and this office has always worked in protection and maintenance of such various languages, religion and archaeological heritages in the metropolitan area. And the Metropolitan Office has not been involved in any construction activities along with approving of any design and drawing of constructional work in Rani Pokhari area. We request you to quash the application.

In this application which is duly submitted to the Bench after having registered in the cause list, the lawyers Mr.Prakash Mani Sharma, Rama Panta Kharel and Kavita Pandey argued that Rani Pokhari was established in Nepal Sambat 790 by Pratap Malla. This pure pond filled with sacred has waters from Ganga, Sarsawati, Yamuna, Godawari, Gandaki, Kaveri, Kaushiki has been testified by historical documents. Rani Pokhari reflects the culture and history of Malla Dynasty. Being situated in the centre of the city, it enhances the beauty and cleanliness of the city. It can also be of assistance in fire, earthquake and other natural calamities. The applicant's lawyers also

demanded punishment as per Ancient Monument Preservation Act, 2013 to various officers who allowed the encroachment of Rani Pokhari area and also prayed for issuing the orders mentioned in the paragraph No. 24 (a) of application.

The Government Attorney Ganesh Babu Aryal on behalf of defendant Nepal Government, Ministry of Local Development made a plea that the government is aware that Rani Pokhari has its archaeological and historical importance and should be protected. No obstacles have been caused to the applicants in the enjoyment of fundamental rights protected by article 18(1) and 19 of Constitution of Nepal, 2047. Rani Pokhari has not been encroached to the state of extinction as mentioned by the applicant. And an order has already been issued in 2054 for protection of Rani Pokhari as per the application by the same applicant by the very court. Hence we request you to quash the application as there has already been mandatory order by the court upon the application of the same applicant.

After hearing the pleading of the learned advocates and studying the case file it has become necessary to either issue or not an order as per the demand of the application.

Rani Pokhari, situated at the heart of the city was established by medieval King Pratap Malla, and there are various artifacts around the pond, statue of Mukh Narayan Bhagawan in north, a Shiva temple, Shwora Hate Ganesh temple, Bal Gopal temple, Swesta Devtas temple, Bhairav temple, statute of Lord Narayan, statue of Pratap Malla on an elephant, statue of his two sons and these are all magnificent visuals of Medieval Nepal culture and art work. Rani Pokhari has its own religious, historical and archaeological importance. Rani Pokhari is not only a pond but a reminder of the glorious history, art and culture of Malla Dynasty. It is also a pond of purity with its various temples and water being brought here from various holy places and rivers. It is also an open space in the centre of the city which can be of assistance during various calamities.

With the realization of protecting the religious, historical and cultural glory of Rani Pokhari and its vicinity from encroachment, the Central Regional Directorate of the Department of Housing and Town Development Department is seen to have prepared the Environment Conservation Plan" on 2053 B.S. The report in course of presenting 15 point suggestions also suggested that removal of three wheeler

tempo park station, relocation of shops and office from the area, in course of protecting the Rani Pokhari and its surroundings from pollution. The written reply of the Department of Archaeology expressed that they agreed about the negative impact to the environment occurring in the area. But the court has not been informed about, any work being done as per the Rani Pokhari Environment Conservation Plan or any other way, through the reply of the respondents. Hence the courts not think that respondents have moved forward to stop the encroachment and preserve the environment of Rani Pokhari area.

In this writ of certiorari mixed prohibition run between applicant versus Nepal Government, Cabinet Secretariat (decision no. 6391 Nepal Kanon Patrika, 2054 volume 6 page 312) regarding the suspension of ongoing construction of Police station and the removal of shops, homes and sheds in the vicinity of Rani Pokhari Area, the court had issued the mandatory order in the name of Cabinet Secretariat because Nepal has obligation to comply with the commitment as expressed in international treaties entered by government regarding preservation of cultural heritage and the government has obligation, to formulate rules and regulation on such subjects of cultural, religious and historical significance from the national level and has to monitor whether the concerned institutions are or are not doing these works as per the law. But any kind of preparedness and eagerness was not seen to tackle the problems. The parties enter the court for the justice or for dispensation of justice as per law.

The court after hearing the applicant and defendant and conducting evaluation of the presented evidences decides and issues order as per the law. It is necessary to show eagerness and preparedness to comply the verdict or order of the court in the case where government or any agency of the government is involved. The compliance of court decision by governmental and non governmental agencies helps in reinforcing the rule of law along with making the concept of rule of law in reality.

With the realization of the fact there is need for the preservation and reform in the Rani Pokhari the Nepal Government, Ministry of Housing and Physical Planning, the Central Regional Directorate of the Housing and Town Development Department had come up with 'Rani Pokhari Environmental Conservation Plan, 2053'. It is seen that there were plan and action to implement such suggestions, but no action

were taken as per the mandatory order of this court, as a result the condition of the Rani Pokhari got encroached and the environmental condition got degraded. The Kathmandu Metropolitan, after the filing of this application in this court though had started to demolish some houses and shed in the area but no concrete action is seen in this respect.

Encroachment upon Rani Pokhari and various statutes of gods and temples of cultural, religious and historical significance, by allowing to build various, shops restaurants and activities in a way making adverse impacts on the environment is still occurring as presented by the applicant and the written reply of defendant Department of Archeology has agreed about such negative impacts. It is our common responsibility to protect such heritages of historical, religious and cultural significance like Rani Pokhari and present it to the future generations. It is indeed a matter of great worry to have adverse impacts on Rani Pokhari and on ancient monuments and cultural heritage of that area due to increasing urbanization, encroachment of public property and environmental pollution.

Hence, a order of Mandamus is issued in the name of defendants Nepal Government, Ministry of Local Development, Ministry of Culture, Tourism and Civil Aviation, Department of Archeology and Kathmandu Metropolitan Office to stop and remove the various encroachment and pollution in course of preserving the objects of historical, religious, and cultural importance in the area of Rani Pokhari within 3 months from the date of issuance of this order. The respondents are informed of the decision through the Office of Attorney General and the case file be submitted as per the rule.

I concur above decision.

Justice Ram Nagina Shing

Done on 3rd Poush, 2063 B.S. (18th December, 2006)

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Reservation provision contained in the Constitution for the prescribed classes and communities of people of far and mid-western regions of the country including those of hilly areas is materialized by constituting committees as per need.

Supreme Court, Division Bench
Hon'ble Justice Balram K.C.
Hon'ble Justice Rajendra Prasad Koirala

Order

Writ No. 3209 of the year 2061

Case: Mandamus.

Petitioners: On behalf of Nepal Rastriya Dalit Society Welfare Organization, Central Working Committee, Lalitpur and on his own behalf Central President of the Organization, Uttar Tamata, et.al

Vs.

Respondents: Nepal Government, Office of the Prime Minister and Council of Ministers, Singha Durbar, Kathmandu, et.al.

- **The main duty of state is to implement adopting special economic programmes and policies and enacting special provision of law for the protection, empowerment and development of all ex-Kamayas.**
- **It seemed to form a committee for empowerment, development and rehabilitation of ex-Kamaya without any discrimination on the basis of specific caste.**
- **Even the constitution and law rendered liberation of Kamaya practice, ex-Kamayyas have not been able to enjoy the rights and freedom because they have been exploited and deprived of their rights and right to education for hundreds of years, they should be protected from the State for certain period.**
- **In keeping this matter in mind, the proviso Clause of Article 11 of then Constitution and Article 13 of present Constitution have stipulated to have special provisions for interest of all groups of ex-Kamayyas as specially**

protected categories by the State. However, even formation of committee was not found to have formulated for all Kamayas in the country. Therefore, a directive order of Mandamus was issued in the name of the respondents for necessary action as per protection by the constitution for promotion of groups and castes by formulation of the committee in other remaining parts of the country to include all groups in all districts without any discriminations against caste and Kamayas to achieve objectives of Constitution and statutory provisions including hilly districts as contended by the petitioners.

Balaram K.C., J: The summary of the facts of the present case filed in this court under Article 23 and 88(2) of the Constitution of the Kingdom of Nepal, 2047 (1990) and the decision reached thereupon is as follows:

The writ petitioners stated that though the *Kamaiya* Labour or Bandhuwa Labour (including *Haliyas*) was abolished in principle in Nepal by the Constitution of the Kingdom of Nepal, 2047 BS (1990), in practice it is still existence in our society. Therefore, respondent government declared emancipation of *Kamaiya* on 2057/4/2 BS (2000/7/2 AD) and Act on *Kamaiya* Labour Prohibition was enacted in 2058 (2001 AD) for the enjoyment of fundamental rights guaranteed by the Constitution, which ensured emancipation of *Kamaiyas* and Section 2 (b) of the Act defined the '*Kamaiya* Labour' including *Haliya* labour as well.

Although there has been a provision for the formation of committee pursuant to the Section of the Act including the function according to Section 9 of the Act for the rehabilitation and monitoring of ex-*Kamaya* in prescribed districts by the respondent government, the committee on rehabilitation formed in those five districts *Dang*, *Banke*, *Bardiya*, *Kailali* and *Kanchanpur* of *Terai* region focused only on rehabilitation of *Tharu Kamaiyas*. Such decisions made and programmes undertaken by the respondent Council of Ministers and Ministries in the course of rehabilitation of ex-*Kamaiya* seemed injustice, because the *Haliyas* are still compelled to undergo hellish life of bonded labour. There is no beginning for rehabilitation of ex-*Haliya* due to the lack of formulation of Committee for Rehabilitation and Monitoring of ex-*Kamaiya* at district level. There are still not any actions for the emancipation and rehabilitation for hundreds of *Haliya* homes and

families of other hilly districts such as *Darchula*, *Baitadi*, *Dadeldhura*, *Doti*, *Achham*, *Bajhang* and *Bajura* of far western.

The writ petitioners further stated that in spite of having such condition of the *Haliya* included in the *Kamaiya* Labour in Section 2 of *Kamaya* Labour (Prohibition) Act, 2058 and the ex-*Haliya* were also included in the same committees formulated in below mentioned districts, ex-*Haliyas* have been isolated from rehabilitation programmes by the committee formulated under the five districts *Dang*, *Banke*, *Bardiya*, *Kailali* and *Kanchanpur*. Even in those districts ex-*Haliyas* are being not able to get minimum food, shelter, clothes, health, education and security and have been treated as they are not ex-*Kamaya*, whereas the *Tharu* (Chaudhary) ex-*Kamayas* families have been getting help and coordination from the rehabilitation program conducted by respondents such as 10 Kattha land per ex-*Kamaya* (*Tharu*) family, wood for shelter from respondent Ministry of Forest and Soil Conservation, tube well tap from respondent Ministry of Local Development and other necessities from respondent other Ministries.

There are clear provisions for rehabilitation and monitoring in Section 8 and 9 of the Act after forming the District Level Committee for rehabilitation and monitoring of ex-*Kamaya* to rehabilitate the *Kamayas* defined by the Act and it is mentioned in Preamble of the Act that the Act was came into force for rehabilitation and promotion of social justice of ex-*Kamaya*. But the committee formed only in 5 districts and nothing has been done concerning to the *Haliya* defined by the Act except to the ex-*Kamaya* (*Tharu Kamaya*) within those districts. There are large numbers of *Haliya* in other seven districts of far western region.

Furthermore, the respondent Council of Ministers and Ministries also could not conduct any actions and processes for the sake of freedom and rehabilitation of *Haliya* pursuant to Act. Due to the discriminatory, illegal, unjust and irresponsible functions and processes of the respondent government and Ministries such as not forming the committee for rehabilitation and monitoring of ex-*Kamaya Haliya* pursuant to Act and not doing anything in relation to *Haliya* in government offices located at respondent districts, the right to life of *Haliyas* have been blunt though the Constitution of the Kingdom of Nepal, 2047 guaranteed the fundamental human rights to every citizen. Thus, the irresponsible, unconstitutional, illegal and discriminatory actions and processes of the respondents proved against human right treaties, conventions and protocols ratified by Nepal Government. Hence, such discriminatory, irresponsible and unjust actions and processes of the respondents had violated the legal rights guaranteed by the Section 2, 8,

9, 10, 11, 12, 13 and 14 of the ex-*Kamaiya* Labour (Prohibition) Act, 2058 BS as well as fundamental human rights guaranteed by the Preamble and Article 11, 12, 17, 18 and 20 of the Constitution of the Kingdom of Nepal, 2047 (1990AD). Therefore, the petitioners requested for the issuance of an appropriate order, whatsoever, including the writ of Mandamus pursuant to Articles 23 and 88(2) of the 1990 Constitution and to take action as per the provision and spirit of the *Kamaiya* Labour (Prohibition) Act, 2058 to conduct the programmes for rehabilitation of ex-*Kamaya* and to rehabilitate equally to all ex-*Kamaya* including *Haliya* as defined by the Act, to conduct the work of rehabilitation without discriminating from the committee for rehabilitation and monitoring of ex-*Kamaiya*, which is to formulate, formulated and to be formulated pursuant to the law and constitution in the rest seven districts of far western region. In the state of deprived situation of the enjoyment of the fundamental human rights of *Haliyas*, where 2176 *Haliya* homes and families as well as 150771 *Haliya* population have been seriously suffered, the writ petitioners requested to the hearing for the issuance of an order with priority without making delay so that any further trouble, distress and unjust should not be undergone by them.

Hearing the writ petition the apex court asked to give priority for the hearing since the petition has been related to the class of *Haliya* among the Nepali citizens which need to decide immediately, send information to respondent Ministry of Land and Soil Conservation, Singha Durbar to submit their written reply within fifteen days excluding the time consumed for journey through the Office of Attorney General and give it reference as to why an order, as prayed for by the petitioners, need not be issued, and also send information to respondent Committee for Rehabilitation and Monitoring of ex-*Kamaya* of *Banke, Bardiya, Kailali, Kanchanpur* through concerned District Court to present themselves or their representatives with the written reply within the fifteen days excluding the time consumed for journey and also directed them to present the case file as per the rules for further hearing upon the receipt of the written reply or after the expiry of the due date.

A respondent, the Ministry of Home Affairs, in its written reply, has stated that the government has enacted the *Kamaya* Labour (Prohibition) Act, 2058 in order to set the proper management for rehabilitation of ex-*Kamaya* and to prohibit the *Kamaya* Labour. The program of rehabilitation has been in place as per the Act. The present writ petition is based on the hypothetical matter that has not been able to indicate the infringement of their fundamental rights or infringement of remediless legal rights by the Ministry and its subordinate offices. Therefore, the Ministry of Home Affairs requested

the Apex Court for the rejection of writ petition as the petition does not have any constitutional and legal basis.

Demanding for the rejection of the writ petition, the Office of Prime Minister and Council of Ministers contended that writ petitioners, making respondent to this office, have not clearly mentioned as to what type of their rights are infringed by the action of this office. Therefore, let it be dismissed.

Similarly, another respondent Nepal National *Dalit* Society Welfare Central Working Committee, Lalitpur, in its written reply, has stated that the writ petitioners were not able to mention that what type of their rights are infringed by the actions of the committee. The order cannot be issued in the name of this committee simply based on the petitioners have indicated as opponent in writ petition. Therefore, the writ petition deserved to be rejected as the contents of the writ petitions are based on hypothesis.

The Ministry of Local Development, in its written reply, stated that the Ministry has completed its duty as per the decisions made by the Nepal Government at various dates. The respondent contended for not issuance of any order since development of new habitation by conducting the program of infrastructure development for rural community and project for poverty alleviation in the western Terai has been in place. Further the Ministry managed to set up the tap for drinking water, shallow tube well for building a toilet and irrigation purpose which has been stated in writ petition too. Therefore, it seemed that there was no need of any order to be issued in the name of the Ministry. Hence, the Ministry contended the writ petition to be rejected.

The Ministry of Land and Soil Conservation, a respondent argued that throughout the writ petition the petitioners have not been able to point out what types of their fundamental and legal rights infringed by the action and decision made by the Ministry. Therefore, without any clear reason filed this writ petition before the Court making this Ministry respondent is deserves to be rejected and therefore be dismissed.

The National Planning Commission, a respondent, in its affidavit submitted before this Court, has stated that the writ petition seemed to be filed haphazardly making to this Commission a respondent and without stating what kinds of their rights are infringed by the action of the Commission. Hence, the writ petition is deserves to be rejected.

The Ministry of Education and Sports, in its affidavit submitted before this Court, has stated that the *Kamaya* Labour (Prohibition) Act, 2058 was introduced to make necessary provisions for the enhancement of quality of life of ex-*Kamaya* and to rehabilitate them by prohibiting the *Kamaya* Labour with a view to social justice. The Act had introduced the provisions for not repaying the *Kamaya* debts taken by *Kamaya* Labourer after enforcement of Act along with the provision of the Committee for Rehabilitation and Monitoring of ex-*Kamaya* constituted at district level for the rehabilitation of the *Kamayas*.

Pursuant to sub-Article (10) of Article 26 of the Constitution of the Kingdom of Nepal, 2047 BS there has been a provision that State shall pursue a policy which will help promote the interest of economically and socially backward groups and communities by making special provisions with regard to their education, health and employment and the government has been working in those field as stated in writ petition to the extend with its limited resources permit. The government has been carrying out its functions pursuant to Section 16 of the Education Act, 2028 which prescribed that education at primary level of public school will be "free education" and the students enrolled in such school will get books for free and thousands of children have been receiving such benefits. Some of the issues raised in the writ petition cannot be sorted out by the Ministry alone; they are the matter of fulfilling to the extent of means and resources of the government ability. Therefore, writ petition is deserves to be rejected, and be dismissed.

The Ministry of Physical Planning and Construction, in its written reply, prayed for the rejection of writ petition and argued that the writ petition of writ petitioners submitted making respondent to this ministry is worthless because the petitioner was not able to point out the actions of the respondent Ministry were against right of petitioners. The writ petitioners were not seemed that the government's enactment of *Kamaya* Labour (Prohibition) Act, 2058 was against the prohibition of *Kamaya* Labour and against necessary arrangements to rehabilitate and to promote lifestyles of ex-*Kamayas* in perspective of social justice. After the enactment of the Act, though contention of the petitioners argued that the *Haliyas* were not included in rehabilitation process and only some rehabilitation actions for the ex-*Kamayas*, it cannot be justified by law in the case that Section 3 of *Kamaya* Labour (Prohibition) Act, 2058, the prevailing laws, defined very clearly the *Kamaya* as *Bhaiswar*, *Gaiwar*, *Bardikar*, *Chekwar*, *Haruwa*, *Charuwa*, *Hali*, *Gothalo*, *Kamlariya* or other such categories of persons who do *Kamaya* labour. The contention of the writ petitioners which pleaded

that there were discriminations in the ex-*Kamaya* rehabilitation programmes and only were focused on ex-*Kamaya* of *Tharu* community is without any basis and not founded on any factual base. The questions cannot be raised on the questions of deprivation of any kind of service and facilities provided by the government for those who have got free to improve their quality of life pursuant to law. The writ petitioners have not been able to point out what actions of the Ministry were discriminatory against the ex-*Kamaya* and bias without including any community who liberated pursuant to *Kamaya* Labour (Prohibition) Act, 2058 BS. Therefore, the writ petition of petitioners was worthless and baseless because there was no deprivation of such services, facilities and rehabilitation for ex-*Kamaya* and *Haliya* as well. The Ministry did not carry out any actions which suffer and shock the petitioners under the Constitution of the Kingdom of Nepal, 2047 BS and *Kamaya* Labour (Prohibition) Act, 2058 BS.

The Ministry of Land Reform and Management, in its written reply, contended that the government's declaration to abolish *Kamaya* practice was because of the life of *Kamayas* with being socially oppressed and without being able to use health, education and other income generated programmes, their life was compelled to spend generation to generation including all the family members to the house of landowner or under their control because of not being able to repay the loan they had taken. Therefore, they are compelled to spend their whole life as *Kamaya* Labour in landowners' house due to poverty reason. Since there were acute problems in those five districts such as *Dang*, *Banke*, *Bardiya*, *Kailali* and *Kanchanpur*, the program was conducted in the first phase with core objective of solving problems. The government would not conduct programmes especially focusing on *Haliya* practice and problem of particular areas, since it has long term objective to realize social justice by conducting programmes to help the *Kamayas* and *Haliyas* who were from other districts and those other persons who have not been covered by the *Kamaya* Labour (Prohibition) Act, 2058 BS and oppressed caste groups of same nature which was not included in the *Kamaya* Labour (Prohibition) Act, 2058 BS. The *Kamaya* Labour (Prohibition) Act, 2058 BS aims at prohibiting all kinds of oppressive labour. It accepted routinely free from oppressive labour. The petitioners could not argue that the program conducted by the government was against the Universal Declaration of Human Rights and Article 11 of the Constitution of the Kingdom of Nepal, 1990 since the government has been conducting programmes giving priority to more affected regions and was not being able to conduct programmes in all regions at once for promotion of socio-economic matter of such classes. Therefore, the Ministry prayed for rejection of the writ petition as there was no condition for the issuance of

an order of Mandamus as contended by petitioners since the government aimed at conducting income generating programmes to other oppressive groups as soon as completion of programmes in five targeted districts.

The Committee for Rehabilitation and Monitoring showed its disagreement in its written reply, and contended that as stated by the petitioner, the Hali (who plough in other's land) has included in the definition in the *Kamaya* Labour (Prohibition) Act 2058 and Rehabilitation and Monitoring Committee will be there at district level to rehabilitate the ex-*Kamaya*. Though statute stipulated functions, duties and rights of the committee, the committee works in the districts prescribed by the government. Further, government could direct the committee for the rehabilitation of ex-*Kamayas* and there is a provision in the statute about the directives to be followed by the Committee.

Subsequent to declaration of emancipation of *Kamayas* on 2055/4/2, the government constituted a Committee for Rehabilitation and Monitoring of ex-*Kamayas* in *Banke* district. The government directed to update the data of *Kamayas* collected in 2052 including for the rehabilitation, rescue and relief to such ex-*Kamayas*. In the meantime, the government also directed to provide maximum 5 Kattha land to the homeless and landless *Kamayas*. There was a need of conducting program for the development of livelihood of *Kamayas* in *Banke* district from the year 2052 BS. And *Tharu* (Chaudhary) communities have been included in the list of *Kamayas* since *Tharu* was there in process of listing in the course of data collection. The government will update the data of *Kamayas* collected in the year 2056 BS. Since there was a direction to rehabilitate the said ex-*Kamayas*, the *Kamayas* from *Tharu* (Chaudhary) community was enlisted automatically in the list of *Kamayas* by the District Committee for Rehabilitation and Monitoring in the course of updating the list from the Office of Land Reform in the year 2052 BS. Further they were rehabilitated as per the direction of the government. In the course of rehabilitation, only maximum 5 Kattha land was provided as per the prescribed policy and was not provided 10 Kathha as contended by the respondent. The District Rehabilitation and Monitoring Committee contended that it rehabilitated the ex-*Kamayas* as per the policy and direction of the government, and therefore, requested for the dismissal of writ petition because the petitioners submitted unreal facts concealing the truth giving bad connotation that there was discrimination against them. There is no reason to issue an order of Mandamus as contended by the petitioners. Therefore, the writ petition is deserves to be rejected, hence be dismissed.

The Committee for ex-*Kamaya* Rehabilitation and Monitoring, *Bardiya*, a respondent, in its affidavit submitted before this Court, has stated that being the subject of public debate in the House of Representatives, the government made a decision on 2057/4/2 to make free *Kamaya* who were staying as *Kamayas* in the house of landlords in *Banke*, *Bardiya*, *Kailali*, *Kanchanpur* and *Dang* Districts. In the same context, by the enactment of *Kamaya* Labour (Prohibition) Act 2058, the definition of *Kamaya* Labour, emancipation of *Kamayas*, and legal arrangements for the rehabilitation of ex-*Kamayas* have been made.

The government formed a High Level Central Committee to identify the ex-*Kamaya* from *Kamaya* Labour and to rehabilitate them as per the Act. In addition to other functions, duties and rights, the Act stipulated provision to the committee to determine the method and process at district level to distribute land for ex-*Kamaya* for their living, to deliver necessary directives to the District Coordination and Monitoring Committee. The District Monitoring Committee has to follow the directive of higher authorities in keeping mind the provisions of the Act.

In regard to contention of the petitioners respondent ministries, who are respondent in this case, would analyze and criticize in detail by which all the facts will be cleared. The District Level Committee has been working in the area of ex-*Kamaya* as per the Act, Rule, Policy and Directions. Therefore, nothing was done against it. Thus respondent argued that praying for the issuance of an order, whatsoever including Mandamus should not be issued as contended by the petitioners because there was no infringement of constitutional and legal rights of the petitioners. All actions were carried out as per the letter of the Ministry pursuant to government policy and provision of the Act, and further in the case of ex-*Kamaya* pursuant to *Kamaya* Labour (Prohibition) Act, 2058. The Committee demanded the writ petition is deserves to be rejected, and therefore, petition be declared dismissed.

The Committee for ex-*Kamaya* Rehabilitation and Monitoring, *Kailali*, a respondent, in its affidavit submitted before the Court, has stated that in cooperation and coordination with Lutharan World Service, Nepal and National *Dalit* Social Welfare Organization, *Kailali* Working Committee have been conducting programmes to abolish Haliya customs and for the rehabilitation of ex-*Kamayas* in backward far western districts such as *Darchula*, *Baitadi*, *Dadeldhura*, *Kanchapur*, *Kailali*, *Doti*, *Achham*, *Bajhang* and *Bajura* and in mid-western *Banke*

and *Bardiya* for *Dalits*. The committee, in regard to the collection of data, contended that it was not true allegation that there was discriminatory actions against *Haliyas* in that case the government neither conducted any program in *Darchula, Baitadi, Dadeldhura, Doti, Achham, Bajhang and Bajura* nor any activities were carried out by land registration committee and ex-*Kamaya* rehabilitation in such districts.

Then the Minister of Land Reform and Management through the public important speech in the Parliament had declared emancipation of all *Kamayas* in the Kingdom of Nepal on same day, the decision for the emancipation of *Kamaya* was taken by the government, on 2 Shrawan 2057 BS. Taking into account the declaration, the government enacted the *Kamaya Labour (Prohibition) Act, 2058*. The allegation of not being treated to *Haliyas* as per the Labour Act, 2048 who come under the definition of labour is not a true fact and hence baseless allegation. The ex-*Kamaya* Rehabilitation and Land Registration Committee of this district, without any discrimination among *Haliyas*, has been distributing lands to any caste of *Haliyas* and *Kamayas* with identity cards. There are legal arrangements for the implementation of decision of government for the liberation of *Kamayas* on 2 Shrawan, 2057 BS to guarantee human rights as per the Universal Declaration of Human Rights, and further definition of labour in the *Kamaya Labour (Prohibition) Act, 2058 BS* and for liberation of *Kamayas* and rehabilitation of ex-*Kamayas* as well.

Pursuant to Section 8 of the Act, the ex-*Kamaya* Rehabilitation and Monitoring Committee in prescribed districts by the government for the working at district level concerning to the rehabilitation of ex-*Kamaya* and in the context of provision of the Section 9 of the Act for the functions, duties and rights of such committee formulated as per the Section 8 of the Act, such as the ex-*Kamaya* rehabilitation and monitoring committee, in *Kailali* District, has recommended to provide necessary loan to ex-*Kamayas* for income generating, has cooperated with various organizations for skills development or vocational training, education and housing, and has worked for rights and benefits in favour of ex-*Kamaya*. Having such conditions, the writ petitioners charged to this committee as their actions are not as per the Act. Though there are too many *Haliyas* in many districts, no efforts are being taken place for their rehabilitation. *The Kamaya Rehabilitation and Monitoring Committee has been carrying out its functions of rehabilitation based on discrimination only for those Tharu who belong to Tarai region and has understood the meaning of Kamaya as only to those Kamaya who belong to Tharu community on the name of rights,*

benefits, conservation and rehabilitation of ex-*Kamaya* against the spirit of constitution. *The respondent contended that the charges of writ petitioners are baseless.* No functions have been carried out as per the Act. The contention of the petitioners which argued that no efforts are taking place for rehabilitation of ex-*Kamayas* though there are too many *Haliyas* in different districts are baseless and does not stand on the basis of fact. During the distribution of the land and providing other facilities in the district by *Kailali ex-Kamaya Rehabilitation and Monitoring Committee, Tharu, Janajati, Dalit and Kamaya* or *Haliya* of other castes have got equal service and facilities of which *Kailali ex-Kamaya Rehabilitation and Monitoring Committee* has maintained the details including their names and addresses. Therefore, the issuance of an order as contended by writ petitioners has not to be done since the programmes have been conducting as endorsed by the government with equal treatment and not against the spirit of Labour Prohibition Act, 2058. Hence, let it be dismissed.

The order of the Court is that after getting back reply from the concerned Committees and Secretariat Council of Ministers though the Office of Attorney General, the detail distribution records including the names as per Section 2 (b) of the *Kamaya Labour (Prohibition) Act, 2058* as defined as *Bhaisawar, Gaiwar, Chekwar, Haruwa, Charuwa, Hali, Gothalo, Kamlariya* or other persons who work as *Kamaya* labour, for whom the programmes including rehabilitation was conducted by the formulated Committee for ex-*Kamaya* rehabilitation in *Dang, Banke, Bardiya, Kailali and Kanchanpur*, submit before the Court.

The Bench took perusal upon the entire case file that was being enlisted in the daily docket in compliance with the rules and presented before this bench. The present learned advocates Dharmananda Joshi, Arjun Kumar Bagale, Raju Prasad Chapagain, Tek Tamrakar, Ramesh Khanal and Bhakta Bahadur Bishokarma, Trilochan B.K. on behalf of petitioners have prayed for issuance of an order as per contention of petition and presented their oral arguments that *Haliyas* have been deprived of their right to life. Although the *Kamaya Labour (Prohibition) Act* was enacted for rehabilitation and promotion of the social justice of ex-*Kamaya*, a large number of ex-*Kamayas* have been living in seven districts of far western where region no functions have been carried out including for the formulation of committee for monitoring and rehabilitation of ex-*Kamayas* and *Haliyas as per the Act*. As a result, *Haliyas* have not been liberated and rehabilitated.

Similarly, appearing on behalf of the Office of Prime Minister and Council of Ministers Joint-Attorney General Narendra Pathak pleaded

that the order should not be issued as per petition as the programmes for rehabilitation of ex-Kamaya will continue in other districts. The government has declared an elimination of Kamaya practice due to the Kamayas have been staying in the landowners' home as Kamaya labourer from their generations as they were not able to repay the debts taken by them. The programmes have been conducted in Dang, Banke, Bardiya, Kailali and Kanchanpur in 1st stage since a number of Kamayas have been increased in those districts.

Now, in considering justice to be done after hearing the submissions presented by the learned advocates, the apex court observed that whether or not the order is issued as contended in the petition.

The main demand of the petition, the liberation of bonded (Bandha) labour, was declared on 2057/4/2 BS by then government. In the same year 2058 BS the Kamaya Labour (Prohibition) Act 2058 was promulgated. Though the Committee for Rehabilitation and Monitoring of ex-Kamaya was formulated pursuant to Section 8 and 9 of the Act, it was only for Banke, Bardiya, Kailali, Kanchanpur and Dang of far western regions and was not formulated to cover other districts which were hit from the Kamaya practices. The apex court observed that the contention of the petitioners were the formulated committee worked only focusing on Tharu Kamaya and did not address the Haliyas from among ex-Kamaya.

Going through the written reply it seemed that the committee was formed by the letter of the Ministry of Land Reform and Management dated 2063/6/6 BS to rehabilitate only for those ex-Kamayas who belong to Banke, Bardiya, Kailali and Kanchanpur, and has acted accordingly. The apex Court observed that provisions enshrined in Articles 13, 14 and the Responsibilities and Directive Principles of the State in Part IV of the present Constitution required to make special provisions for the upliftment of such groups by framing special policies and ensuring fundamental rights for the groups as raised by the petitioners. Every citizen has right against exploitation and has prohibited any kind of forced labour against his/her wish and prohibited to make slave or bonded labour to any human being. Similarly, Article 26(10) prescribed for the state to adopt policy of promoting economically and socially backward ethnicity and other communities. Article 35 (15) of the Interim Constitution of Nepal, 2063 has prescribed constitutional provision that the state shall adopt policy of arranging basic land for their residence purpose and employment to the ex-Kamaya after their numbers have been discovered.

After going through the constitutional and legal provisions, all ex-Kamayas of all districts of the Kingdom of Nepal were right holders for welfare and rehabilitation by the State without any discrimination. There is no disagreement in this regard. However, it cannot be said that action was done in accordance with the spirit of constitution and laws. The written reply seems agreed in the facts that the committee was not formulated for hilly districts Darchula, Baitadi, Dadeldhura, Doti, Achham, Bajhang and Bajura of far-western region as contended by the petitioners. The evil practice and traditional customs that discriminate Dalit ethnicity such as Kamaya practice, both legally and practically, cannot exist after the enforcement of the Constitution and the Act. The main duty of state is to implement adopting special economic programmes and policies and enacting special provision of law for the protection, empowerment and development of all ex-Kamayas. It is a constitutional duty of the state to fulfill those things.

Even after the passing of several years of the commencement of the Act, the formation of the committee was not taken place in Darchula and other seven districts of far western region. Due to non implementation of rehabilitation programmes in those seven districts the condition of ex-Haliyas and Kamayas are still same as it was before. Similarly, the petitioners were found to have contended that the committee addressed only for Tharu race and have not addressed Haliyas and Kamayas who belong to other races. Therefore, it seemed to form a committee for empowerment, development and rehabilitation of ex-Kamaya without any discrimination on the basis of specific caste in remaining districts keeping in mind as a constitutional duty of State and rehabilitation of those classes as contended by the petitioners is the provision of enshrined principles of State. Even the constitution and law rendered liberation of Kamaya practice, ex-Kamayas have not been able to enjoy the rights and freedom because they have been exploited and deprived of their rights and right to education for hundreds of years, they should be protected from the State for certain period.

In keeping this matter in mind, the proviso Clause of Article 11 of then Constitution and Article 13 of present Constitution have stipulated to have special provisions for interest of all groups of ex-Kamayas as specially protected categories by the State. However, even formation of committee was not found to have formulated for all Kamayas in the country. Therefore, a directive order of Mandamus was issued in the name of the respondents for necessary action as per protection by the constitution for promotion of groups and castes by formulation of the committee in other remaining parts of the country to include all groups

in all districts without any discriminations against caste and *Kamay*as to achieve objectives of Constitution and statutory provisions including hilly districts as contended by the petitioners. Let the case file be delivered as per the rules.

I concur above decision.

Justice Rajendra Prasad Koirala

Done on 3rd Baishakh 2064 B.S. (16th April, 2007)

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The security organ of the government and the guard of civil liberty, the police when itself encroached upon women's inviolable rights it must be taken as the heinous (crime) act against women and must be highly penalized by making appropriate law.

Supreme Court, Division Bench
Hon'ble Justice Balaram K.C.
Hon'ble Justice Tahir Ali Ansari

Judgment

Criminal Appeal No. 2906 of the Year, 2059

Case: - Rape.

Appellant/Defendant: Rakesh Kumar Singh, resident of Chhatauna
V.D.C. of Sarlahi District

Vs.

Respondant/ Plaintiff: Government of Nepal by the First Information
Report of *Himali Gole*

The judge deciding the case at the trial level:
Hon'ble District Judge: Mahendra Raj Gautam

The judges deciding the case at Appellate Level:
Hon'ble Judge Khil Raj Regmi
Hon'ble Judge Rajendra Raj Panta

- Both of the courts; the district court and the court of appeal have been unable to differentiate between the No. 10 of the Chapter on Rape and the Chapter on Partition.
- The district court itself, after final decisions has to inform the informant, implement the judgment and provide the half of the share of the perpetrator's property although it is not mentioned in law, only then the victim gets justice. The court immediately after the finality of the decision has to execute the judgment in its own initiatives and provide half share of the perpetrator's property regarding the No. 10 of the Chapter on Rape as protected by the Article 11(3) of prevailing constitution and Article 13(3) of the current Constitution.
- In case filed before the latest amendment of the No. 10 of Chapter on Rape of *National Code*, including this case, translating into reality of the right provided by the proviso to the Article 11(3) of the then Constitution, the provision of the proviso to the Article 13(3) and Article 20 of the present Constitution for the purpose of providing half of the share of the property of the offender to the victim, the following procedure shall be observed.
 - a) After receiving this judgment, the *Dolakha* District Court shall call the informant; let the informant be provided the information about the decision as well as her right to get the half share of the appellant's property.
 - b) If the appellant has transferred his property to any of his coparceners by any means after the date of this decision, let the informant be provided the half share of the appellant's property until the date of the final decision by this court regarding all of these transactions as void because they are created after the filing of the case.
 - c) Whereas the address of the appellant is *Sarlahi* district, wherever the property of the appellant is situated in *Sarlahi* district or any other district, then let the district Court of *Dolakha* be provided help by all the district courts and other offices assuming the case is being filed in these respective districts.
- There can be no debate that police can enter into the house of the citizens as per the law to protect their life and property, to arrest the criminal, or carry out

investigation. But the police personnel have no authority to enter into ordinary citizen's house and commit crime.

- **Therefore, let the copy of this decision provided to the Attorney General and Inspector General of Police to take necessary action against the appellant for serious violation of human rights of the informant's family with the misuse of his official position and uniform.**

Balaram K.C, J: The brief description of the fact and decision of the case presented before this bench having received the approval/certificate for review pursuant to Part (a) of Section 12(1) of the Administration of Justice Act, 2048 (1991) against the decision of Appellate Court Patan dated December 4, 2001 is as follows:

At 12.25 on night ending of 9th day and onset of 10th day of the month of June 1999, police started to assault father and inquiring other members of the family with allegation of supporting Maoists. They called me and brought to the room where uncle used to sleep. They ordered me to sit down and I sat silently as I was afraid. I did not know where they had brought to my father. At 3 o'clock A. S. I. Rakesh Kumar Singh whom I did not know at that time, closed the door and asking me how many Maoists come to our home and what did they do, tried to texture of my body, thigh and breast. As I tried to scream and run away he showed me the pistol and raped me without letting me speak and move. I could not stand up of the pain of rape and stayed there overnight and next morning I got up slowly and told about it to my mother. Therefore, prayed to initiate proceeding against him. It is stated in the first Information Report filed by Himali Gole dated 12th June 1999.

Deed of search and seizure dated 1999/06/12 has been enclosed in the case file.

As per the Deed of Crime Scene prepared in the presence of witnesses there were two bedsteads located in the room of the house whereon the victim was being raped as per the Information Report.

Torned bra (Black) at different site; White suspicious stains marks front and back side of the blue Petticoat and torn, scratching marks on upper and lateral part of right breast. Hymen completely tears which are red and painful. Impression sexual act as mentioned in the examination report of the victim *Himali Gole* dated May 17, 1999.

Rate Gole in his statement before the investigating officers stated that they were sleeping at the night of June 10, 1999. At night around 12 o'clock police like man came to my house and enquired every person one by one asking how many Maoists they raised and brought to everyone to his elder brother's home. They were also interrogated his elder brother's daughters (the victim) inflicting them physical assault. He added that they had confined the informant bringing into his home and raped her in pretence of interrogation preventing them from coming out of the house since other policemen were guarding the house. He knew about it on 13th June 1999, as he says.

Kaili Gole in her statement recorded before the investigation officials stated that all of the family members were sleeping at the night of June 10, 1999 when someone called from outside at 12.30. Hearing the call, she added, her husband Ram Bahadur lit the lamp and opened the door. At sight there were ten police like people who started to inquire them one by one inflicting them physical assault that how many Maoists were there and where they were. They also made inquiry to her daughter. She added that they did not know where they had kept her daughter, the informant *Himali Gole*. She further added that after sometimes another daughter informed them that she had been brought to her uncle Rate's house and she did not come the whole night. On the morning of June 10, 1999 *Himali* came to her and narrated that Rakesh Kumar Singh had raped her after other policemen fell asleep. *Sailo Gole*, *Paiti Gole* and *Ram Bahadur Gole* had also made the similar statement.

Mandi Gole in her statement before investigating officer stated that at the end of the night of June 9, 1999 police had come to her elder uncle's house and brought *Himali Gole* to her home. They banished her parents out from the house. She was with her elder sister. She added that her father told her to go out and she came out where her mother was staying. She further added that after sometimes she felt asleep and went in where her elder sister *Himali Gole* was. A. S. I. Rakesh Singh was threatening the informant saying that he would kill her if she told it to anyone. She said that she slept with her elder sister after the policeman went to sleep. She did not see what he had done to her, she further added.

Defendant Rakesh Kumar Singh in his statement before investigating authority has said that he was working in position of A. S. I. at District Police Office Dolakha. He had gone to Ram Bahadur's home with a team in his command as per the verbal order of Deputy Superintendent of Police to make inquiry since it came to be known

that Maoists had beaten Chabi Lama, resident of Gaurimudi V.D.C. They went to Ram Bahadur's house at around 12 o'clock of 9th June 1999, woke up them, sent Himali Gole to Rate's house and slept in Ram Bahadur's house. He added that he had not raped her showing pistol. He further added that he had just beaten one or two slap to the informant and Ram Bahadur.

Police head constable Govinda Khatri in his statement before investigation official said that on the 9th June 1999 they went in patrolling under the command of A. S. I. Rakesh Kumar Singh to Gairimudi V. D. C and arrived at Ram Bahadur's house around 12 o'clock. He added they woke up the members of the family and Rakesh Kumar inquired them. He added Rakesh Kumar told him and other four policemen to sleep and he went to Rate Gole's house. He further added that he did not know what happened at night and that he knew about it only after the lodging of the First Information Report.

Police personal Keshav Thapa in his statement before the investigation said that on 9th June 1999 they went in patrolling under the command of A. S. I. Rakesh Kumar Singh to Gairimudi V. D. C and arrived at Ram Bahadur's house around 12 o'clock and he (Rakesh Kumar) called the house owner. They stayed in duty on the four sides of the house, he added. Rakesh Kumar inquired Ram Bahadur, his wife and his daughter. He added that Rakesh Kumar told them including Head Constable Govinda Khatri to stand in duty at that place and he had gone to Rate Gole's house with other Police head constable and policemen. He explained that he did not know what had happened at night since he only knew about rape only after the lodging of the First Information Report.

Police personal Chet Raj Upreti in his statement said that on 9th June 1999 they went in patrolling under the command of A. S. I. Rakesh Kumar Singh to Gairimudi V. D. C and arrived at Ram Bahadur's house around 12 o'clock and Rakesh Kumar called the house owner. All of them stayed in duty to the four quarters. After making inquiry for about two hours Rakesh Kumar led them to Rate Gole's house leaving Govinda Khatri and others in Ram Bahadur's house. He further added that Rakesh Kumar positioned them in the Balcony of Rate's house while he was making inquiry. They did not know that the informant was in Rate's house. After an hour Rakesh came to them to sleep. He further explains that they did not hear human screaming and that they only knew about the incident only after the First Information Report was lodged.

Police personal Dinesh Thapa in his statement said that on 9th June 1999 they went in patrolling under the command of A. S. I. Rakesh Kumar Singh to Gairimudi V. D. C and arrived at Ram Bahadur's house around 12 o'clock. Rakesh kumar ordered them to be in duty on the four sides, called the house owner and started to inquire. He added that after about two hours leaving Govind Khatri and them at that place the other personnel along with Rakesh Kumar Singh went to Rate Gole's house and that he did not know what they had done in Rate's house since he only knew that rape had been committed only after the lodging of the First Information Report.

Police personal Amanath Khadka in his statement before the investigating authority stated that on 9th June 1999 they went in patrolling from District Police Office Dolakha under the command of A. S. I. Rakesh Kumar Singh to Gairimudi V.D.C. He added that as per the information that Maoists had taken shelter in Ram Bahadur Gole's house they went to his house at about 12 o'clock. He added Rakesh Kumar ordered them to be in duty on the four sides, called the house owner and interrogated. According to him after two hours, leaving five police personals including him and police constable Govinda Khatri at that place, the group including A. S. I. had gone to Rate Gole's house. He further added that he did not know what happened at night since they knew about the rape only after the First Information Report was lodged.

Police head Constable Jit Bahadur Chaudhari, police personnel Krishna Jung Tamanag, Sobit Thapa and Ghanashyam Ban in their separate statements said that on 9th June, 1999 they went in patrolling under the command of A. S. I. Rakesh Kumar Singh and arrived to the house of the informant around at 12:00 at night. They remain on duty in four sides; A. S. I. Rakesh Kumar Singh called the house owner and interrogated him. After making interrogation for about two hours they went to Rate Gole's house leaving Police Head Constable Govinda Khatri and others at that place. They added, the A. S. I told them to go to Balcony and stay there and he started to conduct interrogation in the ground floor. According to them, he (Rakesh) came after one to one and half an hour to the room where they were staying. They said that they did not hear human scream at that time. They left the place on June 10, 1999 after having morning meal and knew about the rape only after the First Information Report was lodged.

Nabina Lama in her statement before investigating authority said that on June 8, 1999 she had gone to her parental home. At night of 9th

June, 1999 they, including father Ram Bahadur Gole and younger sister Himali Gole were sleeping after having evening meal. Around 12 o'clock at night someone called from outside and her father opened the door. They saw, she added, some people wearing police uniform were there. After her father opened the door the policeman looked every nook and corner of the house and took out him outside the home and started interrogation. She further added that they also took her to uncle Rate Gole's house and interrogated separately in room banishing her uncle and aunt outside the home and pointing pistol to her. After interrogation they told her to sleep and that she escaped by pretending to go to toilet then went to father's house and slept. She explains that they had took younger sister Himali Gole also to uncle's house, however she knew about rape the next day on 10th June when the younger sister narrated about it to her mother.

Nar Maya Gole in her statement before investigating authority said that on 9th June, 1999 the police personnel, whose name they knew now, came and inquired to Nabina Lama bringing her to her home. After Nabina Lama went they brought the informant Himali Gole and ordered the other member of the family to go out and started inquiring Himali separately. She explains that when she went into the room after half an hour A. S. I. Rakesh Kumar Singh was staying there and they were asking Himali whether she could walk with them. Himali was weeping, she explained, and she went to sleep to balcony. After sometimes, he again came with torch light in his hand checked Himali and went. She added that she knew about the rape later and expressed her conviction that he must have raped Himali Gole.

The prosecution charged the defendant Rakesh Kumar Singh for an offense under No. 1 of Chapter on Rape of *National Code* punishable under No. 3 of the same chapter along with the claim to cause to award the victim the half portion of offender's property pursuant to No. 10 of the same chapter.

The defendant in his statement before the court contended that the informant may have lodged such a report because he had been to Ram Bahadur's home on night at 12 o'clock, interrogated the informant's parents and slapped them for one or two times. He denied that he had committed rape. He contends that he should not be punished since he had not committed any offense.

Defendant's witness Jit Bahadur Chaudhari in his testimony has said that he does not know whether the rape had been committed or not. He says that he knew about it only after the informant lodged the First

Information Report. He expresses his conviction that Rakesh may not have raped.

The prosecution's witness Rate Gole in his testimony says that the police have brought Himali Gole to his house. He went to the house where his mother lives and slept there. He did not know whether the defendant had raped the victim or not since he was not present there and he did not see it.

The prosecution's witness Mandi Gole in her testimony stated that the defendant had raped Himali Gole.

The informant Himali Gole in her testimony in the court says that at the night of 9th June, 1999 Rakesh Kumar Singh brought her to her uncle's house and battered her. He, showing pistol, threatened her to punish if she screamed and then attacked her. She added that she wept and became worried. She explains that banishing all the family members out from the room he kept her alone and raped her.

Prosecution's witness Ram Bahadur Gole in his testimony has stated that the defendant has committed rape as he heard from his wife about it.

Kaili Gole in her testimony in the court says that the defendant has raped her forth daughter Himali Gole. She added, at first he called and battered and forced her out. Afterward he brought Himali to uncle's room. She explains that the next day, weeping wearily Himali narrated the story and said that he had battered her and raped her at night.

Head Constable Govinda Bahadur Khatri in his testimony has explained that they had gone in patrolling under the command of A. S. I. Rakesh Kumar Singh to Ram Bahadur Gole's house in Gairimudi V. D. C Ward No. 1. Rakesh Kumar Singh started to interrogate one by one to the people in that house. While interrogating he brought Himali Gole to Rate Gole's house from Ram Bahadur house and said that she should not be kept before parents while interrogating and added that something had to be inquired. He further explains that he knew that Himali Gole has lodged the First Information Report only after he arrived to the District Police Office.

The prosecution's witness Priti Gole in her testimony stated that the defendant has forcefully attacked her elder sister Himali Gole as she heard it from her elder sister.

Witness Sobit Thapa in his testimony says that they stood in duty in Himali Gole's house. A.S.I. and two head constables started to interrogate. Around 2 o'clock at night A.S.I. and they went to Rate's house. They deputed Chetraj Upreti for duty and thereafter they slept. When he woke up at 4:10 at once, he explains, A.S.I. also was sleeping there and that he did not know about rape since he was asleep.

Witness Krishna Jung Tamang in his testimony says that in Ram Bahadur Gole's house, A.S.I. Rakesh Kumar Singh, Police Head Constables Jit Bahadur Chaudhari and Govinda Khatri were interrogating the people living at that house. After 2 o'clock at night six police personnel including A. S. I. Rakesh Kumar Singh and himself went to Rate Gole's house for sleeping. He further states that he felt asleep at 2:45 and awoke at 4 o'clock. All the personnel including A. S. I. were in the bed while he awoke. He knew about it only after we came to office.

Witness Dinesh Thapa in his testimony says that Rakesh Kumar Singh started to interrogate. He stated that whatever he has known he has submitted it in his written statement to the District Police office.

Ghanashyam Ban, who is the witness of the both parties, in his testimony has said that around 12 o'clock at night, they had arrived at the informant's house. The A. S. I. and head constable started to interrogate as he slept around two o'clock. He says that he got up around 4 o'clock and that he only knew about the rape after reading the statement and that he had said that the statement written in the document was not told by him.

Witness Amanath Khadka in his testimony has said that after arriving at Ram Bahadur's house A. S. I. and other personnel started to interrogate Ram Bahadur Gole. He slept at two o'clock and woke up at five o'clock and stood in duty. He says that they stayed in Rate Gole's house. He knew only after he arrived in the office that Rakesh Kumar has committed rape to the informant, he explains.

Defendant's witness Chet Raj Upreti in his testimony in the court has stated that they went to Gairamudi as per the order of Deputy Superintendent of police because Maoists would come to Ram Bahadur's house and arrive on Gairamudi at 12 o'clock on night of June 9th. Three commanders interrogated Ram Bahadur Gole and his family. They went to Rate Gole's house to sleep. He slept at 3:30 and

got up at 6 o'clock. The heard after he arrived in the office that First Information Report had been lodged about rape.

Defendant's witness Dipak Thapa in his testimony has stated that they arrived in Ram Bahadur Gole's house at around 12:15 and Rekesh Kumar interrogated Ram Bahadur Gole. Thereafter, they arranged for sleeping. Rakesh Kumar went to Rate's house with a group and that he knew about the incident only after he arrived in District Police Office on June 10th. The testimony of Keshav Thapa with similar statement has been enclosed in the case file.

Medical officer Dr. Jhalak Sharma Gautam in his testimony in the court has said that he had examined on 11th June, 1999 and dispatched the medical report on 14th June as per the finding of the examination.

The decision of Dolkha District Court dated February 21, 2000 convicted the defendant Rakesh Kumar Singh for offense under No. 1 of the Chapter on Rape of the *National Code* punishable under No. 4 of the same Chapter and awarding the half portion of his property to the victim for raping the 18 year old Informant Himali Gole threatening her and depriving her speaking and moving.

The defendant filed an appeal in the Court of Appeal challenging the decision of the District Court contending his innocence making reference to the fact of the case, evidences, legal provision and recognized principles of justice and therefore urging for his acquittal.

Appellate court passed an order to notify the Appellate Government Attorney Office of the schedule of the case as the decision of the District Court that convicted the defendant seemed to be erroneous in the evaluation of evidence whereas the owner of the house Rate Gole and Narmaya Gole who were present in the place where the defendant has been alleged to have raped the victim Himali Gole had stated in their statement during the investigation that they knew about the rape only on June 12th and 13th not at the time of occurrence, the physical examination of the victim which was made before lodging of First Information Report showed the hymen ruptured but no bloodstains had been found in victim's clothes, therefore, there was absence of direct and factual evidence against the defendant.

The Court of Appeal by its decision dated December 4, 2001 sustained the decision of the District Court dated February 20, 2001 that imposed the defendant the punishment to undergo 4 years of

imprisonment along with the award of half portion of the property of the defendant to the victim as compensation.

The defendant filed special leave petition to this court on the ground that the decision of the Court of Appeal that convicted him did not follow the established precedents and also include serious error in the interpretation of law and urged for quashing the decision and provide him acquittal.

This case has been registered in this court as per the order of this court approving the special petition for review on the ground that the conclusion of the DNA examination report says that –‘Cotton swab do not match with the allelic pattern of amplified DNA of the blood sample said to be of suspect and of the blood sample of Miss Himali Gole’ and, therefore, the conclusion of the DNA examination report does not match with the victim whereas the Court of Appeal, in its decision, held that the DNA report matched with the defendant. Thus the decision of the Court of Appeal contravening the DNA report includes serious error in the interpretation of the Section 54 of the Evidence Act’ 1975 (2031).

The defendant has been released from the prison and has been permitted to appoint an attorney.

In the present case scheduled for today after duly appearing in daily cause list and presented before this bench for delivering judgment as per the rule after scanning the evidences enclosed in the case file and perusal to contention made by the learned advocate Krishna Prasad Sapkota, Lava Kumar Mainali, Harihar Dahal who contended that there were sufficient ground to acquit their party instead the Court of Appeal had convicted him. Thus, the decision was erroneous and should be overturned and the defendant should get acquitted. Deputy Government Attorney Brajesh Pyakurel on behalf of the Government of Nepal contended that the evidences enclosed in the case file including DNA report had proved the charge and decision of the Court of Appeal should be sustained.

In this case wherein the defendant has been charged under the Section 1 of the Chapter on Rape of National Code punishable under No. 3 of the same chapter along with the claim to award the half portion of the property of the defendant to the victim pursuant to No. 10 of the same Chapter, the court needs to decide the following questions;

Whether or not the crime of rape has been proved to have been committed in the body of informant Himali Gole?

If she has been raped, whether or not the charge against the defendant A. S. I. Rakesh Kumar Singh of raping the victim Himali Gole has been proved?

If the charge against the defendant has been proved, what is the amount of punishment to be imposed upon the defendant?

This is the case wherein the defendant has been charged of raping the informant. The case under the Chapter on Rape is a case concerning to the grievous offense committed against women. Whereas the case is relating to grievous crime committed against women, this is initiated by the state being the government as a plaintiff after the investigation carried out by the police and prosecution is made on behalf of the government and also the defense of the case is made by the government up to the final stage in the final court.

Despite the fact that rape is a grievous crime committed against women, onus of proving charge (offense) shall lie on the plaintiff as per the recognized principles of justice. Our Nepal law has also placed the burden of proof on the plaintiff in such cases. In criminal cases the plaintiff, at first, must establish whether the crime has been occurred or not and secondly, if the crime has been occurred the plaintiff must prove the allegation against whom the allegation has been made by the state. Otherwise, as per the recognized principles of justice, benefit of doubt goes to the accused and the defendant or an accused is not considered as offender.

Now, scanning the documents with regard to this appeal, the defendant is police personnel holding his office. The First Information Report has been lodged alleging Rakesh Kumar Singh of raping the informant, the investigation has been carried out based on that First Information Report and the defendant Rakesh Kumar Singh has been charged for an offense under No. 1 of Chapter on Rape of *National Code* punishable under No. 3 of the same chapter along with the claim to cause to award the victim the half portion of offender's property.

In criminal cases, at first, the matter whether or not the crime has been happened or the *corpus delicti* must be proved. The first duty of the plaintiff is to prove the *corpus delicti* without any doubt. After

establishing *corpus delicti* the plaintiff must prove that the defendant against whom the charge is made has committed the offense.

Now considering this case in this regard, whereas the defendant has been charged of raping the victim, it must be looked what type of proof has been presented relating to the rape in the victim's body? The proof and ground of crime depends on the place of commission of crime, time, environment, weather and skill and efficiency of the investigator, however, generally recognized precept is that laboratory report of the examination of the defendant's body and victim's testimony is also important evidence. There can be no controversy over it. In this case, the victim herself has lodged the First Information Report alleging the appellant of raping herself.

Going through what evidences has been enclosed in this case; the physical examination of the victim has been conducted on 2056/2/12 (May 26, 1999) by the physician in *Dolakha* Health Post. The medical officer of the Dolakha Health Post has prepared the report. All the symptoms of rape are present in the victim's body as per the examination report. As per the report the bra of the victim has been torn in different sites. It is mentioned in the report that white suspicious stains mark has been found in the petticoat which is also torn. The report reads as: white suspicious stains marks front and back side of blue petticoat are torn. Likewise, it is also mentioned that scratching marks on upper and lateral part of right breast and that hymen completely torn which are painful. The medical officer who is a specialist has given the clear report of sexual act on the impression column of the report on the basis of his finding.

It has been seen from the report that, after examining the victim, the Medical Officer has preserved the victim's clothes and swab of her vaginal secreting for laboratory test and District Police Office *Dolakha* has sent the substances and clothes mentioned in the report to the Central Police Science Laboratory, *Maharajgunj* for examination on 2056/03/04 (June, 18, 1999). The report of Central Police Science Laboratory dated 22-03- 2056 (July 6, 1999) reads as; *while examining both the 93 cm long stained blue cotton (Petticoat) of Himali Gole, resident of Gairimudi V. D. C of Dolakha District of exhibit No. 1 enveloped and sealed with label and a stained yellow colored cotton underwear kept in a carbon box and labeled underwear of suspect Rakesh Kumar Singh were stained by human semen.*

From the report of the Office of the Director and Chemical Examiner Central Science Laboratory Calcutta, dated 03-12-99 it has been clear

that the substance collected from the victim/ informant and appellant on June 11, 1999 has been tested. The report of the Indian Laboratory, Calcutta has also shown that semen has been found in the *Petikot* worn by the victim. The report reads as- semen stains on exhibit I (Petikot of the victim) have originated from Mr. Rakesh Kumar Singh exhibit -4.

The report received from the laboratory test has been corroborated by the testimony of the Medical Officer Jhalak Sharma dated 2057/10/05 (January 18, 2001) who examined the victim after the occurrence. In answer no. 4 of his testimony Medical officer has stated that he had himself examined the physical health of the victim and the defendant on 2056/2/29 (June 12, 1999). He, in his testimony has stated that proof of sexual intercourse had been found in the defendant's body in the examination and that while examining the health of the victim on 2056/2/28 (June 11, 1999) white stain was found in the victim's *Petticoat*, hymen of her vagina was torn which was red and painful.

In criminal cases the prosecution, at first, must prove the *corpus delicti* without any doubt. Without happening of any crime no one can be an offender. In Rape case, it must be established and proved without any doubt that rape has been committed against the victim. Now, in this case there is no doubt that rape has been committed to the victim/informant. The prosecution has established the offense of rape without any doubt.

After it has been proved that rape has been committed against the victim/informant, considering the accusation made against the defendant of having committed rape to the victim, the appellant/defendant has denied the charge in his statement before the investigation. Likewise, the appellant has denied the charge in his statement in the court with not guilty plea and has also presented witnesses on his behalf.

The Section 25 of our Evidence Act, 2031 provides that the burden of proof of proving that the accused has committed the offence in a criminal case shall lie on the plaintiff. According to the provision of the Clause 5 and 7 to the Article 24 of the Interim Constitution of Nepal 2007, Article 14(2)(3)(g) of the International Covenant on Civil and Political Rights, 1966 and Article 10(1) and 11 of the Union International des Advocates, 1927 as well as which is signed ratified by Nepal and came into force with equal effect to Nepal Law as per the Section 9 of Nepal Treaty Act, 2047, the principles established by

this court from time to time and recognized principles of justice, the onus to prove the offense lies in the plaintiff. The accused cannot be held guilty even if he has confessed the crime before police officials during investigation unless it is substantiated by other collected evidences.

Whereas we have incorporated the principle that in criminal cases the burden of proof lies on the plaintiff and if the plaintiff fails to prove, benefit of doubt goes to the accused; in our criminal law through Clause (1) to the Article 100 of the Interim Constitution, there is no disagreement on the fact that the onus of proof lies on the plaintiff in cases prosecuted by the state being the government as plaintiff.

In that regard to test whether the decision of the Court of Appeal that has punished the appellant is right or wrong, it is necessary to scan what types of evidences are enclosed in the case file to prove the charge made against the appellant of raping the informant. Definite FIR has been lodged by the informant alleging the appellant of having raped her. Going through the First Information Report it reads as " *At 12.25 on night ending of 9th day and onset of 10th day of the month of June 1999, a group of policemen including the appellant came and started to assault my father and inquired other members of the family with the allegation of supporting Maoists. They called me and brought me to the room where uncle used to sleep. They ordered me to sit down. I was afraid. I did not know where they had brought to my father. The appellant came and closed the door in which I was kept and asked me how many Maoists come to our home and what they did, tried to texture of my body, thigh and breast. As I tried to scream and run away he showed me the pistol and raped me without letting me speak and move. I could not stand up because of the pain of rape and stayed there overnight and next morning I went to my mother told her about it.*" Stating so, she has filed the First Information Report mentioning all the facts of the occurrence. First Information Report has been lodged against a person with the responsibility of providing peace and security, with the allegation of having raped the informant showing his pistol at her.

As per the Section 18 of the Evidence Act, 2031 the persons inquired and witnesses tried during the preparation of the document in the investigation have to be tested through examination and cross-examination and only then the facts expressed by such witnesses during examination becomes trustworthy (admissible). The informant has been examined in the Dolakha District Court on 2056/5/4 (August 20, 1999). In answer No. 4 of her testimony in the District Court, she has repeated her description of the First Information Report and stated

that the appellant brought her to her uncle's house and banished her uncle and aunt out from the house. Thereafter, she added that, he assaulted her and pointing pistol at her he threatened her of inflicting punishment if she made a scream and raped her bringing her in her uncle's house. From the testimony, it has been seen that she went to her home after dawn and told the entire story to her mother and elder sister. The testimony of the victim has been corroborated by the testimony of her elder sister, mother, father, uncle, aunt and other members of the family. The informant in her testimony has mentioned that she went to her home after dawn and told the entire story to her mother and elder sister. Testimony of informant's elder sister Mandi Gole has been made on 2056/05/03(August 19, 1999). The testimony of her mother Kaili Gole has been made on 2056/05/06(August 22, 1999). It has been seen from the testimony of the informant that she went to her home after dawn and told the entire story to her mother and elder sister.

Kaili (Batuli written in the decision) Gole in answer No. 6 of her testimony in the court says that the appellant battered the father and banished him out of house for the first, thereafter he took the daughter out and brought to her uncle's house. She was waiting for her daughter overnight but she did not come. The next day she came to her weeping wearily and told that he had battered her and raped her at night. In answer No. 7 she has said that although they did not look for the wounds in the victim's body however, she fell ill for 15 days because of assault and became unable to work for the whole Month of Asar. Informant's father Ram Bahadur Gole in the answer No. 7 of his testimony mentioned that he knew about the rape over his daughter after the victim narrated story about it weeping and wearily. The Informant's father in answer No. 9 of his testimony mentions that the appellant had also assaulted him and injured him. Likewise, the testimonies of other members of the family of the informant inquired during the investigation have also proved (corroborated) that the appellant has raped the informant.

Nabina Gole who was inquired by the police and is the witness of the prosecution as well as the member of the informant's family has also been examined in the court. She, in the answer No. 4 of her testimony narrating the detail story of the occurrence has stated that at the night of the occurrence the appellant at first brought to the room where he had raped the informant and tried to rape her threatening her pointing pistol on her chest but she had been able to escape with the pretence of having stomach ache. She stated in answer No. 4 that the next day her younger sister, the informant came to her and told her that the

appellant had raped her. Therefore, it has been proved that the appellant has raped the informant.

The testimony of Amnath Khadka who accompanied the escorting under the command of the appellant is also important. Amanath in his testimony has mentioned that they did not know anything in the spot; they knew the fact only after he arrived in the office only that Rakesh Kumar has raped. The victim informant including the members of her family whom the plaintiff/prosecution has presented as it's witness and whose testimony has been made, all of them are corroborative evidences to prove the charge that the appellant has raped the informant.

The informant is herself victim of the crime. It has been apparent that she has been taken from her house to her uncle's house and been raped. All the members of the family could see and know about the scene when the informant was being taken against her will with reprimand and threatening from the place where she was living with her family. It is natural for the victim to come to the home the next day and tell the whole story of destruction of her virginity to her sister and parents after being freed from the captivation (concealment) of the rapist. The members of the family who have themselves seen with their eyes while the informant was being taken in their presence and heard the story from the informant the next morning about the occurrence of the night are important evidences in this case. The informant and her family members are not only natural witnesses but also direct and original witnesses. Chapter three of the Evidence Act, 2031 has provided for the facts to be taken or not to be taken in evidence. In Section 8 there is clear provision that facts stated by the witness before the court may be taken as evidence. Likewise Section 38 of the same Act provides that anyone can be a witness except persons unable to understand the questions put to them, or give rational answers to those questions, by tender years, extreme old age, physical or mental diseases or any other cause of the same kind. Because of this, there can be no question of qualification of the informant or other members of her family who are not old or suffered from mental disease.

Witness is a person related to an offense or event or person who has directly seen or known the incident. If any event or offense happens in a house at the time of night, the members of that house, person working in that house, the guard of that house including the persons present in that at that time are important evidences. If C. C. T. V has been installed in the house as in developed countries, the picture taken by the C. C. TV would have been important evidence. If a passerby has seen the commission of offense that passerby is also important evidence. If the members of the family make tumult after the

commission of crime and the neighbors have come for help and seen the criminal breaching the law, such neighbors are also important evidences. If the patrolling police found and arrested the offender running away after committing crime, such police personnel is also important evidence. The prints of hands left/formed while committing crime or breaking the glass or lock of the house or footprints or marks of shoes are important evidences. Evidence cannot be limited by describing it in strait jacket fashion (this or that form). Evidences are found as per the occurrence of crime.

Evidences are fact- based and collected according to the time, place, situation, nature, weather, environment of the commission of crime, honesty, wise, wisdom, art, experience, skill, training, vigor, knowledge, activeness, study, consistency along with the facilities provided by the state to investigating officers. The evidences collected in such way are helpful to prove or refute the fact in issue of the case.

Looking at this case, the investigator has sent the victim for physical examination on time and caused the victim to be examined on time. The medical officer has also expressed his opinion after examination and collected the evidences and stains found in the victim's clothes and preserving the Swab of vaginal secretion and sent it for laboratory test. Not only has that, these materials been sent to well equipped laboratory of India for further examination. All of these or victim including victim's family members are witnesses pursuant to Section 10 of the Evidence Act, 2031 and the medical officer who examined the victim on time is also important evidence.

The informant is the victim of the crime. The elder sister, mother, father and other members of the family are persons who have directly seen or known (heard or felt) the crime. Eye witness in a rape case does not mean the person who has seen the sexual intercourse. Rape is such a crime wherein the eye witness of intercourse can be found only by chance. In rape cases the facts told by the victim before or during preparation, or after rape are original and direct evidences. In Section 10 of the Evidence Act, 2031 it is mentioned that the facts expressed immediately or immediate before or after, regarding any act, incident or situation by a person who had done that act, or who had directly seen or known such fact or the person who is victim of the act, incident or situation, may be taken as evidence. As per that provision of the Evidence Act, 2031 both, the victims of crime and the person who had directly seen or known the crime are evidences. Therefore, in this case the victim and the whole of her family are direct evidences pursuant to Section 10 of the Evidence Act, 2031.

In a democratic system like ours where the court is independent, where the prosecutor or prosecuting machinery is separate, where there is the constitutional provision of human rights and fundamental rights, where there is provision in the constitution that the court shall decide the cases in accordance with the laws and the recognized principles of justice, it is natural in such country, the burden of proof to be placed on the prosecution and the prosecution has to prove the offense based on the evidences.

Now, looking in this regard, the victim has lodged definite FIR alleging the appellant having raped her. While examining the clothes worn by the victim at the event and vagina of the victim on time, the proofs of rape are found sufficient and therefore, there is no debate that the informant is herself a victim. Since the victim, against whom the crime has been committed, has no reason to give false testimony, what can be more important evidence than her testimony? For this reason, Section 10(1) (b) of our Evidence Act, 2031 has regarded the victim as a witness of special importance. There are some important reasons for placing the victim as witness pursuant to Section 10(1) (b) of the Evidence Act, 2031. Since the victim her/himself is sufferer and therefore does not give false testimony. The only one aim of the victim is to punish the person who has committed injustice to him/her. Therefore, the victim of such crime never intends to inflict punishment to another person instead of the real criminal or the victim does like to punish other person providing immunity to the real criminal.

The victim is regarded as important evidence in the supposition that true victim does not save the real criminal by substituting him by another person. Because of these reasons, the victim has been placed as an important witness in Section 10(1) (b) of the Evidence Act, 2031. In very rare cases relating to rape need the First Information Report of the victim and her testimony is corroborated by other additional evidences.

Famous jurist and historian William Black Stone in the 18th century has mentioned the situation in which the testimony of the victim becomes feigned as follows. *If she be of evil fame and stand unsupported by others. If she concealed the injury for any considerable time after she had the opportunity to complain, if the place where the act was committed was where it was possible she might have been heard and she made no cry. These and the like circumstances carry a strong but not conclusive presumption that her*

testimony is false or feigned. If we look at the above mentioned statement and events written by William Black, in such situation, the statement or testimony of the victim needs other corroborative evidences and there cannot be debate on it. Not only that, the intercourse in such situation may be suspected whether it is consensual intercourse.

The victim informant is local resident of the address mentioned above. The appellant though being the residence of other district has been to *Dolakha* district in order of his service in police force. The informant and the appellant had not been introduced to each other before. The informant is a simple and innocent girl of a village. Going through her testimony it is obvious that she has the nature of frightening with the police. Such nature is normal for an under-educated village woman. Even in the urban areas too there still exists the tendency of being horrified while seeing the police personnel. The appellant himself has not claim that he has earlier enmity with the informant. There can be no question of making allegation against the appellant without any reason who is a stranger to the victim and has no any prior enmity. Likewise, the elder sister, parents and other members of the victim's family and other relatives also have no reason to allege the appellant without any reason. Because of all of these reasons, the First Information Report of the victim, her physical examination and the testimony in the court shows that the informant *Himali* Gole is apparently a witness under Section 10(1) (b) of the Evidence Act, 2031, her testimony before the court made pursuant to Section 50 appearing in the court as per the Section 18 of the Evidence Act, 2031 is admissible as an evidence. Therefore by this reason, the plaintiff has proved the charge against the defendant without any reasonable doubt. The testimonies of the victim /informant as well as her relatives and medical officer have proved the charge against the appellant beyond reasonable doubt and therefore the decision of the court of appeal convicting the appellant for raping the victim informant has been hence held justifiable.

Now considering about the punishment, it has been decided to inflict the appellant 4 years of imprisonment pursuant to No 3 of the Chapter on Rape of *National Code*. As per the legal provision that was in force at that time or as per the prevailing No. 3 of the Chapter on Rape, the offender could be punished 3 to not exceeding 5 years of imprisonment along with an order to cause to provide the half of the offender's property to the victim. However, the court of appeal has imposed only four years of imprisonment to the defendant. The

appellant/ defendant are personnel of police service appointed by the state for the protection of life and property of the general public. The holder of the police post with such sensitive and important duty to save the victim if she was found to have been attempted to rape by anyone else, instead he has himself committed the grievous crime against the victim. The court has to consider whether the punishment imposed by the Court of Appeal to the appellant so as to undergo 4 years of imprisonment for is just or not and whether or not the sentencing policy of the Court of Appeal is according to law.

In criminal cases, after deciding whether the accused is culprit or not on the basis of evidences, the court has to consider applying judicial mind and good conscience the degree of punishment and reason for imposing such punishment. After convicting on the basis of sufficient evidence to convict, if the law has prescribed the punishment from minimum to maximum or only maximum without prescribing minimum punishment, while selecting the punishment from minimum to maximum or between the minimum to maximum, the court has to impose an appropriate punishment fitting it to the gravity of crime, explaining grounds and reasons, taking into consideration of the character of the offender, the injury or harm to the victim etc. In criminal case, the end of justice cannot be met only by imposing minimum punishment or the maximum punishment. It is said that the objective and reason of punishment are retribution, deterrence, reformation and protection. In the present world the objective of punishment is to meet all of these purposes. The objective of punishment is to fit the punishment to the offense.

The main objective of punishment is to provide appropriate penalty to the offender as per the gravity of the crime as well as deterring the potential offender from committing an offense or deterring the actual offender from repeating the offense in future. This is the recognized principle of deterrence theory of punishment whereas the reformatory approach aims to re-socialize the offender by reforming him/her through punishment.

On determination of punishment or about sentencing policy, in R vs. Stratton case of 1780, it is said that 'The fundamental rule of criminal judicature is that the measure of punishment should be in proportion to the malignity appearing in the intention of the offender. In Section 483 of Halsbury's law of England the following matters should be taken into consideration while imposing punishment:

- a) Its nature and circumstances in which it was committed
- b) The degree of deliberation shown by the offender.
- c) The fact that the crime was highly organized one in which a number of offenders took part.
- d) The provocation which the offender has received if the crime is one of violence.
- e) The antecedent of the offender up to the time of sentence his age and character, the fact that he is danger to the public and whether such danger is due to mental disturbance or immaturity and may decrease or disappear.
- f) Particular circumstances such as the prevalence of a particular offence.
- g) The abuse of position in a public service.

Regarding the question of how much punishment has to be imposed (quantum of punishment) in R vs. Wearer case of 1908 the High Court of England has interpreted that 'It is the practice of criminal court generally to punish persistent offenders more severely than those who have not been previously convicted or have not committed other offences. In R vs. McCarthy (1955) it is said that 'It is not right to be guided merely by previous conviction and it is a well recognized principle that a severe sentence for a trifling offense cannot be justified merely on the ground that the offender has had many previous convictions'. However in R vs. Spencer it has been maintained that 'A first hand offender may commit so heinous an offence that a severe sentence is properly imposed.

The crime of rape is a grievous crime. In a conservative society like ours, where there is lack of education, whatever provision have the constitution, law or government policy may have provided in the interest, benefit, progress (uplifting), awareness and opportunity to women, village and society slings stigma to the women victim of rape instead of providing her counseling and sympathy. The practice of seeing the criminal act committed against women as a taboo for the development of personality has not yet been totally eradicated. Our society is so conservative that a women, against whom rape has been committed may not be accepted by her husband or family, likewise an unmarried may face difficulty in establishing a marital relationship if rape is committed against her. This situation has been created by the reasons including conservative society, prevalence of old traditions, lack of education, ancient usage (Pauranic usages or practices) and evil precepts, lack of awareness, lack of capacity and knowledge to make

judgment of right or wrong and evil concept and practices to look upon woman as a sex commodity and ancient and conservative practice of seeing women inferior to men etc.

In a conservative society like ours rape may cause irreparable loss to woman in her family and marital relation. In a conservative society like ours, rape can be a big obstacle in the development of personality of women. The compensation as per the No. 10 of Chapter on Rape, no matter what a large amount it may, it cannot compensate the above mentioned loss incurred to the women. Therefore, in condition where the medical examination has proved the occurrence of rape against a woman and the victim herself has given detailed testimony about it being present before the court and deciding judge, the court should admit such testimony as evidence and determine appropriate punishment taking into consideration of the lifelong irreparable loss suffered (sustained) by woman. Taking into consideration of these facts the important amendment has been made in the No. 3 and No. 10 of the Chapter on Rape of the *National Code*.

It is appropriable to make appraisal once about the historical development of punishment in rape case or evolution of punishment before reaching into conclusion whether the punishment imposed upon the appellant by the Court of Appeal is suitable or not in proportion to the responsibility and duty of the appellant to the society as a personnel of police force.

In part 2 under Historical Background of Rape in the book entitled "*The Crime and the Consequences of Rape*" by Professor Charles W. Dean, professor of criminology, and Research Associate Mary De Bruyn Kop of the University of Hartford of Connecticut state of USA, it is written:

"Research shows those rapists were subject to punishment as far back as thousands of years before Christ. The code of Hammurabi which was Carved in Babylon around 1900 B.C. on an obelisk of black stone decreed that men should be punished if they raped. The early Hebrews considered rape a crime as did Assyrians. All these early civilization meted out punishment according to their own systems of justice. Justice however was a double edged sword back then for not only was there punishment for the criminal but also for the victim. Under the code of Hammurabi the Babylonians considered a married woman who was raped to be guilty of adultery bound her to the rapist

and threw them both in the river. Both the assailant and the victim could be saved from death however; the husband if he wished could pull his wife from the water in which case the judge could pardon the adulterer. The Hebrew also considered some women to be responsible for their own rape. A married woman who was raped was stoned to death along with her assailant at the gates of the city. The same punishment was dealt a virgin who was raped within the city walls the reasoning being that she could cried out and been heard and rescued if she had wanted.

The Assyrians went one step further of they also punished the wife fo the rapist. If a man raped a virgin her father was entitled to take the wife of the ravisher. Rape was a crime to be sure but not against the women only against the women's father or husband since it was his property that has been damaged. "

Rape was regarded as crime before medieval period also; however, the punishment was inflicted against both the rapist and the victim. However, during medieval period the concept in England underwent change and the victim woman herself could take legal action in the court. Around 1066 after William Conqueror became the king, the existing provision of capital punishment for the perpetrator of rape thought to be too heavy and law was amended, however, the punishment became somehow barbaric. The capital punishment was amended but the punishment to the offender was castration or loss of one's eye. In its alternative the defendant could marry the victim and accept the post of clergy and save himself from the loss of eye and testicle.

By the end of 13th century England reform in punishment was brought, regarding rape as the crime against society rather than woman herself and therefore, provision were made recognizing woman's right to standing to suit and also of limitation. In grievous crimes committed against women like rape, women had to struggle for centuries to get justice.

Gradually the crime of rape has been regarded as a grievous crime committed against women and the proceeding and the punishment for it has been developed.

In rape cases, the approach of the court towards the evaluation of evidence has somehow been changed. Earlier, there was an approach or concept that there cannot be a rape unless an injury or

scare of physical assault was seen in victim woman's body. The concept that required the injury or hurt to establish a crime of rape had been unable to understand the reality. The courts were not keenly interested on serious and long-term effects on physical, mental, social, economic, intellectual and educational aspects of victim women caused by crime of rape. However, for some decade onwards there has been some changes in this approach. If we look at the rape jurisprudence of sometimes ago, courts did not accept only the testimony of victim woman. The crime of rape violates the women's body which is inviolable without her consent and will and also inflicts psychological violence on women.

The courts were not keenly interested toward serious and long-term physical, mental, social, economic, intellectual and educational effects on victim women caused by the crime of rape. Looking into the evaluation of evidence made by the courts of our neighboring country with independent judiciary, and provision of punishment thereof, no special importance would be paid to the testimony of the woman who is herself a victim.

There are several decisions in our own; we can take an example of the famous decision of the case *Tukaram vs. State of Maharashtra*. The case is also called Mathura Rape Case. In the said case also, the accused was incumbent police personnel with uniform alike in this case and the case was custodial rape case. In that case, the court decided it as consensual rape because the victim had not protested at the time and had not asked for help. The court decided that it was not rape. There had been vehement dissatisfaction in society with the decision of that case, and consequently the law relating to rape was amended and in custodial rape case, if the sexual intercourse is proved and the victim woman claims that the intercourse is against her will such intercourse is presumed to be rape and the burden of proof in custodial rape case has been transferred to the accused. Thereafter, the Supreme Court of India in 1998 in *Ranjit vs. State of Assam* case held that the testimony of the victim is important evidence if the first information report, statement and testimony of the victim are trustworthy. The court explains:

"The mere fact that no injury was found on the private part of the prosecution or her hymen was found to be intact does not belie the statement of the prosecution she nowhere stated that she bled per vagina as a result of the penetration of the penis in her vagina. She subjected to sexual intercourse in a standing posture and that itself

indicated the absence of any injury on her parts. To constitute the offense of rape penetration however light is sufficient. The prosecution depose about the performance of sexual intercourse by the appellant and her statement remained unchallenged in the cross examination. Neither the non-rupture of the hymen nor the absence of injuries on her private parts thereof belies. The testimony of the prosecutrix when we find that in the cross examination of the prosecutrix nothing has been brought out to doubt her veracity or to suggest as to why she would falsely implicated the appellant and put her own reputation at stake. The opinion of the Doctor that no rape appears to have been committed was based only on the absence of rupture of the hymen and injuries on the private parts of the prosecutrix. The opinion cannot throw out an otherwise cogent and trustworthy evidence of the prosecutrix. Besides, the opinion of the Doctor appears to be based on no reason."

Likewise, in the rape case of *State of Punjab vs. Gurmit Singh* of 1996, the Indian Supreme Court has explained:

"The court must while evaluating evidence remains alive to the fact that in a case of rape no self respecting women would come forward in a court just to make a humiliating statement against her honour such as is involved in the commission of rape on her. The testimony of victim in such cases is vital unless there are compelling reasons which necessitate looking for corroboration of her statement. The court should find no difficulty to act on the testimony of sexual assault alone to convict an accused where her testimony inspires confidence and is found to be reliable. The evidence of victim of sexual assault stands almost on par with the evidence of an injured witness to an extent is more even more reliable. Just as a witness who has sustained some injury in the occurrence which is not found to be self inflicted is considered to be good witness in the sense that he is least likely to shield the real culprit the evidence of a victim of a sexual offense is entitled to great weight absence of corroboration notwithstanding.

In reality rape is the destruction of virginity or chastity of woman which is inviolable body, this is the destruction of such invaluable property. In the above mentioned decision, the Supreme Court of India has explained that if the testimony of woman who is victim of rape is trustworthy, her statement is an important ground and admissible evidence and the court has interpreted the rape law reaching into the conclusion that rape is not a medical condition but a crime. It is true in case a person victim of an attempt murder is saved by timely and

appropriate treatment, there can be rarely any other best evidence except him, and therefore, his testimony in the court is accepted as important evidence. Likewise, there is no reason not to accept the testimony of the victim of rape as evidence. If anyone commits rape against a woman in a solitary place, where should we go for search of eye evidence? If the medical examination of the victims proves the crime of rape and there is no reason to charge the accused (defendant), there can be no question of not accepting the testimony of victim as evidence. Because of this reason it is said that- witnesses are weighed not counted. The interpretation made by the Indian Supreme Court is convincing. Therefore, the provision of Section 10(1) (b) has made the provision that the statement of the victim of a crime is admissible as evidence.

In grievous crime like rape, while determining punishment after conviction on the basis of above mentioned evidences, the court has to take into consideration of the provision of No. 8 of the Chapter on Rape that excuse a victim woman who kills the rapist before the commission of rape or within an hour of the commission of rape to prevailing save her chastity, the provision of No. 10 of the same Chapter of providing the half share of the property of the rapist to the victim and also the long term and permanent effects on the victim woman in her profession, and mental, psychological, physical, social, intellectual, characteristic, domestic as well as economic aspects of life. If the determination of punishment is made accordingly the objective of justice is achieved.

Here, among the different principles established by British Court mentioned above the, two principles are important and famous. The principles propounded by the British court that nature and circumstance in which it was committed and the abuses of position in a public service are important in this case. The appellant is police personnel holding his office. His duty and responsibility as per the Police Act is true service and protection. The duty of police is to protect the life, property and body of the people. It is not necessary to explain about the duty of police more than this. Citizen feel secured when they see the police in uniform empowered with the authority of state at the time when they are in trouble or problem or they are suffering from injustice, crisis or danger, or at the time when their life and property is in danger. The post of police is the post by which people feel security. The Uniform has power and authority of the state to protect the citizens who are in danger. The state exercises its police power and duty to protect the citizens and save them from peril

through the police with uniform. The decision of the district court and also of the court of appeal that sustained the decision of district court, which imposes the appellant only the punishment to serve only four years of jail term and cause to provide the victim the half portion of his property only upon the application made by herself, cannot be thought to be reasonable in the application of discretion in term of imprisonment as it shows leniency toward the appellant since the police (the appellant) with the above mentioned power and authority, at the time of night, taking the advantage of uniform, entering the house of the informant without authority, with the intention of committing a crime, assaulting and threatening the informant and the members of her family, misusing the arm (the pistol) given to him for discharging the official duty, and also the authority, office and uniform; snatching the victim dramatically in hijacking style departing her from other family members, bringing her to another house, assaulting her, threatening her of assassinating, ordering the subordinate police personnel not to let in and out from the house to anyone, with the help of his position, uniform and force violating the human rights of the victim and her family, taking the victim into police custody of some kind has committed the crime of rape that is equivalent to the crime against humanity.

The occurrence has to be regarded as a custodial rape as it has been proved beyond reasonable doubt that the appellant has raped the victim carrying a weapon, wearing the police uniform, keeping his subordinate outside as sentry and taking the victim into custody. The court should not have shown leniency in such a crime of custodial rape committed with the help of position and uniform. The English court in its decision in *R. Vs. Stratton* case had therefore, asserted that its sentencing policy should also be based on the abuse of position in a public service. The court of appeal exercising discretion has imposed the punishment of only four years of imprisonment to the appellant for even such a heinous offense without the mention of any reason in the decision part of the judgment, which could not be held to be the proper exercise of discretion because this discretionary power is conferred upon judges to use it taking into consideration of the facts like responsibility, gravity of crime, lifelong and irreparable loss incurred to the victim; while the appellant in this case, who being a public servant has committed this offense abusing his position. Afterwards, the court of appeal while imposing punishment should take into consideration of the above mentioned facts.

Not only the punishment, but also the decision to initiate the process of providing the half portion of the offender's property to the victim

pursuant to No. 10 of the Chapter on Rape only upon the filing of application by the victim also seemed to be against the intention of law. The orders of the subordinate courts regarding the No. 10 of the Chapter on Rape are against the provision and objective of law. If we follow the procedure regarding the No. 10 of the Chapter on Rape as meant by the district and appellate court, victim women will never get justice. Victim women do not know about the final decision of the case in which they are informant. Victim women do not know about the provision of the No. 10 of the Chapter on Rape. It is not a matter to be known by the victim women where and how much property does the perpetrator deserves. There is more possibility of transfer of his property by the accused to another's name after losing the case from the final court.

Both of the courts; the district court and the court of appeal have been unable to differentiate between the No. 10 of the Chapter on Rape and the Chapter on Partition. The property to be recovered under No.10 of the Chapter on Rape is not like the property to be acquired as inherent right under Chapter on Partition. It is a compensation made for victim women for far reaching psychological, physical, professional, moral, intellectual, social as well as economic effect to be sustained in her various aspects of life. The procedure stipulated in No.46 of the Chapter on Punishment shall not be attracted in the execution of No.10 of the Chapter on Partition. The district court itself, after final decisions has to inform the informant, implement the judgment and provide the half of the share of the perpetrator's property although it is not mentioned in law, only then the victim gets justice. The court immediately after the finality of the decision has to execute the judgment in its own initiatives and provide half share of the perpetrator's property regarding the No. 10 of the Chapter on Rape as protected by the Article 11(3) of prevailing constitution and Article 13(3) of the current Constitution.

Thus, the prosecution has proved the charge beyond reasonable doubt that the appellant has raped the victim however, the plaintiff has not filed an appeal on quantum of punishment and therefore, it needs not to be considered and the decision is hereby sustained. In case filed before the latest amendment of the No. 10 of Chapter on Rape of *National Code*, including this case, translating into reality of the right provided by the proviso to the Article 11(3) of the then Constitution, the provision of the proviso to the Article 13(3) and Article 20 of the present Constitution for the purpose of providing half of the share of

the property of the offender to the victim, the following procedure shall be observed:

- a) After receiving this judgment, the *Dolakha* District Court shall call the informant; let the informant be provided the information about the decision as well as her right to get the half share of the appellant's property.
- b) If the appellant has transferred his property to any of his coparceners by any means after the date of this decision, let the informant be provided the half share of the appellant's property until the date of the final decision by this court regarding all of these transactions as void because they are created after the filing of the case,.
- c) Whereas the address of the appellant is *Sarlahi* district, wherever the property of the appellant is situated in *Sarlahi* district or any other district, then let the district Court of *Dolakha* be provided help by all the district courts and other offices assuming the case is being filed in these respective districts.

The appellant in answer No. 4 of his statement in the district court also has confessed that he had slapped the informant as she was connected with the terrorist and it has been obvious that the appellant has assaulted the victim's sister and other members of her family. It has been clear that the appellant has entered the informant's house without any justifiable reason. It has been obviously proved, from the documents enclosed in the case file, that the appellant has himself threatened, scolded, assaulted and terrorized the whole family of the informant. The appellant has tagged (labeled) the informant as terrorist to justify his assault, but the law does not permit him to terrorize even if (despite the fact that) she has been a terrorist. The allegation of the appellant that the informant's family is connected with the terrorists has not been corroborated by the testimony of the police personnel who had accompanied the appellant while he had gone to the victim's house.

It has been obviously revealed from the documents in the case file that the appellant has assaulted the informant's father, sister and others. From this, it has been clearly seen that the appellant has committed the crime of serious violation of human rights by entering into the house of ordinary citizen the informant without any reason and violated the right against the informant and her family members by inflicting physical and mental torture by assaulting them in the name of controlling the terrorists. The appellant who is the protector of law has

himself been the breaker of the law and order. The highhandedness of the appellant has violated the individual liberty of the whole family of the informant. There can be no debate that police can enter into the house of the citizens as per the law to protect their life and property, to arrest the criminal, or carry out investigation. But the police personnel have no authority to enter into ordinary citizen's house and commit crime.

Reasonable cause and ground is required to enter into ordinary citizen's house. It is relevant to mention the statement made by William Pitt the then Prime Minister of Britain in 1753 about the importance of privacy and liberty even to the poorest people. He says- "The poorest may in his cottage bid defiance to all the force of the crown. It may be trail, its roof may shake, the wind may blow, through it, the storm may enter, the rain may enter but the king of England cannot enter all his forces does not cross the threshold of that ruined tenement. The right to privacy that prevents the police to enter into citizen's house without any (reasonable) cause is termed as Common Law Right in England. Our constitution has also protected this right to privacy.

Thus, this act of appellant or the act of entering into informant's house without any reason and assaulting the informant's family is the crime against the Section 34(n) of the Police Act, 2012 (1995) and such act is separate from the crime of rape and such act is punishable under Section 36 read with Section 35 of the Police Act, 2012. In this regard, the Attorney General had to start suitable legal action; however, nothing has been done in this regard. If appellant is not punished for such a serious violation of human rights, it should be termed as the encouragement to impunity. However, the court does not permit for being so. Therefore, let the copy of this decision provided to the Attorney General and Inspector General of Police to take necessary action against the appellant for serious violation of human rights of the informant's family with the misuse of his official position and uniform. Let the correspondence be made to *Dolakha District Court* to implement the No. 10 of the Chapter on Rape and its information be provided to this court. In the implementation of judgments of cases filed before the amendment of the No. 10 by Some Nepal Acts to Maintain Gender Equality Amendment Act, 2063(2006) abide by this decision regarding this as the interpretation of No. 10 of the Chapter On Rape. Let the case file be handed over as per the rule.

I concur above decision.

Justice Tahir Ali Ansari

Done on 23rd Baishakh, 2064 B.S. (6th May, 2007)

The Supreme Court issues directive orders to the concerned government organ for enacting necessary laws in order to combat enforced disappearance of people and bring into book the real culprits to reduce growing cases of impunity.

Supreme Court, Division Bench
Hon'ble Justice Khil Raj Regmi
Hon'ble Justice Kalyan Shrestha

Order

Writ No. 3775

Subject: Habeas Corpus.

Writ petitioners: Rabindra Prasad Dhakal on behalf of Rajendra Prasad Dhakal(Advocate), permanent resident of Ward No. 8 of Harmi V.D.C. and then residing on a rented room at Ward No. 1 of the Prithwi Narayan Municipality of Gorkha District.

Vs

Respondents: Nepal Government, Home Ministry and Others

- **As Section 9 of Treaty Act, 2047 provides for that the treaties or agreements ratified by Nepal will be applied as Nepal law, there is no ground for the state to get itself absolved from the responsibility determined by these instruments.**
- **It seems that this court may take standards and principles established pursuant the above mentioned foreign and human rights related decisions made by the regional courts as recognized principles of justice embodied in our constitution.**
- **Even as Article 36 states that the question relating to the implementation or non implementation of provisions stated under Part IV of the Constitution can not be raised in any court of law, there is no dispute that that provisions in these articles are commitments of the state.**

- The state may also contend that the implementation of directive principles of the state is a matter of its own discretion. But the legal investigation, prosecution and remedy to be carried out with respect to a remedial mechanism as a part of fundamental right can not be a matter of second priority and, also can not be a matter outside the jurisdiction of the court.
- The state can not by virtue of the international legal instruments as mentioned above, foreign and human rights related decisions made by regional courts and our constitutional provision escape from its responsibility to identify the condition of the disappeared persons and make them public, initiate legal action against those responsible person who appear to be culprit and thereby provide appropriate remedy to the victim party.
- The Constitution has provided a responsibility to this court as the guardian of the constitution and a watchdog of civil rights, when other organs of the state can not fulfill their responsibility; it seems that this court can issue appropriate order to make them fulfill their responsibilities.
- Owing to reasons including the jurisdiction of the court and limitation of the resources, it is not possible for this court to carry out separate investigation with respect to all the persons stated in the petitions. It is found, however, on the ground of the conclusion of the report of the investigation carried out on the cases it is necessary that additional investigation should be carried out in totality by establishing a mechanism on matters relating to the persons who are alleged to have been disappeared.
- It seems, now therefore, appropriate to provide an immediate relief of interim nature to the victims considering the physical and mental torture as well as economic loss that the families of the victim have had to undergo during their search and taking recourse to the process for obtaining justice.
- For the purpose of implementation of the Act made pursuant to here above, for the purpose of protection of the persons forcefully disappeared, it is also expedient to provide for an arrangement in the same Act or separately for a separate probe commission with respect to such disappeared persons. Given that separate powers, skills and procedures are deemed necessary for probing such

kinds of problems, it is expedient to refer to the Criteria for Commission on Enforced Disappearance developed under the auspices of the United Nations Office of the High Commission for Human Rights as guidelines for determining criteria.

- A directive order is hereby issued in the name of respondents government of Nepal, Ministry of Home Affairs and the Office of the Attorney General to take decisions to enact an Act for the protection of the disappeared person, making provision for Inquiry Commission in the Act for inquiring into the causes of their disappearance, and their status by forming a powerful commission to carry out in-depth and comprehensive inquiry of the said persons and thereby submit the report of the same, and thus accomplish a criminal investigation on the basis of the report and thereby decide to prosecute concerned persons on the basis of the propriety and necessity.
- As it is the responsibility of all organs of the state to protect the disappeared persons and provide them justice, we therefore, take the view that it is a natural and valid in connection with the case to make expectation and be confident about playing positive role by responsible organs for a work delineated by the constitution. It seems necessary in this connection that the government of Nepal takes special initiation to expedite the process of making law.
- In this connection, this order is hereby issued in the name of the Government of Nepal as well as the Cabinet Secretariat pursuant to Article 100 and 107 (2) of the Interim Constitution, 2007 to provide immediate relief of two hundred thousand rupees subject to the nearest claimant of Chakra Bahadur Shahi who is said to be dead and whose death is verified by the investigation of the DIT constituted by the order of this court and two hundred thousand rupees each subject to the families of those who are declared dead; one hundred fifty thousand rupees each subject to Rajendra Prasad Dhakal, Bipin Bhandari and Dil Bahadur Rai in whose case the probe of the DIT constituted by this court has concluded that they were arrested by security forces and were disappeared; and one hundred thousand rupees each subject to

remaining other persons stated in the petition whose status has not been clarified.

- **A directive order is hereby issued in the name of the Government of Nepal to frame and implement appropriate relief package including employment without any adverse effect whatsoever to matters mentioned here above, and considering the status of the victims till date and also the loss and difficulties that might have to be continuously borne due to the cause of disappearance.**

Kalyan Shrestha, J: The summary of the petitions. This petition was heard by the bench along with batches of other petitions such as the one filed by Yek Raj Bhandari on behalf of Bipin Bhandari, Writ No. 100, registered on 2059/3/5/4 B.S. (June 19, 2002); Udaya Bahadur Rai on behalf of Dil Bahadur Rai, Writ No. 104, registered on 2059/3/19/4 B.S. (July 3, 2002); Krishna Kumari Rai on behalf of Navin Kuman Rai and Ishwar Kumar Lama, Writ No. 323, registered on 2059/12/5 B.S. (March 19, 2003); Sitasharan Mandal on behalf of Shree Ram Tharu, Writ No. 500 registered on 2060/3/4/4 B.S. (June 18, 2003); Sitasaran Mandal on behalf of Jagana Tharu, Writ No. 45 registered on 2060/4/26 B.S. (Aug 12, 2003); Sitasaran Mandal on behalf of Hariram Chaudhari Writ No. 41, registered on 2060/4/26 B.S. (Aug 12, 2003); Sitasaran Mandal on behalf of Tateram Tharu Writ No. 155, registered on 2060/8/14 B.S. (Nov 30, 2004); Sitsaran Mandal on behalf of Biharilal Godia, registered on 2060/10/6/3 B.S. (Jan 20, 2004); Sitasaran Mandal on behalf of Ayodhya Prasad Godia, Writ No. 164, registered on 2060/10/6/3 B.S. (March 22, 2004); Sitasaran Mandal on behalf of Dhak Bahdrur Basnet, Writ No. 167, registered on 2061/6/28/5 B.S. (Oct 14, 2004); Ranju Darnal on behalf of Ranjit Darnal, Amrit Darnal and Rajendra Chauvel, Writ No. 97, registered on 2062/4/28 B.S. (Aug 12, 2004); Chandra Kumari Basnet on behalf of Dhirendra Basnet and Pushparaj Basnet Writ No. 110 and 111, registered on 2062/5/7/3 B.S. (Aug 23, 2005); Shanta Sedhain on behalf of Mukunda Sedhain, Writ No. 142, registered on 2062/5/27 B.S. (Sept 12, 2005); Manorama Nakarmi on behalf of Nischhal Nakarmi, Writ No. 211, registered on 2062/7/13 B.S. (Oct 30, 2005); Srijana B.K. on behalf of Amar B.K., Writ No. 250 registered on 2062/8/9/5 (Nov 24, 2005); Chandra Bahadur Dulal on behalf of Renuka Dulal, Writ No. 223, registered on 2062/7/22 B.S. (Nov 8, 2005); Om Prakash Singh on behalf of Chatur Man Rajbanshi aca Shyam, Writ No. 378 registered on 2062/8/22/4 (Dec 7, 2005); Krishna Rai on behalf of Purna Paudel, Gyanendra Tripathi, Rupam Adhikari, Rajendra Thapa, Ramchandra Kafle, Suchendra Maharjan,

Bhim Giri, Rebkala Tiwari, Bhavanath Dhamala, Arjun Maharjan, Kusalya Pokherel, Dipendra Panta, B.K. Shrestha, Lila Pandey, Hemnarayan Shrestha, Praksah Lama, Hira Bahadur Roka, Tejman B.K. Jalandhar Bastola, Lila Acharya, Bhim Maharjan, Rajendra Mali, Anuman Shrestha, Deshbhakta Chapagain, Kamala Waiba, Amarraj Bajracharya, Hira Bahadur Sharumagar, Amrit Kandel, Satyanarayan Prajapati, Gangaram Shrestha Babukaji Shrestha, Writ No. 378 registered on 2062/11/01 (Feb 13, 2006); Debraj Dhungana on behalf of Chetnath Dhungana, Writ No. 418 registered on 2062/11/8/2 (Feb 20, 2006); Krishna Rai on behalf of Arun Nepali Writ No. 485, registered on 2062/12/22 (April 4, 2006); Ramila Lama on behalf of Bishal Lama, Writ No. 617, registered on 2063/2/10 (May 24, 2006); Bimala Katwal on behalf of Chakra Bahadur Katwal, Writ No. 362, registered on 2063/3/19/2 (July 3, 2006); Dharmaraj Mali on behalf of Baburaja Mali, Writ No. 635, registered on 2063/3/32/1 (July 16, 2006); Sirasaran Mandal on behalf of Hari Prasad Luintel, Writ No. 54 (002), registered on 2063/4/7/1 (July 23, 2006); Gamala Shrestha on behalf of Arjunlal Shrestha, Writ No. 0004, registered on 2063/4/18/5 (Aug 3, 2006). Similarly a Mandamus petition Lekhnath Neupane, Krishna K.C. Himal Sharma and Bina Magar, Writ No. 2588/0038 (Mandamus), registered on 2063/4/11 (July 27, 2006) was also heard by the bench. These petitions were filed on different dates under Art, 23 and 88 of the Constitution of the Kingdom of Nepal 1990. The main prayers of the petitioners in these petitions inter alia included the release of the petitioners, declaration of their status and legal action against those officers responsible for gross and systematic violation of human rights and for ending the state of impunity.

In these batches of petitions the petitioners claimed that persons they represented were picked up by security forces on different dates between 2055/9/24 B.S. (Jan 8, 1999) and 2061/9/3 B.S. (Dec 19, 2004), (a great majority of them between Nov 2003 to Feb 2004 either from their houses, work places, colleges or from the streets and taken into custody. For instance, Baburaja Mali was picked up from his residence at midnight, Purna Paudel and Ishwar Lama from Kuleswar, Gyanendra Tripathy from Santinagar Gate, Rupak Adhikari from Maharajgunj, Rajendra Thapa and Ramchandra Kafle from their residence, Buddhi Lama, and Surendra Maharjan from the neighborhood of their residence while returning from the college, Bhim Giri from New Baneswar, Rebkala Tiwari from near Chabahil while returning from college, Bhabanath Dhamala from his shop at Chabahil, Arjun Shrestha (Maharjan) from Kirtipur, Kusalya Pokherel from Pulchowk while returning from college, Dipendra Shrestha from Nayabazar while returning from college, B.K. Shrestha from his won

shop, Lila Pandey while returning from college, Hemnarayan Shrestha from Basundhara, Prakash Lama from Old Baneshwar, Hari Bahadur Rokka from Dhokatal in Lalitpur, Tejman B.K. and Jalandhar Gautam (Bastola) from Chabahil, Lila Acharya from Chabahil while returning from college, Bhim Maharjan from his own residence, Rejendra Mali from his own house in Lalitpur, Anuman Shrestha from his grocery shop, Surendra Khadki from his own house in Lalitpur, Deshbhakta Chapagain from his grocery shop in New Baneshwar, Kamala Waiba while returning from college, Amarraj Bajracharya from his own residence in Lalitpur, Renuka Dulal from Chabahil, Chetnath Dhungana from Kalikasthan, Hirabahadur Saru Magar while returning to his rented room from the college, Amrit Kandel from Bagbazar while returning to his rented room from the college, Babukaji Shrestha from his grocery shop in Ward No. 35 of Kathmandu Metropolitan City, Satyanarayan Prajapati from his residence in Samabhanjyang and Gangaram Shrestha from his residence at Sallaghari in Bhaktapur. Similarly Dhirendra Basnet was picked up by the security forces from Kalanki, Pushparaj Basnet from Kalimati, Nabin Kumar Rai and Ishwar Kumar Lama (leaders of the student wing of the Maoists) from their rented room in Kalimati and, Dil Bahadur Rai from Gyaneshwar.

Similarly Hari Prasad Luintel was woken up and arrested from his house by security forces from Bairani Camp in Dhading district. Chaturman Rajbanshi was arrested from Tenzing Norgey Bus Park in West Bengal with the assistance of Indian Police and brought to Nepal. Similarly Chetnath Ghimire was initially required to be present at the military battle on (Garuddal Gulma) several times and latter arrested and kept in the camp. Arun Nepali was arrested from Putali Sadak. Shree Ram Tharu was arrested from his house at Deudakala in Bardia district, Tateram Tharu, Hariram Tharu and Jagana Tharu from their houses at Magaragadhi V.D.C in Bardia by army men from Rambhapur check post. Arjunlal Shrestha was picked up from his maternal uncle's house in Manamaiju by plain cloth armymen who came from No 1 Division, Balaju. Similarly, Dhak Bahadur Basnet was picked up from his house at Narethanti V.D.C, Baglung by Joint Security Force at Hari Chaur. Biharilal Godia, Ayodhya Prasad Godia (a tenth grade student) were arrested by security forces from Joint Security Base Camp, Banke. Bishal Lama was arrested from his factory where he worked as laborer and taken to the Police Post at Tinkune where his family members met him in the presence of ICRC and after a week he was put in a vehicle in the presence of his wife where she was told that he will be taken to the District Police Office, Bhaktapur. Similarly, Ranjit Darnal, Amrit Darnal and Rajendra Chaurel (all tailors) were arrested either from their rented rooms or

restaurant where they worked. Amar B.K who lived at a rented room and worked at an utensil shop at Basantapur all of a sudden did not come back for lunch, and after four days his name appeared among those arrested in a daily newspaper called "Samachar Patra." Mukunda Sedhain was arrested from Raju Khaural's tea shop in Bhimsensthan. Later Achyut K.C. one of the detainees who was later released told that he saw Mukunda at a military camp (Jagadal Gulma) at Chhauni around December 2003 and Jan 2004. Later, he had also sent a letter to his wife from the detention center. Nischal Nakarmi was picked up by the security forces led by Colonel Raju Basnet of the Bhairabnath Gan from Dillibazar where he was sitting with friends. He was also spotted by other detainees at Bhairabnath Gan and once on 2061/8/22 (Dec 7, 2004) he himself called up and informed the family that he was detained.

Chakra Bahadur Katwal has a little different story. He was the chairman of Nepal Teachers Association, Okhaldhunga. After being arrested he was kept at local military camp called "Ranadal Gulma" and later transferred to the District Police Office where he was allowed to meet his family. After some days he was again transferred to District Police Office, Saptari and then to Central Jail in Kathmandu but family members was not allowed to meet him. Bipin Bhandari, a student was arrested by force led by D.S.P Bikram Singh Thapa from Baneshwar and taken to the police office at Hanuman Dhoka and kept in communicado. Rajendra Prasad Dhakal, an advocate, was arrested from Khairani Tar in Tanahun, and was kept in communicado.

In Wirt No. 2588/0038 Lekhnath Neupane and Others, who prayed for an order of mandamus claimed that they were arrested by the security forces after the imposition of emergency on 2058/8/11(Dec 26, 2001) for the reason of their political faith and taken to the military camp in Maharajgunj. While in the custody they were blind folded and subjected to extreme torture such as immersing in the water and hot water, compelling to urinate on a burning electric heater, penetrating pin in the nails etc by Lieutenant Colonel Raju Basnet, Major Bibek Bista, Captain Indiber Rana and the Chief of Military Intelligence Dileep Rayamajhi on the order of Pyar Junj Thapa. Due to torture a few of their friends Padam Narayan Nakarmi, Khadka Bahadur Gharti Magar and Kiran Rayamajhi succumbed to death. During the same period a number of our other friends such as Rajendra Tripathi, Madhav Adhikari, Dhirendra Basnet, Jalandhar Bastola, Lila Acharya, Rupak Adhikari, Pushpa Basnet, Shantiram Bhattarai, Durga Bisankhe, Tejman Bishwakarma, Deshbhakta Chapagain, Janak K.C., Chandra Kumar Dhakal, Bhawanath Dhamala, Chetnath Dhungana,

Renuka Dulal, Bhim Giri, Amrit Kandel, Buddhi Lama, Nima Dorje Lama, Doleswar Limbu, Arjun Maharjan, Rejendra Mali, Nishchal, Gokul Niraula, Lila Pandey, Dipendra Panta, Arjun Pokherel, Kausalya Pokharel, Hira Bahadur Rokka, Hira Bahadur Tharu, Babukaji Shrestha, Rabindra Sheresha, Ashok Sunuwar, Rajendra Thapa, Rebkala Tiwari, Purna Paudel, Bipin Bhandari, Dil Bahadur Rai, Nabin Rai and Astaraj Bajracharya were arrested and brought to the same camp. They were subjected to extreme torture by the same officers who also said time and again to these detainees that they will be exterminated. On 2060/9/5 (Dec 20, 2003) these people were loaded on a truck and taken away and since then they had not seen them. The petitioners claimed that an order of mandamus should be issued for declaring public the status of the detainees and if necessary constituting a high level inquiry commission and for taking legal action against the officers mentioned above.

Show Cause notice and Responses Upon being asked to show cause, the respondents in most of the petitions declined that the petitioners were arrested or any of their rights violated. However, in a couple of written submissions, some important facts were disclosed. For instance, in Writ No. 632 the District Education Office admitted that Chakra Bahadur Katuwal was asked to appear to the District Administration Office vide letter No. 505, and after he went to the said office he did not return.

Similarly, the District Administration Office admitted that after Mr. Katuwal appeared in the office he was sent to the local military camp (Ranasingh Dal Gulma) and later transferred to the District Police Office. On 2058/9/2 (Nov 17, 2001) he escaped from the detention by breaking open the window of the toilet.

Similarly, in response to the Writ No. 378 the Ranadal Gan military camp (Chhauni) stated that among the petitioners Suchendra Maharjan, who was detained at the Inquiry and Research Center at Sundarijal was released from the detention as per the order of the Supreme Court dated 2061/8/16 (Dec 1, 2004).

Similarly, Bhairabnath Military Camp in its reply stated that among the petitioners Anuman Shrestha and Surendra Maharjan after being arrested were handed over to Rajdal Gan military camp at Lagankhel. Similarly, the Nepal Army Headquarter in its reply stated that Anuman Shrestha and Surendra Khadki were released in the presence of Lalitpur District Court by the Rajdal Gan on 2060/12/30 (April 12, 2004) and entrusted to Jit Govinda Maharjan and no other persons

were arrested. Similarly, in Writ No. 54 the Nepal Army Headquarter stated that Hariprasad Luintel was arrested by the Number Six Division of the Nepal Army on 2059/4/29 (July 20, 2002) and handed over to District Police Office, Dhading whereupon he was issued an order of preventive detention on 2059/5/4 (Aug 20, 2002) to be valid for 90 days. Upon expiry of the said 90 day period the detention was renewed for another 90 days. On 2059/11/7 (Feb 19, 2003) he was released and entrusted to his elder brother Ram Prasad Luintel and thereafter he was not arrested. Similarly, in the reply to Writ No. 0015 the Nepal Army Headquarter denied that Chetnath Ghimire was summoned or arrested by the Military camp, what appeared in the correspondence was only a clerical error.

Similarly, in its reply to Writ petition No. 418 the National Human Rights Commission (NHRC) stated that on visit to the famous Mahendra Dal Gan military camp in Gorkha, the NHRC officials met Mr Krishna K.C. who narrated to them that he had met Chetnath Dhungana (C.N. Dhungana) at Youddha Bhairab Military Camp. This was also corroborated by Ganesh Dhakal who in his statement to NHRC said that he saw C.N. Dhungana at Bhairabnath Gan Military camp. He also said that on 2060/9/5 (Dec 20, 2003) the said detainee was loaded on a truck and taken to an undisclosed location following which they did not know that he returned. On this basis the NHRC submitted that this gave reasonable ground not to believe that Mr Dhungana was not detained in military detention.

In the reply to Writ No. 2588 (Mandamus) the respondents denied that the persons mentioned in the petition were arrested or tortured or disappeared but Bhairabnath Gan admitted that among the persons stated in the petition one Khadka Bahadur Gharti Magar died in detention due to disease and not torture. In order to locate the status of the persons mentioned in various petitions the Supreme Court on different dates issued orders seeking information, requiring reply from the persons alleged to be involved in the arrest but in all the petitions the concerned office or officers denied that the petitioners were arrested or detained.

Constitution of Detainee Investigation Team

The court on 2063/5/12 (Aug 20, 2006) constituted a Detainee Investigation Team led by a judge of the appellate court and comprising the representative of the Attorney General's Office and the Bar to inquire into the cases of disappearance which was asked to find out their actual status, identify persons and the office which were involved in the arrest or issued the order of arrest, and their present designation, whether or not any cases were pending against the detainee, till when the status of the

detainee was known and since when it became unknown and which institution or the officer was involved in the act and other relevant facts in the context of the habeas corpus. Other Reports and Submissions Further, with a view to trace the status of the detainees the court took cognizance of at least four reports.

The first was the report of Baman Prasad Neupane, Joint Secretary at the Ministry of Home Affairs which was constituted on 2062/2/11 (May 25, 2005). This committee was asked to inquire into the status of 776 disappeared persons. It traced the status of 174 of them and thus reduced the number of disappeared as 602. According to this report, among those whose status was identified were Chetnath Ghimire, who was as per the letter of the Department of the Military Operations in touch with the Nepal Army camp at Bhorletar, Chandra Kumar Dhakal who was said to have been released on 2059/11/1 (Feb 13, 2003) from the Jail at Jagannath Debal, Arjun Prasad Neupane who was released from Nakkhu Jail on 2063/2/30 (June 13, 2006) and Bishal Lama, Jalandhar Bastola, Madhav Adhikari and Khadka Bahadur Gharti Magar, who are stated to have died. The status of other writ petitioners is stated as unknown and unidentified. The second was the report of the OHCHR Kathmandu which had inquired into the allegations of arbitrary detention, torture, and disappearance from the Bhairabnath Gan military camp of the Nepal Army between 2003 and 2004. In the course of investigation the OHCHR had interviewed more than 50 people including the family members, former detainees and other eye witnesses. On the basis of this and its visit in person of the said camp and Yodhha Bhairab Military camp, as listed the names of the people who were kept in secret detention. The office concluded that in the arrest, inquiry and other activities the Bhairabnath Gan Military camp had played a central role. The report gave the list of 49 people, who according to it got disappeared from the camp, on whose behalf writ petitions are filed in Supreme Court. The OHCHR, while continuing with the investigation on the case of other disappeared persons also suggested that a reliable, efficient and independent inquiry should be conducted on these cases and those army units responsible for the violation of human rights should be identified and those persons found to be guilty of criminal responsibility should be tried in the civilian court. It further recommended that until such inquiry is made those persons should be suspended and not proposed to be sent to any peace keeping operations under United Nations, that the eye witness and former detainees should be free from any threat or fear, and that the result of such inquiry should be publicly disseminated. The third is the report of the National Human Rights Commission (NHRC). Upon being asked by this court a number of times as to what

did it do with the petitions filed to it by writ petitioners the NHRC stated that by taking interview of the family members, eye witnesses, those released from detention it collected necessary information. In the course of investigation the NHRC had also made a visit to the alleged place of detention and had sought information with the security units involved in the detention. In several petitions it also recommended to the government to take necessary action against officers who are found to have been involved in serious violation of human rights and publicize the status of the detainees.

The fourth is the report of the Detainees Investigation Team (DIT), 2007. After the investigation, the DIT is found to have reached to the conclusion that among those investigated Chakra Bahadur Katuwal was taken into custody by the Army and died on account of the cruel torture given to him. Similarly, it also concluded that among the petitioners Rajendra Prasad Dhakal, Bipin Bhandari and Dil Bahadur Rai were arrested by security forces and caused their disappearance in a planned way. The DIT in its report also recommended that a high level investigation commission should be formed to impartially and independently inquire into the cases of those disappeared during the armed conflict, that retro-active laws in matters such as crimes against humanity should be enacted, that appropriate judicial directives should be issued for stopping the repeated arbitrary arrest and detention. Further the DIT also suggested that those involved in the violation of human rights should be tried according to law and that the victim family should be given appropriate compensation.

Issues to be decided by this court: A consideration upon the statement of the writ petitioners in totality, matters stated by the respondents in their written statement, orders rendered by this court in course of the proceedings of the case and additional facts revealed therefrom, and also including the questions raised by the legal practitioners of the writ petitioners and respondents during their pleadings, this court deems that the following questions are to be decided:

1. On the basis of the facts revealed till date, what is the condition of the persons who are stated in these petitions as arrested by security persons and disappeared?
2. In matters pertaining to disappeared or missing persons, what would be the obligation of the state especially during the condition of conflict?
What would be the possibility of judicial remedy to carry out such obligation and what would be the role of the court in the matters concerned thereto?

3. How and what machinery has been applied till date while making efforts in course of inquiry of disappeared persons as well as making their status public? Whether or not these efforts have been effective, what would be appropriate in this regard?
4. What are the prevailing legal provisions with respect to finding out the situation of disappeared citizens through research and inquiry?
Whether such legal provisions are sufficient and effective? If not, how and what legal provisions and initiations are necessary?
5. Whether any interim measures are desirable to render immediate relief considering instant pain, the loss and effect to the families of the persons who are said to be disappeared and facilitate the search to them and for the purpose of mitigating the pain and loss to them? If yes, whether such orders can be issued with respect to now prevailing petitions?
6. Whether or not the respondents have fulfilled their legal obligation pursuant to the demand of the petitioner. Whether or not the orders need to be issued as per the demand? What kind of orders are to be issued for appropriate remedy?

Regarding question No.1:

The statement of all petitions filed in this court claim that the persons stated in the writ petition were arrested by security persons in different dates and places, they were not in contact with their family and their status was unknown till date.

The respondents have basically stated in their written statement that the said persons are not arrested by security persons; and the court, considering the matter whether the said persons were arrested by the security persons, has inquired different intuitions along with pertinent orders. In course of the order, it seems that the report of the National Human Rights Commission with respect to search of said person was demanded, the Ministry of Home of erstwhile His Majesty's Government was made to inquire the truth and submit the report. The report of the inquiry of the Government of Nepal in this respect (Baman Prashad Neupane Committee) was also demanded and included in the file.

In the same question learned advocates Mr Satish Krishna Kharel, Mr Harikrishna Karki, Mr Kedar Dahal, Mr Milan Kumar Rai and Mr Hari Phuyal appearing on behalf of the petitioners submitted that all persons stated in the petition were arrested by security persons in different dates and places. Various national and international human rights organizations have stated the fact that the said persons were detained in different custodies of police and army. Krishna

K.C & Himat Sharma who were together with them in various detentions and later freed have given their statement in the Court of Appeal, Patan that the persons stated in the petition were there kept in the detention. The fact is verified even through a letter written by Krishna K. C. from the detention. The counsels also argued that by virtue of the statement recorded at the National Human Rights Commission by the witness who saw security person arresting the petitioners and the persons who were detained together with them in the custody the fact that their condition is still unknown, it is proved that petitioners were illegally arrested by the security persons and therefore, the state has illegally and forcefully disappeared the persons.

Learned Deputy Government Attorney Mr.Bharat Mani Khanal, who appeared on behalf of the Government of Nepal, submitted that the concerned security agencies have claimed that they have not arrested the petitioners. There is no reason why such written statement should not to be believed. Even by the orders of the court rendered from time to time, and subsequent probes done pursuant to the orders, the fact of the petitioners' arrest has not been proved. During the course of armed conflict many people have gone abroad and in view of the fact that hundreds of thousands of people were found safe, it is not appropriate to conclude without any ground that the petitioners were arrested, he pleaded. Learned senior advocate Mr.Khem Narayan Dhungana, appearing as amicus curie pursuant to the order of this court, submitted that the facts deliberated therein till date have established that the petitioners were arrested by the security persons. The fact that their whereabouts is still unknown proves that they were disappeared but the responsible persons of the Police and the Army could not disclose information known to them due to organizational discipline and the oath of secrecy taken by them, he pleaded.

Learned advocates duo Mr.Bashudev Bajgain and Mr.Om Prakash Aryal appearing as amicus curie on behalf of the National Human Rights Commission argued that a total of 2032 applications were filed at the Commission as being disappeared by the state and out of them the whereabouts of 646 was still unknown. Regarding the complaints lodged at the Commission and investigation carried out on the same and subsequent facts established therefrom, the Commission could not conclude that the persons mentioned in the petitions were not disappeared; and the Commission has decided to recommend for legal action against the culprits who were involved in serious violation of human rights, they pleaded.

Considering the facts stated in the petition, written statement and the above mentioned pleading, it is beyond dispute that the persons stated in the petition were not in contact of their families and relatives. Except for the provision of the main body of the Writ No. 378 of Harisharan Maharjan and others, in most of the petitions, the date, time and place of the arrest of the petitioners and the manner how they were arrested is expressly stated. Even as the written statement has stated that the petitioners were not arrested, it seems that this court, with respect to many writ petitions including Writ No. 3575 has, time to time, ordered a search warrant to furnish with this court the whereabouts of petitioners if they were not arrested. Regarding the Writ petition 617 that states about Bisal Lama who was met by his families at the Ward Police Office Tinkune on 9 June 2002 with the cooperation of ICRC; and that he was boarded on a vehicle to get him to Bhaktpur DSP office in the presence of his wife Menuka Lama, and it is mentioned that while being inquired on the same evening the Bhaktpur District Police Office denied knowing anything about the same. As it is seen in this way, the written statement of the respondent stating that the petitioners were not arrested can not be found to be reliable and trustworthy.

The respondents in their written submission have stated that Mukunda Sedai who is mentioned in Writ No.142 was not arrested by them. However, Achyut K.C while giving statement on 20 December 2004 pursuant to the order of this court in connection with habeas corpus Writ Petition No.193 filed at this court on 15 December, 2003 and which remained pending pursuant to the order of this court dated 25 May 2005 has stated that he had met Mukunda Sedai on 2060 Poush [December 2004/January 2005] while being detained together with him at Jagdal battalion at Chauni. The letter written by detainee Mukunda Sedai on 16 January 2004 to petitioner Shanta Sedai shows that he was in Chauni. The decision of National Human Rights Commission dated 6 May, 2006 which is enclosed in the file herewith deems that Mukunda Sedai as stated in the petition was arrested by security force and was kept in communicado in illegal detention at Jagdal battalion Chauni. Concerning Writ No. 262 of detainee Chaturman Rajbansi, the transcript copies of the letters enclosed in the file which were sent by him to his family from Batukdal camp 8 April 2003, 15 July 2003 and 5 December 2003 state fact that he was in custody at army camp. However, the respondents including Batukdal battalion in their written statement stated that he was not arrested. As his family has not been able to establish contact with him till date and as it is formed seems that his where-about remain unknown even after proceedings of this court, the condition of Chaturman Rajbansi is found to be unknown. While it is the

contention of petition of Writ No. 111 that detainee Pusparaj Basnet was arrested and detained in Bhairab Nath battalion, the respondents including Bhairab Nath battalion in the written statement have claimed that he was not arrested. It seems from the transcript copy of report of National Human Rights Commission that after carrying out an investigation with respect to this detainee, National Human Rights Commission has made the concluding observation that Pusparaj Basnet was arrested by security force and was detained in Bhairav Nath battalion which is under the Nepal Army.

The analysis of facts mentioned here above is just a trend analysis of all cases in totality. As these examples expose and represent similar facts in other cases, it is not necessary to mention facts in detail of all cases and additional proceedings carried out for the purpose of finding out the condition of detainees.

The report of Baman Prasad Neupane constituted by the Government of Nepal for the purpose of probing and investigation of the disappeared persons and preparing a report that explained their real condition and also to recommend necessary measures that needed to be taken with respect to those whose condition remained unknown, states the name of 602 persons in the list of persons whose condition was still unknown.¹ The fact that most of the persons who have filed writ petition in this court including Amrit Kandel, Arjun Maharjan, Baburaja Mali were listed in the report as being the persons whose whereabouts was still unknown shows that the whereabouts of the persons stated in the petition was not determined till date.

In the list² of the persons whose whereabouts was determined, the same report citing the letter of Karyarathi Department of Nepal Army mentions Chet Nath Ghimire, about whom the petition has been filed to this court as being the person who was in contact with the camp of Nepal Army at Bhoretar. Taking note of the report as a basis, when this court ordered to present Mr.Ghimire [Dhungana] before it, the court received an answer that the fact stated therein was just a typological error, giving thereby a feeling that the status of the persons mentioned in the petition was getting more complicated. Even though the same report states that petitioner Chandra Kumar Dhakal and Arjun Prasad Neupane were freed on 13 February 2003 and 13 June 2006 respectively from Jagannath Nath Debal and Nakhu section of

¹ The probe committee formed to make public the condition of disappeared citizens (Baman Prasad Neupane) report, 2063.

² Id, Annex 3

the prison, it does not mention any specific information and detail regarding their present states and condition in connection to the proceeding of the case filed in this court. A mere reiteration of the correspondence that mentioned about their release does not help in reaching conclusion that their status was known. The same report states that Bisal Lama, Jalandhar Bastola and Madhav Adhikary were killed in cross firing. However, this is not corroborated by the post mortem report or receipt of the corpse by the family or identification of the place where the corpse was dumped. As such things could not be shown in the file, this court only on the basis of the said report can not conclude that they were killed, or if they were killed, without further inquiry as to how they were killed and whether law was duly complied with at that time, reach to a conclusion against undertaking such inquiry.

A report of the investigation carried out by the United Nations Office of the High Commission for Human Rights in Nepal with respect to persons disappeared by security force from custody during the time of conflict has been submitted to the file in Writ No. 2588. The report has mentioned the name of 49 persons as being disappeared from the Bhairab Nath battalion of Nepal army; and writ petitions concerning most of them including Madhav Adhikari, Dharendra Basnet, Desbhatka Chapagain have been filed with this court. The report mentions that it was prepared after the Office had taken interviews of over 50 persons including families of disappeared persons, former detainees and witness and after the visit to Bhairab Nath battalion and Uddha Bhairab Nath battalion.

The erstwhile His Majesty's Government, Ministry of Foreign Affairs and the Office of the High Commissioner for Human Right have signed an agreement on 10 June, 2005 with respect to the establishment of the Office of the High Commission for Human Rights in Nepal. The agreement has given a mandate to the Office to monitor the situation of human rights under certain determined standards and thereby make report of the same.³ As the Office has made the report public even by specifying the methodology therein, this bench has deemed appropriate to take the report in reference as a background material for the purpose of analyzing the facts during the hearing of the case.

³ See in detail: Agreement Between the United Nations High Commissioner for Human Rights and the Government of the Kingdom of Nepal Concerning the Establishment of an Office in Nepal held on 10/04/05.

As the said report in the course of its investigation also states that 49 persons were disappeared and that additional investigation was being undertaken with respect to the list of other people who were said to be disappeared; it deems that the contention in the written statement and the pleading of the Deputy Government Attorney that the persons were not arrested does not concord with the said report and hence not reliable and trustworthy; the status of those persons is still found to be unknown.

As it seems from the reports submitted in connection of the cases before us that since army camps were also used to keep the detainees it was further made difficult to determine the condition of the detainees. If the detention was made by officers authorized by law by duly fulfilling the procedures prescribed by the constitution and laws, no such condition would arise to detain persons in the places like Bhirab Nath Gan which is purely an army camp. An argument may be raised that army camp was used for safe detention for the purpose of containing terrorism at the time of conflict but this should be preceded by formation of certain policy based on law to use the army places for criminal proceeding of civilian persons.

In the case of persons taken into custody for the purpose of criminal law, several of their rights get affected and these rights are to be enforced while they are in detention. The rights of the detainees such as the rights to meet family members, to consult a law practitioner, the guarantee as to the non-occurrence of mental and physical torture, the right to adequate food, information, access to justice for legal remedy is to be respected.

When detainees are put in army camp where infrastructures are not developed keeping in mind the human rights, it creates a situation where gross violation of human rights of the detainees might occur. In the present case many problems have generally arisen precisely for the reason that civilian persons were put in army camps. Since even for institutions like United Nations Office of the High Commissioner for Human Rights and the National Human Rights Commission access for the inspection of the detainees' room of the Bhairab Nath Battalion was granted only after special initiations, it would not be possible for the kin of detainees to have access or reach to such place of detention. On the basis of the reports received, and from description of the place of detention as mentioned in the statement of the persons who were already detained there, the condition of the detention, physical facility and treatment meted to detainees seems to be far lower than the treatment to be done to a human being and, hence, degrading, objectionable, torturous and terrifying. It is a matter of

shame to both government and the state that such degrading treatment was done to human being just because of being in detention.

Notwithstanding the gravity of offence treatment to human being should be humane and within accepted standards. The physical condition of the place where the detainees are kept and the treatment meted to them expresses overall attitude of the concerned office to them and the difficulties faced by the detainees and treatment to them in the detention further clarifies ground for their disappearance. As detainees are put in such difficult and inadequate place, it might give rise to loss of life and property due to adverse effect on physical and mental health. Further, where the matters like record keeping, dissemination of information etc. do not exist, they indicate a situation where there is possibility of disappearance. As a matter of fact, the policy and practice of putting civilians in army camps for the purpose of detention is unfortunate. A separate research needs to be carried out by the government as to what was the thinking and policy behind the activities of putting detention in army camps which have arisen therefrom.

In reality, on the basis of above mentioned reports and information given by the persons who were detained in the Bhairab Nath camp, it is now beyond dispute that a large number of detainees were detained there. There does not seem any reason for all these reports and persons to make baseless allegation against the army organization. If an agency which is supposed to remain a pure army organization is used for other purposes, the concerned agency and officials should bear the challenges and responsibility to the extent such responsibility and challenge arises therefrom. Whereas such responsibility was to be borne naturally, a defense on the same can not be established through adamant denial of all basic claims stated in the petitions. As is claimed in the petitions, in matters corroborated by the reports pertaining to persons who are seen to have been taken into custody, the responsibility clearly lies with the army and ultimately with the government.

Applications were also filed at the National Human Rights Commission subject to several persons stated in the writ petition and the details of investigation received from the Commission mentions that the Commission had carried out investigation on this matter. As per the information received from the Commission, persons mentioned in the petition including Puspa Raj Basnet and Mukunda Sedain were illegally put in army detention for a long time, and therefore, it seems

that the Commission had recommended for legal action by identifying responsible official. The statement recorded at the National Human Rights Commission, by persons freed from the custody of the security force reveal that they had met several persons stated in the petitions in the custody. Those statement, the applications and information furnished by the families of the disappeared person to the National Human Rights Commission and the concluding decision of the Commission on the basis of the investigation and field visits of the potential places where the detainees might be kept; portray that the condition of the persons including those stated in the petition as unknown.

This court had constituted an investigative team from within the machinery of this court itself for the purpose of determining the condition of persons mentioned in Writ No. 3575,100,104, 632 from among the several writ petitions filed with it. The investigation undertaken by the Detainees Investigation Team (DIT) reveals that Mr.Chakra Bahadur Katuwal of Writ No. 632 had appeared at the office of Chief District Officer in person on 13 December, 2001 and he was put in illegal detention first by the order of the Chief District Officer at the District Police Office and then in the army camp and he was killed on 16 December, 2001 due to cruel torture given by those including army officials.

Besides, with regard to Rajendra Prasad Dhakal who is stated in the writ petition, the report conclusively states that he was arrested on 10 December, 1998 by a police team comprising 10 to 12 policemen, deputed under the command of erstwhile Police Inspector Kush Bikram Rana of Area Police Office, Belchautara, Tanahaun at the time when he was taking bath at Jamdi river of Khaireni Village Development Committee of Tanahaun. He then was brought to Area Police Office, Belchautara along banks of Jamdi river which was a round about and lesser used route. [The DIT has] reached the conclusion in that he was systematically disappeared from the same date.

In the report submitted to this court the DIT conclusively states that petitioner Bipin Bhandari and Dil Bahadur Rai were arrested on 2059/3/3 (June 27, 2002) from their rented room at Sukedhara, Kathmandu by a police team under the command of Deputy Police Inspector Vijaya Pratap Shah from Area Police Office, Balaju and they were handed over to the Area Police Office Balaju and as both of them were affiliated to All Nepal National Free Students Union

Revolutionary (ANNFSU-R) sister organization of Communist Party Maoist, they were disappeared due to their political faith⁴.

In this way, it seems that the present condition of most of the detainees could not be determined even by the investigations of this court and different agencies. It seems that the DIT constituted by this court has concluded that Mr.Chakra Bahadur Katuwal of Writ No. 632 was died on 16 December 2001, Rajendra Prashad Dhakal of Writ No. 3575 Bipin Bhandari of Writ No. 100 and Dil Bahadur Rai of Writ No.104 were forcefully and illegally disappeared by the security forces.

Since the investigation was a judicial one carried out by the DIT constituted as per the order of this court, this court has deemed the conclusion of the report of the DIT as the final regarding the condition of the petitioners. Pursuant to the report, the condition of Chakra Bahadur Katuwal, Bipin Bhandari, Rajendra Prasad Dhakal and Dil Bahadur Rai has been determined as stated in the report itself and condition of all other persons stated in the writ petitions except these ones could not be determined on the grounds of the facts and thereby seems still unknown and confusing, and therefore, the truth on their condition need to be investigated and determined.

Regarding Question No. 2:

From the deliberation on question No. 1 made above, it seems that the persons who were claimed to have been disappeared by security force were basically denied by the respondents of having arrested by them, and thus, the conditions of those persons is found to be fundamentally unknown. As our judicial practice till date has been that the order of habeas corpus is issued in the situation when the condition of a detainee is determined and he/she is found detained illegally, owing to the situation of conflict a pertinent question has been raised as to what would be the responsibility of the state towards citizens and what would be the role of the court especially in the condition when a lot of complaints are filed claiming illegal arrest of persons in huge number but the state denies having arrested these persons, and therefore, written notes of pleadings were also demanded from the counsels present on this question. Appearing on behalf of the petitioners learned advocates Mr Milan Kumar Rai and Mr Kedar Dahal submitted that forceful disappearance is a continuous crime.

⁴ Supreme Court, Detainees Investigation Task Force, 2063 Report pages 126-127.

Article 2 of U.N. Covenant on Civil and Political Rights which is ratified by Nepal entrusts to the state an obligation to carry out investigation on each incident of Human Rights violation including forceful disappearance. If the state does not fulfill this responsibility, the court may; considering the gravity of incident of disappearance, concern of international community, concern and wishes of victim family and also the need of ending impunity; issue an order to find out the real condition of disappeared persons and punish the culprit even by making laws with retrospective effect if so calls for, they pleaded. Appearing on behalf of petitioners learned advocates Mr Hari Krishna Karki, Mr.Satish Krishna Kharel, and Mr.Hari Phuyal argued that the Constitution of the Kingdom of Nepal, 1990 and the Interim Constitution, 2007 guarantees right to life and personal freedom of every person. Similarly, Human Rights related international instruments ratified by Nepal have also guaranteed the same thing.

The state should respect and implement this obligation created by several national and international laws. If the state does not fulfill such obligation, an inherent right is vested in the court itself to consider all possible ways for the protection of the civil liberty, they submitted.

Learned advocates appearing as *amicus curie* argued that the government has the responsibility to find out the condition of the persons who were missing, disappeared or whose status was unknown. The government can not escape from its responsibility just by stating that it has not arrested them. The court may issue appropriate order to clarify the status of such persons, they submitted.

Similarly, appearing on behalf of respondents Joint Government Attorney Mr.Yubaraj Subedi and Deputy Government Attorney Mr.Brajesh Pyakurel argued that solution of such question should, in the changed context, be sought through political consensus. The judicial inquiry to be undertaken by the judiciary at its own initiation may not be practical or result oriented. If the orders of the court are not executed they make the matter more complex. As a consensus has already been made to establish Truth and Reconciliation Commission for the purpose of eradicating the problems evolved during the time of conflict, this aspect should also be considered, they submitted.

Considering the above mentioned facts and submissions made and the context therein, it seems that the cases from among those presented for decision here today, the oldest one is registered on

2055/10/7 (Jan 21, 1999), however, it seems that it is interrelated with the circumstances created prior to it out of the armed rebellion between the government and CPN (Maoist), and therefore, it seems tenable to consider as to what would be the responsibility of the state in such unusual circumstance.

There is no dispute that the first among the duties of the state is to provide security to its frontiers and protect rights of its citizens. Whatever complex or easier circumstances may appear for the conduct of its affairs, a state can not exempt itself from its responsibility of protecting person and property of its citizen and also addressing the concerns related thereto with responsibility and priority. If a state fails to fulfill such primary responsibility, peace of such state would be disturbed through internal rebellion and eventually the state may face the crisis of its existence. Modern political science has accepted the state as the protector of citizens. The state has special responsibility towards its citizens even during general circumstances and state can not exempt itself from such responsibility howsoever especial or difficult the circumstance might be. From this philosophical stand point also it does not provide a basis and condition to conclude that there would be no responsibility of the state for the circumstances created out of the past conflict. Several initiatives have been taken at the international level for ensuring the protection of fundamental human rights of persons. The United Nations' Universal Declaration of Human Rights has accepted the right to life and freedom as fundamental human right and thereby made a declaration that the international community should respect and protect the same⁵.

As the traditional international law had put the incidents of disappearance during the time of conflict under the category of violation of human rights, this alone could not minimize incidents of disappearance, and therefore, the United Nations deemed incidents of disappearance as crime against humanity and issued a declaration on 18 December 1992 for the purpose of saving all persons from forceful disappearance⁶. In line with the obligation imposed on the state party by the declaration, the General Assembly of the United Nations on 20 December 2006 has issued the International Convention for the Protection of All Persons From Forced Disappearance⁷. Even as the international convention has not come to force till date and Nepal has also not ratified it, this convention has determined a fundamental

⁵ Article III, Universal Declaration of Human Rights, 1948, UN.

⁶ General Assembly Resolution 47/133 United Nations.

⁷ General Assembly Resolution 61/177, United Nations.

standard concerning the obligation of the state with respect to security of disappeared persons; and also in the condition that the convention has been accepted by international community, it is expedient to accept the standards of the conventions as the standards of international law and thereby carry out activities by the states pursuant to the same. As stated in the preamble to the said convention the principles enumerated in Charter of the United Nations, the human rights and basic freedoms indicated by Article 55 of the Charter, the Universal Declaration of Human Rights, the convention is supposed to promote universal respect for, and observance of, human right and fundamental freedoms. From among the principles stated in the Universal Declaration of Human Rights, it seems that the core principles in all conventions, covenant and instruments are directed by friendship, justice and peace on the basis of inherent dignity, respect and inalienable rights of all members of human society. From among them, the Universal Declaration of Human Rights, Covenant of Civil and Political Rights and Convention against Cruel, Inhumane and Degrading Treatment or Convention Against Torture are related to present matter and hence especially related.

For the purpose of enforcement of the above mentioned conventions, covenant and instrument, it seems that some rules and code of conduct of law enforcement authorities such as the Basic Principles on the Use of Force and Firearms by Law Enforcement Officials; the Declaration of Basic Principles of Justice for Victims of Crime and Abuse of Power and the Standard Minimum Rules for the Treatment of Prisoners are used as yardstick.

Since the above mentioned instruments appear to be concerned with the implementation of the human rights conventions signed by Nepal, the Convention for the Protection of Enforced Disappearance passed in 2006 should also be seen in the same footings. This convention has not established separate values other than prevailing international human rights laws rather it has reinforced the values enshrined in the mainstream human rights laws, and therefore, the fact of non-ratification of this convention does not provide any ground to consider that the state responsibility created by mainstream human rights instrument are minimized to any extent. Thus, even as the 2006 convention is yet to be ratified, there are no barriers to take the provisions of the convention principally as embodied guiding elements, rather it is also seen necessary on the basis of the obligation created out of conventions ratified by Nepal together with the principles of prevailing international human rights law for the protection of human rights.

There seem to be no problem in internalizing the principles laid down in the said Convention for the sake of respecting and promoting the life, dignity and freedom of its citizens; and our legal system can also include this as it is useful for us. It is not objectionable in both our law and practice rather it is seen to be essential. It is expected that state should, within its constitutional framework, proceed further as soon as possible to ratify such conventions.

This will demonstrate our sensibility towards our citizens and the feeling of responsibility of the state towards the international community in the process of protection of human rights. Now, let us consider some fundamental provisions of the convention.

Article 2 of the convention considers the act of enforced disappearance as an arrest, detention, abduction or any other form of deprivation of liberty by agents of the state or a person or group of person acting with authorization, support or acquiescence of the state followed by a refusal to acknowledge the deprivation of liberty or by concealment of the fate or whereabouts of the disappeared person, which place such a person outside the protection of the law⁸

The convention has prescribed the following obligations to a state party to guarantee that persons would not be disappeared forcefully by state party:

- No body to be disappeared forcefully and kept in secret detention,
- The act of enforced disappearance to be made criminal act through enactment of law, it will not be considered as political offence and in order to ensure the presence of the alleged person arrangement of extradition or rendition will be made,
- Research on forced disappearance to be carried out and responsible person will be brought to justice,
- Right to effective remedy to be guaranteed to the victims of enforced disappearance,
- An impartial investigation for alleged incidents of disappearance to be ensured,

⁸ For the purposes of this Convention, enforced disappearances is considered to be the arrest, detention, abduction or any other form of deprivation of liberty by agents of the state or a persons or groups of person acting with authorization, support or acquiescence of the state followed by a refusal to acknowledge the deprivation of liberty or by concealment of the fate or whereabouts of the disappeared person, which place such a person outside the protection of the law.

- Arrangement for the protection of complainant, witness and relatives of victim to be made.

It is found that some states in the American continent have, before the commencement of the convention, issued in 1994 an Inter American Convention on Forced Disappearance of Person and countries such as Colombia, Guatemala, Paraguay, Peru and Venezuela have made separate law in accordance with the convention and thereby have defined such act as criminal act⁹.

In the International Covenant on Economic, Social and Cultural Rights, 1966 which is ratified by Nepal and Nepal has become a party to the same, the parties to the Covenant have accepted the responsibility of the state to provide widest possible security and cooperation to establish a family and take care as well as education of children.¹⁰ Similarly, Article 6 of the International Covenant on Civil and Political Rights states that every human being has inherent right to life and this right shall be protected by law.¹¹ The expression 'right to life' used in this Article has been interpreted by the United Nations Office of the High Commissioner on Human Right as the highest right of person which can not be suspended in any kind of emergencies.¹² The same Covenant has also provided state parties with the responsibility to protect the right of citizens.¹³

- Everyone has the right to liberty and security of person. No one shall be subjected to arbitrary arrest or detention. No one shall be deprived of his liberty except on such grounds and in accordance with such procedures as are established by law.
- Anyone who is arrested shall be informed, at the time of arrest, of the reasons for his arrest and shall be promptly informed of any charges against him.
- Anyone who is arrested or detained on criminal charge shall be brought promptly before a judge or other officer authorized by law to exercise judicial power and shall be entitled to trial within a reasonable time or to release.

⁹ Report submitted by Mr. Manfred Nowak to 58th Session of Commission on Human Rights, Item 11 of the Provisional Agenda at January 2002.

¹⁰ Article 10, International Covenant on Economic, Social and Cultural Rights, 1966.

¹¹ Every human beings have the inherent right to life. This right shall be protection by law. No one shall be arbitrarily deprived of his life.

¹² CCPR General Comment No.14, Office of the High Commissioner for Human rights, Twenty-third Session, 1984.

¹³ Article 9 International Covenant on Civil and Political Rights, 1966.

- Anyone who is deprived of his liberty by arrest or detention shall be entitled to take proceedings before a court, in order that the court may decide without delay on the lawfulness of his detention and order his release if the detention is not lawful.
- Anyone who has been the victim of unlawful arrest or detention shall have an enforceable right to compensation. While interpreting Article 2 of the Covenant, the Human Right Committee, the Office of the High Commissioner for Human Rights has stated the act of forced disappearance would violate Articles 6, 7 and 9 of the Covenant and the act shall also be a crime against humanity.¹⁴

The state parties to the Covenant have accepted obligation that necessary legislative measures shall be applied to respect and guarantee these rights if the prevailing legislative measures do not appear to be enough; and effective remedy will be ensured even if these rights are violated by the persons who work in official capacity.¹⁵

Similarly, the Convention against Torture and Cruel, Inhumane and Degrading Treatment, 1984 has also prohibited any kind of inhumane torture to the person in custody or detention.

As Section 9 of Treaty Act, 2047 provides for that the treaties or agreements ratified by Nepal will be applied as Nepal law, there is no ground for the state to get itself absolved from the responsibility determined by these instruments.

While having a look to foreign courts as to how they have practised in such cases, it is found that the Indian Supreme Court has, in the case of *Rudal Sah V. Union of India*¹⁶, not only freed Rudal Sah from illegal detention but also ordered monetary compensation from the same petition of *habeas corpus*. The court has taken the decision to compensate not as compensation under ordinary jurisdiction rather viewed it as the compensation for depriving enjoyment of basic fundamental right of the citizen guaranteed by the state; and held that "the refusal of the Supreme Court to pass an order of compensation in

¹⁴ CCPR General Comment No. 31, Office of the High Commissioner for Human Rights, Eightieth Session, 2004.

¹⁵ Article 2 *Ibid*

¹⁶ *AIR (1983) 4 sec 141*

¹⁷ *AIR (1984) 3 Sec 83*

¹⁸ *Velasquez Rodriguez V. Honduras Petition No: 7920/1981, judgement of 29 July, 1988*

¹⁹ *Trujillo Oroja V. Bolivia*¹⁶.

favor of the petitioner will be doing mere lip-service to his fundamental rights to liberty which the state government has so grossly violated" Similarly, in the case of *Sebastian M. Hongray V. Union of India*¹⁷, where the petitioner had claimed that C. Daniel and C. Paul were arrested and disappeared by security forces and where the respondents had furnished written statement that they had not arrested them, the court however, ordered compensation of one hundred thousand rupees each to the widows of the deceased persons and also issued an order of mandamus to Superintendent of Police to carry out necessary investigation on the incident on the ground that the petitioners had had an unnatural death and the state had not fulfilled its obligation towards the incident. Regional Courts on Human Rights have also decided on matters pertaining to incidents of enforced disappearance. The Inter- American Court of Human Right has enunciated the principle in the case of *Velasquez Rodriguez V. Honduras*¹⁸ that the responsibility of the state would remain even in situations when full and direct evidence of enforced disappearance by the state is lacking. It was claimed in the case that a student named Manfredo Velasquez was arrested by armed police of Honduras. Even as direct evidence of the same was lacking, the court enunciated the principle on the basis of the circumstantial and presumptive evidence that state has the responsibility to create machinery for full enjoyment of human rights by the citizens. Another case, *Trujillo Oroja V. Bolivia*¹⁹, filed at the same court in 1999 had claimed that a war victim Jose Carlos Trujillo Oroja was arrested by security forces in 1971 December and was disappeared since February 1972. In the case, the Bolivian government on the basis of the report following judicial inquiry, accepted that it had caused Jose Carlos Trujillo Oroja disappear, and therefore, begged pardon to the families of the victim, made necessary arrangements to amend the laws to punish the culprit and to ensure non-recurrence of the incidents of forced disappearance and had also proposed US\$ 4000 compensation to the families of the victim. Even as the court quashed the case (put in postponement (tameli)) as the Bolivian government had accepted the responsibility towards its citizen, it was, however, declared that the Bolivian government had infringed the obligation of the state towards its citizens to protect human rights as protected by the Inter -American Convention on Human Rights.

Regarding forceful disappearance, the case *Kurt V. Turkey*¹⁶ decided by the European Court of Human Rights, established under the European Convention for the Protection of Human Rights and

²⁰ Kurt V. Turkey, Application No: 24276/94 judgement of 25 may, 1998.

Fundamental Freedom 1950, is hailed as landmark. The case started after the mother of Uzeyir Kurt filed an application at the European Commission of Human Rights claiming that Kurt was arrested by security authorities of Turkey in 1993 and was disappeared from the detention.

The court in the case observed that the government of Turkey had seriously violated its liability under the European Convention for the Protection of Human Rights and Fundamental Freedom, 1950 by putting Kurt's mother in pain and distress by not giving the information about his condition for a long time and for not doing anything substantial on behalf of the government to carry out investigation on his disappearance, and therefore, the court ordered compensation of 10,000 Pound Sterling for the pain and distress borne by the petitioner and 15,000 Pound Sterling for disappearing her son.

In the above mentioned decisions, the Inter-American Court of Human Rights and European Court of Human Rights have made interpretation of the obligation of state established by regional conventions as determined by the same conventions. Even as Nepal has not become party to a separate regional convention, it has remained an active member of the United Nations, accepted several conventions related to human rights and has repeatedly expressed its commitment towards human rights and freedom of citizen through constitution and other legal provisions. In this context, it seems that this court may take standards and principles established pursuant the above mentioned foreign and human rights related decisions made by the regional courts as recognized principles of justice embodied in our constitution. There would be no reason to take them otherwise.

While considering what would be the obligation of the state to its citizens during the time of conflict or normal situation, the preamble to the Constitution of the Kingdom of Nepal, 1990 has made commitment to guarantee basic human rights of the people and thereby transforming the concept of rule of law into living reality. The fundamental rights stated under Part III, Article 12(1) of the same constitution has the provision that no one shall be deprived of personal liberty save in accordance with law. Similarly, right to criminal justice provided in Article 14 in Clause (4) states that anyone who is detained in course of investigation, trial or for any other reason shall not be subjected to any physical or Clause (5) of the same Article, states that no person who is arrested shall be detained without being informed, as soon as may be, of the ground of arrest; and Clause (6) of t mental torture, nor shall he be treated with any cruel, inhumane

and degrading treatment. he same Article states that every persons who is arrested and detained in custody shall be produced before a judicial authority within twenty-four hours after such arrest, excluding the time necessary for the journey from the place of arrest to such authority, and no such person shall be detained in custody beyond the said period except on the order of such authority.

The basic fundamental rights provided by the 1990 Constitution are made more secure by the Interim Constitution of Nepal, 2063. A full commitment is made to civil liberty, fundamental rights, human rights and the concept of the rule of law has been expressed in the preamble to the Constitution itself. Clause (1) of Article 12 of the Constitution has in clear terms protected right to life of person and thereby provided every person the right to live with dignity.

Regarding the right to justice, Article 24 (1) states that no person shall be detained without giving the information of arrest stating the reason therefor. Clause (2) of the same Article states that a detained person shall be produced before the judicial authority within 24 hours of the arrest excluding the time necessary for the journey from the place of arrest to such authority, also guarantees that the arrested person shall not be put in detention except by the order of the judicial authority. Clause (8) states that each person shall have right to be informed of the proceedings against him and Clause (9) states that each person shall have right to fair trial from competent court or judicial authority.

Similarly, Article 26 of the Constitution which provides for right against torture in Clause (1) states that anyone who is detained in course of investigation, trial or taken into custody or for any other reason shall not be subjected to any physical or mental torture, nor shall he be meted with any cruel, inhumane and degrading treatment. Clause (2) of the same Article makes the act pursuant to Clause (1) punishable by law and also provides that the person treated in that manner shall be entitled to compensation as prescribed by law. Further, the proviso of Clause (7) of Article 143 of the Constitution by providing that such rights can not be suspended even during the period of state of emergency in the country remains constitutionally sensitive to the right to life of the person.

It is beyond dispute that during normal times the liability to protect fundamental rights of persons and their right to live with dignity vests upon the state. As civil liberties would be at greater risk during the time of conflict, the liability of the state would be more sensitive and responsible during such unusual circumstances. The protection of

human rights and compliance with international humanitarian law has during the time of conflict remained a challenge even at the international level. A study report has shown that during the year 2003 and 2004 in Nepal the trend of enforced disappearance and illegal detention were found to be highest in the world ¹⁷.

It seems that the above mentioned Declarations, Conventions and Covenants have pointed out that the practice of enforced disappearance would seriously violate the right to live with dignity, the right against torture, the right to personal freedom, fair trial, the right to easy access to justice and rights related to family life.

Even as there has not been separate legal provision on forced disappearance in Nepal, some of the provisions of the Interim Constitution, 2007 have accepted existence of such incidents during the time of conflict. The political consensus made in several stages between the seven political parties and CPN (Maoist) in the course of peaceful transformation of conflict which have remained as the background for the formation of this constitution and which are accepted by this constitution as its part as well as the detailed peace agreement entered between the government of Nepal and CPN (Maoist) on 2063/8/5 (Nov 21, 2006) have also expressed commitment to international humanitarian law, principles of basic human rights and standards. It seems that the state has accepted its obligation towards disappeared citizens due to its commitment to the compliance of basic human rights and international humanitarian law as expressed in clause 5.2.3 of the aforementioned peace agreement which has been put as annex 4 of the Constitution, it states that both parties agree to make public the real name, family name and address of home of those who were disappeared and killed during the time of war within 60 days of signing of this agreement and thereby apprise the same to their family also; and Clause 5.2.5 states that both parties have agreed to establish a high level Truth and Reconciliation Commission to explore truth on those who violated human rights during the armed conflict and Clause (7) by providing that both parties commit to respect human right and international humanitarian law the state seems to have accepted the fact that it has the liability for disappeared persons.

The Interim Constitution, 2007 has also endorsed the commitments expressed through the peace agreement and various other political consensus. Article 33(L) in Part IV of the Constitution under Directive Principles and Policies, provides that victim families of the

¹⁷ Amnesty International Report, the State of the World's Human Rights, 2005, P. 23

disappeared person will be provided relief on the basis of the report of the Inquiry Commission constituted to investigate into disappeared persons during the conflict; Article 33(N) states about establishing a high level Truth and Reconciliation Commission for exploring truth on those who violated human rights during the armed conflict and those who were involved in crime against humanity, and for creating an environment of reconciliation in society.

Even as Article 36 states that the question relating to the implementation or non implementation of provisions stated under Part IV of the Constitution can not be raised in any court of law, there is no dispute that that provisions in these articles are commitments of the state. The principle enunciated in the case of *Yogi Narahari Nath v Cabinet Secretariat and Others*¹⁸ where this court held that the directive principles and policies of the state are not mere show piece and they can not be overlooked even as they can not be implemented through court, and therefore, the state cannot overlook the matters mentioned in the Directive Principles. As the incident of disappearance is taken as the violation of fundamental rights of persons such as the right to life, freedom and justice, and therefore, the legal investigation and proceedings on disappearance are objectively considered as a part of remedy against the breach of fundamental rights, and thus, the process of truth finding can be considered as part of the implementation of the same. The state may take a stand that formation of a Commission with respect to matters pertaining to directive principles and policies are to be done as per its own convenience putting in its own priority.

The state may also contend that the implementation of directive principles of the state is a matter of its own discretion.

But the legal investigation, prosecution and remedy to be carried out with respect to a remedial mechanism as a part of fundamental right can not be a matter of second priority and, also can not be a matter outside the jurisdiction of the court.

In fact, on matters relating to the investigation of truth and giving remedy in respect of disappeared person, no reason can be seen that gives rise to conflict between the jurisdiction of the court and any other organ of the state. Rather, it can be accepted that the obligation of the state with respect to this matter is an obligation to be borne jointly. At

¹⁸ Ne.Ka.Pa.(The Supreme Court Law Journal) 1996(2053) Vol.1, Judgement No. 6127.P,33.

the time when, the nation is making a leap forward with great hope and confidence in the direction of democratization, if the present state power does not become serious on matters relating to disappeared person, the rationale of change, and the direction beaoned by the change might wither away. The first step to provide a feeling that conflict management has taken a path of resolution is the assessment and remedy of the loss of life and property that occurred during the time of conflict. For this reason also this matter is seen to be appropriate for judicial resolution from the very point of view of law besides social, economic and political point of view. Thus, this court can and should provide a judicial evaluation as to whether or not the state has complied with its liability.

In the light of the above mentioned constitutional provision there is no dispute as to the fact that the state has the responsibility to situations created by the conflict. Naturally, during the time of armed conflict than during normal times incidents of violations of human rights and humanitarian laws take place more. The state has the responsibility to address the incidents and realities of the degrading situation of human rights and violation of humanitarian law during the time of conflict in a serious and responsible manner for the purpose of peaceful transformation of conflict. The state can not remain silent towards the incidents of infringement of the right to live with dignity and civil liberties of persons during the time of conflict. It seems that our judicial system has adopted the approach that the court can give necessary directives if state can not demonstrate sensibility and responsibility with regard to the violation of human rights committed during the time of conflict. In the case of petitioner Bhim Prakash Oli v Prime Minister and Cabinet Secretariat Writ No. 3394 of the year 2061, this court has ordered that it is the responsibility of the state to determine a clear policy concerning the relief to be given to the people who have been victim of disappearance and riddled with the conflict and thereby distribute the relief on the basis of equality without any discrimination.

In the present context, as the condition of the most of the persons as deliberated in above mentioned question No. 1 seems to be unknown, the state can not by virtue of the international legal instruments as mentioned above, foreign and human rights related decisions made by regional courts and our constitutional provision escape from its responsibility to identify the condition of the disappeared persons and make them public, initiate legal action against those responsible person who appear to be culprit and thereby provide appropriate remedy to the victim party.

Now, considering on the aspect whether or not the state has taken steps to fulfill its obligation, it is found that the written statement received from the respondent or the Joint Government Attorney who appeared on behalf of the Office of the Attorney General provided no factual situation and details with concrete ground as to what they had carried out as steps to fulfill the same. Even as the state has accepted its responsibility in the peace agreement signed on 2063/8/5 (Nov 21, 2006) between the government and CPN (Maoist) and also in the Interim Constitution, 2007, it does not seem that any concrete steps are taken to fulfill the responsibility. Life is significant precondition for enjoying all freedoms. Other preconditions, such as capacity for autonomy, and social and economic structure which allow people to choose between realistic options, are valuable only while we continue to enjoy life¹⁹ As the forceful disappearance makes the very existence of person unknown and doubtful, there would be no condition for such person to have an access to basic and fundamental human rights guaranteed by national and international law. In the countries with written constitutions, there would be no division of opinion that the primary responsibility rests on the state to guarantee the civic right expressed by the international instruments to which the state or constitution has made commitment. But the Constitution has provided a responsibility to this court as the guardian of the constitution and a watchdog of civil rights, when other organs of the state can not fulfill their responsibility; it seems that this court can issue appropriate order to make them fulfill their responsibilities.

Regarding Question No. 3

Evaluating the outline of the efforts made so far with respect to making public the condition of disappeared persons and sufficiency [of such efforts] and also considering what more steps would be necessary and appropriate in this regard, learned advocates Mr.Hari Krishna Karki and Mr.Hari Phuyal submitted that the fact that the Baman Prashad Neupane Committee could not carry out good probe appropriately is shown from the very limitations stated in the report itself. The formation, function, powers and duties of the Commission to be formed pursuant to the Commission of Inquiry Act, 2026 rests upon the discretion of the government, and therefore, a Commission constituted pursuant to this Act can not carry out effective investigation in this respect. And thus, it calls for a separate Act that confirms to international standard and a high level Commission should be formed pursuant to the same Act, they argued. Also appearing on behalf

¹⁹ David Feldman, *Civil Liberties and Human Rights in England and Wales* 2nd ed, Oxford University.

of the petitioners learned advocates Mr Milan Kumar Rai and Mr.Kedar Dahal submitted that the petitions now filed at the court with respect to the disappeared person are just representative ones. A separate high level judicial Commission should be constituted to probe and investigate in this matter and the jurisdiction of such Commission should not be limited to the cases filed at the court, rather it should be made capable enough to include broadly within its jurisdiction all incidents of forceful disappearance, they pleaded.

Advocate Mr Satish Krishna Kahrel further submitted that it is appropriate to entrust the recently formed DIT to determine the facts of all petitions in accordance with the procedure of 'Criteria for Commission of Inquiry on Enforced Disappearance' given by the Office of the High Commissioner for Human Rights.

Appearing as amicus curie learned senior advocate Mr Khem Narayan Dhungana submitted that a Commission constituted pursuant to the Commission of Inquiry Act can not carry out probe to inquire the truth, and therefore, appropriate alternative need to be sought therefor, and advocate Mr.Praksah Raut submitted that High Level Judicial Inquiry Committee could be established for this purpose. Appearing on behalf of the office of the Attorney General Joint Government Attorney Mr Yubaraj Subedi and Deputy Government Attorney Mr.Bharat Mani Khanal submitted that the government has realized its duty of finding out condition of disappeared persons and thereby making their condition public. As a political consensus has already been reached to establish a high level Truth and Reconciliation Commission, there is no need for this court to issue additional order requiring the formation of a Commission. From among the petitions filed at this court, the oldest one seems to be the habeas corpus petition of Rajendra Prasad Dhakal filed on 21 January 1999. Then, it seems that habeas corpus petitions were filed on behalf of several persons on several dates and a writ petition was filed on 27 July 2006 demanding the order of mandamus to make public the conditions of detainees and for taking action against the culprits. In all the abovementioned cases, the respondents have furnished written statement that they had not arrested the petitioners, nor, had they put them in custody. The content of the petitions also reveal that they had also filed application at various organizations including National Human Rights Commission. The reports received from these organizations or agencies reveal that they had tried through their own machinery for determining the condition of the detainees.

Even as the respondents furnished the written statement that the petitioners were not arrested, this court not being satisfied with such reply had asked several explanations and supplementary questions. Even as the National Human Rights Commission, in many of the cases, after reaching to the conclusion that detainees were in illegal detention and thereby asked to put the detainees into legal proceedings and take action against those responsible officials who were seen culprit. But those decisions do not seem to have been executed. This court has used several recourses for finding out the status of detainees. It seems that the eye witness who saw the detainees being arrested, the person who were said to be together in the detention and freed later and several security persons who were said to be responsible for arrest were brought to this court and their statements were recorded. In case of person stated in Writ No. 3575 this court had ordered to make an investigation through the level of a joint secretary in the Ministry of Home Affairs and submit a report to determine whether or not the person was arrested. Further, it is also seen in the file that in the same petition, the registrar of the appellate court was made to furnish a report after seeing the record of the office which had supposed to have arrested together with a field visit to determine whether or not he was arrested and also that if he was arrested, where was he transferred. However, none of these attempts have helped to determine the status of the detainee.

While the aforementioned petitions were sub-Judice in this court it is seen that the government constituted a one-member probe committee led by the joint secretary at the Ministry of Home Affairs, Mr.Baman Prashad Neupane to find out the status of the citizens disappeared by the government of Nepal. The Committee has, from various sources, produced a list 776 persons who are said to be disappeared. From among them, the condition of 102 has been determined and the condition of other 602 is said to be unknown. The name of most of the persons mentioned in the writ petitions in this court are found in the list of the persons who are stated as unknown.

The report has accepted that the task of determining the status of disappeared person is challenging as the name, surname, address, date, place and time of arrest, agency to arrest etc. are not clear and in some cases, the security agency replied that the record did not show such arrest by security agencies. It seems that the committee comprised of only one member, the procedure was short and the report was made on the basis of information given by security agencies even without making field visit, investigation and research. Since the report was prepared on the basis of the details provided by

those agencies which are alleged to have disappeared the citizens after arresting them, it is found that the report has not been able to disclose the detailed facts pertaining to disappeared persons.

The report has also not given enough evidence to support its views in case of the persons whose status is said to be determined or detail explanation in case of those whose status is said to be unknown. Considering the limitation of the Committee and gravity of the issue, the report has made a recommendation that it would be appropriate to legally summon concerned persons, record their statement, collect evidence and carry out investigation through field visits (recommendation section of the report, stated in annex 3)²⁰

But, no initiations have been taken towards additional investigation by the government for implementing the report. It is also found that the Office of the High Commissioner for Human Rights in Nepal has also carried out an investigation on the contention that several persons were detained for a long time in Bhairabnath and Yuddhabhairab camps, Maharajgunj and were disappeared therefrom; and made the report of the same public. The report states name of 49 persons as being disappeared and also states that investigation was going on with respect to other persons who were said to be disappeared. The report has recommended for a reliable, competent and independent investigation concerning such persons and for determining the responsibility of the army unit involved in violation of human rights and bringing those who are found to be guilty of criminal liability to civilian court. The report further states that they should be suspended till such investigation is carried out, should not be proposed in peace keeping operations of the United Nations, should ensure that witness and former detainees are free from threat and intimidation and make public the conclusion of the investigation to be undertaken. However, it does not seem that government of Nepal has taken any further action or investigation in this regard.

Besides, it is also seen from the submission of the National Human Rights Commission made to this court that the Commission had found out serious violation of Human Rights taking place with respect to persons stated in the petition and other similar incidence of disappearance, and thereby, recommended the government to take necessary action against concerned responsible officials and also make

²⁰ "The Supreme Court shall have power to issue direction or orders or writs, including writs in the nature of habeas corpus, mandamus, prohibition, quo-warranto and certiorari, whichever may be appropriate, for the enforcement of any of the rights conferred by this part"

public the status of the detainees. The Commission has also written to the Government to implement the decision of the Commission. However, it does not seem that any initiative of additional research is undertaken or action taken by the Government for determining the status of persons alleged to have been disappeared.

In course of determining the status of detainees, this court had, through the formation of a DIT, ordered to find out real fact with respect to Writ Nos. 3575, 100, 104 and 632 whether or not the persons stated in the petition are arrested and [required the DIT] to submit an opinion as to what would be proper to do with respect to other cases of similar nature; and the DIT has submitted the report after conducting inquiry. Even as the status of most of the persons stated in the petition has remained unknown and the aforementioned Committee including human rights related institutions and organizations have recommended additional investigation on the same, the responsibility to carry out investigation fundamentally rests on the Executive. In the situation that the Executive had not taken any initiative to carry out such investigation till date, this court carried out investigation of some representative cases at its own initiatives. Owing to reasons including the jurisdiction of the court and limitation of the resources, it is not possible for this court to carry out separate investigation with respect to all the persons stated in the petitions. It is found, however, on the ground of the conclusion of the report of the investigation carried out on the cases it is necessary that additional investigation should be carried out in totality by establishing a mechanism on matters relating to the persons who are alleged to have been disappeared.

In this way, even as the government of Nepal has taken limited initiation with respect to disappeared persons by constituting the Baman Prashan Neupane Committee, that the report of the Committee itself has concluded on the need of additional research on disappeared person, that National Human Rights Commission and the Office of the High Commissioner for Human Rights have recommended additional investigation in this matter which has not been implemented till date and that it is also not possible for this court to carry out investigation with respect to all cases of disappearance, and therefore, it does not seem that the efforts made till date with this respect on behalf of the government are enough and effective. It is imperative to carry out effective investigation on behalf of the state itself to determine the status of the persons stated in the petition and other citizens who were disappeared in similar manner during the time of conflict.

Regarding Question No. 4

It has been portrayed from the deliberation made in the above mentioned questions that there has not been enough and effective efforts on behalf of the state for the purpose of determining and making public the status of the forcefully disappeared persons. The political will power is certainly necessary for the purpose of determining and making public the status of the forcefully disappeared persons and taking action against the culprit and providing relief to the victims; it is equally necessary to have a legal mechanism in place. The Interim Constitution, 2007 that has come as the product of political consensus in course of transforming the past conflict to peaceful settlement, has rested the responsibility on the state to establish a Probe Commission with respect to the persons disappeared in the past and to provide relief to the families of victim.

In order for the state to put into action the commitments made through political consensus and constitution, effective legal and institutional mechanisms are necessary. Concerning the probe of the disappeared citizens, the Government of Nepal has, through its executive order, constituted a one man Committee of Baman Prasad Neupane and this court constituted DIT, but however, it seems that a Probe Commission to investigate a matter of public importance could be constituted only in accordance with the Commission of Inquiry Act, 1969. It seems in accordance with the Act that the formation, functions, power and duties of the Probe Commission will be as prescribed by the Government of Nepal through a notification in the Nepal Gazette. Even though the Act has laid down grounds for the formation of a Probe Commission it has not expressly mentioned the procedure for the formation of the Commission, nor has it expressly mentioned the grounds for competence and neutrality of the Commission, or provided for necessary jurisdiction, or guaranteed the representation of concerned parties in the formation of the Commission. It has also not guaranteed the security of victim, witness, plaintiff, legal practitioner and investigator. Given that the act of determining the status of disappeared person is internationally accepted as an act to be continuously pursued, the probe commission constituted under the Commission of Inquiry Act cannot embrace such a norm. By the very nature of the act of disappearance, whereas it is necessary that the families and relatives of the disappeared person are provided with the concluding decision of the probe and it is also imperative that the report is made public; the Commission of Inquiry Act does not seem to be ensuring this. The task of finding out real situation of the disappeared person during the time of conflict is certainly a complex and challenging task. There would be little possibility to get success in

such act unless there are clear and effective legal provisions. The Commission of Inquiry Act that seems to have been issued only for establishing Probe Commission on the matter of public importance in normal situation. The Act does not seem to have imagined to include within its sweep special types of incidents arising during the time of conflict. This Act was not enacted to include such kinds of events. After studying the Act in totality, it seems to us that there are not reliable grounds to believe that an Inquiry Commission constituted in accordance with this Act to find out the status of disappeared citizens would be capable enough to carry out effective probe.

Even as some limited provisions are found in Civil Liberties Act, 1955 and Torture Compensation Act, 1996 with respect to obtaining remedy by the person who has become victim of state machinery, unless the status of the disappeared person is determined, the victim party can not receive effective remedy pursuant to the aforementioned Acts; and no separate legal mechanism is seen to exist to address matters relating to disappearance. The act of forceful disappearance deprives of any person the right to equal protection of law. His personal liberties are snatched away and minimum values of humanity are violated. Such act brings all his personal liberties to an end at the very point itself. Therefore, any state which has accepted the obligation for universal respect, compliance and promotion of human rights and fundamental freedom need to be serious and sensitive to such incidents of human rights violation. It is urgent for the state to become additionally vigilant as impunity may flourish during the time of conflict. In the situation where there is no separate law in Nepal to especially address disappearance as deliberated hereinabove, it seems to us that a special law having all major provisions on disappearance including inquiry into the incidents of forced disappearance, determining the status of disappeared person and making them public, taking action against those who are found guilty and providing relief to the victim is necessary. It is also the responsibility of the state to create an environment of trust and respect by the victims to the justice system of the state and the feeling among state officials who are guilty that they would not enjoy any immunity from the liability that is created out of their action. This is not a separate and special responsibility of the state rather it is a responsibility in concord with the commitment of the state towards basic fundamental rights and human rights. This bench has reached the conclusion that in order to fulfill this responsibility the state needs to make such especial law.

The Interim Constitution of Nepal, 2007 has provided exclusive power to the Legislature-Parliament as to whether a particular law is to be

made or not. The Legislature-Parliament is competent enough to make law in this manner and it is expected that highest level of prudence will, for the purpose of fulfilling the responsibility vested in it by the Constitution, be used while making law in this manner. This Bench takes the view to suggest that such a law on this subject is needed is not to interfere with or encroach upon the jurisdiction of the Legislature-Parliament, rather it should be taken as a legitimate expression of judicial concern to make additionally effective law in view of the internationally established standards for the protection of civil liberties for which the state has made commitment. Thus, it seems to us that while enacting the law as mentioned above the state should take note of the commitments made concerning disappeared person expressed in the constitution, fundamental rights and freedom of citizens, international instruments ratified by the state concerning human rights and humanitarian law, and take cognizance of several international instruments accepted by international community such as the Charter of the United Nations, the Universal Declaration of Human Rights, Declaration Concerning the Protection of Persons Against Forceful Disappearance, 1992 and the International Convention for the Protection of All Persons from Enforced Disappearance, 2006 as standard, and desirably make law in concordance with the same.

Regarding Question No. 5

The writ of habeas corpus filed at this court on behalf of persons including Bihari Lal Godia with Writ No. 162 states that the families of the disappeared persons were dependent on them and they had to bear additional expenses for their search and legal proceedings. As the members of family had to undergo mental torture due to their disappearance, and therefore, [they have] demanded in the petition that their family members including their minor children should be provided with compensation. This court had inquired with the counsels whether or not it is appropriate to order for any interim relief in the form of compensation or similar other relief from this very petition which has the main claim of freeing several persons stated in the petitions from illegal detention through the order of habeas corpus. Appearing on behalf of the petitioner learned advocate Mr Kedar Dahal submitted that the petitioners have lost member of their family and have borne additional physical, mental and economic costs during their search. The dilatory legal proceeding has further increased the economic expenses of the petitioners whereas the state is spending from the state coffer and defending the culprits who are supposed to be subject to action. Compensation and relief are necessary to mitigate mental and economic grief of the families and also to guarantee easy access to justice, he pleaded.

Appearing on behalf of the petitioners learned advocate Mr Hari Krishna Karki submitted that the Supreme Court of India has, by using the provision of Article 32 of the Indian Constitution that empowers the Supreme Court to render necessary order, ordered compensation in hundreds of such cases. As the Article 88 (2) of the Constitution of the Kingdom of Nepal, 1990 and Article 107(2) of the Interim Constitution, 2007 state that the Supreme Court may render appropriate order in the cases including habeas corpus to provide full justice, this court can render necessary order to provide compensation pursuant to the same, he pleaded. Appearing on behalf of the petitioner learned advocate Mr Hari Phuyal submitted that it is an established fact that the persons stated in the petition are disappeared. Different regional courts related to human rights have made decisions to provide compensation to the victims of forceful disappearance. This court can take those decisions as examples. As the Convention on Protection of Persons from Enforced Disappearance has provided for provisions of compensation and interim recourses, this court by evaluating emotional attachment of the families, economic expenses, productivity lost due to the time given for search and loss caused to the family and society can order for appropriate compensation, he pleaded. Appearing on behalf of the respondents Deputy Government Attorney and Joint Government Attorney of the Office of the Attorney General submitted that some of the persons who were said to be disappeared have also come to public. It can not be concluded on the basis of presumption that enforced disappearance has taken place and on the basis of such presumption this court can not order any compensation. The government has realized its duty towards citizens. As the government is active to provide appropriate remedy through its own machinery, there is no need to order compensation, they pleaded. After listening to the submissions of the aforementioned learned advocates, as we consider whether or not the order of compensation can be issued through these petitions, we find from the deliberation of above mentioned question No. 4 that there is no separate law existing for probing the status of disappeared persons and providing compensation and other remedies to the victim party, however, it can not be denied that compensation and relief to the victim party could be taken as one of the aspects of other appropriate remedy to be provided in case of violation of civil liberties.

It has been established from the various questions deliberated heretofore that the act of disappearance violates civil liberties of persons including the right to life as well as several fundamental rights provided by the constitution. Article 88(2) pursuant to Article 23 of the Constitution of the kingdom of Nepal, 1990 and Article 107(2)

pursuant to Article 32 of the Interim Constitution, 2007 have guaranteed remedy in case of violation of fundamental rights provided by the Constitution. Article 88(2) of the previous Constitution and Article 107(2) of the present Constitution states, "The Supreme Court shall, for the enforcement of the fundamental rights conferred by this Constitution, for the enforcement of any other legal right for which no other remedy has been provided or for which the remedy even though provided appears to be inadequate or ineffective, or for the settlement of any constitutional or legal question involved in any dispute of public interest or concern, have the extra ordinary power to issue necessary and appropriate orders to enforce such rights or settle the dispute. For these purposes, the Supreme Court may, with a view to imparting full justice and providing the appropriate remedy, issue appropriate orders and writs including the writs of *habeas corpus*, *mandamus*, *certiorari*, *prohibition* and *quo- warranto*." It seems from the above mentioned provisions of the Constitution that an inherent power is vested in this court to issue, for the purpose of effective protection of basic fundamental rights of the people through aforementioned provisions of the constitution, necessary order to enforce prevailing right of the people. It is also a constitutional responsibility of this court to issue such type of order.

Similarly, Article 100 of the constitution has empowered this court to exercise judicial power pursuant to the constitution, other laws and recognized principles of justice and has also provided that this court shall remain committed to the constitution abiding by the values of independent judiciary and thereby adopting the spirit of democracy and people's movement. As the term "spirit of people's movement" is used in a political sense, it is not easy to derive its legal meaning and consequences. The present constitution which has been issued on behalf of the people as the expression of the decisions of the important political forces which made a call and participated in the people's movement should, in totality, be considered as embodying the spirit of the people's movement. If the spirit of the people's movement is tried to be understood otherwise than the structure and spirit of this constitution, this would contradict the very fact that the constitution has declared itself as the fundamental law of the land. The structure of present constitution and the principles enshrined in it can throw enough light on the spirit, values and assumptions of the constitution. It is not possible for anyone bound with constitutional system to decipher the spirit of the peoples' movement beyond the constitution, and therefore, it is even more impossible for the judiciary. If any agency has carried out any act pursuant to this constitution and laws made hereunder, it can not be concluded in any way whatsoever

that the act is against the spirit of the peoples' movement. Therefore, the spirit of the peoples' movement should be understood in the relativity of constitutional system and in the context of legal consequences.

Human rights, peace and justice are the foundation of democracy. There had been people's movement in the past for the purpose of peaceful transformation of conflict and establishment of a just society and the constitution issued thereafter has made commitment to the same values and ideals. It is in fact an act of paying respect to the spirit of the peoples' movement to implement the provisions of the constitution that provide for a proper assessment of the loss of lives and property that occurred during the time of conflict and bring the culprits to justice and provide appropriate remedy including reparation to the victims. Considering the above mentioned constitutional provisions, it does not seem to us that this court can not order for appropriate remedy and reparation to the petitioners who claim that persons mentioned therein have remained unknown in the course of conflict.

Similar to our constitutional provisions, Article 32(2) of the Indian constitution also empowers the Supreme Court of India to render appropriate remedy for effective protection of fundamental rights provided by the constitution²¹ By applying and interpreting the same provision, it is found that in *Rudal Sah v. Union of India*, discussed above in question no. 2, the Indian Supreme Court decided to provide compensation to Rudal Sah through the petition of habeas corpus as it was found that he was in illegal detention and it was also held that the decision of the Supreme Court to provide compensation would not have any adverse effect on the right of the petitioner to claim compensation under ordinary jurisdiction.

Similarly, it seems in the case of *Smt. Postasangbom Ningol Thokchom and Others v. General Officer Commanding and Others*²⁶ where three people including the sons of petitioners were arrested by the Police only one of them was released and other two were disappeared, and it seems that a writ of habeas corpus was filed on their behalf. As the respondent furnished written statement claiming that the detainees were freed from the detention, the Supreme Court of India constituted a probe committee led by a judge of the concerned district court to inquire into the case of disappeared persons. The committee had, basing on the statement given by former

²¹ WWW.jodis.nic.in/supremecourt/website visited on 28 may 2007.

detainees and other evidence, had submitted the report stating that there was lack of evidence of the release of the detainees. The Supreme Court of India had, basing also on the report, took the view that where private law does not provide for compensation, the Court can order compensation while the proceeding on a case pursuant to Article 32 of the constitution for the purpose of doing full justice. It is found in the case that the court had in addition to ensuring interim resources had also ordered to provide compensation to the victims. In the case of *Nilabati Behera v. State of Orissa*²² which has similar facts, the Supreme Court of India has made interpretation of Article 32 of the Constitution and provided compensation to the victim. A reference has already been made, while deliberating on question No. 2 above, to the decisions by the Inter-American Court of Human Rights in the case of *Velasquez Rodriguez v. Honduras*, and *Trujillo Oroja V. Bolivia* and the decision by the European Court of Human Rights in the case of *Kurt V. Turkey* where the court had ordered for compensation against enforced disappearance.

Article 24(2) of the International Convention for the Protection of all Persons from Enforced Disappearance, 2006 which has been accepted by international community has imposed responsibility on each state party to ensure in its legal system measures for reparation, prompt, fair, and adequate compensation to the victims of enforced disappearance.²³ Similar provision is found in Article 19 of the Declaration to provide protection to all disappeared persons, accepted by the General Assembly of the United Nations through proposal No.47/133 in 18 December 1992.²⁴ It seems that the UN Working Group on Enforced or Involuntary Disappearance, while interpreting the Article, has recommended that while providing monetary compensation to the victims of enforced disappearance [factors such as] physical or mental loss, lost opportunities, loss of property, loss of income, effect on prestige or dignity and expenditure incurred in hiring expert o

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²² AIR (1993) 2 SCC 746

²³ Each state Party shall ensure in its legal system that the victim of enforced disappearance have the right to obtain reparation and prompt, fair, and adequate compensation.

²⁴ The victims of acts of enforced disappearance and their family shall obtain redress and shall have the right to adequate compensation, including the means for as complete a rehabilitation as possible. In the event of death of the victim as a result of an act of enforced disappearance, their dependts shall also be entitled top compensation.

Assembly of the United Nations²⁵, provides that persons who are victim of serious violation of human rights and international humanitarian law should have equal and effective access to justice, for the loss to be borne, the victim should get prompt, effective and adequate reparation; and has proposed that the victim should have access to the information of the same; and, as Nepal is also a member of the United Nations, there does not seem a condition for her to remain indifferent towards such commitments.

It seems that the Human Rights Committee of the United Nations while interpreting Article 2 and 9 of the Covenant on Civil and Political Rights to which Nepal is a party, has mentioned that the state should, in addition to other remedies, provide compensation in situation of violation of rights of persons and should also adopt interim measures as immediate steps²⁶ It has been accepted that as enforced disappearance.

Basic principles and Guidelines on the Right to a Remedy and Reparation for Victims of Gross Violation of International Human Rights and Law and Serious Violation of International Humanitarian Law during the time of conflict not only affects the disappeared person rather the families and relatives of the disappeared persons would also be victim of the same, and therefore, provision should be made that the relief and compensation to be provided by the state goes to the disappeared person as well as their kith and kin²⁷

In this way, on the basis of the constitutional provision of Nepal, decisions of foreign courts and human rights related regional courts, international instruments related to human rights to which Nepal is a party as well as the documents and proposals issued by the United Nations and international community; it is hereby established that the state has the obligation to provide immediate relief and adequate compensation to the victims of serious violation of civil as well as human rights. On the grounds deliberated here above it is found that the persons stated in the petitions were disappeared during the time of conflict and it has been established that the state has special responsibility towards such persons. It seems, now therefore, appropriate to provide an immediate relief of interim nature to the

²⁵ www.hri.ca/fortherecord 1998/ vol 11/ disappearances.htm website visited on 2064/02/13

²⁶ Resolution No: 60/147:

²⁷ General Comment No: 31 (80). The Nature of General Legal Obligation Imposed on State Parties to the Covenant adopted on 29 March, 2004 cited from www.unhchr.ch/tbs/doc.nsf visited on 2064/2/13.

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victims considering the physical and mental torture as well as economic loss that the families of the victim have had to undergo during their search and taking recourse to the process for obtaining justice.

Regarding Question No. 6

It is seen concerning various questions here above that on the basis of the study report commissioned till date by the National Human Rights Commission, Office of the High Commissioner for Human Rights in Nepal, and the report of the investigation team constituted by this court under the co-ordination of the judge of appellate court especially in case of four persons including Rajendra Dhakal and also from the written statement of the respondent regarding the persons, that the status of most of the persons stated in the petitions as disappeared is unknown. It is conclusively seen from the report of the investigation team constituted by this court concerning Chakra Bahadur Katuwal that he had died in the custody, and concerning others Rajendera Prasad Dhakal, Bipin Bhandari and Dil Bahadur Rai that their status up to the point of arrest by the security has been determined, but however, the status then after has not been clarified till date. It is a general responsibility of the state to protect and keep vigilance on its own citizen. This responsibility of providing security and protection of their right would be further increased in the situation when the arrest is made with the involvement of state's own instrumentalities. Among the petitions of various dates considered under this decision, the first one seems to have been filed in 1999, even after filing the petitions and being asked show cause no serious efforts are found to have been made from the government level such as commissioning search, improving or strengthening the legal system, providing relief and remedy to the victim, managing and making the investigation process effective and systematic etc. with regard to persons who are in the petition stated to have been disappeared. It does not seem that the report and recommendations given by the National Human Rights Commission and the Office of the High Commissioner for Human Rights have also attracted serious attention. It is not found that the decision of this court in the case of Bhim Prakash Oli is considered for solving the problem pursuant to the status of conflict victim. Even as the Ministry of Home has internally conducted a process of probe at the level of joint secretary, it is not found that necessary efforts were made to make the report independent and reliable. It is not found that matters to be done pursuant to the report were completed. Even as different Articles of the present Interim Constitution has made commitment to address this problem even by fixing the date, that is also not done till date. As

deliberated here above in this way, the task including the search of disappeared persons, giving protection, providing remedy and ending impunity by terming the act of disappearance as an act of serious violation of human rights remains to be an indivisible responsibility of the state. The matter should have attained first priority in course of solving the conflict. However, this problem has not been prioritized appropriately. This shows that the state has not exerted a sense of security to the society at the level that is supposed to be done by guaranteeing the security to life and property of the disappeared persons and their families. Among the persons stated in the petition except for the person whose death is proved, the status of others remains unknown as witnessed from the written statement and probe, and, the questions including whether they are alive or not, if alive in which condition they are etcetera remain unresolved. Continuation of such an unresolved situation does not seem to be a defensible matter for the state. As the number of disappeared persons seems to be huge, and as it has remained a serious question, rather than limiting the problem as a matter for the issuance or non-issuance of habeas corpus as claimed by the petitioner, it seems that legal, structural and remedial aspects in various stages need to be holistically considered keeping in mind these petitions and other similar petitions that might come. While there is no relevance of issuing an order of habeas corpus with respect to Khadga Bahadur Karki who during the discussion of the case was said to be dead as the condition of other petitioners also remains unknown even today, it does not seem to us that the writ of habeas corpus could be issued in respect of them. Petitioners including Lekh Nath Neupane have, among other demanded that a writ of mandamus be issued to make the status of the persons stated in the writ petition public. Further, in the additional submission, interim relief and compensation have also been demanded. A directive order in the name of Government of Nepal has also been sought to improve legal and legislative aspects to probe the case such persons and provide remedy therefor. Considering in the light of the submissions also, subject to the petitioners Chakra Bahadur Katuwal, Rajendra Prasad Dhakal, Dil Bahadur Rai and Bipin Bhandari for whom the investigation team of this court had carried out research as well as those for whom such investigation is yet to be carried out it seems expedient to provide for special measures, and therefore, we hereby decide to issue the following orders in the name of the respondent Government of Nepal to address the same by providing for the following with respect to the demands of the petitioners.

a) Among the persons said to be disappeared, it is seen from the report of the DIT constituted by this court that Chakra Bahadur Katuwal was died in the custody due to torture, and subject to others Rajendra Prasad Dhakal, Bipin Bhandari and Dil Bahadur Rai the initial point of the arrest by the security person has been determined as stated here above, but however, the condition then after has not been clarified till date. Thus in case of Chakra Bahadur Katuwal who died in custody in this manner, now as it is necessary that due process of prosecution has to be adopted pursuant to prevalent laws a writ of mandamus is deemed to be issued subject to him in the name of respondent Ministry of Home as well as the Government of Nepal ordering that and any agency, official or employee and any other person who were involved in the process in some way or other be investigated on their crime, and that process of departmental action and punishment subject to concerned office chief and employees be initiated and finalized. This order is also issued to render necessary order to the concerned agency or employees thereunder that seem to be necessary in course of implementation of the same.

In case of Rajendra Dhakal, Bipin Bhandari and Dil Bahadur Rai also who are identified by the judicial investigation team that they were arrested by security force but their status remained as unknown till date, it is seen that officials or employees involved in the process should be prosecuted on the basis of additional research to be completed subject to them and thereby justice be provided to the victims. But in order to launch immediate prosecution sufficient measures such as defining the crime of disappearance and sanctioning the same and providing compensation should be ensured absent of which there is no possibility of obtaining full justice, now therefore, subject to them an order is issued in the name of the respondent that necessary action be taken for prosecuting the erstwhile chief of security agency as well as other employees who were responsible and that concerned person and victims be provided compensation after the law pursuant to Section (B) hereunder is made and also completing additional necessary investigation as suggested by the report of the DIT constituted by this court.

Further, as it has been the conclusion of the DIT that they were arrested by the security force and taken to a certain point and thereafter their status remained to be unknown, as it is not appropriate to let the responsible persons remain in impunity and unaccountable, a writ of mandamus is hereby issued in the name of respondents including Ministry of Home as well as the Government of Nepal to take

immediate departmental action against the chief and employees who are identified as responsible by the report of DIT and other necessary probe to done pursuant to the same.

b) This court has taken note of the petitions by Lekhnath Neupane praying for mandamus, and other cases of habeas corpus where additional investigation is yet to be carried out, also similar demands of other prospective petitioners in similar circumstances who may come up with the claim of disappearance and that in case of such persons also the petitioners have prayed for special provisions.

The written statement furnished subject to the persons who are said to be disappeared did not help to determine their status and a formal investigation has not been undertaken from anywhere, in a situation where investigation remains yet to be undertaken it is not easy to make certain opinion on the status of these person. Further, in the situation where legal, structural and remedial measures are not enough to especially address the effects caused to the disappeared persons and their families, it does not seem possible that the prevailing legal structure is enough to address the problems. Therefore, a directive order is hereby issued in the name of the respondent Government of Nepal to address their problems by making the provisions as mentioned hereunder.

i. It is found that there is lack of law in our country with respect to addressing the series of disappearance during the time of conflict and at other times also on matters pertaining to disappearance such as arrest, detention, hostage taking, care to be taken during the time of detention and measures related thereto, the rights of the victims, the remedies available to them and their families, the provisions for effective investigation on matters pertaining to them etcetera. Even though there is an Act for carrying out probe on a matter of public importance, as this Act is not made for the inquiry on matter pertaining to disappearance, it is seen that in the absence of law, no real, effective and practical investigation can be carried out. Further, under the existing criminal law also no provision is found addressing legal and institutional questions relating to this matter. Therefore, for the purpose of addressing this problem effectively, it is felt necessary to make a law with priority by including the provisions that the act of disappearance should be maintained as offence, defining the act of disappearance

pursuant to the definition as stated in the International Convention for the Protection of All Persons from Enforced Disappearance, 2006, incorporating provisions such as the right of detainees, responsibility of those who keep in detention, determination of the place of detention and the relationship and access of the lawyer and families to the detainees, the right of the detainees to be informed of the reason of detention, provision regarding judicial remedy of the detainees, the right to remedy of the detainee who is put in illegal detention or concerned persons and families who have become victim of illegal detention or disappearance including the right to compensation, a flexible provision of limitation that does not adversely affect investigation process, complaint hearing agency and its liability with respect to illegal detention or disappearance, provision for the creation of a formal detention center and the provision for putting only in such detention center while detaining people, provision of humane treatment while in detention, descriptions such as time of the detention while putting him in detention, condition, name, title, address and other relevant details of the person who ordered detention, the liability of making arrangement pursuant to the same while transferring the detainee, the right of the families to know all conditions of the detainee and development of the process to make easy access of the same, provision of the terms that really reflects the condition of being released at the time of being released from the detention, the provisions including the record keeping regarding his/her mental and physical condition. It is also equally important to attract the attention towards the international standard that no pardon can be granted with respect to persons who are prosecuted for allegedly being involved in the act of disappearance and the person who is convicted for the same and for making appropriate provision relating thereto. For this purpose, it is expedient to adopt the International Convention for the Protection of all Persons from Enforced Disappearance as guideline.

- ii. For the purpose of implementation of the Act made pursuant to here above, for the purpose of protection of the persons forcefully disappeared, it is also expedient to provide for an arrangement in the same Act or separately for a separate probe commission with respect to such disappeared persons. Given that separate powers, skills and procedures are deemed necessary for probing such kinds of problems,

it is expedient to refer to the Criteria for Commission on Enforced Disappearance developed under the auspices of the United Nations Office of the High Commission for Human Rights as guidelines for determining criteria. Under this, in addition to other matters, it is expedient to include provisions such as that all related incidents are inquired into, that jurisdiction of the Commission is clarified, that the inquiry does not replace the jurisdiction of the court, that the persons nominated for such commission are appropriate and competent for the work, that provisions for terms of office and conditions of service and facilities are provided for the same, that representation of women or other caste or communities are provided, that the powers, duties and functions of the Commission are prescribed in the Act itself, that considering the nature of the problem probe could be initiated on the basis of the information received from any source.

It is necessary to have provisions such as continuous probe until the status is made clear, provision of security to victims, witness, plaintiff, advocate and investigator so as to solicit their continuous assistance in the probe, provision for the right and opportunities to the victims for recording their statements and raising their concerns, and provisions for keeping their statements confidential if so called for, the power of the commission to inspect necessary place, office etc question all persons who it deems necessary to inquire. It is also necessary to ensure the availability of means and resource necessary for such Commission to accomplish its performance. It is expedient to consider all these matters while enacting the law.

It can be expected that while enacting law in a wise manner under legislative power entrusted by sovereign Nepali people if the above mentioned things are given expedient scope the people facing problems will be benefited to a certain extent in one or other way.

- c) A directive order is hereby issued in the name of respondents government of Nepal, Ministry of Home Affairs and the Office of the Attorney General to take decisions to enact an Act for the protection of the disappeared person, making provision for Inquiry Commission in the Act for inquiring into the causes of their disappearance, and their status by forming a powerful commission to carry out in-depth and comprehensive inquiry of the said persons and thereby submit the report of the same, and thus accomplish a criminal investigation on the basis of the report and

thereby decide to prosecute concerned persons on the basis of the propriety and necessity.

- d) It will certainly take a long time to complete the stages as mentioned here above such as making law, constituting probe commission, taking report from the same and launching prosecution on that basis. But, considering the complexities of the problem and the imperative to resolve it at the earliest, the solution of the problem would be facilitated if only the Executive and Legislature put this matter on high priority. As it is the responsibility of all organs of the state to protect the disappeared persons and provide them justice, we therefore, take the view that it is a natural and valid in connection with the case to make expectation and be confident about playing positive role by responsible organs for a work delineated by the constitution. It seems necessary in this connection that the government of Nepal takes special initiation to expedite the process of making law.

As it seems that the persons stated in the petitions and their families can feel the sense of justice only when the above mentioned stages are completed it is imperative to put forward this process with expedient priority.

- e) As stated in section (d) here above, whereas the petitioners of this case have been demanding various kinds of remedies from this court for a long time (several since 1999) and waiting for the same, it is likely to take some more time to provide them effective remedy by completing the above mentioned stages. In addition to the effect that the concerned person has to bear due to disappearance, the family members have to continuously face several social, economic and mental suffering due to the disappearance of their own. If factors such as the time spent for the search of disappeared person, labor and expenditure, peace of mind lost in this course and burden borne therefor and the loss of labor productivity and security due to the absence of disappeared person are assessed far reaching social and economic results would surface. In the one hand the state has not been able to make public the status of the persons who are said to be disappeared while on the other the families have been continuously bearing the loss and liability in connection to the same, and as, the pain created out of this will continue until the status of the person who are said to be disappeared becomes decisively final, and hence it seems essential to address this problem in some way or other. The demands of the

petitioners can be appropriately addressed and their final status clarified in the course of implementation after the enforcement of the Act as mentioned here above. In other words, if the status of concerned person is clarified, and the culprit is also determined, he would get the punishment determined by the law and if the petitioner is entitled compensation the petitioner may receive it as per the procedures determined by the same law. However, it does not seem possible for the family members who are searching for their loved ones to travel the long road to justice with their own resources and with a disturbed mind. This bench is confident that immediate relief even if it is partial should be provided in order to save them from discarding the tiring path of justice owing to frustration, to provide support and cooperation in adopting the legitimate path of searching their loved ones.

Even as it is not possible to provide specific legal remedy like punishment or compensation in the situation when the real condition of detainee is not clarified, it hereby seems expedient to provide relief as a grant even though in symbolic form in view of the situation at the time of deciding this case, with the limited purpose of assisting the victim family to bear the liability undertaken by them while seeking access to justice on condition that it will not affect the amount and nature of the remedy to be provided as per the law as to be found by the investigation later. The incident of violation of right to freedom and security of life is not a matter to be compensated in monetary and economic terms.

However, this court has, in view of the responsibility of the state to provide assistance to the victim even in smallest manner though, and that the rights would be meaningless in the absence of effective remedy, and also for respecting the right of victim family to seek remedy has positively considered the need of providing immediate relief of interim nature.

In this connection, this order is hereby issued in the name of the Government of Nepal as well as the Cabinet Secretariat pursuant to Article 100 and 107(2) of the Interim Constitution, 2007 to provide immediate relief of two hundred thousand rupees subject to the nearest claimant of Chakra Bahadur Shahi who is said to be dead and whose death is verified by the investigation of the DIT constituted by the order of this court and two hundred thousand rupees each subject to the families of those who are declared dead; one hundred fifty

thousand rupees each subject to Rajendra Prasad Dhakal, Bipin Bhandari and Dil Bahadur Rai in whose case the probe of the DIT constituted by this court has concluded that they were arrested by security forces and were disappeared; and one hundred thousand rupees each subject to remaining other persons stated in the petition whose status has not been clarified.

Further, a directive order is hereby issued in the name of the Government of Nepal to frame and implement appropriate relief package including employment without any adverse effect whatsoever to matters mentioned here above, and considering the status of the victims till date and also the loss and difficulties that might have to be continuously borne due to the cause of disappearance. Be the notice of this order sent to the Government of Nepal and the secretariat of the Council of Minister through the Office of the Attorney General for its implementation. This bench wishes to extend special thanks to the National Human Rights Commission and the Office of the High Commissioner for Human Rights which have cooperated this court in course of the deciding and proceeding of the cases that are decided today by providing details of the reports of their investigation with respect to the petitions which is decided today, the Supreme Court Detainees Investigation Team and Hon. Lokendra Mallik, Joint Government Attorney Mr.Saroj Gautam and advocate Mr Govinda Bandi who were associated with it as well as Nepal Bar Association and Supreme Court Bar Association which cooperated the court by sending lawyers as *amicus curie*, legal practitioners who were present during the hearing, Assistant Secretaries Mr.Prakash Kharel, and Mr.Nahakul Subedi of the supreme court who have rendered especial cooperation to this court by conducting research and the agencies and persons who cooperated during the proceeding of the petitions deserve special thanks from this court.

I concur the decision.

Justice Khil Raj Regmi

Done on 18th Jetha 2064 (1st June, 2007)

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If a civilian is killed by the army, the military Court shall not have jurisdiction to try the case.

**Supreme Court, Division Bench
Hon'ble Justice Meen Bahadur Rayamajhi
Hon'ble Justice Ram Prasad Shrestha**

Order

Writ No. 0641 of the year 2063

Sub: Certiorari.

Petitioner: Devi Sunar, aged 36, a resident of Kharelthok VDC Ward No. 6, District Kavrepalanchowk

Vs.

Respondents: District Police Office, Kavrepalanchowk, Dhulikhel, et.al.

- **The apex court further observed that after filing of the FIR against the Army officials working at the Army camp Panchkhal namely, Lieutenant Colonel Babi Khatri, Captain Sunil Adhikari, Major Amrit Pun and Major Niranjana alleging them to have committed the murder of an innocent minor girl after taking her into illegal detention seeking punishment against them in accordance with Sections 1 and 13 (3) of the Chapter on homicide of the National Code and in view of the fact that the offence of homicide was included in Schedule 1 of the State Cases Act, 2049, the respondent District Police Office Kavrepalanchowk should have forwarded the case file to the District Government Attorney Office Kavrepalanchowk with its findings pursuant to Section 17 of the aforesaid Act stating whether the accused should be prosecuted and after receiving the case file the Government Attorney should have made a decision, after going through the case file, whether the charge sheet should be filed in the court, and in case there was found ground for going ahead with the prosecution as per Section 18 of the aforesaid Act, the Government**

Attorney should have prepared the charge sheet and filed it in the court on time.

- **It was a legal duty of the District Police Office to make effective investigation about an alleged crime in accordance with the provisions made by the State Cases Act, 2049, and to recommend for filing the charge sheet as per the law related to the particular offence, and if there was no ground for filing the case, to adopt the procedure as mentioned in the relevant Act. Besides, as the allegation about the commission of the crime of homicide by some responsible officers of the Nepal Army was extremely sensitive in itself such an allegation should have been investigated with much promptness and in a responsible and effective manner.**
- **In view of the fact that it has been clear from the observation made on page 9 of the available copy of the verdict delivered by the Military Court on Bhadra 23, 2062 that the death of Maina Sunuwar had been caused by a wrong procedure and technique adopted by the Nepal Army in course of her interrogation due to its negligence, over enthusiasm and irrationality it was in the fitness of things to conduct investigation about the incident of murder, no matter whose official was behind that murder, to find out whether or not the death had occurred as a result of any criminal activity and whether or not there was merit in the case for filing the charge sheet. But instead of filing the charge sheet in accordance with the provisions of the State Cases Act, 2049 if there was merit in the case for going ahead with the act of prosecution it appeared from the facts of the case that even after lapse of such a considerable period of time no effective investigation had been made in connection with the FIR lodged on Kartik 27, 2062. The apex court, therefore, issued an order of Mandamus to the respondents asking them to complete the process of investigation within three months of receiving the order.**

Meen Bahadur Rayamajhi, J: The brief facts of the writ petition filed pursuant to Articles 23/88(2) of the Constitution of the Kingdom of Nepal, 1990 and the order issued thereupon are as follows:

The petitioner stated that her minor daughter Maina Sunuwar was an ordinary student studying in class IX of Bhagwati High School

Kharelthok of Kavrepalanchowk district. Some persons wearing the uniform of the Army came to her house from Birendra Shanti Training Centre Panchkhal at about 6 O'clock in the morning of Falgun 5, 2060 BS asking for her whereabouts. As she was not at home on that day, they took away forcibly her minor daughter Maina Sunuwar of 15 years of age along with them leaving behind the message that she should come to Lamidanda of Kavre to take back her daughter. When next day on Falgun 6, 2060 twenty five persons including some teachers of the School where her daughter was studying and a few villagers went to the Army Barrack situated at Lamidanda, the Army denied to have arrested her daughter and brought to that place. Then after when they immediately arrived at the Army Barrack at Panchkhal in course of searching for her daughter, the fact was not divulged even at that place and a denial was made about her arrest. Even though there were so many eyewitnesses who had seen the arrest of her daughter and the act of taking her inside the Army Barrack at Panchkhal, her daughter was made to disappear in the broad day light. A lady prisoner kept in detention at the same place had told them about the incident of subjecting her daughter to torture after she was arrested and taken her to Panchkhal Army Barrack. Thus after the incident of making her daughter disappear during broad day light some national and international human rights organizations exerted pressure for tracing her whereabouts and securing her release from detention. Thus only after vehement opposition to the act of illegal detention of her daughter from all corners the Army Head Quarter issued a notification stating that as her daughter Maina had died due to the act of some Army officials posted at Panchkhal Army camp, namely, Lieutenant Colonel Babi Khatri, Major. Amrit Pun and Major Sunil Adhikari, they had been subjected to court martial by the Military Court. They came to know about the matter when it was also published in the newspapers. Thus even the public notice about the departmental action also proved indisputably that her daughter, after having been arrested had been killed in an extra legal manner.

The petitioner further stated that her innocent minor daughter had been killed in an extra judicial manner after having been taken into control. If a civilian who is not governed by military law is killed by an army man, in such a condition, the Military Act has no jurisdiction. It is clear and indisputable that such type of crime falls under the jurisdiction of the ordinary court and it is clear that the offenders are subject to legal proceedings at the ordinary law court. Section 61 of the Military Act, 2016 prevailing at the moment had a provision that if a person falling under the purview of this Act killed or raped some person to whom the Military Act did not apply, he shall not be treated

to have committed an offence under the Military Act and shall not be tried by the Military Court and Military Act, 2063 B.S. Also, it has a provision that the offences of rape and murder fall under the jurisdiction of the ordinary court. A look at the above mentioned provisions of the law showed that no military personnel had the immunity to kill a civilian in ordinary circumstances. It had clearly excluded the Military Court from having jurisdiction to decide about such a criminal act. Thus in such a situation it is clear that such a case deserved to be tried by an ordinary law court as an ordinary case. The act of homicidal killing of her daughter was contrary to Section 1 of the Chapter on Homicide in the State Code and, therefore, fell under Schedule 1 of the State Cases Act, 2049. Immediately after the occurrence of the alleged offence the petitioner had filed a complaint in the office of the respondent No.1 seeking legal action against the offenders. But when even after the lapse of a considerable period of time no action was taken against the culprits, the petitioner and some human rights activists went to District Police Office, Kavre on Kartik 27, 2062 for lodging a complaint under Section 3(1) and (2) of the State Cases Act, 2049. But instead of registering that complaint in the complaint register as per Section 3(4) of the aforesaid Act the police refused to register that complaint against the Army personnel. Eventually, that complaint was registered the same day in the District Administration Office as per Section 3(5) of the Act. Even after that, after making constant efforts the First Information Report (FIR) could be registered at the District Police Office under registration No. 1760 only on Mangshir, 2062. Section 4 of the State Cases Act, 2049 provided that the police must make arrangements for protecting evidences from being disappeared or destroyed, preventing the escape of offenders and arresting them and for collecting evidences after making investigation. Likewise, Section 10 of the Act obligated that police personnel of at least Assistant Police Inspector level of the concerned Police Office must make investigation about the offence at the earliest and collect the relevant information relating to the offence and conduct search of the place where the offence had been committed, and arrest any suspected person. In order to be a crime related to the Military and to fall under the jurisdiction of the Military Court, it is required to have relation and concern with the organizational operation and the professional duties and discipline of the Army. A cruel and inhumane act of killing an innocent minor girl taken into ones custody falls under the definition of anti-human and criminal act. Such an act can never be meant for the organizational interest of the Army. It is the bounden legal duty of the respondents to arrest the accused at the earliest after the filing of the First Information Report about such an offence and to collect

evidences and to file the charge sheet after completing the investigation.

The petitioner further stated that after the filing of a formal FIR the State Cases Act obligated the respondents to complete the process of investigation and to lodge the prosecution chargesheet at the earliest. In the present case it had come to knowledge that the alleged offenders of the present case were working in the Army till date. Even after the lapse of one year following the filing of the FIR against the persons obviously involved in the alleged crime they had not been arrested. This showed that the process of investigation had not been pushed further which amounted to non-compliance with their legal duty by the respondent investigators. The petitioner, therefore, prayed that since the respondents had not complied with their legal duties imposed by various Sections of the State Cases Act, 2049, an order of Mandamus be issued to the respondents pursuant to Article 88(2) of the constitution directing them to immediately proceed with the process of investigation in accordance with the law on the basis of the present FIR and to file the chargesheet after arresting the accused as soon as possible and thus to fulfill their duties as prescribed by the State Cases Act, 2049. Besides, the petitioner also prayed that if it appeared from the written reply that the accused could not be arrested and the act of investigation could not be further continued on account of the action of some body or some official, that should be also made a respondent in the case and such illegal act or decision be also quashed by the writ of Certiorari.

This Court issued an order to serve a notice to the respondents through the Office of the Attorney General enclosing a copy of the writ petition asking the respondents to explain what had happened in this case and why the order as requested by the petitioner need not be issued.

Filing its written reply, the District Police Office, Kavrepalanchowk contended that after the registration of the FIR on Mangshir 21, 2063 as Case No.3 in the Register No. 10. of the office correspondence was made seeking legal advice in that regard from the Police Headquarters Crime Investigation Department, Naxal. Although Birendra Shanti Karya Training Center Panchkhal was repeatedly asked to produce the defendants it did not comply with the request. Eventually, the Zonal Police Office Bagmati was requested to make some initiative towards securing the attendance of the defendants. Human Rights Officer of the Office of the Human Rights Commission situated in Nepal and a team of the investigation officer of that office

went to that training center and visited the place where the dead body of Maina Sunuwar had been buried and, after spotting out the alleged place, it inspected of the site and encircled it and also prepared a crime scene description of the place of occurrence. Besides, although a letter was written to the Police Headquarters, Naxal requesting it to arrange for an expert for exhumation of the dead body from the encircled place and for collection of evidence and its examination, no expert had been deputed so far for the purpose. Moreover, a letter had been received from the legal department of Nepal Army Headquarters intimating that Lieutenant Colonel Babi Khatri and others involved in the killing of Maina Sunuwar had been already prosecuted and subjected to legal action by the Military Court. As the defendants had been prosecuted and a decision already made in their case by the Military Court, the legal opinion of the District Attorney Office, Kavre had been sought whether or not it was lawful to make another prosecution in the same case. The District Attorney Office, Kavre had yet to send its directive. The District Police Office, Kavrepalanchowk, therefore, submitted that since this office was willing and ready to proceed with its duty of conducting investigation collecting evidence and capturing the offenders in the case if a definite directive was received in that regard, the writ petition was without merit and deserved to be quashed.

In its written reply the District Attorney Office, Kavrepalanchowk submitted that the District Police Office, Kavreplanchowk, through its letter dated Shravan 1, 2063 bearing dispatch No.79, had requested to produce the defendants before the District Police Office in connection with investigation in the case of homicide in His Majesty's Government acting on the FIR of Devi Sunuwar Vs Lieutenant Colonel Babi Khatri and Others involving the offense of the murder of the complainant's minor daughter Maiya Sunuwar of 15 years of age. A letter received from the legal Department of the Nepal Army described that Maina Sunuwar had unfortunately died by accident one hour after her interrogation at Panchkhal Barrack due to the defective process and method adopted as a result of negligence, over enthusiasm and irrationality and also due to her own mental infirmity, and as Lieutenant Colonel Babi Khatri, Major Sunil Adhikari and Major Amrit Pun each of them had been sentenced to six months of imprisonment and made to pay damages as compensation and as the verdict delivered by the Military Court as per the Military Act, 2061 had been already implemented, it was not just and proper to prosecute them again for the same offence case. The District Police Office therefore had sought for the legal advice from the Appellate Attorney Office Patan asking whether it was proper to start investigation and make

further prosecution in such a case which had been already decided by the Military Court and the decision had been already implemented. The District Attorney Office of Kavre further wrote to the Appellate Attorney Office Patan seeking its legal directive as the former was in a confused state about whether or not it was proper to start another prosecution in such a case. The Appellate Attorney Office, thereupon, responded on Bhadra 20, 2063 through a letter containing dispatch No.409 and sought clarification about the case and the law under which the Military Court had delivered the judgment and whether the alleged incident was the same about which the FIR had been lodged. As all this could not be clear from the letter, it was not possible to give the necessary directive. As the Appellate Attorney Office had asked for the clarifications, the District Attorney Office, Kavre had dispatched a letter bearing No.40, dated Bhadra 20, 2063 to District Police Office of Kavre asking for copies of all the documents including the judgment given by the Military Court. In the mean time the District Police Office of Kavre had been informed about the contents of the letter sent by Appellate Attorney Office of Patan which had directed that a decision in that regard shall be made later on as per Section 17 of the State Cases Act, 2049 pending which the process of investigation must be taken forward as the FIR had been already registered. Therefore, as after the submission of its opinion by the District Police Office Kavre based on the investigation made by it, a decision shall be made about whether or not the prosecution on charge sheet shall be filed as per Section 17 of the State Cases Act, 2049, and also as it was a duty of the District Police Office of Kavre to proceed with the process of investigation, the District Government Attorney Office claimed that it had caused no infringement of any constitutional or legal right of the petitioner.

The apex court issued an order on Baisakh 25, 2064 directing to write to the Army Headquarters to send the original case file to that court within seven days as it appeared also from the written reply submitted by the District Police Office, Kavrepalanchowk that the Military Court of the Nepal Army had conducted a court of enquiry and delivered the judgment about the offence mentioned in the FIR lodged by the complainant and that office had written about it to the Police Headquarters. Besides, as it also appeared from the written reply that an instruction had been already issued by the District Government Attorney Office of Kavre to the District Police Office of Kavre on Falgun 1, 2063 to take action on the FIR lodged by the complainant, the apex court also directed to write to the District Police Office, Kavrepalanchowk to produce within 7 days clear details about what

type of investigation and action had been undertaken in pursuance of that directive.

After studying the writ petition and all the related documents produced before the Bench as per the law for disposal, the justices heard the submissions made by the learned counsels appearing on behalf of the opposing parties. Learned counsels Hari Krishna Karki, Govinda Sharma and Amber Raut, appearing on behalf of the petitioner, argued that it was established by the report given by the Human Rights Organization and also the acceptance made by the Army personnel that as the deceased Maina Sunuwar had been arrested and taken away by some soldiers who did not return home thereafter she seemed to have been killed in the Army Barrack and buried there in. Because a civilian detained by the soldiers had been killed in the Army barrack and her dead body had not been given back to her family members it was proved that she had been killed illegally. And as even though the FIR had been lodged as per the Nepal law against the Army personnel, the civil rights of a citizen had been infringed. The learned advocates, therefore, prayed for the issuance of the writ of Mandamus in the name of the respondents to carry forward the process of investigation in that case. On the other hand the learned Government Attorney Thok Prasad Shiwakoti, appearing on behalf of the respondents including District Police Office Dhulikhel, submitted that the process of investigation about the incident mentioned in the writ petition was currently in progress but was yet to be completed. The apex court had to decide whether or not the order prayed for by the petitioner should be issued.

Disposing the writ petition, the apex court observed that the petitioner had moved the court praying for the issuance of the writ of Mandamus seeking directive to the respondents to register the FIR to be filed by the complainant against the offenders. The District Police Office Kavrepalanchowk had refused to register the FIR and thereafter although the FIR had been lodged at the District Administration Office, Kavrepalanchowk, the act of investigation had not been completed as yet. The petitioner had therefore, further prayed for issuing a directive to the respondents to proceed immediately with the act of investigation and to arrest the offenders as soon as possible and to file the charge sheet and thus to comply with the duties as prescribed by the State Cases Act, 2049. The written reply submitted by the respondent District Attorney Office, Kavrepalanchowk stated that in response to the query made by that office whether it was legally permissible to proceed with the act of reinvestigation in a case in which action had been already taken by the Military Court the Appellate Attorney Office Patan had written back that as after the filing of the FIR it was

permissible to proceed with the act of investigation, action should be taken and caused to be taken accordingly. The written reply further explained that following the submission of the opinion by the District Police Office, Dhulikhel in accordance with Section 17 of the State Cases Act, 2049 after the investigation, decision shall be made whether or not the charge sheet shall be filed. Likewise, the written reply given by the District Police Office, Kavrepalanchowk described that the District Government Attorney Office, Kavrepalanchowk had been contacted through a letter dated Magh 10, 2063 seeking the legal advice about taking legal action against the defendants in a case in which they had been already sentenced by the Military Court but the directive of the District Attorney Office had yet to be received.

The apex court observed that the respondents did not refute the remark of the complainant made in the FIR that the District Police Office, Kavrepalanchowk refused to register the FIR as per Section 3(4) of the State Cases Act, 2049 when the complainant had gone there for filing the FIR as per Section 3(1) and (2) of the said Act, and as a result the FIR was eventually lodged at the District Administration Office of Kavre under Section 3(5). A perusal of a copy of the FIR contained in the case file which was submitted by Devi Sunuwar at the District Police Office, Kavrepalanchowk showed that she had searched for her daughter constantly right from Falgun 6, 2060 prior to lodging the FIR and she had mentioned in paragraph No. (6) of the FIR that the Army Headquarters had given her the information in the month of Baisakh, 2061 that her daughter had died inside the Army Barrack in course of her detention by the Army. Therefore, the FIR was lodged on Kartik 27, 2062 asking for initiating investigation in the case against those involved in the killing of her daughter and penalizing them in accordance with the law. Section 3(1) of the State Cases Act, 2049 provided that any person who came to know about the commission of any offence falling under Schedule 1 of the Act must submit a written complaint or give oral information to the nearest Police Office mentioning about the relevant proofs or evidences known to him/her and if the information about the alleged offence had been given in an oral manner by someone as per Section 3(3) of the Act the concerned police personnel must record all such matters and also the matters required by sub- Section (2), and read out those details to that person and secure his/her signature and thumbprint on that document.

The apex court further observed that the contention made by the petitioner regarding refusal of the respondent District Police Office, Kavrepalanchowk about registration of the FIR of the alleged offence

was substantiated by the respondent District Police Office's failure to contradict the fact that the FIR had been registered at the District Administration Office, Kavrepalanchowk as per Section 3(5) of the Act. Although the respondent District Police Office, Kavrepalanchowk was obliged to register the FIR brought before it for registration, it had failed to comply with the provision of Section 3 of the State Cases Act, 2049 by declining to register that FIR. Section 4(1) of the State Cases Act, 2049 stipulated the legal duty of the police personnel to initiate as soon as possible the process of investigation about the commission of any offence mentioned in Schedule 1 of the Act which came to his knowledge. Whereas the act of investigation should have been immediately taken forward after the filing of the FIR as per the above mentioned provision of the law, it was found that the process of investigation had not been initiated effectively despite lapse of such a considerable period of time.

In response to the letter written by District Attorney Office, Kavrepalanchowk to the District Police Office, Kavrepalanchowk seeking legal advice about whether it was lawful to start reinvestigation against the Army officials whose names had been mentioned in the FIR and who had been sentenced by the Military Court after investigation the said Attorney office had sought directive from Appellate, Attorney Office Patan which had given the directive as per Section 17 of the State Cases Act, 2049 that it was permissible to proceed with the process of investigation after the registration of the FIR at District Police Office, Kavre and hence action must be taken accordingly. No doubt, it appears from the relevant documents enclosed in the case file that the process of investigation was already in progress. But in response to the order of the apex court issued on Baisakh 25, 2064 asking the respondent District Police Office to clearly inform the court within 7 days about the nature and status of the act of investigation undertaken in the case as per the directive of District Attorney Office, Kavrepalanchowk issued on Falgun 1, 2063, it was mentioned in paragraph 7 of the reply sent to the apex court by District Police office Kavrepalanchowk on Jyestha 13, 2064 that an investigation team consisting of Dr. Harihar Basti deputed from Department of Forensic Medicine, Maharajgunj, Kathmandu, that any officials of the National Human Rights Commission and the investigation officer of District Police Office had exhumed the skeleton of a human being from the place where the dead body of Maina Sunuwar had been buried and that the bones had been sent for forensic examination (Para 8). Besides that, it was mentioned that only the address of the persons to be enquired in course of

investigation had been made clear and instructions had been sent for their arrest.

The apex court further observed that after filing of the FIR against the Army officials working at the Army camp Panchkhal namely, Lieutenant Colonel Babi Khatri, Captain Sunil Adhikari, Major Amrit Pun and Major Niranjana alleging them to have committed the murder of an innocent minor girl after taking her into illegal detention and seeking punishment for them in accordance with Sections 1 and 13 (3) of the Chapter on Homicide of the National Code and in view of the fact that the offence of homicide was included in Schedule 1 of the State Cases Act, 2049, the respondent District Police Office, Kavrepalanchowk should have forwarded the case file to the District Attorney Office, Kavrepalanchowk with its findings pursuant to Section 17 of the aforesaid Act stating whether the accused should be prosecuted, and after receiving the case file the District Attorney should have made a decision, after going through the case file, whether the charge sheet should be filed in the court. And in case there was found ground for going ahead with the prosecution as per Section 18 of the aforesaid Act, the District Attorney should have prepared the charge sheet and filed it in the court on time. But the respondents had failed to have discharged their respective legal duties.

The apex court, therefore, came to the conclusion that it was a legal duty of the District Police Office to make effective investigation about an alleged crime in accordance with the provisions made by the State Cases Act, 2049, and to recommend for filing the charge sheet as per the law related to the particular offence, and if there was no ground for filing the case, to adopt the procedure as mentioned in the relevant Act. Besides, as the allegation about the commission of the crime of homicide by some responsible officers of the Nepal Army was extremely sensitive in itself such an allegation should have been investigated with much promptness and in a responsible and effective manner. In view of the fact that it has been clear from the observation made on page 9 of the available copy of the verdict delivered by the Military Court on Bhadra 23, 2062 that the death of Maina Sunuwar had been caused by a wrong procedure and technique adopted by the Nepal Army in course of her interrogation due to its negligence, over enthusiasm and irrationality it was in the fitness of things to conduct investigation about the incident of murder, no matter whose official was behind that murder, to find out whether or not the death had occurred as a result of any criminal activity and whether or not there was merit in the case for filing the charge sheet. But instead of filing

the charge sheet in accordance with the provisions of the State Case Act, 2049 if there was merit in the case for going ahead with the act of prosecution it appeared from the facts of the case that even after the lapse of such a considerable period of time no effective investigation had been made in connection with the FIR lodged on Kartik 27, 2062. The apex court, therefore, issued an order of Mandamus to the respondents asking them to complete the process of investigation within three months of receiving the order. The court also instructed to send immediately a copy of the order to the respondents for their knowledge through the Office of the Attorney General and to remove the case from the register and deposit it in the Archives.

I concur above decision.

Justice Ram Prasad Shrestha

Done on 1st Ashwin, 2064 B.S. (18th September, 2007)

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Mt. Everest, the crest of the world, is the common heritage of mankind and its trespass by any body else shall be an offense against humanity and subjected for prosecution in the court of law.

Supreme Court, Division Bench
Hon'ble Justice Khil Raj Regmi
Hon'ble Justice Kalyan Shrestha

Order

Writ No. 2572 of the year 2062

Subject: Mandamus with Certiorari.

Petitioner: On behalf of Dharma Path Youth Club, New Road, Kathmandu, and own behalf the President of Club Mr. Krishna Prasad Shahi, a resident of Kathmandu Metropolitan City, Ward No. 2, Lajimpat

Vs.

Respondents: Office of the Prime Minister, Secretariat of Council of Ministers, Singhadurbar, Kathmandu et.al.

- It might cause to lose the natural beauty of national heritages due to physical and non-physical problems and that might ultimately cause harm to the nation and society, therefore, such sensitive national heritage should not be kept open like other area for flight without any control.
- The Mt. Everest, a national heritage, is not only property of local population; it is rather the property of nation and attached to the concern of the World. The duty of conservation of the Mt. Everest area goes to the State since it is equally benefit to all. The court observed that beside the need of special situation for emergency operation of such sensitive area, there is need of addressing problems by enacting law, policy and guidelines that contain necessary preventive, precautionary, compensatory measures in regard to prohibit flight, indicate the processes of flight, setup and ensure terms and conditions applicable for the flight and grounding along with the provisions to redress harms or damages of such sensitive area and to people who have been living with the surroundings.

Kalyan Shrestha, J: The brief facts of the writ petition filed under Article 23 and 88(2) of the Constitution of the Kingdom of Nepal, 1990 judgment delivered thereupon is as follows:

The France based Eurocopter has done publicity of news through the different papers, emails and internet and by writing and also with visualization that Euro copter Ecureal, A star 350 B3 from the France, for the first time, has been able to ground in the highest Mountain of the World, the Mt. Everest breaking the previous records at local time 7.08 on 14 May 2005. The Eurocopter also broadcasted through their website (<http://www.eurocopter.com/publications>) they thanked Government of Nepal, concerned offices and individuals for their helps that Eurocopter has been able to establish the new records landing helicopter in the Mt. Everest. From various corners such as civil society institutions have opposed after broadcasting news that Eurocopter of the France was landed in the Mt. Everest. It is also found that Office of District Administration, Solukhumbu on 2062.2.13 brought notice to the Ministry of Culture, Tourism and Civil Aviation pursuant to the landing of helicopter.

The petitioner contended that as he is a Nepali citizen and he was shocked because of failure to prosecute after the investigation on the wrong doing in the issue of landing helicopter on the petition filed by him with others on 2062/4/7. The petitioner stated that instead of prosecuting the concerned persons, institutions for the broadcasting of landing of helicopter in the Mt Everest, the government has tried to conceal the incidents that destroyed integrity of Nepal, and respect for Nepali nationality and environment are surroundings of the Mt Everest and had become the issue of Public Interest and thus have come to Supreme Court for redress.

This has been further aggravated due to repetition of the Ministry of Culture, Tourism and Civil Aviation issuing a press release on 2062/4/13 which reported, as supplied in the course of written information by test pilot of the helicopter, that the helicopter had not asked any permission in the flight chart to land helicopter in the peak and therefore the helicopter had not been landed in the peak of the Mt. Everest since there was no permission obtained for landing in the peak. However, respondents claimed that they only have done Peak-hover and has not landed on 14th and 15th May 2005.

The Ministry of Culture, Tourism and Civil Aviation have concealed, by confusing facts in an obvious situation that they had landed helicopter in the peak of the Mt. Everest and the helicopter had committed an error and serious objectionable mistake for which they had to take permission from Nepal, China as well as from UNESCO prior to land helicopter as the Mt. Everest was listed in the World Heritage Site. It is clearly viewed that the helicopter has been landed in the peak of the Mt Everest and have around 12 inches sank in quagmire which could be viewed in the website of <http://www.eurocopter.com> as loaded by the respondent helicopter Company.

Due to flight of helicopter, it might affect even in height of the Mt Everest through ice falling and snow sliding by reason of noise, wave and vibration etc. by such flight. There was a question in the life, limb and employment of mountaineers due to in-action of Ministry of Culture, Tourism, and Civil Aviation to undertake research to reveal realities by concerned area's experts since there was opinion about the danger to the mountaineers who do mountaineering in the Mt. Everest of ice fall and snow landslide due to landing of helicopter. It is clear that good relation with Nepal and China as well as Nepal and France have been affected due to the act of landing helicopter in the Mt Everest by helicopter Company and its pilot Didier Delsalle only obtaining license for the test flight. It cannot be landed helicopter in

the Mt. Everest with obtaining permission for a test flight. In this way, instead of prosecuting for the wrongful act of landing helicopter, the government has concealed the facts of incident based on the statement of the respondent helicopter pilot. The government did not impose punishment to the respondents for which government was required to impose maximum punishment based on the evidences such as the statement of pilot, publicity of visual which states the breaking of records at international level and undergoing process of archiving the records in International Federation of Aeronautics. There was no initiative undertaken to investigate and prosecute by the government and concerned respondents on the facts of double publicity done by pilot Didier Delsalle.

Petitioners contended that respondents allowed the helicopter to land in the Mt. Everest without permission as it was to conserve since it is not only heritage of Nepal but also highest peak of the World, and therefore is required to protect by law i.e. Section 9(2) of Environment Protection Act, 2053 BS and Ancient Monument Act, 2016 BS. The petitioner contended that the matter fall under issue of public interest since it hurts Nepal, Nepali Civil Society including impediment to the enjoyment of the fundamental rights of the petitioners. Therefore, the writ petition also sought for the issuance of Writ of Mandamus including appropriate order to concerned Ministry, Department of Nepal Government to act in accordance with law, for the enactment of law to prevent incidents and prosecute in case incidents take place in the future.

The court had passed an order serving notice in the name of the respondents to submit their affidavits in writing within 15 days as to why an order should not be issued as sought by the writ petitioner.

The Ministry of Forest and Soil Conservation submitted its written reply and stated for the dismissal of writ petition as the control and supervision of aircrafts which fly in Nepal's sky does not come under its jurisdiction and therefore does not have any involvement in that regard.

The Ministry of Tourism and Civil Aviation and its Minister Mr. Budhi Ratna Bajracharya's rejoinder stated that there would be no question of landing helicopter in the peak of Mt. Everest in a situation that the Ministry has never granted permission to any persons.

The petitioner has not been able to indicate which of the fundamental rights was violated under the Constitution of the Kingdom of Nepal,

1990. What and how the Ministry has to take action, have not been clarified. Landing of the Eurocopter in the peak of the Mt. Everest is the jurisdiction of the Civil Aviation Authority to provide license including test flight under the Rule 56(3) of Civil Aviation Regulation 2058 B.S of Nepal Civil Aviation Authority.

It is a silly thing to try to do publicity to register his name for the first time as he was able to land in the peak of the Mt Everest in a situation that Eurocopter Ecureal Aster 350 B3 helicopter has not been provided any license by the concerned authority. There was correspondence for the necessary actions by the Ministry of Foreign Affairs as per the request for the license to test flight to AS 250 B3 helicopter in the high altitude area of the Mt Everest from the Eurocopter to the Nepali Ambassador to the France on February 24, 2005 through an application. Mt. Everest is a prohibited area. The Ministry of Tourism and Civil Aviation had done the correspondence with the Ministry of Home Affairs since it is required to get license to land in such prohibited area. Further, the Ministry has also done correspondence for the permission with the Department of National Park and Wildlife Conservation to land the helicopter in the Sagarmatha National Park and in the issue of security of then situations, the Ministry has asked with Ministry of Defence for their consent. The Civil Aviation Authority has provided permission for the flight based on the consent of including the Ministry of Home Affairs and there is no permission granted by any other authorities to land in the peak of Mt. Everest.

The action against pilot of helicopter Didier Delsalle was not possible due to his written statement before the Civil Aviation Authority on 20th May 2005 that the helicopter was not landed in the peak of Mt Everest and only had done Peak-hover and had not done complete landing. There is no situation to say the action has not been taken, since a request was made with all concerned authorities including Gunnies Book of World Records, against the pilot who endeavored to establish records through publicity of landing helicopter in the Mt Everest after returning their country and for not to establish records of desire of utmost limit of Eurocopter Company. Further correspondences have done by Nepal Civil Aviation Authority with the concerned authentic authorities of the concerned countries to take necessary action against pilot. It is not proved the negative impact on natural environment due to flight of helicopter. The writ petition does not have scientific basis and based on emotions with advance hypothetical danger in the reality of not being of grounding of helicopter. Therefore, the writ petition is subject to quash.

The Ministry of Defense submits its rejoinder stating that the Ministry has not provided permission to land in the peak of the Mt. Everest to helicopter manufacturing company the Eurocopter of France. The letter, Ref No. 889 dated 062/2/4 was dispatched to the Ministry of Culture, Tourism and Civil Aviation only for the test flight. The Ministry has neither made any decision nor sent a letter to Eurocopter in regard to landing helicopter.

Civil Aviation Authority's rejoinder states that the Civil Aviation Authority only permitted through a letter for the test flight after the letter from the Ministry of Culture, Tourism and Civil Aviation dated 2062/1/2 coordinating with the Ministry for the sake of rescue operation and not entering into the flying area of China. The authority also asked the helicopter to follow terms and conditions included in the letter from the Ministry and to manage a Liaison Officer during the test flight and have necessary collaboration with office of Lukla Airport Civil Aviation.

A probe committee formed under the convenership of Acting Deputy Director of Air Transport and Authority Directorate submitted its report on 2062/3/2 in regard to the landing of Eurocopter As350 B3 Eural on 14 May 2005 at local time 7.08 am in the peak of the Mt Everest.

The permission was granted pursuant to Rule 56 of the Civil Aviation Rule, 2058 that prescribes the provisions for the permission is required for flights and also in the case of test flight, and conditions of having with flight security personnel in the test flight as directed by its superior office the Ministry on 2062/1/2 to the Authority.

The petitioner's contention is not based on facts since Civil Aviation Authority was informed in the course of examination by the probe Committee, the pilot of test flight had to have an emergency landing in the South Col of the Mt Everest due to bad weather and there was no possibility of landing due to reason of terrain characteristics and have done only peak-hovering in the peak of the Mt. Everest.

The picture and video records submitted to the International Federation of Aeronautics which claimed the helicopter was landed in the peak of the Mt. Everest does not have any basis, therefore, the news about the landing of helicopter is not a true facts and only a forcefully publicized matter. The press release has also been published by the National Aviation Authority on 2062/2/19 refuting on publicity made about landing of the helicopter in the Mt. Everest. The

authority informed same matter through letter to Director General of the Civil Aviation Authority of France that publicity made by Captain Didier Delsalle about the landing of helicopter in the peak of the Mt. Everest was imaginary, illusive, creatively intended and hence misleading. The Civil Aviation Authority served notice to International Civil Aviation Organization and to Gunnies World Records for these matters. Rejoinder of Nepal Civil Aviation Authority therefore contends to quash the writ petition.

Respondent Nepal Tourism Board submitted its rejoinder and stated that it was always active to fulfill its objectives as per Section 5 of Nepal Tourism Board Act, 2053 BS, and was never informed reality about the helicopter landed in the Mt. Everest. The Board further replied that the writ petition is not clear as to what action has to be taken by the Board, in the situation of not of its involvement. Hence, the respondent asked to quash writ petition as none of action has been taken by the Board by which infringed fundamental right of petitioner.

Ministry of Foreign Affairs' rejoinder submitted before the court has stated that as the petitioner has not clearly mentioned as to what types of petitioner's rights and right of Nepali citizens and of Nepal are affected by the action of the Ministry. The petition filed without any concrete base and without any reason is worthy to be dismissed, therefore, let it be dismissed.

Nepal Mountaineering Association's rejoinder states that in regard to question raised by writ petitioner is clear from the rejoinder of the Ministry of Culture, Tourism and Civil Aviation. On the one hand, it is learnt that government provided permission only for test flight in Himali area and not for grounding, on the other hand, it is learnt that there was no permission even for test flight. Association's rejoinder further demands that the accurate answer from government, in the context of failure to realize to give exact information through press release issued by the government. Nepal Mountaineering Association makes a request to honourable Supreme Court to render justice after studying case file of government decision and report of the probe committee. Nepal Mountaineering Association submits its rejoinder that it has not done any injustice to the petitioner.

Office of District Administration, Solukhumbu's rejoinder states that the office requested to the Ministry to take necessary initiatives as communication of Armed Police Base Camp of Lukla revealed that French pilot was able to land Eurocopter in the peak of the Mt. Everest

approximately 2 minutes on 2062/1/31 at around 7 am. The rejoinder demands to quash the writ petition as respondent office does not have the right to take any action against permission for the test flight and also wrong doing of such flights.

The Office of Prime Minister and Council of Ministers, in its rejoinder submitted before the court, has stated that the petitioner has not clearly mentioned as to what types of his rights are infringed by the action of the Office of the Prime Minister and Council of Ministers, therefore, writ petition filed without any concrete base and reason is worthy to be dismissed, hence, let it be dismissed.

Tham Serku Trekking's rejoinder submitted to the Court, states that permission from the concerned office was granted only for the test flight of helicopter in the high altitude area of the Mt. Everest. As per the request of the Eurocopter Company to Tham Serku Trekking to act as contact agency in Nepal, the Company has involved as local facilitator of the Eurocopter Company. Tham Serku is not a local agent of the Eurocopter Company. The test flight and rescue operation were completed according to the permission of the government in high altitude area of the Mt. Everest. Helicopter did not land in peak of the Mt. Everest. On the basis of video records submitted to the Ministry of Culture, Tourism and Civil Aviation including detail videos picture report of test flight, the helicopter was not found landed and but only found of doing Peak-hover. The flight was taken place under the direct observation and supervision of a team of various representatives of government offices. The picture and video of flight test were recorded with the help of helicopter of Nepal Army. The Ministry of Home Affairs granted permission to pilot of helicopter to take pictures and recorded videos to his home country since they were not found illegal after the sensor in the Ministry of Home Affairs. Tham Serku's rejoinder demands that test flight was done as per law and with the permission of Nepal government, therefore, it requested for the rejection of writ petition.

The rejoinder submitted jointly to the court, by President of Eurocopter Aster helicopter Febrick Wigrain, pilot of helicopter Company Didier Delsalle and pilot of helicopter Company Engineer Stephine Juline, states that the statement which indicates helicopter was landed without prior to permission in the peak of the Mt Everest was the fake statement. Decision was made to provide permission to helicopter, contacting with Nepali Ambassador in France, to do test flight in geographically high altitude area and laid down certain conditions from the meeting of officials of various organizations of Nepal

government. Contention of writ petition was fabricated since helicopter flew in the area with permission of both the Ministry of Home Affairs (2062/1/26) and Nepal Civil Aviation Authority (1st May, 2005 and 10th May, 2005) to the test flight and rescue operation. On 14th May, 2005, the helicopter was not landed in the peak of the Mt. Everest. Didier Delsalle, a pilot of the helicopter, submitted the report including video picture of the test flight to the Ministry of Culture, Tourism and Civil Aviation. The pilot has done only peak- hover in the peak of the Mt. Everest. It is not possible to land helicopter in the peak due to it's not being graphically fit for landing there. The test flight and peak-hover was done as per the permission from the concerned authorities and officials, therefore, the allegation of helicopter landing in the peak is mala fide. The test flight was done with a direct direction, observation and supervision of a team of representatives of different authorities. The picture and video of test flight recorded with the help of Nepali Army's helicopter got through the censor from the Ministry of Home Affairs. The respondents contended that they have done as per permission. Conducting of peak – hover was in accordance with the permission. Therefore, President of Eurocopter Aster helicopter Febrick Wigrair, pilot of helicopter Company Didier Delsalle and pilot of helicopter Company Engineer Stephine Juline demand in their rejoinder, the writ petition should be quashed.

Nepali Ambassador, Paris submitting its rejoinder states that as the petitioner has failed to explain as to which actions of this Embassy has infringed rights of Nepali citizens and himself, the petitioner, the writ petition was baseless, therefore, it deserves to be rejected.

The Ministry of Home Affairs submitting its rejoinder states that the matter indicated by the petitioner does not come under the jurisdiction of the Ministry and nothing was done by it which jeopardized fundamental rights of the petitioner, therefore, writ petition deserves to be rejected.

Appearing on behalf of the petitioner in course of hearing of writ petition which has been presented before the Bench as per Rules, learned advocates Mr.Balkrishna Neupane and Mr.Ganga Sagar Khatri contended that there has been publicity of landing helicopter of Eurocopter Company of France in peak of the Mt. Everest through various communication media and also on their own web address which also states establishment of new records. Instead of prosecuting the wrong doer of the landing of helicopter in the peak of the Mt. Everest as per the petitioner's complain, Ministry of Culture,

Tourism and Civil Aviation rather protected the wrong doers and issued a Press Release and stated that they just did Peak-hover.

Instead of referring to concerned authority to cancel letter of permission for flight, the Civil Aviation Authority and Ministry concealed the wrong doing of the pilot and Helicopter Company who have committed serious mistake of landing helicopter in the peak of the Mt. Everest without permission, and trying to establish record in Guinness World Records not only jeopardize the concern of Nepal but also World since it is listed in World Heritage.

Learned advocates pleaded that if we continued to land in the peak of Mt. Everest in the name of test flight, and government failed to control such act would bring great misfortune to the existence of Mt. Everest, therefore, learned advocates prayed to issue an order from the Supreme Court to prosecute the wrong doers, and to enact appropriate legislation to curb such acts in the future.

Appearing on behalf of respondent Ministry of Culture, Tourism and Civil Aviation including Government offices learned Joint Attorney Mr.Yubraj Subedi and Deputy Attorney Mr.Brajesh Pyakurel pleaded that the Eurocopter Company of France had done test flight in the high Himali area of Mt. Everest as per permission granted to them. The permission was not granted for the landing. In the course of interrogation of facts, pilot of helicopter had already revealed he just had done peak-hover and had not landed in the peak. In the case of publicity to establish World Records for the landing of helicopter in the peak of the Mt. Everest, the correspondence was done with diplomatic means to the concerned country and to the Guinness Books of World Records. Learned duo attorneys pleaded that helicopter was not landed in the peak of the Mt. Everest and government was so serious to conserve the natural beauty of world's heritage the Mt. Everest, therefore, there is not any existence of situation to issue order as contented by the petitioner, therefore, petition is subject to quash.

Appearing on behalf of respondent Nepal Mountaineering Association, learned Advocate Mr.Harihar Dahal pleaded that helicopter of Eurocopter Company have not received license for landing in the peak of Mt. Everest. Rejoinder of Eurocopter Company submitted to the court accepted that they had done only peak-hover in the peak. The helicopter Company has accepted of doing peak-hovering to set aside allegation of landing in the peak of the Mt. Everest. The permission for the test flight should not be granted in such sensitive snowing area, the Mt. Everest. It was wrong from the Civil Aviation

Authority and Ministry to provide permission for the test flight in Mt. Everest area. Learned Advocate Dahal demanded to bring truth out doing studies of even the reality of probe of Civil Aviation Authority.

Appearing on behalf of respondent including Eurocopter Company learned Advocates Mr. Bharat Raj Upreti and Mr. Tilak Bikram Pandey pleaded that helicopter of Eurocopter Company had done only peak-hover as per the permission for the test flight and rescue operation from the Civil Aviation Authority. There is no possibility land of staying helicopter in the peak due to having terrain characteristics. The test flight was done under direct supervision of representative of government offices. The findings of probe committee formed by Civil Aviation Authority revealed that helicopter was not landed in the peak. It was not trying to establish the records of landing helicopter in the peak, however, they were just trying to establish records of doing peak hovering. Since there was no records yet established doing flight over the Mt. Everest, the helicopter was just trying to do so.

The flight of Eurocopter Company which was said to have carried out without permission was proved baseless and pictures and videos of test flight which were passed through the censor at the Ministry of Home Affairs was submitted to the Ministry of Culture, Tourism and Civil Aviation along with the report. Learned advocates pleaded to quash writ petition since there was no landing of helicopter in the peak of Mt. Everest.

After going through the case file and after hearing the submissions made by the learned counsels of both sides the apex court observed that it had to decide whether or not the order as requested by the petitioner should be issued.

While considering upon the decision to be reached, the rejoinder of respondent Civil Aviation Authority states through the press release on 2062/2/19 which refutes the publicity of helicopter of Eurocopter Company flight was without permission and illegal landing in the area of the Mt. Everest. It was found a report was submitted by the committee formed by respondent Civil Aviation Authority to recommend advice by doing studies relating to the landing of helicopter. In the course of studies of the committee, pilot Didier Delsalle accepted in the course of taking statement that he did not land helicopter in the peak of the Mt. Everest, landing helicopter also was not possible due to terrain characteristics, and just did peak-hovering. He further accepted in the course of taking statement he had landed helicopter only in South Col due to unforeseen emergency

situation of bad weather. In this way, the committee submitted its report that the pilot did not land helicopter in the peak which was based on the statement of rejection of pilot that he had not landed helicopter in the peak. On the basis of the report, a letter which states the landing of helicopter in the peak of the Mt Everest was not true was sent to International Federation of Aeronautics including institutions in regard to International Civil Aviation and Guinness World Records. Subsequent to that, the Civil Aviation Authority on 5th April 2006 communicated to Secretary General of the International Federation of Aeronautics the fact of landing of helicopter in the peak of the Mt Everest was not true and was against the law. The letter which opposes the facts in the case file reads: we stand by our earlier submissions on the issue... through this letter; we primarily would like to draw your attention to the illegality issue involved in this whole episode.... The contention of records of Eurocopter Company regarding the flight in high altitude of the Mt. Everest cannot be accepted because the pilot of helicopter himself, in the course of formal investigation process which was conducted by the government, stated that he did not land the helicopter in the Mt. Everest. It cannot be justified that the respondent Ministry of Civil Aviation did not take any action as contented by the petitioner, in the situation that government formally probed the facts and were communicated at international level by diplomatic means to refute contention of landing helicopter in the peak. Therefore, there was no need of issuance of order of Mandamus as demanded by the petitioner.

Due to broad nature of permission for flight in the highest mountain of the World, the Mt Everest, may possibly bring the situation of neglecting the process, precaution, safety measure including information and communication which are required for the flight. Further, it might harm to nation's environmental heritage and to the persons who are with the mountaineering team. Similarly, it might also affect on the securities and facilities which local people have been using in the mountaineering site. In addition, it might cause to lose the natural beauty of national heritages due to physical and non-physical problems and that might ultimately cause harm to the nation and society, therefore, such sensitive national heritage should not be kept open like other area for flight without any control. The Mt. Everest, a national heritage, is not only property of local population; it is rather the property of nation and attached to the concern of the World. The duty of conservation of the Mt. Everest area goes to the State since it is equally benefit to all. The court observed that beside the need of special situation for emergency operation of such sensitive area, there is need of addressing problems by enacting law, policy and guidelines

that contain necessary preventive, precautionary, compensatory measures in regard to prohibit flight, indicate the processes of flight, setup and ensure terms and conditions applicable for the flight and grounding along with the provisions to redress harms or damages of such sensitive area and to people who have been living with the surroundings. Therefore, Supreme Court issued directive order in name of respondents Ministry of Tourism and Civil Aviation and Civil Aviation Authority for the appropriate mechanism along with effective monitoring and evaluation and arrangement of civil aviation and their operation. The Court further asked the Ministry of Tourism and Civil Aviation and Civil Aviation Authority to inform to department of monitoring of the Supreme Court after effective operation of such managements. It was instructed to send a copy of the order to the respondents for their knowledge. The apex Court further ordered to send a copy of order to Department of Monitoring to monitor their implementation and handed over the case file as per rules after removing the record of registration.

I concur above decision.

Justice Khil Raj Regmi

Date on 3rd Mangshir, 2064 B.S. (19th November, 2007)

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Brick kilns operated near densely populated area, schools, cultural and tourists spots are harmful to the public health. Therefore, the government is directed to take necessary measures as fixing the emission standard for lessening the environmental pollution caused from such industries.

Supreme Court, Division Bench
Hon'ble Justice Kedar Prasad Giri
Hon'ble Justice Balam K.C.

Order

Writ No. 3027 of the year 2059
Prakash Mani Sharma and others Vs. Cabinet Secretariat and others
Subject: Mandamus.

Petitioners: On behalf of Pro-public and on his own Advocate
Prakash Mani Sharma, et.al.

Vs.

Respondents: Cabinet Secretariat, H.M.G, Singh Durbar, et.al.

- The benefits generated by the brick kilns to the entrepreneurs, labor and the general consumers, cannot be compared with the adverse environmental impacts caused by such brick kilns. Since the brick kiln industry can be deemed as a necessary evil, it is the responsibility of all the concerned agencies and civil society to realize their responsibility and discharge their duties towards minimizing the adverse impact emanating from brick kilns.
- Quantitative assessment of demand of bricks in the valley and the number of brick kiln operating are to be ascertained. How many of them are registered and how many are not? What is the extent of pollution emitted by the brick kilns in the environment of the Valley? ; How much is the impact of pollution on the public health, natural resources and the cultural heritage? What are the most appropriate counteractive measures to be taken immediately as well as those to be taken in the long run? Research work aiming at those end are to be conducted.
- Based on such research findings, effective techniques should be devised and followed. In addition to that, priority should be given for lessening the impact of pollution emanating from such brick kilns that are operating in the vicinity of densely populated areas, schools, cultural and touristic zones, immediate measures are to be taken to lessen adverse impact in such areas.

Balam K.C, J: The synopsis of this writ petition filed under Clause (c) of Article 88 of the Constitution of Kingdom of Nepal and the order issued thereto is as under:-

Brick kiln is a kind of industry. Such an industry comes into operation only after it has fulfilled all the conditions and criteria and been registered with the concerned authority in accordance with law. The legal provision, currently, has made it obligatory to be registered with

Landmark Decisions of the Supreme Court of Nepal

the government agency and obtaining the Permit from such agency. But contrary to the above legal provision there are in existence unauthorized brick kiln industries numbering far more than the twice the number of registered ones that are in operation in Katmandu Valley, capital of Kingdom of Nepal, without complying with the legal conditions and criteria and without obtaining even the Permits as prescribed by law. Such industries have largely contributed to the air pollution of Katmandu Valley and this has led to the infringement of the fundamental right of the people living in the valley to live in a healthy environment. Therefore, we took the liberty of being present to the honorable court for issuance of appropriate order for prohibiting the operation of the illegal bricks kilns with immediate effect.

The freedom to undertake a profession, job including business or trading concern lies within the framework of fundamental human rights. But, in no case, an industry is authorized to operate in such a way that could have adverse impact on the general health of the people. It is but natural that such enterprises can't be operated without fulfilling the prescribed legal conditions and criteria as stipulated in the Environment Protection Act, 2053, the Environment Protection Regulation, 2054 and Industrial Enterprise Act, 2049. As the protection of environment is indirectly related to the well-being of the people, the Supreme Court has ruled that this subject matter must be considered inclusive under Article 12(1) of the constitution of Kingdom of Nepal, 2047. It is, indeed, the positive responsibility of the state to prevent adverse impact on environment and oversee the creation of pollution free environment. We, petitioners, have time and again requested the respondents through correspondence and by sending delegations to them since 2052 urging them to stop the operation of highly polluting brick kilns, but none of them took any steps to close such brick kilns. So, for the protection of rule of law we are compelled to present ourselves to the court file the writ petition.

Due to negligence of the respondents, the number of brick kilns in operation has more than doubled as compared to those with the legal entities. Currently, the number of legally operating brick kilns is 6 in number in Kathmandu, 47 in Lalitpur and 45 in Bhaktapur, totaling 98. But the number of illegally operating brick kilns are twice the number of the legally operating kilns. Research studies have confirmed these brick kilns, being of traditional technology, are not only polluting but also causing adverse impacts on public health and environment etc. They are harming the human respiratory system, diminishing the visibility, activating metal rusting factor. The extent of TSP emission within Kathmandu Valley has gone up to 4900 metric tons that is

absorbed by the atmosphere; 89.9 percent of which is attributed to such brick kilns. It has been found that all people without exception from the age group of children to elderly people living around the site of such brick kilns have been suffering from respiratory ailments. The brick kilns have raised the number of death toll and the risk of suffering from respiratory diseases like, asthma, cough, skin itching allergy, etc. and the fact has been detected that there have been substantial decline in the development and production of plants and agricultural crops in and around those areas where the kilns are in operation.

The urban area of Bhaktapur and the vicinity of Changu Narayan temple have been included in the World Heritage list. Those world - renowned heritages are also recognized as important tourist centers. They are all located at a distance of less than 2 kilometers from the sites of the brick kilns. In such a situation the polluting emission emanating from the brick kilns have led to the gradual decay and rusting of the monuments, in addition to causing adverse impacts on the tourism sector. In India the brick kilns are allowed to operate at a distance between 20 to 200 kilometers from Taj Mahal which has been included in the world heritage list. But in regard to our particular case, let alone imposing a ban on the operation of brick kilns that are adversely affecting the monuments, registered in the world heritage sites, no initiative has been taken to close the brick kilns that are in operation illegally.

Similarly, the directives to close such brick kilns have been issued and the decision to prosecute them in case of defying have been made by several agencies of the government through the letters issued by Lalitpur District and Small Scale Industries Office on various dates on 2057\7\25 and 2057\9\26; similar decisions were made through the joint meeting of officers of chief district office, district cottage and small scale industries, district police office, internal revenue office of Bhaktapur on 2059\8\12 and 2059\7\12; and the ministerial level decision of His Majesty's Government dated 2058\8\18, 2058\12\20, 2059\1\23, 2059\2\2 etc. Such instances of public notices to close such industries published in the media indicate that government bodies show concern for only making decisions. But they never care for implementing those decisions, nor do they take any initiative to that end. All these have apparently resulted in the emergence of a tendency with the government agencies to make only decisions but not implementing them.

According to the Section 3 and 4 of Environment Protection Act, 2054, rule 3 and schedule 1 and 2 of Environment Protection Regulation, 2054, it has been made mandatory to conduct Initial Environment Assessment (IEA) prior to setting up brick kiln industry that produces less than 10 million bricks a year and to conduct Environment Impact Assessment (EIA) for an enterprise with a production capacity for more than 10 million bricks a year. While the sub- Rule (1) of rule 3 and Schedule 7 (16) have listed brick and tile industry as an industry which require to obtain Pollution Control Certificate. If anybody is found to act contrary to Section 7(1) and 7(2) (1) of Environment Protection Act, 2053, causing an adverse impact on environment, the concerned agency is authorized to prohibit the operation of the industry and Section 9 of the Act as well as Rule 26, 27, 28 of the Regulation have conferred on the concerned body with the legal obligation and responsibility to protect the national heritage.

Besides, the concerned agencies should have discharged their legal responsibility of canceling the permit and prohibit the industrial operation in accordance with Section 25 of the Industrial Enterprise Act, 2049. However, in contradiction to their legal obligations, the respondents have limited themselves to imposing fine to some industries and to some others issuing orders through media to stop their operation that are not even registered and have not fulfilled the terms and pre-conditions prescribed by Environment Protection Act, 2054. Such actions on the part of respondents cannot be considered to have fulfilled their legal duties. Notwithstanding the fact that they have prepared an inventory of illegal kilns, but they have not played an active role to halt their operation, having granted freedom for illegal operation have evidently given rise to room for suspecting on the respondents' motive. On 2058\11\21, 163rd meeting of the Industrial Promotion Board made a decision to stop registration of brick industries with traditional technology located within the Kathmandu valley. In regard to those which have recently acquired permit, they are allowed to transform themselves by adopting less polluting new technology by the end of Bhadra 2060. Regarding the brick kilns in operation without permit, a notice is issued in the public media that industries shall not be operated without permit and shall be penalized severely by Cottage and Small Scale Industry Department. Despite the official decision not allowing registering brick industries adopting old technologies, hundreds of such brick kilns are still in operation in Kathmandu valley in violation to their decision. But the respondents, including the Industrial Promotion Board, have not undertaken any concrete step to execute their own decisions.

As referred to in the above various paragraphs, the fundamental right of the people to live in clean and healthy environment has been hit hard and we, the petitioners and all the citizens living in the Kathmandu valley, have been debarred from accessing the fundamental human right on account of the failure on the part of respondents to discharge sincerely their constitutional and legal liabilities entrusted to them. Hence, an order of Mandamus be issued against the respondents in accordance with Article 88(2) of the Constitution of Kingdom of Nepal, 2047 for making an inventory of those illegally operating brick kilns after having them identified with immediate effect to halt the operation of such brick kilns and take stern legal actions against the operators of such illegal brick kilns.

Although it has been announced that the decision has been taken to compel the traditional chimney brick kilns to transform themselves into entities adopting clean and less polluting technology, a tendency has been observed that they take decisions but fail to get them implemented. Hence, it has given rise to suspicion on their seriousness for implementation. Therefore there is a need for giving an order to get the decision implemented once it is taken. An order of Mandamus is issued against the respondents compelling them to put that into effect through interpretation of legal provisions and to ensure that all the related decisions taken by His Majesty's Government on different dates are enforced. It is again requested that a court order be issued to ascertain the extent of damage inflicted on the health of local people, agricultural crops and environment. Besides, an appropriate order is issued directing them to compensate such damages. Similarly, to ascertain the amount of compensation, a high level committee be immediately formed under the coordination of a retired judge or a sitting judge of the Supreme Court, consisting of an expert of concerned institution on health and environment along with a member of the concerned government agencies. The committee will dedicate itself in undertaking a research work and submit a study report. As recommended by the committee to HMG, an appropriate order is issued to ensure that the affected victims are compensated; such being the substance of the petition.

What constitutes the facts of the case? Is there any ground for denying the issuance of an order as claimed by the petitioner? The respondents are notified to submit a return reply through Attorney General Office within a period of 15 days. After receiving the written reply or after the expiry of the time given, the case is submitted according to rule; such was the order of the single bench on 2054\10\22.

Regarding the issue related to adverse impact on environment due to the emission of smoke and dust particles from the brick kilns operated with traditional technology within the Kathmandu valley, the 163rd meeting of Industrial Promotion Board has already made a decision on 2058\11\21 that the trial of new technology that has been prevailing in other countries is underway. For the time being, the registration of brick kilns using traditional technology in the valley shall be halted. It has been decided that the necessary legal provision shall be devised to ensure that such brick kilns adopt new technology within one and half year's period. This ministry has been taking due care to ensure that the traditional brick industry causing adverse impact on ecological system shall be prohibited and be regulated as per the law. Proper attention is being paid to ensure the people's accession to the right conferred by the constitution related to the environmental balance, and to ensure the protection of industry as well as the professional and occupational rights of the citizens. Since the ministry has already taken a decision on 2059\2\2 to the effect that the owners of brick kilns adopting traditional technology causing environmental pollution in the Kathmandu valley, harming, thereby, the public health, are to be penalized with fine; and the concerned agencies of the government has been given directives to halt such industries with immediate effect. So it is requested that the petition be dismissed; such being the substance of the written reply of the Ministry of Industries, Commerce and Supplies.

Since this Ministry has not made any decision causing violation of the petitioners' rights, nor has it harmed the petitioners in any way, the writ petition be dismissed, as there is no reason for filing the case against the ministry; such being the substance of the written response to the Ministry of Home Affairs.

The Department of Cottage and Small Scale Industries has published a directive in Gorakhpatra Daily on 2059/6/24 and, at the same time, the office issued a public notice, prohibiting both the operation of brick industry having traditional technology without registration, and without fulfilling the official processes as laid down by the Industrial Enterprise Act, 2049 and Environment Protection Regulations, 2054. It was found that some brick industries are in operation ignoring the notice and such enterprises are to be fined between Rs 100,000 to Rs 150,000 as per the ministerial level decision of HMG taken last year on 2054/2/2. Besides, they have been directed to stop the operation of the plants. In this year as well, legal actions have been initiated against the industries in operation without being registered and

without fulfilling the prescribed official formalities as laid down under the Section 25 of Industrial Enterprises Act, 2049. Since the accusation of the petitioners that we have not taken action seriously on this matter are thus totally untrue, the writ petition be dismissed; such being the substance of the written reply of the Cottage and Small Scale Industry office, Kathmandu.

HMG has already taken policy decisions to replace brick kilns operating with traditional technology by new less polluting technology. Necessary legal provisions are being devised aiming to replace the already registered brick kilns within a year and half by less polluting technology and put an end to the registration of brick kilns with traditional technology. This department and the subordinate agencies are committed to implement the decision of the 163rd meeting of Industrial Promotion Board held on 2058/11/21. So the writ petition is dismissed; such being the written reply of the Cottage and Small Scale Industry Department, Kathmandu.

This Trade Promotion Board is always alert and conscious that the clean and healthy environment is an indispensable substance for human life. The 163rd session of the Board has made necessary decisions to the effect that the brick kilns industry that are in operation will have to adopt and install new technology that are currently popular in other countries. The objective of the decision is to lessening the effect on polluting the environment caused by the emission of smoke and dust particles from the brick kilns operating in Kathmandu valley. Likewise, the ministerial decision of HMG dated 2059\8\26 has strictly imposed the prohibition of registration of the new brick industry if they were to install "Moving Bull Trench Kiln." The new brick kiln must adopt new technology i.e. fixed chimney and VSBK only. Besides, the industry must have the ownership of land covering a radius of at least 200 feet from the central point of the brick kiln and those installations should be located at a distance of at least 1 km away from the forest area. It is mandatory to undertake an EIA study for those located at a distance of 5 kms away from the government forest area. It is also mandatory to undertake an IEE study only if the installation of the plant is located at a distance of 1 km, including a binding to limit the emission up to standard 900mg\nm etc. Such were the various decisions taken by the ministry. Undermining all their efforts on our part, the allegation of its petition that the respondents did not care for implementing the law is totally imaginary and is thus worthy of dismissal; such being the substance of the written reply of Industrial Promotion Board.

Section 5 and 6 of Local Administration Act, 2028 has conferred the Chief District Officer the responsibility of discharging duties in accordance with its policies, regulations and direction of HMG as well as the obligation to protect the public health. In case people filed complaints with the office, the local administration looks into the matter and has always been playing a cooperative role in the interest of its people. Therefore, the writ petition deserves to be dismissed; such being the substance of the written reply of the District Administration Office, Kathmandu.

This office has taken the initiative of mobilizing the representatives of the political parties of the district in order to protect the environment and bring, therefore, the illegally operated brick kilns under the framework of legal jurisdiction. Similarly efforts have been made to arouse public awareness intensively in the concerned area. However, the action of exercising other additional legal actions against the brick industries does not fall within the authority of the office. So, the writ petition is requested to be dismissed; such being the substance of the written reply of the district Administration Office, Bhaktapur.

The Cabinet Secretariat and the concerned agencies under it have been undertaking the follow-up monitoring activities from time to time in accordance with Work Classification Regulation, 2057, to ascertain whether or not the ongoing activities are in line with HMG's policies, decisions and as per the law. Since the petitioners' contention is groundless, we request that the writ petition be dismissed; such being the substance of the written reply of the Cabinet Secretariat.

The Department of Cottage and Small Scale Industry and this Office had published a public notice on 2054/6/24 in Gorkhapatra daily prohibiting the operation of brick industries with traditional technology. Having found that some brick kilns were operating ignoring the public notice and without being duly registered, such industries have been directed to be closed with a fine ranging from Rs 50,000 and Rs 150,000 in accordance with the decision made by HMG on 2058/1/23 and 2058/12/2. In this year alone, 33 brick kiln industries have been directed to close with a fine on each at the rate of Rs 200,000 following the decisions of HMG on 2054/10/29. Since the petitioners' allegation that stern action has not been taken on this matter is fabricated, the writ petition be dismissed; such being the substance of the written reply of the Cottage and Small Scale Industry Office, Bhaktapur.

The petitioners nowhere in the petition have been able to clarify the reason for making this Ministry respondent. As the petitioners could not substantiate with evidences the violation of their rights, the writ petition is therefore worthy of dismissal. Although it has been made mandatory for a brick industry that produces more than 10 million bricks per annum to conduct Environment Impact Assessment (EIA) according to Environment Protection Act, 2053 and Schedule 2 of Environment Protection Regulation, 2054, no such report has ever been submitted to this ministry for approval. As this ministry is fully oriented towards the protection of environment and towards prevention and control of pollution, the writ petition is requested to be dismissed; such being the substance of the written reply of the Ministry of Population and Environment, HMG.

In Lalitpur district there are 50 legally registered brick kilns and only nine kilns under operation have not been registered. So the contention that the numbers of illegally operated brick kilns are twice the number of registered ones is untrue. The brick kilns operated without being registered according to Section 10 of Industrial Enterprises Act, 2049 can be penalized following the decision of HMG in accordance with Section 25(1) of the said Act. Last year the brick kilns that were operated illegally without being registered were fined to a minimum amount of Rs.50, 000 up to Rs.150, 000 each and they were also ordered to be closed. Consequently, an amount of Rs.1, 050,000 was collected from the ten brick kilns. But Babulal Maharjan has not paid the fine of Rs. 150,000 as yet. The district administration office has been requested several times to take necessary action to ensure that the money be collected from him. As this office has identified and listed such illegally operated brick kilns for the purpose of processing them into closure and penalizing them, this is under the consideration of HMG. Therefore, the writ petition is requested to be dismissed; such being the substance of the written reply of the Cottage and Small Scale Industry Office, Lalitpur.

In regard to this writ petition submitted as per the rule, the learned advocate Raju Prasad Chapagain pleaded that the various studies and research works have confirmed that the brick kilns adopting traditional technology (Bull's Trench Kiln) have made impact adversely on the people's health in Kathmandu valley. The level of emission emanating from the brick kilns in Kathmandu valley is estimated at a range of 89.90 percent (TSP). It can result in damaging the human respiratory system enhancing the factor that causes the metals to rusting. The polluting emission of the brick kilns have not only caused adversities to human beings but have also negatively affected

agricultural products, vegetation and the soil of the area. Urban areas of Bhaktapur and the Changu Narayan, which are listed in the World Heritage, are being endangered due to the operation of the brick kilns. Consequently the tourism industry is subjected to decline. The monitoring units of brick kilns, the respondents, do not even possess a realistic datum on the number of brick kilns operating in the different districts. That is the reason why the number of unregistered brick kilns in operation have exceeded twice the number of registered ones. Such kilns should have been dealt severely with legal action pressuring them to be closed pursuant to Section 25 of the Industrial Enterprise Act, 2049, but the situation does not show that the brick kilns have been dealt effectively although some of them have been apparently fined. The situation turned out to be extremely serious, up to the dangerous level, on account of the inability on the part of respondent agencies to pursue with preparedness the matter concerning the seriousness of the issue related to the public health. Therefore, it is essential to issue an order of Mandamus against the respondents to identify those illegally operating brick kilns and make an inventory of such enterprises and to ensure that severe action is taken against the entrepreneurs. Furthermore, let the respondent agencies be obliged to oversee that the brick kilns with traditional technology transform themselves through adopting less polluting technology in accordance with the decisions taken by the government from time to time, with the objective of reducing pollution emanating from the brick kilns. The learned advocate also pleaded that the court is required to issue an appropriate order to HMG to form a high level committee comprising concerned experts to assess the impact on public health and the extent of damage caused till to-date following the unlawful operation of the brick kilns to ensure that the concerned victims are compensated.

The learned Joint -Attorney Saroj Prasad Gautam pleaded on behalf of HMG that the government and the concerned agencies are sensitive to any possible adverse impact on public health as a result of pollution from the brick kilns. Convening the 163rd Board Meeting on 2058/11/21, Industrial Promotion Board made severe decisions to address the issue of the pollution emitted by the traditional brick kilns (Moving Bull Trench kilns). These include the adoption of the latest and least- polluting technology within 18 months in replacement of its traditional Moving Bull Trench kiln technology, halting the registration of out-dated kilns and closing the unregistered units. Necessary initiatives have also been taken to oversee the implementation of the decisions. Similarly, a ministerial decision taken by the HMG on 2054/8/26 has banned the adoption of traditional technology. Instead,

as regards the installation of a fixed chimney or VSP, it has been made obligatory for the concerned industry to be located at least one kilometer away from the forest area; EIA and IEE have been made mandatory before they are put into operation ; use of hay, tyre, plastics have been banned from using in their operation. It has also been decided that they should adopt the latest technology prevailing in other countries aiming at reducing the pollution. The claim of the petitioners that HMG has remained inactive is baseless as it has notified through Nepal Gazette to cancel the registration of those brick kilns that do not meet the emission standard and these decisions have been monitored to oversee its execution through the office of the concerned Cottage and Small Scale Industry. The concerned officers have made an inventory of brick kilns located in their respective districts. Since illegally operated brick kilns have been imposed fines, ranging from Rs100,000 to Rs. 150,000 and some were forced to be closed ; the writ petition is worthy of dismissal; such being the pleading of the learned government attorney.

After listening to the argument put forward by the learned counsels for the petitioners and the defense as well as having reviewed the case file, it appears that the following questions are to be addressed prior to taking decision on this issue:

1. Whether or not a welfare state can permit any industrial enterprise to operate under the condition that it pollutes the environment adversely affecting the health of the people? Does the environmental pollution fall under the scope of environmental justice? Or, does it not?
2. Whether or not the agencies with the responsibility of monitoring the polluting and health hazardous enterprises with the aim of regulating them under the law, should act effectively and undertake result-oriented activities?
3. Whether or not, the respondents, the government and the concerned agencies are effectively undertaking the activities directed towards regulating the legally or illegally operating brick kilns, and controlling the pollution caused by them?
4. Whether or not the writ should be issued as claimed by the petitioners?

While contemplating the first question, there is no dispute on the fact that the sub-Clause(e) of Clause (2) of Article 12 of the Constitution of the Kingdom of Nepal, 2047 in providing the freedom of carrying any occupation, employment, industry and trade. But the constitutional freedom to be engaged in any occupation, employment, industry and

trade, however, is not absolute because there is also the provision of sub-Clause (5) directed to restrict the freedom if it goes against the rule and outside the periphery of law. The provision of sub-Clause (5) that nothing in sub-Clause (e) should be deemed to have prevented the making of laws to impose restrictions on any act which may stand to adversely affect public health or morality of the general public, nor can the sub-Clause restrict the government's monopoly rights to undertake any specific industry, business or service or to lay down any precondition or qualification for undertaking any industry, business, profession or employment. The provision has made it evidently clear that the citizens' rights to take up any occupation, employment, industry and business doesn't stand against and beyond the criterion set by the prevailing law. Therefore, any enterprise including brick kiln mentioned in the petition could be undertaken provided it complies with the provisional limit of the constitution.

Laws relating to environment, occupation, industry etc came into being for the implementation of the above constitutional provision. The Industrial Enterprise Act, 2049 has prescribed elaborate procedures to be adopted by industrialists covering registration of the industry to all aspects of operation of the industry. The above Act has made it necessary to obtain license and if an industry is established without license or without fulfilling the terms and conditions mentioned in the license and those mentioned in the registration certificate are not complied with, the Section 25(1) of the said Act has conferred His Majesty's Government to fine them up to five lakh rupees, cancel their registration license and give an order to close the industry. The above provision of the Act shows that the right to freedom of occupation, job, industry and business is not an absolute right, rather, it is a right to be exercised only under the terms and conditions prescribed by law.

As far as addressing the issue of whether or not the adverse effects to public health and environment caused by polluting activities fall under the environmental justice, the Article 12 (1) of Constitution of Kingdom of Nepal has laid down that except as provided for by law, no person shall be deprived of his or her personal liberty. Clean environment is essential for human life. The existence of all living beings including vegetation is endangered by polluted environment. In such a situation the right to life of human beings is likely to come to an end.

This court has taken into account this issue of environmental pollution years ago and has been drawing attention of His Majesty's Government by issuing directives in the form of judicial decisions. The

full bench of this court has drawn attention to the need of environmental law in Nepal in the case of petitioner Surya Prasad Dhungel versus Gadavari Marble Industry of 2049 B.S (W.A.V No.35-Mandamus etc). At that time there were no Act and Regulation relating to environment and the credit goes to that directive in some way for the advent of current environmental laws. The polluted environment deprives the human race of the liberty of right to life conferred by the Constitution. It is the fundamental right of every citizen to live in a pollution-free environment. "As clean and healthy environment is essential for fullness of life, the right to live include the right to clean and healthy environment". The principle propounded in the above mentioned case is such that there is no controversy that polluted environment causes deprivation of personal liberty conferred by Constitution. Similarly, Article 12(1) confers the right to live and that is possible only in clean environment. The principle that the polluted environment deprives a person of his right to live was referred to in the case of Godavari Marble Industry. Cases of 2056, writ No.3109 (2058/4/23), of 2057, writ No.2791 (2058/2/19), and of 2058, writ No.28 (2058/6/11) were the relevant ones. In view of such constitutional provisions and the principle propounded by the Supreme Court on the cases cited above there is no controversy that the issue of environmental pollution is worthy for judicial consideration.

The second issue to be resolved is related to who is responsible for maintaining clean environment which is so necessary for the existence of human life. While deliberating on the appropriate and effective step to be taken for preventing the environmental pollution and on the legal means to address the problem of protection and promotion of environment, it can be deduced that the responsibility for the promotion and protection also lies with man himself, is an unquestionable fact. Given that each and every person cares to keep his surrounding environment neat and clean with awareness. In other words, environment can be kept clean provided we are fully sensitive to our responsibility to that end.

On the one hand, there is the need for industrialization and development activities, while, on the other hand, man is facing the problem of environmental pollution resulting from the rapid pace of industrialization. Consequently, there has arisen mutually conflicting challenges, in the form of a deterrent force calling for the adoption of effective measures to address the problem of protection from the polluting environment. One cannot ignore the various initiations and efforts being taken at the national and international levels for long past aiming at harmonious growth combined with environmental protection.

The United Nations Organizations and its subordinate agencies have taken some concrete steps towards that end. It is evident that the attention of the world community has been focused on the concept of Environmental Jurisprudence from the time of the Stockholm Conference held in 1972. Moreover, the attention of the whole world was drawn towards the protection of environment dating from the world Conference on conservation which was also commonly known as “Earth Summit” convened at Rio de Janeiro in Brazil in 1992. The “Agenda 21” endorsed by this conference underlines the concept of sustainable development that propounds that the utilization of natural resources of this world should not be monopolized by the present generation alone but also be sustained for the benefit of the generations to come.

Since Nepal has participated in the conference as well as expressed her commitment to its outcome, there is no doubt that His Majesty’s Government has the prime responsibility of implementing its decisions. It is now the responsibility of the government to take effective measures aiming at protection of environment in pursuance of the written endorsement of various international treaties and conventions on environment for the protection of environment and as dictated by the constitution of Kingdom of Nepal, 2047 as well as the prevailing laws of Nepal. One cannot deny this fact. Article 26 (4) of Constitution of Kingdom of Nepal, 2047 has laid down that the state shall give priority for preventing adverse impacts of environment emanating from the ongoing physical developmental activities and make special arrangement for the protection of endangered animals, forest and vegetation. Such being the constitutional provision, it is the constitutional obligation of His Majesty’s Government to formulate policies and make necessary legal provisions for preventing the pollution of environment and implementing those policies and laws effectively. It is apparent that the government has framed and put into effect the Environment Protection Act, 2053 and Environment Protection Regulation, 2054, to fulfill the state’s responsibility of implementing the policies on environment as directed by the constitution. But the emission standards and the Permissible Limits have yet not been prescribed for some industries although the above laws have come into effect for a long time. The directions issued by this court reflect that the legal provisions have not been implemented in exact terms. It is the prime legal responsibility of his Majesty’s Government to oversee that environment is well protected. Judiciary also has a role and responsibility to that end. Despite the formation of a separate Ministry of Environment, necessary measures were not undertaken pursuant to Article 12 (1) and 26(4) of the constitution.

Therefore, it is evident from the above deliberation that this court was obliged to draw the attention of His Majesty’s Government and its subordinate agencies to this issue frequently. That is why His Majesty’s Government should embark on more vigorous and effective measures aiming at the implementation of the policies regarding the protection of environment in the real sense of the terms rather than limiting itself to the act of sloganeering.

While pondering over the third question seeking resolution, it is related to the claim of the petitioners that although the brick kilns operated with traditional technology in the valley have caused serious adverse impacts on man’s health as well as environment of the area, the government and its subordinate agencies seem to have taken superficial actions, instead of undertaking effective measures to solve the problem. Consequently they failed to halt the operation of the illegally operating brick kilns without registration. Besides, there is the claim that the respondents don’t have authentic data on those brick kilns etc; such being the contention of the writ petition. Pondering on it, one cannot deny the fact that the brick kilns operating in Kathmandu valley have been polluting the environment of this area, while causing adverse impacts on public health and national heritages. The studies conducted by the various governmental and non-governmental agencies on various occasions have proved this fact. In addition, the conclusions of the studies and research work mentioned in the writ petition have testified to this fact.

In reviewing the written reply of the respondents, it is clear that the brick kilns in operation without registration had been identified, they have been put under rigorous supervision, and some have been either fined up to Rs 500,000 or ordered to be closed down. The meeting of Industrial Promotion Board held on 2058/11/21 has apparently made several decisions, for example, halting, henceforth, the registration of brick kilns adopting traditional technology (Moving bull trench kiln) as those kilns operating in Kathmandu valley are found to have been making adverse impacts on public health. The brick kilns operating after registration shall also be compelled to adopt new type of less polluting technology within one and half year and those without registration shall be forced to be closed down. Besides, the legal action shall be undertaken against them. Similarly, the ministerial level decision of HMG dated 2059/8/26, have underlined that the owners of new brick kiln adapting traditional technology should not be allowed to register their industries. New ventures should adhere to the rule of adapting fixed chimney or VSBK technology for brick production. Besides, they

are prohibited to use such things as wood, rubber, tyre, plastic etc. as fuel, and the Emission Standard should be as prescribed by HMG. The brick kiln should be allowed to be installed at a distance of at least one kilometer away from a densely populated area and should be allowed to be located at a distance of at least five kilometer away from the forest area. These norms are to be carried out strictly; such being the substance of the written reply of the respondents.

While going through these written replies from the government agencies it is apparent that the brick kilns operated without permission were to be fined and such industries were to be closed down. Similarly, the written version of Cottage and Small Scale Industry office was such that the moving bull brick kiln industries should not be given permission for registration henceforth. In regard to those kilns that have already been registered, they should be pressed to install plant with less polluting technology within a period of one and half year. Such was the version of the Industrial Promotion Board. Reviewing the HMG's decision dated 2059/8/29, it is apparently clear that in addition to several other things, and they were required to adhere to emission standard as prescribed by HMG.

Besides, the brick kiln plants were required to be located at a distance of at least one kilometer away from the densely populated area and at a distance of five kilometer from the forest area. Three years have elapsed since the timing of decisions made by HMG and Industrial Promotion Board till to-date of the hearing of this case. If the executive body which is in charge of governing the state makes any decision and communicates it with its court about its decision in the course of hearing, naturally it is expected that those decisions should have been complied with and put into effect in the true sense of the term. But the learned government counsel, while pleading that took place after three years, could not enlighten the court about the details as to which of those decisions were put into effect and which ones could not be carried out. He could also have explained why they were not implemented and when they could be implemented etc. He has apparently failed to produce details about them. It is clear that a separate Ministry has been constituted by the state with the objective of controlling the pollution and maintaining clean environment in the country. As a case has been filed against the Ministry of Environment, addressing such a sensitive subject as environmental pollution which is under consideration of the court, the Ministry could have produced the progress report or additional information on the status of implementation of the decisions till the date of hearing of the case in

the court. Since no such information was furnished, the court has grounds to assume that the statements on actions mentioned in the written reply were intended to address the stated decisions alone. Thus it appears that the policies that were formulated have been limited to the sphere of paper work as against the responsibility of putting them into implementation. This court hereby seriously draws the attention of the Minister of Environment on this issue as it stands against the citizen's right to live in pollution-free and pure environment. Nobody is authorized to pollute the environment. Brick kilns, i.e. brick industry are a kind of industry that pollutes environment. Emission standards are fixed for such enterprises in other countries with the objective of bringing their pollution under control. Emission standard has been laid down for brick industry in India as well. In India maximum limit for the concentration of particular matter (Mg/w / Cu. m) is fixed on the basis of the trench width and production volume. The brick industries are classified into three categories- (1) producing less than 15,000 bricks per day, (2) 15,000 to 30,000 bricks per day and (3) above 30,000 bricks per day. In regard to those industries producing 15000 – 30,000 bricks per day, having 15.22 ft trench width, emission limit has been fixed for them up to 750 mg /N/Cu. m. In our country, the Regulation to this effect has come into force for the last nine years but the reality is that Emission Standard has not been prescribed as yet despite the realization that the brick is a polluting industry and this should be taken seriously.

As the brick industry is also linked to right of housing, there is a need to strike a balance between industry and pollution. The Ministry of Environment is entrusted with an important responsibility of controlling environmental pollution under our Environment Protection Regulation, 2054. This Regulation came into force on 2054/3/12. The Ministry of Environment assumes the role of protector and the watchdog against the environmental pollution. The Ministry gives, however, an impression that provisions of Regulation are meant to be applicable only for the forth- coming brick industries alone, whereas they are binding to brick industries that are in operation prior to the enforcement of the Regulation. That kind of interpretation is not justifiable. The industrial pollution with its adverse impact on environment and life of the people is sure to persist regardless of time of installation of the plants. It is the duty of the Ministry of Environment to implement the Regulation and oversee that the provisions of Regulation are strictly followed by the brick industries. The rule 16 of Chapter 3 of Regulation stipulates that industries operating prior to the enforcement of the Regulation are required to obtain provisional

pollution control Certificate within 90 days from the commencement of the Regulation. Since the Ministry of Environment asserts the compliance of the legal provision in its written reply, it has not evidently complied with legal responsibility. The criteria for the application of Rule 15 of the Regulation has not laid down for brick industries, as has been referred to in the written reply and in the pleading of the government counsel.

The benefits generated by the brick kilns to the entrepreneurs, labor and the general consumers, cannot be compared with the adverse environmental impacts caused by such brick kilns. Since the brick kiln industry can be deemed as a necessary evil, it is the responsibility of all the concerned agencies and civil society to realize their responsibility and discharge their duties towards minimizing the adverse impact emanating from brick kilns. In this regard, scientific research works are required to be done to explore into such questions as to how many brick kilns could be allowed to be operated in Kathmandu valley without causing substantive negative impact on the environment of this area. Quantitative assessment of demand of bricks in the valley and the number of brick kiln operating are to be ascertained. How many of them are registered and how many are not? What is the extent of pollution emitted by the brick kilns in the environment of the Valley? ; How much is the impact of pollution on the public health, natural resources and the cultural heritage? What are the most appropriate counteractive measures to be taken immediately as well as those to be taken in the long run? Research work aiming at those end are to be conducted. Based on such research findings, effective techniques should be devised and followed. In addition to that, priority should be given for lessening the impact of pollution emanating from such brick kilns that are operating in the vicinity of densely populated areas, schools, cultural and touristic zones, immediate measures are to be taken to lessen adverse impact in such areas.

In contemplating for the resolution of the final question as to whether or not the writ order should be issued as claimed by the petitioner. There is no controversy that the brick kilns pollute environment nor is there any controversy regarding the requirement of bricks for human settlement, development and construction works. In the absence of bricks, no houses can be built for human settlement. Lack of them can adversely affect the national development and construction works. This court cannot ignore the fact that there is no substitute for brick industry for the time being, nor can it be denied that it is an environment pollutant industry. Whereas the entrepreneurs running

brick industries are geared up to gaining personal benefits but the pollution that is created directly harms the natural environment. As a consequence, it has direct bearing on the health of the common people. Hence, if the brick industry is not to install pollution controlling machine or does not adopt VSBK technology in its operation by discarding traditional technology, the Ministry of Environment and the related agencies should be ready to take firm decision against them in consideration of larger public interest and in pursuance of the principle that the private interest yield to larger public interest within a fixed period of time to comply with the decision. As HMG is entrusted with the constitutional responsibility of governing the country, it is its constitutional duty to enforce the law in the real sense to protect the health of the people from the harms caused by the polluting environment. Therefore, these directives are issued to His Majesty's Government for their execution as stated here under:-

1. To form a team comprising representatives each from the Ministry of Commerce and Supply, Ministry of Science and Technology, Ministry of Physical Planning and Public Works, Ministry of Labor and Transport, Department of Housing and professional experts as required along with the representatives from the petitioner-public. The task of this team is to determine the number of industries that have polluted the environment, and those that have installed pollution- protection device and other those that have not;
2. To assess the impact of the closure of the brick kilns on national construction and development works as well as on the construction of civil houses and to study on possible alternatives in replacement of brick kilns.
3. To oversee closure of such brick industries that are located in and around the tourist resorts meant for the high class tourists contributing foreign exchange to the national treasury, those located at the vicinity of schools where children get education, and those located in densely populated rural areas.
4. Except for those areas mentioned in the above No.3, brick kilns located in other areas be made mandatory to install pollution controlling devices within the time limit as recommended by this committee through the legally authorized official or agency. This is valid to those brick kilns that are found emitting pollution from such study.

The team is assigned to achieve those tasks mentioned in the above 1, 2 and 3 within six months period and the copy of the related progress report be submitted to this court. The directive is issued to respondents allowing appropriate time required for the

accomplishment of tasks as mentioned in the above No.4. The writ petition is deemed to be dismissed. One copy of the order is sent to Attorney General Office for their information and case file be handed over as per rule.

I concur above decision.

Justice Kedar Prasad Giri

Done on 24th Mangsir, 2064 B.S. (10th December, 2007)

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Incorporation of third gender concept and right to choose either sex-marriage is due also in our constitution.

**Supreme Court, Division Bench
Hon'ble Justice Balaram K.C.
Hon'ble Justice Pawan Kumar Ojha**

Order

Writ No. 917 of the year 2064

Sub: Writ of Certiorari, Mandamus, Prohibition or any other order as it may require, be issued.

Petitioners: Sunil Babu Pant, Executive Director of Blue Diamond Society, Kathmandu Municipal Corporation Ward No. 2 Shiva Bhakta Marga Khursanitar, Lazimpat, et.al.

Vs

Respondents: Government of Nepal, Office of the Prime Minister and Council of Ministers, et.al.

- In the context of Article 107 (2) of the present Interim Constitution of Nepal, 2063 (2007 AD), the following disputes can be considered as PIL for the settlement of any constitutional or legal questions involved:

- Matters pertaining to the deprivation of the enjoyment of fundamental rights provided by Part III of the Constitution to the citizens of various classes, castes, tribes, sex, groups, language to the delay or inaction of the state;
 - Matter pertaining to the deprivation of enjoyment of fundamental rights due to the negligence in implementing the Directive Principles that are to be gradually implemented by the State;
 - In the situation where the State has acted against the letter and the spirit of the preamble to the present Constitution, especially its fourth paragraph.
 - Matter pertaining to the intervention on the independence of judiciary and other constitutional bodies which are required to act independently;
 - Matter pertaining to environmental pollution;
 - Matter pertaining to the interest and rights of the people of different castes or classes for whom special provisions can be made for the protection and empowerment as provided in the proviso to the Article 13 (3);
 - Matter pertaining to the interest and rights of other persons or group or class as mentioned in the Part 3 and 4 of the Constitution;
 - The issue falling under the public trust doctrine and the natural resources of Nepal viz. public land, rivers, forests etc;
 - The historical and archeological issues regarding the cultural heritage of Nepal;
 - Matter pertaining to the suffering of the citizens of any class or group or caste due to the negligence in upholding its constitutional duty by the executive; etc.
- Sometimes, a child born with genitals of one sex, due to the biological and natural process can develop sexual characteristics other than the one acquired at birth. It is not appropriate to think that they are not human beings or the citizens only because of such changes.
 - Thus, the people other than 'men' and 'women' including the people of 'third gender' cannot be discriminated on the ground of sexual orientation.
 - The State should recognize the existence of all natural persons including the people of third gender other than the men and women. And it cannot deprive the people of

third gender from enjoying the fundamental rights provided by Part III of the Constitution.

- No one has the right to question how do two adults perform the sexual intercourse and whether this intercourse is natural or unnatural.
- In the way the right to privacy is secured to two heterosexual individuals in sexual intercourse, it is equally secured to the people of third gender who have different gender identity and sexual orientation.
- In such a situation, therefore, gender identity and sexual orientation of the third gender and homosexuals cannot be ignored by treating the sexual intercourse among them as unnatural. When an individual identifies her/his gender identity according to the self-feelings, other individuals, society, the state or law are not the appropriate ones to decide as to what type of genital s/he should have, what kind of sexual partner s/he needs to choose and with whom s/he should have marital relationship. Rather, it is a matter falling entirely within the ambit of the right to self-determination of such an individual.
- Any provision that hurts the reputation and self-dignity as well as the liberty of an individual is not acceptable from the human rights' point of view. The fundamental rights of an individual should not be restricted on any grounds such as religion, culture, customs, values and the like.
- If any legal provisions exist that restrict the people of third gender from enjoying fundamental rights and other human rights provided by Part III of the Constitution and international conventions relating to the human rights which Nepal has already ratified and applied as national laws, with their own identity, such provisions shall be considered as arbitrary, unreasonable & discriminatory.
- The law which does not allow the people to enjoy their fundamental rights and freedoms retaining their own identity may be considered as discriminatory.
- As provided by Section 9 of the Nepal Treaty Act, 2047 (1991 AD), the ICCPR and the ICESCR should also be considered as the national laws of Nepal, it seems to us that the LGBTI should be allowed to enjoy the rights guaranteed by the Nepalese law without discrimination and with their own identity like other individuals.

- Therefore, this directive order is hereby issued to the Government of Nepal to make necessary arrangements towards making appropriate law or amending existing law for ensuring the legal provisions which allow the people of different gender identity and sexual orientation in enjoying their rights as other people without any discrimination following the completion of necessary study in this regard.
- We hold that it is an inherent right of an adult to have marital relation with another adult with her/his free consent and according to her/his will. The same sex marriage should be viewed from the view point of interest and rights of the concerned people as well as that of the society, family and all others.

Balaram K.C, J: Summary of this writ petition filed under Article 107(2) of the Interim Constitution of Nepal, 2063, is as follows:

We petitioners are affiliated with the organizations that represent the minority people based on sexual orientation and sexual identity. Prevalent society, law and state have not given us the place that is due to us. We have been demanding equal places for our rights dissenting upon the structure and design of law as well as assumptions adopted by the state and society based on majority. For the same reason, we have several instances that we have experienced with various physical and mental tortures. We the four applicants represent at least 60 thousand people.

The minorities under sexual orientation and gender identity include people like lesbian, gay and third gender. These people introduce themselves as persons with third nature. As a matter of international practice and language, they are recognized as third gender. On this, we are divided into five categories. They are – lesbian, gay, bisexual, third gender and intersexual. These identities are scientifically proved fact. Even in a Report the World Health Organization has acknowledged the existence and birth of such types of people. By confirming the existence of such types of people, the report has also emphasized that it is a natural phenomenon and not a disease. Despite the fact that the aforesaid persons are born naturally, the existing society mistrusts their existence in the name of unnatural phenomenon. We have been boycotted by the family and the society as a whole. Even the state has ignored us. In the situation of being

socially boycotted, we should have been protected by the law but the law does not seem serious in this issue. The state has not taken any initiative to resolve our problem. The state is responsible to provide equal status to all citizens by making sufficient laws in this issue.

The writ petition states that, the Interim Constitution of Nepal, 2063, in Part III and IV, has incorporated the provision of Fundamental Rights and Responsibility and Directive Principles and Policies of the State. Being the citizens of this country we have sufficient rights to claim and exercise all fundamental or human rights incorporated therein. The international human rights instruments, including the Universal Declaration of Human Rights have prohibited discrimination on the basis of race and origin. Many countries including the European countries have made remarkable legal provisions to protect the rights of the people in regard to the sexual orientation and gender identity. The latest one is South Africa which has made constitutional provision to ensure non-discrimination on the basis of sexual orientation. Similarly, the Constitution of Fiji has incorporated similar provisions. Number of instances can be found regarding this issue in the decisions of the courts in the United States of America and Canada as well as the European Court of Human Rights. There are many groups in different places of this category. In India, there is a group known as *Hijaras* and there is the provision of specifying their own sexual identity as *Hijara* in their passport and other identity cards.

The writ petitioners further state that there is no doubt that all Nepali citizens have equal standing in the eyes of the constitutional provisions of Nepal and rights enshrined by these provisions. It is the obligation of the state to treat all the people equally as well as to guarantee all fundamental rights to the people. Nepal has been the party to various international conventions and treaties after signing and ratifying them, and according to section 9 of Nepal Treaties Act, 2047 (1991 AD), the provisions of international treaties and conventions, to which Nepal is a party, should be adopted as national law. Thus, while there are fundamental rights guaranteed by the Constitution on one hand there are international human rights standards on the other. Therefore, as a party to such conventions, Nepal is responsible to fulfill the obligations set by such conventions. From the point of view of talking practically and legally, one segment of the population based on the sexual orientation and gender identity are deprived of exercising their human rights. The people of this community have suffered from the domestic, social and state violence everyday. Police administration and other state mechanisms are not sensitive towards the condition of such people. Even the officials of

the concerned government agencies are also in a dilemma in the matter of issuing citizenship certificate to us mentioning our sexual identity because our sexual identity is neither male nor female. We do not want to get the citizenship certificate as indicated other than of our identity. While going to the police administration to bring forward the issues of violation of our human rights as well as other violence and inhuman treatment meted to us, they seem reluctant to handle the case. The UN report has also mentioned this fact with emphasis. Even in the schools, colleges, government and private organizations including other public places, such people are facing offensive behavior and the perpetrators are not being subjected to the punishment; they are always being deprived of the utilization of other privileges provided by the state. The state relies on the tradition of not allowing one to marry a person of one's own choice. All these practices act against the self esteem of a person and the right to life as well as right to live with dignity.

That the writ petitioners state in their writ petition that, we, the people based on sexual orientation and gender identity being minority in number, are denied from enjoyment of the rights guaranteed by the Constitution and international human rights laws and we are compelled to live as a second class citizen, we the petitioners have filed the writ petition, requesting for issuance of the order of *mandamus* and other appropriate order for the protection and acquisition of our rights on the basis of constitution and laws, international law, precedent propounded by the Supreme Court in regards to the right to life of every person and other precedents, principles and values established by the United Nations in regards to the human rights. Moreover, we, the petitioners, hereby, request for the issuance of an order directing the opponents for granting the citizenship certificate and to make the laws based on the equality by repealing other discriminatory laws as well as for making necessary legal and institutional arrangements immediately by drafting new laws with the appropriate participation of concerned people to protect the rights of those people who have suffered due to discrimination and violence and none of the state owned institutions be involved in the discriminatory activities and violence. If they are involved in such activities there should be the provision of appropriate compensations.

Further, the writ petitioners have also sought for issuance of an ad hoc order for the period until the law is made as this court had passed in the case of *Gopal Siwakoti Chintan vs. Ministry of Finance et al.* The Legislature-Parliament Secretariat, in its affidavit submitted to this Court, has stated that the writ-petitioners have mentioned in their

petition that they do not want to obtain the citizenship certificate other than their own identity. The government also cannot issue such citizenship certificate. There does not seem any legal hindrance to obtain Nepalese citizenship certificate by choosing any other gender in the application form in case of not falling under the 'male' or 'female' category while mentioning their sex. Only concerned individual can enter into the court for the enforcement of such legal rights with evidence in case of being rejected the issuance of citizenship certificate even after submission of application. This writ petition seems to have been based on hypothetical presumption describing and analyzing only the issue without mentioning any example of discriminatory provisions against the people of different gender identity. In case the petitioners were treated in a discriminatory manner or given degraded treatment or violence is committed against them, nothing restricts them in getting remedy specifying their sexual identity distinct from a male or a female. Hence, the writ petition should be rejected.

The Office of the Prime Minister and Council of Ministers, in its affidavit submitted in this Court, has stated that the rights provided by the Constitution and other prevalent Nepal laws are equally applicable to all citizens. The writ petitioners have not mentioned anything as to how they were obstructed from enjoying the rights conferred to them. So far as the question of making a separate law for the group of people based on sex orientation and gender identity is concerned, the rights of the petitioners can be protected under the existing legal framework, and it is not necessary to make a separate law for the said purpose. Since it is the absolute jurisdiction of the legislature to decide as to what type of law should be made and amended on a particular issue, and as this matter does not fall under the jurisdiction of this office, therefore, there does not seem any pertinent reason and valid ground to make this Office a respondent. Let the writ petition be dismissed on the ground that the unconcerned Office is being made as an opposite party in the case.

Similarly, the Ministry of Law, Justice and Parliamentary Affairs, in its affidavit submitted to this Court, has stated that the state has not imposed any restriction to the writ petitioners enjoying fundamental rights conferred to them by Part III of the Interim Constitution of Nepal, 2063 (2007 AD). It seems obvious that the petitioners are natural persons. They are independent and able to enjoy all constitutional and legal rights to be obtained in the capacity of a person. The state has made no discrimination to the petitioners. Therefore, the claim made by the petitioners does not appear reasonable. So far as the question

of citizenship is concerned, the Nepal Citizenship Act, 2063 (2007 AD) has defined the term 'person' and this Act has not imposed any restriction to the petitioners from obtaining citizenship in the capacity of a person as every natural person may obtain the citizenship by birth and by descent according to the provision of this Act. Since the Ministry has not done anything that may infringe human rights of the writ petitioners from enjoying the fundamental rights conferred to them as the citizens, therefore, the writ petition should be dismissed

During the hearing of the case presented before the bench as per the rules, Learned Advocate Mr. Hari Phuyal appearing on behalf of the writ petitioners, argued that it is imperative for the state to protect the human rights of its citizens. The international instruments relating to human rights have guaranteed the right to equality to all human beings before the law, accorded equal protection of law and guaranteed non-discriminatory treatment on any grounds. The interpretation made by the South African Constitutional Court ensuring such human rights to the third sexes also may be taken into consideration in our context. The Constitutional Court has construed that no person can be subjected to discrimination on the ground of sexual orientation which includes the third genders as well. Nepal being a party to the major international conventions relating to human rights, the state should make arrangements for complying with such conventions in accordance with the provisions of Nepal Treaty Act, 2047 (1991 AD). As the people of third gender are not treated equally and as no effort has been made towards the protection of their rights, an order should be issued as sought by the writ petitioners. Likewise, the learned Advocates Mr. Hari Prasad Upreti, Mr. Chandra Kant Gyawali, Mr. Rup Narayan Shrestha, Mr. Bhuvan Prasad Niraula, Mr. Premchandra Rai and Ms. Sharmila Dhakal also put their arguments on behalf of the petitioners stating that the present writ petition was filed analyzing the troubles and difficulties faced by the people of third gender occurring due to nonexistence of the relevant legal frameworks and not fulfilling the responsibility by the state to protect the civil, political, economic, social and cultural rights of the minorities from the point of view of gender identity and sexual orientation by analyzing the international practices in this regard. It is the responsibility of the state to provide the documents including the birth certificate, citizenship certificate, passport, voter-identity card etc specifying the sex as per their interest to the people of gender minorities to make them free from the practice of gender discrimination. Accordingly, the word "sex" should be so defined by the law which may cover the third sex and group representing sexual orientation. And therefore, an order should be issued declaring the

legal provisions, which seem inconsistent with these principles, null and void as sought by the writ petitioners.

Appearing on behalf of the respondents including the Government of Nepal, Learned Deputy Government Attorney Mr. Krishnajibi Ghimire putting his argument before the Bench submitted that the Interim Constitution of Nepal, 2063 (2007 AD) has guaranteed that no citizen shall be discriminated in the application of general laws on grounds of religion, race, sex, caste, tribe, origin, language or ideological conviction. The writ petitioners have not been restricted by anyone to enjoy such rights. If any violence or misbehavior happens against the people of different gender identity, they also have equal rights to get remedy as other individuals. Hence, the writ petition must be rejected. After making perusal of the case file and hearing the arguments presented by the learned counsels representing both the sides, the bench has to resolve the following questions:-

- a. Whether or not the present writ petition filed in regards to the rights of homosexuals and the people of third gender, considered as minority on the basis of gender identity or sexual orientation, falls under the category of public interest litigation (PIL);
- b. What is the basis of identification of homosexual or third gender people? Whether it happens because of the mental perversion of an individual or such characteristic appears naturally;
- c. Whether or not the state has made discriminatory treatment to the citizens whose sexual orientation is homosexual and gender identity is third gender; and
- d. Whether or not an order as sought by the petitioners should be issued.

So far as the first question whether or not this writ petition, filed in regards to the rights of homosexual and the people of third gender considered as minority on the basis of gender identity or sexual orientation falls under the category of public interest litigation (PIL) is concerned, the society is an integrated form of different religion, race, origin, language, class, sex, gender, caste, community. All societies cannot be of the same structure and characteristics. There may be the situation in the society, where all classes of the people have not acquired equal opportunities.

So, it is a constitutional duty and responsibility of the state to make the deprived and socially backwarded classes and communities able to utilize the opportunity and enable them enjoy the rights equally as other people do. In jurisprudential parlance, it is usually called the

distributive justice and is also kept under the dimension of social justice. In our judicial practice, the issue of social justice is being recognized as an issue of public interest or the issue of public interest litigation (PIL). Definitely, because of many reasons including social, economic, cultural etc. as well as inaction of the state, the question of the protection of the rights of disadvantaged people or groups falls under the category of PIL. Our judicial practice and constitutional provisions are oriented towards this direction.

This writ petition seems to have been filed pursuant to Article 32 and Article 107 (2) of the Interim Constitution of Nepal, 2063 (2007 AD). The right to constitutional remedy conferred by Article 32 is also a fundamental right. However, the right guaranteed by Article 32 is not an absolute right in itself. Instead it is a right to file a petition before this court under its extraordinary jurisdiction in pursuance of Article 107 (2) for the enforcement of other fundamental rights conferred by Article 12 to Article 31 of Part 3 in case such rights have been infringed. Further, the right under Article 32 is to be considered as a right to provide the *locus standi* to file a petition before this court in case of infringement of various fundamental rights enshrined to the citizens by Part III of the Constitution. In other words, the right under Article 32 is a right to move the Supreme Court for the remedy in case of infringement of fundamental rights.

Likewise, there are two types of extraordinary jurisdictions vested in this court as provided by Article 107. The extraordinary jurisdiction of sub-Article (1) of Article 107 is the jurisdiction to make the judicial review of legislative power of Legislature for scrutinizing whether or not the statutes enacted under the legislative power and the rules issued under the delegated legislative power are inconsistent with the Constitution or not. Sometimes either due to the aversion of the legislature or mistake or error made by the draftsman in course of drafting the statutes inconsistent with the Constitution may be passed as a bill. It may also be passed because of the legislative inadvertence. There shall be no room to any statutory law which is inconsistent with the Constitution because in countries including Nepal where the constitutional supremacy prevails, the Legislature has supremacy only in the law making process. The Constitution is the only standard for this. The Constitution is enacted under the constituent power by the delegates chosen by the sovereign people using their inherent sovereign power of enacting the Constitution.

The Legislature is created under the Constitution, in other words it is a creature of the Constitution. Hence, while exercising the legislative

power, the Legislature cannot enact the law which contradicts with its own creator (i.e. the Constitution). The law which is inconsistent with the Constitution may be repealed or amended only through the constitutional process. However, it may take time to do so. There may not be sufficient time to summon and convene the session of the Legislature to repeal and amend such laws that are found enacted against the constitutional provisions. The rights of the people protected by the Constitution shall be at stake when it takes such a long time to repeal or amend these unconstitutional enactments. The Article 107 (1) of the Constitution has provided extraordinary power to this Court to declare such laws unconstitutional in order to protect the citizens from such risks. As the issues raised in this writ petition does not seem directly related to the provision of Article 107 (1) no further analysis is required on this matter.

Article 107(2) has also granted the extraordinary power to this Court. Under this Article, this Court imparts full justice by exercising its extraordinary power in situations given below:

- for the enforcement of rights conferred by the Constitution; or
- for the enforcement of any other legal right for which no other remedies have been provided or such remedies appeared inadequate or ineffective; or
- for the settlement of any constitutional or legal question involved in any dispute of public interest or concern.

Under the provision of Article 107 (2) as mentioned above or for the settlement of any constitutional or legal question involved in any dispute of public interest or concern which is also known as Public Interest Litigation (PIL) or Social Action Litigation (SAL), this court may issue the appropriate orders and writs including *habeas corpus*, *mandamus*, *certiorari*, *prohibition* and *quo warranto* for the enforcement of the rights infringed. The interest of the petitioner must be seen in a dispute where an individual is requesting for the enforcement of rights of personal interest. Otherwise the petition shall be rejected for the lack of *locus standi*. On the other hand the petitioners need not establish *locus standi* in a dispute of public interest where constitutional or legal question is to be settled. Any public spirited individual can file a petition *pro bono publico* and the petitions are entertained by the court and such rights can be enforced under Article 107 (2). In other words, the concept of traditional and conservative *locus standi* is, and should be, widened for the settlement of any constitutional or legal questions involved in the

public interest litigation (PIL). The *locus standi* is widened because in such disputes the groups of victims may not be able to secure justice for want of *locus standi* notwithstanding extraordinary powers being provided to this Court.

This writ petition has been filed by the Executive Director of the NILHIRA SAMAJ on behalf of the organization and others. It is seen from the written memorial submitted by the learned Counsels on behalf of the petitioners, the English name of the organization appears as the Blue Diamond Society (BDS established in 2057 (2000 AD) for the protection of the rights and the interests of third gender community. It is also seen that the petitioner organization is working for the protection, of the rights of sexual minorities in Nepal. Upon perusal of the writ petition, it is seen that the writ petitioners have prayed for the issuance of an order of *mandamus* and other appropriate orders regarding lesbian, gay, bisexual, transsexual and intersexes (LGBTI) people of sexual minorities in order to provide the gender identity on the basis of their gender feelings and to recognize their co-habitation as accordance with their own sexual orientation. A case where a constitutional or a legal question is involved is known as the public interest litigation where the issue as mentioned in the Article 107 (2) of the Constitution is raised. There are some norms and values behind having such provisions which allow the filing of petition on behalf of the victim by anyone in this Court where personal right of the petitioner is not necessarily infringed.

The Constitution has guaranteed different fundamental rights to the citizens. All individuals and citizens of different classes, groups and castes in the Nepalese society are not educated and aware. The people of different class, communities and castes residing in different parts of the country have been exploited and suppressed because of the lack of proper attention by the state and also due to prevailing illiteracy, lack of proper knowledge, social values, traditional practices, customs and economic backwardness or poverty etc. They are not even aware of their rights and do not have sufficient knowledge towards the enforcement of their infringed rights. It is for this reason that they have remained disadvantaged as a class. All citizens and groups in the society are not economically well off. In other words, due to the lack of education, ignorance and poverty the disadvantaged group of people are not aware of their rights conferred by the constitution or that the rights which are infringed and can be enforced by this Court. Therefore, the Article 107 (2) of the Constitution has provided the rights to any public spirited individual to file the petition on behalf of such disadvantaged groups by widening the traditional rule of *locus standi* for

the settlement of constitutional or legal question involved in a dispute of public interest or concern. And any individual, on behalf of such disadvantaged group, can file a petition for the enforcement of their rights under this Article 107 (2).

Since our traditional society has recognized only two types of sexes i.e. male and female. A dominant role has been provided to these two sexes 'male' and 'female' in the society. There exist practices of treating the people of third sex differently. The Court should take this matter into the judicial notice. Due to the lack of awareness, education and knowledge the tradition and practices of treating the third gender, other than the male or female, differently continues not only in our society but also in other countries. Therefore, the claim that the people of third gender may not file the petition on their own behalf cannot be held otherwise. The Part III of the Constitution confers various fundamental rights to the Nepali citizens. The Directive Principles and Policies of the State stipulated Part IV of the Constitution have kept the State at the centre for the enlistment and development of the citizens. All human beings including the child, the aged, women, men, disabled, incapacitated, third genders etc. are Nepali citizens. All the territory of this country including all citizens collectively constitutes the nation. The third genders among the population are also part of the Nepalese population as a whole. The third gender are still considered as disadvantaged class of citizens because of the social perception towards them and social behavior as well as lack of education, knowledge and economic backwardness within the society of third gender. The concept of public interest litigation has been developed by the court for the settlement of constitutional or legal questions involving the dispute of public interest or concern. In other words, the provision of Article 107 (2) of the Constitution has been incorporated for allowing any public spirited individual to file a petition *pro bono publico* on behalf of the backwarded people who due to reasons economic, social and educational etc can not do so by themselves.

The Part III of our Constitution provides several fundamental rights. However, all citizens who are supposed to enjoy such rights are not educated. All citizens are not economically well off. They are ignorant too. Such multiple factors push the people to backwardness. Hence, if the Court embraces the narrow concept of *locus standi* and traditional pattern of court on such issues, there can be no access to the fundamental rights and justice for the disadvantaged group of people. In view of this, the provision of filing the petition by any individual on behalf of the disadvantaged group of people has been made. There is no provision in the Indian Constitution, similar to Article 107 (2) of our

Constitution that provides for settlement of disputes involving public interest. Nevertheless the decision of Supreme Court of India in the case, *S.P.Gupta and others vs. President of India* is significant in regard to the issue of public interest litigation where the constitutional or legal questions are involved for settlement. The judgment in this case should be considered as a model for the concept of public interest litigation. Justice P.N. Bhagwati while clarifying the concept of PIL observed:

"...where a legal wrong or a legal injury is caused to a person or to a determinate class of persons by reason of violation of any constitutional or legal right or any burden is imposed in contravention of any constitutional or legal provision without authority of law or any such legal wrong or legal injury or illegal burden is threatened and helplessness or disability or socially or economically disadvantaged position, unable to approach the court for relief any member of the public can maintain and application for an appropriate direction or order."

The fundamental rights are stipulated in the Part III and the Directive Principles and Policies of the State in the Part IV of the Interim Constitution of Nepal. Such provisions have been made with the approach of securing the well being of citizens by transforming the country into welfare state. Furthermore, since the year 2047 BS (1990 AD), Nepal has ratified more than 18 international conventions including International Covenant on Civil and Political Rights (ICCPR), International Covenant on Economic, Social and Cultural Rights (ICESCR), Convention on Elimination of All Forms of Discrimination against Women (CEDAW). While formulating the policies, enacting and enforcing the laws, the Executive should keep in mind the constitutional provisions regarding the fundamental rights of the citizens and the Directive Principles and Policies of the State and international conventions relating to the human rights which are ratified by our country.

But where the Executive fails to do so, provisions of Article 32 and 107 (2) get activated. Therefore, the Executive should fulfill its constitutional responsibility keeping in mind the above mentioned provisions. While observing the working style of the Executive till now, it does not seem that these provisions have been complied with properly. The provision that allows everyone to file a petition for the settlement of constitutional or legal questions involved in a dispute of public interest or concern has been incorporated not only in the Article 107 (2) of present Constitution but also in the Article 88 (2) of the

previous Constitution of the Kingdom of Nepal, 2047 (1991 AD) which is now repealed. This Court has issued appropriate and proper orders in different writ petitions filed by various non-governmental organizations (NGOs and/or INGO's) and other public spirited individuals on behalf of the disadvantaged groups of people and for this purpose this Court has widened *locus standi* under its extraordinary jurisdiction in PIL cases where the constitutional or legal questions are involved for settlement. However, the question of *locus standi* is being raised time and again. Hence, it is seen necessary to interpret as to what type of dispute falls under the concept of PIL in which constitutional or legal questions involved are to be settled. In the context of Article 107 (2) of the present Interim Constitution of Nepal, 2063 (2007 AD), the following disputes can be considered as PIL for the settlement of any constitutional or legal questions involved:

- Matters pertaining to the deprivation of the enjoyment of fundamental rights provided by
- Part III of the Constitution to the citizens of various classes, castes, tribes, sex, groups, language to the delay or inaction of the state;
- Matter pertaining to the deprivation of enjoyment of fundamental rights due to the negligence in implementing the Directive Principles that are to be gradually implemented by the State;
- In the situation where the State has acted against the letter and the spirit of the preamble to the present Constitution, especially its fourth paragraph.
- Matter pertaining to the intervention on the independence of judiciary and other constitutional bodies which are required to act independently;
- Matter pertaining to environmental pollution;
- Matter pertaining to the interest and rights of the people of different castes or classes for whom special provisions can be made for the protection and empowerment as provided in the proviso to the Article 13 (3);
- Matter pertaining to the interest and rights of other persons or group or class as mentioned in the Part 3 and 4 of the Constitution;
- The issue falling under the public trust doctrine and the natural resources of Nepal viz. public land, rivers, forests etc;
- The historical and archeological issues regarding the cultural heritage of Nepal;

- Matter pertaining to the suffering of the citizens of any class or group or caste due to the negligence in upholding its constitutional duty by the executive; etc.

Above mentioned issues are the issues of public interest litigation in our context. Any public spirited individual or group may file the petition on these issues on behalf of the disadvantaged group of people under Article 107(2) of the Constitution. However, this is not an exhaustive list of matters; some other issues may also fall under this category as per the constitutional provisions. It cannot be limited by making a list of such issues.

The issues rose in the writ petition such as gender identity, gender discrimination and obstacles faced due to it as well as the issue of gender recognition etc. are matters concerning social justice and social interest. This Court has enunciated the principles in several cases by emphasizing the right to move to the Court on such issues for necessary remedies. This writ petition, which is filed for the rights and interest of their group which represents the homosexuals and third genders on the issues of gender identity and sexual orientation by protesting the behavior of the state and the society towards them, seems within the scope of public interest litigation. Moreover, the petitioners seem to have substantial interest and meaningful relation with the issues that is raised in the writ petition. Hence, as analyzed above, the Court does not agree with the arguments of the defendants that the organizations established for the protection of the interest and rights of LGBTI people lack the *locus standi* to file this petition.

So, the Court holds that the writ petitioners have the *locus standi* to file this writ petition.

The second question raised above, relates to the basis of identification of homosexual or third gender people and whether it happens because of the mental perversion of an individual or such characteristics appears naturally. It seems to us that there is a practice of using the term 'sex' to depict the difference between the individuals on the basis of genitals whereas the term 'gender' is used for the role assigned by the society on the basis of sex. There are people having the identity of 'third gender' in minority in the society other than the 'male' and 'female', which are categorized as the mainstream on the basis of gender identity.

It is found that the medical science and psychology have categorized three types of people of different sexual attraction on the basis of

sexual orientation. According to this practice, sexual relation or sexual attraction between the people of same sex is called homosexual relation. On the contrary, sexual relation or sexual attraction between the people of opposite sex is called heterosexual relation and the sexual relation or the sexual attraction between the people either of same sex or of opposite sex equally is called bi-sexual relation. Similar to what men and women are considered as the mainstream of the society on the basis of gender identity, from the point of view of the sexual orientation, the heterosexual people, because of their number, are considered as the mainstream of that group. On the other hand, the number of homosexual and bi-sexual people is not large in the society. Among the homosexuals also two types female homosexual (lesbian) and male homosexual (gay) are found. Similarly, persons who are born with the physical characteristics of one sex but psychologically feel and behave like members of opposite sex are called transsexual.

The other category of sexual minority are intersexuals who are born naturally with the both genetic sex organs of male and female. The number of such people is very few. Their gender is determined on the basis of their sexual orientation when they become adult. Thus, in totality, the five categories are found within the group of sexual minority, namely lesbian, gay, bisexual, transgender, intersexual which are known as LGBTI in an abbreviated form. The main contention of the writ petitioners is that this group has not been recognized yet on the basis of sexual orientation and gender identity. Prior to considering the contention of the petitioners, it seems relevant to define the term 'sexual orientation' and 'gender identity'. A meeting of the human rights experts working in the field of sexual orientation and gender identity held in Jakarta, Indonesia from 6th to 9th November 2006 has adopted The Jakarta Principles on the Application of International Human Rights Law in relation to Sexual Orientation and Gender Identity. The definition of sexual orientation and gender identity given in the principles is as follows:

Sexual Orientation is understood to refer to each person's capacity for profound emotional, affection and sexual attraction to, and intimate and sexual relations with, individuals of a different gender or the same gender or more than one gender.

Gender Identity is understood to refer to each person's deeply felt internal and individual experience of gender, which may or may not correspond with the sex assigned at birth, including the personal sense of the body (which may involve, if freely chosen, modification of

bodily appearance or function by medical, surgical or other means) and other expressions of gender, including dress, speech and mannerisms.

In this context, it seems relevant to give lexical meaning of some words and phrases frequently used in this petition which are as follows:-

Lesbian - A woman who is sexually attracted to other woman.

Gay - A homosexual person especially a man.

Bisexual - a person who is attracted to both man and woman.

Transsexual - A person especially a man who feels that he should have been opposite sex, and therefore behaves and dresses like a member of that sex.

Homosexual - A person, especially a man, who is sexually, attracted people of the same sex and not to people of the opposite sex.

Source-Cambridge Advanced Learner's Dictionary (online version)

Transgender - Transgender is the state of one's "gender identity (self-identification as woman, man, or neither) not matching ones "assigned sex" (identification by others as male or female based on physical/genetic sex). "Transgender" does not imply any specific form of sexual orientation; transgender people may identify as heterosexual, homosexual, bisexual, pansexual, poly sexual, or asexual. The precise definition for transgender remains in flux, but includes:

- "Of, relating to, or designating a person whose identity does not conform unambiguously to conventional notions of male or female gender roles, but combines or moves between these."
- "People who were assigned a sex, usually at birth and based on their genitals, but who feel that this is a false or incomplete description of themselves."
- "Non-identification with, or non-presentation as, the sex (and assumed gender) one was assigned at birth."

Intersexuality- Intersexuality is the state of a living thing of a gonochoristic species whose sex chromosomes, genitalia, and/or secondary sex characteristics are determined to be neither exclusively male nor female. An intersexes organism may have biological characteristics of both the male and female sexes. Intersexuality is the term adopted by medicine during the 20th century applied to human beings who cannot be classified as either male or female.

Intersexuality is also the word adopted by the identity-political movement, to criticize medical protocols in sex assignment and to claim the right to be heard in the construction of a new one.

Source: Wikipedia

In this context, it also seems relevant to quote the following excerpt published in the book titled, Sexual Orientation and Gender Identity in Human Rights Law, published by the International Commission of Jurists.

Discrimination on the grounds of sexual orientation and gender identity may give rise to the most egregious human rights violations, such as extrajudicial killings, torture and ill-treatment and arbitrary detention. Demonstrating that discrimination has consequences in the deprivation of enjoyment of all other guaranteed human rights. These include inter alia the right to life, right to liberty, right to a fair trial by an independent and impartial tribunal, right to privacy, freedom of conscience, freedom of opinion, freedom of assembly and freedom of association, equal access to public services, equality before the law and equal protection of the law, right to work, right to social security including social insurance, right to the enjoyment of the highest attainable level of health, right to education, and right to adequate housing. The social sexual orientation exposes them more to violence and human rights abuses; this stigmatization also increases the climate of impunity, in which such violations frequently occur.

In some countries, sexual relationships between same-sex consenting adults or “unnatural behavior”, such as the manifestation of transgender behaviors, are criminalized under “sodomy laws” or under the abuse of morality laws, which violate the right to privacy and the equal protection of the law without discrimination. Such criminalization reinforces attitudes of discrimination between persons on the basis of sexual orientation. In some countries such acts are punishable by corporal punishments or the death penalty impairing the right to be free from cruel, inhuman or degrading punishment and the right to life. Treaty bodies, the former Commission on Human Rights and special procedures have expressed concern at such criminalization, called on States to refrain from such criminalization and where such laws exist repeal them, and urged all States that maintains the death penalty not to impose for sexual relations between same-sex consenting adults.

Violence taking place in some countries against lesbian, gay, bisexual or transgender (LGBT) persons, including killing, “social cleansing”, torture and ill- treatment, impairs the right to life, the right to be free

from torture and cruel, inhuman or degrading treatment or punishment, and the right to security and is also a matter of concern of treaty bodies and special procedures of the former Commission. Victims of criminal offences suffer.

From discrimination because of their sexual orientation and gender identity, as they are often perceived as less credible by law enforcement agencies and police officials frequently show prejudice towards such persons. These particular in cases of abuse, ill treatment, including rape or sexual assault, torture, or sexual harassment, and may be disinclined to investigate promptly and thoroughly extrajudicial executions of LGBT persons. The refusal to bring those responsible for such killings to justice and to ensure that such killings particularly disturbing. The special procedures and the treaty bodies have repeatedly asked the States to take action to protect the right to life of LGBT persons, including proper investigation in cases of violence against LGBT persons. They have also called on states to take initiatives against homophobia and hate crimes, including policies and programmes aimed towards overcoming hatred and prejudice against LGBT persons.

While studying the exercise and practices in regard to the gender identity, the High Court of the United Kingdom has in 1970 held that the gender identity should be determined on the basis of three inherent elements of an individual like genital sex, chromosomal sex and gonad sex. However, dissenting with this precedent, a Family Court of Australia observed that the actual sex is being used to identify whilst determining the gender for the purpose of marriage, and the biological, physical and psychological characteristics (e.g. brain sex) should also be taken into consideration for this purpose. This decision has accepted the self perception of concerned individual. It seems relevant to extract some portion of the decision of the Australian Family Court here:

It is wrong to say that a person's sex depends on some limited range of factors, such as the state of the person's gonads, Chromosomes or genitals (whether at birth or at some other time)... the relevant matters include the person's biological and physical characteristics at birth; ... the person's self perception as a man or woman;... and the person's biological, psychological and physical characteristics at the time of the marriage, including any biological features of the person's brain that are associated with a particular sex.

The European Court of Human Rights has accepted the concept of this decision in the case of *Goodbin v. United Kingdom*. Similarly, the scientific and medical studies have, on the basis of research, drawn conclusions that only genitals at birth do not determine an individual's gender identity. Mental characteristics also have an impact on it.

The issue of sexual orientation has also been raised in the writ petition. The petitioner has stated that the homosexuals are being treated differently by the society only because of their sexual attraction towards the person of similar sex. The interpretation of the Constitutional Court of South Africa is significant in this context. It seems relevant to quote here some portion of the judgment of this court in the case of *National Coalition for Gay and Lesbian Equality and others v. Minister of Justice and others*:

"...Sexual Orientation is defined by reference to erotic attraction: in the case of heterosexuals, to members of the opposite sex; in the case of gays and lesbian, to members of the same sex. Potentially a homosexual or gay or lesbian person can therefore be anyone who is erotically attracted to member of his or her own sex."

Similarly, in a publication of the Human Right Watch states that *"...Sexual Orientation generally refers to the way in which a person's Sexual and emotional desires are directed. The term categorizes according to the sex of the object of desire- that is, it describes whether a person is attracted primarily toward people of the same or opposite sex or to both."*

The Supreme Court of United States of America in the case of *Lawrence et.al. v. Texas (2003)* has declared a law unconstitutional which considered an act of sexual relation between the consenting adults of same sex a crime. It is also found that the Constitutional Court of Ecuador has also declared a provision of the national law that pronounced a homosexual relation a crime, and hence null and void. The said court as early as in 1997 declared Section 516 of Criminal Code of that country null and void for being contrary to the Constitution and Article 26 of the ICCPR.

After considering above mentioned various contexts, it seems to us that the traditional norms and values in regards to the sex, sexuality, sexual orientation and gender identity are changing gradually. It is also seen that the concept specifying that the gender identity should be determined according to the physical condition and psychological feelings of a person is being established gradually. The concept that

homosexuals and third gender people are not mentally ill but leading normal life style is in the process of entrenchment. In this context, it seems contextual to quote relevant portion of the Report of Interdepartmental Working Group (of the UK):

"...there is zero evidence that psychiatric intervention can 'cure' transsexualism, just as there is zero evidence that psychiatry can 'cure' homosexuality."

According to a report (Kinsey Report) there are 5 to 8 percent people in the society who are included in the group that is covered by the definition of the sexual orientation given above. This fact has portrayed the life style of a certain number of people who are in minority in the society on the basis of gender identity and sexual orientation. This helps to substantiate view that sexual orientation is a natural process in course of physical development of a person including self-experience rather than due to the mental perversion, emotional and psychological disorder.

Now let's discuss the third question as to whether or not the state has made discriminatory treatment towards the citizen whose sexual orientation is homosexual and gender identity is trans-gender. The petitioners have alleged that the state has made discriminatory treatment to the citizen whose sexual orientation is homosexual and gender identity is transgender. The contentions of the petitioners also seem that the people of this community have been the victim of violence perpetrated by the family, society as well as the state; that they are deprived of social, economical, cultural, political and civil rights; that they have been humiliated in the society and family; that they have been deprived of the enjoyment of service and benefits provided by the state; and that they have also been deprived of the basic rights such as employment, marriage and citizenship etc.

The issue of vindication of the identity of third gender is not the problem facing our country alone. It has been an issue of intense debate all over the world. Definitely, the third gender people cannot easily be established in the society with their natural characteristics. In this context it seems relevant to state a portion of the Report of the Special Rapporteur of the United Nations in regard to the problem being faced by this community:..member of sexual minorities are disproportionately subjected to torture and other forms of ill treatment because they fail to conform to socially constructed gender expectation. Indeed, discrimination on grounds of sexual orientation or gender identity may often contribute to the process of the

dehumanization of the victim, which is often a necessary condition for torture and ill treatment to take place.

The Jakarta Principles has also clearly stated the problem which is being faced by the people of different sexual orientation and gender identity. The portion stated in the preamble of the principles is as follows:

“...Disturbed that violence, harassment, discrimination, exclusion, stigmatization and prejudice are directed against persons in all regions of the world because of their sexual orientation or gender identity, that these experiences are compounded by discrimination on grounds including gender, race, age, religion, disability, health and economic status, and that such violence, harassment, discrimination, exclusion, stigmatization and prejudice undermine the integrity and dignity of those subjected to these abuses, may weaken their sense of self-worth and belonging to their community, and lead many to conceal or suppress their identity and to live lives of fear and invisibility;

Aware that historically people have experienced these human rights violations because they are or are perceived to be lesbian, gay or bisexual, because of their consensual sexual conduct with persons of the same gender or because they are or are perceived to be transsexual, transgender or intersex or belong to social groups identified in particular societies by sexual orientation or gender identity.”

The incidents against the gender minority in Columbia have been recounted in the Report of the High Commissioner for Human Rights published on the 16th May 2006 as follows:

“... Lesbians, gays, bisexual and transgender were exposed to murder and threats in the name of “social cleansing.” Generally speaking the results of investigations into the identities of perpetrators are very inadequate. Those groups were the victims of arbitrary detentions and cruel, inhuman or degrading treatment by member of the police force. There have also been allegations of harassment of homosexuals by members of the illegal armed groups. There are no specific public policies to prevent or penalize such actions or to eliminate discrimination against those groups, especially in educational establishments, in the field of employment, in the police force and in detention centers...”

These facts demonstrate that the incidents of ill-treatment against the third gender and homosexuals are taking place not only in Nepal but also in national and international level as well.

Let us consider the context of Nepal by keeping the abovementioned facts and contexts in background. Article 13 of the Interim Constitution of Nepal, 2063 (2006 AD) has guaranteed the right to equal protection of laws and has proscribed discrimination on the grounds of sex, race and caste and the like. Similarly, Articles 33 has provided for abolition of discriminatory laws and Art 34 for securing social justice. Likewise, Nepal has shown its commitment towards the universal norms of the human rights by ratifying a significant number of international conventions for the protection of human rights. Nepal has already ratified the International Convention on Elimination of All Forms of Racial Discrimination, 1965, the International Covenant on Civil and Political Rights, 1966, the International Covenant on Economic, Social and Cultural Rights, 1966, the Convention on Elimination on all Forms of Discrimination against Women, 1979 and the Convention on the Rights of the Child, 1989. The provisions such as protection and promotion of human rights of the individual and elimination of all forms of discriminations have been accepted in these conventions. Being a party to these international treaties and conventions, the responsibility to implement the obligations created by instruments to which state is a party rests on the Government of Nepal according to the Vienna Convention on International Treaties, 1969 and the Nepal Treaty Act, 2047 (1991 AD).

It has already been mentioned that the term ‘sex’ denotes the men and women only. It is an old notion considers the people of third sex other than the men and women as rare and that the people of third sex are sexual perverts. Such old notions have no value if one holds the view that welfare states, dedicated to the human rights should protect the right to life of every citizen.

In countries such as India, USA, Brazil, Mexico, United Kingdom, Spain, Belgium, The Netherlands, Colombia etc. voices are being raised for the recognition of third gender people and legalization and de-stigmatization the same sex marriage. If one looks at the situation prevailing in our neighboring country, India, one will find thousands of *Hijras* and *Kothis* there. To be a homosexual or a third gender is not a disease in itself. There is a legal provision in our country that criminalizes same sex marriage on the ground that it is unnatural coition. However, the sexual preferences and choices of every individual may not be the unnatural coition. Hence, it is an appropriate

time to think about decriminalizing and de-stigmatizing the same sex marriage by amending the definition of unnatural coition.

In this context it is significant to state the provision of Article 26 of the International Covenant on Civil and Political Rights- ICCPR. Article 26: All persons are equal before the law and are entitled without any discrimination to the equal protection of law. In this respect, the law shall prohibit any discrimination and guarantee to all person's equal and effective protection against discrimination on any ground such as race, color, sex, language, religion, political or other opinion, national or social origin, property, birth, or other status.

The above mentioned Article 26 has emphasized that all persons are equal before the law and they all are entitled to the equal protection of law. It has also accepted the principle of non-discrimination on the grounds of race, color, sex, language, religion, political or other opinion, national origin, property, birth or other status. The Human Rights Committee of the United Nations has asserted that in order to construe the Article 26 of ICCPR, the article includes the term sexual orientation within this definition. The Committee has mentioned that:

"...Sexual Orientation needs to be understood as link inseparably to the equality of men and women. Thus discrimination on grounds of Sexual Orientation is connected to discrimination against people who do not live out socially accepted norms for "masculinity" and "femininity". The concept of "Gender Identity" cannot be separated from that of "Sexual Orientation" as prohibited grounds of discrimination."

The European Court of Human Rights has also articulated the similar kind of jurisprudential concept. The court, while developing the jurisprudence on privacy and sexual orientation has proscribed discrimination on the ground of gender identity. In the case of *Van Kuck vs. Germany*, which was filed against the discriminatory insurance provision that did not take the responsibility of the surgical operation for sex change, the court has interpreted that: *"...the applicant's freedom to define herself as a female person, one of the most basic essentials of self determination the very essence of the European Convention of Human Right being respect for human dignity and human freedom. Protection is given to the right of transsexual personal development and physical and moral security."*

Similarly, the court in two cases namely, *Goodwin vs. United Kingdom* and *I vs. United Kingdom* in 2002 explicitly recognized the rights of the third gender individuals. In this case the UK government had declined

to prepare the legal identity papers of individuals corresponding to the present sex following the change through surgical operation. The court held that *changes in their identity papers holding their right, to respect for their private lives and also their right to marry had been violated.*

Article 26 of the International Covenant on Civil and Political Rights, 1966 is an article pertaining to the rights to equality of the human being. This is accepted under the provision of right to equality enshrined in the constitutions of all the independent and sovereign states. The Article 13 of our Constitution can be taken as an example. This Article provides the right to equality for all citizens which states:-

Article 13: Right to Equality:

- (1) All citizens shall be equal before the law. No person shall be denied the equal protection of the laws.
- (2) There shall be no discrimination against any citizen in the application of general laws on grounds of religion, race, sex, caste, tribe, origin, language or ideological conviction or any of these.
- (3) The State shall not discriminate among citizens on grounds of religion, race, caste, tribe, sex, origin, language or ideological conviction or any of these.
Provided that nothing shall be deemed to prevent the making of special provisions by law for the protection, empowerment or advancement of women, Dalits, indigenous ethnic tribes, Madeshi or peasants, laborers or those who belong to a class which is economically, socially or culturally backward, or children, the aged, disabled or those who are physically or mentally incapacitated.
- (4) *There shall be no discrimination with regard to remuneration and social security between men and women for the same work.*

According to the data published by the Central Bureau of Statistics/Government of Nepal in 2005, there are different religious groups in Nepal such as Hindu, Buddhist, Muslim, Kirat, Jain, Christian, Sikh, Bahai and others. The state cannot discriminate these religious groups. According to the data of the Government of Nepal, there are 102 identified races and castes in Nepal. The state cannot discriminate anyone on the ground of religion, race and caste. Similarly, it cannot discriminate on the basis of sex also. Non-discrimination on the basis of sex is a fundamental right of every citizen. The male and female have been clearly mentioned under the category of 'sex' in the data published by the Central Bureau of

Statistics whereas the identity of third gender has not been accepted there. Only male and female are mentioned in all reports. The third gender has not been mentioned even under the 'others' category.

It is a simple belief is that a child generally is born normal at birth. However, sometimes abnormal children such as having more than five fingers in a hand or blind or Siamese twins or handicapped are also born. Similarly, on the basis of genitals, intersex children, other than the male and female, having both genitals may also born. Sometimes, a child born with genitals of one sex, due to the biological and natural process can develop sexual characteristics other than the one acquired at birth. It is not appropriate to think that they are not human beings or the citizens only because of such changes. It is an uncontroversial fact that only two sexes- male and female being recognized on the basis of sex in traditional society. The expressions such as human beings, sex or gender are fundamentally different.

The fundamental rights comprised under Part III of the Constitution are enforceable fundamental human rights guaranteed to the citizens against the state. For this reason, the fundamental rights stipulated in Part III are the rights similarly vested in the third gender people as human beings. The homosexuals and third gender people are also human beings as other men and women are, and they are the citizen of this country as well.

Except in Article 13(4) which refers to equal remuneration, the terms 'citizen' or 'sex' are used instead of 'men' and 'women' everywhere in the Interim Constitution. But it can be possible to classify the natural person under various categories not only the above mentioned categories. For example child, aged, adult and old on the basis of age or tall and short on the basis of height or black and white on the basis of complexion. Similarly, a natural person can be classified as male or female or third gender on the basis of gender. Thus, the people other than 'men' and 'women' including the people of 'third gender' cannot be discriminated on the ground of sexual orientation. The State should recognize the existence of all natural persons including the people of third gender other than the men and women. And it cannot deprive the people of third gender from enjoying the fundamental rights provided by Part III of the Constitution.

Taking note of Art 26 of the ICCPR, in the constitutions of several countries, the term 'sex' has been used instead of 'men' and 'women'. This is for the purpose of eliminating possible discrimination on the ground of sexual orientation. No citizen is allowed to be discriminated

on the ground of sexual orientation. South Africa may be said to be the first country which has incorporated the provision of non-discrimination on the ground of sexual orientation in the 'Bills of Rights of its Constitution. Under the provision of right to equality, the sub - Article (3) of Article 9 of the Constitution which was adopted on 8 May 1996, amended on 11 October 1996 and came into effect from 7 February 1997 reads as follows:

Article 9(3):

The state may not unfairly discriminate directly or indirectly against any one on one or more grounds including race, gender, sex, pregnancy, marital status, ethnic or social origin, color, sexual orientation, age, disability, religion, conscience, belief, culture, language and birth. Thus, it is clearly mentioned in this Constitution that no person can be discriminated on the ground of sexual orientation. Similarly, the interpretation made by the Constitutional Court of South Africa on equal protection of the homosexuals and the people of third gender seems significant in this regard. While guaranteeing the constitutional protection against all forms of discrimination on the ground of gender identity, the court has emphasized that: *"...the concept 'Sexual Orientation' as used in S. 9(s) of the 1996 Constitution must be given a generous interpretation of which it is linguistically and textually fully capable of bearing. It applies equally to the orientation of persons who are bisexual or transsexual and it also applies to the orientation of persons who might on a single occasion only be erotically attracted to a member of their own sex."*

The decision made by the Constitutional Court of South Africa can be considered an important document with regard to the right and interest of the people of the third gender. Likewise, Article 5 of the Convention on the Elimination of All Forms of Discrimination against Women (CEDAW) has called for the modification of all types of prejudiced and customary social practices that make people inferior or superior on sexual ground. The Article states that: *"... States parties shall take all appropriate measures to modify the social and cultural patterns of conduct of men and women, with a view to achieving the elimination of prejudices and customary and all other practices which are based on the idea of the inferiority or the superiority or either of the sexes or on stereotyped roles for men and women."*

As can be seen from the numerous initiatives mentioned above, the jurisprudential concept that the rights of sexual minorities need to be protected is getting stronger. The sensitivity and awareness regarding

sexual feeling and natural behavior of a human being is also developing. The social principle that accepts natural tendencies in human behavior is slowly evolving. Here, it will be pertinent to quote a portion written by Paul Hunt in a UN Report on Rights and Health. It reads “...sexual rights include the right of all persons to express their sexual orientation with due regard for the well being and rights of others, without fear of persecution, denial of liberty or social interference.”

Various opinions and views are expressed in regard to the rights of homosexuals and the people of third gender. Several countries especially the Muslim countries seem to stand against recognition of homosexuality as a right because of their religious and cultural beliefs and values.

However, it seems to us that it is not just an issue of mere debate now. It has acquired wider concern and interest at the national and international level. The following was the view of Ms Luis Arbor, the UN High Commissioner for Human Rights in the International Conference of Homosexuals and Transsexuals in Montreal on 26 July, 2006:

“Freedom of religion is a right that also protects the freedom not to share in religious beliefs or be required to live by them. Under the broad and ill-defined mental of ‘culture’ states may fail to recognize the diverse voices within their own communities, or may deliberately choose to suppress them. Such an approach stems from an ossified vision of culture, however, which ignores the indisputable transformation of social mores as well as the obligation to promote tolerance and respect for diversity required by human rights law as core aspects of the right to privacy.

...respect for cultural diversity is insufficient to justify the existence of laws that violate the fundamental right to life, security and privacy by criminalizing harmless private relation between consenting adults. Even when such laws are not actively enforced or worse when they are arbitrarily enforced, their mere existence fosters an atmosphere of fear, silence and denial of identity in which LGBT persons are confined. Neither the existence of national laws, nor the prevalence of custom can ever justify the abuse, attacks, torture and indeed killing that gay, lesbian, bisexual and transgender persons are subjected to because of who they are or are perceived to be. Because of the stigma attached to issues surrounding sexual orientation and gender identity, violence against LGBT person is frequently unreported,

undocumented and goes ultimately unpunished. Rarely does it provoke public debate and outrage. This shameful silence is the ultimate rejection of the fundamental principle of universality of rights.

Even today various opinions are expressed against the abovementioned norms and values developed in regard to the recognition of the sexual orientation and gender identity, to the effect that sexual activities among the homosexual and transsexual are not natural; that they are not capable of reproduction and that it engenders social pollution. Stating it to be an unnatural relation, strong views are, thus, expressed against its legalization. However, such views are influenced by traditional approach of gender identity that recognizes only male and female. The right to privacy is a fundamental right of an individual. The issue of sexual activity falls under the definition of privacy. No one has the right to question how do two adults perform the sexual intercourse and whether this intercourse is natural or unnatural. In the way the right to privacy is secured to two heterosexual individuals in sexual intercourse, it is equally secured to the people of third gender who have different gender identity and sexual orientation. In such a situation, therefore, gender identity and sexual orientation of the third gender and homosexuals cannot be ignored by treating the sexual intercourse among them as unnatural. When an individual identifies her/his gender identity according to the self-feelings, other individuals, society, the state or law are not the appropriate ones to decide as to what type of genital s/he should have, what kind of sexual partner s/he needs to choose and with whom s/he should have marital relationship. Rather, it is a matter falling entirely within the ambit of the right to self-determination of such an individual.

In consideration of the backgrounds as mentioned hereinabove in various paragraphs, it seems to us that efforts have not been made to protect and promote the interest and rights of the homosexuals and the people of third gender under the Nepali laws. Although, there is no distinct law that declares the relation between homosexuals as crime (it is kept within the definition of unnatural coition), there is a claim that the state mechanism has implicitly contributed to the discrimination created due to negative attitude of the society towards these people which cannot be ignored. As the concept of trans-sexuality has not been legally accepted, one cannot also dismiss the claim that the transsexual and homosexual peoples are not living their lives easily by keeping their own identity. These people have been compelled to appear in the public life with the identity as determined according to their genitals instead of their own characteristics,

and, it is very important to reconsider the prevalent values in the context of human rights and fundamental rights.

We should also gradually internalize international practices in regard to the enjoyment of the right of an individual in the context of changing global society and practices of respecting the rights of minority. If we continue to ignore the rights of such people only on the ground that it might cause social pollution, our commitment towards respecting human rights will be questioned internationally. It cannot be said that only because of their behavior, activities and conduct guided by their self-feeling as well as their cross dress other than one imposed by the society according to their gender identity, will pollute the society. This is so, as an individual does not change his own natural identity merely to imitate other people. The medical science has already proved that this is a natural behavior rather than a psychiatric problem. Now, therefore, it is not desirable to cling to the old belief by ignoring the conclusion drawn by science and medicine. Any provision that hurts the reputation and self-dignity as well as the liberty of an individual is not acceptable from the human rights' point of view. The fundamental rights of an individual should not be restricted on any grounds such as religion, culture, customs, values and the like. The legal provisions in our prevailing laws such as the chapters 'Of bestiality', 'Of Marriage', 'Of Husband and Wife' of the Country Code (Muluki Ain), 2020 (1963 AD) as well as provisions incorporated in other statutes and rules with regard to the citizenship, passport, voter list, security check etc and similar legal practices have not only refused to accept the identity of the people of third gender but also declined to acknowledge their existence. Similarly, it seems necessary to analyze the situation in which due to administrative thinking and social environment the people of third gender are not finding it conducive to lead the life springing from their behavior and character and dictated by their nature. For example, an individual who is born with a male genital may show feminine character when he becomes an adult and dress up like a woman. Yet he holds the identity card of a man as provided by the state and the society. Similarly person born with female genital may show masculine character but may carry with him/her the identity certificate of a woman as provided by the state or society. It is obvious that such persons face the problem of identity. Coming to the fourth question i.e. whether or not an order prayed for by the petitioners should be issued, the writ petition seems to have been filed on behalf of the minority people on the basis of sexual orientation and gender identity. The major contentions of the petitioners can be classified as follows:

- Legal provisions should be made to provide for gender identity to the people of transgender or third gender, under which female third gender, male third gender and intersexual are grouped, as per the concerned person's self-feeling. Such people should not be discriminated on the basis of sex.
- The fundamental human right of the lesbians, gays, bisexuals and transgender people should be protected by the state and society according social recognition on the basis of their sexual orientation and by making appropriate legal provisions that ensures them the life with freedom as other heterosexual people.

In consideration of the first contention, the petitioners seem to argue that the people of third gender, for not being 'men' or 'women', are deprived of the identity papers including the citizenship certificate from the government offices that mentions their own sex; that they are deprived of the benefits from the educational institutions as well as other public offices as citizens; and that they are also being dishonoured and disrespected by concerned public office bearers. Therefore, they claim that discriminatory laws which make 'male' or 'female' as the base should be repealed and their fundamental rights and human rights, which recognize their gender identity based on self-feeling, should be protected.

The people under the category of LGBTI, except those whose sex has been changed through sex change operation either from male to female or from female to male, grow up with the natural process. Similarly, among the people other than LGBTI, some are born healthy, agile and have good height; some others are disabled and handicapped; yet some others are blind, dwarf and deaf-mute. They are considered either man or woman simply because of their genitals. These people who have been clearly identified as men and women do not face any difficulty in the enjoyment of fundamental rights. However, persons other than those clearly identified as men or women face difficulty in the realization of fundamental rights. It is not appropriate to have such discriminatory constitutional and legal provisions that restrict the people having third gender identity enjoying fundamental rights. The LGBTI people who, otherwise have normal characteristics, should not be deprived of the enjoyment of their fundamental rights only because of their sexuality or because of their indifference towards the people of opposite sex in contrast to other heterosexual persons, or because of their varied cross dresses. The state should make necessary arrangement for the people of third gender besides male or female. While the people with the identity of

either a 'male' or a 'female' despite having abnormal physical conditions - either handicapped or dwarf or deaf-mute etc.- can enjoy such rights with their own identity, it would not be reasonable to say that the people, with different gender identity and sexual interest, who otherwise are normal, cannot enjoy their fundamental rights and human rights guaranteed by the constitution and other international instruments relating to the human rights. If any legal provisions exist that restrict the people of third gender from enjoying fundamental rights and other human rights provided by Part III of the Constitution and international conventions relating to the human rights which Nepal has already ratified and applied as national laws, with their own identity, such provisions shall be considered as arbitrary, unreasonable and discriminatory.

Similarly, the action of the state that enforces such laws shall also be considered as arbitrary, unreasonable and discriminatory. In this context it seems pertinent to quote here some provisions of the International Covenant on Economic, Social and Cultural Rights (ICESCR) and International Covenant on Civil and Political Rights (ICCPR):

ICESCR - Article 10:

...marriage must be entered into with the free consent of the intending spouses.

ICCPR - Article 2:

1. Each State Party to the present Covenant undertakes to respect and to ensure to all individuals within its territory and subject to its jurisdiction the rights recognized in the present Covenant, without distinction of any kind, such as race, color, sex, language, religion, political or other opinion, national or social origin, property, birth or other status.
2. Where not already provided for by existing legislative or other measures, each State Party to the present Covenant undertakes to take the necessary steps, in accordance with its constitutional processes and with the provisions of the present Covenant, to adopt such laws or other measures as may be necessary to give effect to the rights recognized in the present Covenant.
3. Each State Party to the present Covenant undertakes:
 - (a) To ensure that any person whose rights or freedoms as herein recognized are violated shall have an effective remedy,

notwithstanding that the violation has been committed by persons acting in an official capacity;

- (b) To ensure that any person claiming such a remedy shall have his right thereto determined by competent judicial, administrative or legislative authorities, or by any other competent authority provided for by the legal system of the State, and to develop the possibilities of judicial remedy;
- (c) To ensure that the competent authorities shall enforce such remedies when granted.

Article 16

Everyone shall have the right to recognition everywhere as a person before the law.

Article 17

1. No one shall be subjected to arbitrary or unlawful interference with his privacy, family, or correspondence, nor to unlawful attacks on his honour and reputation.
2. Everyone has the right to the protection of the law against such interference or attacks.

Article 23

1. The family is the natural and fundamental group unit of society and is entitled to protection by society and the State.
2. The right of men and women of marriageable age to marry and to found a family shall be recognized.
3. No marriage shall be entered into without the free and full consent of the intending parties.
4. *States Parties to the present Covenant shall take appropriate steps to ensure equality of rights and responsibilities of spouses as to marriage, during marriage and at its dissolution.*

In the case of dissolution, provision shall be made for the necessary protection of any children.

As mentioned already, it is an established fact shown by different scientific research, analysis and experiments that the lesbian, gay, bisexual, trans-sexual and intersex, commonly referred as LGBTI are also natural person regardless of their sex which may be either male or female as well as their gender which may be either masculine or feminine. Therefore, these people cannot on any ground be excluded from full enjoyment of the provisions of the international covenants mentioned above once they get the recognition as a person before the law. It is also not possible to make restrictions in enjoying the

fundamental human rights on any other grounds, once s/he gets the recognition as a person before the law. The LGBTI people do obviously possess equal rights as others for the enjoyment of the rights guaranteed by these international covenants such as right to marry with free consent, right to form a family, non-interference on privacy, nondiscrimination on the grounds of race, color, language, religion, political or other opinions, national or social origin, birth or other status.

All fundamental rights provided in Part 3 of the Interim Constitution of Nepal, 2063 (2007 AD) from Article 12 to 32 have been guaranteed to every Nepali citizens and persons.

Though the petitioners are in minority the enjoyment of these rights with their own identity is the fundamental rights of the petitioners as well. The Part IV of the Constitution provides for Directive Principles and Policies of the State. It is the right of the petitioner to benefit from these policies with their own identity. It cannot be construed that the legal rights and fundamental rights as well as human rights provided to the individuals by the Constitution and other human rights related international instruments to which Nepal is a party, may be enjoyed only by men and women merely because the term 'sex' - (meaning male and female) is mentioned in the Constitution.

As the people with third type of gender identity other than the male and female and different sexual orientation are also Nepali citizens and natural person they should be allowed to enjoy the rights with their own identity as provided by the national laws, the Constitution and international human rights instruments. It is the responsibility of the state to create appropriate environment and make legal provisions accordingly for the enjoyment of such rights. It cannot be construed that only 'men' and 'women' can enjoy such right and other people cannot enjoy it only because they have a different gender identity and sexual orientation.

Similarly, Article 12 of the Constitution has guaranteed the right to freedom. Article 12(1) provides that every person shall have the right to live with dignity and Article 12(2) provides that except as provided by law no person shall be deprived of his/her personal liberty. The said Article 12 should be considered as relating to the right to life. The terms 'men' and 'women' are not mentioned in this article. The freedom guaranteed in Article 12 is for every person. The word 'person' implies every natural person. Being the natural person LGBTI should be entitled to live in the society enjoying all the freedoms with

dignity. The Article 12(2) has guaranteed minimum freedoms to human beings. The freedoms guaranteed by this Article can be enjoyed with one's own identity irrespective of sex. The freedoms guaranteed in sub-Clauses (a) to (f) of Article 12(3) can only be restricted by laws. And such laws should not be arbitrary, discriminatory and unreasonable. Reasonable restriction on such freedoms can be imposed if an act undermines the sovereignty and integrity of Nepal, or jeopardizes harmonious relations subsisting among the peoples of various castes, tribes, religion or communities. There are two significant expressions - 'with dignity' mentioned in the Article 12(1) and 'except for the provision in law' mentioned in the Article 12(2). The interpretation of these two expressions should be made in such way that they do not frustrate but contribute to the furtherance of fundamental rights or human right of all people including women, men and LTBTI. Similarly, Article 13 of the Constitution has guaranteed the right to equality. According to sub Article (1) all citizens are equal before the law and no person is denied equal protection of the laws. And pursuant to sub Article (2), there can be no discrimination against any citizen in the application of general laws on grounds of religion, race, sex, caste, tribe, origin, language or ideological conviction or any of them. Similarly, sub-Article (3) reads that the State shall not discriminate among citizens on grounds of religion, race, caste, tribe, sex, origin, language or ideological conviction or any of these. However, there is a proviso in this sub-article which provides that nothing shall be deemed to prevent the enactment of special provisions by law for the protection, empowerment or advancement women, Dalits, indigenous ethnic tribes, Madeshi or peasants, laborers or those who belong to a class which is economically, socially or culturally backward, or children, the aged, disabled or those who are physically or mentally incapacitated.

The sub-Article (4) provides that there shall be no discrimination with regard to remuneration and social security between men and women for the same work. The said constitutional provisions relating to equality have guaranteed equality before the law, equal protection of law, non-discrimination on the application of law, non-discrimination by the state on any ground and non-discrimination on matters of social security as well.

Article 12(2) of our Constitution provides that except when provided by law no person shall be deprived of his/her personal liberty. By analyzing this provision it seems that such liberty can be restricted by making law in the public interest. The right provided by Article 12 is the right to life which is a crucially important right for the human beings. In brief, every

citizen and every person shall obtain such rights on equal basis such as the right to have one's own identity. Such freedoms cannot be restricted by making discriminatory or arbitrary law. The existing property laws, other personal identity including citizenship related laws, the law of marriage as well as some other laws seem male and female sex specific. Such laws do not seem to accept even the existence of the people other than the 'male' and 'female'.

It has now been accepted that the gender identity of an individual is determined not only by the physical sex but also by her/his behavior, character and perception. Generally, a person may physically be either a male or a female at birth but during the process of physical development s/he may, as per her/his identity, acquire either masculine or feminine character. However, all people may not be viewed with the same approach. Some people may acquire different traits and behavior contrary to their physical sex at birth. As is already observed, it happens naturally. However, there does not seem any provision in our existing law that allows these people to practice any profession as well as to maintain conjugal relationship with their changed sexual identity. The law which does not allow the people to enjoy their fundamental rights and freedoms retaining their own identity may be considered as discriminatory. While making harmonious interpretation of the provisions of Articles 2, 16 and 17 of the ICCPR, it seems that the state has to recognize every individual with their own identity or every person has the right to have one's own identity. Article 10 of the ICESCR and the Article 23 of the ICCPR, to which Nepal has already ratified and applied as national laws have provided the right to marry only to the men and women.

The Article 17 of the ICESCR provides the right to privacy of the family life to an individual as well as the right not to be subjected to unlawful attacks on her/his honour and reputation. As provided by Section 9 of the Nepal Treaty Act, 2047 (1991 AD), the ICCPR and the ICESCR should also be considered as the national laws of Nepal, it seems to us that the LGBTI should be allowed to enjoy the rights guaranteed by the Nepalese law without discrimination and with their own identity like other individuals. Therefore, this directive order is hereby issued to the Government of Nepal to make necessary arrangements towards making appropriate law or amending existing law for ensuring the legal provisions which allow the people of different gender identity and sexual orientation in enjoying their rights as other people without any discrimination following the completion of necessary study in this

regard. Likewise, according to the provisions of the Fundamental Rights given in Part III and Directive Principles and Policies of the State given in Part IV of our Constitution, the state seems to have the responsibility to make special legal provisions for the upliftment of the oppressed and disadvantaged people such as women, children, the aged, incapacitated, indigenous, Dalits etc. We all should take note that the terms 'men' and 'women' are mentioned here instead of the term 'sex', whereas in the Constitution instead of the terms 'men' and 'women', the term 'sex' is mentioned which may be construed to include the people of third gender as well besides 'men' and 'women'. As the term 'sex' refers not only to men and women but also the people of third gender, this judicial comment is hereby made as it looks necessary to keep a clear provision in the new Constitution to be made by the Constituent Assembly, guaranteeing non-discrimination on the ground of 'gender identity' and the 'sexual orientation' besides 'sex' in line with the Bill of Rights of the Constitution of South Africa.

Another claim of the petitioners pertains to the protection of the fundamental right of the lesbians, gays and bisexual people by the state through appropriate legal provisions which, by granting them legal and social recognition from the state and society on the basis of their sexual orientation, ensures a life of freedom as other heterosexual people have. In reality, this claim is specific in regard to the issue of same sex marriage or co-habitation of such couple. Looking at the issue of same sex marriage, we hold that it is an inherent right of an adult to have marital relation with another adult with her/his free consent and according to her/his will. The same sex marriage should be viewed from the view point of interest and rights of the concerned people as well as that of the society, family and all others.

It seems appropriate to reach a conclusion after studying the legal provisions and practices of other countries regarding gay and lesbian marriage. It has already been recognized in some countries whereas in some others it yet to be recognized. Therefore, it is essential to carry out a thorough study and analysis of international instruments relating to the human rights, the values recently developed in the world in this regard, the experience of the countries where same sex marriage has been recognized, and its impact on the society as well. The Government of Nepal has hereby been directed to form a committee as mentioned below in order to undertake the study on over all issues in this regard.

Formation of the committee

A Specialist Medical Doctor as designated by the Ministry of Health - Coordinator Member One Representative of National Human Rights Commission as designated by the commission	Member
A Representative of the Ministry of Law, Justice and Parliamentary Affairs	Member
One Sociologist as designated by the Government of Nepal	Member
A Representative of Nepal Police (Specialist on this issue)	Member
A Representative of Ministry of Population and Environment	Member
Advocate Hari Phuyal, who represents the petitioners	Member

The committee is directed to undertake the study on the issues of same sex marriage and marital status of overall LGBTI persons as well as the legal provisions of other countries amongst the issues raised by the petitioners and the Government of Nepal is directed to make the legal provisions after considering recommendation made by the said committee. It does not seem appropriate to set the terms of reference for the committee by this court because it may be appropriate to provide this task to the government due to the gravity and seriousness of the subject matter. The directive order is also hereby issued to the respondent Government of Nepal to submit a copy of the report to this court that is submitted by the said committee. It is hereby further directed to write to the Office of the Attorney General to inform the respondents supplying the copy of this order as well as to the Monitoring and Inspection Division of this court for the regular monitoring of the implementation of this order. It has also hereby been ordered that the notification of this order be provided to the petitioners and the copy of the order and the file be delivered to as per the rules.

I concur above decision.

Justice Pawan Kumar Ojha

Done on 6th Poush, 2064 B.S. (21st December, 2007)

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Provision of camera court for HIV /AID infected people and right of privacy to children and women is guaranteed in Constitution, by framing a separate guidelines 2007 (2064).

**Supreme Court, Division Bench
Hon'ble Justice Khil Raj Regmi
Hon'ble Justice Kalyan Shrestha**

Order

Writ No. 3561 of the year 2063

Sub: Praying for the issuance of appropriate order or directive including Mandamus as per Article 88(2) of the Constitution of the Kingdom of Nepal, 1990.

Petitioner: On behalf of Forum for Women, Law and Development, located at Kathmandu, Metropolitan City, Ward No. 11, Thapathali and also on her own behalf Advocate Sapana Pradhan Malla

Vs.

Defendant: Office of the Prime Minister and the office of the Council of Ministers, Government of Nepal, Singhdurbar

- **If some highly personal information of an individual or citizen is subjected to disclosure except when its disclosure is essential for some specific legal purpose, the individual or the citizen is unnecessarily made to stand in the defense line and also falls in a position where s/he may not confidently do the work which s/he likes to do.**
- **As a result of entanglement with the problems like HIV/AIDS, the status, guardianship, health etc. of the parents of the children may also be dragged into controversy. For instance, while talking about protection of the privacy of the introductory information about a child affected by HIV/AIDS or also in a dispute about the guardianship of a child it may be essential to provide protection of privacy of**

the status of the parents of that child. Even if the introductory information about the child is protected, the disclosure of the identity of his/her parents may destroy the meaning and purpose of the privacy of the identity of the child. If a child has been brought up in a prison due to the imprisonment of his/her mother the information about such a rearing may also need to be protected.

- The right to privacy has got its own significance in the context of women or children. It has been mentioned in Art. 20(3) of the *Interim Constitution* that no physical, mental or any other type of act of violence shall be committed against women and that such an act shall be punishable by law. Because it has been mentioned in the Constitution that no discrimination shall be made against any person only because the person is a woman, if any woman involved in any specific litigation or placed in a particular situation does not feel the presence of a friendly environment for easy access to justice at par with men, the act aimed at bringing change in such a situation shall have to be treated as a part of the greater process of removing discrimination against women.
- Under the provision of the right to privacy the privacy of the person as well as his/her confidential information, too, seem to be protected. If the privacy of the data and the personal introductory description of an individual relating to his/her character and other related information is not protected, the right to privacy becomes extremely contracted and may not attain its objective.
- Even though the human rights Declarations do not carry mandatory force as exercised by treaties, the States should implement their spirit by relating them to the main treaties.
- Out of the general and extra-ordinary jurisdictions available for the protection of fundamental and legal rights of a person, the proper jurisdiction is invoked as required by the situation. It is the regular remedies which are sought especially for the resolution of the question regarding juvenile justice, violence against women and also remedy for property or other rights of HIV/AIDS infected persons. So the right to privacy is limited not only to the application of the Criminal Law but also extends to the implementation of the Civil Law. If any person has filed a 2 Lawsuit asking for expenses or

his/her share of property or compensation for medical treatment for having been infected with HIV/AIDS, information regarding such a situation, too, cannot be allowed for unrestricted dissemination. At least the relevant portion needs to be given protection up to a desirable limit. So there is a need for looking at the right to privacy as to how the judicial process can be made basically fair, free from discrimination and friendly for the court users in course of judicial treatment.

- By a mere declaration of rights in the law negative social psychology or obstacles existing in the way of enjoyment of the rights may not disappear automatically. If such a reality is ignored, there may be a danger of our findings becoming more technical than substantive. As a result, our services may not be automatically available to the people for whom they have been created or to whom they have been dedicated. If favourable conditions are not created, the parties, despite their willingness, may not have the capacity to accept our services. In that event a situation may arise where our services may not be available to those who need them most whereas those who do not need them may get more benefited by them. Therefore, taking into consideration such a stark reality, it is necessary to, by ensuring an individual's right to judicial remedy, grant him/her effective and easy access to justice and to guarantee privacy of the personal identity of the parties involved in the judicial process through the protection of the right to privacy. Its main objectives are that the concerned party may not lose his/her courage to seek remedy against injustice and s/he may not be made to experience any additional disqualification or disadvantage in practice for the reason of having raised one's voice against injustice. It is the belief of this Bench that if in the eyes of the incapacitated sections of the society our services lose attraction or do not carry conviction it shall have to be treated as an indication of the gradual end of the social utility of our services.
- It is essential for the judicial system to always maintain a balance between the obligation to give fair treatment to the parties present in the judicial process and the right of the parties to have access to justice. In this context, without guaranteeing the personal privacy of the victims

and their personal security and without taking into consideration the disadvantages confronted by the victims, justice cannot take a firm and expressive form in the midst of revenge and fear. For arousing this feeling of self-confidence and security among the persons who have come forward to seek justice it is essential to give them guarantee of the privacy of their personal identity or other related information. If viewed in this way, the need and relevance of the protection of the privacy of the personal identity and other related information of the women, children or HIV/AIDS infected persons who have come to be present in the judicial process appears to be clearly important from the viewpoint of the enjoyment of the right to judicial remedy.

- The physical environment and management aspects of camera court have been almost forgotten. Not even initial work has been done in the direction of ensuring necessary sensitivity, awareness and skill in the mind of judges, employees and also the legal practitioners in regard to conducting the in camera trial. Information has not been disseminated in an extensive manner about the provisions of the in-camera proceedings and its advantages. Camera court does not simply signify a process restricting the unnecessary entry into the place where the Bench is physically operating. No formal provisions having theoretical and practical clarity have been formulated regarding the responsibility to be shouldered by those participating in the in-camera proceedings in accordance with the spirit of this trial, irrespective of whether they are inside or outside the camera court or whether the in-camera proceedings are in progress or they are over.
- One of the objectives of the camera court is to protect the victim party to the case against a discouraging environment which dissuades him/her from bringing to light even the matter which s/he is willing to disclose only because the Bench is open, and thus to empower him/her to make his/her participation and presence in the judicial process in an effective and actual manner. But if the victim is made to face the accused even inside the camera court or if there arises a situation in which the victim is not in a position to bear the fear or terror caused by his presence and if the victim could not be protected

against all this, there shall be no possibility of the camera court serving its purpose. Rather due to the presence of the limited number of persons inside the court room the victim may feel additional insecurity from the defendants. If it so happens the advantages of the open Bench shall be lost whereas only the risk of the camera court shall become obvious. Hence, in order to ensure the immediate and long term benefits of the camera court necessary study, management, monitoring and evaluation are still to be undertaken, for which it is necessary that the concerned courts themselves should first display special management and readiness on their own responsibility.

- The victim, therefore, thinks that the general people would not have learnt about his/her condition had s/he not filed the complaint leading to the initiation of the case, since after the start of the process of the case following filing of the FIR the victim is presented before the court, his/her proofs and evidences are subjected to examination and they are also kept in the written form and brought to light. All the criminal events taking place in the society are not found to be recorded as complaints only because of the failure to maintain and guarantee the privacy of the information relating to the victims. Such a trend is treated as an additional opportunity for the criminals to commit crimes and on the other hand it also aggravates the vulnerability of the victims. Therefore, it is essential to guarantee the identity and other information related to a sensitive class like victims and children right from the time of investigation of the offence. At present the prevailing scenario in our country shows a trend of disclosing all the information about the victim right from the time of filing of the FIR, disclosing the case file and the documents contained therein, the concerned party enjoying the freedom of demanding their copies and inspecting them and also the media having unlimited access to them. That is to say, the prevailing scenario shows that the needs and interests of the victims have been left unregulated.
- If all the problems relating to access to justice - ranging from investigation to judicial adjudication, and, thereafter, publication and implementation of the decision - are not addressed, the self confidence of the victims cannot be enhanced only by conducting proceedings in a camera

court which start in the middle and also end in the middle of the judicial process. In order to make the existing camera court meaningful and to ensure the judicial guarantee of a high order for the victim and the sensitive party it is, therefore, essential to make additional provisions for protecting the privacy of their introductory personal information and other related information.

- Only in a proper environment and with proper opportunities the victim may express him/herself in a proper manner and present all the available proofs. Hence, it is the duty of the state to manage the judicial trial ensuring guarantee for all this.
- Only because special type of protection has been afforded to the parties or witnesses there is no reason to believe that the dignity of open hearing shall be eroded only for that reason. If there is possibility of fear or influence also in the open court, justice may get obstructed even there. It is for this reason that there is generally no place for questioning the justification of public or open court. Nonetheless there seems to be no reason to believe that fair judicial hearing may not be possible only because in special type of cases or in cases involving special type of people the hearing has been made public only after maintaining the confidentiality of some specific information or the hearing has been conducted in a camera court. If the necessary prerequisites or qualities required for fair judicial hearing are present, it should be presumed that there is of fair judicial hearing irrespective of the fact whether there is an open court or a camera court.
- In fact, under the right to judicial fairness it is necessary to view in a coordinated manner the party's right to defense of his/her innocence along with the victim's right to seek judicial remedy for the injustice committed against him/her. When sometimes it becomes necessary, in view of the nature of the case, to provide protection to the privacy of the introductory information of also a party to the case (for example, children) as it appears compulsory in the interest of justice, it becomes all the more important in the case of the victim. It is not possible to say where this balance shall be struck. There is a need for continuous review of the circumstances for striking such a balance. In the present context a defendant's right

to defense does not mean that he can subject the victim's evidence or the victim to cross examination in any manner or to any extent. Rather it simply signifies that s/he must be provided with a guarantee of the basic opportunities required for defense.

- Even the cross examination made by the defendant is indirectly conducted through the judge; informality is adopted while examining a child witness and the examination of the witness takes place in a suitable manner, after considering his/her mental level and after providing him/her with a friendly person or environment; the version of the child witness is recorded through an audio-visual means for presenting it in the court. It is necessary to protect the privacy of the introductory information about the concerned party in certain conditions in the judicial process in order to ensure the act of seeking and receiving justice in view of basically sensitive cases or the sensitivity of the concerned party and the needs of justice. But it is equally necessary to take precaution against making such a situation adverse thereby allowing it to become prejudiced enough disabling the defendant to get justice. The need for a fixed procedure or Guidelines can be realized in order to ensure such a situation.
- Another right related to the right to information is the right regarding publication, transmission and press. The right regarding publication, transmission and press is considered as an enlarged form of the freedom of expression and publication. That right and the right to information both help in giving expression to a person's freedom of expression and publication. The above-mentioned rights also help in the promotion of greater public interest. Nevertheless, in the hierarchical priority of rights, these rights are not considered as enjoying superiority over other rights. Under the right to publication, transmission and press embodied in Article 15 of the Constitution a provision has been included which says that laws can be made with a view to imposing restrictions on the activities aimed at disturbing the good relation between various castes, races or communities, causing slander or contempt of court or adversely affecting public etiquette or morality. Thus it is clear that even while enjoying the right to information it

must be enjoyed confining oneself within the area defined by that right.

- If, through those rights, positive contributions are made to the enjoyment of a person's right to justice and the right to judicial remedy in an unhindered way, the meaningful protection of every right can become possible.
- Exercising such a right is not a mechanical work. The above mentioned jurisdiction needs to be adopted in the totality of the right of the party, the need or problem experienced in course of its enjoyment, the creation of infrastructure required for addressing it properly and also reasonable thinking and conduct.
- The above analysis shows that the courts have, exercising their inherent judicial jurisdiction, issued orders for the protection of the personal privacy of the party to a case or the victim on the basis of necessity and appropriateness for the sake of fair dispensation of justice. However, it does not mean that a demand has been made for not allowing the defendant to know, even for the purpose of his defense, who are the witnesses against him in that case or to close all the ways of cross examining them. Rather the demand has been made only for the protection of the secrecy of the personal introductory information in the proceedings of a case right from its beginning. In such a situation where the privacy has been protected there is a need for conducting or regulating the presentation of evidence, the procedure of the examination of witness and some other related matters in a special manner in order to make such protection more effective. Not that comprehensive provision regarding the privacy of a party to the case or the victim cannot be the subject matter of legislation. In fact, making a separate legal provision in this regard is not only desirable but also essential because such a need can be better addressed only through the means of effective law.
- Therefore, this directive order is hereby issued to the respondents Prime Minister and the Office of the Council of Ministers and also the Ministry of Law, Justice and Parliamentary Management to present, at the earliest, a Bill before the Legislature Parliament, also taking into consideration the aforesaid legal questions, for making

law containing comprehensive legal provisions, after having consultations with a committee set up for this purpose and comprising as its members the concerned Court, Bar Association, women, children and the people representing the marginalized sections of the society including HIV/AIDS infected persons or the organizations working in their interest, the representatives of the civil society and also the petitioner Forum for Women, Law and Development.

- Such Guidelines are issued not for the purpose of imposing restrictions on the rights granted to the parties by the Constitution, the Statutes and the laws but for facilitating the implementation of the existing law. Thus, by removing the unclarity at the stage of implementation of such rights or filling up the lacuna, thereby helping to make, at least to some extent, the law relating to rights more effective, it seems proper and permissible to issue some Guidelines of interim nature which shall remain effective till comprehensive legal provision are made.
- Even though the Constitution has provided for the right to privacy, still no legal provisions have been made so far which specify the circumstances in which protection should be granted to the privacy of the people belonging to some specific classes including the victim women, children or HIV/AIDS infected persons and also describe the circumstances where their personal information may be disclosed. Comprehensive provisions are yet to be made to address all this. Taking into consideration the above-mentioned matter, a directive order has been issued to the respondent Prime Minister and the Office of the Council of Ministers as well as the Ministry of Law, Justice and Parliamentary Management to make a law including the above-mentioned provisions which describe the rights and duties of the concerned parties and maintain the level of privacy as prescribed (by the law) in some special type of lawsuits in which victim women or children or HIV/ AIDS infected persons are involved as a party to the case right from the time of registration of the case in the police office or its direct registration in a law court or in other bodies till disposal of the case or even in a situation following the disposal of that case. And, therefore, this order is hereby issued to the aforesaid respondents to comply with and cause

compliance with the Guidelines attached herewith pending the enactment of such a provision.

Kalyan Shrestha, J: The present writ petition appears to have been filed as Public Interest Litigation (PIL), pursuant to Article 88(2) of *the Constitution of the Kingdom of Nepal, 1990*, praying for the issuance of a directive order for the purpose of making and implementing the necessary law for the enforcement as well as protection of the right to privacy guaranteed by the aforesaid Constitution.

The present writ petition has been filed not because the petitioner herself or the organization (Forum for Women, Law and Development), which she represents, has itself become a victim due to the violation of the right to privacy mentioned in the petition but because the petitioner organization, by virtue of being an organization engaged in the advocacy of addressing through various means the legal rights and welfare of the classes such as women, children etc. and the community affected by problems like HIV/AIDS, seems to have entered the court for seeking relief by displaying its meaningful concern for the present issue.

Even though *the Constitution of the Kingdom of Nepal, 1990*, which has been shown as a basis for filing this petition, already stands repealed at present, and since the right to privacy mentioned by the petitioner has been enshrined also in Article 28 of the Interim Constitution of Nepal, 2007 and as Art. 107 of this Constitution has also retained the extra-ordinary jurisdiction of this court in respect of granting judicial remedy in matters of public interest or concern, it is feasible to deliver justice in regard to the issue prayed for by the petitioner on the basis of the provisions of the 1990 Constitution which was in force at the time of the filing of this writ petition and those of the Interim Constitution of Nepal, 2007 which is currently in effect. Hence, there is need of considering the issue raised in the petition in the light of the aforesaid provisions.

The summary of the writ petition and the verdict delivered thereupon are as follows:

Freedom, equality and self dignity are the inherent rights of the human beings. The rights of equality and self dignity provide guarantee for the individual liberty of the human beings. These rights of equality and self dignity have been accorded protection at the international level through various legal provisions relating to human rights including the

Universal Declaration of Human Rights. These rights of equality and self dignity are guaranteed by Articles 11 and 12 of the Constitution of the Kingdom of Nepal 1990. The main basis for protecting the right to self dignity of an individual is his/her right to privacy. In the life of every individual there use to be some matters of personal concern which need not be exposed to public knowledge. The State must display concern for the protection of their privacy. The Preamble of the Charter of the United Nations has reaffirmed the basic human rights and the right to self dignity of all men and women. Whereas Art. 12 of *the Universal Declaration of Human Rights* has guaranteed dignity and respect for the individuals and the right to privacy of their residence, family and correspondence, Art. 17 of *the International Covenant on Civil and Political Rights, 1966* and Art. 16 of *the Covenant on the Child Rights* and its Optional Protocol have also recognized the right to privacy as an inalienable right of the individual. Art. 22 of *the Constitution of the Kingdom of Nepal, 1990* have enshrined the right to privacy as a fundamental right. Similarly, Section 49 of *the Child Rights Act, 2048* (1991) has provided for, during the proceedings of any case relating to a child, the presence in the court room, of the legal practitioner, the father, mother, relative or guardian of the child and, if the official trying the case deems it appropriate and allows, any other person or social organization engaged in activities aimed at the protection of the rights and interests of children. Likewise, Rule 46(b) of *the District Court Rules, 2052* (1997), Rule 60(a) of *the Appellate Court Rules, 2048* (1991) and Rule 67(a) of *the Supreme Court Rules, 2049* (1992) have provided for in-camera proceedings and the formulation of procedures for conducting the trial of cases relating to minors, rape, trafficking in human beings, establishing relation, divorce and also any other case which the court deems fit for trial in the camera court.

Even though all the Covenants and Statutory Acts and laws mentioned above have recognized the right to privacy as an inalienable right of the individual, no clear legal provision has been made for protecting the privacy of the names and identity of the persons involved in the cases relating to women and children and the persons infected by contagious diseases like HIV/ AIDS. Since due to the ever increasing threat of spread of diseases like HIV/AIDS there is a state of infringement of the economic, social, cultural and property rights of such persons, and as those victims have found it difficult to get access to justice and as there has also cropped up a situation in which they seem to be also deprived of the right to hearing by a competent court protected by international human rights law, the writ petition seems to have prayed for the issuance of an order directing

for immediate enactment and enforcement of necessary law for guaranteeing the right to privacy granted by Art. 22 of *the Constitution of the Kingdom of Nepal, 1990*; for making appropriate provisions for maintaining privacy of the procedural formalities on the basis of gender sensitivity, taking into consideration the gender sensitivity of women and also the discriminations and allegations suffered by them, in cases relating to women in respect of the proceedings ranging from filing of the case to pleadings, submissions and delivery and publication of the judgment; for making appropriate provisions for maintaining privacy in cases relating to children right from the initial procedure of the cases in order to ensure juvenile justice to them, taking into consideration social stigma likely to be faced by the children in the future; for making necessary legal provisions for maintaining privacy in cases relating to the persons infected by HIV/AIDS right from the beginning of the process of registration of the case in view of the fact that the persons infected by HIV/AIDS are being victims of social discrimination and stigma and they are also being deprived of reasonable opportunities; and for making legal provisions for maintaining privacy in the case in the event of a party to the case moving a petition at the time of registration of the case or while it is in progress requesting the court for issuing an order for maintaining such privacy by showing special reasons and facts which justify such a demand; and also for making breach of such privacy by any person concerned with maintaining privacy in such cases punishable and also for providing reparation to the persons affected by that.

This court, issuing an order on July 16, 2006, directed the issuance of a notice to the defendants asking them to explain within fifteen days why an order should not be issued as requested by the petitioner and, taking into consideration the issue raised in the petition, also granted priority status to the petition for the purpose of hearing.

Replying to the notice, the Prime Minister and the Office of the Council of Ministers contended that the writ petition should be rejected as the petitioner has also framed that office as a defendant without specifically mentioning which rights of the petitioner have been infringed. In its written reply, the Ministry of Women, Children and Social Welfare maintained that the enactment of law or its amendment is a matter falling within the exclusive jurisdiction of the Legislature and, as the petitioner has failed to explain the reasons with justification as to which act of that Ministry has adversely affected the constitutional and legal rights of the petitioner, the petition was baseless and based on subjective logic and, therefore, it deserved to be rejected.

Likewise, in its written reply, the Ministry of Law, Justice and Parliamentary Management, praying for the rejection of the petition, contended that the right to privacy guaranteed by Art. 22 of *the Constitution of the Kingdom of Nepal, 1990* is in itself a law and, according to that provision, because it is inviolable except in the circumstances specified by the law and as an aggrieved person, in case of the infringement of such a right, can himself/herself move the court for the enforcement of that right, the petitioner has failed to specifically mention who, and how, has infringed the fundamental right of any person. Furthermore, as the writ petition appears to be related to cases relating to the privacy of a person or issue in which connection a provision has been already in the Court Rules and as also the Supreme Court is competent to make additional provisions in that regard pursuant to Section 31 of *the Judicial Administration Act, 2048* (1991), the petitioner's claim appears to be baseless and unreasonable. Speaker of the House, Subhash Nemwang, in his written reply, contended that no one can disagree to the claim of the petitioner that the State must implement the obligations prescribed by various International Covenants relating to human rights by making relevant laws. The State must be always cautious in this direction, and the House of Representatives has always remained committed to and active in drawing the attention of the State in this regard. Expressing the commitment that the Government of Nepal must ratify the treaties and covenants relating to human rights including the one concerning International Criminal Court, Rome Statute etc, the House of Representatives is also discharging functions such as issuing relevant directives to the Nepal Government. The Speaker further stated that if either the concerned Ministry of Nepal Government presented the relevant Bill or any other member of the House of Representatives presented a private Bill before the Parliament Secretariat for the enactment of law on any matter in accordance with *the House of Representatives Rules, 2006* in connection with making appropriate and effective law for the enforcement and guarantee of the rights to equality, privacy and self dignity equally ensured for women, children and HIV/AIDS infected persons, the House of Representatives stands committed to the enactment of that law by initiating the necessary legislative process.

As this court had directed the petitioner on March 9, 2007 to produce before the court the outlines showing which model and procedure shall be effective to ensure privacy in the context of the guarantee accorded to the right to privacy by the Constitution, the petitioner has submitted a model of the guidelines as per that order.

Appearing on behalf of the petitioner in course of hearing of the writ petition which has been presented before the Bench as per the Rules, learned Advocate Rup Narayan Shrestha pleaded that the Constitution has protected the freedom and equality of a person, besides also protecting the right to privacy, which can be viewed as the main basis for the protection of an individual's self-dignity. The international human rights law has also laid emphasis on protection of the right to privacy of an individual. Although the Constitution has protected the right to privacy, no exhaustive law has been enacted and implemented in this regard. Various international human rights laws have provided for making special provisions for the protection of the privacy of victim women, children and HIV/AIDS infected persons. As in our legal system, in the absence of any clear legal provision ensuring the privacy of the name and identity of women, children and HIV/ AIDS infected persons involved in the legal proceedings, there is a scenario depicting the infringement of their economic, social and property rights and lack of access to justice, the learned Advocate pleaded for the issuance of the order as requested by the petitioner.

The Bench Memo produced by the petitioner states that the rights to equality and self dignity are essential for a dignified living of the human person. Equality and self dignity guarantee freedom. It is the right to privacy which serves as the basis for the protection of self dignity. This is also linked with the privacy of information in a social, physical and mental manner. If the public exposure of some matters presented in course of a legal proceeding is not discouraged there is always the danger of deprivation of justice for the victims. In case of failure to protect the privacy of some matters the victim may be faced with a situation in which the rest of his/her life may be exposed to danger and s/he may also suffer from a social stigma. Particularly, if the privacy of the classes (of the people) exposed to risk is not protected, they cannot exercise their right to receive justice. Management of this right must be undertaken in order to protect against discrimination and stigma. If that is not done, it may result in restrictions also on the exercise of the right against exploitation, the right against violence, the right to property and the right regarding criminal justice. Besides, light has been thrown also on the various provisions made in the international human rights laws. On the basis of that it has been contended in the Memo that the order prayed for by the petitioner must be issued and, pending the enactment of relevant law as per that order, Guidelines for the protection of privacy should be issued.

Appearing on behalf of the defendant, Ministry of Law, Justice and Parliamentary Management, learned Advocate Narendra Prasad Pathak argued that the claim made by the petitioner in this petition is not clear. Since the Constitution has protected the right to privacy and provided for seeking judicial remedy from the apex court in the event of infringement of that right, and as provision has been made for in-camera trial of specific cases relating to women and the cases in which children are a party, there is no basis for the issuance of the writ and, therefore, it must be rejected.

As the present writ petition has been scheduled for today's hearing for delivery of judgment, in view of the submissions made by the learned counsels and the written Memo presented by the learned counsels appearing on behalf of the petitioner, the following issues need to be addressed in this writ petition:

1. Whether or not one has got the right to maintain privacy about the identity or the other related information concerning the victim women, children or HIV/AIDS infected or affected persons involved in the legal proceedings? Whether or not it has any legal ground or justification?
2. What is the status of the existing legal provisions regarding the protection of privacy? Are they adequate or inadequate?
3. Does the claim for the right to privacy affect the other party's right to fair judicial hearing?
4. Whether or not maintaining privacy of information in the judicial process casts any impact on the right to information?
5. Whether or not the court possesses the power to issue an order to maintain privacy in the judicial process about the details of the party or the victim or the witnesses mentioned in the petition? And whether or not it is proper to issue a directive order, as requested by the petitioner, to make law for protecting the information regarding their identity?
6. Whether or not it is desirable to make some immediate provisions until the formulation of adequate legal provisions? If the interim provisions are to be made, what type of provisions can be included in those interim provisions?

It looks essential to first consider the special nature of those sections of the victim women, children or HIV/AIDS infected or affected persons involved in litigation that have got their own personal special nature and needs, and for whom the petitioner has sought for maintaining the privacy about their introductory and related information. There are some specific circumstances for the protection

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of the privacy of the victim women. Likewise, the factors and circumstances necessary for the protection of the privacy of HIV/AIDS infected persons or children are of different nature.

Let us first consider the case of women. Women like men may also get involved in conflict with the laws. And in the event of violation of law by women generally there is no need of protecting the privacy of the identity and other related description of the concerned women. The legal liabilities of a woman are similar to those of others in a situation where she is involved in some crime.

Even though Art. 13 of the *Interim Constitution* has provided for equality before the law and equal protection of the laws under the right to equality, in view of the present social context of the country on account of various religious, social, economic and cultural reasons the women do not appear to be in a position to enjoy equal opportunities in the political, social, economic and educational fields nor can they acquire a status similar to that of their male counterparts on account of various religious, social, economic and cultural factors. There are several things to be done by the State to change that situation and to create an equitable condition. Particularly the female community seems to be the victims of discrimination due to the existing discriminatory social, cultural and psychological factors, and besides other things, they also seem to be experiencing obstacles in the enjoyment of public rights or opportunities or facilities which are available according to the law. Consequently, not to talk of enforcing their rights, the women feel hesitant even to seek judicial remedy for violence or injustice committed against them, and, without enjoying their right relating to justice, they appear to be bound to surrender or tolerate the injustice. Such a situation is visible in the incidents of violence committed especially against women.

The women use to feel hindrances in getting access to justice by lodging complaints and appearing as witnesses for the substantiation of their complaints due to threats given by the criminals or the criminal group or due to the fear of the society levelling allegations against the character or purity of the women themselves in view of the nature of the violence committed against them.

Children are another class for whom the petitioner has asked for maintaining privacy regarding their identity and the related information. The concept of juvenile justice seems to have developed on the basis of the need for giving a judicial treatment, different from the one meted out to the adults charged with a similar offence, to children in conflict

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with the laws in view of some factors like the young age of children, evolving stage of their learning and understanding, positive social contributions expected from them in their long life in the future and the long-term impact on the society in case of the increase in criminality or perversion in the children. Under this, in course of taking action against a child for violating any law steps are taken to prevent him/ her from repeating the violation of law in the future instead of sending him/her to detention or prison, to arouse the feeling of repentance in him/her for the act s/he has committed, to adopt alternatives to punishment like imprisonment, to provide the victim with relief and reparation also with the involvement of and under the responsibility of the parents of the child and to explore the possibility of reform in the child, besides attempting at the rehabilitation of the child in the society through the restorative justice measures. It is for this reason that the claim has been made seeking imposition of restrictions on the publication, for public purpose, of the introductory and other related description of a child recorded in the judicial proceedings involving children where s/he has acted either as a defendant or suffered as a victim.

If the violation of law committed by a child is recorded and made public in stead of keeping it confidential, the society, after having knowledge about that, may treat the child as an anti-social element and there may develop some distance between the child and the society or a situation of conflict may arise between them. Even though the child repeats the violation of law, taking into consideration the principle of the best interests of the child, there have been made legal provisions not to punish the child as a habitual offender and to protect the privacy of the introductory details of the child during the progress of the legal proceedings or even after the decision of the case — in both the circumstances whether the child is a defendant or a victim. If the fact of prosecuting the child for getting in conflict with the laws or punishing him/her is kept in the written form or published, it may cause obstacles to the career development and character building of the child in the future. Therefore, a system has been developed in some countries to destroy the records after the decision of such a case.

Moreover, if the child happens to be the victim and his/her sensitive and vulnerable condition is published, other people may get thrilled at or attracted by such condition of the child and may also feel tempted to make additional exploitation or derive illegal benefits from the child. The violence committed against the child may haunt him/her life long and its publication may further increase the pain. If the privacy of the child is not protected there may arise a situation in which the child

may not come forward to claim for judicial remedy against the violence or injustice committed against him/her or may not even participate in that process. Thus the issue of the privacy of the children involved in the juvenile justice process appears to be of a different nature.

So far the question of protection of the privacy of the introductory information of HIV/ AIDS affected or infected persons or the condition of their infection is concerned, this seems to be a problem of a different nature. It is relatively a new health related problem for which no curative remedy has been discovered so far, and as its infection is silently spreading in the society, this problem needs to be addressed in a strategic manner. The reasons behind this infection and the problems experienced by the infected persons are of multi-dimensional nature. Some factors like poverty, illiteracy, lack of awareness, lack of medical treatment and facilities, the problem relating to discharge of duty by the persons responsible for providing public service etc. help in the spread of infection of this disease. On the other hand after becoming a victim of infection the infected person is found to be suffering from violation of some human rights - including discrimination, boycott, deprivation etc. in the family, community and public utilities. As a result, the infected person experiences a gradual decrease in his/her access to education, employment, health facilities, recreation, family assistance and property etc., and s/he becomes compelled to seek judicial remedy for acquiring those things. At a time when the judicial remedy is required against all kinds of injustice, due to the fear of being a victim of additional neglect and boycott in the event of disclosure of one's infected physical condition and identity coupled with systemic delay, one may opt for discarding the process of judicial remedy. If such a situation is created, the infected person has not only to face a threat to his/her life rather if such an infected person, who is incurable and dejected, behaves in a way as if s/he was not infected, a vicious circle of infection is created. This finally compels the society to bear an unexpected and unbearable burden.

The above description makes it clear that according to their respective condition and nature, there are specific needs of the classes for whom the petitioner has asked for protection of their privacy, and, consequently, the demand for maintaining such privacy needs to be considered exhaustively.

Now let us consider issue No. 1.

If it is to be considered whether or not the victim women, children or HIV/AIDS infected persons have got a right to the protection of their introductory information and if it is so granted, what are its legal grounds and justification? Besides the national constitutional and legal provisions made in this regard, the provisions contained in the international human rights conventions also need to be considered.

Under the fundamental rights provisions of *the Interim Constitution of Nepal, 2007*, several rights including the right to freedom (Art. 12), the right to equality (Art. 13), the right to privacy (Art. 28) and the right to constitutional remedy (Art. 32) have been included. Human rights or fundamental rights are the matters which need to be considered in the context of the relation of the individual with the State. It is the principle that the people accept the right of the State on the condition that the State shall also respect and safeguard the specific rights of the people or community such as freedom, equality etc. and shall not infringe those rights. As on the basis of this principle the State has legally recognized and guaranteed some natural necessities, these rights are treated as inviolable. The rights such as the right to life, the right to equality, the right to personal freedom, the right to property, the freedom of thought and expression, the freedom of publication, the right regarding justice etc. are treated as basic human rights. The right to privacy is directly or indirectly linked to all those rights in an indivisible manner, thereby prohibiting outside interference in the personal matters of an individual. For example, the right to life does not only signify an individual's right to live in a physical manner rather it also signifies one's right to live with dignity. If some highly personal information of an individual or citizen is subjected to disclosure except when its disclosure is essential for some specific legal purpose, the individual or the citizen is unnecessarily made to stand in the defense line and also falls in a position where s/he may not confidently do the work which s/he likes to do.

A demand for uncalled for openness regarding some one's personal information may lead to a situation where it shall be impossible to enjoy one's rights or to demand even for the fulfillment of one's legal obligations. For instance, in the event of taking any health service, even though the status of anybody is not directly related with that matter, if s/he is made to disclose whether or not s/he is married or whether or not s/he is infected with HIV/AIDS and, if s/he is a child, whether or not s/he has been charged with theft or whether or not s/he is involved in any litigation, simply that very reason may lead to a

situation where it shall be difficult for him/her to enjoy the facilities provided by the law. If any pregnant woman wants to abort her unwanted pregnancy and the institution providing that service forces her to disclose the identity of the person who has made her pregnant or whether or not she is married, the pregnant woman may feel compelled to discard the abortion service as she may not want to disclose that information or such an act may make her feel uncomfortable. Such problems may be multiple and it is not possible to mention all the dimensions.

As a result of entanglement with the problems like HIV/AIDS, the status, guardianship, health etc. of the parents of the children may also be dragged into controversy. For instance, while talking about protection of the privacy of the introductory information about a child affected by HIV/AIDS or also in a dispute about the guardianship of a child it may be essential to provide protection of privacy of the status of the parents of that child. Even if the introductory information about the child is protected, the disclosure of the identity of his/her parents may destroy the meaning and purpose of the privacy of the identity of the child. If a child has been brought up in a prison due to the imprisonment of his/her mother the information about such a rearing may also need to be protected. Such instances may be multiplied. In the process of enjoyment of judicial remedy the petitioner seems to have requested for making provisions for protecting the privacy of the introductory information about women who have been victims of violence against women, of children who are parties to a case and of persons who are infected with HIV/AIDS. Article 28 of *the Interim Constitution* has provided that the person, residence, property, documents, data, correspondence, character etc. shall be inviolable except in the circumstances specified by the law.

Since that provision has made the privacy of the above-mentioned matters generally inviolable and has provided for specification of the conditions by the law for disclosure of their privacy, it appears that the law has made privacy a general matter whereas disclosure is an exception. There is some special significance of various rights mentioned in the Constitution and their hierarchical order has not been fixed nor can it be possible to do so. No right is complete and absolute in itself, and for the enjoyment of any one right other rights may be related and subsidiary. The infringement of one right may cause obstruction to the enjoyment of also another right. Therefore, it is essential to consider any question relating to any right in the totality of the provisions regarding fundamental rights and also on the basis of their complementarity. For instance, even though only the right to

privacy of the HIV/AIDS infected persons is to be considered, it may become essential also for the protection of their right to health. In order to prevent any otherwise impact on his/her personal or his/her family's right to education or employment or to prevent discrimination it becomes equally essential to protect the right to education, the right to labor, the right to property and the right to equality. The right to privacy has got its own significance in the context of women or children. It has been mentioned in Art. 20(3) of *the Interim Constitution* that no physical, mental or any other type of act of violence shall be committed against women and that such an act shall be punishable by law. Because it has been mentioned in the Constitution that no discrimination shall be made against any person only because the person is a woman, if any woman involved in any specific litigation or placed in a particular situation does not feel the presence of a friendly environment for easy access to justice at par with men, the act aimed at bringing change in such a situation shall have to be treated as a part of the greater process of removing discrimination against women.

The exercise of the right against torture guaranteed by Article 26 of the Interim Constitution is also relevant for safeguarding privacy in order to remove discrimination against HIV/AIDS infected or affected persons and to control torture or inhuman behavior against them. If the treatment meted out to any party or victim creates a feeling of fear, threat or inferiority complex in the mind of such a party and makes him/her feel insulted such a treatment is considered to be insulting.²⁸

Thus, in the present case, in order to make the right to privacy mentioned by the petitioner effective and meaningful there is a need for considering this right in the relativity of other relevant rights, and, especially, in the present context it needs to be considered in the light of the right to life, the right to freedom, the right to health, the rights of women, the rights of children, the right to property, the right to information and, most importantly, the right to justice and judicial remedy. In the context of the analysis made above, it becomes relevant to look at the provisions made by the international law, especially the international human rights law, and our Constitution and the laws.

Article 22 of *the Constitution of the Kingdom of Nepal, 1990* had afforded protection to the right to privacy by providing that the privacy of a person, home, property, document, correspondence or information of any body shall be inviolable except in the circumstances specified by the law. Article 28 of the Interim Constitution has,

²⁸ V. Vs United Kingdom, European Court of Human Rights, 2000, 30 EHRR, 121.

expanding its sphere by also embracing other facets of the privacy of a person, guaranteed that “the privacy of the matters relating to the person, home, property, document, data correspondence and character of any body shall be inviolable except in the circumstances specified by the law.”

Under the provision of the right to privacy the privacy of the person as well as his/her confidential information, too, seem to be protected. If the privacy of the data and the personal introductory description of an individual relating to his/her character and other related information is not protected, the right to privacy becomes extremely contracted and may not attain its objective.

The use of the word ‘person’ in Art. 28 of our *Interim Constitution, 2007* signifies not only the inviolability of the body but also the physical health and the personal introductory matters. The data of a person, irrespective of whether it is concerned with any case or health, are treated as inviolable except in the circumstances specified by the law. In other words, for open dissemination of such information permission should have been granted by the law itself. Otherwise, it shall be inviolable. So far as regards the question of whether or not the data received in the judicial process fall under this category, if it is argued that only because it is a judicial process all matters should be open and easily accessible, in that case the above mentioned constitutional provision shall become meaningless.

The right to privacy is found to have acquired recognition as one of the significant human rights at the international level. Article 12 of *the Universal Declaration of Human Rights, 1948* has provided, “No one shall be subjected to arbitrary interference with his privacy, family, home or correspondence, nor to attacks upon his honour and reputation. Everyone has got the right to the protection of the laws against such interference or attacks”. That Article seems to have ensured the right to privacy regarding an individual’s honour, reputation and his/her residence, family and correspondence. Likewise, Art. 17 of the *International Covenant on Civil and Political Rights, 1966* has also provided, “(1) No one shall be subjected to arbitrary or unlawful interference with his privacy, family, home or correspondence, nor to unlawful attacks on his honour and reputation. (2) Everyone has the right to the protection of the law against such interference or attacks.” Thus this provision has also laid emphasis on the protection of the privacy of the honour and reputation, residence, family and correspondence of an individual.

Likewise, Article 16 of *the Convention of Rights of Child, 1989* has also provided, “No child shall be subjected to arbitrary or unlawful interference with his/her privacy, family, home or correspondence, nor to unlawful attack on his/her honour and reputation,” And, by further providing that “the child has the right to the protection of the law against such interference or attacks” it seems to have recognized the children’s right to privacy.

Article 8(4) of *the Optional Protocol to the Convention of Rights of Child on the Sale of the Children, Child Prostitution and Child Pornography, 2000* seems to have included the matter of taking appropriate steps in accordance with the national law to remove undue flow of information regarding introductory matters relating to a child in order to protect his/her identity and privacy. (“Protection as appropriate to the privacy and identity of child victim and taking measures in accordance with the national law to avoid the inappropriate dissemination of information that lead to the identification of child victim.” - Art. 8(6).

UN General Assembly, Special Session (UNGASS)²⁹ on HIV/AIDS has also stated that the governments need to make law and rules and undertake other measures to ensure the rights of the persons infected with HIV/AIDS, and under this their confidentiality and privacy should be also protected.

Article 9 of *UNESCO Universal Declaration on Bioethics and Human Rights* has also made special provision regarding privacy and confidentiality and observed in this regard as follows: “The privacy of the persons concerned and, the confidentiality of their personal information should be respected. To the greatest extent possible, such information should not be used or disclosed for purposes other than those for which it was collected or consented to, consistent with international law, in particular international human rights law.”

The human rights Conventions adopted and enforced by various regional groups, in accordance with the above mentioned Conventions, have also accorded respectable place to the right of privacy of a person and have thus guaranteed its protection. For example, the provisions made by Article 8 of *the European Convention on the Protection of Human Rights and Basic Freedoms* (1950) and Article 11 of *the American Convention on Human Rights* (1969).

²⁹ Declaration of Commitment on HIV/AIDS, 2001.

It becomes clear that the above mentioned Conventions and Declarations have created obligations for the States to protect effectively the right to privacy of the individual by making laws. Even though the human rights Declarations do not carry mandatory force as exercised by treaties, the States should implement their spirit by relating them to the main treaties.

As Nepal has become a party to the international human rights Conventions and accepted the obligations imposed by them, there is no dispute that the State must implement those obligations by incorporating them in the Constitution, statutes, law and rules and also various programmes. Several judgments delivered by this court in the past have already made adequate interpretations regarding the national recognition of the treaties in the context of Section 9(1) of *the Treaty Act, 1990*. What is remarkable is that it is essential to consider the right to privacy and the right to access to justice from the view point of basic human rights. Besides the right to justice, the right to constitutional remedy has been also guaranteed in *the Interim Constitution of Nepal, 2007*. In addition to Articles 24 and 32, certain rights regarding judicial remedy also get mobilized in course of justice dispensation by the general courts under their ordinary jurisdiction.

Out of the general and extra-ordinary jurisdictions available for the protection of fundamental and legal rights of a person, the proper jurisdiction is invoked as required by the situation. It is the regular remedies which are sought especially for the resolution of the question regarding juvenile justice, violence against women and also remedy for property or other rights of HIV/AIDS infected persons. So the right to privacy is limited not only to the application of the Criminal Law but also extends to the implementation of the Civil Law. If any person has filed a³⁰ Lawsuit asking for expenses or his/her share of property or compensation for medical treatment for having been infected with HIV/AIDS, information regarding such a situation, too, cannot be allowed for unrestricted dissemination. At least the relevant portion needs to be given protection up to a desirable limit. So there is a need for looking at the right to privacy as to how the judicial process can be made basically fair, free from discrimination and friendly for the court users in course of judicial treatment.

The petitioner has, in her written Memo, drawn attention to *the Declaration of Basic Principles for Victims of Crime and Abuse of*

³⁰ No. 10A of Chapter on Rape of National Code.

Power (29 Nov. 1985) which seems to be relevant also in the context of the present case. It has been mentioned in that Declaration that the victims should be given respectable and sympathetic treatment and their access to judicial mechanism should be ensured and speedy remedy should be provided to them in accordance with the law for the losses suffered by them. It has been also stated in that Declaration Irrespective of the way in which the victim has been made to suffer from injustice, our social outlook upon them may have, in stead of making efforts to heal his/her wounds, turned negative for some fallacious belief. If it so happens, in addition to the violence suffered by the victim earlier, a situation may arise forcing such a person to further suffer continuously from the second stage of violence or pain as a result of publication or recording the physical condition of that person. The psychological tension or damage caused to a person on account of violence is treated as an additional recurring violence falling under the second category. In the absence of legal and other protection aimed at tackling such a problem, if obstacles are created also in the way of enjoyment of other rights or facilities, the search for justice turns into a curse in stead of bliss for the victim.

Adverse social psychology still exists in our society in a religious or cultural form. An extensive movement needs to be launched for bringing about broad changes in such a type of thinking, but it has not taken place so far. By a mere declaration of rights in the law negative social psychology or obstacles existing in the way of enjoyment of the rights may not disappear automatically. If such a reality is ignored, there may be a danger of our findings becoming more technical than substantive. As a result, our services may not be automatically available to the people for whom they have been created or to whom they have been dedicated. If favourable conditions are not created, the parties, despite their willingness, may not have the capacity to accept our services. In that event a situation may arise where our services may not be available to those who need them most whereas those who do not need them may get more benefited by them. Therefore, taking into consideration such a stark reality, it is necessary to, by ensuring an individual's right to judicial remedy, grant him/her effective and easy access to justice and to guarantee privacy of the personal identity of the parties involved in the judicial process through the protection of the right to privacy. Its main objectives are that the concerned party may not lose his/her courage to seek remedy against injustice and she may not be made to experience any additional disqualification or disadvantage in practice for the reason of having raised one's voice against injustice. It is the belief of this Bench that if in the eyes of the incapacitated sections of the society our services

lose attraction or do not carry conviction it shall have to be treated as an indication of the gradual end of the social utility of our services.

In fact, the right to access to justice is a right covering an expansive area which has got various complementary dimensions. Out of them, in addition to other matters, it is clear that the protection of the right to privacy of the victim is an important part. It is essential for the judicial system to always maintain a balance between the obligation to give fair treatment to the parties present in the judicial process and the right of the parties to have access to justice. In this context, without guaranteeing the personal privacy of the victims and their personal security and without taking into consideration the disadvantages confronted by the victims, justice cannot take a firm and expressive form in the midst of revenge and fear. For arousing this feeling of self-confidence and security among the persons who have come forward to seek justice it is essential to give them guarantee of the privacy of their personal identity or other related information. If viewed in this way, the need and relevance of the protection of the privacy of the personal identity and other related information of the women, children or HIV/AIDS infected persons who have come to be present in the judicial process appears to be clearly important from the viewpoint of the enjoyment of the right to judicial remedy.

Let us now consider the second question - What is the existing legal provision regarding the protection of the personal introductory information of the persons mentioned in the petition? Is it adequate or not?

Although the right to privacy has been declared in Art. 28 of the Interim Constitution, it has been placed under the clause "except in the circumstances specified by the law," and no extensive provision of the law has been made so far. Till today extensive legal provisions regarding the right to privacy of the women, children or HIV/AIDS infected persons have not been made. As a result, the rights and interests of both the person seeking privacy and the person demanding information are virtually uncertain in practice and dependant on the administrative discretion.

As the right to privacy needs to be managed according to the nature and needs of the class seeking that right, it is not possible to make similar provisions for all classes or in all circumstances. Therefore, there is a need of regulating the right to privacy by first deciding the nature and extent of privacy on the basis of specific sections, classes or circumstances, and the Legislature and the Executive are needed

to take special steps in this regard. As regards the question of the right to privacy of the victim women, children and HIV/AIDS infected persons who have entered the judicial process, in the recent days a provision has been made for in-camera trial of the cases relating to rape, trafficking in human beings, children, ascertainment of relation and divorce. Besides, it has been also provided that if the court deems any other case fit for in camera trial, it may issue an order accordingly. Such a provision has been made by Rule 46(b) of the *District Court Rules, 2052* (1995), Rules 60(a) of the *Appellate Court Rules, 2048* (1991) and Rules, 67(a) of the *Supreme Court Rules, 2049* (1992). In those Rules, as no mention has been made about the civil or criminal cases in which HIV/AIDS infected persons are involved as plaintiffs or defendants, those Rules do not seem to include such cases under this category. It has been provided that while taking the statement of a victim woman in course of conducting investigation of any offence under the Chapter on Rape in (the National Code a female police personnel must take that Statement³¹. Likewise, it has been further provided that during the trial of a case under that chapter only the concerned legal practitioner, the accused, the victim woman and her guardian, the police personnel granted permission by the official entrusted with the trial of the case and the court employees may remain present in the court room.³²

The Children Act, 2048 (1991) has provided that during the trial of any case involving any child the legal practitioner, parents, relation or guardian of the child and, if the official trying the case deems it proper and grants permission, any person or representative of any social organization involved in the activities concerning the protection of the rights and interests of children may remain present in the court room³³. Besides, *the Children Act* has also imposed restriction on the publication, in any daily or magazine, of the description of any incident relating to such a case without the permission of the investigating officer or the official conducting the hearing of the case.³⁴ The same Act has further provided that the police office must maintain, in a confidential manner, the record of the name of the child arrested in connection with the charge of any offence, his/her address, age, sex, family background, financial position, the offence committed by the child and the description of any action if taken in that connection,³⁵

³¹ No. 10B of Chapter on Rape of National Code.

³² Section 49(1)

³³ section 49(2)

³⁴ Section 51(1)

³⁵ Section 52(2)

and if such data are published for the sake of any study or research it can be published only on the basis of age or sex, and that, too, without mentioning the name, family title or address of the child.

Although the above mentioned provisions have provided for in-camera proceedings and the protection of privacy in regard to publication in dailies and magazines, no thought has been given so far to the inclusion of a provision regarding maintaining privacy about the introductory information of the child also in the case file and the documents included therein. Moreover, there is no effective implementation of the existing law.

Even after making the provision for camera court no exhaustive Guidelines have been prepared and issued for the purpose of conducting the proceedings in a camera court. The physical environment and management aspects of camera court have been almost forgotten. Not even initial work has been done in the direction of ensuring necessary sensitivity, awareness and skill in the mind of judges, employees and also the legal practitioners in regard to conducting the in camera trial. Information has not been disseminated in an extensive manner about the provisions of the in-camera proceedings and its advantages. Camera court does not simply signify a process restricting the unnecessary entry into the place where the Bench is physically operating. No formal provisions having theoretical and practical clarity have been formulated regarding the responsibility to be shouldered by those participating in the in-camera proceedings in accordance with the spirit of this trial, irrespective of whether they are inside or outside the camera court or whether the in-camera proceedings are in progress or they are over.

One of the objectives of the camera court is to protect the victim party to the case against a discouraging environment which dissuades him/her from bringing to light even the matter which s/he is willing to disclose only because the Bench is open, and thus to empower him/her to make his/her participation and presence in the judicial process in an effective and actual manner. But if the victim is made to face the accused even inside the camera court or if there arises a situation in which the victim is not in a position to bear the fear or terror caused by his presence and if the victim could not be protected against all this, there shall be no possibility of the camera court serving its purpose. Rather due to the presence of the limited number of persons inside the court room the victim may feel additional

insecurity from the defendants. If it so happens the advantages of the open Bench shall be lost whereas only the risk of the camera court shall become obvious. Hence, in order to ensure the immediate and long term benefits of the camera court necessary study, management, monitoring and evaluation are still to be undertaken, for which it is necessary that the concerned courts themselves should first display special management and readiness on their own responsibility.

Even though the objective of the provision for setting up camera court in some specific cases is to address the specific needs of the victims in the concerned cases and to prevent unnecessary disclosure, the victim women, children and HIV/AIDS infected persons have felt the lack of guarantee of the privacy of their introductory and other related information. Besides, no thought has been given in regard to the protection of the privacy of their introductory information following the disposal of the case.

The provision of camera court is a provision which can be activated only after the filing of the case. However, in a few sensitive cases there may arise a need for protecting the privacy of the introductory information of the complainant or the victim right from the time of lodging of the first information report (FIR). The victim may not feel like filing the FIR for the fear of the general people forming negative opinion about him/her by coming to know about his/her condition only because of the filing of the complaint and the unnecessary dissemination or publication of unwanted information through that means. The victim, therefore, thinks that the general people would not have learnt about his/her condition had s/he not filed the complaint leading to the initiation of the case, since after the start of the process of the case following filing of the FIR the victim is presented before the court, his/her proofs and evidences are subjected to examination and they are also kept in the written form and brought to light.

All the criminal events taking place in the society are not found to be recorded as complaints only because of the failure to maintain and guarantee the privacy of the information relating to the victims. Such a trend is treated as an additional opportunity for the criminals to commit crimes and on the other hand it also aggravates the vulnerability of the victims. Therefore, it is essential to guarantee the identity and other information related to a sensitive class like victims and children right from the time of investigation of the offence. At present the prevailing scenario in our country shows a trend of disclosing all the information

about the victim right from the time of filing of the FIR, disclosing the case file and the documents contained therein, the concerned party enjoying the freedom of demanding their copies and inspecting them and also the media having unlimited access to them. That is to say, the prevailing scenario shows that the needs and interests of the victims have been left unregulated. If all the problems relating to access to justice - ranging from investigation to judicial adjudication, and, thereafter, publication and implementation of the decision - are not addressed, the self confidence of the victims cannot be enhanced only by conducting proceedings in a camera court which start in the middle and also end in the middle of the judicial process. In order to make the existing camera court meaningful and to ensure the judicial guarantee of a high order for the victim and the sensitive party it is, therefore, essential to make additional provisions for protecting the privacy of their introductory personal information and other related information.

Let us now consider the issue No. 3.

It is necessary to consider in the present context what type of relation exists between the right to privacy and the right regarding justice to have fair hearing from a competent court. Whereas the right to privacy compels to protect the privacy of certain specific information, everybody, under the right to justice which remains as an integral part of judicial remedy, possesses a right to information about any action taken against them and also to have fair hearing from a competent court. Judicial impartiality and unbiased ness are the main prerequisites of the right to justice. The right to information, the right regarding justice and the right to judicial remedy can be viewed both as mutually independent and as complementary to on another.

Public information can be sought for under the freedom of speech and expression and the right to information, and the judicial information is also included under this. Our constitution has guaranteed several matters under the right to justice enshrined in Art. 24. But under that provision it has not been specified that every trial must be made public nor has it been made mandatory that all the subject matters of judicial hearing should be also made accessible for the common people. Since it is the right of a defendant to seek, under the freedom of speech and expression, necessary information in order to examine the evidence and information presented against him/her, s/he is entitled to have the natural right to seek, receive and present his/her version in that connection. In addition to that, the matters regarding the

enjoyment of one's rights granted by Art. 24 are also there. The rights of the victim, too, are another aspect in a case which needs to be considered along with the rights of the defendant. His/her right to express him/ her without any hindrance needs to be recognized in order to reach the goal of judicial remedy. Only in a proper environment and with proper opportunities the victim may express him/herself in a proper manner and present all the available proofs. Hence, it is the duty of the state to manage the judicial trial ensuring guarantee for all this. Although Art. 24 of *the Interim Constitution* has not provided for judicial dispensation only through an open court as a necessary prerequisite for the enjoyment of the right regarding justice, our judicial procedures seem to be generally automatically oriented towards the system of open trial. In fact, it can be said that making judicial trial generally open seems to remain as a characteristic of our judicial system. And our judicial system seems to be conducted in accordance with the spirit pervading in Art. 11 of *the Universal Declaration of Human Rights*³⁶ and Art. 14 of *the International Covenant on Civil and Political Rights* which have been also ratified by Nepal.

According to the above mentioned Article 14 of ICCPR all persons are equal before the courts and tribunals. It has also provided that in the determination of any criminal charge against any person or his/her rights and obligations in a suit of law s/he shall be entitled to a fair and public hearing by a competent, independent and impartial tribunal established by law. It has further provided that the press and the public may be excluded from all or part of a trial for reasons for moral, public order or national security or if the interest of the private life of the parties so requires or in the circumstances where the court is of the opinion that in special circumstances publicity would prejudice the interests of justice. Besides, it has also provided that any judgment rendered in a criminal case or in a suit at law shall be made public except where the interest of juveniles requires otherwise or the proceedings are concerned with matrimonial disputes or the guardianship of children.³⁷

³⁶ Article 11.1 (UDHR) - "Everyone charged with a penal offence has the right to be presumed innocent until proved guilty according to law in a public trial at which he has all the guarantees necessary for his defence."

³⁷ Article 14 (ICCPR) - "All persons shall be equal before the courts and tribunals. In the determination of any criminal charge against him, or of his rights and obligations in a suit at law, everyone shall be entitled to a fair and public hearing by a competent, independent and impartial tribunals established by law. The press

The above-mentioned Article 14 has provided for imposing restriction on the presence of the press and the public during a trial in order to maintain public interests, national security, morals etc. Moreover, it has been also clearly mentioned that restrictions can be imposed on public hearing if, in the opinion of the court, the purpose of justice may be defeated if open trial was allowed or the court proceedings were published. Also, even while making any decision public it has been provided that exceptions can be made in the interests of children or in the issues relating to matrimonial disputes or guardianship of children.

Although the concept of public hearing has been included in *the International Covenant on Civil and Political Rights*, it is not proper to say that the very use of the term “public hearing” must necessarily be viewed as an open hearing. The hearing conducted in accordance with the law does not also lose its public element only for the reason of restriction imposed on the entry of some particular person with a view to regulating hearing in certain specified circumstances or due to a hearing conducted in a camera court or due to not disclosing the identity of a particular party or witness. Even where the hearing is conducted after making such an arrangement, in actuality, it is the public law which is being applied, and the judicial process is regularized. The main thing which needs to be considered in the judicial process is whether or not the concerned party was dealt with fairly and whether or not that party received adequate opportunity for his/ her defense.

Our National Code and the laws and rules relating to judicial administration have also granted it recognition to a desirable limit.³⁸ It has been already discussed above about the provision of camera court in some particular cases. It is not that there shall be judicial fairness only when the Bench is open and that the judicial fairness

and the public may be excluded from all or part of a trial for reasons of morals, public order (order public) or national security in a democratic society, or when the interest of the private lives of the parties so requires, or to the extent strictly necessary in the opinion of the court in special circumstances where publicity would prejudice the interests of justice, but any judgments rendered in a criminal case or in a suit at law shall be made public except where the interest of juvenile persons otherwise requires or the proceedings concern matrimonial disputes or the guardianship of children.’

³⁸ Article 49 of the children Act, 2048, No. 10 B of chapter on Rape of National Code.

would be a casualty the moment the hearing is conducted in a camera court. For a fair hearing it looks essential to make a provision for some major prerequisites like opportunity provided to the party for presenting his/her claim or defense without any hindrance, procedural simplicity, opportunity for legal aid or representation, congenial environment, judicial impartiality etc. In fact, in our judicial system, the judicial process has been generally kept open and the in-camera proceedings are conducted as an exception only in some cases in which the parties of some specific conditions are involved. And while doing so, the approach remains that even in those sensitive circumstances the judicial flow must continue uninterrupted. It is necessary to view this, in fact, as an attempt at striking a balance between judicial fairness and judicial effectiveness.

Only because special type of protection has been afforded to the parties or witnesses there is no reason to believe that the dignity of open hearing shall be eroded only for that reason. If there is possibility of fear or influence also in the open court, justice may get obstructed even there. It is for this reason that there is generally no place for questioning the justification of public or open court. Nonetheless there seems to be no reason to believe that fair judicial hearing may not be possible only because in special type of cases or in cases involving special type of people the hearing has been made public only after maintaining the confidentiality of some specific information or the hearing has been conducted in a camera court. If the necessary prerequisites or qualities required for fair judicial hearing are present, it should be presumed that there is of fair judicial hearing irrespective of the fact whether there is an open court or a camera court.

In fact, the rights to public hearing and the victim’s or the party’s right to privacy are a matter to be viewed in a balanced way. It is not correct to say that an accused person’s right to defense and fair hearing has always got precedence over the victim’s right to judicial remedy. For the guarantee of fair administration of justice it is essential that the victim persons must present their evidence without any fear or obstacle and the decision maker must also issue the necessary orders for the same. (“The state has an interest in fair administration of justice. It requires that the victims and witnesses depose without fear and intimidation and that the judge is given sufficient power to achieve that object”).³⁹ In fact, under the right to judicial fairness it is necessary to view in a

³⁹ Scott v. Scott, 1913, AC 417.

coordinated manner the party's right to defense of his/her innocence along with the victim's right to seek judicial remedy for the injustice committed against him/her. When sometimes it becomes necessary, in view of the nature of the case, to provide protection to the privacy of the introductory information of also a party to the case (for example, children) as it appears compulsory in the interest of justice, it becomes all the more important in the case of the victim. It is not possible to say where this balance shall be struck. There is a need for continuous review of the circumstances for striking such a balance. In the present context a defendant's right to defense does not mean that he can subject the victim's evidence or the victim to cross examination in any manner or to any extent. Rather it simply signifies that s/he must be provided with a guarantee of the basic opportunities required for defense.

Nowadays due to the expanding nature of terrorism and in order to ensure, for the sake of fair justice, the desirable participation of all the concerned by protecting them from the emerging new trends seen in the world of crime, the procedures have been already adopted to conduct the trial in a camera court after shifting the case from the open court, and to record the evidence and statement of the witnesses, protecting the victim or the witness from confronting the defendant, through audio visual medium or close circuit television or by using a bar erected between the defendant and the victim. The Indian Supreme Court has ruled, in *Sakshi vs. Union of India*⁴⁰, that if any testimonial statement has been recorded by using video screen and the defense has watched it, the requirement of a defendant's right to have the proofs examined in his presence should be treated as fulfilled. In order to deal with the menace of terrorism various legal provisions including Section 13 of the Indian Terrorist and Disruptive Activities (Prevention) Act, 1985 (TADA)⁴¹ and Section 3016 of the Prevention of Terrorist Act, 2002 (POTA)⁴² have been made.

⁴⁰ 2004(6), SCALE.

⁴¹ 1) Notwithstanding any thing contained in the Code, all proceedings before a Designated Court shall be conducted in camera; provided that where public prosecutor so applies, any proceedings or part thereof may be held in open court.
2) A Designated Court may, on an application made by a witness in any proceedings before it or by the public prosecutor in relation to a witness or on its own motion, take such measures as it deems fit keeping the identity and address of the witness secret.

⁴² Section 30 of POTA: Protection of witness:

Some new methods of examining a child witness, allowing a few exceptions to some general rules followed in course of examination of an adult witness, have started finding place in our system. For example, Even the cross examination made by the defendant is indirectly conducted through the judge; informality is adopted while examining a child witness and the examination of the witness takes place in a suitable manner, after considering his/her mental level and after providing him/her with a friendly person or environment; the version of the child witness is recorded through an audio-visual means for presenting it in the court. It is necessary to protect the privacy of the introductory information about the concerned party in certain conditions in the judicial process in order to ensure the act of seeking and receiving justice in view of basically sensitive cases or the sensitivity of the concerned party and the needs of justice. But it is equally necessary to take precaution against making such a situation adverse thereby allowing it to become prejudiced enough disabling the defendant to get justice. The need for a fixed procedure or Guidelines can be realized in order to ensure such a situation.

Let us now consider question No. 4:

While considering the question of whether or not the act of keeping the personal details of a party to the case or the victim secret contradicts the defendant's or the public community's right to information, as the right to information has been also accorded protection in the present Constitution it cannot be said that the need for creating a demarcation line between the right to privacy and the right to information may not arise. The right to information is also treated as an integral part of a person's freedom of expression. For a meaningful enjoyment of one's freedom of thought and expression the act of seeking and receiving some information of public importance, which is felt necessary for some one, constitutes the inner contents of the right to information. It has been already mentioned in the law relating to information that the procedure of getting information of

1) Notwithstanding anything contained in the Code, the proceedings under this Act may, for reason to be recorded in writing, be held in camera if the Special Court so desires.

2) A Special Court, if an application made by a witness in any proceeding before it or by the public prosecutor in relation to such witness or on its own motion, is satisfied that the life of such witness is in danger, it may, for reasons to be recorded in writing, take such measures as it deems fit for keeping the identity and address of such witness secret.

public importance should be provided in the law itself. A provision regarding giving other persons compulsory access to private information is neither there in the law nor is it proper to do so. In fact, personal information is inviolable except where the law compels to do so. Imbibing this very spirit, *the Right to Information Act, 2064* (2007) has provided for giving protection against unauthorized publication and dissemination of any information of a personal nature.⁴³

The Right to Information Act, 2064 has also provided for the use of personal information only after obtaining written consent except where it is necessary for the sake of preventing any serious danger to the health or security of the public or controlling corruption and where the law permits for such publication.⁴⁴

Therefore, it does not seem that the utility of the provision regarding privacy guaranteed by the right to information can be obstructed. In fact, it is worth remembering that under the right to expression it is also included the right of a person who is not in a position to express him/her. Particularly, as the victim women and children exposed to risk and HIV/AIDS infected persons can express themselves or explore the judicial remedy for their judicial needs only if the privacy of their personal introductory information or other information is guaranteed, it is also the duty of the State and the society to provide guarantee for such things.

It is not proper to say that the right to privacy always obstructs the flow of information. The information for which legal protection is not considered essential does not fall under the confines of privacy, and even within the law relating to privacy, relaxation can be given for allowing access to information. Also, under the right to information the provisions regarding refusal of access to a person's information declared inviolable may also be included. What is most important is to provide protection in the judicial process to the information regarding privacy of the introductory and personal information of the classes exposed to danger within a necessary and desirable limit in order to create a situation for the enjoyment of their rights.

Another right related to the right to information is the right regarding publication, transmission and press. The right regarding publication,

⁴³ Sec. 28(1).

⁴⁴ Sec. 28(2).

transmission and press is considered as an enlarged form of the freedom of expression and publication. That right and the right to information both help in giving expression to a person's freedom of expression and publication. The above-mentioned rights also help in the promotion of greater public interest. Nevertheless, in the hierarchical priority of rights, these rights are not considered as enjoying superiority over other rights. Under the right to publication, transmission and press embodied in Article 15 of the Constitution a provision has been included which says that laws can be made with a view to imposing restrictions on the activities aimed at disturbing the good relation between various castes, races or communities, causing slander or contempt of court or adversely affecting public etiquette or morality. Thus it is clear that even while enjoying the right to information it must be enjoyed confining oneself within the area defined by that right. If, through those rights, positive contributions are made to the enjoyment of a person's right to justice and the right to judicial remedy in an unhindered way, the meaningful protection of every right can become possible.

Now let us consider question No. 5.

In the context of analyzing various questions the status of the existing rights and the relevant laws relating to the protection of the privacy of the personal introductory information of the women, children or HIV/AIDS affected or infected persons mentioned in the petition has been analyzed. This has made it clear that making legal provisions, addressing the necessities of all the sectors, regarding the enjoyment of privacy, which has been recognized as a fundamental right, has become necessary. Now a question arises whether or not an order can be issued for protecting the privacy of the introductory information of the persons who have come to join the judicial process in the capacity of a party or a victim. Actually, this question is very significant. It is necessary to consider whether or not such an order can be issued and, if yes, in which capacity such an order can be issued.

Article 100 of *the Interim Constitution of Nepal, 2007* has provided that the powers relating to justice shall be exercised in accordance with this Constitution, other laws and the recognized principles of justice. Besides, in Article 107(2), extra-ordinary jurisdiction has been granted to settle any dispute relating to a constitutional or legal question by issuing a necessary and appropriate order. For this purpose this court also possesses the power to issue appropriate orders with a view to

imparting full justice and providing appropriate remedy. It is the duty of the court to defend the people's right to justice by exercising, in a meaningful way, the jurisdiction created by the law relating to judicial administration in addition to the right to constitutional remedy granted by Article 32 and the extra-ordinary jurisdiction enshrined in Article 107 of the Constitution. Exercising such a right is not a mechanical work. The above mentioned jurisdiction needs to be adopted in the totality of the right of the party, the need or problem experienced in course of its enjoyment, the creation of infrastructure required for addressing it properly and also reasonable thinking and conduct.

No existing law seems to hamper the act of conducting any programme about the protection of the victim witnesses initiated in view of the special needs of the specific classes placed in a disadvantaged situation or the party exposed to risk provided that justice can be delivered by protecting the secrecy of specific identity or details or by adopting anonymous procedure in that course. Nowhere it has been accepted that under an accused person's right to have information about the charge against him is also included his right to compel the victim witness to be present before him and the right to make public defense after obtaining all the information from the latter. Such a right is treated as a relative right which can be regulated to a desirable extent, and in totality it has been accepted by several countries that the right of the accused and the right of the victim ought to be viewed from the viewpoint of the balance of interests. Hence, in order to meet the needs of justice it has been recognized as an integral part of the court's inherent jurisdiction regarding dispensation of justice to make necessary arrangements as an exception to the open court and to issue an order under that provision protecting the privacy of any specific party or victim. And it is a general belief that the absence of any specific law does not create any obstacle to do so.⁴⁵

In the United Kingdom, the House of Lords, in *Attorney General Vs. Leveller Magazine*, has explained about such a provision and declared that the court, under its inherent right, retains the power to maintain secrecy about the name of the witness.

Also in *Taylor Vs. Attorney General*,⁴⁶ the Court of Appeals of New Zealand has ruled that the court reserves the right to issue a directive

⁴⁵ 1979, AC 440
⁴⁶ 1975(2), NZLR., 675

as to which extent publication about any case should or should not be allowed outside the court. The Supreme Court of Canada has also, in *R. Vs. Dunett*⁴⁷, held that the right to fair hearing in a case is not absolute, and that anonymity can be permitted if disclosure of the identity of the complainant or an innocent person is detrimental to his/her interests, and that seems more essential than the interest of the defendant.

In several countries separate laws are found to have been made regarding protection of the personal information of the victims or witnesses as a part of the Victim-witness Protection Scheme. For example, mention may be made of *the Witness Protection Act, 1991 of Victoria* and *the Evidence (Witness Anonymity) Amendment Act, 2000 of Queensland of Australia*, *The Protection Act, 1998 of South Africa* *the Witness Protection Protection Ordinance (67 of 2000) of Hong Kong*, *the Witness Programme Act, 1996 of Canada*, *the Portugese Legislation Act (Act No.93/99 of 14 July, 1999) of Portugal* and *the Witness Protection, Security and Benefits Act (Republic Act No. 6981) of the Philippines*.

Besides, different provisions are found to have been made in several states of the United States of America in regard to the victim or witness protection. Article 706-57 and 706-63 of *the French Penal Procedure Code* has made the following provision:

"If it is found that there is danger to the life or the physical integrity of the witness or any member of his family or of a close relative then the examining magistrate – public prosecutor will be justified in authorizing declaration of such witness as protected without his identity appearing in the file of the procedure. In no circumstances can the identity or the address of such a witness be disclosed."⁴⁸

In some countries like Japan, Netherlands, Germany, Italy etc. also such legal provisions regarding protection can be found. This is indicative of the emergence of a new trend of the protection of privacy by law.

The above analysis shows that the courts have, exercising their inherent judicial jurisdiction, issued orders for the protection of the

⁴⁷ 1994(1) SCR 469

⁴⁸ Courtesy: Law Commission of India, 198th Report, August 2006, p.493

personal privacy of the party to a case or the victim on the basis of necessity and appropriateness for the sake of fair dispensation of justice. However, it does not mean that a demand has been made for not allowing the defendant to know, even for the purpose of his defense, who are the witnesses against him in that case or to close all the ways of cross examining them. Rather the demand has been made only for the protection of the secrecy of the personal introductory information in the proceedings of a case right from its beginning. In such a situation where the privacy has been protected there is a need for conducting or regulating the presentation of evidence, the procedure of the examination of witness and some other related matters in a special manner in order to make such protection more effective. Not that comprehensive provision regarding the privacy of a party to the case or the victim cannot be the subject matter of legislation. In fact, making a separate legal provision in this regard is not only desirable but also essential because such a need can be better addressed only through the means of effective law.

For this, it looks essential that the Executive and the Legislature must take initiatives to make law for the protection of privacy of the victim women, children and HIV/AIDS infected persons. It is necessary to include adequate provisions in the law and to implement such provisions including protection of the privacy of the personal information of the persons whose privacy needs to be protected, the information about their physical and medical conditions and the information which has come to light in the judicial process, providing necessary counseling, disclosing some information after obtaining informed consent, specifying the conditions when the information may be disclosed, protecting the privacy of information or prescribing the procedure and authority for disclosing such information, making provisions for necessary punishment, reparation and treatment for its effective implementation, providing for a record system equipped with necessary techniques and methods of monitoring and evaluation for controlling the misuse of that provision and also making provisions in the law, if so needed, for essential conduct.

The written replies submitted by the opponents do not show any ideological objection to the act of protecting privacy by making a law relating to privacy as requested by the petitioner. The Speaker of the Legislature Parliament has not only not expressed his opposition to making law for the protection of privacy of the classes of people mentioned in his written reply but has also expressed his consent for

the need of such a law and displayed his willingness to facilitate the process if the necessary Bill is presented by the government or the concerned party. The positive expression given by the speaker of the House of Representatives in his written reply in respect of the request made in the petition appears to be a praiseworthy beginning, notwithstanding the fact that no initiative seems to have been taken so far for making law in this regard. Therefore, this directive order is hereby issued to the respondents Prime Minister and the Office of the Council of Ministers and also the Ministry of Law, Justice and Parliamentary Management to present, at the earliest, a Bill before the Legislature Parliament, also taking into consideration the aforesaid legal questions, for making law containing comprehensive legal provisions, after having consultations with a committee set up for this purpose and comprising as its members the concerned Court, Bar Association, women, children and the people representing the marginalized sections of the society including HIV/AIDS infected persons or the organizations working in their interest, the representatives of the civil society and also the petitioner Forum for Women, Law and Development.

Even though an order has been issued as mentioned above, since it would take some time for the law making process, let us now consider the last question whether or not some interim provisions should be made for immediate arrangements.

Women become involved in various cases, such as, rape, incest, abortion, claim for establishing relations, divorce etc., all of which are related to violence against women and which also cause birth to several other legal problems. Similarly, even today throughout the Kingdom of Nepal there are several cases involving children as petitioners or opponents and also cases involving the persons infected by HIV/AIDS which may have been registered in various Police Offices, Government Advocate Offices, District Administration Offices and other Judicial/quasi-judicial bodies and which may be currently passing through various stages ranging from investigation to prosecution and filing of the charge sheet or the trial being in progress. It is worthwhile to consider whether or not it would be proper to let the persons involved in the cases mentioned above continue to remain in the system followed earlier prior to the delivery of this decision, pending the formulation and implementation of a legal provision as mentioned above. If, even after this decision, this Bench allows the continuing infringement of the right to privacy in the cases

involving the persons, such as, victim women, children and HIV/AIDS infected people who have been recognized by this Bench as belonging to a sensitive category, even though the law to be made after the issuance of this order shall provide protection to the right to privacy, the damage caused to such persons due to the violation of privacy already suffered by them cannot be compensated. Hence, not only that the continuation of such a state of affairs shall be undesirable, rather it is also urgently necessary to stop such a process at the earliest. Pending the enactment and implementation of a comprehensive law for this purpose in accordance with the directive order issued in this case, it must be considered as to what type of interim provisions, and having which kind of structure, should be appropriate for formulation and implementation.

In the context of the totality of the requests made by the petitioner a Division Bench of this court had sought the advice from the petitioner organization on March 9, 2007 to suggest which model or procedure shall be appropriate to protect the privacy guaranteed by the Constitution, and the latter, on the basis of its study, seems to have given some valuable assistance by presenting a model of the procedure relating to the protection of the right to privacy.

Because it is essential to make different types of provisions for the protection of privacy according to the nature of the specific needs of various concerned classes, it does not seem to be an easy task. Notwithstanding the fact that, as mentioned above, the privacy of any personal information even in regard to the cases involving victim women and children has not been protected so far by any concerned body including the courts, now it does not look proper to allow such a situation to continue any more. It is so because the people belonging to this class have got a fundamental and human right including the right to judicial remedy, and it is also the duty of the court to safeguard such a right. Although the court does not make law for this, it cannot be said that the court cannot issue Guidelines or orders, without contravening the prevailing laws, in special circumstances for the purpose of the protection of the present legal liabilities, after identifying them, on the basis of the existing Constitution, laws and the recognized principles of law and various international human rights laws to which Nepal is also a party. It has been provided by Art. 88 of the Constitution of *the Kingdom of Nepal, 1990* and Art. 107 (2) *the Interim Constitution, 2007* that the Supreme Court is equipped with extra-ordinary jurisdiction to issue appropriate orders with a view to imparting full justice. It has been

clarified above that it is also an inherent right of the court to issue necessary Guidelines or orders for enabling the party, which has come to it for seeking justice, to have effective access to justice. This court is found to have issued eight-point Guidelines regarding implementation of the right to information also in the case of *Gopal Shivakoti and others vs. the Finance Ministry and others*.⁴⁹ The Indian Supreme Court has also, in *Vishaka Vs. State of Rajasthan*,⁵⁰ ruled that if the other political organs fail to discharge their duty of making law it becomes the duty of the court to fill up such a lacuna, and also formulated and issued some Guidelines containing various provisions relating to definition of sexual harassment in order to control its occurrence at a public place, means of deterrence for its prevention, prosecution, disciplinary action, designating the authority for hearing such complaints, causing awareness about the rights of the women employees, protection of the rights of the third party etc.

These are only a few of the examples. Such Guidelines are issued not for the purpose of imposing restrictions on the rights granted to the parties by the Constitution, the Statutes and the laws but for facilitating the implementation of the existing law. Thus, by removing the unclarity at the stage of implementation of such rights or filling up the lacuna, thereby helping to make, at least to some extent, the law relating to rights more effective, it seems proper and permissible to issue some Guidelines of interim nature which shall remain effective till comprehensive legal provision are made.

While thinking about what type of guidelines should be issued for the protection of the privacy of the women, children and HIV/AIDS infected persons who are victims or a party in the context of a case, the issues which need to be addressed at the least include chiefly the classes to be covered by it, the duty of the concerned officials, the type of information that needs to be protected, the way of its protection, the condition in which the concerned party should be given information, the manner and the amount of information which should be given, the duty of the person receiving the information, the action to be taken against the persons including the officials or employees who violate the privacy of information, the procedure to be adopted while seeking the privacy of information and the right to disclosure of information in cases where the privacy of information is not required.

⁴⁹ Ne.Ka.Pa. 2051, vol 4, Judgement No. 4895, page 255.

⁵⁰ AIR 1997 SC 3011

This provision must be implemented by all the related bodies including all the law courts, police offices, the government attorney offices working under the Attorney General, the District Administration Offices etc. Recognition must be granted to the provisions like imposing restriction on demand for copies of the introductory or other private information made available in the process of the law suits relating to the persons or the classes included in the Guidelines, not mentioning anything even in the rulings leading to the disclosure of such information, restricting publication of such information by the media, including newspapers and magazines, resulting in the violation of the privacy of such type of information and permission granted even to researchers to get access only to the information about the details other than the personal information. There is a need of making a provision which allows the concerned court to treat the violation of the Guidelines as its own contempt and initiate action and slap punishment for the same. Even though the Constitution has provided for the right to privacy, still no legal provisions have been made so far which specify the circumstances in which protection should be granted to the privacy of the people belonging to some specific classes including the victim women, children or HIV/AIDS infected persons and also describe the circumstances where their personal information may be disclosed. Comprehensive provisions are yet to be made to address all this. Taking into consideration the above-mentioned matter, a directive order has been issued to the respondent Prime Minister and the Office of the Council of Ministers as well as the Ministry of Law, Justice and Parliamentary Management to make a law including the above-mentioned provisions which describe the rights and duties of the concerned parties and maintain the level of privacy as prescribed (by the law) in some special type of lawsuits in which victim women or children or HIV/ AIDS infected persons are involved as a party to the case right from the time of registration of the case in the police office or its direct registration in a law court or in other bodies till disposal of the case or even in a situation following the disposal of that case. And, therefore, this order is hereby issued to the aforesaid respondents to comply with and cause compliance with the Guidelines attached herewith pending the enactment of such a provision. The office of the Registrar of this court is directed through this order to write to the concerned courts, bodies and offices for its implementation and also to discharge the function of necessary monitoring and coordination. Finally, this Bench wants to extend its thanks to Under Secretary Tika Ram Acharya, Secretary to the Judicial Council Prakash Kumar Dhungana and Deputy Registrar of this court Bipul Neupane for providing research oriented assistance in connection with the work related to this order. A copy of *The*

Procedural Guidelines for Protecting the Privacy of the Parties in the Proceedings of Special Types of Cases, 2064 (2007), having six pages and issued today by this Bench, is attached herewith. I concur with the aforesaid verdict.

I concur above decision.

Justice Khil Raj Regmi

Done on 10th Poush, 2064 B.S. (25th December, 2007)

Attachment:

Procedural Guidelines for Protecting the Privacy of the Parties in the Proceedings of Special Types of Cases 2064, (2007)

Preamble:

Even though *the Interim Constitution of Nepal, 2007* has, by including the right to privacy under the Fundamental Rights, also guaranteed the right to judicial remedy, since, for the want of a definite legal provision for its protection, it has been realized that the persons infected with HIV/ AIDS in the event of such infection, the women in the event of violence committed against them and the children in the event of getting involved in conflict with the law are experiencing obstacles in seeking remedy against injustice or getting access to justice, and since they are also encountering additional crisis and inconvenience in living a life of self dignity due to the failure in providing protection to their personal introductory information in course of the proceedings of law suits ranging from their investigation to the implementation of the decisions and also during the period ensuing thereafter; and as it has been decided by this court to issue, by exercising the inherent power of this court under the power granted by Article 107(2) of the Interim Constitution of Nepal, 2007, an order to the Government of Nepal to make legal provisions including also the procedure for protecting the privacy of the people belonging to such classes, these Guidelines for protecting the right to privacy, which shall be applicable to every stage of the proceedings of the above-mentioned cases of special types, are hereby issued, pending the enactment of such a law, with a view to imparting full justice and providing a suitable remedy for the protection of the right to privacy.

1. Short Title and Commencement: -

- 1) The title of these Guidelines shall be "*The Procedural Guidelines for Protecting the Privacy of the Parties in the Proceedings of Special Types of Cases, 2064 (2007)*".

- 2) These *Guidelines* shall come into effect after thirty days from the date of today.
2. **Definition:-** Unless the subject matter or context requires otherwise, in these *Guidelines*:
 - a) 'Lawsuit' means, for the purpose of these *Guidelines*, the following types of cases specified by the concerned official after making a decision on protecting the privacy of the personal introductory information:-
 - 1) the criminal cases, requiring protection of privacy on the basis of the nature of the case and the impact that they can leave on the victims, having women as victims and including rape, abortion, sexual abuse, transactions in human beings, trafficking in human beings, incest and violence against women;
 - 2) the criminal cases having children as a party and tried by a juvenile court or Juvenile Bench;
 - 3) the cases related to HIV/AIDS affected or infected persons where such information has been disclosed;
 - b) 'Personal introductory information' shall signify,
 - 1) all the related description regarding disclosure of the identity including name, family title, address, etc. of the victim women in the context of the cases mentioned in sub Clause (1) of Clause (a);
 - 2) all the related description regarding disclosure of the identity including name, family title, address etc. of the children who are involved as a party in the context of the cases mentioned in sub Clause (2) of Clause (a);
 - 3) all the related information regarding disclosure of the identity of the persons affected or infected with HIV/AIDS in the context of the cases mentioned in sub Clause (3) of Clause (a).
 - c) 'The Concerned Official' shall signify the District Judge in the context of the District Courts, the Registrar of the concerned court in the context of the Appellate Courts and the Supreme Court, and the Office-in-charge of the concerned office in the context of other bodies or offices.

3. **Personal Introductory Information not to be Disclosed:-**
 - 1) All the bodies including the investigating body, the body trying the case and the verdict implementing body shall have to protect the privacy of the persons appearing as a party to the cases mentioned in Section 2 in course of all the activities conducted right from the filing of the complaint to investigation, prosecution, trial, delivery of verdict, implementation of verdict and even during the period following the implementation of the verdict.
 - 2) The privacy of the personal introductory information, not disclosed as mentioned in Clause (1), shall have to be protected in all conditions including the lawsuit, rejoinder, complaint, petition, report, appeal, decision or any public publication to be made by the court or any other body.
 - 3) The concerned person cannot be compelled to disclose the introductory information kept secret in accordance with Clause (1).
 - 4) Nobody, including any party or his/her counsel, expert, witness, judge or employee, who appears at any stage of the legal proceedings and comes to know about the personal introductory information kept secret, shall disclose to anybody the information thus kept secret.
 - 5) The information kept secret according to these *Guidelines* shall not be disclosed even after the disposal of the case.
4. **Disclosure of Private Personal Information:-** Permission may be granted for the disclosure of the personal introductory information, kept secret, to the extent considered necessary in the following circumstances:
 - 1) if the official responsible for maintaining secrecy deems it legally fit for disclosure and grants permission accordingly;
 - 2) if it looks necessary for the protection of fair judicial hearing; and
 - 3) if the person, whose personal introductory information has to be kept secret, presents a written application stating that maintaining privacy of such information is no more essential.
5. **Procedure for Maintaining Privacy:-**
 - 1) The personal introductory information kept secret in accordance with Section 3 must be recorded on a separate page and sealed in an envelope, and a separate introductory name or number or indication mark must be given to indicate the information kept private and that must be certified by the concerned authority.

- 2) If the privacy of any document or evidence needs to be protected for the sake of maintaining secrecy of the personal introductory information it must be sealed and its details mentioned on a separate sheet of paper and attached to the case file.
 - 3) For the sake of protecting the privacy of the information kept secret, the concerned court or office must make arrangements for creating a separate roster of such case files, giving indication marks and preserving the records.
 - 4) If any person requests for protecting the privacy of his/her personal introductory information, it shall be as decided by the concerned official whether or not to protect the privacy as requested. In case the personal information is to be kept secret as requested in any case, the reasons justifying such a decision must be mentioned in a written form.
- 6. Introduction: -**
- 1) Notwithstanding the presence of a person, whose introductory information has been kept secret in course of investigation or proceedings of the case, the introductory matters relating to him/her shall be mentioned only by the name, number or indication mark assigned to him/ her. His/her signature, too, shall have to be made by that very symbol, name, number or indication mark.
 - 2) The person whose personal introductory information has been kept secret in accordance with these *Guidelines* must be given an identity card mentioning his symbol, name, number or indication mark.
- 7. Summons, Notice and Correspondence:-** While issuing any summons, subpoena or notice to or corresponding with the persons, whose introductory information has been kept secret, it must be executed by using his/her symbol, name, number or indication mark. If the other party asks for official introduction regarding such information, the information shall have to be given by opening the sealed particulars after making arrangements for preventing unnecessary disclosure of the personal introductory information thus kept secret, and after the completion of the work it must be resealed.
- 8. Restriction on Publication of Information:-** The information relating to the identity of a person kept secret in accordance with these *Guidelines* must not be brought to light or disseminated by any means.

- 9. Violation of Privacy to be Punishable:-**
- 1) If, in contravention of these *Guidelines*, anyone discloses the name and information regarding someone, whose introductory information has been kept secret, resulting in the revelation of his/her real identity, such a person shall be considered to have violated an order of the court and shall be subjected to the contempt of the court proceedings.
 - 2) No personal introductory information or information kept secret, which comes to the knowledge of any employee during the proceedings of the camera court, shall be disclosed to any third party outside the camera court. If any act is done in contravention of this provision, departmental disciplinary action also may be taken in addition to the action to be taken pursuant to clause (1).
- 10. Authority Designated for Entertaining Complaints:-** If a complaint is to be filed seeking action against any employee for the violation of these *Guidelines*, the complaint must be filed before the concerned office-in-charge in case of an employee and before the concerned authority of a superior level in case of an officer-in-charge. Any complaint filed in this manner must be disposed within seven days.
- 11. Compliance with the Guidelines:** It is the duty of the concerned office, court and all concerned to comply with these *Guidelines*.
- 12. Provisions Regarding Implementation of the Guidelines:-**
- 1) These *Guidelines* must be disseminated by means of public media for the knowledge of the common people.
 - 2) These *Guidelines* must be displayed on the notice board of the courts of all levels, police offices and the government attorney offices.
 - 3) If any impediment arises in the implementation of these *Guidelines*, the concerned official shall remove the impediment by adopting an appropriate method. But if the concerned official cannot remove that impediment, the Supreme Court shall settle the issue by removing the impediment on a report submitted before it.
 - 4) The provisions contained in these *Guidelines* must be followed in the proceedings to be undertaken henceforth including in those cases which are currently in progress.
- 13. Existing Law to Prevail:-** In respect to matters other than those provided in these *Guidelines* shall be dealt with in accordance with the existing law.

A court can not held a person criminally liable unless his involvement in the occurrence is proved beyond reasonable doubt.

Supreme Court, Division Bench
Hon'ble Justice Ram Prasad Shrestha
Hon'ble Justice Tahir Ali Ansari

Judgment

Criminal Appellate No. 0197 of the year 2064

Case: Homicide.

Plaintiff: On the basis of the First Information Report of Dev Narayan Mahato, the government of Nepal

Vs

Defendants: Resident of Dhanusha District, Umaprempur V.D.C. Ward No. 9. Devendra Mandal, et.al.

Referral No. 01 of the Year 2064

Plaintiff: On the First Information Report of Dev Narayan Mahato, Government of Nepal

Vs

Defendant: Biku Mijar, a resident of Dhanusha District Umaprempur V.D.C. Ward No. 8, and presently detained at Jaleswor Jail

- **Criminal charge should be established beyond reasonable doubt. Although any version of person or other reasons could create some basis for suspecting against any person, a court cannot held a person criminally liable unless his involvement is proved through evidence beyond reasonable doubt.**

Tahir Ali Ansari, J: The brief particulars and facts of the appeal which is filed to this court in accordance with Section 9(1) of Judicial Administration Act, 2048 against the judgment of the Appellate Court, Janakpur is as follows:

Scene of Crime Affidavit: Blood stain was present in many places inside the school compound at *parbata* shopping market of Umaprempur V.D.C. Ward No. 6. It further states that persons including Biku Mijar attacked upon Chaudhary Mahato and others with gun and sharp weapons and injured them at the same place.

First Information Report of Dev Narayan Mahato: I was informed by the villagers that because of the conflict related to political parties, persons including Biku Mizar attacked upon my uncle Chaudhary Mahato and others with gun and my uncle was seriously injured when he had been in *parbata* shopping market to buy tobacco on 2059/04/20. Immediately we had taken him to the Janakpur Zonal Hospital for treatment. From Janakpur Zonal Hospital he was referred to Bir Hospital, Kathmandu for advance treatment where he died on 2059/04/25 in the course of treatment. So it has been requested to start further legal actions according to law.

Corpse Description Affidavit dated 2059/04/25: Bruise present under left eye, two stitched wound on head over right eye, multiple bruise on head, 4 inch long stitched wound on left shin of deceased Chaudhary Mahato.

Autopsy Report of deceased: The cause of death of deceased Chaudhary Mahato was due to head injury.

Supplementary First Information Report of Dev Narayan Mahato: Persons including Chaudary Mahato, Brahma Dev Sah, Ram Shikil Mahato and I were in *parbata* shopping market at around 17.30 hrs on 2059/04/19 for buying goods of daily uses. While shopping, some persons including Maithil Lal Karna, Biku Mijar, Jog Kumar Mahato, Bijaya Kumar Mahato, Ram Kumar Mahato, Anirudra Thakur, Ram Bishwas Thakur, Indra Kumar Mahato, Kebal Kumar Mahato, and Kamal Kumar Mahato came to the *parbata* shopping market with *Laathi*, *Farsha* (Spade) and gun in their hand and encircled Brahma Dev Sah, Ram Shakal Mahato and Chaudhary Mahato, assaulted upon them through bullet, *farsha* (spade) and *Laathi* by the persons including Biku Mijar with an order of Maithil Lal Karna. After incident the criminals were fled away from the scene of crime when peoples arrived there from the village side. The injured persons were taken to the Janakpur Zonal Hospital for treatment. Injured Chaudhary Mahato was referred to Bir Hospital for advance treatment where he died in the course of treatment. So it has been requested that the

forementioned persons be arrested and actions be taken according to law.

Injury examination report of injured Brahma Dev Shah and Ram Shikil Mahato.

The documents of statements recorded in reference of the case from Ram Kushal Mahato and Sitaram Mahato: We had been in the *Parbata* shopping market at around 1830 hrs on 2059-04-19. While on shopping, we heard a gunshot and people running. So, we too run from there, where 3-4 persons battered us with the *Laathi* from behind and we had been injured. Those persons themselves had battered and injured Chaudhary Mahato, Brahma Dev Sah and Ram Shikil Mahato with bullet and *Laathi, Farsha* (Spade) but I could not recognize those persons. Those persons had battered and murdered the persons including Chaudhary Mahato.

Document of Ram Shakal Mahato: I had been in the *Parbata* shopping market at around 1830 hrs on 2059-04-19 for buying goods. Persons including Chaudhary Mahato, Brahma Dev Sah and me were present at the same place. While shopping, the big crowds of people in the market were running, where some masked persons encircled Chaudhary Mahato, Brahma Dev Sah including me and battered and injured us with *Laathi, Farsha* (Spade) and gun. I could not recognize the criminals. I did not notice the persons including Maithil Lal Karna as mentioned in the list of defendants section of first information report.

Statement of defendant Devendra Mandal recorded before the authorized officer: I was in my sister's home in Sitapur on 2059-04-19 evening. I was not involved in the assault and battery against any person including Ram Shakal Mahato on that day in *parbata* shopping market. The charge against me was lodged due to the party differences. I had heard that the incident was committed by some unknown persons.

Document of interrogated Revi Mahato and Dev Narayan Das: On 2059-04-19 at around 1730 hrs, while we were shopping in the market, some persons including Maithil Lal Karna, Biku Mijar, Jog Kumar Mahato, Bijaya Kumar Mahato, Ram Kumar Mahato, Anirudra Thakur, Ram Bishwas Thakur, Indra Kumar Mahato, Kebal Kumar Mahato, and Kamal Kumar Mahato came with *Laathi, Farsha* (Spade) and gun in

their hand and encircled Brahma Dev Sah, Ram Shakal Mahato and Chaudhary Mahato, assaulted upon them through bullet and *Laathi* by the persons including Biku Mijar with an order of Maithil Lal Karna. The injured persons were taken to the Janakpur Zonal Hospital for treatment. From Janakpur Zonal Hospital Chaudhary Mahato was referred to Bir Hospital for advance treatment, who died thereon in the course of treatment.

Charge Sheet Plea: The First Information Report of Dev Narayan Mahato and other evidences, which stresses "the defendants including Biku Mijar, with the *Laathi, Farsha* (Spade) and gun in their hand came to the *Parbata* shopping market of Umapremprur VDC ward No. 6 at evening on 2059-04-19, and with an order of Maithil Lal Karna attacked upon Chaudhary Mahato, who died in the course of treatment for the injury in Bir Hospital" establishes that the defendants as mentioned in the defendant section came to the scene of crime with the *Laathi, Farsha* (Spade) and gun in their hand and with an order of Maithil Lal Karna, the defendants attacked upon some persons including Chaudhary Mahato, where Chaudhary Mahato died in the course of treatment. The act of the defendants including Devendra Mandal is in violation of Number 1 of the Chapter on Homicide of *National Code*, and thus, the defendants should be punished pursuant to the Number 13(3) of the same Chapter.

Statement of Defendant Devendra Kumar Mandal: On 19th Shrawan 2059 I was not in my home village. I have not involved in assault, I do not know who referred my name and involvement. I am totally aware among whom the incident happened.

Statement of Defendant Raj Kumar Mahato: The description of Chaudhary Mahato, uncle of First Information Report complainant died due to the assault is false. I was in Rajghat VDC of Sarlahi district in my mother's maternal home for mourning the death of my grandmother on 2059/04/19. I did not assault against anyone.

Statement of Indra Kumar Mahato: I was in Banauta VDC of Mahottari district on the day of crime; the charge of assault against the person who was not present in the village is false. Since I have not committed the offence charged against me, I should not be liable for the punishment.

Statement of Defendant Bijaya Kumar Mahato: I was in Rajghat VDC of Sarlahi district in my mother's maternal home for mourning the death of my grandmother on the day of incident. I do not know anything about the incident. The plea is false.

Statement of Ram Bishwas Thakur: I was in Dhirapur VDC of Mahottari district in my father in laws' home on the day of crime. I did not assault against anyone. Since I did not commit the charged offence, I should not be punished.

Statement of Kebal Kumar Mahato: I did not assault against anyone, on the day of incident, I was not in my home and had been to the mother's maternal home in India. The prosecution charge is false, and since I did not commit the offence as charged I should not be punished.

Statement of Kamal Kumar Mahato: I was not present in the scene of crime on the day of incident. My wife was on her maternal home and had delivered a child, so I had been to her for the rituals. I did not assault against anyone. The charge is false.

Statement of Biku Mijar: My son in law Harka Bahadur was sick. Thus, I had been to Darbhanga in India on 2059/04/15 and had returned to my home on 2059/04/24. I was not involved in any assault activities in the scene of crime. The charge sheet plea is false, thus I should be acquitted.

Document of Defendant Brahma Dev Sah: I had been to the *Parbata* shopping market and was buying vegetable at around 1730 hrs. on B.S. 2059-04-19. Chaudhary Mahato and Ram Shakal Mahato were present little far away from me. At the same time, I did not see that the persons including Biku Mijar, Jog Kumar Mahato, Bijay Kumar, Ram Kumar, Anirudda Thakur, Ram Bishwas, Indra Kumar, Kebal Kumar, Kamal Kumar came with *Laathi*, *Farsha* (Spade) and gun in their hand and with an order from Maithil Lal Karna encircled and attacked upon Chaudhary Mahato and Ram Shakal Mahato. Biku Mijar had attacked and injured me with bullet, when I had been there to rescue them, where the injured Chaudhary Mahato died in the course of treatment.

Statement of Ram Bali Sah: I was in Mahendranagar Bazaar in the evening of 2059-04-19. On the said date, I heard that Chaudhary Mahato, Ram Shakal Mahato and Brahma Dev Mahato were injured

and the incident occurred at around 1730 hrs. in *Parbata* shopping market, where Chaudhary Mahato died in the course of treatment on 2059-04-25. I did not witness the incident and cannot say who caused the said incident.

Testimony of Brahma Dev Sah: On 2059-04-19, at around 1730 hrs. defendants including Maithil Lal Karna, Biku Mijar, Jaya Kumar Mahato, Bijay Kumar Mahato, Raj Kumar Mahato, Kebal Mahato, Anirudra Thakur, Ram Bishwas Thakur, and Devendra Mandal had killed the deceased Chaudhary Mahato by encircling from all four directions. Biku Mijar had attacked Chaudhary Mahato by bullet and Jaya Kumar had attacked in head by the *Farsha* (Spade). Maithil Lal Karna, Biku had attacked with bullet in the head, chest and leg. Due to the gunshot of Biku Mijar my left leg was also injured. Defendant Maithil Lal had ordered to kill. I had seen that incident.

Testimony of Ram Shakal Mahato, Dev Narayan Mahato, Ram Ekbal Mahato, Sitaram Mahato on their own: On 2059-04-19, some black masked persons had assaulted against deceased Chaudhary Mahato in *Parbata* shopping market. We did not see the defendants in the scene of crime.

Testimony of Bishnu Devi Sah: I did not see who killed the person. I did see the deceased person after he was killed.

Testimony of witnesses including Dev Narayan Singh Rajput, Revi Mahato and Ram Nandan Mahato: The signature in the affidavit of scene of crime dated 2059-04-20 is mine. Every details mentioned in that document is true and correct. With an order of Maithil Lal Karna, Biku Mijar and Maithil Lal Karna himself had attacked with the shotgun and Jog Kumar had attacked with spade; and others including Anirudra Thakur, Kamal Mahato and Kebal Mahato had attacked with *Laathi* and killed the deceased.

Testimony of Dev Narayan Mahato: On 2059-04-19, Maithil Lal Karna had ordered to attack upon Chaudhary Mahato, where he himself and Biku Mijar had attacked on the head and thigh with bullet. They had killed the deceased. I saw these two persons and could not recognize others due to the crowd of *Bazaar* on that day.

Testimony of Bhogendra Mahato, witness of Defendant Kebal Kumar Mahato: On 2059-04-19, I and defendant Kebal Mahato were in

Darbhangha, India for the purpose of treatment. On the said date of incident, he was with me so he should be acquitted.

Testimony of Ram Prasad Mahato and Ram Ekbal Mahato, witnesses of Defendant Indra Kumar Mahato: On 2059-04-19, I and defendant Indra Kumar Mahato were in my brother in law Ram Prasad Mahato's home at Mahottari District, Banauta VDC. Since he was not present in his hometown on the date of scene of crime, the accusation against him is false.

Testimony of Tejnath Mandal, witness of Defendant Devendra Mandal: Defendant Devendra Mandal was at my home in Mahottari District Sitapur Bhagaha village from 2059-04-19 to 22. Thus, the charge against him is false.

Testimony of Naresh Mahato and Ram Chandra Thakur, witnesses of Defendants Bijaya Kumar Mahato and Raj Kumar Mahato: Defendants Bijaya Kumar Mahato and Raj Kumar Mahato were in Sarlahi District Rajghat VDC Ward No.7 for mourning the death of grandmother on 2059-04-19. They had not been to elsewhere, thus the charge is false.

Testimony of Sher Bahadur Mijar and Harsha Bahadur Mijar, witnesses of Defendant Biku Mijar: Defendant Biku Mijar was with me on the said date, where we had been to Darbhanga for the treatment of my nephew on 2059-04-15 and was back only on 2059-04-24. Thus, the charge against him is false.

Testimony of Ram Pujan Mahato and Suresh Kumar Mahato, witnesses of Defendant Kamal Kumar Mahato: Defendant had come to my home on 2059-04-15 and returned to his home on 24, in order to observe the delivery rituals of his son from my sister who is Ram Pujan Mahato's wife and gave birth to the son on 2059-04-13. On 19th there was the ritual of the sixth day of birth. He was at my own home on the said date of the incident. Thus, the charge against him is false.

The 70 days Summon Warrant issued from the Court has been lawfully delivered on 2059-09-17 in the name of defendants Jog Kumar Mahato, Anirudra Thakur and Maithil Lal Karna, which seems to have been lapsed by the defendants without appearing in the court of first instance.

The Judgment of the Dhanusha District Court dated 2061-02-14: Since the defendants Maithil Lal Karna, Jog Kumar Mahato and Anirudra Thakur did not appeared before the court and their respective property has been already confiscated under No. 190 of Court Management Chapter, this case is hereby declared to remain adjourned on their regard. And defendant Biku Mijar is held liable of life imprisonment under Number 13(3) of the Chapter of Homicide for the offence of Number 1 of the same Chapter. Similarly, defendants Devendra Mandal, Bijay Mahato, Raj Kumar Mahato, Ram Bishwash Thakur and Indra Kumar Mahato, Kebal Kumar Mahato, Kamal Kumar Mahato are acquitted from the charge against them.

Appeal of Plaintiff His Majesty's Government before the Appellate Court, Janakpur dated 2061-05-27: The judgment of the Dhanusha District Court to acquit the defendants on the ground of benefit of doubt is erroneous where the witnesses including Brahma Dev Sah, Revi Mahato, and Dev Narayan Singh have testified their version stating that the defendants were present in the scene of crime with *Laathi*. The evaluation of the evidences is not proper and logical where the deceased have multiple injuries in the body showing the signs of assault in a group. Thus, the decision is subject to be quashed on the ground of the reliability of evidences; hence, it is hereby requested to punish all the defendants as per the charge sheet.

Appeal of Defendant Biku Mijar before the Appellate Court, Janakpur: The decision of the Dhanusha District Court does not indicate anything behind the reason for killing Chaudhary Mahato. The decision also does not clarify about which weapon did I used for killing. Nobody have been able to say that I had put on mask and assaulted against the deceased. Hence, the decision with *malafide* intention has convicted me in spite of the lack of strong evidences, thus, it is hereby requested for my acquittal.

Order of Appellate Court Janakpur to invite Appellate Government Attorney Office for discussion: Here, from the study of the case file, it is revealed that the First Information Report provides Dev Narayan Mahato at first had submitted the First Information Report dated 2059-04-25 mentioning that the incident was occurred on 2059-04-20. Again he had submitted the supplementary First Information Report dated 2059-06-03 mentioning that the incident was occurred on 2059-04-19. In both First Information Report there are some differences of facts

about the incident and the testimony of the complainant also does not corroborate with the facts expressed in both of the First Information Report. The expression of the injured Brahma Dev at the time of incident and at the time of testimony in the court are different and the facts expressed by him and other witnesses of the plaintiff namely Ram Ekbal Mahato, Ram Shakal Mahato, Sitaram Mahato, Devi Mahato, Ram Nandan Mahato and Dev Narayan Singh also contradict with each other. Thus, it appears that the judgment of the Court of the first instance may be subject to change. Hence, the Appellate Government Attorney Office, Janakpur be informed to appear before the Appellate Court for discussion pursuant to No. 202 of Chapter of Court Management.

Similarly, it appears that the judgment of the Court of first instance to convict Biku Mijar as per the charge sheet and to acquit other defendants from the evaluation of evidences is also subject to change. It is therefore, the defendants who are made Respondents in the Appeal of the His Majesty's Government be informed to appear before the Appellate Court for discussion pursuant to No. 202 of the Chapter of Court Management.

Judgment of the Appellate Court Janakpur dated 2063-12-09: Here, from the study of the case file, it is revealed that the defendants Biku Mijar and His Majesty's Government have submitted their respective appeals before this Court by challenging the judgment to convict the defendant Biku Mijar and to acquit other defendants by the Court of first instance. There is no dispute on the fact of unnatural death of Chaudhary Mahato from the Autopsy Report, Scene of Crime Affidavit and Corpse Description Affidavit. The testimony of both of the First Information Report complainants shows that the incident took place on 2059-04-19. It cannot be said as irrelevant to the fact when the First Information Report complainant has given the confirm statement against Biku Mijar and has testified before the Court mentioning that Biku Mijar had used the shotgun at scene of crime. Similarly, the eye witness Brahma Dev has also testified before the Court that the deceased died due to the gunshot of Defendant Bikuu Mijar, which has corroborated with the testimony of First Information Report complainant.

While considering the Appeal of the Plaintiff His Majesty's Government it is revealed that the Defendants Devendra Mandal Dhanuk, Raj Kumar Mahato, Indra Kumar Mahato, Bijaya Kumar Mahato, Ram Bishwas

Thakur, Kebal Kumar Mahato and Kamal Kumar Mahato had denied their involvement through their statements. First Information Report complainant Dev Narayan Mahato has not been able to confirm about the involvement of these defendants in the offence while testifying in the Court. Since there is contradiction in the testimony of the eye witnesses, and the Autopsy Report also states that the death of the deceased was caused due to the gunshot, no evidences support the involvement of defendants in the offence. Thus, their involvement could not be established on these grounds. The onus of proof in the criminal charge lies in the plaintiff, who has not been able to establish the charge against these defendants in the given case. Thus, this Court cannot agree to the plea of the plaintiff for the reversal of the judgments of the Trial Court in respect of the acquittal of same defendants.

The judgment of the Dhanusha District Court delivered on 2061-02-14 to convict Biku Mijar for the commission of the offence, and to acquit the defendants other than those who are absconding, whose case is adjourned, is appropriate. Thus, the judgment is sustained.

Appeal of Government of Nepal: The confirmed First Information Report states that Maithil Lal Karna, Biku Mijar, Jog Kumar Mahato, Indra Kumar Mahato, Raj Kumar Mahato, Anirudra Thakur, Ram Bishwas Thakur, Indra Kumar Mahato, Kebal Kumar Mahato, Kamal Kumar Mahato, with *Laathi*, spade, gun in their hand came and encircled some persons including Brahma Dev Sah, Sakal Dev Sah and Chaudhary Mahato and with an order from Maithil Lal Karna attacked upon Chaudhary Mahato, who died in the course of treatment in Bir Hospital. Similarly, the persons including Brahma Dev Sah, Rebi Mahato and Dev Narayan Das has mentioned in their statements and the injured Brahma Dev Sah and eye-witness Rebi Mahato and Dev Narayan Singh has testified in the Court about the involvement of the defendants in the scene of crime. In this situation where those documents have established that there were multiple injuries in the body of deceased, and hence the deceased Chaudhary Mahato died due to the assault of these defendants, the judgment acquitting the defendants is erroneous on the grounds of Section 18 and Section 54 of Evidence Act, 2031.

Although the defendants Devendra Mandal had denied in the statement before the Authorized Officer and Court and other defendants had denied in the statement before the Court, defendants Biku Mijar is convicted for the offence. First Information Report

Complainant, including injured Brahma Dev Sah, eye-witnesses Rebi Mahato and Dev Narayan has confirmed the truthfulness of their respective documents before the court prepared during investigation.

Since the judgment of Appellate Court Janakpur expressing that the attack was not seen to be caused by the bullet is erroneous where the deceased has died with an attack of bullet and blunt weapon; the judgment to this extent be quashed and hence, the defendants should be punished as per the charge sheet.

Order of Division Bench, Supreme Court dated 2064-05-17:

Here, Biku Mijar, amongst the defendants had been convicted from the Appellate Court Janakpur and is referred to this Court for the approval, and the Government of Nepal has filed Appeal before this Court against the acquitted defendants. Thus, the case cannot be withdrawn at this appellate level pursuant to section 29 of State Cases Act, 2049. It is therefore, ordered hereby, to provide notice to the Government of Nepal stating it as the interpretation of section 29 in regard to withdrawal of a cases. It is therefore, ordered hereby, to submit this case pursuant to the rules by providing information to the Government of Nepal via Office of the Attorney General and enclosing the Reference Number 0001 along with this.

The Court has to now decide on studying the case file submitted along with the plea of the appellant after being enlisted in the Cause list pursuant to the Rules, whether or not the judgment of the Appellate Court, Janakpur sustains? The plea of the appellant, Government of Nepal could be established?

While considering the judgment to be reached, the Defendant Maithil Lal Karna, Biku Mijar, Devendra Mandal, Jog Bahadur Mahato, Bijay Kumar Mahato, Raj Kumar Mahato, Anirudra Thakur, Ram Bishwash Thakur, Indra Kumar Mahato, Kebal Kumar Mahato, Kamal Kumar Mahato were charged for the punishment pursuant to No. 13(3) on Chapter on Homicide of *National Code* for the offence of No. 1 of the same Chapter.

Since the defendants Maithil Lal Karna, Jog Kumar Mahato and Anirudra Thakur are absconding till now and the case has been adjourned, no ruling is necessary in regard to them.

Defendant Biku Mijar has not appealed against the judgment of the Appellate Court, Janakpur to convict him under Number 13(3) of Chapter of Homicide of *National Code* for the offence of the same Chapter. In this regard, the case is brought before the court through the referral from the Appellate Court, Janakpur to confirm its judgment.

In respect of other defendants Devendra Mandal, Bijay Mahato, Raj Kumar Mahato, Ram Bishwash Thakur, Indra Kumar Mahato, Kebal Kumar Mahato and Kamal Kumar Mahato, the case is brought before this court through an appeal from Government of Nepal against the judgment for their acquittal.

Here, defendant Biku Mijar, although was absent during the investigation and denied in the involvement in the incidence in the statement before the Court after receiving the summon warrant, there is confirmed allegation against him in the First Information Report. The deceased Chaudhary Mahato, uncle of First Information Report complainant is seen to be died in the course of treatment in Bir Hospital on 2059-04-25 after being injured with *Laathi*, spade and gun in *Parbata* shopping market on 2059-04-19. The Autopsy report has stated that the cause of death of deceased was blunt force, head injury. The Autopsy report and other evidences also prove that the death of Chaudhary Mahato was caused due to the 'homicide'. Now, while considering about the person involved in the offence, the First Information Report, testimony First Information Report complainant and the testimony of the injured Ram Shakal Mahato and Brahma Dev Sah in the incident dated 2059-04-19 seem important. Brahma Dev Sah has testified before the Court that on 2059-04-19, at 1730 hrs. in *Parbata* shopping market, the defendants encircled Chaudhary Mahato and Biku Mijar along with an order from Maithil Lal Karna attacked with bullet and injured Chaudhary Mahato. Similarly, supporting and confirming the details mentioned in Scene of Crime Affidavit, witness Dev Narayan Singh Rajput, Rebi Mahato and Ram Nandan Mahato has testified before the Court that Maithil Lal Karna ordered and he and Biku Mijar attacked with shotgun. Similarly, FIR Complainant Dev Narayan Mahato supporting the details expressed by himself, has testified before the Court that he had seen Maithil Lal Karna and Biku Mijar, along with an order of Maithil Lal Karna attacked on the head and thigh of Chaudhary Mahato with bullets.

In this way, from the testimony of the witnesses, it has been clearly seen that defendant Biku Mijar, along with others had killed Chaudhary Mahato. Although defendant Biku Mijar has claimed the plea of *alibi* mentioning that he had been to Darbhanga, India for treatment from 2059-04-15 to 2059-04-24, it has not been proved. The plea of *alibi* has to be proved by the defendant himself under Section 27 and 28 of Evidence Act, 2031. Only the statement mentioning the plea of *alibi* is not adequate. The illness suffered by the defendant, whether or not there was any treatment facility in Nepal near to the home of defendant, if there was any facility, for what reasons he had to go to Darbhanga, India for treatment? And whether or not it was possible to reach to the Scene of Crime from Darbhanga had to be proved by the defendant Biku Mijar, where he fails to discharge that onus. It is therefore, the judgment of Appellate Court, Janakpur to convict Biku Mijar for the life imprisonment under Number 13(3) of Chapter of Homicide by admitting other evidences along with the testimony of the eye-witnesses is appropriate. Thus, the referral on his part is hereby sustained.

Now, therefore, considering upon the Appeal of Government of Nepal, the defendants Devendra Mandal, Bijay Kumar Mahato, Raj Kumar Mahato, Ram Bishwash Thakur, Indra Kumar Mahato, Kebal Kumar Mahato and Kamal Kumar Mahato, appearing before the Trial Court upon the first summon warrant of the Court, had denied their involvement in the commission of the offence. The witnesses of these defendants had also testified that the defendants did not assault and killed deceased Chaudhary Mahato. The persons recording their statement during the course of investigation of the case: Brahma Dev Sah, Bishnu Dev Sah, Rebi Mahato and First Information Report Complainant Dev Narayan Mahato had not confirmed the involvement of those defendants. Since the incident had taken place at the center of the market, there is normally less possibility of identifying the person due to the crowd. The incident had occurred in the crowd of the market. Injured Brahma Dev Sah has testified before the Court that these defendants have encircled Chaudhary Mahato on 2059-04-19 in Parbata market. But, in his testimony, Brahma Dev Sah had not been able to state that Devendra Mandal and others attacked and assaulted upon Chaudhary Mahato and thus, had only said that Maithil Lal Karna and Biku Mijar shot with gun. The Autopsy report also reveals that deceased had died due to the injury in the head. First Information Report complainant, while testifying before the Court has said that the deceased died due to the attack where Maithil Lal Karna ordered and Maithila Lal

and Biku Mijar attacked on head and thigh with bullet. In this situation, although the persons of Scene of Crime Affidavit Dev Narayan Singh Rajput, Rebi Mahato and Ram Nandan Mahato has testified that Maithil Lal Karna and Biku Mijar attacked with gun and Kamal Mahato and Kebal Mahato attacked with Laathi, the version has not been substantiated by other evidences and chain of facts.

Criminal charge should be established beyond reasonable doubt. Although any version of person or other reasons could create some basis for suspecting against any person, a court cannot held a person criminally liable unless his involvement is proved through evidence beyond reasonable doubt. This is the principle of criminal justice and it has been adopted by our legal system and Court. All the defendants are charged and asked with punishment under Number 1 and 13(3) of Chapter of Homicide.

However, except Maithil Lal Karna, Biku Mijar and absconding Jog Kumar Mahato and Anirudra Thakur, whose case has been adjourned, the charge that the defendants including Devendra Mandal attacked with spade and *Laathi* and killed Chaudhary Mahato, could not be established.

Therefore, the judgment of Appellate Court, Janakpur delivered on 2062-12-09 sustaining the judgment of Dhanusha District Court convicting the defendant Biku Mijar for life imprisonment under Number 13(3) of Chapter of Homicide for the commission of an offence of Number 1 of the same Chapter and acquitting other defendants Devendra Mandal, Bijay Kumar Mahato, Raj Kumar Mahato, Ram Bishwash Thakur, Indra Kumar Mahato, Kebal Kumar Mahato and Kamal Kumar Mahato, is appropriate and hence is approved. The Appeal of the plaintiff, Government of Nepal cannot be established. Let the verdict be informed to the Office of the Attorney General and the case file be transferred as per the rules. I concur above decision.

Justice Ram Prasad Shrestha

Done on 9th Magh, 2064 B.S. (23rd January, 2008)

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The process of granting pardon, if any, cannot be initiated by any authority unless the case is finally decided.

Supreme Court, Division Bench
Hon'ble Justice Rajendra Kumar Bhandari
Hon'ble Justice Kalyan Shrestha

Verdict

Criminal Appeal No. 2341 of the year 2057

Case- Homicide.

Appellant: His Majesty's Government on the basis of the F.I.R filed by Mohan Bahadur Bhandari

Vs.

Defendants: Raju alias Daman Kumar Lama, a resident of District Nuwakot, Kabilas VDC, Ward No.1 and others

The judge deciding the case at the trial level:
Honourable District judge Sharda Prasad Ghimire

The judges deciding the case at the appellate level:
Honourable judge Pramod, Vijayee
Honourable judge Govinda Kumar Shrestha

- **The act of granting pardon or remitting a sentence even before the final decision about the form of punishment was equivalent to the act of 'putting the cart before the horse'. By granting pardon or remitting punishment while the alleged offence and the sentence were yet subjudice, in the judicial process, the person benefiting by such pardon or remitting may experience for the time being a sense of release from the prison, nevertheless, he may have to bear the stigma of punishment along with such release.**
- **If the sentence was to be pardoned or remitted in the midway that may create a situation which will render the judicial process meaningless, ineffective, directionless and unjustified.**
- **Where, on the one hand such an act may incite a tendency to make erroneous interpretation of the law and**

the constitutional provisions, on the other it may also create a negative perception on the expectations for good governance and criminal justice system.

- **The Supreme Court, therefore, issued judicial directive to the ministry of Home Affairs asking it to make recommendation for granting pardon of sentence slapped on the convicts only after taking into consideration the questions mentioned above and after being sure whether or not concerned the case had been decided finally, and also to issue circulars to the District Administration Offices and the Prison Management offices that necessary action shall be taken if the process of pardoning sentences were initiated without the final decision of the cases.**

Kalyan Shrestha, J: The facts of the case and the verdict given in the case filed as per Section 9 of the Judicial Administration Act, 2048 upon the decision made by Appellate Court Patan, is briefly as follows:

The First Information Report (FIR) states that Mahendra Bahadur Bhandari, a nephew of the complainant, was looted by Raju alias Daman Kumar Lama at the shop in the morning of Baisakh 7, 2051 B.S. Thewa alias Ram Bahadur Tamang had accompanied him in the evening And since Mahendra was found badly hurt and dead on opening the door next morning, Raju alias Daman Kumar Lama, Subba Tamang and Thewa alias Ram Bahadur Tamang had allegedly committed the murder and, therefore, legal action should be initiated.

A description of the dead body showed incised wound on the head, soil smeared on mouth, nose etc. eyes closed and bruises around the eyes.

In her statement given before the police Kamla Devi Bhandari, the wife of the deceased, stated that her husband had come to the house along with Thewa alias Ram Bahadur Tamang on Baisakh 7, 2051 BS and returned after taking some oil. She had seen them going towards the house of Thewa alias Ram Bahadur. On opening the gate next morning to go out her husband was found lying in the yard of their house with blood coming out from his mouth. On further examination he was found already dead. All this made her believe that her husband had been murdered.

Jeet Bahadur Lama stated before the police that Subba had asked for a bottle of wine at 11 O' clock on Baisakh 7, 2051 B.S. After his wife had given wine Mahendra Bahadur objected that it was not good to take wine and threw away the wine in possession of Daman. In the mean time heated exchange took place between Daman and Subba about throwing away the pot of wine, and both Daman Kumar and Subba started thrashing Mahendra with hand and feet. Subsequently, the quarrel ended after locking Mahendra inside the house. In the evening Mahendra was at the house of Thewa alias Ram Bahadur when Jeet Bahadur had gone there to hand over a spade. After 15 to 20 minutes he and Mahendra had gone towards his house. After consuming wine at his house Mahendra had departed from there at around 8.30. Next day he came to know about the death of Mahendra.

In his statement Tek Lal Shrestha expressed his belief in the recorded statement about consent of Thewa alias Ram Bahadur Tamang in the act of killing, because Mahendra was subjected to assault at the house of Jeet Bahadur on Baisakh 17, 2051 B.S. and that very evening Thewa alias Ram Bahadur Tamang had gone there to call for Mahendra.

In separate statements Daman Kumar Lama and Subba Tamang had given similar account of the incident by stating that as some people had intervened during the assault at the house of Jeet Bahadur, they went up hill after suppressing their anger. They conversed among themselves and decided to look for Mahendra. When they saw Mahendra at a particular turn of the way heading towards the house of Mahendra they came across Mahendra on his way back. Subba Tamang caught him by his neck, alleging that he had abused them by calling various bad names. Both of them made indiscriminate assaults upon Mahendra with boxing resulting in his death and there after carried his dead body to his house and left it in the yard of the house.

In his statement before the police Thewa alias Ram Bahadur Tamang denied his complicity in the killing of Mahendra. He stated that Mahendra had left his house at 7.30 along with Jeet Bahadur. Daman might have spied on them while he had come out of his house along with Mahendra. The accused were his relatives. He had nothing to say about the allegations made by the people who had been enquired about the incident. They had come out of the house of Mahendra together carrying oil, with them.

The 'Sarjamin muchulka' (spot enquiry report) described that Daman and Subba thrashed the deceased Mahendra during the day on Baisakh 7, 2051 at the house of Jeet Bahadur and, therefore, there

was strong belief that Mahendra Bhandari was killed and thrown away during the same night with the consent and planning of Thewa alias Ram Bahadur Tamang.

A report on the state of the dead body described the cause of death as the impact of the injury of the backbone on the head.

Phool Maya Lama stated before the police that Mahendra Bahadur was involved in the act of beating along with Subba and Daman on the morning of Baisakh 7, 2051. When Dhan Bhadrur and his colleagues were asked as to why they indulged in quarrel, they went up towards the height. Because the dead body with injuries of thrashing present all around found in the yard of his own house, there was a strong belief that they were behind his death.

Lodging the prosecution charge sheet against the defendants, the prosecution claimed that, taking Thewa alias Ram Bahadur Tamang into confidence, Daman Lama and Subba Tamang, with the intention of killing Mahendra, repeatedly sent for calling him and on the protest of escorting him to his house at 6.30 p.m. on the same day, Mahendra was taken to his house by Thewa alias Ram Bahadur and he was made to drink wine in the presence of Jeet Bhahdur and others and thereafter sent away from there at night. And one hour later the defendants who were waiting at one turn of the road killed Mahendra and carried his dead body to the yard of his house. Therefore, the prosecution charged Daman Kumar Lama and Subba Tamang under Section 13(3) and Thewa alias Ram Bahadur Tamang under Section 17(3) of the Chapter on Homicide in the National Code.

Giving his statement before the court the defendant Raju alias Damankumar Lama denied to have killed Mahendra. He stated that on the morning of Baisakh 7, 2051 B.S. he had hit twice ordinarily on the back part of Mahendra in a fit of anger as the latter had thrown away the pot of wine being used by him. Then after he had gone home in the evening and slept there after taking dinner, and next day he had gone to Dakshin Kali for offering a goat at the temple.

Defendant Ram Bahadur Tamang, in his statement before the court, stated that he was at home on Baisakh 7, 2051. He had just heard about the incident of quarrel. When he went there to enquire about the incident he came to learn that Daman and Subba had assaulted deceased Mahendra. He had simply heard Mahendra as saying that he would kill them as Daman and Subba were going towards the height. Finally, he denied to have killed Mahendra.

Defendant Subba Tamang, giving his statement before the court, said that while he and Daman were drinking wine at the house of Jeet Bahadur in the morning of Baisakh 7, 2051, Mahendra also came there and joined them in drinking. There after as Mahendra abused them by calling "Bhote" Daman kicked Mahendra twice. Then after Thewa alias Ram Bahadur had also come there. They left for their house. He finally denied having any knowledge about who was responsible for the murder.

Testifying before the court the complainant Mohan Bahadur Bhandari stated that he had lodged the FIR because the wife of the deceased had told that Subba Tamang, Raju alias Daman Lama and Thewa alias Ram Bahadur Tamang had killed Mahendra Bhandari.

Giving her testimony before the court Mrs. Kamala Devi Bhandari, the wife of the deceased, said that the accused Thewa alias Ram Bahadur Tamang, Subba Tamang and Daman Lama had killed her husband and kept his dead body in the yard of her house.

Leela Bahadur Bhandari, Lal Bahadur Bhandari and others associated with of the enquiry report (Sarjamin) testified before the court that the accused Thewa alias Ram Bahadur, Daman and Subba Tamang had killed deceased Mahendra Bhandari.

Khop Bahadur Thapa, a witness testifying on behalf of the accused Damankumar Lama, stated that he had no suspicion about the accused in that regard. Giving his testimony before the court, Bir Bahadur Tamang, a witness appearing for the defendant Thewa alias Ram Bahadur Tamang, stated that he strongly believed that the deceased Mahendra Bhandari had died as a result of homicide. He did not see the defendant Thewa alias Ram Bahadur Tamang on the day of the alleged incident. So he was not in a position to say whether or not Thewa alias Ram Bahadur Tamang was involved in the incident.

Gyan Bahadur Tamang, a witness appearing for the defendants Daman Lama and Subba Tamang, testified before the court that both the defendants Daman Lama and Subba Tamang had not killed the deceased.

Tek Bahadur Shrestha, who had given his statement before the police, testified before the court that the death of deceased Mahendra Bahadur had occurred as a result of homicide and the defendant Thewa alias Ram Bahadur Tamang, who had escorted him from the house, should have knowledge about the cause of death.

Delivering its judgment on Magh 6, 2053, Nuwakot District Court convicted the defendants Daman Kumar Lama and Subba Tamang of murder and slapped 10 years of imprisonment on each of them as per Section 14 of the Chapter on Homicide in the National Code and acquitted the defendant Thewa alias Ram Bahadur Tamang of the prosecution charge.

Filing an appeal at the Appellate Court Patan against the verdict delivered by the Trial Court, the plaintiff His Majesty's Government contended that the verdict was faulty as Nuwakot District Court had sentenced the defendants Daman Kumar Lama and Subba Tamang as per Section 14 of the Chapter on Homicide which was not at all applicable to the context, and acquitted Thewa alias Ram Bahadur Tamang of the prosecution charge. The appellant, therefore, prayed for quashing the verdict given by the Trial court and awarding punishment to the defendants as claimed in the prosecution charge sheet.

Hearing the appeal, Appellate Court Patan passed an order pursuant to Section 202 of the Chapter on Court Procedures in the National Code asking for the appearance of the defendants before the court for further deliberations as the decision made by the lower Court appeared to be untenable because the defendants and the deceased were found to have been involved in beating on Baisakh 7, 2051 at the house of Jeet Bahadur which showed that Section 14 of the Chapter on Homicide could not be invoked in the case.

Upholding the verdict given by Nuwakot District Court, Appellate Court Patan held that it had become clear from the statement given by the defendants before the lower court that a dispute had arisen about wine during its consumption and subsequently the defendants had kicked and punched the deceased with feet and hand. As there seemed to be no other reason for the death of Mahendra it appeared that the defendants indulged into beating him in a fit of anger which eventually resulted in his death. Hence, the decision of Nuwakot, District Court slapping 10 years of imprisonment on Raju alias Daman Kumar Lama and Subba Tamang as per Section 14 of the chapter on Homicide appeared to be justified. Further, as the prosecution charge against another defendant Thewa alias Ram Bahadur Tamang accusing him of rendering assistance in the act of murder could not be substantiated by the evidence collected in the case file, Nuwakot District Court had rightly acquitted him of the prosecution charge for lack of factual evidence.

Filing second appeal on the verdict given by Appellate Court Patan in the Supreme Court plaintiff His Majesty's Government contended that the Appellate Court had agreed that the deceased had died as a result of the homicidal act of the defendants Daman Kumar Lama and Subba Tamang. It was erroneous to say that there was no prior enmity because there had been altercation between the defendants and the deceased during day on Baisakh 7, 2051 when the defendants had ordered for finishing the deceased and as a result of that enmity they had waited for his arrival on the way that evening and intercepted Mahendra Bhandari who was coming alone and thrashed him indiscriminately resulting in his death. Mens rea to kill the deceased could be established also by the fact that the killing had been carried out in a premeditated manner due to prior enmity and after the murder the dead body of the deceased was brought back and placed in the yard of his house. That fatal weapons were not used could not be a ground for invoking Section 14 of the Chapter on Homicide. Also, the decision of acquittal of another defendant Ram Bahadur Tamang was also erroneous because it was established by the facts of the case that Ram Bahadur Tamang had called for the deceased from his house and had also accompanied him on the way which proved that he had played the role of an accomplice. Therefore, the appeal prayed for reversal of the decision made by the Appellate Court and conviction of the defendants as claimed in the charge sheet.

The Supreme Court issued an order to verify with the prison section whether the defendants Raju alias Daman Kumar Lama and Subba Tamang were still in the custody of prison or had been already released from the jail.

The prison section, Kathmandu informed that the defendants Raju alias Daman Kumar Lama and Subba Tamang had been already released from the prison on Poush 14, 2056 as the remaining terms of their prison sentence had been granted pardon on the eve of the 55th birth anniversary of His Majesty the King.

The case was scheduled for hearing by the Supreme Court which closely examined the related documents included in the case file. Appearing on behalf of the appellant, the government Attorney Sharad Khadka pleaded that the acts of quarrel and assault had occurred between the defendants and the deceased during the day. On account of the anger and enmity caused by the act of the deceased in insulting the defendants Raju alias Damankumar Lama and Ram Bahadur Tamang before the girls they had intercepted the deceased on the way at a lonely place in the evening and thrashed him to death.

And as Ram Bahadur had also acted as an accomplice in that act the government attorney argued that the defendants must be awarded punishment as claimed in the charge sheet.

Now the Supreme Court had to decide whether or not the verdict given by the Appellate Court Patan was correct.

Disposing the appeal filed by His Majesty's Government, the Supreme Court observed that the prosecution charge sheet had claimed for punishment under Section 13(3) of the Chapter on Homicide against the defendants Raju alias Daman Kumar Lama and Subba Tamang and under Section 17(3) for another defendant Ram Bahadur Tamang who had taken Mahendra Bahadur to his house and sent him back after giving him wine to drink. And the other two defendants had waited on for him at a lonely place on the way and assaulted him resulting in his death. His Majesty's Government had lodged the appeal on the decision made by Appellate Court Patan upholding the earlier verdict given by Nuwakot District Court awarding 10 years of imprisonment to the defendants Raju alias Damankumar Lama and Subba Tamang under Section 14 of the Chapter on Homicide and acquitting another defendant Ram Bahadur Tamang of the prosecution charge. That the deceased had died as a result of homicidal act had been established by the autopsy report which showed that there were injuries on the head and the ribs and the backbone was fractured and disordered and there appeared several spots around the neck, and also by the document describing the state of the dead body which described that blood had come out from the nose and mouth of the deceased and, there were bruises on the chest and incised wound on the back of the head. Further dealing with the questions who were responsible for the death of the deceased, the Supreme Court observed that the defendants Raju alias Daman Kumar Lama and Subba Tamang had confessed before the police about the murder of the deceased. Although they had denied before the court to have murdered the deceased, defendant daman Kumar Lama had confessed that he had struck twice on the back of the deceased's neck because the latter had abused him by calling " Bhote" and snatched his pot of wine while they were drinking wine together at the house of Sanu Tamang during day on Baisakh 7, 2051. Phoolmaya Lama had testified before the court that there had been quarrel and act of assault between the deceased and the defendants, and her husband had failed to separate them despite his best efforts. Besides, the defendants were claiming that they would not spare the deceased without killing him. Moreover, testifying before the court Thewa alias Ram Bahadur Tamang stated that Daman

Kumar Lama and Subba Tamang had assaulted the deceased, and had also heard them saying that they would not spare Mahendra Bahadur without killing him. This established that Mahendra Bahadur had met his death due to the homicidal act of the defendants Daman Kumar Lama and Subba Tamang. Further considering about the nature and quantum of punishment to be given to the defendants the Supreme Court observed that there did not seem to be any prior animosity between the deceased and the defendants. It simply appeared that while drinking wine sitting together the defendant Daman Kumar Lama asked the deceased not to drink too much wine as he was the son of a Chhetri. This prompted the deceased to abuse the defendants by calling them 'Bhote' and to throw away their pot of wine from which they were drinking. All this enraged the defendants who assaulted the deceased with feet and fist on several parts of his body, and Subba Tamang had also turned and twisted his neck. All this showed that the defendants neither seemed to have any intention to kill the deceased nor there appeared any prior reason for animosity. Rather it appeared to be a case of provoked murder as a result of immediate anger caused by the circumstances in which no fatal weapons were used and the deceased had succumbed to death while being kicked and pumped by feet and fist. The Supreme Court, therefore, confirmed the verdict of Appellate Court Patan which had earlier upheld the decision made by District Court Nuwakot sentencing the defendants to 10 years of imprisonment as per Section 14 of the Chapter on Homicide.

As for the decision of acquittal of another defendant Thewa alias Ram Bahadur Tamang, he had denied the prosecution charge both before the police and the trial court. Even other defendants who had confessed to have committed the crime before the police could not show any involvement of the accused Ram Bahadur Tamang in the act of murder. The testimony given by the eye witness Phool Maya Lama and the other evidence collected in the case did not prove that Ram Bahadur Tamang had entered into the conspiracy with the other defendants and had rendered any help in the act of that murder by calling him from his house. The Supreme Court, therefore, confirmed the verdict of acquittal awarded in favour of Thewa alias Ram Bahadur Tamang by Nuwakot district court and upheld by Appellate Court Patan, and rejected the appeal filed by His Majesty's Government.

Further discussing the issue of pardon granted to the defendants the supreme court observed that a letter of the prison section of Kathmandu showed that the defendants Raju alias Daman Kumar Lama and Subba Tamang had been released from the prison on

Poush 14, 2056 as the remaining part of their term had been pardoned on the eve of 55th birth anniversary of His Majesty the King as communicated by the letter of the Prison Management Department dated Poush 13, 2056. Article 122 of the Constitution of the Kingdom of Nepal, 1990 provided for pardoning or remitting any punishment given by any court whatsoever. However, such an act of pardoning or connoting or remitting the sentence ought to be the case determining the final form of punishment given to the convicts. The act of pardon or remitting itself means that such a pardon or remitting must be given only after the final decision about the sentence. The act of granting pardon or remitting a sentence even before the final decision about the form of punishment was equivalent to the act of 'putting the cart before the horse'. By granting pardon or remitting punishment while the alleged offence and the sentence were yet subjudice, in the judicial process, the person benefiting by such pardon or remitting may experience for the time being a sense of release from the prison, nevertheless, he may have to bear the stigma of punishment along with such release. Because such pardon or connotation results in blocking the gate of getting relief if that dispute had been decided through the judicial process. In spite of his desire a person getting such pardon or remitting may not be in a position to remove the stigma attached to him. Thus, in the final analysis, although such pardon externally looked beneficial, he had no alternative to accept the stigma of punishment under the judicial process.

On the other hand, viewed from the prosecution side, such an act of giving pardon or remitting the sentence before the determination of the offence and the quantum of punishment tells upon the process of decision of the case and makes the result of prosecution uncertain. All this renders the judicial process initiated against the accused as meaningless. The constitutional provision regarding pardon or remitting required it to be exercised only after deciding whether or not it was proper to grant the pardon or remitting only after taking into consideration the offence and the nature and quantum of punishment determined through the final judicial process. Even before it was decided through the judicial process as to what was the nature of the offence and what punishment should be awarded, if the sentence was to be pardoned or remitted in the midway that may create a situation which will render the judicial process meaningless, ineffective, directionless and unjustified. Where, on the one hand such an act may incite a tendency to make erroneous interpretation of the law and the constitutional provisions, on the other it may also create a negative perception on the expectations for good governance and criminal justice system.

In the present case Nuwakot District Court had given the verdict on Magh 7, 2053 sentencing Daman Kumar Lama and Subba Tamang to 10 years of imprisonment and an appeal filed by His Majesty's Government was pending at Appellate Court Patan. In the meantime the sentence awarded to the defendants was pardoned resulting in their release from the prison on Poush 14, 2056. His Majesty's Government had filed an appeal on the verdict given by Appellate Court Patan on Jyestha 16, 2057. There was no substantial meaning of reviewing that appeal from the viewpoint of its consequence in view of the fact that the sentence slapped on the defendants had been already pardoned.

Therefore, it was essential on the part of the officials responsible for initiating such a process of granting pardon to initiate such a process by first looking into the basic questions, such as, whether or not the verdict of the lower court had been appealed on, whether or not the case had been finally decided, what was the quantum of punishment slapped on the defendant, and what was the nature and gravity of the offence and the punishment. As the recommendation for granting pardon to the sentence awarded to the convicts in the case had been made on an ad.hoc basis without taking into notice such basic facts, the Division Bench of the Supreme Court had taken serious note of the aforesaid process of granting pardon to the sentence awarded to the defendants. The Supreme Court, therefore, issued judicial directive to the ministry of Home Affairs asking it to make recommendation for granting pardon of sentence slapped on the convicts only after taking into consideration the questions mentioned above and after being sure whether or not concerned the case had been decided finally, and also to issue circulars to the District Administration Offices and the Prison Management offices that necessary action shall be taken if the process of pardoning sentences were initiated without the final decision of the cases. The apex court also asked for sending a copy of such circular to it for its knowledge, and also to maintain a record of the office and the concerned officials making recommendation for initiating such process of remitting sentences. The apex court further instructed to send a copy of the verdict to the Ministry of Home Affairs through the Office of the Attorney General and ordered for making arrangements through the Case Management Section for monitoring whether or not the action had been taken in accordance with the directive so given.

I concur above decision.

Justice Rajendra Kumar Bhandari

Done on 3rd Chaitra, 2064 B.S. (26th June, 2007)

The Supreme Court, by way of a writ of mandamus accedes the right to employment as the fundamental right mentioned in Part III of our Constitution. In the hearing of this case no lawyers and parties from either sides were appeared in the call of the bench. However, the bench can not escape from its liability of giving the proper remedy sought in the petition.

Supreme Court, Division Bench
Hon'ble Justice Meen Bahadur Rayamajhi
Hon'ble Justice Kalyan Shrestha

Order

Writ No 064-WO-0719

Subject: Mandamus.

Petitioners: Mr.Prem Bahadur Khadka, currently residing at Ward.No.10 Baneshwor, Bhimsengola, et.al.

Vs

Respondents: Office of Prime Minister and Council of Ministers, Government of Nepal, Singhadurbar, et. Al.

- **No one can encroach this freedom by insisting to adopt a particular profession or job. Except prohibited by the state according to law for wider public interest and wellbeing according to proviso (5), no encroachment is accepted.**
- **For the protection of women's right, state must focus on, easy access to equal employment opportunity as well as women-friendly working environment and women empowerment for obtaining employment.**
- **In the context of low representation of deprived class, region or sex in public offices, the state policies relating to employment are required focus on the increase of qualitative and quantitative representation of these classes of people and community.**

- Though there are different fundamental rights which are specific and correlated as well as interdependent with each other. So no right can be underestimated by forming hierarchy of fundamental rights.
- While focusing on execution of any specific fundamental right, it shall be analyzed the fact that how the other rights are integrated and correlated. When implementing such specific rights, it is necessary to consider the importance of all other rights.
- Though the human rights can be classified, in accordance with their nature however, in essence, it is not reasonable to think as complacent and irresponsibility, that by making the essence of human rights secondary; by making one immediately useable and the other opposite to it.
- Among all the economic, social and cultural rights, the right to employment is important one and it is important also for successful utilization of civil and political rights. So its importance cannot be lessened by putting it in a class that State gradually implements them according to the State's resources and means.
- Every state party has discretionary power about to adopt legal as well as other measures, according to the specific condition of individual state, for realization of right to employment; in the name of discretion power no state party can derogate the right to employment. The states parties must remain sensitive to take measures for the elimination of the problem of employment and ensure the right to employment to every individual immediately.
- If the state is being unenthusiastic to the obligation of realization of right to employment by showing the ground of insufficiency of resources, such rights can never be realized. Hence, analysis of state resources and reasonableness of utilization of the available resources cannot lie beyond the ambit of judicial review.
- In fact, the human right commission not only to be limited to the illegal custody, but also it can help in all issues of human rights as an initiator, monitor, inspector, advisor, evaluator and critic.
- The meaning to include particular rights in the fundamental rights is to activate the right immediately, and it is also said to that there is remedy for situation of violation or not implementation of such rights.

- No institution is free not to fulfill its any of the constitutional responsibilities and if intent not to fulfill such responsibility, it may be the expression of disrespect towards the written constitution, there is not place of such logic in the present constitution.
- Fundamental rights are direct and immediate implementable rights of the people. So they are not depends on intention of any institution, even the legislature, and cannot make such rights uncertain or not implementable on the ground of insufficiency of resources.

Kalyan Shrestha, J: This petition was filed in accordance with the Articles 32 and 107(2) of Interim Constitution of Nepal, 2063. The brief facts of the writ petition and the order made thereupon is as follows:-

Among the petitioners I, Sanjib Satyal, am an unemployed Nepalese citizen since eighteen years. The other petitioners are also Nepalese citizens having different academic qualifications. The Article 18 of the Interim Constitution of Nepal, 2063 has, as mentioned in law, provided us the right to employment as a fundamental right.

Though the earlier constitutions had no provision of employment right as a fundamental right to the citizen, however, Article 12(2) (e) of the Constitution of Kingdom of Nepal, 2047(1990) has provided right of freedom to profession, employment, industry and trade for the Nepalese citizen as fundamental rights. The Article 18 of the Interim Constitution 2063 has provided right to employment and social security as fundamental right to the Nepalese citizen and the obligation of the respondents is to create adequate legal mechanism for the enforcement of that right. According to Article 18(1) & (3) of the Interim Constitution, the Nepalese citizen has right to employment as well as food sovereignty in accordance with law. However, the constitutional provisions are limited only in the black letters of law, because state has not made any effort to enact law for the implementation of the above mentioned fundamental rights, yet.

There are different processes and system for the promotion of employment in different countries in the world, however, in our country, no study has undertaken yet on it. The Universal Declaration of Human Rights, 1948 has provisioned for human rights to utilize economic, social and cultural right for the dignified life and personality

development, according to the national fabric and resources and to get conducive environment for the freedom to choose employment and profession and protection from the unemployment. As endorsing the above human rights the Article 18 and 30 of the Interim Constitution has provided right relating to labor as a fundamental right. The government to some extent has made law, and started to provide employment to women, ethnic, Madhesi, untouchable, people of backward region but have been unable to declare who is qualified to get employment and who are not because of academic qualification as well other reasons.

Though, the respondents are making efforts to enact law relating to employment and social security to some extent, in fact, the right to employment and food sovereignty are limited only in the constitution. Employment includes unemployment, too. Whether it is reasonable or not to make provision in regard to an employment? Whether or not social security is an obligation. Whether or not citizens are protected from starvation. It is deficient, which law governs the petitioners. Government of Nepal (GON) has no right to limit and making dormant the fundamental rights provided by Article 18(1), (2) and (3) of the Interim Constitution by not enacting appropriate legal provisions. The Interim Constitution is becoming one year old; the parliament is convening its meeting time to time, however, no Bill in this regard has been tabled to enact a law. Thousands of skilled man powers and jobless youths have been compelled to go abroad and some of them turned into unfortunate. The government appears insincere and careless towards the problem. The fundamental rights of the petitioners provided by Article 12(3), (f), 18, and 19 of the Interim Constitution have been encroached due not making the legal provision regarding employment. So it is requested to issue an order of mandamus against the defendants according to Article 32 and 107 (2) of Interim Constitution of Nepal, for the enactment of appropriate law relating to employment for the enforcement of the statutory rights.

A single bench judge of this Court makes an order to submit the case again in the bench as per rule after receiving explanation in writing within 15 days from the respondents on whether or not an order as sought by the petitioners should be issued?

It will not be consistent to interpret that the objective of the Article 18 of the Interim Constitution 2063 is to provide job to all the citizens by the state itself by enacting a comprehensive law by the state. In 21st century state and the context of its obligation also has been changed. It is assumed that state has only to play the role of a facilitator in this

regard. The main connotation and essence of the said constitutional provision is to enact reasonable law regarding employment for the assurance of equal opportunity without discrimination and need assessment of human resources for the determination of qualification and condition for the area providing employment. It is not enough to realize this objective by enacting a single Act, hence in view of the nature of the subject matter, scope, condition of man power, qualification, organization and program, different laws are required to be enacted. In a context where, the Foreign Employment Act, 2063, Civil Servant Second Amendment Act, Third Amendment in Health Service Act, 2053, Parliament Secretariat Act, 2064 have been found effected. The first amendment on Working Journalist Act, 2051 and University Act, Education Act and dozens of other Acts have been amended through the Act amending some Nepal Acts Amendments Act, 2063 hence it is irrational and baseless to say that the Article 18 of Interim Constitution is not inactivated as complained by the petitioner. The expansion of area of employment, ensure equal opportunity, employment access to private sector and foreign market are complex and continuous process. This process is relating to state policy-decision, economic capacity, and availability of resources. It is entirely a political issue and the parliament is working actively on it. Therefore, the legislature –parliament, in its written reply, requests to vacate the petition.

It is not the job of Home Ministry to enact laws. So to refer this ministry in respondent is baseless. Therefore, the petition of the petitioners should declare void, the Ministry of Home responds this in writing.

The government is committed to protect the fundamental rights regarding employment. To offer jobs in state organs, the legal and policy procedures are being followed. To meet this objective, separate Acts have been enacted, and employment opportunities are providing in the state organs by following the process as stated in the law and policy. Law regarding right to social security, right to food sovereignty of women, those living on labor, and disabled, helpless and incapacitate citizens are being enacted. Hence the petition claiming the lack of law and policy is untrue and void able. So the Ministry of Law, Justice and Parliamentary Affairs, in its reply, requests for the dismiss of the petition.

The government of Nepal, for the guarantee of rule of law, has been presenting various bills in the Parliament. To think over bills submitted by government and what sort of law is necessary to enact is the subject of exclusive right of parliament and shall not be regulated by

this office. Government is always proactive to work and address the need and demand of time. It is ready for positive change and working for the well being of people and the government. It is committed to enact appropriate law according to need of time in view of state resources and forward looking vision. Court cannot direct executive or parliament to enact or implement particular law. Court shall not play supervisory role over the constitutional rights of executive and parliament. Hence, the Office of Prime Minister and Council of ministers requests to quash the petition.

Regarding employment rights and social security rights and rights regarding labor the legal provisions viable by its own resources are being enacted. Hence, the order according to the claims of the petition, must not be issued, responds Ministry of Labor and Transportation Management.

What types of constitutional or legal duties this commission is not fulfilling is not clear in the petition. This is functioning within the rights provided by constitution and National Human Rights Commission Act, 2053 and recommending different standards to enact and review law for promotion, protection and respect of human rights. The commission has recommended enacting and reviewing different employment sector Acts related to child labor, foreign employment, trade union etc. The commission is always ready to assist for protection, promotion and respect of the employment and social security rights as raised by the petitioners in the petition. Hence, National Human Rights Commission requests to quash the writ petition.

This case which is referred for today's hearing both the petitioners and defendants were repeatedly called but no one appeared before the bench. This petition was filed as public interest litigation (PIL). Such case cannot be taken for individual benefit, so it deserves special importance. This case slightly over rules traditional principle of locus standi because generally the person who has right was the principal basis for filing a suit earlier however; in such a case anybody who can establish public interest is deemed his meaningful concern in the given matter. However, the party filing such case has also special liability. The person who files case to realize personal benefit can waive his rights or case if he so desires but the person representing public interest or importance cannot waive the case as an individual right. Therefore, this case cannot be waived. It is difficult in individual case to afford knowledge and resources. Not only that the representation of society is a hard job. The public interest litigation is

challenging and having involved intricacies due to various reasons, like investment of expertise, experience, representation, capacity, time, labor and expense etc. Therefore, the person representing such case should compulsorily possess the capacity and quality in terms of knowledge, experience, competency, responsibility and tolerance. Without possessing the above qualities, mere raising of issues regarding public interest, is no more than making advertisement but not for its finality and logical end. That may produce unexpected result. In such circumstance it is better not to file case, in view of its practicality.

The 1990 Constitution has created jurisdiction for cases involving public interest and some of them have entered into the court and have settled some important issues too. It has helped to enact necessary laws and correct the existing defects in them. But in some cases, there is a tendency to misuse the jurisdiction in such case to gain cheap popularity even if there is no public interest capacity to represent. Consequently, it is necessary for court to take appropriate and practical measures to prevent the misuse the delivery of judicial service. Due to the significance of the issue, court understands the obligations, but if the petitioners did not understand his responsibility and did not contribute his time and responsibility without information and assistance, consequently the court may feel unaccustomed to discharge its duty effectively. The petitioner should be aware and responsible of complexities arising from the entry of such immature issue. It is not possible to the court to remain reluctant or take lightly the public interest issues just because of the concerned party is absent.

Although, many persons are involved in bringing this petition however, no one is represented by a lawyer or any person is appeared at the time of hearing. It is not only an oddity but also a dilemma. On the other hand, no representations from government institutions including Office of Prime Minister and Council of Ministers have registered by the Office of Attorney General. Lack of the state representation in petition demanding the compliance of constitutional obligation further intensifies the seriousness of situation and showed indifference or negligence towards the proceeding of such case. In such a situation, the ball goes in the court of Attorney General's Office.

After studying and analyzing the petition, the written reply of respondents, constitutional provisions regarding employment right raised in petition, international law and practice on the subject, the

main issue of the case, how it is necessary to deliver judgment by focusing on the following subject matter:

1. What constitutional provision is made in Interim Constitution of Nepal, 2063, in regard to the employment rights of Nepalese citizen?
2. What is the nature of employment right? How the International Covenant on Economic, Social and Cultural Rights, 1966, has recognized a person's right to work. And what sort of obligation for its implementation is imposed to the state parties?
3. Whether there is a situation of issuing an order as sought in the petition or not? And, what type of order is required to be issued?

Let's ponder over the first question on which the decision has to be reached:

The petitioners in their petition have made a claim that Article 18 of Interim Constitution of Nepal, 2063, in guarantees the right to employment for the citizen as prescribed by law, but the government has not enacted law to ascertain the employment right rather seems and indifference to enact such law, hence an order of mandamus be issued directing for the enactment of a law regarding employment rights. The employment right of citizen cannot be ascertained by a single umbrella Act, and it is not the intention of constitution also. The objective and intention of the constitutional provision is to provide employment to the competent citizen available in labor markets without discrimination and including some of the resolutions are pending in legislature-parliament. We the respondents have our say that the writ petition is meaningless and irrational, therefore requested to be quashed since arrangements in regard to reservation quota in Civil Service Act have already been made. Let's have a discussion first on the key issue raised in petition and in reply about the employment right provided in Article 18 (1) of the Interim Constitution. Part III Article 18(1) provides for employment and social security guarantee that *every citizen has right to employment as provided by law of the land*.

The earlier constitutions had no provision relating to fundamental rights, for example, the constitution of United States of America. However, the fundamental rights today have been an inseparable part of modern constitutions. Many countries have started to incorporate these provisions after the establishment of United Nations Organization and development of human rights law. In modern age, it is impossible to promulgate constitution without fundamental rights.

Fundamental rights are known as very basic and important part of constitutions. A tendency has developed mention more or less these fundamental rights depending upon their structure of state and development of society. Expectedly, the old constitutions were more concern with civil liberty but at present there is a tendency of including provision regarding civil liberties, social and cultural rights. At present, the practice of widening the scope of fundamental rights in enactment of constitution have witnessed as in South Africa. All human rights provided in International Covenant on Economic, Social, and Cultural Rights are included in such constitutions as the fundamental rights. Interim Constitution of Nepal 2063 has facsimiled such practices and there are assumptions that the future constitution of Nepal will include more of such rights. It is said to be progressive provision from human rights perspective to include the rights provided by international human rights instruments in the constitution. The Article 18 of Interim Constitution of Nepal shall be taken in this context.

While discussing on employment right, it is relevant to discuss on the norms and the values of the employment right. It is important to understand that whether the employment rights provides such right as that providing house, discounted ration etc. It is not the case as we think. There are some limitations too? To lay adjustment between the provisions of international human rights instruments, their scope, and state resources adequacy is very complex and challenging. There is a vital question about how it is possible to guarantee this right in a country like ours with limited resources mobilization and lack of development potentials. There is a practical reality that even the developed countries have been so unable to fully guarantee this right.

The right to employment is not connected only with the right to work. Its relevancy is connected also with the indivisibility of human right, relating to civil and political rights. The right to work opens the way of income generation of an individual. Through this, it is possible to fulfill the basic needs of individual like health, education, food, shelter etc. Furthermore, the right to dignified life of person and his dependent family also rotate around the right to employment.

While discussing on right to employment, the other fundamental rights relating to this rights naturally comes into discussion. The Article 12(1) of Interim Constitution of Nepal, 2063 has provided right to live a dignified life to everyone. Right to dignified life includes all the rights towards quality and dignified life. It includes right to food, shelter, clothes, education, health etc. An individual can take positive effort towards dignified life, if there is an environment to work according to his

knowledge, skill, qualification, experience and competency. In contrary, it is very difficult to utilize the civil and political rights whose basic needs are impossible to be meted with and who are compelled to live a jobless and dormant life. It is assumed that the poor and destitute is the cause and consequence of human right violation, in reality. Hence, the relation of right to work is indivisible and perpetually connected with the right to dignified life under Article 12(1) of the Interim Constitution of Nepal, 2063.

The Article 12(3) (f), besides other things, provides every citizen with freedom for conducting any profession or business. Freedoms specified in this part are related to right to choose any profession or business available in the labor market or individual is free to adapt any profession or employment he wished. No one can encroach this freedom by insisting to adopt a particular profession or job. Except prohibited by the state according to law for wider public interest and wellbeing according to proviso (5), no encroachment is accepted.

The replies made by the respondents states that the right to employment is only right to choose employment available in country and it is not a matter of right to be enjoyed. If the right to employment is only related to the right to choose job as stated by the respondents, there is no reason to provide repeatedly right to employment in Article 18, where there is already a freedom of profession and business is available under Article 12(3) (f). Hence, it is necessary to understand that though there is difference between freedom of profession and right to work under Article 12(3) (f) and right to employment under Article 18, they are the separate provisions.

The right to employment has indirect relation to the right to equality under Article 13 of the Interim Constitution. State, on the basis of religion, color, sex, caste, ethnicity, origin, language or ideology cannot discriminate its citizen to acquire and practice employment. Not only this, there is guarantee for equal wage for equal work to man and women, as well as no discrimination for social security under Article 13(4) of the Interim Constitution. Furthermore, positive discrimination for the protection, empowerment, or development of women, untouchable, indigenous people, Madhesi or farmer, labor or economically, socially or culturally deprived class or child, elderly people, and disabled or physically or mentally impaired person, does not contradict with right to equality according to restrictive Clause of Article 13(3). It is imperative for the state that it shall make special arrangements for inclusion and empowerment of marginalized and excluded citizen.

The right against untouchability and the caste-based discrimination under Article 14 of the Interim Constitution is not less important in the question of acquiring of employment. There is negative impact of untouchability and caste discrimination, a bad practice of religious tradition, for acquiring of employment and for favourable working environment after getting a job. There is a dire need of employment for the people of ethnic community and those classes of people who are deprived of and excluded from the mainstream economic, social, and cultural rights and opportunities in comparison to other high caste people. Still, the employers are not positive towards the lower classes of such people.

The right to work is very important through the perspective of the right of environment and health right under Article 16 and right relating to education and culture under Article 17. A fresh and healthy life faces crisis if the environment became polluted. Bad health and health problem increases expenses in health and cannot continue the job he is doing. This in turn affects education, health, employment and finally right to life. Hence, there is interrelation between these rights. For the successful utilization of right to employment and quality life, there shall be employment oriented education and standardized health facilities and created a good environment to enjoy other rights and freedom.

The Article 18 of the Interim Constitution provides right to employment and right to social security. The Article 18(2) symbolically includes right of social security to women, labor, old, disabled, incompetent and unable citizens according to law. This concept is developed from whether a state should provide working opportunity to guarantee basic social security for the citizens.

The Article 20, 21, and 22 of the Interim Constitution has provided women, right to social justice and right of children, respectively. There is a significance importance of employment for the enjoyment of the positive and result oriented rights provided by the Constitution. Under the right of women, basically, the provision of no discrimination, right to health and reproduction, right against any type of violence to women and equal right over ancestral property are included. The main reasons behind all sorts of discrimination is lack of employment guarantee to women, and bad working environment, sexual exploitation or sexual violence in workplace, low wage rate etc are negative impacts. The engagement of all rural women in no income generating jobs like bearing and rearing of children, agricultural work, are the series of discriminations added against women. Hence, for the

protection of women's right, state must focus on, easy access to equal employment opportunity as well as women -friendly working environment and women empowerment for obtaining employment.

The right to social justice provides right to participate in state mechanism with the principle of proportional inclusion to the economically, socially or educationally deprived and excluded women, untouchable, ethnic people, Madhesi community, poor peasants and laborers. The character of present state employment condition is discriminatory and uninclusive. In the context of low representation of deprived class, region or sex in public offices, the state policies relating to employment are required focus on the increase of qualitative and quantitative representation of these classes of people and community.

The child rights is not only limited on matters of right to name, and identity and no exploitation, but inherent are also the right to be fed and care, basic health and right to get social security. It is not necessary to discuss more about the present condition of average children in Nepal. The data and reports issued from various government institutions are demonstrating the condition of child labor. For the adequate feeding, basic health and social security of children, their parents must be provided working opportunity and take care of their children in (workplace).

Right relating to labor has direct relation with the right to employment. Exercise of this right, begins after getting employed. Under this opportunity every worker and employee is guaranteed the right to form trade union for the protection of his interest, right to be organized and collective bargaining. It is not enough only to provide employment by the state, but the environment for adequate labor practice and good working environment must be ascertained and promoted by the policies and program relating to employment.

Hence, it is clear that right to employment is closely related to the other fundamental rights, even though there are different fundamental rights which are specific and correlated as well as interdependent with each other. So no right can be underestimated by forming hierarchy of fundamental rights. While focusing on execution of any specific fundamental right, it shall be analyzed the fact that how the other rights are integrated and correlated. When implementing such specific rights, it is necessary to consider the importance of all other rights.

Besides the above mentioned fundamental rights provided in Part III of the Interim Constitution, there are provisions regarding employment rights. The part IV, states obligations and policies can be raised before the court. Article 36(1) of the Interim Constitution states that no question about whether the subject mentioned in part IV are implemented or not. However, this court can point out about status of execution of the state obligations, directive principles and policies by the responsible organs, whether the state focus is towards such matters or not? It was interpreted by this court in the case of Yogi Naraharinath (NKP, 2053, P., 33) and Advocate Prakash Mani Sharma (NKP 2054, P., 312) that the Court can draw the attention of the concerned authorities towards the implementation of state policies and directive principles. The court can make constructive direction whether the state obligations and policies are implemented or not, for the maximum utilization of civil rights.

In Clause (b) Article 33, the progressive political, economical and social change in the Country is ensured. In Section (c) of the same Article, the commitment is expressed to adopt a political system which is fully abided by the universally accepted concept of fundamental human rights, multi-party competitive democratic system, sovereign authority inherent to the people and supremacy of the people, constitutional balance and check, rule of law, social justice and equality, independence of judiciary, periodical election, monitoring by the civil society, full independence of press, right to information of the people, transparency and accountability in the activities of political parties, people's participation, fair, competent and clean administration and to maintain good governance by eliminating corruption and impunity. Section (d) states responsibility of state to carry out an inclusive, democratic and progressive restructuring of the state by eliminating its existing and centralized unitary structure in order to address the problems related to women, Dalits, indigenous tribes, Madhesi, oppressed and minority community and other disadvantaged groups, by eliminating class, caste, language, sex, culture, religion and regional discriminations. Furthermore, Section (D1) states to include marginalized and deprived classes and communities in all organs of state structure. In Section (H) there is responsibility of state to pursue a policy of establishing the rights of all citizens to education, health, housing, employment and food sovereignty. Besides this Section (L) states to follow a policy that increases investment for promoting industry, trade and export, and creates opportunity for employment and income generation, by ensuring the professional rights of laborers.

The Article 35 provides about what type of policy the state should adopt. Article 35(1) provides for the development of basic infrastructure as employment opportunities to uplift the standard of general public. Articles 35(7) provide for job for the jobless and protect their rights and interest. Article 35(8) mentions that the State shall pursue a policy of encouraging maximum participation of women in national development by making special provisions for their education, health and employment. Similarly, Article 35(10) provides that the State shall pursue a policy which will help to promote the interest of the marginalized communities and the peasants and laborers living below poverty line, including economically and socially backward indigenous tribes, Madhesis, Dalits, by making reservation for specified period with regard to education, health, housing, food sovereignty and employment.

The sub-Article (b) provides for the preparation of infrastructure as technical education training and orientation for the development of those who lived on labor and bring them into national development streams, sub-Article (20) stresses for the mobilization of youth manpower and Article 36(2) states for the use of means and resources to implement the objectives provided in this part, according to need.

The state responsibility, among the different provisions specified in Part IV, Article 33 and 35 are looked as the new practices in our constitutional system. Such provisions are not only the general directive to the state but specified as the state obligation. So, the executive and legislature functioning under the constitution fulfills the various state responsibilities as the constitutional responsibilities, through fundamental rights and legal institution and program. The meaning of *No question can be raised in court* does not mean that the very responsibilities are unconstitutional. It is only the question of limitation for legal remedy of persons. There may be limitations in the fulfillment of personal rights but it does not mean that the responsibility is violable or it is to work opposite to the obligations. The constitution does not intend that the court, in course of hearing can not direct the state to run out of its constitutional liability for the protection of fundamental rights. Hence, state obligations, directive principles and policies are not like the ornament for show and it is clear that the state organs cannot refrain from respecting the constitutional and practical values of such principles by making constructive policies for right to employment.

While observing the state obligations and policies visualized in Part III and IV, the rights provided by the state to the citizens are wider and

high standard. Directly or indirectly, they have accepted the universal norms and values of human rights. The constitution attempts to guarantee not only the civil and political rights but also the economic, social and cultural rights. Breaking all traditional forms of discrimination, maximum utilization of inclusion and empowerment, terminating the centralization in rights of limited sex and class, make decentralized and accessible for the traditionally deprived and victimized class on the basis of priority and equality are also inculcated therein. The above constitutional provisions are praiseworthy.

The above mentioned constitutional provisions relating to the rights and interest of the people are not only the items for show. They expect the effective implementation of values, sentiment and letters of constitution. But nothing has mentioned in the reply of respondents about making any adequate policy, law or other program to implement the fundamental rights including right to employment even after passing two years of its commencement.

The respondents say reservation system has been started by amending laws including Civil Servant Act and Rules; however such limited efforts cannot give a sense that the state mechanism is honest to ascertain the right to employment as provided by Article 18(1) of the Interim Constitution by making objective strategic program, action plan and suitable legislation.

Now, let's consider upon the second question:

There is a considerable role of international human rights laws behind the establishment of right to employment in the interim constitution, there. There is no doubt that the international human rights instruments promote the job to include such right in part III and IV of the Interim Constitution. It is relevant to make some explanations on how the right to employment provided by constitution is addressed by the human rights law.

Human rights are as inherent rights, however, they deprived in course of civilization due to the different reasons. The first and second world wars insist the world to think sensitively on how to protect and promote the personal liberties. In course of realizing these beliefs, the Universal Declaration on Human Rights came into existence on 10 December, 1948. The declaration was the first Universal declaration regarding human rights. On the basis of declaration different rights began to be evolved and issued. The first such right was the civil and political right which is taken as the mother of personal liberty.

Considering on the fact that the non intervention alone is not enough for the personality development but it is also necessary to empower for the utilization of the rights. The freedom struggle fought in Asia and African Continent after laterhalf of the 20th century gave stress on economic and social ability.

The socially and economically back warded and weak class who cannot maintain essence of ordinary human life, there is no meaning of civil and political rights, if priority is not given to their minimum human dignity. To receive maximum respect in society is the respect of human rights. For this, the thought and action shall need to go side by side. The democratic and socialist approach of governance has made the freedom and economic right as synonyms of bread and freedom respectively. The socialist approach believes that the other freedoms are meaningless in the absence of freedom of bread. In fact, such basic freedom cannot be intervened by the state in one hand and to create capacity with the aim of utilizing rights by all in the same forms and basis is equally important in other hand. In reality, right and equality are the things of personal capacity too in absence of which there appears unequal standard and unequal utilization of rights which gives birth of the different inequalities. To fight with these situations, state promotes capacity of people by developing different programmes. In reality, the democracy is platforms for submitting one's claim, to take stand on that claim have it done as wished. So there is no debate on the ideal combination of civil and political freedoms with economic, social and cultural rights and easy access of people over them is the situation of proper implementation of democracy and human rights.

It is accepted by all that human rights are not only limited within the ambit of freedoms but also are correlated with social, economic and cultural rights. In civil and political rights there are majority of civil and political freedoms whereas in economic, social and cultural rights the majority subject are found dealt with health, education, food, and shelter, clothes and bread. In the first category of rights, the limited intervention of state is accepted whereas in second, it is expected to play major facilitators, role of the state to make the rights useable. Over the times, the priority are being given to group rights like the right to information, right to health environment, and right to development which are called the third generation rights.

Despite the persisting debate on the classification of rights, it is however clear that all types of rights should be accepted as a composite whole. Rights are correlated with each other and in the

absence of one the other right cannot be completed. So the classification or separation of rights could be in appropriate. Recently, focus has been given that only the list of such rights in the constitution or law is not enough, in reality, the level of enforcement and effect of such rights to the life style of concerned class are taken as the indicators of effectiveness of such rights.

While discussing on the topic of human rights, generally, the relevancy of perceived human rights, recognized human rights and absolute rights is found raised. If it is observed by not limiting within any law or standard form, the first category rights seems greatly expanded or, is spread universally. In principle it is accepted that, as a human being every person shall be entitled to equally enjoy all the rights. It is said that as a creation of nature, human rights are inherent rights, and cannot be separated or classified. It is accepted the view that all the rights necessary for the dignified or respectful life are human rights. But practically, all human beings of the world have not been able to enjoy human rights equally and it seems to have traveled a long way in terms of enjoying it universally.

In order to determine the extent of basic rights needed for appropriate living and other suitable rights and human rights of his development, there is a practice to take the social structure and social development as the main indicators. However, rights to live as human being cannot be weighing for development standard. The minimum rights needed for a human are human rights. So according to the nature of rights, some are to immediately enforceable or , enforced or become sufficient if not intervened and for some rights only non- intervention is not enough they need to be enjoyed. In practice the state plays positive role and develop the mechanism, and so are conditional, however on the view point of rights, the classification is not appropriate on the basis of their utility. To include the maximum the human rights in national law, mechanism for recognition, protection and implementation, their need assessment, including program on what extent maximum right are recognized or not, whether or not there is a mechanism for their protection, whether or not they are finally implemented are the practices to analyze human right situation in particular country.

In the context of Nepal and experience of other countries, the rights are gradually recognized in the course of constitutional development. The right to employment can be taken a series of such development. There was no separate employment right in the previous constitutions

of Nepal. The interim constitution for the first time has held this right, high.

The employment right amongst the human rights in Nepal is held high than other rights and program due to specific place given in constitution as the fundamental rights the fundamental rights and are minimum basic rights guaranteed by the state. So in terms of legality and practicality these rights are known superior amongst the other human rights. All the human rights may not be recognized as fundamental rights; however, it is clear that the fundamental rights have specific place and importance. It is important in itself to get recognition by these rights as fundamental rights on the one hand and such rights are taken as effective and immediately actionable rights due to the provision of specific remedy stipulated for their enforcement and guaranteed by the constitution.

Against this background, it is relevant to discuss here the importance given by the international human rights laws and municipal laws, to the employment right.

A person's right to work is recognized by different international human rights instruments. In comparison to other instruments, the Article 6 of International Covenant Economic, Social and Cultural Rights (ICESCR) 2066, has provided more clarity to the right to work. The provision of the Article 6 is as follows:-

1. The States Parties to the present Covenant recognize the right to work, which includes the right of everyone to the opportunity to gain his living by work which he freely chooses or accepts, and will take appropriate steps to safeguard this right.
2. The steps to be taken by a State Party to the present Covenant to achieve the full realization of this right shall include technical and vocational guidance and training programmes, policies and techniques to achieve steady economic, social and cultural development and full and productive employment under conditions safeguarding fundamental political and economic freedoms to the individual.

Nepal has accessed to this international covenant without reservation and became state party. The Article 6.1 of the international covenant (ICESCR) has accepted substantive part of person's right to choose work. Under this there are rights to choose work freely and right to maintain life. It seems for the state to take immediate appropriate and effective step for the protection of this right. Likewise, in Article 6.2 it is stated that the different steps shall be taken by the state for the full

realization of this rights. As a complementary right, Article 7 provides for the favourable working environment and the group rights are mentioned in Article 8. Due to the pre-conditions explained in Article 7 & 8 concentrated at the work place for the protection of that and maximum utilization for right to occupation. Those points are necessary to be included, while enacting policy, law and program.

Though the International Covenant on Economic, Social, and Cultural Rights provides as substantive and mandatory provisions regarding right of a person to work, development of this trend has long history. Directly or indirectly the reflection of the rights to work are found are scattering on different other international laws. Mainly the , paragraph 3 of Article 1 of the character of United Nations Organization (UNO), part 1 Article 23 of Universal Declaration of Human Rights (UDHR), 1948. Likewise, the right to work is recognized by the many international and regional human rights laws, after the ratification of the International Convent on Economic, Social and Cultural Rights in 1966. While discussing on the context of universal human right instruments, the right of a person to work is recognized by part 3(A) of Article 8 of International Convention on Civil and Political Rights (ICCPR), 1966, the Article 5(5) and (9) of International Convention for the Elimination of All Forms of Racial Discrimination, 1965, Part I (A) of the Article 11 of International Convention on Elimination of All Forms of Discrimination against Women, Article 32 of Convention of Rights relating to Children, 1989, the Article 11, 25, 26, 40, 52 and 54 of International Convention on Protection of All Immigrant Workers and Their Family.

While talking about the regional instruments of human rights, including Part II of Article 1 of European Social Charter and its revised version, the Article 15 of African Charter on Rights relating to Human and People, the Article 6 of Optional Protocol of American Convention on Human Rights, have recognized the right to work and all possible efforts by the state for full employment. The right to work is also mentioned in Article 7 of United Nations Organization, General Assembly, Declaration on Social Progress and Development, Resolution No 2542(24), 11 December 1969. It is natural and moral responsibilities of Nepal remain to committed on the feelings expressed in the instrument including the Charter of the United Nations Organization, as a responsible member of United Nations Organization. According to Section 9 of Treaty Act, 2047, it is legal duty of Nepal, to undertake honest effort towards the implementation of the provisions stated in the ratified human right instruments like International Covenant on Civil and Political Rights, 1966,

International Convention on Civil and Political Rights (ICCPR), 1966, International Convention on Elimination of All Forms of Discrimination against Women, 1979, Convention of Rights relating to Children, 1989 etc. Likewise it will not be inconsistent to make inculcation of the progressive provisions provided by the different regional human rights instruments, by a country like Nepal.

There may be raised a question on whether the rights including right to work provided by International Covenant on Economic, Social and Cultural Rights are binding or can be implemented in due process as per the availability of resources? In this relation, the following commitment is expressed in paragraph (1) of Article 2 of The Covenant:

1. The States Parties to the present Covenant undertake to guarantee that the rights enunciated in the present Covenant will be exercised without discrimination of any kind as to race, color, sex, language, religion, political or other opinion, national or social origin, property, birth or other *status*.

According to this provision, the international commitment has been expressed that state parties must move progressively towards the realization of rights the maximum utilization of their available resources, foreign aid and cooperation.

There is limitation of resources to fully realize the right to work as other rights. So much so, it is difficult to find out and define the point of sufficiency of resources. It can be the best way to pretend for insufficiency of resources for them who pass responsibility to pretend and demonstrate helplessness. But the resources are things which cannot get easily or by doing nothing. For the availability of resources vision, program, courage, and honesty are required. It is an unending process; the present state of resources becomes short by the availability of more resources. Only to wish to increase resources or get sufficient resources cannot be achieved. For this, it is necessary to discover the economic development potentials. It could be another important question, about how to stop leakage of available resources and to find out the basis of priority and sector of its mobilization. This problem can be solved to some extent by the clarity on whether the State resources are used for luxury of rulers or for the basis of achieving citizens rights. The people of third world are deprived of basic rights by the culture of rulers enjoying luxurious and pompous life and by providing feedback for corruption, and irregularity.

Hence, to claim that the State is doing something towards the maximum utilization of its available resources for the protection and realization of civil rights, first of all, there should be policy and program with adequate environment in the related subject and necessity of going ahead towards the implementation of the formulated policies and programmes. The creation of the adequate environment including maintenance of the rule of law. Under the rule of law consist of the full implementation of law, democracy, open society, good governance, transparency, accountability etc. It is clear that it is not easy and State has to develop a number of basic infra- structures for the extensive implementation of fundamental rights of employment provided by the interim constitution. So is the case but, after the announcement and guarantee of first grade commitment by the State it is not possible to overlook the implementation of this right by showing the short of resources.

The rights regarding civil liberties are mentioned in the grade of immediate implementation without hindrance and the social, economic and cultural rights are defined as rights to be gradually implemented. Such perception may be taken as that the State's international obligation on social and economic rights are not created rights immediately which is actually not true. The social, economic, cultural obligations under International Covenant on Social, Economic and Cultural Rights are direct and immediately created, and thus cannot be taken as secondary. All the human rights are equally important because of their individual specialties. Generally, it is a tendency that such rights are related and dependent each other for their use. If such state of correlation and dependency is ignored and given more importance only to the civil and political rights and given less importance to social, economic and cultural rights, the human rights may be divided on one or other ground and the situation will be created to further worsen their use.

Though there are few differences between civil and political rights and economic, social and cultural rights; however, to say that the state non-intervention is enough for the first grade of right and to deny immediate implementation of the second showing resources shortage are both unreal. The negative intervention of State is objectionable for making the first generation right successfully useable. In the first grade generation rights the identity of person is major whereas in the second grade rights the capacity to realize becomes important and the State assistance is expected to float for the same. But there is importance of identity of person and capacity to implement both grades of rights. In this way though the human rights can be classified,

in accordance with their nature however, in essence, it is not reasonable to think as complacent and irresponsibility, that by making the essence of human rights secondary; by making one immediately useable and the other opposite to it.

Highlighting the importance of the both groups of rights, the preamble of International Covenant of Economic, Social and Cultural Rights, 1966 states that, *"in accordance with the Universal Declaration of Human Rights, the ideal of free human beings enjoying freedom from fear and want can only be achieved if conditions are created whereby everyone may enjoy his economic, social and cultural rights, as well as his civil and political rights"*.

Among all the economic, social and cultural rights, the right to employment is important one and it is important also for successful utilization of civil and political rights. So its importance cannot be lessened by putting it in a class that State gradually implements them according to the State's resources and means. As an inseparable part of human rights and recognized as a fundamental rights of the Interim Constitution of Nepal, all Nepali have right to implement this right and there is no debate that whether this right is immediately implementable according to the Interim Constitution.

The expectation of the first groups of rights is that the more state cooperation is needed for the immediate implementation of this right, so the creation of such terms and conditions is the characteristic of this right. The full realization of human rights and culture of respect of human rights is only created if the both generations rights are taken as mixed with and creation of conducive environment to implement them simultaneously.

So for the full, realization of the right to work of an individual which is indicated in Article 2 of the covenant is taken as the genuine role of State to be played. The State is not only to enact law to mobilize resources for the full realization of rights, but also must show the indication of progressive implementation. The right to employment is mentioned in the interim constitution as a fundamental right but after completion of two years of enactment of the interim constitution, the reality that, there is no study, research, adequate strategic policy and program and enactment of necessary law to realize this right. It shows that Nepal is not working according to the commitment expressed in Article 2 of the International Covenant on Economic, Social and Cultural Rights.

Now, let's discuss on the general comment made by the committee on economic, social and cultural rights in relation to implementation of right to work.

The committee, on the basis of long experience used to make such comment toward the situation of implementation, achievement and weakness of the different Articles of International Covenant of Economic Social and Cultural Rights. Such comment of the committee has no binding force, however, due to the conclusion made on the basis of long experience and expertise in a specific subject, cannot be ignored the contribution to prosper the jurisprudence of economic, social and cultural rights.

The above committee had drawn limitation between full realization of right to work, as human right, and state obligation. In relation to right to work under the Article 6 of the Covenant, the general comment no.18 approved in November 24, 2005, further clarified this subject matter. In the second chapter of the comment, the right to work is defined as individual right as well as collective one. It is accepted the accreditation that the right to work is not absolute and unlimited to achieve employment.

The word work expressed in Article 6 is meant to decent work, which must be respectful to the personal basic rights. Likewise, work security of worker, adequate feeding, and professional rights are mentioned in Article 6, 7 and 8 are seen to be interrelated. To exercise all forms and levels of work elements like availability, easy access and acceptability and quality shall be ensured. Except it, even deep concern is expressed about the right to work of women, old, child labor exploitation, disabled, and immigrant workers.

In chapter three of the general comment of the committee the obligations of states are mentioned. Under which the main obligation state is to progressive realization of right to work of citizens. For this, it is mentioned that state shall apply the adequate technique to provide full employment as soon as possible. Considering the possibility of remaining insufficiency of resources, focus is given to eliminate all forms of discrimination in relation to acquisition of work. Likewise, the steps taken in the context of progressive realization of work shall be oriented towards solid, clear and positive direction. The citizens cannot be deprived for long time from right to work in the name of (pretence) progressive realization. For this, state has always specific and continuous obligation, shall be seen to be oriented towards guarantee for acquisition of work through fast and effective tempo.

The comment is also focused that state shall take unprogressive steps.

As other field of human rights it is stated that state has three kind of obligation in this juncture. It is seen that to take adequate steps towards respect, protection and fulfill the right to work are state obligations. Under the obligation to respect of right to work, no action, directly or indirectly, taken for the disturbance or intervention towards the utilization of right to work, under obligation to protect requires states parties to prevent such intervention taken by the third parties for the enjoyment of the right to work, and obligation to fulfill includes the obligations to provide, facilitate and promote that right. It implies that state parties should adopt appropriate legislative, administrative, budgetary, judicial and other measures to ensure its realization.

State parties are obliged to fulfill (provide) the right to work when individuals or groups are unable, for reasons beyond their control to realize that right themselves by the means at their disposal. This obligation includes, inter alia, the obligation to recognize the right to work in national legal system and to adopt a national policy as the right to work as well as a detailed plan for right to work as well as a detailed plan for its realization. The right to work requires formulation and implementation by states parties of an employment policy with a view to "stimulating economic growth and development, rising levels of living, meeting manpower requirements and overcoming unemployment and underemployment." It is in this context that effective measures to increase the resources allocated to reducing the unemployment rate, in particular among women, the disadvantaged and marginalized, should be taken by state parties. The committee emphasizes the need to establish a compensation mechanism in the event of loss of employment services (public or private) at the national and local level. Further, to fulfill (provide) the right to work includes the implementation by state parties of plan to counter unemployment.

Likewise, under the obligation to fulfill the right to work towards the facilitation, the states parties shall take measures to make the person competent for the utilization of the right to work or adapt the measures for cooperation, for example, to take positive measures for technical and vocational education. To promote the obligation to fulfill of right to work, states parties shall adopt educational and awareness programmes to enhance the public awareness of right to work.

The Article 2(1) of the covenant states that for the full realization of rights under International covenant relating to economic, social and cultural rights state parties by themselves or by the international cooperation shall take legal and all other measures, so it is clear that emphasize is given on legal and resources allocation measures. According to the above mentioned provisions, there are problems for the full realization of rights mentioned in the covenant. But, by this it does not mean that the state parties are reluctant to take such measures or steps for the full realization of the said rights. Specially, the state parties shall take steps to provide such right indiscriminately, and full achievement of the right immediately.

In this relation, the general comment No.3 of the committee of the above Covenant given for the obligation of states parties is important. It is said: *while the full realization of the relevant rights may be achieved progressively, steps towards that goal must be taken within a reasonably short time after the covenant entry into force for the states concerned. Such steps should be deliberate, concrete and targeted as clearly as possible towards meeting the obligations recognized in the covenant.*

The above mentioned comment of the above committee and Article 2 of the Covenant highlight the obligation to conduct and obligation of result of the provisions of the covenant. Further, it is said that such obligations are type of immediately applicable. It is pointed out that to implement the above obligations states parties shall take administrative, financial, educational and social measures as well as to ensure such measures judicial and cultural measures should be taken immediately. Hence, the provisions of International Covenant relating to economic, social and cultural rights are the subject of immediately implementable by the states parties and the right to employment as one of the important subjects of the covenant, in the broad context of the covenant, it is clear that Nepal has an obligation to realize or provide the right by enacting legal provisions immediately. Furthermore, in the context of Nepal, due to given place even in the constitution as fundamental rights to the right, state should develop legal and all other institutional mechanism for the implementation (realization) of the right to employment. Even by giving a place in the constitution, creating the situation of not implementation of the right without required legislation is taken as an act of derogation.

The comment also states the conditions for violation or not fulfilling the obligation under Article 6 of the covenant by the states parties. It is stated that the difference between state inability and unwillingness is taken as a

standard to measure it. It is the conclusion of the committee, if it is seen all necessary steps to ensure the realization of the right to work not taken, is taken as an indicator of state unwillingness and such functions violate the states parties obligation under Article 6 of the covenant.⁵¹

Although every state party has discretionary power about to adopt legal as well as other measures, according to the specific condition of individual state, for realization of right to employment, in the name of discretion power no state party can derogate the right to employment. The states parties must remain sensitive to take measures for the elimination of the problem of employment and ensure the right to employment to every individual immediately.

Though the right to employment cannot be taken as incompatible meaning to provide employment to all at a time, however it states to ensure the access to it by establishing the legal and all other necessary measures by which, all must be competent to get employment. For this, it is necessary to develop necessary strategic policy, action plan, mechanism, standards and to implement them.

The nature of right to employment is such that enactment of specific law alone could not be ensured everything. Without the opportunities to work, the right to work cannot be realized. Hence, legal provision, program and synchronized implementation of them, may be the reliable basis towards the realization of such right. Specially, among the measures relevant in course of ensuring right to employment, except determination of indicator relating to employment, determination of standard to measure the level of realization of right to employment, process for monitoring and evaluation of achievement according to the determined measures, and intention are seen to be relevant. Although, the comment made by the committee of economic, social and cultural rights about the necessity of such processes, it could not be seen that Nepal has addressed legal, political, planning and institutional aspects regarding right to employment.

⁵¹ Violations of the Obligation to fulfill occur through the failure of state parties to take all necessary steps to ensure the realization of the right to work. Examples include the failure to adopt or implement a national employment policy designed to ensure or misallocation of public funds which results in the no-employment of the right to work by individuals of groups, particularly the disadvantaged and marginalized; the failure to monitor the realization of the right to work at the national level, for example, by identifying right-to-work indicators and benchmarks; and the failure to implement technical and vocational training programmes.

Employment is not only to be understood as a job to earn money for living but also it is making the right to work as self-respectful, making it based on correlation to other rights, making the acquisition of employment in a particular basis and process, and it is understood as condition of all the aspects relating to it are satisfactorily addressed as well as it is adequate to take in consideration the jurisprudence developed in International covenant relating to economic, social and cultural right.

Let's consider on the final question to be answered about whether or not there is a condition to issue order according to the petition:

Only by putting the fundamental rights in the constitution as all citizens have right to work according to law, the citizens cannot utilize such rights as such. The problem of unemployment cannot be solved by only mentioning the right to work in fundamental rights and state obligation without effective implementation. The past experience proved that mere accession to International Covenant on Economic Social and Cultural Rights and expressing commitment in Convention of International Labor Organization, could not ensure the right to work. To search the example in this context, need not to reach the remote African countries, the answer will get if observed the grave unemployment problem of our country Nepal and other south Asian countries.

How to accomplish economic development of country, which sector to be prioritized or not, what sort of education and employment policy are to be made, how to spend on social security, how much to be invested for the physical infrastructure building and development, centralized or decentralized system which to be adopted, how to make people's participation and mobilize people, how to accept foreign aid or not, how to guarantee foreign aid, etc are the subjects of policies and programmes under the jurisdiction of state executive body. To intervene in such subjects by the court is not usual.

It is understood that the organs established under constitution including executive and legislature which are called political constitutionalism, should fulfill their own obligation and role according to constitution. In such a situation where state organ are fulfilling their obligation and role is not good to show unnecessary activism by court, so court shrinks itself. Being responsible toward people in a condition engaging for enacting laws by people's representatives, it is not necessary to direct to enact law in a particular subject by the court. This is the expectation of constitution. The court will be self-restraint

where the government maintains transparency, accountability, and good governance, respect, protect and fulfill the basic constitutional rights of people by enacting policy, program effectively as well as effectively executing them. This is the established principle of constitutional law.

On the other hand, the court cannot be a mere spectator as a guarantor of constitution and fundamental rights, in the condition where the politics cannot play the role stated by the constitution or inactive of provisions or structure unable to protect civil rights and political power (sovereignty) or government being irresponsible. The judicial activism is expected in such a situation where there is danger for being criticized by political arena. Hence, the legal constitutionalism is activated to fulfill the dysfunction and inactiveness of political institutionalism where necessary. This is a dynamic principle of constitutionalism.

While talking on Nepalese context, it is bad, if the first type of constitutionalism (political constitutionalism) is said to be only limited in lip service, so called. Due to the reality of lack of education and not able to go above the basic needs, less possibility to be aware of the citizens to protect their rights, there is a situation that citizen can only to see the violation of rights from the state side. Enactment of Interim Constitution and the previous constitution was made by political circle. It proved the best for mentioning fundamental rights in the constitution. The state obligation and policies are also met the standard of universal human rights. Not only this, it is successful in introducing itself as a good guarantor of civil rights towards the international community. Nepal has approved many international treaties, agreements, covenants, declarations.

However, when the implementation aspect as the substantive provisions of the right monitored their implementation are not effective as expected, nevertheless, it is seen vast detestation, and growing a feeling of gross negligence. Economic, social and cultural transformation of country is inevitable for the guarantee of civil rights. The leadership, viewpoint, program etc. campaign of such transformation depends on the political constitutionalism. The responsible officials taking obligation to undertake political constitutionalism must exhibit competency, capacity and honesty in practice. It is irrelevant to discuss here about the subject whether the competency is or not. The thirst is only that judicial activism is expected as necessary for the protection of civil rights.

While concentrating in this dispute, Article 12(1) of the Interim Constitution of Nepal, 2063, has made a constitutional guarantee of right of respectful life to every person, and Article 18(1) of the constitution provides right to employment as mentioned in the law. Likewise, part IV, under state obligations and policy of the Interim Constitution; it is stated that there are certain obligations of state for the realization of employment rights as well as policy and program should be oriented towards it. The Article 6 of International Covenant of Economic, Social, and Cultural Rights accessed by Nepal stated that the states parties must take all the possible steps for respect, protection and fulfillment of the right to work. Maximum utilization of available resources and enactment of necessary laws are also such steps specified in Article 2 of the same covenant. Except this, many international human rights instruments state that there should be guarantee of right to respectful life to every individual, and for the respect of human right there must be right to work according capability of person. Hence, there is compulsion that Nepal should provide minimum livelihood basis for the citizen according to the constitution, law and accepted international human right instruments.

The economic, social and cultural rights can be given to the extent of bearing of state available resources. It is a subject matter of policy so court can not intervene, is stated in the reply of respondent. In comparison to the developed and affluent states the right to employment is expectedly guaranteed there. Factually, these rights have come to the existence for focusing to the poor and developing countries. If the state is being unenthusiastic to the obligation of realization of right to employment by showing the ground of insufficiency of resources, such rights can never be realized. Hence, analysis of state resources and reasonableness of utilization of the available resources cannot lie beyond the ambit of judicial review.

Almost two years have been completed of the promulgation of the Interim Constitution. Almost two decades are completed of the accession of International Covenant of Economic, Social and Cultural Rights, 1966 by Nepal. However, within this period, it is not mentioned in the reply of respondents that there are no adequate strategies, programmes and legislations for respect, protection and fulfillment of the human rights of citizen to work. Hence, without effective national strategies, programmes and legislations, there is no question of implementation.

In the reply of respondent human right commission, there is nothing mentioned for the initiative steps taken by the commission for

implementation of the right to employment. In the reply, only it is mentioned that the commission had not violated the rights of petitioners. It is not good that nothing had been addressed in the reply submitted by the human right commission, having responsibility to watchdog in the field of economic, social and cultural rights. It is pointed that the commission must rethink about its role on the field of economic, social and cultural rights.

In fact, the human right commission not only to be limited to the illegal custody, but also it can help in all issues of human rights as an initiator, monitor, inspector, advisor, evaluator and critic. There are some subjects in the field of human rights which cannot be defended, as not done by it. The accomplishment of the commission can be evaluate by the positive functions done in the field of reorganization, protection and realization of human rights by the commission, not by the inactiveness of the commission.

In the reply of respondent office of prime minister and council of ministers, it is stated that many legislations have been proposed for the guarantee of rule of law, the court cannot play supervisory role by insisting the executive and legislature to enact particular law and implement it. Likewise, in the respond of the defendant legislature, it is stated that it cannot be mean that it is not intention of Article 18 of the interim constitution to enact the whole law to provide employment to all the citizens. In this era of 21st century, the changed role of government is only as a facilitator. However some of the laws had been enacted and reformed. It is also mentioned that it is a subject of policy matter of the political organ; it depends upon the available resources, so court cannot intervene to it.

In the situation that the right to employment of citizen has been recognized, and employment policy as well as institutional and program related law are not being made to provide employment, by stating that the employment right is being implemented by mentioning some particular subjects, such reply of the respondent is said to be fabricated and perplexing.

The stand taken by the office of prime minister and council of ministers, stating that the job of enactment of legislation, the government is committed to enact law in appropriate time on the basis of state resources, materials and thinking of looking forward, the court should not play supervisory role over the constitutional rights of legislature, is solemn in the reality. There is no debate that the function of enactment of law is legislature. Court is not intent to replace legislative statutes by the judicial statutes. The petitioners are seen to be entered into the

court with the demand of issuing order to fulfill the responsibility as mentioned in the constitution by the legislature and government.

Due to the reply of office of prime minister, mentioning to enact appropriate law in appropriate time on the basis of state resources and materials, the petitioner have to wait till the above office feels the state resources and material sufficient and think appropriate time to enact law relating to employment by vision of forward looking. The stand of enactment of appropriate law in appropriate time took to the conclusion that there is no assurance on enactment of law relation to right to employment in near future. This clarifies one of the viewpoints of government to implement the right to employment provided by Article 18 of the constitution. To state such rights in the constitution and agitated for approval and accession of international human rights instruments that recognized such right and create state obligation, but waiting for appropriate time to enact necessary laws for the practical implementation of such right are the controversial things.

If there is no truthfulness to the commitment expressed in the approval and accession of such instruments or it is understand that there is no honesty to the obligations created by the fundamental right of employment mentioned in the constitution, it is other thing, otherwise to wait for the appropriate time for making law to implement fundamental right to employment is to take very awful. The constitution does not intent to wait for appropriate time to enact law relating to right to employment as intended by the office of prime minister. The meaning to include particular rights in the fundamental rights is to activate the right immediately, and it is also said to that there is remedy for situation of violation or not implementation of such rights.

Hence, there is no concession to the legislature and executive to create uncertainty for the realization of rights in the name of appropriate time. The fundamental rights are the most important part of the constitution. If, directly or indirectly, abhorrence is shown over the obligations of implementation of such rights, that is a state of violation of constitution. Court cannot be inactive as being unresponsive in such a situation. That is not adequate to judiciary who plays the role of protector of constitution and civil rights.

Therefore, it is the constitutional responsibility of court to point out the legal obligations of concerned institutions and issue order to compel them to fulfill their obligations. No institution is free not to fulfill its any of the constitutional responsibilities and if intent not to fulfill such responsibility, it may be the expression of disrespect towards the

written constitution, there is not place of such logic in the present constitution.

Fundamental rights are direct and immediate implementable rights of the people. So they are not depends on intention of any institution, even the legislature, and cannot make such rights uncertain or not implementable on the ground of insufficiency of resources. Hence, the protest shown in the reply of the office of prime minister cannot be acceptable.

The reply of other respondent ministries' also cannot state the progress to enact law according to the demand of the petition; they submitted just a caretaking respond. It is shown that the responsible institution of state are not directed to respect, protect and fully realization of right to work, the fundamental human rights of citizens. In such a situation the right to employment under Article 18(1) of the constitution may be limited only in the Article of the constitution, this court has constitutional obligation and duty to issue order to the concerned institutions to activate and make implementable of such rights in the name of respondents office of Prime minister and council of ministers, to fully ensure the right to employment of citizen of Nepal provided in the Article 18(1) of the Interim Constitution 2063 and Article 6 of International Covenant on Economic, Social and Cultural rights except the other thing submit a proposal to the legislature-parliaments including the following matters within one year of the issuance of this order, an order of mandamus is issued.

1. To prepare a national strategy relating to employment
2. To adopt the principle of inclusion to eliminate indifference on the basis of religion, race, sex, ethnics by including the formal and informal service, to ensure the representation of traditionally backward classes.
3. To establish mechanism for policy direction regarding employment.
4. To make provision to represent in addition to the government sector, private sector, labor and employment expert, trade union and woman in such mechanism.
5. To establish judicial mechanism to hear dispute regarding employment.
6. To fix the statutory duty to address the right to employment strategy while allocating national budget.
7. To provide technical and vocational education regarding employment education and make provision for easy access of general public to it.

Lastly, inform the progress of the above order of the court by the monitoring and supervision department of this court, give the notice of the order to the respondents through attorney general. Exclude this case form the case registration file and submit this file according to the rules.

I concur above decision.

Justice Meen Bahadur Rayamajhi

Done on 23^h Poush, 2065 B.S. (7th January, 2009)



The Supreme Court issues instructions in the name of government for timely reforms in Military- Police Act to end gender discrimination on employment opportunities.

**Supreme Court, Special Bench
Hon'ble Justice Ram Prasad Shrestha
Hon'ble Justice Ram Kumar Prasad Shah
Hon'ble Justice Avadesh Kumar Yadav**

Order

Writ No. 064-WS-0001

Ref: Mandamus et.al.

Petitioners: Sapana Pradhan Malla, on her own behalf and as authorized by Forum for Women, Law and Development, et.al.

Vs.

Respondents: Government of Nepal, Office of Prime Minister and Cabinet Minister, Singh Durbar, et.al.

- **Among the legislative power conferred to the legislature by the Constitution, the legislature delegates limited power of making regulation to the executive or the government. This concept of delegated legislation has been recognized by the Constitutional jurisprudence. In this regard the only condition is that while making regulations one which receives the delegated power**

should not accede the power delegated by the one who delegates.

- The action where no effort is being made for empowerment and development rather the door of employment is closed cannot be taken as an action of empowerment and development.
- Instead of providing additional opportunity for career development or bringing them into mainstream, if restriction is imposed with this or that basis over the available opportunity, it cannot be treated as positive discrimination.
- Except where the nature of occupation compulsorily puts restriction, if any discrimination is created including on the basis of gender in joining the public service of a state, there is less ground to be said it as compatible to the principle of equality. If such law or customs are still in force in any field as legacy of the tradition, it is better the state gradually reform it.
- If a pregnant woman is allowed to participate Basic Training for Military Police which require physical labour, the state may also be blamed of violating the provision of the Constitution. So, reasonable adjustment on both the subject and timely reform in disputed law is required thereto.
- It has become necessary to make suitable amendment and reforms to the impugned Regulation Regarding Military Police, 2007 after comparative study of the legal provision of some other countries which are sensitive in the gender justice, including the neighboring countries; and after conducting study and research on the social and cultural situation of our country including on the subject like condition of employment of woman.

Ram Prasad Shrestha, J: The brief facts of the writ petition filed under Articles 32, 107(1) and (2) of the Interim Constitution of Nepal, 2007, and the order issued thereupon is as follow:

Since the Forum for Women, Law and Development is established for protection of rights and interest of woman, woman empowerment, upliftment and development of woman, establishing their rights equally and protection of those rights, the Constitutional rights on entering this respected court, on behalf of the Forum, for protection of rights and

interest of Nepali woman, execution of Human Rights and Fundamental Rights, is secured under the Article 32 and 107 of the Interim Constitution of Nepal, 2007.

Rule 4 of Military-Police, Regulation 2001, provides for fulfilling the vacancy of Military Police. In sub-Rule (1) it is provided that while fulfilling the vacancy of post of Military Police at Central Military Police Barrack Under the Office of Royal Nepal Army, the vacant post shall be fulfilled through transfer from other units in case of male Military Police, and through free competition in case of woman constable. sub -Rule (2) has provided for the qualification of male Military Police who is going to be transferred. sub -Rule (3) mentions following qualification for fulfilling the post through free competition as stated in sub-Rule (1): a) Nepali citizen, (b) SLC passed or equivalent, (c) having height of at least of 5 feet and 2 inches, (d) completed the age of 18 years and not acceded 22 years on the date of application (e) qualified on medical examination (f) not involved in active politics (g) able to read and write English and (h) unmarried or single woman. And in sub- Rule (4) it is provided that woman being appointed as Military Police shall not be allowed to marry during Basic Training for Military Police.

This provision came in different situation and circumstance. Above mentioned provision about female Military Police is limited and narrow in the context of recent political, constitutional and legal change. The Military Act, 2007 has adopted the value of equality, freedom and equal employment in line with the provision of the Constitution, and has opened the military service to the people of all level and sex. This fact becomes evident also from Section 7 and 13 of the Act. The phrase "unmarried and single" contained in sub-Rule 3(b) of Rule 4 and the provision "woman being appointed as Military Police shall not be allowed to marry during the period of Basic Training, is *ultravires* to the rights of equality, freedom and social justice provided in Article 12, 12(3)(f), 13, 20(1), and is therefore voidable. The provisions stated above have created discrimination among women on the basis of their conditions like - whether they are married, unmarried or single. In this way, it has prevented married women from entering Military Police and discriminated them on the basis of sex and marital status. They are deprived of the job of Military Police. Because of all these situations, women are becoming more dependent.

Article 13 of the Constitution has guaranteed the right to equality by providing that all the citizens shall have right to equality. All the sub-Articles of it have accepted the right to equality. Right to equality is the

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backbone of Rule of Law. Right to equality does not accept any discrimination based on gender, color, caste and race. The provision mentioned above is discriminatory against woman on the basis of sex and marital status. Right to employment is inserted as a Fundamental Rights by providing in Article 18 of the Constitution that every citizen shall have right to employment and every woman shall have right to social security. Article 19 has provided that every citizen shall have right to earn property. Similarly, there is provision in Article 20(1) of the Constitution that there shall be no discrimination only on the ground that somebody is woman. Further, Article 21 has provided that woman shall have the right to involve in the process of reconstruction of state on the basis of the principle of proportionate inclusion. The Constitution has provided in Article 35(1) that the state shall pursue a policy of raising standards of living of general public through the development of basic things like employment to the people of all regions. Similarly, Article 35(8) has provided that the state shall pursue a policy of making woman participate to the maximum extent in the task of national development by specially providing them with employment.

Not only that, aforementioned legal provision has violated the freedom to marriage, right to property, right to take part in government service and right to free choice of employment as stated in Article 16(1) and (2), Article 17, Article 21(2) and Article 23 respectively.

Article 6(1) of the International Covenant on Economic, Social and Cultural Rights, 1966 has recognized the right to work. Similarly, Article 7 has secured the right to equal remuneration for the work of equal value and Article 10(1),(2),(3) have provided for the right to marriage and freedom to continue the marital relation. The impugned legal provisions have violated such Fundamental Rights.

Article 1 of The Convention on Elimination of All Forms of Discrimination against Woman, 1979 (CEDAW) has included the economic discrimination under the purview of the definition of discrimination. "Discrimination against Women" shall mean any distinction, exclusion or restriction made on the basis of sex which has the effect or purpose of impairing or nullifying the recognition, enjoyment or exercise by women, irrespective of their marital status, on the basis of equality of men and women, of human rights and of fundamental freedom in the political, economic, social, cultural, civil or any other field. According to Article 11 the state parties shall take the appropriate measures to eliminate discrimination against women in the field of employment to ensure, on the basis of equality of men and

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woman, overall development of the personality of women. Article 14 has the provision that rural woman shall have the equal access to employment for the economic progress. It is ridiculous that there still exist these types of discriminatory provisions in the Regulations even after 16 years of ratification of this convention.

Recommendation No. 5 of Committee on Elimination of Discrimination Against a Woman, which is given to the states for ratification, has the provision that states parties make temporary special measures such as positive action, preferential treatment of quota systems to promote women's active participation into economy and employment. Nepal has already submitted its second and third report to be submitted under the Convention on Elimination of All Forms of Discrimination Against Women, 1979 to the Committee on Elimination of Discrimination Against Women. Although the committee has recommended Nepal to immediately amend the discriminatory laws, such laws are still in force. So, the judiciary has to take the responsibility of abolishing such discriminations and thereby establish a society based on equity.

As directed by Article 156 of the Interim Constitution of Nepal, 2007, which contains that the ratification of, acceptance of, accession to, or approval of treaties or agreements shall be as determined by law, it is clearly provided in Section 9(1) of Nepal Treaty Act, 1990 that if the provision of a treaty which is ratified by Nepal contradicts with the prevailing law, for the purpose of the treaty, Nepal law will be invalid to the extent it contradicts; and the provision of treaty shall be enforced as municipal law of Nepal.

Nepal has expressed its commitment to the right to life, liberty and right to be free from gender discrimination, as encompassed on the Beijing Conference Plan of Action, 1995. Since the Supreme Court in the writ of *certiorari- Rina Bajracharya vs. Government of Nepal* declared a law *ultravires* giving a reason that there shall not be discrimination between men and women; and stated that if discriminatory law is passed, it will not only contradict to the Constitution, it will also contradict to the CEDAW, I request to take this decision as a precedent in this petition.

Therefore in the context that the Interim Constitution, 2007, Military Act, 2007 and Gender Equality Act, 2007, have been passed. I request for declaring the phrase – "to join the Military Police Service, women shall be unmarried or single" which is contained in Rule 4(3)(h) of aforementioned Regulation and the phrase "woman

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candidate being appointed as Military Police shall not be allowed to marry during the period of Basic Training for Military Police which is contained in sub-Rule 4 of the same Regulations- null and void through writ of *Certiorari*. I further request for writ of *Mandamus* issuing an order for arranging special provision regarding single woman so that they get easy access to the Military Police Service.

Since the aforementioned legal provisions are the concern of Nepalese woman in general and the issue is gender-sensitive where capable women candidates are being deprived of military service, it is requested that this petition be given priority for hearing.

An order was issued by a single bench of this court to the defendants for summing a rejoinder; and for furnishing the case to the Bench, after the rejoinder is received.

It is stated in the written response presented by the respondent-Ministry of Defense as: Since Military Act, 2007 has been passed and it is obvious that the provisions contrary to the Act will be void; and necessary regulations in consistence with the Act will be passed, it is requested to the court to dismiss the writ petition.

The written response of the Secretariat of the Legislature Parliament is as follows: there is no reason to disagree with the views of petitioner about making national legal provisions gender-friendly which could make women feel self-respect, and are in consistence with the substance of equality, thereby they comply with the Interim Constitution of Nepal, 2007 and International Covenants on Human Rights. Since the legal provision claimed as unconstitutional by the petitioner is related to the Regulation Regarding Military Police, 2001 and that the Regulation is made by the government under the authority given by the Section 165 of the Military Act for the purpose of Section 96 of the Act, there is no responsibility and meaningful concern of the legislature parliament about it. Besides of, in the context the reinstatement of House of Representative has already repealed the Military Act, 1959 and passed Military Act, 2007, new Regulations might have already made on the basis of new Act. The court will obviously be notified about the reality by the written response of the concern agency. Since the Legislature Parliament is made a respondent in this issue on which it doesn't have any role, responsibility and concern, the court is requested for dismissing the petition.

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The written response of the Ministry of Law, Justice and Parliamentary Affairs is as follows: The legal provision of Rule 4(3)(h) and sub-Rule 4(4) of Regulation Regarding Military Police, 2001 shall not be interpreted in connection with the Fundamental Rights contemplated in Interim Constitution of Nepal, 2007. The legal provision is not special provision for woman; and this does not indicate the gender inequality between men and women, rather it fixes the qualification of women for appointment in the post of Military Police. According to the provision of sub-Section 4 of Section 12 of Military Act, 2007, the qualification required for appointment in different position of Nepal Army shall be as provided in the rules. In the context of Section 144(3), the Regulation has merely fixed such qualification exercising the authority given by Section 165 of Military Act, 1959. The Fundamental Rights of woman will not be curtailed because of specifying the qualification for appointment according to law. Rather it is only a task of specifying basis and situations for appointment in the post of Military Service which requires specific qualification, capacity and specialization, paying importance to reasonableness and practicality. Thus providing qualification according to law shall not be considered as against the Fundamental Rights. Article 12(3) of the Constitution does not mean that provision of ascertaining the qualification as directed by law be considered as against Fundamental Rights.

The sub-Rule 4 of Rule 4 of the Regulation is a provision only for the training period. This provision is inserted considering the special characteristics of the military service which requires special type of Basic Training, and with objective that the participants (Military Police) be able to complete the training efficiently and regularly without letting to arouse any problem caused from physical, social and family related reasons. Since any of the Military Police is free to marry after the training period, this provision shall not be interpreted in the context of Fundamental Rights and other international treaty or conventions. So, the claim in the petition does not comply with the law. It is requested for dismissal of the writ petition.

Response of Ministry of Woman, Children and Social Justice is as follows: Regulation Regarding Military Police, 2001 is made under the then Military Act, 1959 which is replaced by the Military Act, 2007. Besides the provision of Section 7.1 of Military Act, 2007, which states that organization of Nepali Army shall be inclusive, it is clear from Section 13 of the Act that no disqualification shall be created for appointment in Nepali Army on the ground of sex and marital status. The provisions of Regulations Regarding Military Police, 2001 which

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are contrary to the provision of the Act are not capable to be executed. According to the Article 164(2) of the Interim Constitution of Nepal, 2007, all the laws in force at the time of commencement of the Constitution, if they are inconsistent to the Constitution shall *ipso facto*, cease to operate three months after the commencement of the Constitution. In the context of provisions mentioned in preamble about solving the problem related to gender; in Article 13 about non discrimination on the ground of gender; and in Article 20 about non-discrimination because of being a woman, any existing Nepal law which discriminates on the ground of sex and marital status is, *ipso facto*, void under the provision of Article 164(2). So, there is no need to declare null and void. In the context of the then Constitution of the Kingdom of Nepal, the Supreme Court has also ruled about it (NKP 2003, Judgement No. 7646). In this writ petition there is nothing but the intellectual discussion. Since this issue is not important in light of constitutional dispute, I request for dismissal of the writ petition.

Response of Secretariat of Prime Minister and the Cabinet is as: as per the authority conferred to Nepal Government by the Military Act, 2007 to make Rules for execution of the Act, Nepal government can make or amend the Rules according to the requirement. The Rule, which is made according to the authority conferred by the Act, should not be interpreted as inappropriate. Making an appropriate Rule related to the administration of National Army, complying with the value of Rule of Law and Constitution, is a matter of executive prerogative. Necessary homework is already started to pass the Regulation complying with the Military Act, 2007.

Military and Police force is related to maintaining peace and security which is very sensitive job of the government. The person, who joins Nepal Army through free competition, complying with prevailing legal provision and recognized practice, should go through basic and advance training; where participants should play different types of games which include physical hard working like running, jumping, falling from the height etc. Beside these things *judo*, *Karate* and *Usoo* should be learned in advance training. Substantial change may come in physical condition in human body after marriage and it is natural that, especially because of biological reason, special changes may come in woman's physical condition. Since it is possible that woman's body may come into risk because of the natural changes which come or may come into trainee's life during training period, because of marriage, this provision is made as a positive discrimination for the protection of woman's Human Rights including right to health. Since the biological differences cannot be equalized through legal means, it

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is the state policy to treat it through positive discrimination providing special privilege. The writ petition is to be dismissed because the provision mentioned as positive discrimination should not be treated as discriminatory.

Section 9 of Nepal Treaty Act, 1990, has mentioned about what will be the status of a treaty. The petitioner's claim, which is based on the international treaties, is not legally valid, because a person cannot directly claim the matter of a treaty as a person's right. So, it is requested that the writ petition be dismissed.

The written response of the Army Head Quarter is as follows: No matter stated in Act or Regulation which maintains about qualification and nature of service for search of mentally and physically strong and capable candidate in a service, cannot be interpreted as against the interest of candidates. Since having pregnant is fundamental right of married woman and no restriction can be imposed on the woman who is appointed to the Military Police Service, during the Military Police Basic Training, to have pregnancy. If the woman, who is to be appointed in Military Police through free competition, is married may be pregnant or may get pregnancy during anytime of their period of Basic Training during the period of pregnancy, becomes incapable to perform different types of physical exercise that contains hard physical exercise like push up, sit up, running, judo, martial art, weapon handling tactics etc. In such condition, it is possible that the fetus inside the womb may be destroyed or aborted, if they involve in hard physical exercise. Since this may harm the woman herself it is provided that woman to be appointed in Military Police shall be unmarried and she cannot marry during the period of Basic Training for Military Police. Through this provision woman's rights and interest is protected. It is not discriminatory or unequal behavior to women, rather through this provision, right and interest of women is protected as per the requirement of the nature of service.

It is provided that only during the period of appointment and Basic Training woman cannot marry because training has important role in the Military Police Service. Participants shall stay in training station, if the woman appointed in the Military Police Service gets marriage and gives birth to a children in such condition, birth may cause both physical and mental effect to mother and child. In such condition training cannot be conducted effectively. So, provision for restriction is made to women on marrying during the Basic Training of Military Police Service.

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Thus Rule 4(3) (h) and sub-Rule (4) of the Regulation Regarding Military Police, 2001 is not made for gender discrimination. It is made after analysis of the prescribed qualification and circumstance of recruitment process. Since this rule does not deprive the women of joining the Military Police Service completely, I request for dismissing the baseless writ petition

In this writ petition submitted in the Bench according to the Rules, on behalf the petitioner, learned advocate Mrs. Meera Dhungana pleaded in the bench as: Provision of Rule 4(3) (h) and sub-Rule (4) of Regulations Regarding Military Police, 2001, is discriminatory on the basis of sex. Not only that this rule, by providing the qualification that woman should be single or unmarried, has discriminated among women also. Article 12(1) of the Constitution has provided that every person shall have the right to live the dignified life and sub-Article (3)(f) of the same Article guarantees the right to employment.

This provision, which restrict woman from carrying occupation as Military Police by the reason that she is woman, is against the provision of Art 13(1) of the Constitution. The provision which restricts from marrying during the period of Basic Training has violated the right to conjugal life and reproductive rights. It is not compulsory to conceive a child after marriage the response of respondent is baseless. It is possible to apply the alternative methods of contraception. Article 20(1) of the Constitution has adopted the right that no discrimination is allowed against woman on the basis of sex and marital status. Military Act, 2007 has also provided that there shall be no gender discrimination on recruitment in the Army. International Covenant on Economic, Social and Cultural Rights, 1966 and Convention on Elimination of All Forms of Discrimination Against Woman, 1979, which Nepal has ratified, has also provided that there shall be no discrimination against woman. Respected court has established different principles in this regard. So, the provision prevailing in the Regulation regarding the Military Police against the Interim Constitution of Nepal, Military Act, Various International Document ratified by Nepal and the principles established by the Supreme Court, shall be declared null and void as per the provision of Article 107(1) of the Constitution, since it is unconstitutional.

Learned Deputy Attorney Mr.Revati Raj Tripathi, on behalf of respondent the Nepal Government pleaded in the Bench as: Right to equality shall not be treated as absolute one. Principle of equality means that there shall be no discrimination among the people of equal condition and status. The principle that reasonable classification by

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law for the purpose of achieving certain objective is acceptable, and has been followed since the writ of *Habeas Corpus* of the petitioner *Imansing Gurung*. The Basic Training for Military Police is, by its nature, very tough. It requires hard physical labor and discipline. There are examples that even the male candidates also have escaped the training in between without completing it. Letting to participate the pregnant woman in such training is harmful to her and the foetus in her womb. So this provision is provided for woman's health and interest. This law has not restricted a woman to marry for all her life. Such woman is free to marry and give birth to child after completing the Basic Training. Since the provision has restricted marrying only during the period of military training, it is constitutional and the writ petition shall be dismissed.

After analyzing the plea submitted by both the sides, and after studying the file which contains documents, including the writ petition and the responses, it has become obvious that the decision needs to be given focusing on the following questions:

1. Whether the impugned legal provision is in consistence with the Interim Constitution of Nepal, 2007 and Military Act 2007?
2. Whether the impugned legal provision has maintained consistency to the different international treaty, convention, covenant and declarations related to the Human Rights and gender justice which Nepal is party or which Nepal has ratified?
3. In the context of the principles propounded till now by this Court regarding the gender justice, how can we look into the impugn legal provision of the Regulation Regarding Military Police, 2001?
4. Whether the writ should be issued as demanded in the petition?

First of all, let's consider on the first question. The petitioner has claimed for declaring the provision of Rule 4(3) (h) and Rule 4(4) of the Regulation Regarding the Military Police, 2001 on the ground that the provisions are contrary to the Military Act, 2007 and Interim Constitution of Nepal, 2007. While looking at the response of the respondents their plea is found as: this provision is for the safeguard of women's interest and for protection of the woman and her foetus in her womb from adverse effect on their health. This provision is in consistence with the Constitution. First of all, it is expedient to look at the relevant legal provisions related to these contrasting claims taken on the petition and written response.

Rule 4 of the Regulation Regarding Military Police, 2001, under the topic- "Recruitment of the Military Police" it is stated as under:

"Rule 4: Recruitment of Military Police: (1) While fulfilling the vacant position of Military Police at central Military Police barrack under Nepal Army Head Quarter, the fulfillment shall be done through transfer from other units, in the case of male Military Police; and through free competition, in the case of recruitment of woman in the post of constable."

"(3) The qualification of person to be recruited according to sub-Rule shall be as follows:

(h) Unmarried or single woman.

(4) Woman who is appointed as Military Police shall not be allowed to marry during the period of Military Police Basic Training."

Among the whole provision provided in rule 4 regarding fulfillment of vacant position in Military Police, the petitioner has claimed that the phrase "unmarried or single woman" contained in sub-Rule 3(h) and the provision "contained in sub-Rule (4) is unconstitutional. Among the provisions claimed as unconstitutional by the petitioner, the provision of Rule 4(3)(h) seems to be related to condition of qualification required for joining the Military Police. The legal provision has added a condition, on the matters stated on Clause (a) to (g) required for joining Military Police, that such candidate shall be unmarried or single. The provision existing on the Regulation has completely restricted the married woman whose husband is alive from getting appointed as Military Police. Simple and understandable meaning given by the aforementioned legal provision is that the woman who had married and whose husband is alive is not eligible to be appointed in Military Police.

Similarly, the provision contained in Rule 4(4) does not seem related to the terms and condition or the qualification prescribed for joining the Military Police. This provision is targeted to people who has already got appointment as Military Police but have not taken the Basic Training. This legal provision has restricted woman Military Police from marrying during the period of Basic Training for Military Police.

Thus clear intention of this legal provision is a married woman whose husband is alive is not eligible for joining the Military Police Service, and

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The claim of the petitioner is that the legal provision which has created discrimination among man and woman, on the ground of gender and

among women on the ground of their status e.g. married, unmarried or single, is contrary to Article 7 and 13 of Military Act, 2007. And Articles 12(3) (f), 13, 18, 14, 20(1), 21,35(1) and 35(8) of the Interim Constitution of Nepal, 2007.

While looking at the preamble of the Regulation Related to Military Police, 2001, it is found that the then His Majesty's Government, exercising the power conferred by the Article 165 of Military Act, has made the said regulation for the purpose of Section 96 of the Military Act, 1959. The Military Act, 1959 was repealed by the Military Act, 2007 which was issued on 2063/6/12 (September 26, 2006). As stated on the preamble of the Act, the Act was brought into force, since it was expedient to make timely amendment and consolidation of the existing provisions of Nepal Law related to establishment, management, control, utilization and mobilization of Nepal army. Similarly, by the provision – "the nature of Nepal army shall be inclusive and national one-" as stated in Section 7(1), it is obvious that this Act has made an attempt for transforming the Nepal army into inclusive one that can represent the citizens of all class, community, region and sex. In other words, although Section 12 of the Act provides that qualification for appointment in different post of Nepal army shall be as prescribed in Regulation, section 13 provides that a person who is not Nepali citizen, convicted for an offence involving moral turpitude, dismissed from service being disqualified for government service for the future, convicted on the charge of violation of Human Rights and a person who doesn't have qualification stated in Section 12(4) shall be deemed disqualified for the appointment as Nepal army. Section 12 and 13 of the Act doesn't put any condition disqualifying the married woman or a woman whose husband is alive to get appointment in the Nepal Army. This legal provision does not seem putting any discrimination among man and woman on the basis of sex, and among woman on the basis of marital status.

According to the written response of the Secretariat of Parliament, in present context when Military Act, 2007 is in force, new Regulation should be made as per the essence and objective of the Act. Similarly, according to the written response of the Ministry of Woman, Children and Social Welfare, in the context where Regulation Regarding Military Police, 2001 was made under the then Military Act, 1959, since that Act has already been replaced by the Military Act 2007. According to Section 7(1) of the Military Act 2007, the nature of organization of Nepal army shall be inclusive one, and whereas Section 13 provides that no marital status and sex shall create disqualification for appointment in Nepal Army, provisions of

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Regulation Regarding Military Police, 2001 can not be enforced being them contrary to the Act. Besides that according to the provision of 164(2) of the Interim Constitution of Nepal, 2007, any Nepal Law which discriminates on the ground of sex and marital status shall be void after three month from the commencement of the Constitution, to the extent it contradicts. So, the impugned legal provision need not be declared null and void. As the written response of the Office of the Prime Minister and the Cabinet maintained that necessary home work has already begun to make Regulation consistent with the Military Act, 2007, the Nepal Government is also positive in this regard. Generally Legislative Parliament possesses the full authority law under the provision of the Constitution. In what matter law should be made or not to make and what the substance of that law should be are the matters of absolute parliamentary jurisdiction of making law.

Because of the service which a modern welfare state should provide and the activities which it has to conduct, it is not feasible even for the parliament to make law accommodating all of the matters. So the parliament delegates some of its legislative authority, which is conferred to it by the Constitution, of making regulations to the government or the executive.

Among the legislative power conferred to the legislature by the Constitution, the legislature delegates limited power of making regulation to the executive or the government. This concept of delegated legislation has been recognized by the Constitutional jurisprudence. In this regard the only condition is that while making regulations one which receives the delegated power should not accede the power delegated by the one who delegates. Regulations should be made within the limit of the mother Act which delegates the power. The Regulation regarding the Military Police, 2001 which is brought into dispute in the petition was made under the authority given by the then Military Act, 1959. Now that Act has been repealed and the Military Act, 2007 is in force. There is no claim that this Regulation is against the provision of the earlier Act. The claim is that the impugned legal provision is contrary to the Military Act, 2007 and the present Interim Constitution of Nepal, 2007.

Now lets discuss on the claim stated in the petition that the impugned legal provision of the regulation is *ultravires* to the interim Constitution of Nepal, 2007. Article 12 of the Constitution, besides other things, has the following provisions:

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Article 12: Right to Freedom: (3) Every citizen shall have following freedom:

- (f) Freedom to engage in any occupation, employment, industry, and trade.

The freedom to occupation, employment, industry and trade provided by the Article 12(3) (f) of the Constitution is only general directive that the state should not intervene or control unnecessarily over the basic right to occupation and employment of a person. This Constitutional provision is a guarantee of citizen's freedom of doing or choosing occupation, employment, industry or trade on the condition that it should not be contrary to the public policy. This doesn't mean that it is freedom to engage any type of occupation or to be engaged employment, industry and trade nor is it that state cannot do any control or regulation. According to the *provisio Clause* (5) of the Article 12(3) of the Constitution, law can be made to impose restriction on any act which may be contrary to public health or morality, to confer on the state the exclusive right to undertake specific industries, business or service, or to impose any condition or qualification for engaging in any industry, trade, profession or occupation. In this back ground, the action of imposing conditions or the qualification by law for the purpose of engaging into an occupation or employment through an appointment in the Military Police Service cannot be interpreted as it imposes unreasonable restriction on the Fundamental Rights provided on Article 12(3)(f). But if there is a situation that such condition is imposed against the limitation prescribed by the clause, it can be taken into consideration. If the conditions are imposed in such a way that it contradicts the rights including the right to equality, provided in other Articles of the Constitution, such conditions can not be considered as Constitutional. The petitioners have claimed that above mentioned provisions of the regulations is against the right to equality. Before analyzing that claim, let's look at the constitutional provision.

Article 13: "Right to equality: All citizens shall be equal before the law. No person shall be denied the equal protection of the laws." The petitioner has claimed that Rule 4(3) (h) and 4(4) are against the provision of Article 13(3) of the Constitution. In principle, the right to equality provided in Article 13 is not unconditional. The principle of equality is based on the value that there shall not be discrimination amongst the people having equal unequal condition. To transfer the right to equality in to reality classification by law is also recognized by the constitutional law. But the thing which should be taken into account while classifying is that such law which classifies

must be fair, free from biasness, and reasonable and based on equity. There shall not be smell of arbitrariness. If there is such law, it cannot be valid. Similarly, it should be seen that the classification has meaningful and reasonable relationship to the objective expected to be achieved by the classifying law. If such relationship is not found, the classification done by the law cannot be recognized as valid one. This court has continuously recognizing this concept after it was established by the Supreme Court in the case of *Imansing Gurung vs. Secretariat of Prime Minister and the Cabinet* (NKP 2049, p.710). Rule 4(3) (h) of the Regulation Regarding the Military Police, 2001 which is claimed as unconstitutional by petitioner, has provided that the woman who wants to join the Military Police shall be unmarried or single. There is no similar provision for male candidate. Issue in dispute of this case is what is the reason and basis contained behind fixing the condition that a man who wants to join the Military Service can be marry but a woman must be unmarried or single. As we look at the written response of the respondent, the Office of the Prime Minister and the Cabinet for the purpose of finding objective of such provision in the Regulation, the Court has found that special changes may occur on the physical condition of woman after marriage, because of the biological reason. Natural changes may occur in the trainee's body during the Basic Military Training where one should work hard. That provision is kept in law as a positive discrimination so that woman's Human Rights including Right to Health can be protected. It is not possible to make the biological differences equal through law. The written response has a plea that it is not reasonable to interpret a matter as against the interest of a candidate, if the law or regulation provides for a qualification according to the nature of the service. Negating to the plea taken in the written response, the petitioner has pleaded in the Bench that it is not compulsory to conceive child even though one has married, as different types of contraceptives can be used. Since this plea taken in written response and in the pleading by the petitioner is of technical nature connected to the biology instead of to the judicial one, it is not reasonable to settle the matter on the basis of such logic and counter logic. So, there is no basis and condition to agree or disagree to those pleas on the ground of presumptions and logics. Those statements may be correct or incorrect in their places. Reality can be found from the opinion of specialist of those subjects after research. What this bench

can see through the judicial review is whether these provisions accommodate the right to equality provided by the Constitution.

The written response has taken a plea that those provisions are for the protection of the interest of the woman herself and the foetus which can come into her womb. In support of this plea, respondents have shown the provision of positive discrimination which contains in *provisio Clause* of the Article 13(3) of the Constitution. The *provisio Clause* states that nothing shall be deemed to prevent making of special provisions by law for the protection, empowerment or advancement of women, *Dalits*, indigenous peoples (*Adibasi, Janajati*), *Madhesi* or farmers, workers, economically, socially or culturally backward classes or children, the aged and the disabled or those who are physically or mentally incapacitated. Thus the main objective of the *provisio Clause* is the protection, empowerment and development of woman including people from different class, community and gender. Where there is a situation that woman's physical and mental conditions cause difficulties to them for engaging into any occupation or employment, which man can compete to or enter into, and the action is taken for their empowerment and development, that comes under the matters of positive discrimination. The action where no effort is being made for empowerment and development rather the door of employment is closed cannot be taken as an action of empowerment and development. Similarly, state have to create sufficient opportunity required for the career development and protection of the person mentioned on the *provisio Clause* including woman, and can bring them into main stream. Instead of providing additional opportunity for career development or bringing them into mainstream, if restriction is imposed with this or that basis over the available opportunity, it cannot be treated as positive discrimination. Except where the nature of occupation compulsorily puts restriction, if any discrimination is created including on the basis of gender in joining the public service of a state, there is less ground to be said it as compatible to the principle of equality. If such law or customs are still in force in any field as legacy of the tradition, it is better the state gradually reform it.

According to the claim in the petition, this provision of the Regulation has unreasonably restricted the Fundamental Rights to occupation and employment provided by the Constitution. Interim Constitution has following provisions about right to occupation and employment

Article 18: Rights Regarding Employment and Social Security

1. Every citizen shall have the right to employment as provided for in the law.
2. Women, labourers, the aged, disabled as well as incapacitated and helpless citizens shall have the right to social security as provided for in law.

Expanding the scope of Fundamental Rights, existing in the then Constitution, the Interim Constitution has included the Right Regarding Employment and Social Security as the Fundamental Rights in Part III. However, not giving the characteristics of Fundamental Rights, the Article 18(1) and (2) has limited and confined it as a legal rights that is to be applied 'as prescribed by law'. In this way, the situation is that the right regarding the occupation, employment and security cannot be claimed as a Fundamental Rights. State can regulate it through making law. This doesn't mean that the state shall be indifferent and inactive towards this value accepted by the Constitution. Since creating the maximum rights to employment and guaranteeing the social security is responsibility of the state prescribed by the Constitution, it is necessary to work actively towards it. Similarly another claim of the petitioner is that some provisions of the Regulation Regarding Military Police, 2001 shall be declared void.

This affects the right of citizens to acquire property. Article 19(1) has provided for that every citizen, shall subject to the existing laws, have right to acquire, own, sell and otherwise dispose of property. It is obvious that acquiring property is difficult in absence of profession and employment. However, for earning property one cannot claim as Fundamental Rights that a particular occupation or employment be given. These issues are settled on the basis of ground reality of economic and social conditions of the relevant countries. According to the writ petition, the Regulation's provisions contradict the woman's rights and right to social justice given by the Constitution. Provision in the Constitution in this regard is as follow:

Article 20: Rights of women:

- (1) No discrimination of any kind shall be made against the women by virtue of sex.
- (2) Every woman shall have the right to reproductive health and reproduction.

Article 21. Right to social justice: The economically, socially or educationally backward women, *Dalits*, indigenous peoples, *Madhesi* communities, oppressed classes, poor farmers and

labors shall have the right to take part in the structures of the State on the basis of the principle of proportional inclusion.

Both of the above mentioned provisions are inserted only by the Interim Constitution of Nepal 2007. Since these rights are inserted as Fundamental Rights, it seems that state has expressed its full commitment to the rights of woman and social justice.

It can be said that this type of provision in the fundamental law is an expression of positive attitude of the state towards its commitment expressed by Nepal in favor of Human Rights and gender justice by being a party to different international treaties and agreements. The Article 20(1) has declared constitutionally that no discrimination of any kind shall be made. In fact, this constitutional provision alone is a shield against the entire discrimination against woman. This provision has internalized the essence and objective of Universal Declaration of Human Rights, Covenant on Economic, Social and Cultural Rights and the Convention on Elimination of All Forms of Discrimination Against Woman. Any matter which discriminates woman by virtue of sex for joining any kind of public service can not be consistent with the constitutional provision.

Article 20(2) has provided the Right to Reproductive Health and Reproduction to the woman, under which state has to play dual role. Firstly, right to reproductive health shall not be restricted and secondly, reproductive health should be promoted. By nature, right to reproductive health is the right inalienable to woman. All the rights as to when and how to use or not to use is also vested in woman. This is the matter which depends on woman's will. The state cannot cause and obstacles or barriers in this matter. To create restriction on the right to reproduction directing to use or not to use is against the Right to reproductive health. So if, as stated, by the petitioner, the state regulates the matter by providing that one may not conceive a child during the Military Police Basic Training, more rights may be violated. If a pregnant woman is allowed to participate Basic Training for Military Police which require physical labour, the state may also be blamed of violating the provision of the Constitution. So, reasonable adjustment on both the subject and timely reform in disputed law is required thereto.

Article 21 of the Constitution states that economically, socially, and educationally backward communities including woman shall be included in the structure of the state on the basis of principle of proportionate inclusion. This shows that different classes and

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communities including woman are economically, socially and educationally backward. Discriminatory treatment does not help the people who are prohibited from the mainstream to make them participate proportionally in the structure of the state.

It is not that all the discriminations are finished or all get equal opportunity because of the fact that Constitution provides for it. Attention should be paid to its enforcement aspect also. If state activities are not concluded towards this direction, there is possibility that civil rights of people contained in the Constitution became the matter of decoration.

Lets discuss on the second question which is need to be decided. Petitioners have claimed that the legal provision contained in the Rule 4(4) of the Regulation Regarding Military Police, 2001 is against different international treaties, agreements and declarations. To settle this matter lets look at the international treaties and agreements related to the Human Rights which provide for the gender equality.

The Universal Declaration of Human Rights, 1948

Article 16(1): (1) Men and women of full age, without any limitation due to race, nationality or religion, have the right to marry and to found a family. They are entitled to equal rights as to marriage, during marriage and at its dissolution.

Article 21(2): Everyone has the right of equal access to public service in his country.

Article 23(1): (1) Everyone has the right to work, to free choice of employment, to just and favourable conditions of work and to protection against unemployment.

Although the Universal Declaration of Human Rights, which was adopted and declared by the Proposal No. 217(a)(3) of the UN General Assembly on 10th of December 1948, does not have the compulsive force, it is Nepal's duty to pay highly moral support and commitment towards it. According to its Preamble rights of man and woman shall be the same. Article 1 states that all human beings are born free and equal in rights. Article 2 has provided that no discrimination shall be made on the basis of sex and Article 7 guarantees the equality before the law and equal protection of law. Similarly Article 16(1) guarantees the freedom in marriage and internalizes that no discrimination shall be made on the basis of marital relationship. Article 21(2) provides for equal access to public service and Article 23(1) encompassed the right to free choice of employment, reasonable and compatible condition of job and the

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right against Unemployment. It is the duty of Nepal to respect and honour the international attitude expressed in different international forum including Vienna Conference organized to express commitment to the Universal Declaration of Human Rights.

International Covenant on Economic, Social & Cultural Rights, 1966

Article 6(1): The States Parties to the present Covenant recognize the right to work, which includes the right of everyone to the opportunity to gain his living by work which he freely chooses or accepts, and will take appropriate steps to safeguard this right.

This covenant, which Nepal has ratified on 14 May, 1991 without any declaration or reservation, has included the provision such as equal rights between man and woman. Right to work and employment and right to equal wage for equal work shall be guaranteed. And by the reason that someone is a woman, she shall not be compelled to do a work of lower grade than that by the man.

Convention on Elimination of All Forms of Discrimination Against Woman, 1979

Article 1: the term "discrimination against women" shall mean any distinction, exclusion or restriction made on the basis of sex which has the effect or purpose of impairing or nullifying the recognition, enjoyment or exercise by women, irrespective of their marital status, on a basis of equality of men and women, of human rights and fundamental freedoms in the political, economic, social, cultural, civil or any other field.

Article 7(b): To participate in the formulation of government policy and the implementation thereof and to hold public office and perform all public functions at all levels of government.

Article 11(1):

- (a) The right to work as an inalienable right of all human beings;
- (b) The right to the same employment opportunities, including the application of the same criteria for selection in matters of employment;
- (c) The right to free choice of profession and employment, the right to promotion, job security and all benefits and conditions of service ...

Nepal has ratified this covenant without any declaration or reservation on 22 April 1991, which was adopted by the General Assembly on 18

December 1979 with the objective of eliminating all forms of discrimination against woman, and which came into force from 3 September, 1981. The preamble of this convention has stated that the woman's capacity should be developed because any type of discrimination against woman violates the principle of equality and respect of human dignity. Similarly, this convention addresses the matters like increment in the opportunity of employment and guarantee of the maximum participation of woman. It is not that all the states can enforce or shall enforce all the commitments expressed in international conventions and agreements at a time. Economic, social, cultural and political conditions of a particular country guide on these matters. However, the state structure must be appeared that it is moving towards fulfilling commitments expressed internationally. It means that the states shall make an effort towards enforcing the commitments expressed in international treaty and agreements even if they cannot be enforced at a time, and it is a duty of the state not to conduct any activity against the commitment.

Article 9(1) of the Treaty Act, 1991, has provided that in case of the provisions of a treaty, to which Nepal or Government of Nepal is a party, upon its ratification accession, acceptance or approval by the Parliament, inconsistent with the provisions of prevailing laws, the inconsistent provision of the law shall be void for the purpose of that treaty, and the provisions of the treaty shall be enforceable as good as Nepalese laws.

While looking at the legal provision, not only that the treaty, to which Nepal is a party and ratified from the parliament, is enforceable directly, it is at the higher rank than Nepal law.

Similarly, according to sub-Article (2) any treaty, which has not been ratified, acceded to, accepted or approved by the Parliament, however, to which Nepal or Government of Nepal is a party, imposes any additional obligation or burden upon Nepal, or Government of Nepal, and in case legal arrangements need to be made for its enforcement, Government of Nepal shall initiate action as soon as possible to enact laws for its enforcement.

This provision which is related to the domestic application of treaty not only incorporate the principle that state should respect the provision of treaty in which the commitment is expressed, but also that it assigns a duty to the state of making law for the purpose of bearing the liability and burden created by the treaty for the enforcement of the convention. This court, in a case of advocate *Sapana Pradhan Malla*

vs. Office of the Prime Minister and the Cabinet (NKP 2062 No. 1, P10) and in a case of advocate *Sabin Shrestha vs. Office of the Prime Minister and the Cabinet* (NKP 2062, No 8, p. 913), has set a principle that since the provision of Convention on Elimination of All Forms of Discrimination Against Woman, 1979 are applicable as good as Nepalese law, the state has a duty to do accordingly. There is no reason of dissenting on the principle established by this court.

Lets discuss on the third question which should be decided. The claim of petitioner is that impugned legal provision is against the principles established by this Court. This Court has decided in numbers of disputes brought to it, ruling that discrimination against woman on the basis of gender is against the Constitution, international covenant, conventions and declarations.

Many of the legal provisions have been declared null and void and in many cases directive order was issued to the government giving order for reform as per the need of the time. Major ones of them are as follows:

Advocate Meera Kumari Dhungana vs. Secretariat of the Cabinet and Others: Since it was necessary to analyze property related family laws in totality while discussing Section 1 and 16 of the Chapter – "Partition" of National Code, a directive order was issued to table an appropriate Bill in the parliament after necessary consultation and study, keeping in mind of the law of this kind in other countries within, a year from the date of receiving this order (NKP 2052 No. 6, p. 468).

Advocate Sapana Pradhan vs. Ministry of Law and Parliamentary Affairs: A directive order was issued ordering for tabulation of an appropriate Bill in this issue in the parliament, if Section 26(1) of Land Act 2021 is required to amend (NKP 2053, No 2, Judgement No. 6140, p. 105).

Dr. Chanda Bajracharya vs. Secretariat of Parliament and others: A directive order was issued to table an appropriate Bill in the Parliament after study on different aspects of society and necessary consultation, since some discriminatory provisions exist in some legal provisions including No 12 of the chapter "Partition" and No. 2 of the chapter "Succession" (NKP 2053, No.6, Judgement No. 6223, p. 537).

Rina Bajracharya and others vs. Royal Nepal Airlines and Others: An order was issued which declared the Rule 16(1) (3) of the Regulation Regarding the Service of Staff of Royal Nepal Airlines, 2031, null an

void *ab initio* according to the Article 88(1), since it was *ultravires* to the Article 11(2) and (3) of the Constitution of the Kingdom of Nepal, 1990, and the gender equality (NKP 2057, No.5, Judgement No. 6898, p.376)

Advocate Meera Dhungana vs. Secretariat of the Cabinet and Others. Since No. 12A of the chapter "Succession" contradicts and *untravire* to the Article 11 of the Constitution of Nepal, 1990, it was declared void according to Article 88(1), to be enforceable from the date of the decision(NKP 2061, No. 4, Judgement No. 735, p. 377).

Advocate Meera Dhungana vs. Secretariat of the Cabinet and Others: A directive order was issued to the Office of the Prime Minister and the Cabinet to enforce a new law in compatible to Human Rights Convention, in appropriate time after finding out the laws and Regulations which are contrary to the Constitution and Human Rights related Conventions to which Nepal has given recognition. (NKP2061, No.4, Judgement No. 7354, p. 387).

Raju Prasad Chapagain vs. Secretariat of the Prime Minister and the Cabinet and Others: A directive order was issued to the name of Office of the Prime Minister and the Cabinet to make a standard taking into account of the international conventions including the delivery leave for the protection of motherhood and on the basis of that to manage for necessary things about the minimum period of delivery leave so as that no lesser leave can be provided to the woman worker and personnel than that fixed by the Rule.

Dil Bahadur Bishwakarma, Chairman of Federation of Dalit Non-Government Organizations vs. Secretariat of Cabinet and Others: A directive order was issued to declare an act of sending woman to *Chaupadi* (a cottage made for cattle) during her menstruation, a dogma; to find out the health related activities about it and report to the Ministry of Health and the Supreme Court; to make and enforce a manual for the elimination of any kind of discrimination against woman; and to make law after comprehensive study on the matter (NKP 2062, No. 4, Judgement No. 7531, p. 492).

Advocate Sapana Malla vs. Minisry of Law, Justice and Parliamentary Affairs: A directive order was issued to the Office of Prime Minister and the Cabinet to make a law based on the principle of equality, because the legal provision prevailing in the Section 4(3) of the Social Behavior Reforms Act, 2033, provides for more punishment to the bride side in a same crime; and it is not appropriate to prevail such law, since it is

against the right to equality (NKP 2007, No. 8, Judgement No. 7742, p. 972).

Advocate Meera Dhungana vs. Office of Prime Minister and the Cabinet and Others: No. 7 of the Chapter " Property of Woman on Partition", which invalidates transfer of property rights acquired by reason of marriage, had been declared null and void, since the legal provision had narrowed down the rights related to ownership and the right to marriage (NKP 2007, No.8, Judgement No. 7743, p. 979).

Advocate Prakashmani Sharma vs. Office of the Prime Minister and the Cabinet and Others: A directive Order was issued to the Office of the Prime Minister and the Cabinet to reconsider legal provision existing in No. 16 of the Chapter "partition", so that it become compatible To Whom It May Concern: Article 11 of the Constitution, Convention on Elimination of All Forms of Discrimination Against Woman, 1979, International Covenant on Civil and Political Rights, 1966, International Covenant on Economic, Social and Cultural Rights, 1966 (NKP 2062, No. 8, Judgement No. 7577, p. 931).

Advocate Chandra Kanta Gyanwanli vs. Office of the Prime Minister and the Cabinet and Others: A directive order was issued to make appropriate law or amend or repeal laws regarding No. 9 of the chapter – " Marriage" of *National Code* taking into consideration of social situation and values, since the aforementioned law discriminates between female and male (NKP 2001, No. 11, Judgement No. 7459, p. 1418).

Advocate Meera Dhungana vs. Office of the Prime Minister and the Cabinet and Others: *Provisio Clause* of Rule 10 of Royal Nepal Army (Pension, Gratuity and Other Facilities) Regulation, 2033 was declared void since it contains the provision which discriminates between married daughter and unmarried daughter; and between married daughter and married son, thereby contradicting to the Article 11 of the Constitution (NKP 2064, No.6, Judgement No. 7854, p. 699).

Advocate Prakashmani Sharma vs. Office of the Prime Minister and the Cabinet and Others: Since the workers working in the cabin and dance restaurant, dance bar, and massage parlours are bearing with the verbal, physical and sexual harassment and exploitation from customers, owners and administrative agencies, an order of *Mandamus* was issued to make appropriate legal provision for stopping such activities and guarantee their respectful employment;

and also issued directives to be remain in force until the law is made (Writ No. 2822 of the year 2062, date of order 2065/811 BS).

Jitu Kumari Pangen (Neupane) and Others vs. Office of the Prime Minister and the Cabinet and Others. A directive order was issued to the Ministry of Law, Justice and Parliamentary Affairs to pay necessary effort for making just to the provision existing in No. 3(6) of the chapter "Rape" which provides for main punishment lesser than the additional punishment, and the discriminatory punishment between marital rape and non-marital rape (NKP 2065, No. 6, Judgement No. 7973, p. 644).

Advocate Sapana Pradhan Malla and Others vs. Office of the Prime Minister and the Cabinet and Others: A directive order was issued to make an appropriate provision so that husband and wife don't feel discrimination. Regarding No. 9 and No. 9A of the chapter "Marriage" of *National Code*, which is not compatible to the provision of Interim Constitution of Nepal, 2007 and Convention on Elimination of All Forms of Discrimination Against Woman to which Nepal is a party (NKP 2065, No. 8, Judgement No.7997, p. 917).

Advocate Prakashmani Sharma and Others vs. Office of the Prime Minister and the Cabinet and Others: A directive order is issued to the Office of the Cabinet to table a draft Bill for making a law which covers every aspect of rights of women who are victim of the problem of Prolapsed Uterus and the issues of woman's reproductive health. (NKP 2065, No. 8, Judgement No. 8001, p. 956).

Aforementioned principles are some selected orders issued from this Court for the promotion of gender justice. Besides, this court has decided numbers of other cases and positioned itself in favor of the gender equality. It can be felt that monopoly of man existing in the society over property rights has been diminished and gradually it is becoming gender- friendly because of the orders and the directives issued from this Court especially on certain rights of woman over paternal property. Besides this, the legal provision which provides different qualifications or the conditions of service to the woman in comparison to man for entering into government or public service and to enjoy those services, have been declared void and thereby right to occupation and profession have been safeguarded. Similarly, this court has issued different orders and directive orders to the government regarding the subjects like health, education, employment and social security of woman. This court has made the concern agencies aware that the state agency shall be active towards stopping

dogma related misbehavior happening against woman in the pretext of religion, culture and tradition; that the legal provision which encourages such activities shall be declared void; and on the matters which require continuous reform.

It is found from the study of above mentioned principles that this Court has directed the concerned agencies to arrive at the conclusion after comprehensive discussion for reform; and to make changes in relevant legal provisions keeping in mind the gravity of subject matter, nature of law, its social impact and technical aspect, instead of declaring all the laws which are asked for declaring void and claimed as contradictory to the Constitution.

Lets discuss on the last question- whether the writ should be issued or not, which this Court has to answer. It is obvious that the impugned Rule 4(3)(h) and Rule 4(4) of Regulation Regarding Military Police, 2001, has provided for additional conditions to woman in comparison to man by providing that she should be unmarried or single, and she must not marry during the period of the training. These are the additional conditions for joining the post of Military Police where nature of work is same. In case of man, it's acceptable even if he is married or his wife is alive but in case of woman, she must be unmarried or single; and no marriage is allowed during the period of Basic Training. These conditions are imposed not by other reason than the gender issue.

The Universal Declaration of Human Rights has accepted that all man shall be free by birth and equal in terms of utilizing the rights, and the International Covenant on Civil and Political Rights has also adopted this matter. Similarly, the fact that no discrimination shall be made on the basis of sex and marital status is accepted worldwide through International Covenant on Economic, Social and Cultural Rights and Convention on Elimination of All Forms of Discrimination Against Woman.

It is duty of Nepal as a member of the United Nations to be positive towards the Universal Declaration of Human Rights adopted by the General Assembly. Moreover, Nepal has expressed its commitment to the international community by participating the Vienna Conference organized for expressing the commitment for enforcement of the Declaration. Similarly, since Nepal has become party to International Covenant on Civil and Political Rights, International Covenant on Economic, Social and Cultural Rights and Convention on Elimination of All Forms of Discrimination Against Woman by ratifying those

covenants and conventions. It is obvious according to Section 9 of Treaty Act 1990 that state system should move forward to enforce these international instruments.

There are many instances in which this Court has, time to time, issued directive orders to the government making it aware that the state should work towards the maintaining non-discrimination on the basis of sex and marital status and the promotion of gender justice. More than that, through decision on the disputes this court has declared Nepal laws that discriminate citizens on the basis of the gender, void. Moreover, directives are issued to the government and the parliament to reform many of such laws. Discriminatory behavior should not be allowed. It is the jurisprudential standard developed till now by this court regarding the gender justice. Since sufficient discussion has already been made above in relevant context, it is not necessary to repeat it here.

It cannot be negated the fact that the state agencies are working towards the promotion of gender justice especially after the enforcement of the Constitution of Nepal, 1990. This Constitution has guaranteed the right to equality, freedom and justice to Nepalese people as Fundamental Rights on Part III. The Interim Constitution of Nepal 2007, which repealed the earlier Constitution, has widened the scope of the Fundamental Rights more. Right to live respectfully is added under the right to life. Under the right to equality the scope of positive discrimination is widened for inclusion of marginalized people including woman, backward class or the community into the mainstream of the state structure. Similarly, many rights including the right to so employment, woman's right and right to social justice have been guaranteed constitutionally. During this period efforts have been made through contemporary reform in various laws because of the impact of the orders issued by this Court. Act Regarding Reforms in Some Amendments in the laws Related to the Gender Equality, 2007 is one of the instances.

Impugned Regulation Regarding Military Police, 2001 is issued under the Military Act, 1959 which is already repealed and now Military Act, 2007 is in force. Article 7 of the Military Act, 2007 has adopted the idea of making the Nepal Army inclusive. The task of reforming and amending the Regulation Regarding Military Police according to the new constitutional and legal provision is not completed yet and commitment for working further to this direction is expressed in written responses of the respondents. Since respondents themselves are aware and active towards making the Regulation Regarding Military Police, 2001 inclusive in line with the Military Act, 2007 through

necessary amendment, change and reform on the impugned provisions, it is appropriate to call attention of the government for paying attention to the situation of gender justice while reforming the rule.

Regarding the logic of the respondent that biological changes will occur in woman's body after marriage thereby causing negative impact on their health, if they take Basic Training for Military Police. It is appropriate to find out solution through technical approach to these technical matters like - whether adverse effect to the health of a married woman and her foetus happen, if she takes part in Basic Training for Military Police; or are there any way outs to minimize the effect? In this context it is essential to take into account of the woman's reproductive rights conferred by the Constitution. It is appropriate to come into conclusion after conducting study and research by the experts of the related subject while reforming the regulation which is, as stated above, being drafted in line with the provision and objective of the Military Act, 2007. Besides this, it has become necessary to make suitable amendment and reforms to the impugned Regulation Regarding Military Police, 2007 after comparative study of the legal provision of some other countries which are sensitive in the gender justice, including the neighboring countries; and after conducting study and research on the social and cultural situation of our country including on the subject like condition of employment of woman.

Therefore, the Bench, hereby issues an directive order to the Prime Minister of Nepal and the Cabinet to reform the impugned provision of Regulation Regarding Military Police, 2001 in line with the reason stated in the aforementioned paragraphs, Constitutional and legal provisions, the provisions of the International Conventions to which Nepal is a party and the principles developed by this Court. Do handover the file as per the regulation after managing for sending a copy of this order for information to the defendants' offices through the Office of the Attorney General.

We concur above decision.

Justice Ram Kumar Prasad Shah

Justice Avadesh Kumar Yadav

Done on 17th Baishakh, 2066 B.S. (30th April, 2009).



Concept of fast track Court has been incorporated into our Courts hierarchy to try and hear cases involving women and children of much vulnerable state.

Supreme Court, Division Bench
Hon'ble Justice Balram K.C.
Hon'ble Justice Abdhesh Kumar Yadav

Order

Writ No. WO - 0424 of the year 2064

Subject: Mandamus et.al.

Petitioners: General Secretary of Women Rehabilitation Center located in Lalitpur Sub-Metropolitan City Lalitpur district Advocate Jyoti Paudel on behalf of the Center and on her own, et.al.

Vs

Respondents: Government of Nepal, Office of the Prime Minister and the Council of Ministers, Singha Durbar Kathmandu, et.al.

- **Nepal can not derogate from its treaty obligation once it becomes a party of a treaty or convention. After being state party to a treaty or convention, the provision of the treaty or convention should be complied with verbatim in good faith.**
- **Until and unless the thinking, idea and practice assuming women inferior to men is abolished by law and awareness rose in the society and criminalize the culprit, the discrimination against women will not be ended. Therefore, it is the necessity of the day to make laws incorporating the aforementioned provision of CEDAW.**
- **It is not appropriate for the court to intervene the matter of legislative policy in accordance with extra-ordinary jurisdiction of the court. But, whereas Nepal has been a member of CEDAW long ago, and whereas, Article 156 of the Constitution has provided for the effectiveness of the treaty or convention of which Nepal has been a party, and**

whereas, there is primacy of treaty obligation as Section 9 of the Treaty Act, 2047 provides for that any provision of a treaty or convention of which Nepal is a party happens to be inconsistent with a provision of Nepal law, the Nepal law will not come into force to the extent of inconsistency and the provision of the treaty or convention will come into force, and whereas, our unique legal system does not have anything in the latest Act Domestic Violence (Offence and Punishment) Act, 2066 with respect to investigation, prosecution and related issues of a complaint filed by a victim of domestic violence; and there is not effective punishment against the perpetrator, and whereas there is no separate arrangement to settle such kinds of serious cases speedily in order to provide justice to the victim, and there is no provision for rehabilitation and relief of the victim; it seems that Nepal has not fulfilled its Treaty Obligation, it seems that this court, as the guardian of the fundamental right of citizen, can issue appropriate order in the name of the government.

Balaram K.C, J: Summary and the decision thereto of the writ petition submitted pursuant to Article 32/107 (2) of the Interim Constitution of Nepal, 2063, is as follows : -

Women Rehabilitation Center in which the writ petitioner is also involved, has been working as a social institution for protection, promotion and certainty of the right of the women who are suppressed, frowned upon and backwarded culturally and economically. I, the applicant have been carrying out advocacy as a Human Right activist for their Human Rights protection and special protection measures for those women who are backwarded in terms of gender inequality, social, economic and cultural means for centuries.

For the purpose of maintaining meaningful equality by ending discrimination between man and women, the General Assembly of the United Nations, on 18 December 1979, as passed a Resolution No. 34/180 and it is open for accession, signature and ratification; and as the Convention on Elimination of All forms of Discrimination Against Women (CEDAW) has been signed and ratified by Nepal, and as, the section 9 of the Treaty Act, 2047 provides for that the provision of such ratified treaty supersedes the provision of Nepal law to the extent of inconsistency with the treaty, and thus, the provision of the CEDAW has to, with respect to the treaty, be enforced as Nepal law.

It is found that acid has been used in violence done or committed against women in the countries of South Asia including Nepal and India. Such crime is on the rise in Nepal since there is no clear and stringent law in Nepal against such serious crime. Due to traditional mindset, applicant Sadina Khatun was beaten up by her husband in the summer of 2063 while she was breast feeding her 3 years old daughter and acid was poured upon her and her daughter whom she was breast feeding. As a result, it became very painful and her faces as well as hands were burnt down making her ugly. It was reported to the police but not heard. Similarly, acid was poured upon face, throat and arms of the applicant Rita Devi Mahato in April (Baisakh) of 2063 in connection to a row between some people in the villages and relatives. As a result, her right eye was smashed down, her throat and arms were burnt down completely making her face ugly. As a result of the same, she has been a person of hatred in the society. As the state is required to exert stringent punishment against those who commit such heinous inhumane crime and victim has to be provided with compensation and safe shelter on behalf of the state, and as, the state has not properly heeded these matters, this has caused violation of rights guaranteed by the constitution of the state and provided by Section (5) of the Universal Declaration of Human Rights 1948, International Covenant of Economic Social and Cultural Rights 1966, Section 2 (b) and 14 of CEDAW, and therefore, we have come here with this petition.

Thus, the writ petition prays that the rights pertaining to women guaranteed by Articles 12 (1), (2), 20 of the Interim Constitution 2007 have been violated, and as, the penal provisions of the prevalent laws are not sufficient at par with the gravity of the crime, and as, such victim women has to be provided with adequate compensation for the loss, and as, necessary policies and laws have to be made on behalf of the state for rehabilitation and safe housing of such women, the petition demands for appropriate order including mandamus for amendment and making of necessary laws pursuant to section 2(b) of CEDAW. A single bench , on 29th Kartik ,2064 makes an order to write the respondent to submit their written reply within 15 days of the recipient of this notice to state clearly the incidents and why an order as sought by the petitioner should not be issued. Then submit before the bench giving special priority.

The government of Nepal stated in its written submission that prevalent laws have been used in a non-discriminatory manner in a basis of equality, the writ petition does not merits for any prior right.

The ministry prayed for repeal of the writ petition as the petition does not have any propriety.

What particular act of this office has violated the rights of the applicant? It is not written clearly. As the provision of international treaty can not be invoked directly as a matter of right, the pleading of the application made on the basis of international treaty is not consistent with law.

As law is always changeable, the state goes on changing law in accordance with the wish and necessity of the nation. The state is serious even on the issues rose by the applicant and thereby has been addressing the issues to the extent possible by the resources and the government is serious to carryout such activities even in future. The state is committed to eliminate all activities that are discretionary against women and thereby creating an equitable society in the nation. Several legal provisions with positive discrimination to protect and promote the rights and privileges of all deprived and backwarded population including women, indigenous people, Dalits and Madheis have been in the use. As the matter of criminalizing and penalizing violence against women, domestic violence and torture by appropriate definition of the same are under consideration, and, law regarding the same would be made in appropriate time, it is not necessary now for the court to intervene and pass order on the same.

It is a matter under legislative jurisdiction as to what kind of amendment or law making is to be carried out and the applicant has not stated clearly as to what kind of rights of the applicant have been violated, and therefore, the writ petition with vague claims should be dismissed, states the written reply of the secretary of the government of Nepal, office of the Prime Minister and Council of Ministers.

The government is obviously serious and sentimental towards the issues raised by the applicant, and simultaneously, committed and active to control such discriminatory, degrading, unjust, unequal and inhumane acts and thereby subjecting culprits of such crime to punishment. The government is firm to stop all kinds of violence against women and also complying with the international treaty of the same. For this, the state has guaranteed special rights to women through Articles 12, 13, 18, 20, 21, 29, 32 and 107 of the Interim Constitution 2063, and have also provided for remedies in case of violation of the rights. Liability of the state, directive principles and policies of the state have been mentioned in part 4 of the constitution.

Women Commission Act, 2063 has been made and implemented for the protection and promotion of rights and privileges of the women. Amendment has been made in some Nepal Acts to maintain gender equality. The process of making a statute on control of the crime of domestic violence and punishment has already been started. Besides this, several activities have been carried out on behalf of the state for women development and empowerment. Thus, the government is always aware, cautious and active on the issues raised by the applicant, the claim of the applicant does not seem logical.

So far as the use of acid against women is concerned, such act is a criminal act and there is penal provision on law for such act, and therefore, the criminal who commits such crime, can be brought to the ambit of law, and can be punished, and thus, the claim of the applicant does not have propriety, and therefore, the petition should be quashed, prays the written reply submitted by the Secretary of the Ministry of Law Justice and Parliamentary Affairs.

This ministry has prepared a draft bill of Domestic Violence (crime and punishment), 2064 in order to penalize the violence committed by the persons of domestic relationship within home, and as the draft bill was sent to the Ministry of Law, Justice and Parliamentary Affairs for performance and consent, the performance and consent from the ministry has already been obtained from the ministry. As the Bill also requires consent of the Ministry of Finance, that will also be obtained and it will be sent to the Council of Minister for approval and thereafter it will be submitted to the present session of the legislature-parliament. As the ministry is, according to the approval of the council of minister, all committed to present the Bill to the present session of the parliament, the writ petition should be repealed, prays the written reply by the secretary of the Ministry of Women, Children and Social Affairs.

In this case presented before this bench as per the rule of daily cause list, the petitioner advocate Jyoti Poudel and learned advocate Tanka Dulal appearing on behalf of the petitioner said that even as the government of Nepal has signed several international treaties and agreements relating to Human Rights, it seems that the government of Nepal has not been able to manage them in its own constitution and laws. Section 5 of the Universal Declaration of Human Rights states that nobody shall be tortured. Even as the International Covenant of Civil and Political Rights, 1966, International Covenant on Economic, Social and Cultural Rights have prohibited torture and inhumane behavior and Nepal has ratified them, women like the writ petitioner Sadina Khatun and Rita Devi Mahato are still being perpetrated with

acid poured upon their body and are bound to bear the burnt in body by males and other groups. Instead, the culprits of such brutal crime are not subjected to punishment putting allegation to women. Violence, harassment and mistreatment are taken easily in society. The state has given protection to such person instead of punishing them and thereby caused discrimination upon women ending the right of women. Even as the interim constitution of Nepal has stated right to equality, right to life, they are not complied with. Therefore, an order of mandamus should be issued in the name of the government in order to making law for full compliance of Convention on Elimination of All Kinds of Discrimination Against Women (CEDAW) and other declarations on human rights and thereby protecting the rights and privileges of women and whereas learned joint attorney Mr.Kumar Chudal appearing on behalf of the government said that the government has protected the rights of the women in constitution and by making & complying with several laws, and therefore, the pleas of the petitioners are not true. So far as non-compliance is concerned, the constitution and laws have provided for that the aggrieved party may ask for remedy by approaching the concerned agency. Besides, the government has made commitment of CEDAW; the demand of the petitioner for a mandamus in the name of the government to make a law does not have any propriety. Therefore, the writ petition should be repealed.

The petition appears that it is filed pursuant to Article 32 and Article 107 (2) of the Interim Constitution of Nepal. Even as this petition comes as a Public Interest Litigation, the petitioners Rita Devi Mahato and Sadina Khatun seem to be victim of domestic violence. As the present petition is related to women's right and domestic violence against women, it can be seen as a private interest litigation and public interest litigation. It seems by the study of the petition that the Sadina Khatun and Rita Devi Mahato from among the petitioners that both of them are victim of domestic violence as the husband pour acid upon them. It seems by the petition that this court should carry judicial review. The petition demands order for the following:

- a) Women are being discriminated against the provisions of Convention on the Elimination of Discrimination Against Women (CEDAW) and women have been the victims of domestic violence.
- b) Sadina Khatun and Rita Devi Mahato from among the petitioners, whom the acid was poured upon, went to the police asking for action, punishment against the perpetrators

and compensation for them, but the police remained indifferent to them.

- c) Acid was poured upon victim Sadian Kahtun, one of the victims Rita Devi Mahato also lost one of her eyes, she was a symbol of hate by all, as her face was ugly and the punishment was not sufficient for the cruel crime of pouring acid.
- d) Women are being victim as there lack enough laws for legal action against those perpetrators of heinous crime like pouring acid, the petition asserts for the order requiring making of law with provision of enough punishment against the perpetrators who pour acid and for compensation for the victim women.

For the resolution of the issues raised in the petition, it seems that we need to look at the Interim Constitution of Nepal, 2007, Domestic Violence offence and Punishment Act, 2066 and CEDAW.

First of all, we are required to observe the Nepal law. In that regards it comes to know that the Domestic Violence (Offense and Punishment) Act, 2066 has come into force from 2066/1/4. It seems from the petition that both of the petitioners have been victim of physical and mental torture from their respective husbands. The husbands of both of the petitioners were frequently giving physical and mental torture and also poured acid in mouth. In this way, mouth was burnt down due to pouring of the acid and a 3 years infant daughter of Sadina Khatun was also poured with acid. Even as they were victimized by fatal and strong domestic violence like pouring in acid by their husband, there was no penal law for the same, and as, they were deprived of justice, the main demands of the petitioners consists of making of a comprehensive law providing for stopping of such cruel and inhumane act, compensation for the women, medical cost, provision of safe house for rehabilitation of the victim women and provision of adequate and sufficient punishment to those who commit domestic violence.

Pouring acid against women is a serious and severe crime. Acid is a fatal substance. Acid burns down part of body and exerts a huge pain. If acid falls upon mouth, it makes face ugly. Acid is equally fatal to women and men both but it is generally poured against women. Incidents are found that acid is poured damaging the face of women when a boy proposes to marry a girl and she rejects it whereas incidents of domestic violence by pouring acid have occurred when a women can not bring enough dowry and the husband and in-laws from the side of husband who do not like her pour acid against the wife or daughter in - law. The latest statute Domestic Violence (Offense and Punishment)

Act, 2066, brought for the protection of right and privilege of women does define "domestic violence" "mental torture" and "physical torture", it does not seem that the act of pouring in acid is covered within the definition of "domestic violence".

According to the demand of the petitioner, present laws are not enough to protect the women of Nepal against physical torture related domestic violence, mental torture and for the protection of right of women.

Domestic Violence (Offense and Punishment) Act, 2066 has come into force from 2066/1/4. It seems that the Act has defined "domestic violence" "mental torture", "physical torture" "sexual torture" "pecuniary torture". It seems that section 3 of the statute has criminalized domestic violence, and also seen a provision that anyone who commits a domestic violence shall be fined with Rs. 3000 to Rs 25000 or imprisonment of six month of both. The time limit to prosecute the case shall be of six month from the date of occurring an incident of domestic violence.

It seems that the victim can file a written or oral complain at the Police office or at the National Women Commission or at the local bodies. sub-Section (4) of Section 4 provides for a provision of getting the perpetrator present at the police office and taking his/her statement and sub-Section (6) has a provision of examination of wounds and injury of the victim. sub-Section (8) and (9) of Section 4 provides for a provision of mediation between the victim and perpetrator. Even as the name of the Act remains Domestic Violence (Offence and Punishment) Act, the preamble and definition of the Act makes it clear that it is not a an Act specific for violence against women but an Act in general against domestic violence. As domestic violence is criminalized and penal provision is provided for the same, there needs evidence to punish the perpetrator. But, there is not any provision anywhere in the Act about collecting evidence and prosecution. The law is silent who is to prosecute the case and who is to be plaintiff of the case. Sub-section (2) of Section 5 shows that the victim can directly file the case at the court if the victim wishes so. As our legal system is not a civil law system, court itself can not carry out investigation. Our prosecution system is accusatorial/ adversarial system and the constitution has separated the function of executive, judiciary and legislature and has assigned the judiciary to carry out the judicial function only, and therefore, the court can not prosecute anyone. Therefore, it should be considered how far it is consistent with the constitution to lodge complaint at the court directly by the victim.

The task of investigation and prosecution of crime falls within the domain of executive. As Article 100 of the Constitution, provides for the court to exercise function relating to justice, there seems to be a constitutional and legal question as what is to do with such application, if lodged, by the victim at the time when the constitution has not given the right to investigate crime to the court. The provision of punishment seems that the perpetrator is to be punished with fine of NRs. 3 to 25 years or imprisonment of 6 years or both.

The main demand of the petitioner seems that women are being victim of domestic violence, physical, mental, and sexual and economic torture due to insufficient and unable legal provisions to punish the perpetrators, and therefore, order including mandamus should be issued in accordance with Article 107 (2) of the Constitution to amend or make law pursuant to section 2(b) of CEDAW.

The major provisions of domestic violence (Offense and Punishment) Act, 2066 are mentioned here above. While looking at the above mentioned provisions of the Act, it seems that the Act is not seen to be effective even if wives and daughter-in-laws are tortured by pouring acid by husband and in-laws. It seems that the recently made law does not include other acts like torture by pouring acid in domestic violence or physical torture or mental torture. It seemed that women, daughter-in-law and wives had to take resort of the National Code Chapter On Battery by being plaintiff themselves even in the serious crime of pouring in acid. Similarly, the domestic violence (Offense and Punishment) Act, 2066 did not mention anything even for such serious crime as to how to carry out the investigation, who to carry out the investigation and the likes. Such a serious crime against women had to be a case to be initiated by government. Women who are victim of domestic violence can not arrest the perpetrator and take statement, get examined the wound upon them, hire law practitioner, collect evidence and thereby prosecute them. The Act had to include such serious crime under government prosecution and private prosecution as an option, then only, the women who have no one to support can get some relief from the government and women's right can be protected.

While looking at the provision of punishment, it seems that it has fine NRs 25,000 or imprisonment up to 6 months or both for a serious crime like domestic violence. Right to live without fear, torture, free and without tension can not be lost just for being a women or wife or daughter-in-law. Women should not be treated inferior to men just for being women. The act of domestic violence by inflicting torture to

women is a result of impunity due to lack of sufficient and effective laws, and on the other side, it is the result of lack of education wrong practices and customs. For eradication of this, the society should be educated with human rights, women rights and there should also be stringent penal laws. Both of them should move ahead simultaneously. While looking at the present law or the penal provision of the Domestic Violence (Offense and Punishment) Act, 2066, there is no condition to create a deterrent effect not to do violence against women and there would be stringent punishment if done, but in opposite of the same, the provision of the Act and the penal provision put it for a condition of impunity.

Article 13(3) of the Constitution prohibits to discriminate between citizens on the basis of gender whereas the provision of the same Article provides for the State which can make necessary arrangements for the protection of women, their empowerment and development. Article 20 (1) states that women should not be discriminated just for being women; and sub-Article (3) states that any physical, mental or any kind of violent act against women can not be done, and it will be punishable by law if done. This fundamental right is provided to each woman. In this respect, it seems that Domestic Violence (Offense and Punishment) Act, 2063 has not been able to play effective role against violence against women even if the fundamental law of the land, the Interim Constitution of Nepal, 2063 has provided fundamental rights to women and constitutional provision to protect and empower women by making special law by the state.

Regarding the demand of order sought by the petitioner to make or amend laws pursuant to section 2(b) of Convention on the Elimination of Discrimination Against Women (CEDAW), it needs to look into the provisions of CEDAW whether the government has fulfilled its commitment as a party to CEDAW with respect to protection of right and interest of Nepali women and elimination of discrimination against women.

It seems in the pleading that Nepal is yet to make necessary legal provisions in accordance with the provision of CEDAW and other effective policy measures for the protection of right and interest of women even after Nepal has signed and ratified CEDAW, and therefore, discrimination among women is still remaining in Nepal and Nepali women have still not been able to enjoy the rights provided by CEDAW. This is the important question.

Nepal ratified CEDAW on 22 April 1991. A nation becomes party to the convention after signing and ratifying it. After being party to a convention or treaty, the state party should comply with the convention or treaty verbatim at par with law. No derogation is allowed. The state party should be guided by pacta sunt servanda or Agreement must be honoured in good faith. According to section 21 of Vienna Convention on Law of Treaties 1961, a state party can not violate the treaty or convention due to domestic or internal reasons. It is an accepted principle of international law. This provision is stated in section 9 of Nepal Treaty Act. If a treaty or convention ratified by Nepal making Nepal a state party of the same in accordance with section 9, contradicts with a Nepal law, Nepal law will not supersede. The provision has it that the provision of the treaty or convention will come into force. Thus, it is clear by this that Nepal can not derogate from its treaty obligation once it becomes a party of a treaty or convention. After being state party to a treaty or convention, the provision of the treaty or convention should be complied with verbatim in good faith. There is no dispute on it.

Against this background, the applicant demands an order for full compliance of CEDAW for the protection of right and interest of women containing that there is rampant discrimination between men and women and full compliance of CEDAW has not been done. Now, we need to look into provisions of CEDAW that can be enforced as per Nepal law and Resolution No. 48/104 of UN General Assembly dated 20 December 1993, Declaration on the Elimination of Violence Against Women that can taken into notice by this court for the explanation of CEDAW. Article 1, Article 2 and Article 4 of the Declaration on the Elimination of Violence Against Women seem important. Article 1 reads as follows-

"For the purpose of this declaration, the term " violence against women" means any act of gender based violence that results in or is likely to result in physical, sexual or psychological harm or suffering to women including threats of such acts coercion or arbitrary deprivation of liberty whether occurring in public or in private life.

Article 2 seems important with respect to domestic violence. Article 2 (a) is related to present application. Article 2(b) seems to be related to work place and violence out of domestic chores. Article 2 states - Violence against women shall be understood to encompass but not be limited to the following.

(a) Physical, sexual and psychological violence occurring in the family, including battering , sexual abuse of female children in the household, dowry related violence, marital rape, female genital mutilation and other traditional practices harmful to women, non-spousal violence and violence related to exploitation.

This definition of 2(a) includes the domestic violence in Nepali context. National Action Plan Against Violence 2010 ,published by the Government of Nepal on 25 November 2009, accepts on its page 2 that in Nepalese context, wife, daughter-in-law are exploited by in-laws by treating them inferior as second class citizen, battery, hate, chiding, getting them work without rest, frowning upon for not bringing dowry and sexual exploitation. The declaration assumes such work as domestic violence. Article 4 (c) and (d) of the declaration points out to make necessary law for the control of such kind of domestic violence.

Article (4) C is as follows - Exercise due diligence to prevent investigate and in accordance with national legislation punish acts of violence against women whether those acts are perpetrated by the state or private persons.

Article 4 (d) is as follows - Develop penal civil labor and administrative sanctions in domestic legislation to punish and redress the wrongs caused to women who are subjected to violence. Women who are subjected to violence; should be provided with access to the mechanism of justice and as provided for by national legislation to just and effective remedies for the harm that they have suffered, states should also inform women of their rights in seeking redress through such mechanism.

This declaration made for more effective implementation of the provisions of CEDAW provides for launching civil labor and administrative mechanism including making penal law by state party to punish the perpetrator of the domestic violence for the purpose of giving justice to the victim of domestic violence. This also clarifies the legal duty of the government to make effective penal law at par the crime as well as prosecution and investigation of the crime for the purpose of providing justice to the women who is subjected to domestic violence.

Section 4 (H) and (I) of the Declaration seem important. Section 4(H) states that the government should allocate enough budget for relief and rehabilitation of the women in domestic violence. Section 4(I) asserts to "Take measures to ensure that law enforcement officers

and public officials responsible for implementing policies to prevent investigate and punish violence against women receive training to sensitize them to the needs of women.

Article 3 of CEDAW has also stated for the same. "State parties shall take in all fields, in particular in the political, social, economic and cultural fields, all appropriate measures, including legislation, to ensure the full development and advancement of women for the purpose of guaranteeing them the exercise and enjoyment of human rights and fundamental freedoms on the basis of equality with men.

Article 3 states steps to be taken by member states of United Nations to educate the society for the purpose of eliminating prevalent traditions, assumption and practices that mean women inferior to men or person of lower class. Whereas Section 4 states all steps to be taken to ensure equality between men and women. This provision gives special emphasis on the traditional practices and assumptions that women are inferior to men or person of lower class, society to be educated and other necessary steps to be taken. Besides, it states that proper and total steps should be taken to end discrimination between men and women. In our context, Article 2 (b) and (f) seem important considering the provision of Section, of the Treaty Act, 2047 that makes CEDAW enforceable at per Nepal law.

"To adopt appropriate legislative and other measures, including sanctions where appropriate, prohibiting all discrimination against women."

Article 2(f) is as follows -

"To take all appropriate measures including legislation to abolish existing laws regulations, customs and practices which constitute discrimination against women."

The major reasons of domestic violence are lack of education, wrong practices, customs, assumptions, poverty, unemployment, lack of effective laws, lack of awareness, domination of male upon women for a long time; and domestic violence is a result of these things. Control and eradication of these things requires education in society, awareness, improvement in economic condition, opportunities of employment and strong penal laws. The government should make necessary and appropriate laws and should gradually implement them to impart education to women, to inculcate a feeling on women that men and women are equal, to provide employment to women, to create

awareness among the women so that they themselves can fight for their right. Then only, women empowerment is possible. For the purpose of achieving these objects, Article 2(b) of CEDAW fixes a duty to make laws against discrimination in all aspects of discrimination against women.

Article 5 is also important, it says -

To modify the social and cultural patterns of conduct of men and women with a view to achieving the elimination of prejudices and customary and all other practices which are based on the idea of the inferiority or the superiority of either of the sexes or on stereotyped role of men and women.

While seeing Section 7 and Section 8 of the present application, both of them are victims of domestic violence. Both of the applicants are seen married. It is seen that Sadina Khatun from among the applicant was always beaten up by her husband and thereby exerting several physical and mental tortures. It is seen that husband poured acid upon Sadina Kahtun without any reason and by making artificial reasons. This is proved by the photograph appended.

Similarly, it seems that applicant Ritadevi Mahato also has same problem. It is seen that acid was poured upon her also by husband. It is seen by the application that the applicant was always beaten up and physically tortured by husband. It is seen by the application that both of the applicants were treated inferior from the side of husband just because of being wife or daughter-in-law, exploited, dominated them and treated them with dominating behavior on the basis of traditional bad assumptions and bad rituals that husbands have supremacy over wife. This has been prohibited by above mentioned Articles of CEDAW and the Declaration.

Marriage does not mean that husband or mother-in-law or father-in-law or any other in-laws from the side of house can behave the wife or daughter -in -law with degrading treatment, frown upon her, beat her, treat her inferior, hate her or subject her to any kind of domestic violence. Or, being daughter-in-law or wife does not mean of being inferior and no one loses personal dignity just for being wife or daughter-in-law.

Full consent is necessary for the purpose of obtaining validity of marriage whether it is same sex or between man and women. Members of a house including husband and wife are called family.

Article 23(1) of ICCPR states the family is the natural and fundamental group unit of society and is entitled to protection by society and state.

It seems from the application that the applicants have been victim of prevalent bad customs and bad rituals as defined in Article 1 and 2 of the Declaration and stated in Article 5 of CEDAW that have not been eradicated from Nepal. Nepali society remained in traditional practices and assumptions for a long time. The traditional Nepali society looked women especially wife and daughter-in-law as inferior to man. It is necessary to eradicate this. A civilized society can not tolerate this. It is constitutional duty of the government to eradicate such practices and customs. For eradication of this, we need –

a) Create Awareness b) Education c) Law making

Therefore, appropriate and legislative means need to be applied to empower women as per CEDAW and Declaration. Today, even after nearly twenty years of Nepal being member of CEDAW, it seems that women especially the wife and daughter-in-law are being treated with the thinking that they are inferior than other members of the house. It is a matter to be taken on judicial notice by this court that except town areas, men in the rural area still need not to do domestic chores and the domestic chores need to be done by women, men live life of leisure and comfort with study and entertainment but women are deprived of the above mentioned facility just because of being wife or daughter-in-law and exploited socially, academically and physically and have also been victim of domestic violence. They should not be dominated, treated inferior and frowned upon just because of being wife or daughter-in-law. Reason for happening this includes that Nepal has not made effective and stringent penal law criminalizing discriminatory actions, practices, customs and behavior against women in compliance verbatim the provisions of CEDAW. Besides, the reason also includes that effective policy and program has not been implemented for education and awareness activities. It seems that the Domestic Violence (Offence and Punishment) Act, 2066 came into force from 2066/1/14. It seems that section 2(A) of the said Act has defined domestic violence. While looking at the definition of the said section of the Act - "domestic violence" means physical, mental or sexual torture exerted by any person to another person with domestic relation and this word also includes any other action like chiding and exerting emotional injury. The definition of Section 2 (A), assumes crime only up to a family act. But CEDAW has provision to criminalize not only domestic violence but also the cultural behavior based on practice and custom that treat women inferior than men. But

it seems that the Domestic Violence (Offense and Punishment) Act, 2066 does not include Article 3 of CEDAW especially Article 2 (f) and Article 5. The main reason for women to be victim of domestic violence, they required to work more than men, they are dominated and treated inferior is that law is not made pursuant to the provisions of Article 3, Article 2 (f), and Article 5 of CEDAW. As the present law Domestic Violence (Offense and Punishment) Act, 2066 does not include Article 5 of CEDAW and Article 3 of the Declaration; it seems that law to abolish the practice that women are inferior to men is not made. Until and unless the thinking, idea and practice assuming women inferior to men is abolished by law and awareness rose in the society and criminalize the culprit, the discrimination against women will not be ended. Therefore, it is the necessity of the day to make laws incorporating the aforementioned provision of CEDAW.

While looking with the concern of other question, it seems by the application that the police denied to accept the First Information Report (FIR) while the applicant had gone to the police after her husband poured acid upon her and she became ugly and the provision of punishment is also inadequate, therefore, law should be made providing for punishment in accordance with the gravity of the crime; and, the application also seeks order for necessary arrangement of safe service center for the victim from the part of the government.

It seems that domestic violence is defined in section (2) (A) of Domestic Violence (Offence and Punishment) Act, 2066. It seems that the definition does not include the crime of making women ugly by pouring acid upon women. It seems in the provision that physical torture should not be exerted, if done, it would mean domestic violence. Regarding punishment, section 13 provides for the same. While looking at the punishment, it does not seem that the quantum of punishment for such a crime like pouring a fatal thing acid upon women is capable of putting deterrent effect and thereby unable to provide justice to women. It is a policy matter of legislative wisdom which of the act is to define as crime and what quantum of punishment is to be fixed for a crime. Since the matter of including the act of pouring acid within crime or the matter of increasing crime and making it of certain quantum, is a policy matter of legislative wisdom, it is not appropriate for the court to intervene the matter of legislative policy in accordance with extra-ordinary jurisdiction of the court. But, whereas Nepal has been a member of CEDAW long ago, and whereas, Article 156 of the Constitution has provided for the effectiveness of the treaty or convention of which Nepal has been a party, and whereas, there is primacy of treaty obligation as Section 9 of the

Treaty Act, 2047 provides for that any provision of a treaty or convention of which Nepal is a party happens to be inconsistent with a provision of Nepal law, the Nepal law will not come into force to the extent of inconsistency and the provision of the treaty or convention will come into force, and whereas, our unique legal system does not have anything in the latest Act Domestic Violence (Offence and Punishment) Act, 2066 with respect to investigation, prosecution and related issues of a complaint filed by a victim of domestic violence; and there is not effective punishment against the perpetrator, and whereas there is no separate arrangement to settle such kinds of serious cases speedily in order to provide justice to the victim, and there is no provision for rehabilitation and relief of the victim; it seems that Nepal has not fulfilled its Treaty Obligation, it seems that this court, as the guardian of the fundamental right of citizen, can issue appropriate order in the name of the government.

It seems in the National Action Plan Against Gender Violence published by the government of Nepal on 25 November 2001 that the government aims to implement several plans in the year 2010. Even as the plans are appreciable, it is not seen in these anything with respect to legal reform with respect to domestic violence. The action plan includes reform on law relating to gender violence.

Since women are treated with discrimination as inferior to men and behaved accordingly, present legal provisions are incomplete and inadequate with respect to serious crimes of domestic violence like making women ugly by pouring in acid in them; the following directive order is issued in the name of the government to do as follows:

1. It seems the two applicants had approached the police asking action against their husband who poured in acid in them. The weakness of the Domestic Violence (Offense and Punishment) Act, 2066 is stated above. Even if the police had taken the FIR, the Act is silent what right the police has concerning carrying out investigation and prosecution of the case. There is no provision in the Act. Due to the reasons mentioned above, broaden the definition of domestic violence with effective penal provisions and make legal provisions to prosecute the case of domestic violence with women victim by the government as plaintiff and also making option open for private prosecution; and as it is appropriate as far as possible to carry out the investigation by trained women police, amend the laws relating to domestic violence with women victim also including the matters mentioned above; and make legal provision to carry out the

investigation of crime of domestic violence with women victim by women police as far as possible.

2. As the victim of the crime of domestic violence against women are women, the state should, if the women victim of domestic violence wants, provide, free of cost, continuously women legal practitioner as far as possible, and if, women law practitioner are not available, gender law practitioners should be provided to them.
3. According to the current law the cases like domestic violence where victim is women generally fall under the jurisdictions of district court.

The district court assumes jurisdiction also in injustice arising from the domestic violence against women. Though the Section 7 of the Domestic Violence (Offense and Punishment) Act ,2066 has a provision of hearing such cases in a camera court (closed bench) however, its proceeding takes place in the open court and the a grieved women are barred from receiving speedy, fair and affordable justice. Hence, as far as possible, a fast track court presiding by a women judge is desirable in the cases of such nature. So was the case but for the time being it would not be possible because the number of women judges is very small. If the government is to comply with its duty, a court as provided in Article 14(3) of the constitution is required to be formed in order to safeguard the fundamental right of women mentioned in Article 20. Women and Children both are the more critical class of people. They need government patronage. All case of women victim and particularly the cases involved domestic violence against women, if tried in general court as other cases, women should feel humiliation though they may get justice despite unexpected delay. So, a separate fast track court for all criminal cases involving women and particularly the cases arising from the domestic violence shall be expedient to be formed for which the ministry of women, children and social welfare is called upon.

To form a fast track court to hear the criminal cases involving only women requiring appropriate law. It demands also for manpower, fund and physical infrastructure about which a preliminary study must be carried out. To do as above and submit report these for a 4 member committee is formed as under. Difficulties may arise while implementing the recommendation furnished by that committee through out the country at a time. Therefore, a directive order, so as to implement in due process is also issued to that effect.

Committee

▪ A joint- Secretary level representative of Women and Children Ministry	Coordinator
▪ Deputy Registrar, Supreme Court	Member
▪ A joint-Secretary level representative from the Ministry of Law	Member
▪ A women representative, designated by Women Commission	Member

This member committee, within 4 month from the date of commencement of the business, shall submit study report of the laws required to be amended, manpower and necessary fund in order to form fast track court. The report shall be implemented categorically. A copy of this ordered be forwarded for the knowledge of ministry of women and children and handed over the file of the case remaining it for the record of proceeding.

I concur above decision.

Justice Abadhesh Kumar Yadav

Done on 28th Shrawan, 2066 B. S. (12th August, 2009)

□

Necessary provisions for the recovery of litigation cost from the defaulter be incorporated in Supreme Court Rules.

**Supreme Court, Division Bench
Hon'ble Justice Kalyan Shrestha
Hon'ble Justice Avadhesh Kumar Yadav**

Order

Writ No. 22 of the year 2065

Case: Certiorari et.al

Petitioner: Dr.Bidyapati Kantha aged 51, Medical Superintendent Narayani sub-Regional Hospital, Birgunj
Vs.
Respondents: Government of Nepal (Ministry of Health & Population), et.al.

- **If any official exercises such power without fulfilling formalities and due process of law he cannot be presumed to have adhered to the states aim to guarantee the prevalence of good governance and transparency.**
- **If any civil servant does not discharge his responsibility according to law he is liable to be prosecuted only by adhering to the due processes of law and there is the need to follow the procedure as stated.**
- **Authority must not be misused deliberately, even though the concerned person has the legitimate right to do so.**

Kalyan Shrestha, J: The synopsis of this writ petition filed under Article 107(2) of Interim Constitution of Nepal, 2063 B.S, and order there upon is as under.

I, the petitioner, joined the government service as a Medical Officer of Sagarmatha Zonal Hospital, Rajbiraj in 2037 B.S and have served in various remote parts of the kingdom of Nepal. The list of placement and the period of service that I went through are namely;

Sagarmatha Zonal Hospital in Rajbiraj, from 207 to 2038, Bhimphedi Health post from 2038 from 2040, Kanchanpur District Hospital from 2040 to 2042, Rangel District Hospital from 2040 to 2044, Gorkha District Hospital from 2046 to 205, Hetauda District Hospital from 2051 to 2053, Jajarkot District Hospital from 2053 to 2055, Rasuwa District Hospital from 2055 to 2056, Sindhuli District Hospital from 2058 to 2060, Malangawa District Hospital from 2060 to 2062, Jhapa District Hospital from 2062 to date. Narayani sub -Regional Hospital, Birgunj.

In course of my service in Sarlahi Hospital, I was promoted to the vacant post at grade eleventh in the general health group of Nepal. Health service under the Ministry of Health and Population with the privileges of seniority with effect from 2062/12/26 on the recommendation of Promotion Committee of 2062/11/19 as per the decision of Government of Nepal (cabinet) dated 2063/3/19. Afterwards, I was posted to the position of Medical Superintendent of Mechi Zonal Hospital according to the Ministerial level decision of 2063/4/3 and thereafter posted to the position of Medical Superintendent (eleventh grade) at Narayani sub regional Hospital in Birgunj in accordance with the decision of Government of Nepal (Minister level) dated 2064/5/13. While at service in that position at that place in the hospital, I was instructed to report to the Ministry as per the decision of the

Government of Nepal (Ministerial level) dated 2065/2/1. Accordingly, I have been attending the Ministry of Health and Population, Ramshahpath, Kathmandu since then.

The official treatment of Honourable Minister with regard to me, the petitioner, is in contradiction to the right of equality provided under Article 13 of Interim Constitution. I am compelled to forebear the plight of being penalized in an illegal and arbitrary manner for no fault or wrong doing on my part which stands to contradict the constitutional right, which states, "All citizens shall be equal before the law. No person shall be deprived of the equal protection of the laws". And "There shall be no discrimination against any citizen in the application of general laws on grounds of religion, race, gender, caste, tribe, origin, language or ideological conviction or any of these".

The Ministerial decision of 2065/2/1 is in contradiction to the provision of Health Service Act 2053. Chapter 4 of the said Act has made provisions on the transfer, deputation and promotion. According to Section 20 of the Act, the authority to transfer and depute in respect of officials of officer level is vested with the Government of Nepal and to the position of subordinate level delegated to the specified authority. As against this, the petitioner is neither transferred nor deputed. The direction given to me to make official attendance to the Ministry falls neither under the heading of transfer nor deputation. The decision made by such a high level authority like the Minister to report to the Ministry from my place of posting is done arbitrarily and without any good purpose. It stands against the accepted principles of law and justice. For, the Health Services Act, 2055 has made a provision under which the act of transfer or deputation could be taken. The above decision is against the provision of Section 21(3) of the said Act also. Moreover, Section 21(5) of the Act does not allow deputing any officer for a period of more than a month. The fact is clearly evident that it is neither the case of transfer nor deputation in any way. As the Minister has evaded the provision of law prompted by his vested interest contrary to the law, I urge that the decision taken without legal base be declared null and void.

As I have been moved from the place of posting of Narayani sub - Regional Hospital in contradiction with the Health Services Act, 2053 to report to the Ministry without any good purpose, the decision dated 2065/2/1 be declared void, nullifying the posting of respondent No 3 and the order of Mandamus be issued, enabling me to take charge of my previous responsibility.

As the illegal and ill-motivated decision of the Minister incurred injustice to me, I was compelled to file the suit in the honourable court. So an order is issued to recover the cost of litigation from respondent No 1 and 2. This constitutes the substance of the writ petition.

What are the facts of the case? Is there any ground to deny issuing order as claimed by the petitioner? Respondent No 1, 2, 3 be notified enclosing a copy of petition, to send the written reply within 15 days from the date of receiving the order allowing the time taken to deliver through Attorney General's Office together with the concerned case file. A copy of notice is sent to Attorney General Office for reference. Respondent No 4 is asked whether he has any ground to submit to the court advising it to deny issuing order as claimed by the petitioner. Respondent No 4 be notified through the concerned district court enclosing a copy of petition and then to present himself to the court along with the written reply or to be present through agent within fifteen days from the date of receiving the order allowing the time taken to deliver. The case is submitted after receiving the written reply according to the rule or upon the expiry of the time given. Besides, the petitioner has requested for giving priority to hearing and since the petitioner has been attending the Ministry as directed without being assigned any duties, the petition is to be heard earlier the priority is hereby given to the case as per the sub-rule 6 of Rule 63(3) of Supreme Court Regulation, 2049. Similarly, the petitioner in paragraph 3(E) had claimed the recovery of the litigation cost, the petitioner be notified to submit the details of such cost to the extent possible as incurred till to date, including the details of cost to be incurred up to the date of closure of the case; such being the substance of the order of the court dated 2065/4/23

Regarding the suit filed by the petitioner in this court claiming illegality of the decision of the Government of Nepal (Ministerial level) dated 2065/2/1 concerning the letter to report the Ministry departing from the Narayani sub -Regional Hospital, Birgunj, the respondent (No 2) justified its acts on the ground that the Ministry intended to appreciate his skill and capabilities acquired in various district and utilize it in addressing how the common people could have an easy access to the civil health services and in bringing necessary reforms in the related policies and rules. In a bid to utilize his theoretical and practical knowledge, he was therefore deputed to the Ministry for a short period. Since this act does not infringe his legal rights in anyway his contentions are worthy of being declared invalid. In fact, his attendance at the Ministry for a short period is meant not for penalizing but for utilizing his intellectual expertise. The Ministry needed his services and

he was therefore instructed to report to the Ministry as per the decision of 2064/2/1 and subsequent letter No. 2066/67 dated 2065/2/2. It was not meant for penalizing him. The motive behind the instruction for him to attend to the Ministry was the need of his services in the Ministry but the petitioner's interpretation of the issue was backed by wrong intention of deliberately wasting the time of the court.

So his claim is worth to be declared invalid, such being the substance of the written reply of the Ministry of Health.

Regarding the suit filed by the petitioner in the honourable court claiming illegality of the decision of Government of Nepal (Ministerial level) dated 2065/2/1 concerning the letter to attend to the Ministry departing from the Narayani sub- Regional Hospital, Birgunj, the Ministry was motivated with the intention to introduce timely reform of the health policies to ensure that the common people get an easy access to health services in the present context, as the petitioner has acquired working experiences in many districts and had gained skills and abilities that merit proper utilization.

The petitioner was given an assignment for a short period in the Ministry for utilizing his theoretical and practical knowledge. Since this does not violate his legal right, the contention of the petitioner is clearly invalid. In fact his attendance at the Ministry is not meant for penalizing but for utilizing his intellectual expertise. The Ministry needed his services and he was therefore instructed to attend to the Ministry as per the decision of 2064/2/1. It is not meant for penalizing or harming the petitioner.

The intention of the instruction to attend at Ministry is to make proper utilization of his services to the Ministry as per the need but the petitioner interpreted this as wrong intention causing the waste of time of the court. So the claim is itself invalid, such being the substance of the written reply of the Ministry of Health and Population.

Since the medical superintendent Dr. Bidyapati Kantha of Narayani sub -Regional Hospital had reported to the Ministry the respondent was deputed to act as caretaker medical superintendent to handle the day to day activities of the hospital as directed by the letter of the Ministry of Health and Population dated 2065/2/7. As he was discharging his assigned duties, he was not in a position to violate the petitioner's right. So the learned attorney pleaded that the writ petition be dismissed; such being the substance of the written reply of the caretaker medical superintendent Dr. Suman Prasad.

The authority to transfer and depute the civil servants of the officer level is vested with the Government of Nepal as per the Section 20 of the Nepal Health Service Act, 2053. Since it is evident that the decision concerning the petitioner is taken at the Ministerial level on 2065/2/11 an order was issued to submit the ground under which the power was exercised by the Minister as per the Section 20, to be submitted in the next hearing by the Attorney General's office; such being the order of the court on 2065/12/2.

In this regard the order of this court on 2065/12/2 was issued to submit the ground for the use of authority in next hearing as per Section 20 of the Act in respect of decision of Ministerial level regarding the petitioner. However, the learned Joint-Attorney Balam Sharma informed the bench on the day that he has not yet received the said document from the concerned office. So submitting the said document as ordered be deferred to the next hearing for the submission of the ground as per the rule; such being the order of the court on 2065/3/7

In regard to this particular case submitted according to rule as per daily cause list advocate Bijaya Kumar Singh, on behalf of petitioner pleaded that his client was summoned through an official letter to report to the Ministry in an illegal manner and the act of sending the letter to that effect is ill-motivated. Even if the deputation is done according to Health Service Act and Regulation it could be done at the most for a period of one month as per the legal provision. But in the name of Ministerial decision; the petitioner was summoned as against the legal provision to report to the Ministry and retained him without giving any responsibility and assignment for several months. As this act of the Ministry violated the provision of Act and regulation the petitioner be reassigned to the previous post; such was the pleading of the learned advocate of the petitioner. Moreover, he pleaded that his client was compelled to sue against the respondents for apparently violating the law on the part of the Ministry and correcting his wrong act and seeking justice. It was also pleaded to recover the cost of litigation from the respondents, the Minister and the Ministry. On behalf of respondents the Government of Nepal, learned Government Joint Attorney Rajendra Pokharel pleaded that as the Minister has the authority to transfer Civil servants, he can reassign any staff from one station to another station. The act of bringing petitioner from Narayani sub- Regional Hospital to Health and Population Ministry is in accordance with the law. As the petitioner has been lately assigned with the responsibility also, the petition deserves to be dismissed. On behalf of Narayani sub- Regional Development Committee, advocate

Deepakraj Bhandari pleaded that his clients- Hospital Development Committee and its chairman, had not violated the right of the petitioner and his clients should not have been sued; the petition deserves to be dismissed; such was the pleading of the learned counsel.

In contemplating for the conclusion of the case it appears that the so called decision of the Ministerial level instructing to the petitioner by the letter to report to the Ministry is in line with the Section 20 of Nepal Health Service Act, 2053 according to which, the authority to transfer in regard to civil servants of officer level is conferred to the Government of Nepal and is regard to those at the subordinate level, the authority rests with the competent authority as per the provisions of the law. At the same time Section 21(5) of the Act has a provision that no officer shall be deputed for a period exceeding a month. In contradiction to the above both provisions of law the petitioner was instructed to report to the Ministry following the so-called decision of the Ministry of Health and Population. It was claimed that such an act was prompted for evading the provision of law. Since such an act is illegal it was requested to declare the act as void and also issue an order for recovering the litigation cost; such being the substance of the petitioner's writ petition. The petitioner was summoned to report to the Ministry with the intention to appreciate his intellectual expertise; not to penalize or inflict harm on him in any way; such being the substance of the written reply of the respondents.

The writ petitioner was promoted to the position of the eleventh grade officer under the Nepal Health Service by the decision of Government of Nepal dated 2065/3/19 and was transferred to the post of Medical Superintendent of Narayani sub -Regional Hospital, Birgunj from Medical Superintendent of Mechi Zonal Hospital, Bhadrapur Jhapa, by the decision taken on 2064/5/13 under the Section 20 of Nepal Health Service Act 2053. There is a provision for effecting transfer and deputation of civil servants under that service. Accordingly, the legal provision confers the authority of transferring and deputing civil servants at officer level to the Government of Nepal and civil servants of subordinate level to the competent or delegated authority. In the same way, it is mentioned that no officer can be deputed for a period not exceeding a month as per the section 21(5) of the Act. The letter delivered to the petitioner as per the so called decision taken at the Ministerial level has no mention of whether it was a case of transfer or deputation, the duration of assigned period and the reason for deputing to the Ministry. Similarly, there was no reference from where to draw pay and allowances etc. The legal ground for the issuance of the letter was also missing in the letter of 2065/2/2 Likewise, as it stands out, the

petitioner was assigned to Policy Planning and International Aid Division of the Ministry through the letter dated 2065.9.8 as per the decision of acting Secretary on 2065.9.7. It was done following the expiry of seven months from the date of issuance of the instruction letter to report to the Ministry dated 2065/2/2. Deputation of any civil servants is established by law and but the rule for instruction to attend office is not specified in the law. Similarly, the reasoning that the Ministry felt the need of his services is not clearly explained in the letter. Since no such thing is mentioned in the letter except the instruction to report to the Ministry the letter is not worthy to be treated as a deputation letter.

While exercising the given authority by the competent official, reference should be made to the legal ground, the reason for exercising the authority including justification. Besides, it should comply with the formalities and the due process of law.

If any official exercises such power without fulfilling formalities and due process of law he cannot be presumed to have adhered to the states aim to guarantee the prevalence of good governance and transparency.

If any civil servant does not discharge his responsibility according to law he is liable to be prosecuted only by adhering to the due processes of law and there is the need to follow the procedure as stated. Civil servants working under the Ministry should commit themselves to render their services as per the requirement of the Ministry and similarly the Ministry should have the capabilities to utilize the services of civil servants working under it in accordance with the law and procedures. The norms, values and procedures for instructing the civil servants must be adhered to, while conforming to due process of law. A good act done without following the due process or put into effect in a different way other than the prescribed regulation, even though it is done with good intention, does not merit for legal justification. The norms of rule of law underline the need to adhere to the due process of law to be followed by the civil bodies. If somebody performs good act while undermining the legal requirements, such an act cannot be deemed legally sound. Therefore an act done with good intent, without adhering to the legal process cannot be considered legally viable.

Authority must not be misused deliberately, even though the concerned person has the legitimate right to do so. The petitioner was called to report to the Ministry on 2065/2/2 from Narayani sub-Regional Hospital but he was retained there without being assigned

any responsibility until 2065/9/8. In the written reply of the respondent, however, it is mentioned that in appreciation of his expertise, he was summoned to report it to the Ministry to utilize his experiences by the Ministry, sounds self contradictory in itself.

The instruction letter of 2065/2/2 to the petitioner directing him to report to the Ministry, away from the Narayani sub- Regional Hospital has no reference to the legal authority under which the letter was issued. There was no mention of reason for reporting and the duration of assigned period, nor the source of pay allowances and other facilities etc that he would be allowed to draw from. Thus the act clearly reflects arbitrariness in nature. Hence the arbitrary act of summoning the petitioner stands in contradiction to the provision of Section 21(5) of Nepal Health Service Act, 2053. So the act of summoning to attend to Ministry and the letter of 2063/2/2 is declared invalid by the order of Certiorari. The order of Mandamus is issued to reinstate the petitioner in his previous official position.

Regarding the petitioner's claim for the recovery of the litigation cost, it appears that the respondent have made no reference to the claim in the written reply nor during the process of pleading. As against this they did not seem to deny this either. The petitioner was compelled to seek judicial relief in countering the act of respondents. In such a situation if one were to disregard the claim for the recovery of the litigation cost, it gives room for negligence of responsibility on the part of the decision makers. More over, the situation faced by the petitioner to take resort to the court for seeking justice was occasioned as a result of the illegal acts of the respondents. If one were to ignore the petitioner's claim of the recovery of the litigation cost, it could mean virtual rejection to the people in getting easy access to justice and also enforcing them to incur high penalizing cost in seeking justice. So on the basis of details submitted by the petitioner the Ministry be issued a direction to reimburse the petitioner's litigation cost from the Ministry of Health and Population. Moreover, to protect the people from facing such a situation in which they could be debarred from obtaining judicial relief the registrar of this court be issued directive to initiate the required legal step to that end for providing the appropriate legal provision for recovery of litigation cost from the defaulter. Furthermore, required rules be incorporated in the Supreme Court Regulation. Notice of this order be given to the respondent through Attorney General Office and thereby terminating the case; the case file be handed over as per the rule.

I concur above decision.

Justice Avadesh Kumar Yadav

Done on 4th Bhada 2066 B.S. (20th August, 2009)

The affirmative steps are being taken by the concerned authority of GON in order to bring about reforms in the existing law relating to jail/ bail hearing so as to respond the international human rights norms.

Supreme Court, Special Bench
Hon'ble Justice Anup Raj Sharma
Hon'ble Justice Mohan Prakash Sitaula
Hon'ble Justice Bharat Raj Upreti

Order

Writ No. 064-ws-0002

Subject: Certiorari/ Mandamus.

Petitioners: Advocate Rajiv Bastola, resident of Kathmandu
Metropolitan City, Ward No. 35, et.al.

Vs.

Respondents: Government of Nepal, Office of the Prime Minister
and Council of Ministers, Singh Durbar, et.al.

- To detain any accused for trial, there must be existence of *prima facie* evidence that shows an accused to have been guilty of the offence or there are reasonable grounds based on such evidence to believe that such person has been guilty of the offence is considered as a precondition of such jail/bail order.
- The provisions, for using to demand security or bail or to release on general attendance on the bases of nature of offence and availability of *prima facie* evidence, the detention is used as a last resort, are not said to be as otherwise.
- The subject matter taking into detention any person for trial does explain anyone as absolute and final criminal. That is just a precondition. When such logic is carrying on, it is necessary to deem illegal detention to the police custody during the period of investigation.
- If it is negated, there is no possibility to operate investigation process of any criminal case. Similarly, the

society realizes insecure and there is high possibility to destroy evidences since the suspected person move openly in the society, at the same time, in some circumstances, there is existence of risk to the body of such accused person.

- **The criminal justice administration can not function properly, if the accused submitted before the court charged, in serious criminal cases that severely affect the society and the nation, are releasing only on the basis of presumption of innocence.**

Anup Raj Sharma, J: The brief facts of the writ petition submitted to this court pursuant to Article 32 and 107 of the Interim Constitution of Nepal, 2007 and the order made thereupon is as follows:

We the petitioners are Nepalese citizens engaging in law practice in accordance with the current law. As our duty is to assist judiciary apart from our professional interest from longtime have remained active in the core area of law and justice such as rule of law, basic human rights, social justice, and free and independence judiciary.

We make plea that the provisions made under Article 9.3 and 14.2 of International Covenant on Civil and Political Rights, 1966 (ICCPR) be put in place of voidness created as a result of contradiction of 118,123 and 124 of the Chapter on Court's procedure of National Code ,Section 7 of the Human Trafficking (Control) Act 1961(2043),Section 10 of the Forest Act, 1992(2049) and Section 7 of the special court Act,1902(2059) with the constitution because of the restriction laid on the fundamental rights as Rights of innocence and Right to Bail provided by Article 12(2) of the Interim Constitution of Nepal.

It is always a challenging question for the officer giving judgement on how an accused presented before him must be kept and treated until the final decision made in the case. Law has made, in this respect, three types of options: detain, release on bail or release without bail so as to appear in the court at the fixed date. Following preconditions about whether or not to detain an accused in the course of trial are provided under sub-Sections (1), (2), (3), (4), (5), (6) and (7) of the No. 118 of Chapter on Court Management of National Code:

The following persons involved in the following cases shall be kept is follows and tried their Cases. The person accused in Cases relating to

throne or person of the member of the royal family try the case by holding the accused in detention..... 1

If, based on the evidence available at the moment, justify any person guilty of the offence stated below or there are reasonable grounds to believe as such the office, unless proved contrary, shall try the case by taking the accused in detention..2

Any offence punishable with imprisonment for life..... 1

Any offence moved by the Government of Nepal as plaintiff and punishable with imprisonment for a term of three years or more 1

Any offence of attempt, abetment, or criminal conspiracy to commit, the above mentioned offence or to become accomplice thereto1

If there are reasonable grounds to believe on the basis of the evidence available at the moment that any person charged with an offence punishable with imprisonment for a term of six months or more has no permanent abode in Nepal is guilty of the offence, the office shall try the case by holding him detention 3

Notwithstanding anything contained in Sections 2 and 3 above, if the office holds that it is not justifiable to hold in detention any accused because of the accused being a minor or infirm due to physical or mental disease, the office may release the accused on bail or security (surety). If, in consideration of the circumstances of the commission of the offence, the age of the accused, physical or mental condition, and previous behavior of the accused, the office does not think it justifiable to hold the accused in detention, the office may release the accused on bail or security (surety), save an offense punishable with imprisonment for life or an offence of attempt, abetment, or criminal conspiracy to commit, or being accomplice to that offence 4

Except in Section 2 or 3 above, provide otherwise, the office shall try the case by taking a bail or security from the accused if there are reasonable grounds, based on the evidence available subsequently, to believe that the accused is guilty of offence..... 5

If there are reasonable grounds, based on the evidence available subsequently, to believe that an accused, who is not held in detention nor a bail or security asked with him or her, is guilty of the offense, office may, irrespective of the stage of case, hold the accused in detention or, as the case may be, take a bail or security from him or

her, in accordance with Sections 2, 3 or 5 above. The court shall not be deemed to be barred from holding the accused in detention or taking a bail or security from him or her as mentioned above by the reason only that the accused was not held in detention or a bail or security was not taken from him or her originally 6

If there are reasonable grounds, based on the evidence available subsequently, to believe that the accused, who has been held in detention in accordance with sections 2, 3, 8 or 9, is not guilty of the offence, the office may release him or her from detention, no matter that the case may be processed in any stage..... 1

No.123 Chapter on Court Management of the National Code has provided that if the case is not disposed within One year from the date fixed, for examining evidence in relation to any accused held in detention for action/proceeding in accordance with this Chapter, for the first time the case shall be tried by releasing such accused on bail or security if such accused has been held in detention pursuant to Section 2 of No. 118 of this Chapter and releasing him or her without taking any bail or security if he or she has been held in detention pursuant to Section 8 or 9 of the said No. Provided that the provision of this No. shall not apply to any accused charged with any offense punishable by imprisonment for a term of five years or more or for life, and the office may, if it so considers reasonable, try the case by holding the recidivist in detention.

The following preconditions are fixed in Section (1), (2), (3), (4) and (5) of the 194 No. of the Chapter on Court Management of National on whether or not to keep an accused in detention at the appellate level:

In a criminal case where a person is convicted by judgment of an offence and sentenced to imprisonment, the judgment making office may, for the purpose of making appeal, release the person on bail or security until the time-limit for making appeal if the term of such imprisonment does not exceed three years and the case is one in which it is not required to be held in detention for trial or if that person has not been held in detention for trial so far..... 1

The appeal hearing office may release a person on bail or security until the time-limit for making appeal expires and, where a memorandum of appeal has been filed, until the settlement of appeal in a case where the person is convicted by judgment of an offence and sentenced to imprisonment, and the term of such imprisonment does not exceed ten years and the case is one in which it is not

required to be held in detention for trial or if that person has not been held in detention for trial 2

In releasing a person on bail or security in accordance with Sections 1 and 2 above, where a bail or security has been furnished with the original office for trial, the office shall, at its discretion, obtain such additional bail or security as not to exceed twenty five percent of that bail or security. In the other cases, the office shall, in consideration of the matters set forth in Section 10 of No. 118 of this Chapter, fix the figure of bail or security and collect the bail or security accordingly 3

Provided that, subsequent to the filing of a memorandum of appeal, if the appeal hearing office is of the opinion, from the standpoint of justice, that it has to hear appeal by holding the appellant in detention, nothing shall preclude the office from doing accordingly.

Notwithstanding anything contained in sections 1 and 2 above, while releasing a person sentenced to punishment on bail or security or refusing to accept a bail or security, a memorandum shall be raised, mentioning the reasons therefor; and the office may refuse to release the person on bail or security, on any of the following conditions 4

There is a possibility of running away of a person sentenced to punishment may go away if he or she is released on bail or security.. 1

There is a possibility that the person may tamper with the proofs and evidences 1

There is a possibility of committing other offence by such person 1

In any of the following cases, the trial court in the case of the person who is sentenced for a term exceeding one year, and the appeal hearing office, in the case of a person who is sentenced for a term exceeding three years may refuse to release him or her on bail or security 5

Cases under the Prevention of Corruption Act, 2059, cases relating to black marketing, profiteering, hoarding or adulteration, Cases relating to exports, imports, Cases relating to essential services, essential commodities or essential goods, Cases relating to currency, notes, foreign exchange and metrology, Cases relating to ancient

monuments, idol, sculptor, books of archaeological importance or other arts, Cases relating to narcotic drugs, Cases relating to government amount, Cases relating to the forgery or theft of any government document, court judgment or order, passport, insurance, cheque or draft, Cases relating to the theft, embezzlement or misappropriation of any property, wealth or money of the Government of Nepal or a corporation or bank of which fifty one percent share is owned by the Government of Nepal or the cases of cheating of the Government of Nepal, such corporation or bank.

Section 7 of the Espionage Act, 1962, has mentioned that if a person, who has been charged with an offence of espionage under this Act, confesses to have committed the offence before the adjudicating authority, or if it appears that he/she has committed an offence of espionage on the basis of evidence produced before the court of law, the adjudicating authority shall try the case by holding the accused in a custody.

Section 10(1) of the Human Trafficking (Control) Act, 1986, has mentioned that notwithstanding anything contained in the prevailing law, in the case charged under this Act, if there is sufficient and appropriate ground to take the accused into detention and conduct hearing the case can be tried taking the accused in custody by mentioning plea of government attorney, in this matter, if any, by raising a memorandum.

Section 64(1) of the Forest Act, 1993 mentions that in case the evidence received at the moment and there shows that any person arrested under this Act is guilty of any offence on a charge relating to Forest to be punishable for a period of one year or more imprisonment or in case there seems to be a reasonable ground to believe from such evidence that he is guilty, such accused shall be kept in detention for the proceedings. Further, the sub-Section (2) mentions that in case of offences other than mentioned in Sub-section (1), proceedings shall have to be carried after releasing him/her on bail or surety of assets equivalent to the maximum amount of fine or imprisonment that can be imposed on him/her is furnished and if such bail or surety is not furnished proceedings shall have to be carried keeping him in detention.

Section 7 (d) of the Special Court Act, 2002 mentions that demanding the security or guarantee keeping in view the amount of loss or damage or amount illegally accepted by him/her and the imprisonment or fine to be inflicted to him/her in case it is not deemed to have a trial

of the case by putting an offender in the custody from the evidence so collected. Similarly, it is mentioned in the Section 7(e) that notwithstanding anything contained in the prevailing law, conducting a trial of the case by putting the offender in custody in case there is an adequate and reasonable cause to have a trial of the case by putting one in custody.

In this way all the mentioned Acts direct to rely on mainly to the *prima facie* evidence to detain or to grant bail to someone for trial. These provisions conflict with the constitutional fundamental right to be presumed innocent until proven guilty in the charge.

Article 14(2) of the International Covenant on Civil and Political Rights, 1966 establishes presumption of innocence as an important part of universal human rights stating that everyone charged with a criminal offence shall have the right to be presumed innocent until proved guilty according to law. Similarly, article 9(3) of the same Covenant accepts that the bail is general rule and the detention is an exception mentioning that it shall not be the general rule that persons awaiting trial shall be detained in custody, but release may be subject to guarantees to appear for trial, at any other stage of the judicial proceedings, and, should occasion arise, for execution of the judgment. United Nations Standard Minimum Rules for Non-custodial Measures (The Tokyo Rules) adopted by General Assembly resolution 45/110 of 14 December 1990. Article 6(1) of the adopted resolution states that the pre-trial detention shall be used as a means of last resort in criminal proceedings, with due regard for the investigation of the alleged offence and for the protection of society and the victim.

Nepal has ratified the International Covenant on Civil and Political Rights, 1966 as mentioned above. Section 9(1) of Nepal Treaty Act, 1990 has provisioned "In case of the provisions of a treaty, to which Nepal or Government of Nepal is a party upon its ratification accession, acceptance or approval by the Parliament, inconsistent with the provisions of prevailing laws, the inconsistent provision of the law shall be void for the purpose of that treaty, and the provisions of the treaty shall be enforceable as good as Nepalese laws."

Therefore, No 118, 123 and 194 of the Chapter on Court Management of the National Code, Section 7 of the Espionage Act, 1962, Section 10 of the Human Trafficking (Control) Act, 1986, Section 64 of the Forest Act, 1993, and Section 7 of the Special Court Act, 2002, that unduly restrict the rights such as right of innocence and bail, should be declared void and ultra virus pursuant to the Article 32, 107(1) of

the Interim Constitution of Nepal and an order to be issued in the name of Special Court, Appellate Court Patan and District Forest Officer, District Forest Office Kathmandu amongst the defendants to conduct the jail/bail hearing and bail or guarantee of an accused pursuant to the provisions of Article 9(3) and 14(2) of the International Covenant on Civil and Political Rights, 1966.

The single bench of this Court had passed an order in the name of respondents to submit their affidavits and the case file be presented before the bench as per the rule after receiving the affidavits.

The written response presented on behalf of Government of Nepal, the Office of Prime Minister and Council of Ministry states that the writ petition deserves to be dismissed in which actions of this office violates what sorts of rights of the petitioners are not mentioning clearly with reasons and grounds in the writ petition. The legal provisions relating to the jail/bail hearing mentioned by the petitioners are not used arbitrarily rather using by the independent and competent authorities after evaluating the evidences. There are legal provisions available to invoke legal remedy to the aggrieved party through inter-locutory order under the general jurisdictions pursuant to the No.17. of Chapter on Court Management of the National Code and Section 16 of the Judicial Administration Act, 1991, in case of archaic of such provisions. The petitioners can not make a clear claim that the particular provision of law is, in such a manner, inconsistent with the Constitution and be declared void.

So far as concerned to the writ petition that the legal provisions should be made congruence to the ICCPR. The aforementioned legal provisions are not inconsistent with the provisions of ICCPR and the subject matters to enact law and amend Acts not inconsistent with the International liability and the Constitution is domain under the exclusive jurisdiction of the legislature and there is no any ground and reason to place this office as a respondent so as to the office does not regulate the subject matters concerned. Therefore, the writ petition should be dismissed.

So far as concerned the claim of writ petition relating to the international treaty, the section 9 the Treaty Act, 1990 has provisioned about the status of international treaty within the domestic law. But the arguments of the petition made with reference to the international treaty are not lawful that a person can not invoke directly international provisions as a matter of right. Therefore, the writ petition deserves to be dismissed.

The written response presented on behalf of District Court Kathmandu states that the order of mandamus should not be issued in the name of this court and the writ petition deserves to be dismissed on the grounds that the court has no authority to enact any law or Act.

The written response presented on behalf of Special Court, Kathmandu states that the petitioner mentions that the impugned legal provisions unduly restricts the fundamental rights such as right to innocence and right to bail provisioned in Article 12(2) of the current constitution whereas the Article 12 has not guaranteed right to presumption and right to bail as inalienable right. If it presumed that the article provisioned about the individual liberty and his/her personal liberty is deprived due to taking into detention an accused person for trial, sub-Article (1) of the Article 12 has not ensured individual liberty as in absolute form. That means except as provided by law no person shall be deprived of his/her personal liberty as described in the sub-Article (2), and relative assurance is guaranteed.

Such relativity depends on law. In this way, it can not be said that there is restriction in the fundamental rights by the law made by the legislature as mentioned in the petition. Section 7(e) of the Special Act, 2002 to be used by this court and question raised by the petitioner, is no situation of inconsistent with the mentioned Article 12. This court operate functions pursuant to the laws made under the authority provided by the constitution, therefore, an order should not be issued as demanded by the petitioner.

The written response presented on behalf of District Forest Office, Kathmandu states that in respect of Section 13 of the petition, in case the evidence received then and there shows that any person arrested is guilty or in case there seems to be a reasonable ground to believe from such evidence that he is guilty, such accused shall be kept in detention for the proceedings as per the provision of Section 64(1) of the Forest Act, 1993. In this way, to keep detention an accused person pursuant to the Section of Act is not inconsistent with the constitution and other laws; therefore, an order should not be issued as demanded by the petitioner. The writ petition should be quashed.

The written response presented on behalf of Legislative-Parliament Secretariat states that in the context of writ petition submitted by the writ petitioner there is no mention concrete bases and reasons to place the Legislative-Parliament as a respondent. Therefore, the writ

petition is to be nullified *prima facie* due to place agency that is not to be placed as a respondent.

The main contention of writ petition is that the various legal provisions relating to keep detention for trial and to take bail including National Code to be declared void on the ground of inconsistency with the Article 12(2) of the Interim Constitution of Nepal, 2007. There is no any reason to dissent with the logic raised in the writ petition that the law passed by the legislature should be contained logical, fair and justifiable qualities. This is a subject matter relating the concept of due process of law. There are two dimensions of due process of law that the substantive and procedural due process of law, but this concept is not based on the any objective jurisprudential standards since it is developed by the judicial test on the bases of a broad and subjective manner by the courts taking into consideration various time periods, circumstances and situations and it not proved that whether any law is valid or not only on mentioning it. There should be proved, for that purpose, law is substantively wrong and contains undue subject matters.

Legal provisions relating to take detention and to take bail in the various laws mentioned in the writ petition by the petitioner provision on the bases of logical classification relying on the nature of crime and offence, possible amount of punishment, status of accused person and situation and alike elements. This is also a subject matter relating to the national interest. It is not justifiable to put logic that to be given attendance facility to the all persons involved in any grievous criminal offence in the name of liberty. It is *ipso facto* clear that the right of liberty is not an absolute in full extent since the Interim Constitution of Nepal, 2007 provisions that except as provided for by law no person shall be deprived of his/her personal liberty under the sub-Article of the Article 12. There may not be any dissenting opinion of any person that right of liberty can be managed by enacting law and can be restricted due for the interest of the nation and society. It is difficult to say directly that the provisions relating to take detention for trial to the persons involving in conduct against law to disrupt progress maintaining peace and order. The writ petitioner has accepted that a couple of state's duties to protect the fundamental rights and public interest by maintaining balance and combination. But, there is no fine analysis in the writ petition in what way the provisions are unconstitutional that are claimed as unconstitutional in the writ petition. Therefore, the writ petition should be nullified.

The written response presented on behalf of Law and Parliamentary Affairs states that legal provisions mentioned by the petitioner are not inconsistent with the constitution and international treaties because the constitution is a fundamental law of the land and other laws derive validity from the constitution. These are also fair, logical and justifiable. These provisions are centralized on the trial of cases. During the trial there may be kept in detention or taking bail or release on bail or release of general attendance or release on without attendance depend on nature of case, evidence and situation of an accused person. It is necessary to arrange such provision to prevent the society from destroying the evidence by the accused and maintain the presence of the state. During the hearing of cases while presiding officer or judge does not use his/her discretionary power properly, there is provision in No. 17 of the Chapter on Court Management National Code to submit a petition in the court having appellate jurisdiction and in the course of test of evidence, if accused is seemed as an innocent, the relevant court itself can release on bail. Therefore, there should not be nullified the legal provisions that are not inconsistent with the constitution and international treaties, the writ petition should be quashed.

The writ petition submitted before the bench pursuant to the rules, the petitioner and learned advocates Mr.Rajiv Bastola and Mr.Sarbagya Raj Naya (Shahi) and other learned advocates on behalf of petitioners Mr.Chandrakanta Gyawali, Mr.Binod Karki, and Mr.Sharad Pokharel plea that in the Article 12(2) of the Interim Constitution of Nepal guaranteed the personal liberty except as provided for by law. Similarly, in the Article 24(5), it assured that the right to be presumed innocence until proven guilty. Article 9(3) of the International Covenant on Civil and Political Rights, 1966, which is ratified by the Nepal, mentions that in the course of hearing taking into detention is not a rule, release on bail, likewise, in the Article 14(2) states about the right to be presumed innocence until proven guilty. Apart from this, article 6.1 of the United Nations Standard Minimum Rules for Non-custodial Measure (The Tokyo Rules), ratified by the General Assembly of the United Nations, mentions that to take detention in the course of criminal act is to be used as a last resort.

But contrary to such constitutional provisions and the liability raised by the international humanitarian law accepted by Nepal, legal provisions to take into detention on the bases of *prima facie* evidences, including Nos. 118, 123 and 124 of Chapter on Court Management of National

Code are in existence even to the present time. These provisions confer unrestricted power to the judges and mitigate the ambit of bail. Legal provisions, to be incarcerated at the stage of allegation, are not congruence with the constitution and the mentioned International instruments. If the provisions arranged to maximum use of bail in the course of criminal case trial, personal liberty would be protected and the purpose of law would be fulfilled. But, contrary to this, the provision to detain in stead of accepting bail, at the stage of allegation has restricted the right of personal liberty and presumption of innocence that are guaranteed for the citizen by the constitution. Therefore, such provisions inconstant with the constitution should be declared void and an order of mandamus should be issued as demanded in the writ petition.

Deputy Government-Attorney Mr. Rewati Raj Tripathi, on behalf of respondent the Government of Nepal *et al*, pleads that the Article 12(2) of the Constitution says that personal liberty of person can not be deprived except provided by law. It means that such liberty can be regulated and managed by enacting laws. Provision to detain any person for criminal trial pursuant to the order of presiding officer or the court can not be said as conviction to any person. There are some circumstances to detain an accused in the course of trial in some grievous cases for preventing evidence from being destroyed and to secure the society and the accused him/herself. There is no circumstance to deprive fundamental rights of any person since the decision to detain or to release on bail or to release in general attendance is taken through the judicial process on the basis of *prima facie* evidences in stead of taking in detain haphazardly. It is not an undue to take into detention in the grievous criminal cases since it is not taken into detention in all the cases. The instruments including the international treaties do not say that not to take in to incarceration in all the criminal cases in the course of trial. They say just that not prefer detention. Therefore, the writ petition should be nullified.

As determined to deliberate verdict in the writ petition, today taking into account the arguments put forwarded by the learned counsels representing both the sides and their written memorials submitted in the court, considering overall aspects paying attention to the writ petition, written response and concerned constitutional and legal provisions, the verdict has to be made being centralized on following issues:

- (1) Whether or not the legal provisions, relating to take into detention for the criminal trial, on the basis of the evidence available at the moment as including No. 118 of the Chapter on National Code congruence with the constitution? and
- (2) Whether or not an order should be issued as demanded in the petition?

Considering with regard to the first question to be decided, the main demand of the writ petition is to declare nullified such legal provisions that have unduly restricted personal liberty of citizen, pursuant to the Articles 1, 32 and 107(1) of the Interim Constitution, since those provisions including No.118 of the Chapter on Court Management of National Code that to detain an accused person if he/she is deemed to be an offender on the basis of *prima facie* evidences are incongruence with the right to release on bail, right to be presumed innocence until proven guilty enshrined in the Article 12(2) of the Interim Constitution of Nepal, 2007 and the Article 9(3) and Article 14(2) of the International Covenant on Civil and Political Rights, 1966. Further an order of mandamus should be issued for arranging legal provisions relating to the jail/bail hearing congruence to constitution and international instruments. In observing the affidavit of the respondents, it is pleaded that the writ petition should be declared void since the legal provisions relating to take into detention for criminal trial to the accused in some grievous criminal cases as ordered by the judge or presiding officer are congruence with the constitution and international covenant.

In the legal provision under No.118 of the Chapter on Court Management of National Code, among the legal provisions demanded as unconstitutional in the writ petition, is arranged about the dealing with the accused person submitted to the court alleged with criminal charge until its final hearing. The legal provision relating to jail/bail hearing under sub-Number 1 of the No. 118 of the Chapter on Court Management, being related to throne subversion, becomes irrelevant in the current situation, since the country is declared republic. Apart from this, in other Sections there are provided the 9 types of persons and the nature of the offense committed by them as basis to take them into detention for criminal trial or demanding bail or release for general attendance for the further hearing. Specifically, sub-Number 2 of the No.118 of the Chapter on Court Management has a provision that based on the evidence available for the time being, if any person accused of an offence punishable with imprisonment for life, an offence instituted on being the Government of Nepal as plaintiff and punishable with imprisonment for a term of three years or more and an

offence of attempt to, abetment of, or criminal conspiracy to commit, or being accomplice to, the offence mentioned above appears to have been guilty of the offence or there are reasonable grounds based on such evidence to believe that such person has been guilty of the offence, the office shall, unless proved to the contrary, try the case by holding the accused in detention. It can not be observed that the legal provision made to take into detention an accused without having evidences only on the ground of criminal allegation as mentioned. Similarly, the sub-Number 3 of the same number mentions that if, based on the evidence available for the time being, there are reasonable grounds to believe that any accused charged with an offence punishable with imprisonment for a term of Six months or more has no permanent abode in Nepal has been guilty of the offence, the office shall try the case by holding the accused in detention. But the sub-Number 4 of the No. 118 of the Chapter on Court Management has also mentioned that notwithstanding anything contained in Sections 2 and 3 above, if the office holds that it is not justifiable to hold in detention any accused because of the accused being a minor or infirm due to physical or mental disease, the office may release the accused on bail or security (surety). If, in consideration of the circumstances of the commission of the offence, the age of the accused, physical or mental condition, and previous behavior of the accused, the office does not think it justifiable to hold the accused in detention, the office may release the accused on bail or security (surety), with the exception of an accused charged with offense punishable with imprisonment for life or an offence of attempt to, abetment of, or criminal conspiracy to commit, or being accomplice to, that offence. Other provisions are relating to demand bail rather the subject of incarceration.

There is a provision in No.123 of Chapter on Court Management to slack the jail/bail order pursuant to the No. 118 of Chapter on Court Management where case is not dispensed within the time prescribed and the No. 194 of the Chapter on Court Management has covered that the provision whether or not to provide facility of bail to appeal in what types of cases. As it demanded that he provision to keep in detention for trial before conviction is contrary to the right to be presumed innocence, in what way the provision, made under the 194 of Chapter on Court Management that in what types of case to be incarcerated or to be granted bail for the purpose of appeal after the conviction from the court of first instance, is unconstitutional, there is no ground submitted.

In Section 64(1) of the Forest Act, 1993, it is provisioned that in case if the *prima facie* evidence shows that any person seems to be a reasonable ground to believe from such evidence that he is guilty, such accused shall be kept in detention for the proceedings and in the Section 7(e) of the Special Court Act, 2002 it is provisioned that conducting a trial of the case by putting the offender in custody in case there is an adequate and reasonable cause to have a trial of the case by putting one in custody. Section 7 of the Espionage Act, 1962 has contained also the similar provision.

In this way, it is observed that as an essence, the accused person submitted before the court charged with offence in some grievous criminal cases, if the *prima facie* evidence show an accused to have been guilty of the offence or there are reasonable grounds based on such evidence to believe that such person has been guilty of the offence, the accused person is detained pursuant to order of the judge or presiding officer. Due to lacking of continuous hearing and geographical difficulty, lacking of facilities of transportations and lacking of access to the modern technology, it is impossible to enshrine such provisions in our criminal justice system, the laws as mentioned above relating to regulate the subject matter to deal with the accused until the final hearing whether to take into detention or release on bail, are observed itself understandable, clear and simple.

It is not observed, as mentioned in the writ petition, that the laws relating to jail/bail hearing have not confer unrestricted discretionary power to the presiding officer to detain any one for trial or demand undue bail arbitrarily. To detain any accused for trial, there must be existence of *prima facie* evidence that shows an accused to have been guilty of the offence or there are reasonable grounds based on such evidence to believe that such person has been guilty of the offence is considered as a precondition of such jail/bail order. This shows that no person is taken into detention without objective and proved bases only on the ground of criminal charged.

Further, the 118 and 123 No. of the Chapter on Court Management make slack the provision to detain an accused once incarcerated for the purpose of trial. The provision of sub-Number 7 of the same chapter has been proved that by mentioning if there are reasonable grounds, based on the evidence available subsequently, to believe that the accused, who has been held in detention in accordance with

Sections 2, 3, 8 or 9, is not guilty of the offence, the office may release him or her from detention, irrespective of the stage of proceedings of the case. Similarly, on the basis of provision of sub-Number 11, it is not observed the procedures of security or bail as unrestricted and arbitrary that provisions if any party to the case makes a petition to the appeal hearing office showing the reasons that the amount of a bail or security demanded from any person under various Sections above is lesser or excessive, the appeal hearing office may increase or decrease the amount of such bail or security. Likewise, pursuant to the No. 123 of the Chapter on Court Management, the jail/bail order should be made loose in the case where the case is not disposed within the prescribed time duration.

If there is situation where the office mistakes while passing an order of jail/bail hearing, there is a provision to submit an application to the appellate level pursuant to the 17 no. of the Chapter on Court Management and there is legal provision under the Section 16 of the Judicial Administration Act, 1991, to file a petition in this court through passing the levels of courts in the case where the punishment is or more than five years of imprisonment, on the ground of legal mistake or procedural irregularities which shows that the provision of supervision in the matter of detain for trial. The provisions, for using to demand security or bail or to release on general attendance on the bases of nature of offence and availability of prima facie evidence, the detention is used as a last resort, are not said to be as otherwise. Simultaneously, this provision does not discourage the subject matter to release on general attendance or on security or on bail.

In addition, even the international humanitarian laws and declarations are not clear about whether release on general attendance or on security or on bail or to take into detention on the basis of circumstances. The provision of sub-Article (3) of the Article 9 of the International Covenant on Civil and Political Rights, 1966 is specifically relevant to the detention while investigation going on before the submission of the case in the court or judge. The first part of the sub-Article has established the mentioned fact stating "Anyone arrested or detained on a criminal charge shall be brought promptly before a judge or other officer authorized by law to exercise judicial power and shall be entitled to trial within a reasonable time or to release." The provision in relation to the accused arrested or detained on a criminal charge shall be brought promptly before a judge or other officer authorized by law to exercise judicial power and shall be

entitled to trial within a reasonable time or to release also accepts to carry on the case hearing within the reasonable time by taking detention of an accused. Although the second part of the same sub-article prefer to release on security or on bail as possible rather taking detention stating that it shall not be the general rule that persons awaiting trial shall be detained in custody, but release may be subject to guarantees to appear for trial, at any other stage of the judicial proceedings, and, should occasion arise, for execution of the judgment. Although it is as observed the legal provisions that prefer to detain due to mentioning only the legal provisions relevant to incarceration in the writ petition but taking into detention is not accepted as general rule since the sufficient existence of current law that provision the security and bail including sub-Numbers 4, 5, 6, 10 of the No. 118 of Chapter on Court Management.

Article 6(1) of the United Nations Standard Minimum Rules for Non-Custodial Measures-[The Tokyo Rules] mentions that Pre-trial detention shall be used as a means of last resort in criminal proceedings, with due regard for the investigation of the alleged offence and for the protection of society and the victim. This standard has also not refused to take into detention for criminal trial. It is just said that, in this provision, in the course of proceedings detention should not be preferred.

It is observed that the provision of right to be presumed in the sub-Article 2 of the Article 14 of the ICCPR. There is a situation that has been covered by the Article 24(5) of the Interim Constitution of Nepal, 2007. It is not clearly mentioned in the writ petition that how to establish relationship between the right to be presumed innocence and taking into detention on the bases of prima facie evidences. The subject matter taking into detention any person for trial does explain anyone as absolute and final criminal. That is just a precondition. When such logic is carrying on, it is necessary to deem illegal detention to the police custody during the period of investigation. If it is negated, there is no possibility to operate investigation process of any criminal case. Similarly, the society realizes insecure and there is high possibility to destroy evidences since the suspected person move openly in the society, at the same time, in some circumstances, there is existence of risk to the body of such accused person. Therefore, the logic for the sake of logic does not solve the problems.

There is no any ground to be consented to deprive the personal liberty without any reason since the personal liberty is the basic inalienable right of the human beings. There is no need to invoke international covenant for searching due remedy in the situation of illegal deprivation if personal liberty. That is given in our constitution. In the case of illegal deprivation of personal liberty, even in the period of emergency, the remedy of habeas corpus is being open. This has been practised, this constitutional provision, in its optimum form, even in huge adverse situation and the court will practice even in the future. If it is tried to declare void the legal provisions to take into detention for criminal trial to the accused of grievous criminal charged person by the court on the basis of objective and proved prima facie evidence covering by the fruitless principle of personal liberty and presumption of innocence, The great question turns to the petitioners themselves that who would take the responsibility for the situation of social deterrence, insecure situation and state of impunity created by its consequence.

It is observed that the petitioners file this writ petition being allured more by the theoretical contemplation. The criminal justice administration can not function properly, if the accused submitted before the court charged, in serious criminal cases that severely affect the society and the nation, are releasing only on the basis of presumption of innocence. It is not observed practical and realistic writ petition that has tried to break the base of criminal justice system but has not prescribed an appropriate alternative way therefor.

The assumption of petitioners that the judge or presiding officer having authority for hearing the case takes an accused person into detention for criminal trial without any evidences is wrong and at the same time, observed, as no confidence upon the judicial process. Such demand can not be recognized through any viewpoint. In some cases, it is found that the accused person is innocent subsequently, who were taken into detention at the stage of jail/bail hearing. But in almost all cases, there is no such situation. It is not appropriate to break the whole system on the basis of generalizing some exceptional weaknesses. Neither the writ petitioners are being benefited from such circumstances nor is the objective of criminal justice administration to prevent society from the crimes and criminals fulfilled.

Saying so, it is not trying to draw a conclusion that any legal system is only good one and there is no existence of any lacking or weaknesses. There may be possibilities to remain demerits within each legal system

aside the merits. If it is comparatively studied the legal system of our country that before the enforcement of the State Cases Act, 1961, after enforcement of the Act and the enforcement of the State Cases Act, 1990, and its practices, there may be possibilities to find out various characteristics. There is no possibility to remain and enforced in the same form and situation to the system adopted once. Therefore, it is necessary to rise continuously by the conscious class such as writ petitioners about the weaknesses and the lacking inherent in the justice system. But, it is not appropriate tendency that to solve all the problems through the court. It would be better to draw the attention of the concerned wings of the state in such a matters and conducting study and research regularly by the responsible authority to continue the appropriate part and to reform the shortcomings found in the prevailing laws.

Let us now consider about the second question that whether or not an order should be issued as demanded in the writ petition?, legal provisions, as demanded by the petitioners to be declared dismissed and nullified, are not observed as incongruence with the provisions mentioned in the Interim Constitution of Nepal and international treaties and conventions on the bases of analysis made in the different paragraphs mentioned above. Though, it would be appropriate to provide attention by the concerned wings of the state to reform the legal provisions consisting within the current Nepalese law relating to the jail/bail hearing for reciprocating the international human rights laws and the constitutional provisions in the changing context. Considering the interest of writ petitioners expressed through this writ petition, to draw the attention one of the responded, the Government of Nepal, Ministry of Law and Justice for conducting study and research to reform the existing law relating to the jail/bail hearing, is somehow affirmative and the writ petition has been declared dismissed. Let the case file be delivered as per the rule.

We concur above decision.

Justice Mohan Prakash Sitaula

Justice Bharat Raj Upreti

Done on 11th Bhadra, 2066 B.S. (27th August, 2009)

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Inventory of hazardous pesticides stored in and around school and human settlement area for an indefinite period causing loss of life and environmental damage be prepared and take steps for their safe and undelayed disposal.

Supreme Court, Division Bench
Rt. Hon'ble Chief Justice Meen Bahadur Rayamajhi
Hon'ble Justice Kalyan Shrestha

Order

Writ No. 2959 of the year 2062

Sub: Mandamus and others.

Petitioners: Advocate Raju Prasad Chapagain and others on behalf of their own and Janahit Samrakshan Manch (Pro Public)

Vs.

Respondents: Government of Nepal, Ministry of Agriculture and Cooperatives, Singhadurbar and others

- For the subjects incorporated in the Policies of the State with a view to promote the rights to life and life in a clean environment, established as the fundamental rights, it is not only desirable but mandatory as well that the programmes of the State address to this issue.
- A mechanism has to be set up with enough financial and technical resources so as to compensate the damage done or likely be done to the local community and environment by the consequences of the hazardous pesticides.
- The stance of international power centers and economic powerhouses of manufacturing pesticides that are extremely injurious to the flora, fauna and ecology and their propensity to shift this unwanted liability on the poor and underdeveloped nations is condemnable as well as regrettable. The international community should come forward to accept the responsibility of its ghastly mistake.

- When the international community is lending a helping hand, Government of Nepal should also leap forward by partnering in the process attentively, for the safe management of these pesticides which are proved to be dangerous from the perspective of welfare of mankind and environment conservation.
- The natural right to life has been guaranteed and the right to life in a clean environment also has been accepted as a fundamental right in itself. Hence, the State's responsibility is witnessed in honouring, obeying and fulfilling that right. In the same manner, it is mandatory that the State has to mobilize all channels, political and diplomatic, as espoused responsibility by international treaties and conventions. This equally holds true in dealing with the circumstances induced by international community or foreign nations.

Kalyan Shrestha, J: The brief facts and conclusion of the writ petition filed under Articles 23 and 88(2) of the then prevalent Constitution of Kingdom of Nepal, 2047- demanding the environment friendly disposal and management of 75 tons of highly harmful and outdated toxic wastes stored insecurely in Amalekhgunj, Bara and other parts of the nation so as to preserve the fundamental birthright of the people to live in safe, fearless and healthy environment- are as follows:

The problem generated by the toxic wastes stored in Amalekhgunj, Bara and other parts of the nation is unequivocally a subject matter of grave public concern. It has posed an imminent threat on the health and ecological balance of the local general public. It has also obstructed on the consummation of the right to fearless livelihood of the local community. Therefore, we, at first, reassert our locus standi to directly represent the victims of this toxic menace and to file the case of public interest before the honourable apex court. Through organizations such as Jagriti Bikash Manch and Janahit Samrakshan Manch, involved in the protection of environmental and health related rights of the people from local to national level under Article 88(2) of the Constitution of Kingdom of Nepal, 2047.

Out of the 75 tons of toxic waste hoarded in Nepal, 50 tons have been stocked in the storehouse of the Old Railway at Amalekhgunj since 2032 BS. A study report, Inventory of Pesticide in Nepal, MOEST, 2005, reveals that among the toxics are some of the Persistent Organic Pollutants (POPs), such as Organomercury,

Organochlorines as well as other highly hazardous prohibited pesticides posing far reaching effects.

The state of storage and study of the local scenery also speaks of the voluminous environmental problem created therein. Adjacent to the storehouse where pesticides are unsafely kept, lays a school by name of Nepal Rashtriya Madhyamik Bidyalaya. 800 students of different age groups get education there from. Besides, there is human settlement around the site and the storehouse lies along side of East-West Highway where, naturally, a large number of people shuttle to and fro. This place is also located in the proximity of the biggest petroleum reserve of the nation from where petroleum products are supplied across Nepal. In this scenario, the toxic fumes and stink of the pesticides, stockpiled for years and spreading over the air is denting the health of the local inhabitants. Moreover, it has been spreading wide-scale panic and psychological terror among the local people of the threat posed by probable explosion or accident likely to be induced by seasonal fires, floods, lightening and other natural calamities and the resultant loss of lives and property. In this regard, even the research report named, Inventory of Pesticide in Nepal, 2005, conducted by the respondent Ministry of Environment, Science and Technology, has also highlighted the stockpiling of pesticides in that area as a severe environmental problem.

Similarly, the report of the Health Check-up Camp-2060, conducted by one of the petitioners Jagriti Bikash Manch, too, has exposed the health related problems faced by the local children on account of the toxic wastes. The organization has been raising awareness about the safety measures to be employed so as to minimize the ill-effects of the pesticides faced by school children as well as to be saved from the resultant harm. The report mentions about the health worries such as nausea, vomiting, vertigo and occasional fainting experienced by the teachers and pupils of the school caused by the spread of toxic fumes across the region. Similarly, the report has also drawn attention towards the fact that the patients of skin diseases, respiratory and eye infections constitute a majority of those thronging the local health post. This signals the growing health hazard posed by the said pesticides stored in that locality.

Likewise, the petitioner agency, Janahit Samrakshan Manch had recently collected soil samples of school playground and sent them to the laboratory of Center for Science and Environment (CSE), New Delhi, India to test the chemicals and ascertain the environmental impact imposed upon the region. High amounts of contamination

including that of DDT and other pesticides were discovered from the test samples which further throw light on the detrimental impact upon the local environment.

It has been found that apart from Amalekhgunj, pesticides are stored in other parts of the country as well. The latest study by the respondent, Ministry of Environment, Science and Technology itself discloses the various amounts of toxic wastes hoarded across the nation, viz. 6.735 tons in Nepalgunj, 4.761 tons in Khumaltar, 1.66 tons in Biratnagar, 1.65 ton in Hetauda, 1.625 ton in Lumle, 1.485 ton in Khajura, 1.285 ton in Pokhara, 0.85 ton in Birgunj, 0.813 ton in Janakpur, 0.442 ton in Surkhet, 0.37 ton in Banke, 0.214 ton in Kuleshwar, 0.181 ton in Bharatpur, 0.11 ton in Gaighat, 0.09 ton in Lahan, 0.983 ton in Ilam, 0.051 ton in Gulariya, 22 cylinders of Methyl Bromide in NARC, Khumaltar and 21 cylinders of the same substance in Kirtipur-which are kept in insecure position. The plight of the storehouses has been highlighted in the report, cautioning about the threat created by the haphazard storage of pesticides as well as suggesting early disposal of such toxic wastes.

The short-sightedness and wrong policies of the respondents seem to be the culprit behind this plight. Majority of the pesticides are found to be obtained as foreign assistance during the 1970s in the name of reducing poverty by stepping up agricultural production. The failure to assess the deceitful designs of some multinational companies (MNCs) to export the lethal pesticides, banned long back in the 1970s in Europe and America, to the poor countries rather than disposing and managing them in an eco-friendly way has resulted in the stockpiling of such hazardous substances much more than the actual need of consumption in Nepal. The same state of affairs was also conveyed in the briefing paper distributed at a Press Conference convened by the international agency worked against toxic problem, Green Peace, in Katmandu on January 21, 2002.

In 2002, the Green Peace undertook an investigation into the stockpiling of pesticides in Nepal. The study revealed that products of several pesticide companies, viz. Sumitomo Company of Japan, Shell of the United Kingdom, Sandoz and Hile Novartis of Switzerland, Monsanto, Union Carbide, Cynamide and Dupont of the USA, Bayer, Hoechst, Deggetsch and Urnia Spisch of Germany and Rohan Pollens of France (currently Amentice, wire) are dumped in various storehouses across Nepal. Green Peace had also sensitized the Government to make the manufacturing companies responsible either to take back

the pesticides lodged in Nepal or to dispose them off and manage them in an eco-friendly manner within Nepal.

Following the efforts of Green Peace as well as from other national and international sectors, the umbrella organization of pesticide manufacturing companies-Crop Life International had made correspondence to the then His Majesty's Government to send back the haphazardly deposited toxic wastes or to dispose them in an environment-friendly way.

At this context, it is shameful and paradoxical that in spite of the readiness showed by the pesticide manufacturing companies and their umbrella agency, the governmental institutions, herein the respondents, remained indifferent towards this acute problem, failed to feel accountability and thereby nurtured the plight. This has brought to light the cold-heartedness of the respondents towards the right of the citizens to live in a healthy environment as well as towards public health and civil interests.

Apart from Green Peace, Crop Life International and pesticide manufacturing companies, we, the petitioners also, time and again, have moved the Government to make it responsible, to sensitize it and to create pressure regarding the issue. In this regard, at the initiation of 12 organizations working in the environment sector including Janahit Samrakshan Manch, correspondence was done with Ministry of Agriculture and the then Ministry of Population and Environment to initiate early action towards solving this problem induced by toxic pesticides. In the same vein, the petitioner agency Janahit Samrakshan Manch, on Falgun 21, 2061 had written to the Ministry of Agriculture and Cooperatives, now a respondent, relating to the safe management of the 50 tonnes of pesticides lodged in Amalekhgunj. Another petitioner agency Jagriti Bikash Manch, on Jestha 26, 2061, had written to the then Prime Minister including the 20,000 signatures of the local people in order for drawing his attention to this menace. Despite all these efforts, the respondents seem not to be taking any steps towards assuming accountability. Resultantly, the helping gesture of Crop Life International to receive back the pesticides or to safely dispose these could bore no fruit.

Since the Preamble of the Constitution of the Kingdom of Nepal, 2047 had assimilated social justice; environmental justice also can be deemed as being integral to the realm of social justice. The objectives of social justice cannot be justified in the absence of environmental justice. In the same vein, the Supreme Court has been adhering to the

principle postulated by Article 12(1) of the Constitution which establishes the right of life in clean environment. State responsibility towards safeguarding the lives and liberties of the people is also enshrined in Article 25(1). Similarly, Article 26(4) has laid down the State responsibility to promote environmental cleanliness by restricting possible adverse effects upon the environment. Under this come the precautionary principles to maintain environmental sanitation which form the unanimous principles of environmental justice and which are to be employed by the State to remain watchful and vigilant towards probable environmental degradation in the future. At this juncture, there remains no contention as to the vital constitutional liability on the side of the respondents to avert the physical and environmental damage triggered by the stockpiling of hazardous chemicals.

It is also a matter of liability on part of the respondents even by way of international laws- to protect the citizens from the adverse effects to their health and well-being as well as from the ill-effects of environmental decay by securely doing off with the pesticides in an eco-friendly pattern. Article 25 of the Universal Declaration of Human Rights, 1948 has declared the right to quality health life as a birthright of the entire human race. In the same spirit, Article 12 of International Convention on Economic, Social and Cultural Rights (ICESCR) 1966 also has required the State to take necessary steps in order for meaningfully conserving the rights of people to healthy living. Nepal, as a State, is bound by these international provisions under Clause 9 of the Treaties Act, 2047. However, we kindly inform that it is unfortunate the respondents have shown no sensitivity towards fulfilling this international obligation.

Since the matters related to pesticides are a grave issue invariably related to public health, separate conventions have also been endorsed in this area. At this premise, Stockholm Convention on Persistent Organic Pollutants (POPs) is considered as instrumental. Article 1 of this Convention, endorsed on May 23, 2001, outlines that this has been ratified keeping in mind the 'Precautionary Principle' embodied in Rio Declaration on Environment and Development. Articles 3, 4, 5 and 6 of this Convention have delegated to the State, the obligation to safe and eco-friendly removal and administration of toxic wastes created by Persistent Organic Pollutants (POPs). Nepal has signed on the Convention on April 5, 2002. But she has shown no discernment towards materializing the commitment towards this Convention and that has prompted us to come at the doorsteps of the honourable Supreme Court.

Therefore, on the basis of the reasons and arguments furnished in the aforementioned instances, we seek mandamus and other orders as required in the name of the respondents to do and make arrangement for doing the following actions/tasks under Article 88(2) of Constitution of the Kingdom of Nepal, 2047 in order to deliver complete justice by preserving public health and environment from the risks posed by the pesticides stored in Amalekhgunj and other different parts of the country:

1. Safely pack the identified outdated pesticides which have run out of date.
2. Safely store such toxic wastes after conducting Preliminary Environment Assessment and Environment Impact Assessment as required by the legal provisions set by Environment Rules 2054.
3. After safe storage of the pesticides as mentioned above, to segregate the toxic wastes according to their low or high intensity. Low intensity pesticides which can be disposed here in Nepal should be separated and the rest to be sent back to the pesticide manufacturing companies or their umbrella organization, Crop Life International by holding them accountable.
4. Replace the polluted soil and toxic wastes from the impact area in an eco-friendly mode and to sterilize the surroundings.
5. Constitute a high level independent committee to ascertain the damages done to the public health due to the storage of pesticides in Amalekhgunj and other places and to provide compensation as suggested by the committee.
6. In the days to come, undertake precautionary measures so as there is no adverse impact on public well-being and ecology due to the reserve of toxic wastes as such, discourage import and use of biocidal pesticides and for that purpose, promote and publicize environmentally proven Integrated Pest Management Technology.
7. Constitute a high level enquiry committee to identify the authorities responsible of putting public health and environment in peril by remaining insensitive even when pesticide manufacturing companies and their umbrella organization, Crop Life International wrote to His Majesty's Government (then) showing readiness to receive back the chemicals or to dispose them safely and initiate necessary action against them as recommended by the committee.
8. Extract the expenses meted out in relation to this case from the respondents-which the petitioners are compelled to file due to the irresponsibility and indifference of the respondent parties.

The petition requests to issue an interim order to relocate the stored pesticides from the vicinity of school premises to a safer location and reach decision the petition by giving priority in its hearing.

The Single Bench had issued an order to bring forth the petition in preferential basis after obtaining written responses from the respondents (within 15 days).

On the order above, the Office of the Prime Minister and Council of Ministers furnished a written reply seeking the dismissal of the writ petition. The standpoint is that the Office and other offices are made respondents by the petitioner parties without any basis or sound reason; the petitioners have also failed to produce a clear stand on which actions of the respondent parties have violated which of their rights.

The reply has also denied the allegation of governmental recklessness and callousness as being fact less. The government has stored 50.9 metric tons of pesticide on a wooden stand, above the contact of wet floor, in a ventilated facility. The 6 member team formed by Ministry of Agriculture and Cooperatives on Ashwin 12, 2061 conducted an on-site inspection, but could not report any discrepancy that could corroborate the scientific basis as claimed by the petitioner. However, it has been pinpointed that repackaging needs to be done according to the varied lots of the pesticides.

It has also been held in the reply that the claim advanced by the petitioners about the plight of the places of storage is also baseless and untrue since packaging and repackaging of the outdated pesticides amounting to 23.357 metric tons, other than from Amalekhgunj have been done complying with the criteria of Sea Transport Regulation Packaging adopted by GEPAG and IMO\UN. The same process has been followed with regards to 43 cylinders of Methyl Bromide lodged in Khumaltar and Green Peace has provided fiscal and technical assistance in this venture.

Currently, Biocidal Pesticides Act, 2048 and Biocidal Pesticides Rules, 2050 are in force in Nepal. Clause 9 of the Act requires that the pesticides traded and used in Nepal be registered with the concerned authority. The very same provision roots out any chance of presence of outdated pesticides at present times. Eight variants of pesticides falling under the Stockholm Convention on Persistent Organic Pollutants have been prohibited. Likewise, Phosphamidon BHC,

Lindane and Organomercury Fungicides also have been banned. So, henceforth, there are no chances of stockpiling of such pesticides.

Green Peace did repackaging of the outdated pesticides and also catalogued them. This spells the need for collaborative efforts in addressing this subject of common concern.

The insistence of the petitioners seems to be baseless and untrue also on account of the various measures undertaken by the Government to address this predicament. Till 1993, 114 tons out of 150 tons of toxic wastes reserved in Nepal was safely disposed with the assistance of the Asian Development Bank (ADB). A vision has been taken to dispose gradually-decomposing pesticides in Nepal itself and to destroy elsewhere the persistent ones who leave residues for a longer period of time. Crop Conservation Directorate has been entrusted with the responsibility for this purpose. Observatory tests have been made by the Directorate at a farm in Saptari to determine the effects of disposing the pesticides under the soil and the tests showed no adverse outcomes. The Government has also been mulling on using its own resources towards the removal of these toxic wastes and correspondence is also going on among donor agencies in this regard.

Regular inspection and on-site testing is also in progress. No leakage or the possibility of it had been found from the metal drums and plastic containers holding the pesticides in an inspection carried out by a taskforce formed by the Ministry of Agriculture and Cooperatives on Ashwin 12, 2061. Similarly, a report from a regular inspection conducted by a 4 member taskforce on Falgun 22, 2061 found the storage area and its status as satisfactory. Likewise, a previous team who visited the site from Chaitra 3 to 5, 2054 had given a report that provided the pesticides are stored in the present condition and if regular monitoring is made, the toxic wastes could not affect public health and environment for at least 10 years to come. That technical team had interacted with the local people, journalists, school, police, and administration, representatives of the Agricultural Tools Corporation, the Village Development Committee and the District Development Committee before reaching to this conclusion. Moreover, a joint meeting of the Secretaries of Ministries of Agriculture and Environment on Baisakh 28, 2062 constituted a taskforce which has recommended on Jestha 12, 2062 that the pesticides can be relocated to the godown of National Seeds Company at Nawalpur, Sarlahi. Necessary initiatives are being taken in this regard.

In order for fulfilling the obligations created by the Stockholm Convention, to which Nepal is a signatory, POPs Enabling Activities Project is functioning in partnership with the Ministry of Environment, Science and Technology, GEF and UNIDO. The Project is scheduled to accurately record the presence of pesticides industrial chemicals and Dioxin/Fuvsans gases leaked and littered across Nepal and to prepare an action-plan so as to destroy them. It is also entitled to make an action-plan for the enforcement of the Convention and to search for alternatives against persistent pollutants and pesticides. The Government is also mooting on becoming a party to the Stockholm Convention on POPs as well as Rotterdam Convention on PIC. This will help the Government in strengthening the national capacity on managing pesticides and chemicals, in transfer of relevant technology and in increasing fiscal and technical assistance. All these measures testify to prove the allegations of the petitioners to be false.

The claim that the Rule of Law has been ridiculed in this case is also baseless in the sense that Environment Protection Act, 2053, formulated to realize the objective of livelihood in a clean and healthier environment, contains numerous provisions in this concern. The Government's each and every step and efforts are directed and will be directed towards the technical, legal, practical and human aspects of life. Nepal has shown its solidarity towards the efforts made in issues related to environment at the international level as well. Periodic amendments to the existing laws are also undergoing. Nepal has also pledged to ban import of Methyl Parathene and Monocrotofus pesticides which come under the PIC list by January 1, 2007 as part of fulfilling WTO's obligation in the agricultural sector.

Target has been set for packaging and repackaging of the outdated pesticides in terms of their sensitivity. In this process, 22 tons of toxic waste has already been repackaged and the remaining pesticides will be stored securely. Local opposition has stopped local disposal of waste which was feasible. Regular supervision of the areas in which the pesticides are kept is being undertaken. In coordination with NARC, investigative analysis is being made to delist Methyl Parathene and Monocrotofus pesticides as per Nepal's commitment. In order to fend off possible dangers to public health and environment posed by specific types of pesticides used in agricultural and health sector, ban of such types of chemicals is enforced which signals Nepal's solidarity towards the efforts in restoring environment at the international level. In this vein, the Ministry has internalized the suggestions made by the respondents regarding the storage and disposal of pesticides currently deposited in Nepal.

Considering the aforementioned arguments, the Ministry of Agriculture and Cooperatives has urged, in its written reply, to quash the writ petition as the claim of the petitioner is baseless and not founded on truth.

The Stockholm Convention on Persistent Organic Pollutants concluded on May 21, 2001 with a view to ban the production, trade and use of Persistent Pollutants which have induced environmental crisis on a worldwide scale. Nepal has also expressed its commitment to the Convention by signing on it on April 5, 2002. In order for fulfilling the obligations created by the Stockholm Convention, POPs Enabling Activities Project is functioning in partnership with the Ministry of Environment, Science and Technology, and UNIDO. The Global Environment Facility is rendering financial assistance to this project.

The writ petitioners in their petition have raised the issue of import and disposal of harmful pesticides after duly performing environmental audit and assessment, as prescribed by Environment Protection Act, 2053 and Environment Protection Rules, 2054. In this sense, it is evident that the Act and the Rules came into force from Asar 10, 2054 and Asar 12, 2054 respectively. First of all, in Nepal, pesticide such as DDT was used in the 1950s eradicate malaria from the Terai region. Since the last four decades, pesticides as BHC, DDT, Aldrin, Dieldrin, etc are being used in a widespread scale with the objective of increasing agricultural output. This tells that the pesticides are being imported from that time and began to deposit ever since. I would like to convince the respected Court that after the enforcement of the above Act and Rules, the administration of such pesticides is being done as specified in the laws and will be so. Moreover, the aforementioned project formed under this Ministry has also aimed to prepare a National Implementation Plan (NIP) in order to facilitate implementation of the Stockholm Convention.

Nepal, after being a signatory to the Stockholm Convention, the condition is such that until a National Working Plan is drawn up after obtaining accurate records of the outdated pesticides financial and technical support from the donor agencies as well as the Global Environmental Facility cannot be mobilized. As per the decision of the first Conference of the Parties to Stockholm Convention, held in May 2 to 6, 2005, in order to obtain financial assistance for fulfilling obligations to the Convention the State should be: a) a developing nation and b) a signatory to the Convention. So, I would like to kindly inform that, in order for being eligible for fiscal aid to dispose outdated

toxic waste and to manage the persistent pesticides according to the spirit of the Convention, Nepal has already taken step for the accession to the Treaty and homework has also been initiated to make it a party state.

Disposing and managing the outdated pesticides is an uphill task. To safely dispose these toxic chemicals in an eco-friendly manner, they need to be burned in at least 1200-1500 degree centigrade in an incinerator for 1-2 seconds, failing which, it will result in the production of more lethal gases and their emission in the atmosphere. Furthermore, to check the spread of fumes and gases those are produced after the burning. Air Pollution Control Device needs to be installed in such incinerator so that the poisonous fumes are absorbed therein. The technological arrangement as such is lacking in Nepal and that has created hurdles in timely removal of the outdated pesticides. This calls for the need of sending those chemicals to European or other countries with such incineration plants and technological preparedness. This process amounts to millions of rupees which need to be arranged for.

Besides the mechanism to dispose persistent pesticides, legal basis and guidelines are also needed. Now, when the Stockholm Convention is already in effect, full compliance of the provisions for disposal of pesticides needs to be observed. For this, necessary infrastructure such as Detailed Inventory, institutional and legal frameworks, necessary mechanism is required and a National Implementation Plan should be sketched out incorporating all these elements. So it will be easier only after preparation of the plan, to proceed with the disposal of toxic wastes. The ministry is headed in the same direction. At this point, I would like to assert my commitment towards early and environment-friendly removal of the outdated pesticides which are considered highly injurious to public wellbeing and atmosphere.

The Ministry of Environment, Science and Technology, on the basis of the above arguments, in its written reply, has urged for the dismissal of the writ petition as there is no ground present for issuing mandamus as demanded by the petitioners, since the Ministry is involved towards early and environment-friendly disposal and management of the outdated, hazardous pesticides.

At this, the Court issued an order on Jestha 1, 2063 demanding:

- a) To extract written reply from the Ministry of Environment, Science and Technology on what progresses are made on the issues

pointed out by the report of Inventory of Pesticides in Nepal, POPs Enabling Project, April, 2005 by attaching a replica of the inventory.

- b) To extract written reply from the Ministry of Foreign Affairs on what progresses are made on the correspondence done by Crop Life International on October 26, 2001 through the then Nepalese Ambassador to Belgium Mr. Kedar Bhakta Shrestha, to His Majesty's Government (then) expressing its willingness to take back the pesticides indiscriminately deposited in Nepal.
- c) To duly submit the petition to the bench with documents once they are acquired.

On this, since it was not been seen that the Court's order of Jestha 1, 2063 was sent to Ministry of Environment, Science and Technology, the Court ordered to seek reply within 7 days from that concerned Ministry. Likewise, since the Ministry of Foreign Affairs had communicated with the Ministry of Agriculture and Cooperatives regarding the withdrawal of pesticides indiscriminately stored in Nepal, the Court on Baisakh 25, 2065 ordered to furnish reply relating to that episode as well.

The Supreme Court, further, on Mangshir 4, 2065, ordered to write down to the Secretaries of the Ministries of Agriculture and Environment to be physically present on the day of hearing, in order to inform the Bench about the future plan regarding the disposal of the pesticides.

On the writ petition duly submitted before the Bench, learned Advocate Prakash Mani Sharma on behalf of the petitioners presented the case. He mentioned in his arguments that the Interim Constitution of Nepal, 2063 and the former Constitution as well, has granted Nepali citizens the right to life. Similarly, the rights of environment and health are also constitutionally guaranteed. In this regard, the policies and programmes of the respondent, the Government of Nepal should have been oriented towards the consummation and practice of the citizens' constitutional right to live in a clean environment. However, in practice, it is bluntly opposite. Amalekhgunj of Bara district remains as a hub of the East-West Highway, where more than 50 tons of outdated pesticides is arbitrarily stockpiled. Adjacent to the depot where pesticides are unsafely kept, lies a school by name of Nepal Rashtriya Madhyamik Bidyalaya. Besides, there is human settlement encircling the site and the depot lies along side of East-West Highway where, naturally, a large number of people shuttle to and fro. This place is also located in the proximity of the Nepal Oil Corporation's biggest

petroleum reserve of the nation. Because of this, health related ailments have begun to be seen among the local populace including children of the local school. Notwithstanding, it has created a grave threat posed by probable leakage likely to be induced by explosion or accident which may result in large-scale loss of lives and property. This fact has been corroborated by studies carried out by the petitioner agencies as well as other institutions.

Nepal has been a signatory of Stockholm Convention on Persistent Organic Pollutants (POPs) since 2001. Articles 3, 4, 5 and 6 of the Convention lay down the responsibility of the State in managing the pesticides that come under POPs and their resultant wastes. This makes it clear that the duty of safely disposing such types of pesticides rests on the Government of Nepal.

Green Peace, an INGO working in the environmental sector, conducted a study of the stockpiled pesticides in Nepal and sensitized the Government to make the manufacturing companies responsible to dispose them off in a safe manner. Similarly, the umbrella organization of pesticide manufacturing companies-Crop Life International had also committed to withdraw the toxic wastes to the countries of their origin. However, due to the negligence of the respondents, this task is far from being accomplished. Advocate Sharma advocated for the need of issuance of mandamus against the respondents as requested in the petition.

Joint Attorney Mr. Yubaraj Subedi, appearing on behalf of the Government of Nepal refuted the claim that the toxic wastes are being housed in an unsafe manner. All protective measures have been employed in storing the pesticides so that no harm is inflicted to the health of the public. Since those pesticides cannot be disposed in Nepal, the Government is working towards sending them back to the related manufacturing company. Since this process is going to be completed in near future, the condition to issue the order of mandamus does not arise. He pleaded that, therefore, the writ petition should be dismissed.

Secretary of the Ministry of Agriculture and Cooperatives Mr. Braj Kishor Prasad Singh and Secretary of the Ministry of Environment, Science and Technology Mr. Uday Raj Sharma who have appeared at the hearing following a previous order of the Court, briefed the Bench about the technical aspects of the pesticides, ways to dispose them securely and the efforts of the Government in this regard. The bench was informed that pesticide such as DDT was used in the 1950s to wipe out malaria from

the Terai region. Since the last four decades, pesticides as BHC, DDT, Aldrin, Dieldrin, etc. are being used with the objective of increasing agricultural output. The pesticides were imported as part of the agricultural loan lent by the ADB and due to lack of their timely use, began to deposit ever since. Out of the date-expired pesticides, 114 tons of easily destroyable pesticides are already disposed off. Currently 50 metric tons out of 74 tons of pesticide across the country, is housed in Amalekhgunj. It cannot be disposed in Nepal. Therefore, it should be sent to the country of its origin. Huge amount of monetary resources is needed for that purpose and Nepal also lacks the technical prowess to send back the toxic wastes. International assistance is indispensable for this purpose. Nepal has already ratified the Stockholm Convention on Persistent Organic Pollutants (POPs), 2001. Even going by its provisions, it is the liability of the manufacturing companies to receive back and safely dispose such chemicals. The Government has been working in this direction. Government of Nepal is also engaged in preparing and submitting a National Implementation Plan as it remains instrumental in enforcing the Convention. The Secretaries also notified that within a year, all these preparations will be met and the pesticides are safely disposed.

After studying the petition and written replies, listening to the arguments presented by the learned lawyers of both sides and after discussion with the secretaries of the concerned ministries, the decision was found to be taken focusing on the following matters:

- a) What is the nature of adverse impact meted out against the environment and public health through the emission, transportation and disposal of such persistent pesticides? And what efforts are underway to minimize such ill-effects?
- b) What liability is formed against Government of Nepal and the international community towards the safe removal of these toxic substances?
- c) Whether or not there is a condition to issue order as requested in the writ petition?

While contemplating on the first question to be decided and on analyzing the instances put forth in the petition, it is clear that the respondents have stockpiled nearly 75 tons of outdated hazardous pesticides in different parts of the nation. Out of them, some belong to the category of Persistent Organic Pollutants (POPs) such as Organomercury, Organochlorines which are highly injurious and have long-lasting effects. Fifty tons of pesticides have been housed in Amalekhgunj at the depot of Old Railway since 2032 BS. Adjacent to the storehouse, lies a school by name of Nepal Rashtriya Madhyamik

Bidyalaya. Eight hundred students of different age groups get education there from. Besides, there is human settlement encircling the site and the storehouse lies along side of East-West Highway where, naturally, a large number of people shuttle to and fro. This place is also located in the proximity of the Nepal Oil Corporation's petroleum reserve. The ill-effects of this storage have already been shown in the school children. Moreover, bases have been given to the existence of a grave threat posed by probable explosion or accident likely to be induced by seasonal fires, floods and other natural calamities and the resultant loss of lives and property as well as environmental catastrophe.

Upon going through the written reply of the respondents including that of Ministry of Agriculture and Cooperatives, it is understood that nearly 75 metric tons of outdated POPs are hoarded in Amalekhgunj and other parts of the country. Government of Nepal is undertaking various researches so as to ascertain the impact upon the local population. 50.9 metric tons of outdated toxic wastes are kept in Amalekhgunj while 23.357 metric tons are stored elsewhere in Nepal. 43 cylinders of Methyl Bromide are also housed in. Green Peace International has helped in packaging and repackaging of the pesticides other than that of Amalekhgunj. It has been mentioned in the reply that even the pesticides at Amalekhgunj have been stored on a wooden stand, above the contact of wet floor, in a ventilated facility. There is neither leaking nor the chance of leakage.

From the petition as well as the written replies, the fact is disclosed that the pesticides stockpiled in Amalekhgunj and other parts of the country have run out of date, cannot be destroyed easily, bear far-reaching ill-effects, and are extremely dangerous from the viewpoint of public health and ecology. To add on that, 50.9 metric tons of the toxic waste is lodged in a single place Amalekhgunj. Adjacent to the storehouse where pesticides are kept, lies a school by name of Nepal Rashtriya Madhyamik Bidyalaya. Ailments such as nausea, vomiting, vertigo and occasional fainting experienced by the teachers and pupils of the school caused by the spread of toxic fumes across the region, have come up in a health check-up. Similarly, the patients of skin diseases, respiratory and eye infections constitute a majority of those thronging the local health post. The respondents are unable, in their written replies, to refute this claim on concrete grounds, made by the petitioners on the basis of research. Likewise, One of the petitioner agencies, Janahit Samrakshan Manch, on July 2005, collected soil samples of school playground and sent them to the laboratory of Center for Science and Environment (CSE), New Delhi, India to test

the chemicals and ascertain the environmental impact imposed upon the region. High amounts of contamination including that of DDT and other pesticides were found out from the test samples. The respondents are also unable to disprove this fact or tell otherwise, which has been backed by replica of the report submitted together with the writ petition.

One of the respondents, the Ministry of Agriculture and Cooperatives, in its written reply, has stated that the harmful pesticides stored in places other than Amalekhgunj have been packaged and repackaged following international standards. This makes it clear that the pesticides kept in Amalekhgunj are far from being properly and safely stored. Similarly, a 6 member committee constituted by the same Ministry on Ashwin 12, 2061, after on-site inspection, had pointed out the need to repackage the toxic wastes by analyzing their individual lots. However, the written response furnished by the Ministry remains silent on whether that recommendation was met or not. Likewise, a previous 3 member team who visited the site from Chaitra 3 to 5, 2054 had given a report that provided the pesticides are stored in the present condition and if regular monitoring is made, the toxic wastes could not affect public health and environment for at least 10 years to come. Even counting from that, 12 years have passed by. So it seemed clear that now the pesticides have grown to be detrimental from the point of view of civic health and environment.

This way, even the studies and researches carried out from the government side have stressed in packaging and repackaging of the pesticides pursuing international standards and in speedy relocation or safe disposal of these chemical wastes. This proves beyond doubt that the pesticides are serving as pertinent danger and threat to the lives of the school children, local community and the environment. Even the Secretaries of the Ministries of Agriculture and Environment could not negate this fact. Thus, it has been established unequivocally that the hazardous pesticides stored in Amalekhgunj and other parts of the nation are capable of bringing, at any point of time, terrible and unthinkable peril towards the local human community and the ecology.

Serious apprehensions and concern have been demonstrated from time to time at the international level on the devastating effects on human health and environment cast by persistent pesticides. There could be no argument on the opportunities of better livelihood created by the highest urge of technical and physical advancement which have helped towards making lifestyle easier, well attended and qualitative. Those nations who had been forerunners in the campaign

to industrialization are reaping rich benefits too. However, the developing nations are compelled only to bear the brunt of development, in other words, only the adverse effects of environmental degradation.

The moving and never ending nature of development has brought about another indefinite and gloomy outcome with it. Its forgettable aspect is present before us in the form of environmental destruction. Therefore, the developing and underdeveloped countries are faced with a two-way challenge. On one hand, they have to satiate the need of development and on the other, have to check the adverse impact upon environment created as a negative effect of development.

The relentless exploitation of natural resources at the pretext of development has endangered the natural state of Earth itself. As a result, frightful problems such as the climate and weather change have to be faced with. The excessive exploitation of natural resources by the current generation has immediate repercussions on environment and human health. Its long-standing effect is even more disturbing. Much time has elapsed since voices were raised that rights of the upcoming generations over the Earth should also be secured; and not only of the present generation. Since the obligation of safely handing down Earth to the newer generations lies with the current one, the notion of sustainable development has advanced which tells of striking a fine balance between environment and development.

This issue was significantly raised in the Earth Summit held at Rio de Janeiro of Brazil in 1992. This summit attended by almost all the nations of the world, released 21-point declaration commonly known as Agenda 21. It advanced the concept of 'precautionary principles' in addition to other, so as to arrest environmental degradation. This declaration has emphasized on cutting down production of harmful, environment-degrading substances and to maintain special vigil on the trafficking and disposal of such substances. In order for implementing the provisions of the Summit, several international conventions, declarations and commitments have been made and promulgated. This has attracted the attention of the world about the negative impact of hazardous pesticides in an organized way.

As a matter of fact, the concept of environment justice tries to advance the key notions of human rights, public health, ecology and development in a balanced approach. Even more, the right of freedom from pollution has become a subject of primary concern and care. Pollution adversely affects the elements of nature in totality. Not only human beings, pollution seriously dent the spheres of flora and fauna,

water resources and air as well. The density of its negative impact is growing geometrically. Due to this, threat is looming upon the safer status of the Earth itself.

Harmful chemical pesticides that group under the persistent pollutants might have been produced to save the human race from the dangers of other animals or to increase the agricultural output. How much mankind had gained from them is altogether a different question. But in course of time, their disastrous side outweighed their beneficial aspect. After this has been proved by scientific facts, even the distant generations have to pay the price of the niceties that mankind had enjoyed for a short time. Therefore, it was all but natural that voices are raised to delimit the production and import-export of such substances. Concurrently, the issue of saving environment and the general public from the hazards of unused, stockpiled and long-affecting pesticides has emerged as a grave challenge before us.

The need for exclusive technology to dispose the pesticides, the involvement of real risks in the process, the requirement of huge amount of sums as well as the repercussions of disposal upon public health and ecology have tempted the manufacturing countries to export those poisonous substances to the underdeveloped countries in one or the other pretext; and this practice is flourishing. In order to skip the hurdles in disposal at the local level in developed countries due to the high level of awareness in the people, the developed countries have been scheming to export these persistent pesticides to the third world countries where people's level of awareness is relatively lower, in the names of loan, grant, technical aid, etc. This strategy of the developed countries has resulted in the underdeveloped countries becoming warehouses of these toxic products.

Heeding to the same state of affairs, Basel Conference of Plenipotentiaries was convened on March 20-22, 1989 at Basel city in Switzerland, with a view to curb the use and trafficking of these toxic wastes. Consequently, Basel Convention on the control of Trans-boundary movements of Hazardous Wastes and their Disposal was signed upon on March 22. However, countries which produce and export such toxics, like the USA, are still reluctant to ratify the Convention. Apart from other things, the Convention has recognized the differences in fiscal and technical abilities between the developed and developing nations. The Convention has also brought to light, the environmental liability to be shared by both sending and receiving nations since the developing countries find themselves unable of

disposing the hazardous wastes in eco-friendly method. The Convention has prohibited the export of toxic substances completely from developed countries to the developing ones with a view of disposing them. In the same vein, it also has earmarked full responsibility on the developed nations to safely dispose such wastes if already sent. In order for realizing the provisions of the Convention, various conferences, declarations, treaties and legal documents have been undertaken at the national and international levels.

Basel Convention has defined several technical terms, viz. wastes, Inter-state relocation, disposal, environment-friendly suitable management, to name a few. Article 1 defines- substances which are defined by national and international laws as hazardous and which are included in Schedule 1 of the Convention- as wastes. Similarly, Article 4(2) envisions to reduce the emission of hazardous and other wastes to minimum point possible, to establish sufficient places for the disposal of wastes, to contain the pollution propagated by toxic wastes, and to minimize trans-boundary movement of wastes, to dispose wastes through fair management by saving mankind from the negative impacts of the movement of such toxic substances among others. Article 8 has attributed special accountability to the exporting nations whereas Article 9 speaks of controlling the illegal movement of such hazardous products. Likewise, Article 10 lays down about the international obligation of rendering technical and fiscal assistance to the underdeveloped nations for the purposes of safe disposal of these wastes. Article 12 has also provisioned for a separate protocol to deal with the arrangement of compensation in case accident arises in the process of relocating or disposing hazardous wastes.

The fundamental principle espoused by the Basel convention seems to be oriented towards reducing emission of wastes detrimental against civic health and ecosystem, not emitting as far as possible and locally disposing wastes produced through clean technology.

In the same vein, the Stockholm Convention on Persistent Organic Pollutants (POPs) 2001 has been brought to effect since March 21, 2001 for the purpose of prohibiting the manufacture, use and transportation of persistent pesticides and to dispose them off in an eco-friendly method. From its preamble, it is obvious that the convention came as a result of common international commitment to protect public health and environment from the effects of persistent pollutants. It has completely prohibited the production and use of 12 extremely injurious POPs. 8 types of Organochlorine pesticides, viz. Aldrin, Chlordane, DDT, Dieldrin, Endrin, Heptachlor, Mirex an

Toxaphene, 2 variants of industrial chemicals, viz. PCBs and Hexachlorbenzene and 2 other chemicals produced without any purpose namely Dioxin and Furans have been grouped under the heading of POPs. In this regard, it is a matter of grave worry that the persistent pesticides stored in Nepal largely belong to the Organochlorine category as is revealed by the Inventory Report.

The Convention has expected of the countries, party to it, to ban the production, propagation, use and re-use of such persistent pesticides and hazardous industrial chemicals. Likewise, it also has amalgamated the topics of identification, safe storage and eco-friendly removal of such persistent pesticides on the lines of international laws including the Convention itself. The convention, as well, has assimilated the principle and concept of partnership between national and international sectors towards detoxifying places, containers and equipments once holding the toxic wastes, after these are securely disposed off.

Article 3 of the Convention warrants the member states to arrange for legal framework and institutional mechanism for enforcing ban on the manufacture, use and export of POPs and chemical substances. Article 4 deals with the recording and listing of such toxics whereas article 5 pertains to the making of action plan for controlling the use of these pesticides. Article 6 has included the measures to be followed of restricting the use of pesticides as per the action plan. Similarly, Article 7 tells of National Implementation Plans to be prepared by the member states in order to fulfill all of the obligations set forth by the Convention.

Nepal has ratified the Basel Convention on January 13, 1997 and the Stockholm Convention on October 13, 2006 and hence has become a party to them. In this scenario, as per Section 9 of the Treaties Act, 2047, the obligation to implement the Convention befalls on the Government of Nepal.

After it has been established beyond doubt that the pesticides stationed insecurely in Amalekhgunj as well as other parts of the country are hazardous and extremely dangerous, now it has become necessary to decide and analyze the 2nd question about ascertaining on whom lies the responsibility to safely dispose those pesticides.

Since the right to live in a clean environment is itself embedded in the right to life granted in Article 12(1) of the formerly prevalent Constitution of the Kingdom Of Nepal, 2047, polluted environment

amounts to the infringement of this right. This precedent has been propounded by the Court in leading environmental cases such as the Godavari Marbles and the Bagmati pollution. In other words, this Court has been expressing serious concern and interest for environmental justice since long ago.

While filing this petition, Constitution of the Kingdom of Nepal, 2047 was in force. So claims were made standing on it. However the right to life has also been guaranteed by the current Interim Constitution of Nepal, 2063 as well. Moreover, additional safeguards have been made in the form of Article 16 which relates to the right to clean environment. Therefore, in the wake of unsafe storage of toxic chemicals till now, the obligation of the State to save environment and public health from its hazards is constantly existent. Hence, it is the responsibility of the State to ensure the rights to life and life in a clean environment, conferred to the citizens of Nepal by the current Interim Constitution.

Reading through the provisions of Article 12(1) of Interim Constitution of Nepal, 2063, it has been established that every person shall be entitled to a respectable living and no laws shall be enacted so as to award the capital punishment. Likewise, the right of every person to live in a clean environment has been attributed in Article 16(1). This way, the current Constitution has tried to ensure the right of decent livelihood in more liberal terms as compared to the previous one. To add on that, by assimilating the concept of environmental justice, it has accepted the right to live in a clean environment as a fundamental right in itself.

However, the mere mentioning of decent livelihood in the Article of the Constitution, itself, does not lead to its guarantee. So in order to realize that Right, it is the duty of the State to remove hurdles and challenges on the way to human existence. But, on going through the context raised in the given petition, State responsibility to eliminate the obstacles on the right to life of people- does not seem to be fulfilled. Moreover, the State itself is seen playing with the lives of unsuspecting school-going children and innocent citizens by stockpiling hazardous pesticides unsafely at their premises.

In the same way, the significance of the right to live in a clean environment guaranteed by Article 16(1) of the Constitution also cannot be underplayed. There is no doubt that the awakening towards environmental justice has taken up the present shape only after the assistance and initiative offered by the UN and its specialized

agencies. Voices are being raised vigorously since the 1970s in this regard. The tireless efforts and awareness of the countless civilized inhabitants of the world has added boost to the movement for environment conservation. The main aim of this campaign is not only to maintain balance of the world ecology but it also amalgamates the objective of safe handover of Earth to upcoming successive generations. The founding pillars of our constitutional provisions stem up from the background of concern, worries and interest towards the environment staged in national and international scenarios. Hence, it is an obligation of the State to ensure a person's right to life in a clean environment. If the State, which is entrusted with such responsibility, itself, creates a venomous environment by damaging the environment and violating a person's right to life in a clean environment, then it cannot be construed as the State fulfilling its duty towards the citizenry.

To provide the right to health for Nepalese citizens, according to Article 16(2) of the Constitution is also a responsibility of the State. Still it is seen that the pollution resulting from the insecure storage of harmful pesticides in Amalekhgunj is taking a toll on the health and lives of local students and community. The citizens are compelled to bear health related ailments even for the mistake they have not committed and are forced to cough out monetary resources by themselves for their treatment, apart from being impelled to frequent hospitals by obstructing their daily chores. This amounts to the violation of other fundamental rights endowed to the citizens apart from the right to health. The locals suffering from poverty and scarcity might also be short of adequate sums for the treatment of pesticide-induced diseases. Huge sums of money may be needed as such ailments cannot be treated at the local level and the locals have to visit far-flung, well-equipped hospitals and health centers. Long-going treatment by the people who are dependent on daily wages to make both ends meet may face starvation on account of this.

A parallel risk is that the soil, after being polluted by the chemicals, may adversely affect agricultural production. The effect of the hazardous wastes may contaminate underground water which will produce water unfit for consumption. The contamination can also pollute surface sources of water and thus the source of water for local community is also in the risk of destruction. The matter should be taken with utmost seriousness as, if the fumes of pesticides are blown over in the air, not only the locals, but also a huge population of far-flung places will be in the grip of health hazards and the whole environment shall be contaminated. But it seems only token measures are taken upon studying the written replies of the respondents. From

this it is deduced that the State has not only failed in protecting the health of its citizens and the environment, but also the State's role has been seen as retro-productive or negative towards guaranteeing its citizens the fundamental right to health.

Under Article 35(5) of the Constitution, the State has followed the policy of undertaking adequate measures to keep the environment clean and to accord priority in raising awareness among the masses towards environmental hygiene. This subject is incorporated in the policy with a view to promote the rights to life and life in a clean environment, established as the fundamental rights. So it is not only desirable but mandatory as well that the programmes of the State address this issue.

The Environment Protection Act, 2053 which came with the objective of implementing the above-mentioned fundamental right to life in a clean environment, has provided for various steps to protect persons from environment pollution. Section 7 has forbidden pollution which can pose remarkable negative impact on the environment or which can endanger the livelihood and health of public. Besides, in Articles 3, 4 and 5, there is a provision for preliminary environment impact assessment (EIA) to be conducted prior to any works related with development and construction. Meanwhile, on the lines of this arrangement, in Schedule of Environment Protection Rules, 2054, preliminary environment evaluation (PEE) has been prescribed for acts leading to either of the following: a) importing pesticides amounting from 1 up to 10 tons, b) Trading, storing and disposing of pesticides ranging from 200 kgs to 1 ton and c) Using of pesticides ranging from 100 kgs to 1 ton in a single, particular place. Similarly, compulsory environment impact assessment (EIA) has also been prescribed for acts leading to either of the following: a) importing pesticides amounting to more than 10 tons, b) trading, storing and disposing of pesticides amounting to more than 1 ton, c) using of pesticides amounting to more than 1 ton in a single, particular place and d) establishing pesticidal plant or doing other works related to pesticides.

In the same manner, in order for managing and regulating the import, export, trade and use of pesticides, Biocidal Pesticides Act, 2048 is also in existence. Section 2 of the Act arranges for the formation of a Pesticides Committee whereas Section 5 has laid down the powers and duties of the same committee which includes framing policies relating to pesticides. Likewise, Section 7 has separately provisioned for a Pesticides Registrar for laying basis to the appropriate and

rationale use of such hazardous chemicals. But it is not seen from the respondents' side that they have delivered with the legal obligations with which they are endowed upon.

As per the requirements of the Stockholm Convention on Persistent Organic Pollutants (POPs), 2001, National Implementation Plans (NIPs) need to be drafted and submitted by the developing nations, which are unable to dispose the hazardous wastes on their own, after collecting records of such pesticides-for their safe disposal. In the absence of such plans, they cannot avail of the international financial and technical assistance to remove such toxics. Nepal, falling short of such technical and financial abilities, is unable to dispose the wastes on its own, as mentioned in the written replies of the respondents. As such, a POPs Enabling Project is running under Ministry of Science and Technology and a record of the outdated persistent pesticides seems to have been made, following the Inventory Report of that Project. At this premise, the information and commitment communicated by the Secretaries before the Bench that such a National Implementation Plan is being made and that the task of safely disposing the pesticides will be complete within a year are praiseworthy. But this Court wants to see the commitment transformed into reality.

Although the exact what, which, when, where from and how much these hazardous, persistent pesticides were imported unknown. However, it seems that they were imported as per the planning of eradicating malaria and alleviating poverty by increasing agricultural output, as part of the agro-loans, donations and assistance from the international community. The pesticides which are able to devastate mankind and the whole environment were banned in the countries of their origin even by the time of their export to Nepal. Still, they were sent to impoverished nations like Nepal as forced loans. From this predicament, it becomes crystal clear how the developed nations enslave the developing ones in the name of assistance. If all the concerned parties learn lessons from this debacle, then it is expected that the Nepalese people will not have to suffer again in this way.

This quandary can be a shining example of how the rich and technologically strong nations, have, on the pretext of international aid, conspired for the vermin. But, the list of such international support has ever expanded since. A plethora of such identical events in recent times have made it clear that by learning lessons from these incidents, we should accept foreign aid only after going through the details and

intent, not only focusing on the cover. The dire need of the developing nations for financial and technical assistance and tendencies as well as plight of the governments and people of such countries, i.e. becoming restless for external grants, accepting virtually anything in the name of aid, trusting on the stated facts without probing and receiving goods and technologies without any skepticism, shortage of knowledge, information and labs if a need arises for the testing of such goods or services, lack of legal, policy and institution back-up to regulate such processes, dearth of knowledge among the decision-makers and their myopic vision of not foreseeing distant interests, absence of sense of accountability, adhoc-ism regarding disaster management and prevention, attaching less priority to allocate financial resources, etc. are at the heart of such predicaments. The outcome of the same has come up in today's shape.

Environmental justice embodies the concepts of preserving sources and means of a nation, establishing judicious reach of the maximal population and the equitable distribution of the benefits caused by the development of natural resources. While talking about the conservation of resources, the freedom from pollution comes at the first leg. However, due to the continual presence of pesticides in Amalekhgunj, it has been found that the State, in the process of importing, using in the name of agriculture or whatsoever and in attempting for disposal, has failed to show up the required concern and accountability as was expected from it. Even when negative effects were inflicted on the standard of living of the local population and even when they were forced to live in an environmentally-deteriorating situation, no program of compensation or damages has been announced. Ever since the import of the toxic pesticides, numerous governments came and went, several changes had been effected in administrative leadership as well, but nobody had to bear the accountability of not heeding to the plight of locals. If such non-obedience, neglect and irresponsible sentiments persist, then not only the current problem will remain unresolved, but nobody can also refute the reprisal of such events in future. Especially, until the bureaucracy does not become honest, competent and accountable, incidents of this nature will continue to happen.

The subject of environmental degradation is such that it affects the poor and disadvantaged class more than the rich and privileged ones because they do not have enough of alternatives. This holds true in cases of both people and nations. Therefore, the State should, in matters like this, design action plan and guidelines at a macro level and guarantee its rigorous implementation. Otherwise, environmental

violence will occur from the local to international level and, the environmental culprits shall walk scot-free and they will keep on reinforcing environmental injustice. That is why, to save the present and future generations of human beings from this vicious circle, the need has aroused to implement concrete and result-oriented programmes at the earliest.

While looking at the context of this case, from the written replies of the respondents, it becomes explicit that Nepal truly lacks the ability to safely dispose the chemicals in an eco-friendly manner. Now it has become paradoxical and unfortunate that even an institutional memory is not available on why, when and how the pesticides-resembling the Kala-Kut -a deadly poison mentioned in the mythology-were brought to Nepal. Now the citizens and the school children residing in Amalekhgunj and elsewhere are left with no option than to curse the contemporary Nepalese officials who were responsible of importing such persistent and devastating pesticides without even understanding the needs and uses for the nation.

By realizing the weaknesses and mistakes of the past and by pledging at least not to repeat such flaws in the future that affect public well-being and environment, environmental justice could be deemed to have been made towards the upcoming generation. The worry and concern for the day are to diminish the ill-effects of these toxics and to dispose them securely. There can be no dispute on the fact that this task has to be finished in an environment friendly way and at the earliest. However, it is not the task of the Court to specify the procedure as it is a matter of detailed technicality. The concern of the Court lies on the need of urgent disposal of the hazardous chemicals without damaging on environment and human health, according to the standards set by international conventions and on the protection of mankind and ecology from the hazards of these toxic substances. In the same vein, in the process of disposal of these pesticides, if any harm is to be done to the health of the local community and its environment, the government should arrange for appropriate compensation as well. For this, a survey and recording of the negative effects upon the natural resources, health and agriculture should also be taken up as an indispensable component of disposal and management.

Hazardous pesticides as such are capable of explosion, leakage, and propagation anytime during the processes of packaging, repackaging or disposal. The need to exercise precaution stems from the 25 year old Bhopal Gas Accident in which a storage tank of Union Carbide

plant, owned by an American company started leaking that caused enormous damage to the lives and property as well as inducing massive environmental damage. In the Bhopal accident, 15 thousand people lost their lives, several thousand others became crippled for life, environment got severely contaminated and the ill-effects are still emanating. The victims of that tragedy got only nominal compensation, the operating company could not be made wholly responsible and the sterilization and detoxification of the impact area was not done properly. For this, the Indian government still draws flak every now and then from its citizens.

Even in our context, the situation has come to seriously mull over the Indian experience. But, on seeing the written reply furnished by the Office of the Prime Minister and Council of Ministers which stands as the office of the chief executive of the nation, nothing can be found reflecting such caution or alertness. Harmful and persistent pesticides are stockpiled in giant proportions unsafely in various parts of the nation which can prove catastrophic to the health of the general public and the environment. But, there is no institutional memory as to the factual data relating to the purpose, date of import and quantity of the same. Neither there is any vision on how to stock and dispose them securely nor is any pro-activeness on how to mobilize international support. No apprehension is there on the damaging effects of the chemicals upon the local populace, school children and the ecology. The petitioners, on their own initiative, have unraveled this problem and tried to open up the eyes of the government. Notwithstanding this, quite paradoxically, the respondents have demanded to quash the writ petition on grounds of unconcerned parties being made respondents. This brings to light, the ghastly negligence of the state apparatus towards the right to life in a clean environment evoked by the irresponsible thinking, negligence and laxity concerning environment.

Therefore, the Government of Nepal is left with no other option than to sincerely proceed towards the implementation of commitment showed before international community and the Constitution. Rather than evading responsibility and shifting blame on others, it should urgently involve in the process of speedy and eco-friendly disposal of the toxic wastes and its management. For this, besides other considerations, a mechanism has to be set up with enough financial and technical resources so as to compensate the damage done or might be done to the local community and environment by the consequences of the hazardous wastes.

Only bickering about the mistakes done in the past will not contribute to problem solving. The single most vital concern for today is how to save mankind and environment by safely disposing those pesticides. By going through the written reply submitted by the Ministry of Science and Technology, the removal of such pesticides housed across Nepal is very complicated and challenging. To safely dispose these toxic chemicals in an eco-friendly manner, they need to be burned in at least 1200-1500 degree centigrade in an incinerator for 1-2 seconds. Furthermore, to check the spread of fumes and gases that are produced after the burning a device needs to be installed in such incinerator so that the poisonous fumes are absorbed therein. The technological arrangement as such is lacking in Nepal. Therefore, the only option available is to send the pesticides to European or other countries with such incineration plants. Moreover, the technology of packaging and repackaging of the pesticides so that they can be safely moved elsewhere also does not seem to be available in Nepal.

Since there is tradition among the technologically challenged countries to send the pesticides or other toxic substances to more technologically competent nations, there is no reason on Nepal not doing the same. As a matter of fact, it is a subject of primary obligation as well as international liability on the part of exporting country to safely dispose such hazardous substances. Therefore, necessary leverage should be exercised for that.

The petitioners, in their petition, have alleged that despite the interest shown by Green Peace and the umbrella organization of pesticide manufacturing companies-Crop Life International, the Government of Nepal did not give sufficient heed to it. Nepal should cordially invite such assistance. The stance of international power centers and economic powerhouses of manufacturing pesticides that are extremely injurious to the flora, fauna and ecology and their propensity to shift this unwanted liability on the poor and underdeveloped nations is condemnable as well as regrettable. The international community should come forward to accept the responsibility of its ghastly mistake. When the international community is lending a helping hand, Government of Nepal should also leap forward by partnering in the process, for the safe management of these pesticides which are proved to be dangerous from the perspective of welfare of mankind and environment conservation.

Upon deciding the final question of whether or not an order as requested in the petition is to be issued, it came without contention that the outdated, persistent pesticides stored in Amalekhgunj and elsewhere of the nation are hazardous substances capable of causing imminent danger to the human health and environment. The contemporary Constitution of the Kingdom of Nepal, 2047 as well as the current Interim Constitution of Nepal, 2063 have guaranteed the natural right to life and have accepted the right to life in a clean environment as a fundamental right in itself. Hence, the State's responsibility is witnessed in honouring, obeying and fulfilling that right. In the same manner, it is mandatory that the State mobilize all channels, political and diplomatic, to assume responsibility espoused by international treaties and conventions. This equally holds true in dealing with the circumstances induced by international community or foreign nations. Therefore, under the obligations towards helping the developing countries in safe disposal of such pesticides as set by the Stockholm Convention on Persistent Organic Pollutants (POPs), 2001 and Basel Convention on the control of Trans-boundary movements of Hazardous Wastes and their Disposal, 1989, it is liability of the international community as well and in order to garner such support, the State side itself should be actively involved.

At the aforementioned context, in order to safeguard the constitutionally guaranteed rights to life and life in clean environment, to garner relevant assistance from the international community on the lines of Stockholm Convention and Basel Convention, to coordinate and co-work with international non-governmental organizations such as Green Peace International and Crop Life International, to internalize the subject matters espoused in the above mentioned references, the Court issues the order of mandamus in the name of respondents including Government of Nepal, Office of the Prime Minister and Council of Ministers to fulfill the under-mentioned tasks, apart from others, within a period of one year and to submit information in writing to the Court, for the enforcement of this order:

- a) To prepare a profile including the chronology of events depicting when, how, for which purpose, from where, how the pesticides currently stored at Amalekhgunj and other parts of the nation were acquired; how these were used, expended or disposed. It must include the related decisions and should be

made in such a way as to help in identifying the decision-makers.

- b) To promptly prepare an inventory which shall include information on the persistent pesticides stored across Nepal.
- c) To classify the pesticides, found according to the inventory, into categories of extremely hazardous, hazardous and less hazardous.
- d) To arrange for secured storage through packaging and repackaging of those pesticides which are extremely hazardous and cannot be disposed safely in Nepal, so that these can be sent back to the countries of origin.
- e) To dispose other pesticides by packaging and repackaging following the same procedure, according to their severity.
- f) To exercise precaution and carry out awareness programmes regarding the possible loss of lives and property or environmental damage in the process of packaging, repackaging and safe, environment-friendly disposal of the toxics.
- g) To arrange for a separate fund for completing a study in order to compensate the damages to the suffered local people due to the ill-effects cast on the local ecology and public health, induced by the impact of pesticides, at present and in future.
- h) To provide for free medical treatment, as required, on government level after studying the effects of pesticides upon the health of local community.
- i) To safely dispose those pesticides in an environment-friendly manner through whichever processes, within one year.

The file should be returned duly after sending notice of this order to the respondents via the Office of the Attorney General.

I concur above decision.

Chief Justice Meen Bahadur Rayamajhi

Done on 4th Kartik, 2066 B.S. (21st October, 2009)

□

Nepalese courts are highly positive towards safeguarding the property rights of the elderly – people.

**Supreme Court, Full Bench
Hon'ble Justice Ram Prasad Shrestha
Hon'ble Justice Tahir Ali Ansari
Hon'ble Justice Prakash Osti**

Judgement

Revision 2065-NF-020

Subject: Application for Revision.

Applicant/Defendant: Ganga Bahadur Pradhan, resident if, KTM. 17

Vs

Respondent/Plaintiff: Yamuna Bahadur Pradhan, do-do

Case: Execution of Partition.

Previous Courts Issuing the Decisions:

Supreme Court, Division Bench:

Hon'ble Justice Ram Kumar Prasad Shah

Hon'ble Justice Pawan Kumar Ojha

Appellate Court, Patan

Hon'ble Judge Harijang Sijapati

Hon'ble Judge Rana Bahadur Bam

District Court, Kathmandu

Judge: Sharada Prasad Ghimire

- **While resolving the fact whether any property is divisible or not, it is necessary to look into the history of the given property. It is better to derive legal conclusion only after conducting thorough study of the mode of acquiring the property. It is not meant that all the property in the name of coparceners is divisible.**

- **All the contents mentioned in one deed are equally important. It is not reasonable to say any part thereof worthy of implementation and the other not except in conditions when law provides otherwise.**
- **The last vacation of the plaint is the rejection of the claim. The facts and claim once rejected cannot be entertained again. Even if case was filed by altering the name and coverage, court cannot enter into the question which was once decided on the same ground.**
- **It is reasonable to have freedom to the elderly citizens to utilize their own self-earning and private property. To make charity, conduct religious activities, medical check up and receive better care takings, it is inevitable to provide and reserve discretionary right to use the property for the old aged citizens and are required to be their those rights and privileges protected. In this contest, it is not reasonable to impose restriction over the use of the self-earned property by the old-aged citizen.**
- **Except prohibited by law, court gives liberal interpretation of law in the case of elderly citizens.**
- **Law protects the elderly people to transfer their property. It is not justifiable to restrict directly or indirectly to such rights of old-age citizens by law.**

Ram Prasad Shrestha, J: Defendant Ganga Bahadur Pradhan had filed an application demanding revision of a decision made on 2063/10/11 by division bench of this court. Revision allowed on the ground of Section 11(1) (b) of Judicial Administration Act, 2048. This case which is submitted in this bench according to Rule 6(1) of Supreme Court Rules, 2049, the brief facts and the decision reached thereupon is as follows:

Late father Radhakrishna had two wives, elder the late Chiniya Pradhan and younger the late Krishna Devi. The two sons Harigyan Pradhan and Basudev Pradhan were born to Krisnadevi. Wife Tejmaya and sons Bishnu Pradhan and Radheshyam Pradhan were the heirs of late Harigyan Pradhan. The partition case filed by heirs against Radheshyam had been ended in a compromise reached in 2054/6/11 and thus they are duly separated by taking their portion. Tirtha Pradhan, Ganga Bahadur Pradhan and plaintiff Yamuna Bahadur Pradhan are three sons of elder wife Chiniya Pradhan. No partition has taken place among three of us. Our mother Chiniya

Pradhan died on 2044/8/19. So it is requested that the same date be assumed as our separation date and have me one portion out of three was the main claim of the plaintiff.

I agree for separation as claimed by plaintiff. The original deeds and documents regarding our divisible properties are in the possession of plaintiff. So, made the plaintiff to submit the inventory of all ancestral properties and set aside for me the one portion out of three, the opposite party Tirtha Bahadur Pradhan, protested.

After the death of our parents all the inherent properties are in the possession of plaintiff. Hence, ask the plaintiff to submit list of all properties and provide me a part out of three, responded Ganga Bahadur Pradhan.

Lists of Properties (The inventory):

The inventory submitted by the plaintiff and defendant is enclosed hereinwith the case file.

There is no dispute on kinship between plaintiff and defendant and both are agreed to divide their inherent properties. According to the inventory of property submitted by them in 2056/10/10, 2056/11/6, and 2056/11/9, the plot No. 3452, and 14,15,19,5553,2104,335 are the indivisible properties due to the self-earned properties of plaintiff and defendants. The land and house of the plot No. 779 is also indivisible property because it is given by Chiniya Pradhan to Bina Pradhan in 2039/5/2 by a deed of residuary will (*Seshpachhi ko Bakaspatra*). Except the above mentioned properties, the other properties mentioned in properties lists by the parties of the case are divisible, was the decision made by Kathmandu District Court.

The land of plot No. 779 is in the name of our mother Chiniya Pradhan and possessed by all of us jointly (there brothers and mother). Due to taking care of our mother by ourselves we all have equal right to get equal share of that property. The transfer of ownership such property to our equal footing coparcener Bina Pradhan is not valid. So, the decision made by Kathmandu District Court declaring the above mentioned lands and houses undividable is invalid according to the No. 1 and 2 of Chapter on Partition of National Code, and Section 6(a) of Evidence Act, 2031. Hence, to that extent, it is requested to partly quash the Kathmandu District Court decision, appeals the plaintiff.

The decision of Kathmandu District Court, making the land and house of plot No. 19 self-earned (exclusive property) and undividable

property and making the ornaments dividable in subsequent part of the decision, which is Not mentioned in the decision part (the main part) of the judgment, is voidable. Hence, the decision of the appellate court must be partly quashed to extent, is the appeal filed by the defendant Yamuna Bahadur Pradhan.

The ownership transfer of land and house of plot No.779 through a deed of residuary will (bakaspatra) by Krishna Kumari Pradhan to Bina Pradhan in 2008/8/26, when of all the portion-holders were not separated may appear otherwise with the analysis of proof. Hence, the opponent are called according to No. 202 of Chapter on Court Management of National Code and Rule 47 of the Appellate Court Rules, 2048. Call the opponent and submit the case after opponent is appeared or expiry of stipulated time, was the order of Appellate Court Patan.

The land and house on plot No.779 is seen to be self earned property (exclusive property) of Krishna Kumari. The applicants/defendants are also involved in the translation to transfer ownership of the property to Bina Pradhan. Likewise, the land and house on plot No. 19 is also seen to be self-earned property (exclusive property) and indivisible. Hence, the district court decision, making the above-mentioned property undividable is valid, where as the ornaments on the name of Yamuna Bahadur Pradhan making dividable is not based on the facts and evidence, is quashed to the extend. Hence the decision made by Kathmandu District Court is partly quashed, was the decision delivered by Appellate Court, Patan.

The plaintiff filed appeal in this court claiming that the land and house of plot No. 19 is the ancestral property. It is dividable between plaintiff and defendants. Hence, it is requested to reverse the decision of appellate court to the extent of making the property on plot No. 19 indivisible (exclusive property).

The defendants filed appeal claiming that the land and house of plot No. 779 and ornaments mentioned in the inventory of property submitted by me making indivisible is not valid. Hence, it is requested to quash the decision to that extent.

The land and house located on plot No. 19 is seen to be self-earned property (exclusive property) of Indira Pradhan so can not be apportioned among the coparceners and thus is indivisible. The land and house on plot No. 779 is given (gifted) by the defendants Ganga Bahadur Pradhan's grandmother Krishna Kumari Pradhan to her

daughter-in-law or plaintiff's mother Chiniya Pradhan in 2008/8/26 by a deed of residuary will, where the defendant Ganga Bahadur Pradhan involved in the transaction as a witness. The property was transferred to the plaintiff Yamuna Bahadur Pradhan's wife Bina Pradhan or her daughter-in-law in 2039/5/2 through a deed of residuary will, that property is seen to be self earning (exclusive property) and can be sold or transferred to any person without consent of other in separated members of family (Not separating their kitchen), according to the No. 4 and 5 of Chapter on Women's Share and Property (Jointure) of National Code. A claim filed by defendant Ganga Bahadur Pradhan for making the deed of residuary will paper (Sesha pachhi ko bakaspatra) void on the date of 2039/5/2 was quashed by the district court according to the No. 5 of Chapter on Donation and Gift of National Code sustained by appellate court thus the decision of the appellate court is declared valid and consented by this bench today. Hence, the property transferred to Bina Pradhan is jointure and known as self-earned property and Not mandatory to divide. Now therefore, the land and house located on plot No. 19 and 779 and other movable property declared as indivisible by the judgment of appellate court on 2060/3/24 is reasonable and valid, the division bench decided on 2063/10/11.

Application filed by the defendant requesting revision:

It is clear that the land and house on plot No. 779 in the name of grandmother Krishna Kumari is our ancestral property and divisible one. The decision is contradictory because it makes the land and house on plot No. 208 inherent and indivisible property in one hand and the land and house on plot No. 779 is indivisible and self earning property on the other whereas Chiniya Pradhan acquired these properties by the same deed of residuary will paper. Defendant Bina Pradhan did not acquire that property by pleasing her by taking care. But the property was acquired by fraud. In NKP, 2055, page 600, NKP 2943 page 861, NKP 2036 page 65 states that the property earned by plaintiff and defendants by any way at the time their joint status is divisible property. Hence, the decision of Division Bench of this Court is opposed to the above mentioned precedents, so decision is required to be revised the decision according to Section 11(1) of Judicial Administration Act, 2048, was the application filed by the defendant, requesting revision of the decision.

In this case, full bench orders in 2065/5/13 for submission of the case accompanying with the original case file, record files together with the additional evidences, if any.

The land and house on plot No. 779 in the name of Krishna Kumari Pradhan was transferred to Bina Pradhan by a deed of a residuary will while coparceners are not separated. The decision of appellate court, which this Bench endorsed on 2063/10/11, is against the principles laid down in NKP 2055, decision No. 6618, page 600 and Supreme Court Bulletin, 2060, Full Vol. 281, page 24 and Section 11(1) (b) of Judicial Administration Act, 2048. Hence, the full bench grants revision permission by an order issued on 2065/6/3.

This case which is submitted to this bench according to the rules, the senior advocate Mr. Harihar Dahal and advocate Mr. Lok Bhakta Rana representing defendant argued that the disputing property was acquired by grandmother Krishna Kumari and transferred it to Chiniya Pradhan and then transferred to Bina Pradhan in 2039 by a deed of residuary will while the plaintiff and defendants were not separated and living together, by a deed of residuary will. The property earned and acquired by grandmother is the ancestral property for her grandsons. So the property cannot be granted only to the daughter-in-law. It is not only to see the property as earned by women but also to consider the nature of the property. The property was not transmuted for ten years; as well as there is no possession of the opponents over the property. The principle laid down in *NKP 2036, pages 65* is that a mother can freely transfer her property to daughter-in-law by deed of residuary will but the property transferred to daughter-in-law is divisible one. Likewise, the principle laid down in *NKP 2055, page 600* is that in the joint property there is equal right of all coparceners. Though a suit for invalidation of the deeds was repealed on the ground of limitation; the matter regarding Partition shall be decided by the suit of Partition. Hence, the decision of Division Bench of this court is requested to be quashed to the extent of making the land and house on plot No. 779 indivisible and requested to divide the property between all the coparceners.

Appearing on behalf of plaintiff, senior advocate Mr. Basanta Ram Bhandari and advocated Mr. Hira Regmi argued that the precedent mentioned in the order for revision is not relevant in this case. According to the principle laid down in *NKP, 2057, page 107* the property earned from gift of dowry/jointure (exclusive property) is not compulsory to divide. There is no dispute that the property was acquired as jointure (dowry or exclusive property) by Krishna Kumari Pradhan, and it was transferred to daughter-in-law of Chiniya Pradhan through deed of residuary will (Seshapachhiko Bakaspatra). In the deed of residuary will of transferring the property, the defendant was also involved as a witness. Likewise, the property acquired by self-

effort, and the property is self-willed property (exclusive property) that was gifted to the daughter-in-law, in 2039 by Chiniya Pradhan by deed of residuary will. The claim to quash the deeds of residuary will filed by the defendant was dismissed by the district court on the ground of limitation, which was sustained also by the Division Bench of this court. The property is seen to be self-earning and self-willed, so it is not compulsorily a divisible property and cannot be divided between all the coparceners. Bina Pradhan acquired the property by pleasing Krishna Kumari, her mother-in-law by well caretaking and medication. If such practices are not recognized in society, it may create difficulties in old-aged persons. Furthermore, Bina Pradhan is not party of this case, so decision made in this case shall not affect her rights. Hence, it is reasonable to sustain the decision made by Division Bench of this court.

After hearing the above arguments made by the lawyers on behalf of both parties, studying the proofs and documents included in this file, the following issues are required to be settled:

- 1) What is the nature of the land and house on plot No. 779? Whether or not the property is divisible to the defendants?
- 2) Whether or not the decision making the property indivisible by the Appellate Court and endorsed by the Division Bench of this court is reasonable or not? And the claim made in the appeal can be realized or not?

While resolving the fact whether any property is divisible or not, it is necessary to look into the history of the given property. It is better to derive legal conclusion only after conducting thorough study of the mode of acquiring the property. It is not meant that all the property in the name of coparceners is divisible. In this context, it is necessary to observe the nature of the property on plot No. 779. Considering on this jointure, there is no debate on that the disputing land and house was gifted by the grandmother of plaintiff and defendants Krishna Kumari to her daughter –in-law or mother of the plaintiff and defendants in 2008/8/26 by deed of residuary will (Seshpachhi ko bakaspatra) and the property is in the ownership and possession of Chiniya Pradhan. The photocopies of deed of residuary will dated 2008/8/26 enclosed in this case file shows that Krishna Kumari gave one plot of land to her daughter-in-law Chiniya Pradhan in gift and another land to the grand-son of the plaintiff and defendants by a single deed of residuary will. The land and house given on gift to the grandson is plot No. 208, which is divisible among all the coparceners. And there is no appeal of one of the defendants Tirtha Bahadur

Pradhan for making the land and house of plot No.779 indivisible. All the contents mentioned in one deed are equally important. It is not reasonable to say any part thereof worthy of implementation and the other not except in conditions when law provides otherwise.

In this way, the disputed land and house of plot No. 779 given to Chiniya Pradhan on gift and land and house of plot No.208 given on gift to the plaintiff and defendant by the grandmother Krishna Kumari through the same deed of residuary will and the property was alienated to their names. This shows that the defendants were aware about the donation of the property through deed of residuary will by Krishna Kumari to Chiniya Pradhan at the very time of making the deeds. Besides this, the defendant Ganga Bahadur Pradhan was a witness of deed of residuary will, made in 2008. So, the deed of residuary will was made in acquaintance of defendant Ganga Bahadur Pradhan.

The No.4 of Chapter on Women's Share and Property of National Code states the movable and immovable property of a woman received from her parents' family, her mother's parents' family (maternal home) and the property that she has increased from it shall be her *Daijo* (dowry). The movable or immovable property given to her with a deed of consent of all coparceners the heirs by her husband or the coparceners on husband's line, and the movable and immovable property given to her by other relatives or friends on the side of her husband and property she has increased from it shall be her *Pewa* (exclusive property). Likewise, No.5 of the same Chapter states Woman may use and dispose of their dowry (*Daijo*) or exclusive property (*Pewa*) on their discretion. In case if her death, this property shall be treated as mentioned in the deed she has made. If such a deed does not exist, her property goes to the son or daughter living with her if there is any; if such a son or daughter does not exist, it goes to the son or daughter living separately if any; if such a son or daughter does not exist, it goes to the husband; if the husband does not exist, it goes to a married daughter if any; if a married daughter does not exist, it goes to a son's son or unmarried daughter if any; if none of them exists it goes to the heir (*Hakwala*).

According to No. 4 of the Chapter on Women's Share and Property of National Code the land and house gifted to Chiniya Pradhan by mother-in-law through deed of residuary will is seen to be jointure (exclusive property). The property of jointure is self-willed property and valid according to No. 5 of the Chapter on Women's Share and Property of National Code and that is self-willed (exclusive) property

according to No.1 of the same the Chapter. In this way, the land and house on plot No. 779 acquired by Chiniya Pradhan from mother-in-law as jointure (exclusive property) is seen to be a self-willed property. It is found that Chiniya Pradhan transferred (gifted) such self-willed property to her daughter-in-law or plaintiff's wife Bina Pradhan in 2039/5/2 by a deed of residuary will.

According to No. 4 of Chapter on Women's Share and Property of National Code the land and house gifted to Chiniya Pradhan by mother-in-law through a deed of residuary will is seen to be jointure (exclusive property). The property of jointure is self-willed property and if it is given to anybody after the death of the woman it becomes effective and valid according to No. 5 of the same the Chapter and that is self-willed property according to No. 1 of the same Chapter.

In this way the land and house on plot No. 779 acquired by Chiniya Pradhan from mother –in- law by a deed of residuary will, as jointure is seen to be a self-willed property. It is found that such self-willed property was transferred by Chiniya Pradhan to her daughter- in-law the plaintiff's wife Bina Pradhan in 2039/5/2 by a deed of residuary will.

Though applicant/defendant has made a claim that the property is ancestral and divisible cannot to be given only to the wife of plaintiff whereas the plaintiff was a witness of the deed of residuary will made in 2008, which itself contradicts to his claim. Being a witness of the deeds the defendant had accepted the transaction at the very time of making the deeds. So the claim for making the property inherent and divisible is seen to be groundless. Furthermore, the precedents referred while granting permission of review by the Full Bench is also irrelevant with this case.

Now, we have to examine on whether the decision of the Division Bench of this court endorsing the decision of appellate court, making the disputing property indivisible, is lawful or not. On the basis of the through analysis of law and fact involved in the first question, it has been clear that the land and house on plot No. 779 is not an inherent property but it's a self-earning and self willed property of Chiniya Pradhan.

At present, the land and house on plot No. 779 do not exist in the name of Chiniya Pradhan. The title of the property had been transferred to her daughter-in-law or wife of plaintiff Bina Pradhan thought a deed of residuary will dated 2039/5/2. After the death of Chiniya Pradhan in

2044, the property was transferred to Bina Pradhan's title and alteration of name of the property had been made in 2054 to the name of Bina Pradhan. The defendant had also filed a suit claiming invalidation of the deed of residuary will and declaring the property inherent and divisible one. The arguments of lawyers made on behalf of defendant that as an inherent property transferred to the coparceners had no legal effect and the precedent cited before the bench are also irrelevant which is manifested by their (defendants) conduct. The matters expressed in the suit of invalidation of deeds are the proofs that can be used against the defendant in this case. According to Section 34 of Evidence Act, 2031, the principle of estoppels stops the defendant speaks against the particulars expressed in the above mentioned matter related with the fact. The case was quashed on the ground of limitation and endorsed by this court in 2063/10/11. The final decision made by this court is irrevocable and must be respected. The last vacation of the plaint is the rejection of the claim. The facts and claim once rejected cannot be entertained again. Even if case was filed by altering the name and coverage, court cannot enter into the question which was once decided on the same ground. This is the main thrust and substance of doctrine of Res-judicata.

The decision on deeds invalidation is quashed on the ground of limitation and final; however the decision had analyzed the form and nature of the disputing property. It was declared that the property is jointure of Chiniya Pradhan according to No. 4 of the Chapter on Jointure and self utilized property. By the above analysis the property cannot be allocated in the name of defendant, as saying ancestral and divisible, by this case.

In addition to this, from the viewpoint of social justice, it is reasonable to have freedom to the elderly citizens to utilize their own self-earning and private property. To make charity, conduct religious activities, medical check up and receive better care takings, it is inevitable to provide and reserve discretionary right to use the property for the old aged citizens and are required to be their those rights and privileges protected. In this contest, it is not reasonable to impose restriction over the use of the self-earned property by the old-aged citizen. It may not be true for all time and for all to assume that every old-aged citizen are respected and equally treated as parents by their offspring. In such a case, it is inevitable from the view point of social justice to provide rights to the old-aged citizen to grant such property to the person who takes them care. Law is for the society to fulfill social needs. Except prohibited by law, court gives liberal interpretation of law in the case of elderly citizens. It is accepted as state obligation to provide social justice to the

old-aged citizen in the Article 33(c) of Interim Constitution of Nepal, 2063. In article 34(1), under directive principles of the Constitution, to promote wellbeing of citizen through social justice and other justifiable mechanism, is accepted to be the main objective of state. Under article 35(9), state expresses its commitment to protect and prosper the old-aged citizen for social security. Judiciary, as a competent, energetic and dynamic organ of state should feel its responsibility over the commitment made by the state. It is the duty of judiciary to assist for the implementation of the commitments of state according to law. The provisions mentioned in the state obligations, directive principles and policies in the Part IV of the Interim Constitution of Nepal, 2063 though are not questionable in court about their implementation however they are not only for show. State should always be in favour of old-aged citizens according to the above constitutional and legal provision. According to the provisions mentioned in No. 1, 2, 4 & 5 of Chapter on Women's Property self-earned property can also be utilized by the old-aged citizens freely. There is a legal right of old-aged citizens to utilize such property, according to the No. 1 of Chapter on Partition and No. 1 of Chapter on Donation and Gift of National Code. Law protects the elderly people to transfer their property. It is not justifiable to restrict directly or indirectly to such rights of old-age citizens by law.

Hence, on the basis of the facts and law analyzed in the above mentioned paragraphs, the self-willed property of Chiniya Pradhan given to her daughter-in-law by a deed of residuary will (Seshpachhi ko bakaspatra) and in the context of the final decision which declares the said deed of residuary will valid, the claim of applicant made for the division of the land in partition and the house of plot No. 779 is thought to be groundless. The decision of district court not providing the defendants portion of share in from the land and house of plot No. 779, ratified by the appellate court and again approved by the Division Bench of this court in 2063/10/11 is reasonable and valid. Hence, the claim of applicants demanding for revision of the case cannot be realized. Remove this case from the regular proceedings and handover the case file according to the rules.

We concur above decision.

Justice Tahir Ali Ansari

Justice Prakash Osti

Done on 19th Kartik, 2066 B.S. (5th November, 2009)



